# ANTIREVOLUTIONARY POLITICS II (P1)

**II**

*Daniel Metcalf*

# Preface to Volume II

This second volume, titled *The Application*, moves from the theoretical foundations laid in Volume I to the concrete political program. Here Kuyper addresses the practical machinery of the State: Representation, Justice, Army, and Social Policy.

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## Technical Note & AI Disclosure

**Translation Methodology:** This English edition was produced using advanced Large Language Model (LLM) artificial intelligence technology to translate the original Dutch text of Abraham Kuyper's *Antirevolutionaire Staatkunde* (1916-1917). The AI system was prompted to preserve Kuyper's distinctive theological and political vocabulary, maintain his complex sentence structures where possible, and render 19th-century Dutch idioms into readable modern English while respecting the historical register.

The translator (Daniel Metcalf) provided:

- **Human oversight and verification** of all translated passages for theological accuracy and stylistic consistency
- **Editorial decisions** on rendering key Neo-Calvinist terminology (e.g., "Sphere Sovereignty," "Common Grace")
- **Structural organization** and formatting of the three-volume edition
- **Quality assurance** through spot-checking against the Dutch source PDFs

**Scholarly Apparatus:** In addition to the translation, AI algorithms were utilized to generate the following supplementary materials:

- Synthesis of the *Analytical Register* (from the original back matter) into section headnotes
- Thematic clustering via Natural Language Processing (NLP) to enhance the General Index with conceptual groupings
- Generation of the "Synopticon" cross-reference index linking Kuyper's arguments to Mortimer Adler's *Great Ideas of the Western World*

- Compilation of the Encyclopedic Glossary and Biographical Register based on text analysis and historical context

**Limitations:** While every effort has been made to ensure accuracy, users should be aware that this is an **AI-assisted translation** and may contain subtle errors in theological nuance or historical context. Scholars engaged in critical work are encouraged to consult the original Dutch text. This edition is intended as a scholarly resource to make Kuyper's political theology accessible to English-speaking audiences, not as a replacement for the authoritative 1916 Dutch original.

**Source Texts:** The translation is based on the digitized versions of the original *Antirevolutionaire Staatkunde* (J.H. Kok, Kampen, 1916-1917), available via Internet Archive and other public domain repositories.

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# CHAPTER I

## THE Antirevolutionary PARTY AS A POPULAR MOVEMENT

THE Antirevolutionary PARTY AS A POPULAR MOVEMENT

### §1. Connection with the first part.

In the First Part, the principles from which we believe political science should proceed have been extensively explained. Now, in this Second Part, we come to the application of these principles, particularly in our country and in the present time. Part I gave the general; in this Part follows the specification. This is not to be understood as if the exposition of the Principles had been carried out entirely apart from the data that present themselves to us in our time. This would not even have been thinkable in a constitutional exposition. The absolutely abstract theory has never done anything but mislead, and Savigny's historical school has above all cured us of the theoretical one-sidedness of the natural sciences. But even apart from this, it was not to be thought of, in a practical popular handbook like the one offered here, to exclude all specification from the exposition of the Principles. A public, such as I have in mind as readers, and which consists mainly of non-academic leaders of the people, would not easily be able to follow a purely theoretical exposition. Only by specification could the positions I advocate become clear to such people. As far as, in the pleading of these principles, a reference to the particular and to the practical data had to be made, only auxiliary service was sought, and there could be no question of a special application to the Antirevolutionary Party, as it presents itself for the various political issues in our country and in our time.

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THE Antirevolutionary PARTY AS A POPULAR MOVEMENT

### §2. The opening of our Program.

In proceeding to the discussion of the direct application of the advocated principles in our country, I choose as my starting point the first article of our Program, which reads as follows: "The Antirevolutionary or Christian-Historical direction represents, as far as our country is concerned, the fundamental tone of our national character, as it received its stamp, under the leadership of Orange, under the influence of the

Reformation, around 1572, and wishes to develop this, in accordance with the modified state of the people, in a form that meets the needs of our time." §3. Difference according to the country. The way in which one stands up for the profession and defense of one's political principles cannot be the same everywhere. In St. Petersburg, or, as it is now called, in Petrograd, there has been for some time a not so small Dutch colony, which has continued to exist mainly from the north of our country. The Minister of the Navy Kruys, who was approached by me in 1901 to form a Cabinet, was descended from one of the families that have constantly nourished this circle in St. Petersburg. Now, because of this historical origin, it could be thought that the members of the circle in the capital of Russia, had remained faithful to the Calvinistic principles that their fathers professed. Suppose now that among these emigrated Dutchmen, especially since they also possess their own church there, a political club had formed that was devoted to the principles advocated in this work, then...

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THE OPENING OF OUR PROGRAM - DIFFERENCES ACCORDING TO COUNTRY. Yet one feels how this club, which would be completely outside the picture to exert any significant influence on Russian politics, would have to act entirely differently than our Central Committee here at home. The same applies to the Dutch Colony in Smyrna, which, like the one in St. Petersburg, dates back to the 17th century and likewise has its own Church, even with its own churchyard, but just as little, even if it came to professing its political principles, could even think of appearing as a party in Asia Minor. Quite different again is the position of our various groups of emigrants in Michigan, Iowa, Illinois, New Jersey, etc. in the United States, or of our emigrants in Canada and Argentina. Here they soon appeared with their own press and their own club connections, but of course could only do so by joining the major party movements in those countries, albeit with reservations. In Brussels alone, there was at the time a Dutch Colony of no less than 20,000 people, and in part one also found groups of Dutch emigrants in Ghent and Antwerp. Insofar as there were principled Calvinists among them, it went without saying that they too were intent on exerting political influence; but their position was still quite different from ours, and what they did was therefore no direct consequence of what we do here at home. Yes, even in our own country, the Anti-Revolutionary Party cannot present a uniform image in all provinces. In Utrecht and Limburg, to mention only these two provinces, the numerical ratio in which the Calvinists stand to the rest of the population is so completely divergent that there can be no question of a consistently similar appearance in both regions. This must be emphasized more, because we are quite certain that we also have spiritual kindred in many other countries who are nevertheless unable to appear as an independent political party of their own. Just think of the Presbyterians in America, in Great Britain and Ireland, as well as the Reformed in Germany, the Calvinists in Hungary or the Reformed in France. The political milieu in which one finds oneself, the strong relationship

to the other state parties, and likewise the past that historically continues to have an effect, often diverge so strongly that there can be no general rule for the public appearance of the

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THE ANTI-REVOLUTIONARY PARTY AS A PEOPLE'S FACTION. To establish Calvinists or their kindred spirits in all lands, and one is always forced to seek for one's own country an organization suited to that country, and that therefore the Program which has to serve for that organization will have to bear a quite peculiar character. What Burke, Von Haller, Hamilton, Bonald, Le Maistre or Stahl have best given in England, America, Switzerland, France, England or Germany, can therefore never serve as a fixed guiding thread for our conduct. Above all, Groen van Prinsterer saw this from the outset, and therefore set a premium, not on general political ideas, but specifically on bringing Dutch thoughts to the people. The difference intended here depends on many things—on the national character, on the nature of the country, on the past, and on the particular circumstances of the time. The revolutionary principles that penetrated Europe from Paris at the end of the 18th century, and since the first half of the 19th century, are one for all lands and peoples, precisely because they lacked any historical stamp. Hence a constitution almost identical for all countries was readily made ready. In the historical field, on the other hand, diversity maintains itself, which is directly connected with the variety of life.

## §4. THE CALVINISTS HERE IN THIS COUNTRY.

As far as our country is concerned, the Calvinists in the 16th century formed little more than one-tenth of the population. This figure, indicated by Professor Fruin, was very sharply taken; but when it comes to very decisive principles of politics, one is always safer by staying below the imposing figure than by aiming above it. Now if we stick to this one-tenth, it may be presumed that we still stand in the same proportion to the entire population. Although it is true that the candidates put forward on our side for the Second Chamber have repeatedly reached a much higher proportion, this does not at all lead to the conclusion of a higher proportion figure. Only after the introduction of proportional representation would it be possible to draw a conclusion on this point. Not now, and the less so because the Anti-Revolutionary Party does not dominate a particular part of the country, but is scattered over all the provinces, with only North Brabant and partly Limburg excepted.

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THE CALVINISTS HERE IN THIS COUNTRY. The consequence of this is that almost all our candidates are elected only with the help of other parties, but then also in turn give their votes in other districts to the candidates of our electoral allies. The calculation that the population faction of our party now, as in the 16th century, estimates at one-tenth, is therefore not derived from the results of the ballot box, but is the result of entirely different data that stand at our service. The Central Committee succeeded in extending its organization over the whole country in such a web of Electoral Associations that we always counted between 500 and 600, and as the ballot box approaches, we often even exceed this last figure. Secondly, one can go here on the organization of our private school system. And in the third place, on the ecclesiastical division. From this last, however, it appears that the Reformed Churches alone already count nearly 500,000 members, so that an estimate that adds up all the denominations of the Calvinists certainly does not lead us to an overestimation of our own strength, but rather points to the stubborn group that clings inexorably to the Calvinistic principles, gathered from all the Churches, as in the days of the Gueux, to one-tenth of the entire population. Two things are now conceivable here. The state of affairs will either present itself in such a way that this one-tenth remains entirely by itself, or there will be an interest at stake for the whole country and the whole people that will of itself lead the guidance of this one-tenth. The latter was the case in the 16th century; the consequence of which was that at that time the Calvinists had the decision in their hands; in the first-mentioned case we are now. In the 16th century, the word went out from our group, in which public opinion expressed itself; now public opinion can turn against us with overwhelming force. If the opponents on our side had also not had the imprudence to bring the School Question to the fore in 1857, our influence on the course of the country's affairs would probably not have led to the Crown entrusting the composition of a Cabinet to one of our statesmen even three times.

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THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT.

## §5. Allies.

This state of affairs necessarily leads to the consequence that, while maintaining one's independence as a political party, one must nevertheless be intent on forming alliances with other parties in order to succeed and achieve a common goal. And here, the uncertainty often arises by which motives the choice of your allies should be determined. For this choice will in France lead our kindred spirits to join the radical elements, and conversely here at home, that we seek support from the Roman Catholic part of the population. But that the latter should be our rule everywhere, does not at all follow from this. Just think of Spain and Portugal, and you will immediately perceive the profound difference. In Spain, the Curia has

persistently insisted that the Papal Church alone be allowed to appear freely. The infiltration of Protestantism was not even to be tolerated. If there is now at least a milder view prevailing here, it is not the Curia that has conceded this, but rather a radical current that has pushed this through, against the will and intention of the Curia. As for how it went in France, we know. Pure indifference in name, but in fact enmity against all religion has become the leading idea. The consequence of this was that in France too the Réformés joined the Radicalism. For they knew that, if Rome regained its old, lost position, a revival of the spirit of the St. Bartholomew's Night was to be feared. It is therefore never in an absolute sense to be determined with which tendencies, with which parties we, the Anti-Revolutionaries, should ally ourselves on the political field. This cannot be established equally for all lands and peoples. The choice is necessarily determined by the attitude of the Church of Rome in such a land. If it can live on a footing of equality with the Church of Rome, then it is obvious that we as Calvinists feel much more akin to Rome than to the parties of the Revolution. If, on the other hand, a Roman-clerical regime, as in Spain, even begrudges us the light in our eyes, then we are compelled to seek support where otherwise the principled opposition would forbid us all cooperation.

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ALLIES. - KUYPER AND DR. BRONSVELD.

## §6. Kuyper and Dr.

Bronsveld. It is from the failure to properly distinguish these two that Dr. Bronsveld, and always only his kindred spirits, have become the victim. Intercourse and association with the collectors of the Églises réformées in France led this otherwise so noble scholar to want to apply the relationship that was found there in France also to our country. However warmly he had initially welcomed my appearance in the political field, I soon lost his sympathy, and he tried to apply the relationship that had to be enforced in France also here at home. His alignment with the Liberals became increasingly decisive; that is to say, with the Conservative-Liberals; and he withdrew his support from me. In Kuyper especially, Dr. Bronsveld found his opponent on this point. This noble fighter too, just like Dr. Bronsveld, always harbored a certain fear that cooperation with Rome promised us bitter fruits, but far from leaning towards Liberal Conservatism or Conservative Liberalism, Kuyper always came out uncompromisingly for the independence of the Anti-Revolutionary principles, and allied himself more faithfully and decisively than any other party member with the Central Committee. Kuyper showed his superiority of spirit in this. Leaders of the second rank like Dr. Bronsveld allow themselves to be determined in their choice by incidental motives; a man of the first rank like Kuyper does not pluck the flower from the stem, but clings firmly to the root. This never letting go

of the root could therefore allow much play in the unfolding of the sympathies in practical action. Kuyper had not closely followed the latest development of the Roman political ideas, as they had come to the fore especially under Leo X. The “rather Turkish than Popish” therefore continued to play through his mind.

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8 THE ANTI-REVOLUTIONARY PARTY AS A PEOPLE’S PARTY. He never saw any danger in this, he repeatedly asked himself what the future might possibly bring. Never, on the other hand, has this tempted Kuyper to descend into the conservative side paths. The impulse, the inspiration for his political action always came to him from Calvinism. That is why the Calvinist people have praised a man like Kuyper to the end, while they felt that Dr. Bronsveld had never really been one of us. This in no way diminishes the personal esteem in which this ever-ready champion is held. Only, he unfolded in a way quite different from what was first suspected. He seemed at first to promise an acquisition for Calvinism, and he grew into a conservative-liberal, with, in a spiritual sense, a generous, full confession of the Christ.

## §7. The Tak Electoral Law.

Yet it always seemed to me that an alliance with Rome need not necessarily lead to a marriage. Undoubtedly, the Roman Catholic State Party, as it presented itself after the well-known episcopal mandate on the school question, was not only our neighbor, but was also the most congenial to us in spirit. This could not be otherwise, because the confession of the Christ governed the life of both of us; but even so, the question remained open whether the appreciation of freedom of movement and the maintenance of our independence as Calvinists would not naturally lead us, if a favorable opportunity presented itself in a particular emerging issue, to not necessarily disdain their eventual support on our side. We know how it went with Tak’s Electoral Law. Among the Roman Catholic politicians, the majority still leaned quite strongly towards the conservative side. We were not yet separated from them for much more than a quarter of a century since 1853. The time when Thorbecke was elected in Limburg was still fresh in many people’s memories, and the April movement was still reverberating. It is true that under the inspiration of the German Center Party, a completely different current had already arisen by then, but the old phalanx had not yet dissolved. We know what Aeneas Mackay has undergone and how

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THE ELECTORAL LAW BRANCH. Bergsius fell as a victim. In my view, the decisive moment was here alone to wait, so that an expansion of the right to vote would bring a broader class of citizens to the fore, and that

was precisely what the electoral law of Tak van Poortvliet promised to give us. From 1870 onwards, I had always pushed for an expansion of the right to vote. It grieved me deeply that the "little people," among whom Calvinism had found its school, had to stand behind the self-satisfied bourgeoisie. Personally, I was always offended by the slackness, the indifference, and the unprincipled nature of the Conservatives. And when, after twenty years, my first call for an expansion of the right to vote, Tak van Poortvliet finally came up with a proposal that at least did not oppose what the Anti-Revolutionary party desired, the idea occurred to me to, with the help of the other side, finally put an end to the misery that had lasted since 1848, and if necessary, to do in two steps what apparently could not be done in one. I cannot have respect for the opposition to Tak's intentions; and anyone who looks at the proposals that are now on the agenda, and what those same conservative elements of 1894 are now willing to concede, immediately feels that there could be no question of an opposition on principle at the time. It was nothing more than a turning against the "little people" in order to "remain master in the land." Here, therefore, in my opinion, a ready opportunity presented itself to let the more radical element bring in the rescue, as an exception. This would push the little people more to the fore, and in particular also among the Roman Catholics, the Christian-political element, following the example of the German Center, to take over the leadership, which was still too much in the hands of the Conservatives. Yet this swing missed its goal. It appears that the radical circles were so filled with aversion to anything called "fine" that they almost everywhere left our candidates in the lurch and went over to the Conservative-Liberal in the run-off. Thus it became clear that the more mature political development that had been achieved in our party - for our circles went over as one man to the radical candidates - was still completely lacking in them. I had not expected this. And in this lay a fault which I confessed as guilt. I should have known that a transition to a candidate of the "fine" ones, out of fear of clerical over

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10. THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT. The domination of the Clericals was excluded. Whether this Clerical nightmare will grow remains to be seen. For now, the Anti-Revolutionary party must be very much on guard against the radical elements; especially in the social question, the Anti-Revolutionary party must remain free from any Socialist infiltration.

## §8. The Schism of 1894.

In the secession of those who now call themselves the "Christian-Historical Union," a phenomenon of a very different nature appears. In the elections of 1913, it came to light how all independence fails in this Union. One must be very careful in judging this Union, lest one pass an unjust verdict. In general, it stands

firm that those who gather in this Union are fervent believers in the Gospel, mostly inspired by the Revival and the associated Methodism. As a rule, the School Question arouses their warm interest, and they do take a real interest in the ethical-political issues. Questions such as Sunday observance, prostitution, temperance, hygiene, poor relief, the penitentiary system, and many more, tend to inspire particular interest in the men and women of this Union. Often, they also have a love for Missions. Hence, as long as political action revolves around these issues, the Union is truly a Union, and often exerts an influence that we can also applaud. But—and this is what must be particularly noted—when the proper political constitution of the State comes to the fore, then there is no more motley jumble of political ideas imaginable than what comes to the surface in the solidarity of this Union. Not that it lacks eminent personalities. It has always been a source of regret to us that in our good Netherlands, one so often falls short in appreciating the personal conduct of one's political opponent. It always seemed wonderful to us that on the other side, men like Thorbecke, van der Putte, and Kappeyne van de Coppello had emerged; and even now, the conduct of Cort van der Linden and Treub did us good.

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THE SCHISM OF 1894. Why should we now conceal this, and what could now move us to besmirch their good name in public? I have consistently opposed Kuyper in the Chamber and outside the Chamber on principle, but I still remained on friendly terms with him until his untimely death, just as with Franssen van de Putte. I have never understood, therefore, what it was that moved not only the press of the opposing party, but even the leaders of the opposing party in the House of Representatives, to constantly denigrate statesmen of a more Christian character, as they were rightly called. The caricature has never bothered me, and I have even contributed to making it monumental, through my preface to the publication of a collection of Over twenty-five years; and even the Kölnische Zeitung applauded this. But what has always annoyed and grieved me was the vehemence with which one has persecuted, as a mocker and scoffer, first Groen van Prinsterer until 1876, when he died, and, after him, especially me. One knows what broke loose in 1909 on the occasion of a lecture for a knighthood; an uproar so high that a Commission of Inquiry had to intervene before it could be silenced. This vehement, literally carving of his political opponents is something specifically Dutch. Abroad, it is not much better either, but in any case, they did not go as far as with us here. And what was even more to be deplored, even the press of the Christian-Historical Union did not manage to keep itself free from this. Gather together all that the Dutchman, before and after the period of 1901–1905, has displayed in vehemence against me personally, and you will involuntarily ask yourself how it was possible among Christians that this stream of bitter waters could only keep dripping; and this all the more, since the newspaper that served me as an interpreter almost completely abstained from such polemics. Perhaps a single arrow may have slipped from my pen, but as a rule I always confined myself to a

positive exposition of my feelings, and there is no one among the members of the Christian-Historical Union who can accuse me of a personal persecution. Only once did I have to distance myself, but then it went tit for tat, and that was the end of it. It never caused any ill will with me. That this was not always reciprocated from the Christian-Historical side is no other to be explained than from the complete misunderstanding in the Christian-Historical Union of a

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12THE ANTI-REVOLUTIONARY PARTY AS A PEOPLE'S PARTY. THE LEADING POLITICAL IDEA. As I already remarked, among those who rallied under the Union, there was a praiseworthy busyness on almost every domain of Christian life; only, not in the political domain. In the political realm, a few gifted thinkers and speakers emerged in the Union, but each with their own monopoly. There was a vigorous individualism, but little trace of concerted cooperation; and of that unity in feeling, views, and convictions, which is indispensable, little was often to be discovered, emanating from the leadership of a political party among the people.

## §9. MR.

JHR. A.F. DE SAVORNIN LOHMAN. Mr. De Savornin Lohman had his own standpoint, different from that of Mr. Van Idsinga, and likewise from that of Mr. De Geer. It was precisely in 1913 that it became evident in what political chaos the Union threatened to dissolve. A danger further aggravated by the fact that the Réveil abroad, especially in largely Roman Catholic countries, not infrequently allied itself, in order to ward off Clericalism, with the radical politicians, while on the other hand the Conservatives here at home, after the merger of their own party, sought shelter in this Union. Yet this did not take away that on our side we always had to reckon with cooperation with the Christian Historicals as well. Neither at the ballot box, nor in the States-General, can one take a position without their support. Not only from the Roman Catholic side, but also from the side of the Christian Historicals, the Anti-Revolutionary side had to suffer a certain pressure, from which we could never completely free ourselves. In an earlier period this pressure was less, because until 1889 we were nothing but a protest party. If protest is the sole purpose of your appearance, then pay no heed to any connection, and seek salvation alone in the clear and vigorous manifestation of your own conviction. Groen van Prinsterer especially derived immense strength from this protest position. For he could even go so far as to withdraw the confidence of his entire party in the Second Chamber, and stand in the country as a general without an army. But this becomes quite different when you, with an eye on an alliance, see the chance of becoming a majority in the Second Chamber, as this has already been the case for thirty years after Groen's death. Just the growth of our party among the electorate, and the new

influx of voters that the constitutional revision of 1889 brought us, completely changed our responsible position.

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MR. JHR. A.F. DE SAVORNIN LOHMAN. - PROTEST PARTY OR CABINET. And nothing is more thoughtless than the one-sidedness of some of ours, to still want to bind our party to the tactics followed by Groen van Prinsterer and also by me at first, even after this entire change in our position in the country. In our first period, there was no thought of grasping the reins of government; I even considered at my first appearance that even dreaming of it would lead to a denial of our principles. Our Program, which I designed in 1878, was therefore still entirely in the style of that first period. After 1889, however, completely different relationships entered in, and this explains why since that year a certain change in our tactics had to take place, which influenced our programmatic appearance. Repeatedly, especially in 1888, 1891 and 1894, attempts have been made to arrive at a more precise formulation. There was no question here of a denial of principles; it was merely seen that not everything could henceforth be demanded at once, and that for the sake of the allies, one had to modify the formulation of one's demands at times. What nevertheless helped to preserve unity amidst these tactical shifts was the School Question; in this issue, one usually drew the same line by itself; as soon as differences of opinion arose on this issue, unity of purpose was not regained until it was, and even now it still binds us together in the Education Commission of Minister Cort v.d. Linden.

## §10. PROTEST PARTY OR CABINET.

This brief overview makes it abundantly clear how much prudent leadership is required to keep our little ship on course. There is no prospect of an uninterrupted majority. In the 16th century this succeeded, because at that time the struggle was principally about the faith, and the entire national existence gathered around the matter of faith. Then it could not be otherwise, or the party of the Dim Vivant, from whose midst the martyrs arose, had to set the tone.

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14. The Anti-Revolutionary Party as a Popular Movement. They have taken up the leadership and guidance; but already with a Twelve-year Truce, the situation changed, faith receded into the background, and trade and shipping came to the fore. On a small scale, a shift in public opinion could be observed, but in the opposite direction, when the anxious pangs of war and the blow to our trade broke us, and the need of the

moment again called more broadly to God. Then so many turned again to the religion that they had hitherto only nominally honored. Yet this cannot give us the position of the 16th century, when the religious awakening was not the fruit of necessity, but the mighty national struggle drew its initiative mainly from faith, and not from anything else. We stand midway between these two possibilities. It may be that the Lord our God has humbled us again, as a punishment for our lack of unity, our re-emerging individualism, and the half-compliance of many with the men of Unbelief and Revolution, banishing us once more from the sphere of Government and assigning us again the role of a protest party, a da capo of the period 1857–1878; something that would likely purify our political blood and strengthen our willpower. Then we will naturally go back to a Program of Principles and regain our integrity. On the other hand, if the struggle on the official terrain must be continued on our part as well, so that participation in that terrain remains an inescapable duty, then, even with the most uncompromising confession of our principles, it will still come down to reckoning with our allies in terms of their application; and it will remain the highest political art, never to consent to a tactical action that would mortally wound our principle, but conversely to safeguard ourselves from all obstinacy that would cut off all effectiveness of our principle. It will always depend here on what Groen van Prinsterer meant when he raised the slogan: "In our isolation lies our strength!" This applied in full meaning when Groen uttered it as a slogan, but lost that meaning with the appearance of Mackay's ministry. For its appearance had only been possible as the fruit of electoral cooperation, and could only bear fruit through cooperation in the Second Chamber. It was therefore nothing but political self-delusion when some also in 1890, in 1901 and in 1908 declared the Anti-Revolutionaries to be a party of isolation.

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ELECTORAL PROGRAM. Those upon whom the responsibility for the administration rested attempted to muzzle this age-old slogan. In our first period from 1857–1889, this isolation was precisely what was needed to make a later appearance outside of isolation possible; and if, now or later, a state of affairs were to return in which the Anti-Revolutionary party would count for almost nothing in the official affairs of the country, the order to retire in order to jump higher would immediately be given again. In the still ongoing second period, which began in 1889, on the other hand, the indispensable alliance cut off that isolation and kept the isolation no other meaning than that it remained in our program, i.e. in the principles professed by us, what is called pure on the crest. That even among us more than one of our best men stood too close to the Liberals in the oath question, in the conditional condemnation, and so much more, and left a gap on our side, was a denial of the isolation on the principled field, against which I have always warned and from which we have never reaped anything but self-weakening.

## §11. Electoral Program.

The appearance at the ballot box with its own Electoral Program finds its readier justification in this change of relationships. Already in itself, the pushing to the fore at the ballot box of a striking slogan, especially in England, has been warmly recommended and used. In America too, the same practice was followed in the Union. There it was what was called the good cry. Groen van Prinsterer also felt the significance of this and often urged it. Yet this is not what we intend here in connection with the argument made. Repeatedly, the Anti-Revolutionary party has also felt compelled to profess a much broader confession at the ballot box. Our Program of 1878 had a general character and was entirely calculated on the then still entirely principled position in which we found ourselves squeezed. Now, however, thanks to Kappeynes' sharp Resolution, an alliance arose that promised a chance of success, the necessity arose to express itself as a party on issues and matters about which we had hitherto kept silent; or also to express themselves in a more stringent form on issues that we had indeed dealt with one-sidedly, but not with a view to allied cooperation, and thus to move from the general to the particular on a particular moment and under the particular circumstances that presented themselves at that moment. This appearance with its own Electoral Program has been repeatedly condemned, especially from the Christian-Historical side. Not from the side of the Roman Catholic State Party. This too saw the necessity of such an electoral agreement early on and was quite willing to be in our company in drawing up the electoral agreement. This is not to be misunderstood. There has been no attempt to appear at the ballot box with a program on both sides. One felt that from this, if it went too far, danger could arise for the independence of both. What was done, on the other hand, was to consult in order to agree on both sides which issues would be raised this time and in what sense the solution of these particular issues would be attempted. Each of the two parties remained entirely free to formulate what was desired on both sides in its own way and in connection with its own confession of principles, as well as to add to the commonly established one or two points that were of interest to its own party, but not to the ally. Think, for example, of the relationship between the government and the religious denominations. Finally, this has also been followed from the Christian-Historical side. A requested conference has been attended, and already in more than one election, an agreement has also been reached with this party. §12. Once more Mr. Lohman. This helped a little to achieve unity in the nomination of candidates, but it never bore rich fruit in the Chamber; and this could hardly be otherwise, since Mr. De Savornin Lohman, through his personal predominance actually representing the entire Union in the Second Chamber, not only kept himself completely outside the making of such an electoral agreement, but also constantly set his own price, clearly indicating that he did not want to be bound by any agreement.

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16 THE ANTI-REVOLUTIONARY PARTY AS A POPULAR PART. delijk aangevend, dat hij zich door geen overeenkomst gebonden wenschte te zien. Dat dit voor de eenheid der Antirevolutionaire partij in de Tweede Kamer noodlottig moest werken, ligt voor de hand. Immers, de heer De Savornin Lohman was feitelijk de leider der Antirevolutionaire Kamergroep, en door zijn eigenzinnig optreden werd het onmogelijk, dat de Antirevolutionaire partij als zoodanig met een gemeenschappelijk program voor den dag kwam. Wel werd er dan ook telkens geklaagd over gebrek aan eenheid in de Antirevolutionaire Kamergroep, maar de oorzaak lag in de eigenzinnigheid van den heer De Savornin Lohman, die zich door geen afspraak gebonden achtte. Eerst toen hij in 1905 uit de Kamer verdween, kwam er meer eenheid in de Antirevolutionaire Kamergroep. Maar ook toen nog bleef het moeilijk, om tot een gemeenschappelijk Stembus-program te geraken, omdat de Christelijk-Historischen, die zich nu sterker voelden, ook hun eigen eischen stelden. Eerst in 1918 is het gelukt, om tot een gemeenschappelijk Stembus-program te komen, dat door alle Antirevolutionaire en Christelijk-Historische candidaten kon worden onderschreven.

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ONCE AGAIN, MR. LOHMAN. - FUNDAMENTAL STARTING POINT.

It is necessary to clearly state that he had no intention of reckoning with the agreement that had been made. The very idea of such an agreement was completely at odds with his entire personal existence. His strength lay in strict individualistic action; the quintessence of rigid individualism shone through in him. Such individualism has always seemed highly questionable to us, and without distinction, it has been rejected as utterly untenable by all practical writers on party organization. But this does not help when it is opposed to what is desired, embodied in a man of such high significance. Whoever rejected the concert in this case could not have spoken otherwise than he did. He could not but remain true to himself; something that often caused serious inconvenience, because it was often absolutely impossible to conclude, from his attitude in one case, to his attitude in a similar case. Personality too is a mystery, and in that mystery, often there is no place for a self-consistent stance. This is often wrongly condemned. Blindness to what lies hidden in the mystery of personality often leads to an unfair judgment. Political cooperation, therefore, is safest when it respects this mystery in such personalities and knows how to arrange itself in such a way that the damage caused by such individualism can be averted, and the full power hidden in it can be utilized at a given moment.

## §13. Fundamental Starting Point.

But precisely this alternation between isolation and cooperation, and the change that, due to the intended cooperation, the attitude of the Anti-Revolutionary party could undergo, made it all the more necessary, as point one on its program, to express in words, not open to two interpretations, the fundamental starting point of its entire political thought. The Roman Catholic party possesses such a fixed starting point in its ecclesiastical confession and its ecclesiastical hierarchy. The parties of unbelief and revolution derive their fixed life principles from what was uttered in Paris from 1789–1795, only in a more radical degree.

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THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT. The unfolding is different. Socialism has sought such a starting point in life rules that it prescribed for the future in social coexistence. And so our Anti-Revolutionary party cannot shirk from firmly stipulating such a starting point. Of course, a confession had to come to the fore, in which its general Anti-Revolutionary character was evident, but this could not suffice. As was extensively set forth in the First Part, one can stand as one man against the principles of unbelief and revolution, and yet be extremely diverse in one's State architecture. Russia is strongly opposed to unbelief and revolution, the same can be said of Turkey, but now lay the Constitutions of these two Empires alongside the constitution that Belgium gave itself in 1830, and the distance that yawns on constitutional terrain between Belgium and these two autocratic Empires is not too harsh a word. To say that you are Anti-Revolutionary does not say enough. You know well what you do not want, but not what you do intend. Against Unbelief and Revolution!—it is excellent, but where are you then for? The insufficiency that lay in this negative duality was also felt, and hence one already spoke in the thirties of the previous century, in addition to this, of Christian-Historical, as also in article one of our Program both are joined together as a unity of purpose, and as complementing each other. Over against Unbelief stood then the Christian Confession. Not every faith can serve to oppose unbelief. Buddhism too stood over against unbelief. Likewise Confucianism. And in an even stronger sense, Islam. But over against the action of 1789—'95 there was no salvation to be sought with these three. The cry of unbelief in Paris was very specifically hurled against the Church of Christ. It was the Christian faith that one abjured and banned. In rising up against this cry of unbelief, it was therefore to be determined whether one would then take up the abjured Christian faith again, or would propagate a new faith discovery. What not long thereafter was recommended as Modernist in such broad circles, was the new discovery, which, when closely examined, had already undertaken a reaction against sheer unbelief under Robespierre. Very rightly, one has therefore immediately opposed the cry of Unbelief and Revolution, the slogan of the

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THE ONE-SIDED VIEW OF “CHRISTIAN”

The Christian element opposed. Christian versus Unbelief, historical versus Revolution.

## §14. The one-sided view of “Christian.” In these two lay the past...

The one-sided view of “Christian.” In these two lay the past, from these two it was hoped that a future of salvation would come; and so it was these two that one took a positive stance towards. One could hardly have formulated the antithesis otherwise. It was not against the Pope in Paris, but against Christ, and no more against a particular form of government, but against the whole that history had provided. The history with Christ had now come to an end; a new political creation without Christ would now take its beginning. And over against this triad, whoever held fast to the faith, set forth the Christian and the Historical element as in one breath. In the first onset, the word “Christian” here had a general, extra-ecclesiastical meaning. Hence it was used both in Roman Catholic and in Lutheran, in Reformed and in Greek-Orthodox lands. Through the rise of the then current Revival, however, the term Christian-Historical gradually acquired a more specific Protestant meaning. Especially from England came to us the usage to apply the word “Christian” one-sidedly to one’s own action and to exclude the Roman Catholic element. This still has an after-effect. Thus one speaks of the “Christian” school, which stands over against the neutral public school, but then reckons almost exclusively with what since 1878 has been called the “School with the Bible.” It is precisely against the incorrect, because one-sided, use of the expression “Christian School” that I then recommended the phrase “School with the Bible” in the great petition movement. At the time this found acceptance, but the new name of “Christian school” could no longer be banished, and the one-sided use of “Christian” for what arose from one’s own circle, unjustly persisted. So also, for example, in the phrase “Christian Press,” under which no one of ours included the Roman Catholic press. Christian philanthropy, Christian pedagogy, Christian tracts, Christian missions—it all retained the exclusive meaning that the English Revival had once given to the term “Christian.”

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20 THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT.

Only in the political field have we overcome this one-sidedness. Whoever speaks of Christian parties must also include the Roman Catholic State parties; and so the expression “Christian-Historical” is to be

understood as encompassing the movement that in many European countries had risen up against the Christ-denying and the historically disregarding movement in the action of Unbelief and Revolution.

## §15. Not limited to our country.

In Article I of Our Program, therefore, it was not expressed that only our party had the right to the name Anti-revolutionary or Christian-Historical, but that among the many political parties that here at home as well as abroad rose up against the principles of the French Revolution, and sought to lead the political life back to the old Christian track, and this in its historical course, our party also took its place. Groen knew very well from the outset that it was not the Netherlands alone, and in the Netherlands only our group, that could develop the spiritual giant power required to erect a dam against the stream of Revolutionary principles. For that our strength was too small, our position in world politics had sunk too deeply from its zenith, and our national life was too characteristic. Our joining the world action against the Revolutionary principles could at most even take the lead; but there was no question of the leadership coming from us. Article I of Our Program, therefore, was not intended to express anything other than that, standing before the fact of a division of European politics into the revolutionary and the anti-revolutionary channel, our party also set itself against the former and moved forward in the latter.

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NOT LIMITED TO OUR LAND - EMERGING FROM THE PAST. The political party here in this country still bears the Roman Catholic name; that the dissenters of 1894 prefer to call themselves Christian-Historical, and that at the mere mention of the Anti-Revolutionary name, the entire country automatically thinks of the party whose founder was Groen van Prinsterer. Yet we do not let go of the positive name of Christian-Historical. Whoever undertakes the political struggle must not only know what he is fighting against, but just as decisively what he has bound the struggle for.

## §16. Emerging from the Past.

Yet the name Anti-Revolutionary must not lead to misunderstanding. It must be recognized that the resistance intended here against the principles of the Revolution is aimed specifically against the upheaval that unfolded in Paris in 1789; it must never be inferred from this that our political formation only began at the end of the eighteenth century. Even if one admits that what broke out in Paris in 1789 had already smoldered for more than a century, it still cannot be said that the birth certificate of our party dates back to

such a young date. As far as our party is concerned, one must always go back to the first half of the 16th century. The rise of our party lay in the rise of the Reformation. Now if we assume that there is a principled kinship between the Reveil, which emerged against the Revolution of 1789, and the Reformation of the 16th century, then it is clear that the Reformation here acts as the mother, and that the Reveil can be nothing other than her daughter. It is therefore to be regretted that the clear insight into these historical relationships in the first decades of the 19th century was so lacking here as elsewhere, with the result that the movement emerging here and elsewhere could not delve deeply enough, lapsed too much into restoration, and often remained too superficial; the sad consequence of which was that in France, Switzerland, Italy, etc. the Reveil joined the radical aims of the Left party all too quickly. Even with Bilderdijk it did not come to a correct appreciation of the Reformation.

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22 ANTI-REVOLUTIONARY PARTY AS PART OF THE PEOPLE. Emerging Absolutism. And upon closer inspection, only Groen van Prinsterer can be said to have been brought to the task of publishing the "Archives de la maison d'Orange," which led him to immediately go back from the French Revolution to our revolution against Spain and Philip; something that also brought him into unintended contact with Calvinism.

## §17. Adrift.

If Groen van Prinsterer had also been of Reformed descent, our party life would have immediately returned to the Calvinist stream. Now since this was not the case, and Groen van Prinsterer only gradually drew closer to Calvinism, until his life's thread was about to be cut, to come to full confession, it could not be otherwise, or a certain gap remained, and two different elements came together. On the one hand, the fondness for the Geuzen and Calvinism lived on; while on the other hand, the sons of the Reveil, although spiritually akin, yet felt much warmer for the much later emerging aim that was inspired by the Reveil. The Calvinist group reached much further back into the past, therefore penetrated more to the root, and found its support mainly in the countryside and among the common people; while conversely the Reveil group recruited more from the higher social class; counted more with the English and Swiss way of life than with our own national character; and felt more at home in the salons of the aristocrats than in the peasant cottages. The literature of the Calvinist was mostly found in Dutch, the Reveil literature spoke more in French and English. There was even more that separated the two groups. The Geuzen and Calvinists of the 16th and early 17th century had been heroes who aroused the admiration of all Europe, not only in the theological writings of that time, but on the broad world stage. In every field they had almost worked

wonders, and a barely imaginable life force had emanated from them. But this had not remained so. After Maurice's death, the

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DRIFTING—A HAPPY TURN.23 The power in the land had passed out of the hands of the Calvinists into those of their political opponents. The university, placed outside the Church under State control, filed down the principles and smoothed them out. So the generation of the Gueux receded into the background. They were pushed into a corner. There they gradually became moldy. And the ultimate outcome was that they withdrew almost entirely from public life, left the national cause to others, and found themselves gathered together partly in mystical, partly in dogmatic societies. So a void emerged at the end of the 18th century among us. The old Calvinists were not asleep, but had then withdrawn into their tents. This is why the Sans-Culottes could almost without resistance occupy our land and establish their revolutionary principles here, and why, in the face of this invasion from outside, resistance lived in many hearts, but without this resistance being able to organize and mobilize its forces, and therefore not knowing better than to let God's water run over God's acre.

## §18. A Happy Turn.

It was only in the so-called "Secession" and shortly thereafter in the appearance of the "Friends of the Truth" that a desired turn occurred, which was later confirmed and expanded upon by the so-called Doleantie. Reformed theology dawned again. Calvin was read again. One lived in what had once been our glory. And in this, the remarkable phenomenon occurred that the historical study at our Royal Universities finally drew back the veil that Wagenaar in particular had drawn over our national history, and showed the whole people again the old Calvinistic life as it had actually been in the days of its glory. Robert Fruin in particular came up with the true history. Campbell in America supported him in this, insofar as America's history was connected with ours. And although Groen van Prinsterer felt compelled to oppose Motley in his Maurits, he cannot deny that Motley too brought our past again in a highly attractive picture. All this has now worked together

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24 ANTI-REVOLUTIONARY PARTY AS PART OF THE PEOPLE. to make the false image of our past, which had been introduced into the country especially by the Nut van 't Algemeen, fade, and to make way for a painting in fresher tones that could attract and inspire. As a final, not unimportant phenomenon, it may be

added here that the rich edition of Calvin's works undertaken by Reuss, Cunitz and Baum in 1863, the many biographies that came to light from both Reformed and Roman Catholic and Lutheran sides about Calvin, the publication of many documents that enhanced his significance, arranged by Bonnet and Herminjard, and not least the publications on the occasion of the fourth centenary of his birth, drew general attention to the fact that Calvin was by no means only a theologian, but was truly also a statesman, and even an economist, of high historical significance. So it may be said that what is now more generally honored as the Calvinistic movement here in this country is neither artificial nor imposed, but has arisen from the life of the population group that continued to bear the old stamp, and has been brought about by a series of phenomena of a completely independent character. Troeltsch's studies provide the proof for this. What Bungener wrote about Calvin did not touch the core of the matter. Bungener was not up to date with the history and wrote just before the new, more impartial studies on Calvin appeared for the public. Even Dr. Allard Pierson, among us, although himself rather anti-Calvinist, also paid tribute to Calvin's significance in a comprehensive work.

## §19. Three Groups in the People.

Although what had been so forgotten and faded had come to life again in fresh colors, yet no moment could be cherished that the whole of our people would greet the re-unfurling of Calvin's ennobled banner with the sympathies and a clinging love. At most, an expression of reverence could be spoken of. It was generally seen that with the revival of Calvinism, one could reckon on a richer energy manifesting itself within the Calvinistic circle itself, yet it stood firm from the outset that

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THE THREE GROUPS IN THE PEOPLE. 25 It would be a mistake to think that the inspired and convinced Calvinists are now no more than a group in the masses. Three kinds of historical fruit presented themselves to the people's affection when our latest historical period was ushered in, in 1848. From the Middle Ages lived on what inspired our Roman Catholic fellow-countrymen; from the 18th century spoke to us the revolutionary group; and between these two stood the group that had once derived its high inspiration from Calvin. These three historical periods had succeeded one another—the Roman Catholic, the Calvinistic, and the Revolutionary—and each of these three types is still represented in our great popular groups. This must not be misunderstood. It is not claimed that our Roman Catholic fellow-countrymen are still half-medieval offshoots, nor that the Calvinists of the 20th century are copying the Gueux of the 16th century, nor even that the now almost predominant element that celebrates its birthday in 1789 may be confused with the Jacobins and the Septembriseurs. One by one, each of these three groups has developed according to the

demands of the time, and become fit to coexist with the other two groups. Hence a coexistence in national coherence became possible for these three groups. All that can be stated with certainty is that three kinds of political types present themselves in our people, of which the oldest received its stamp in the Middle Ages, the second in the days of the Reformation, and the third in the turbulent years that settled accounts in 1789. As for the territorial aspect, it need only be noted that North Brabant and Limburg and the eastern part of Dutch Flanders did not go along with the historical movement of our national life. The Generality Lands were naturally in a dependent position, and it is much to be regretted that the movement which at the time seemed to have already achieved its full triumph even in Ghent, was brought to a standstill and even declined by a new success of the Spanish arms. It cannot be denied, therefore, that these Generality Lands in the 16th, 17th and 18th centuries have only very partially shared in our historical life. They have been oppressed and suppressed by the Seven Provinces. Violence has been done to the free spirit. This is certainly much to be regretted, even if it may not be viewed otherwise than in the light of the history of the time. Where the Roman Catholic clergy was in power, an even harder fate befell us, and the sharp balance position in which we found ourselves after the

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26THE ANTI-REVOLUTIONARY PARTY AS A POPULAR FACTION. After the Peace of Münster, the two great European powers stood opposed to one another, our government allowed us to adopt no other course of action. That we also spoke of our country above and below the Moerdijk even after 1815, and even after 1848, may therefore by no means be regarded as an attempt at new oppression. Rather, such language was intended in part for a section of our people, with a very different past, to create for them a more fitting political position. Yet the outcome has shown that the initial so strong separation between the country above and below the Moerdijk would of itself lead to unity; and without exaggeration it may be said that people on both sides increasingly feel themselves to be one people. It is otherwise with the two other groups, which territorially flow completely into one another. There may also be, as regards these two groups, a territorial distinction between the northern provinces and the central provinces of the country observable, so that the radical elements feel most at home in North Holland, Friesland, Groningen and Drenthe, and on the other hand the more tempered factors in Utrecht, Gelderland, South Holland and Zeeland, but to point out a separation in the provinces does not yield this. Liberals and Radicals are found alongside Calvinists and Roman Catholics in all the other provinces. The Veluwe may from of old bear a somewhat more distinct character, but a separation like that of the Roman Catholic element in Limburg and North Brabant is not to be found higher up. Such a separation was not even to be established in the days of the Reformation. To mention only the names of Oldenbarnevelt and Erasmus, the circles in which the spirit of each found entrance, though certainly not to be mistaken for identity, were to be found throughout the

land. In origin and tribal affiliation the motive will often have lain, from which the later opposition between Roman Catholics, Erasmians, Calvinists and Anabaptists arose, but here stands opposed that, for example, with the two types of Frisian origin, which even in a greater or lesser bodily stature still come out, no trace of any political distinction presents itself. The national character of the people revealed itself in its natural shadings and the manifold given facts, in order to be able to bring each of these three main groups to bloom, according to difference of time, and according to difference of occasion.

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THE THREE TYPES NOT EQUALLY CHARACTERISTIC.27

## §20. The three types not equally characteristic.

But this does not mean that, in the course of time, each of these three types has in turn dominated the national condition: the Roman Catholics in the Middle Ages, the Calvinists in the 16th century, and the French Revolutionaries after 1789. It does not at all follow from this that they are equal in national significance. Undoubtedly, the Seven Provinces, once living a common life with Flanders and other southern regions, have enjoyed a high and flourishing position and have gradually taken an increasingly important position in Northern Europe; but it must not be forgotten here that the national energy was at the time much more strongly developed in what is now called Belgium than in the northern provinces. Neither Amsterdam nor Rotterdam could in those days be placed on a par with Ghent and Bruges. The wealth of medieval life had more stamped its imprint on the national character in the South than in the North. The reference to the rich medieval type therefore has much less significance for the present Kingdom of the Netherlands than for the western part of Belgium. And in the second place, it must be added that at that time the unity of our national life was much less consolidated. Under the Burgundians, the Dutch provinces did not occupy an independent position, but were united with what lay outside our later borders; and under Charles V and Philip, we even came, though only in a personal way, into a Union with entirely different states from Central and Southern Europe—something which could not but be detrimental to the confirmation of our own national character. Whoever investigates the historical significance of our lower lands may well find the period we lived through in the Middle Ages highly important, but nevertheless hesitates for a moment to acknowledge without reservation that our glorious period dates from April 1, 1572. Not in the Middle Ages, but in the period of the Reformation, lies the high point of our national history. It cannot be emphasized enough how much scrupulous fairness is required in such a comparison, and we shall beware of the assertion that from the Calvinist side the correct toll of reverence has always been paid to the medieval period in our history, to which they undoubtedly had a right. But it stands to

reason that from the Roman Catholic side, too, we have not always been done justice. It cannot be valued highly enough that especially in the second half of the 19th century a more impartial judgment gained influence. Just with a view to this more unanimous judgment, it may now at least be established that not only the foreign historians, one may well say without any exception of importance, honor the period after 1572 as the highest and most glorious, but that also within the country the best interpreters of each of the three types increasingly come to the unanimous conclusion that the world significance of our small country came out most richly in the heyday of Calvinism. This in no way denies that our national life in those days of our glory also showed dark sides. The resistance to the monarchical state form, and even against the House of Orange, has almost become a source of our unhappy discord until 1789, and it is impossible to say how much higher our country would have soared if immediately after the separation from Philip II the crown had been offered to Prince William. It had to come to this in 1813; but who calculates what national suffering would have been spared us if we had taken this important step two centuries earlier. But even if one plays open cards and takes into account all the suffering, oppression and restriction of rights that the temporarily dominant group has inflicted on the other two groups, it is historically established that we were never before 1572 what our national life was in the period between those two dates, and never again after 1789. To top it off, the fact that we offered a refuge to the politically and religiously persecuted from all countries is proof that the actual life here was a life in freedom, and that the publications and ordinances that claimed to infringe on this freedom had more the effect of satisfying formal demands than of inflicting suffering on those who deviated.

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28 THE ANTI-REVOLUTIONARY PARTY AS A NATIONAL FACTION.

## §21. The third type the weakest.

The least fortunate impression of the three periods, with an over

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THE THIRD TYPE IS THE WEAKEST. The dominant national type, of itself, gives what has been experienced since 1795. The fame of our country stood far above the highest in the Calvinistic period, and it even seemed a miracle that a land so small and with so little populous a population had risen to such world significance; and may, though in a much lesser degree, be said of these lowlands even in the Middle Ages, that they drew all eyes to themselves by the splendor of their life—of the third period in which the French-revolutionary

type here took the lead, it cannot be testified otherwise than that it began to bring us little other than political misery until 1813; that from 1813 to 1848 it caused us to sink into insignificance, at least compared to the days of De Ruyter and Tromp; and that only in 1848 a revival began, in which soon the two historical types of our nationality also awoke from their slumber and helped call forth a fresher national development. The attempt, hatched in Vienna, to restore the unity of the seventeen Dutch provinces, broke our strength from the outset; and the fatal attempt of the counselors of our first King to bind the Roman Catholic Church, especially in Belgium, to an unnatural bond, excluded once and for all the possibility of our growing together again with the Southern Netherlands. For ten years then the fermentation that arose from this division undermined our strength. Finally, forced to use military force, the entire government of our country became increasingly unbalanced, and there could be no talk of a revival of our ancient stem. Not long after, we were hardly counted among the powers of Europe anymore, and not the old Netherlands, but the newly arisen Belgium was commonly called into the European consultation. Even after 1848, the slackness of our position still had an effect. The April movement of 1853 even set us back, and it can be freely said that not much more than a quarter of a century dates the happier turn of affairs that has economically strengthened us and restored some political prestige; not least through the Peace Conference. Politically, the moving force in this, as far as domestic affairs are concerned, mainly came from the School Act of 1857. It may not be forgotten that the Secession, and Thorbecke's approval of the dragonnades against that Secession, also spoke here; but the most powerful elements of the Separation

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The Antirevolutionary Party as a Segment of the People. Even though the Separatists emigrated to America, the Separation lost its political significance. And without fear of contradiction, it may also be said that it has essentially been the imposition on our people of the neutral school or the "sectarian school of the moderns" that has stirred up the national waters and completely altered the situation. This may be stated with certainty, for it was the School Question that caused the Roman Catholic inhabitants, who had previously, under Thorbecke's leadership in 1853, sided with the Liberals, to now choose an almost diametrically opposed course. That it was above all Groen van Prinsterer from whom the leadership in the School Question emanated, hardly needs to be recalled, and in this respect it may also be said that the new situation has been heralded by the noble duo of Thorbecke and Groen. Thorbecke, to deliver us from the narrow-minded Conservatism of those days, and Groen, to revive something of the spirit of the fathers in the new situation. While we readily acknowledge that the third period, in which the French Revolutionary type gained the upper hand, has ultimately freed us from much of our former misery and has brought about not a little for which we too must pay our tribute, the fact remains that the first entry of the new type among us, from 1789 onward, ended in a lamentable failure; that it has now already lost its sole dominance,

and has again to reckon with the Antirevolutionary element, both from the Calvinist side and from the Roman Catholic side, and can thus be said to have secured for our national people only a certain degree of existence, which casts a shadow over the glory of the Calvinist era. Our final conclusion can therefore be no other than to establish that the Medieval period has shone with glory in many respects; that, however, it was only the Calvinist period that granted our country a kind of hegemony in Europe; and that what it lost through the Sansculottes, the Liberalism that came after 1789 has not returned to our country.

## §22. The Psychological National Mystery.

Now it is certainly extremely difficult to establish historically how, in the multifarious variations of the mutually succeeding types, the

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THE PSYCHOLOGICAL NATIONAL MYSTERY. The national character is determined by many factors. It would require a delicate scale to determine precisely which distinct elements are blended in our national character and in what proportion this blending took place. The repelling and attracting forces that govern the formation of such a national character often disappear into a psychological mystery. The West Frisian, the Limburger, the South Gröninger differ so much from one another that the unity in the variations is not always immediately grasped. And when one further considers the differences that time and circumstance bring, and above all the religious influences that come into play, the precise features of the common character do not always come into clear view. If, however, one inquires into the probability, it will hardly be disputed that the most fixed folds in the national character are given, not in days of languishing weakness, but in a development of power that dominates the entire life of the people. Now, to make the comparison, if one places the three periods that our people have lived through in historical light, it may be said that the three types that were predominant in each period differed so greatly in the display of energy and in the success of their efforts that the type that came to the fore in the period of 1572–1789 not only offered the richest data of the three, but also, through the hazardous struggles it endured, left the deepest impression on the national character. It was not the first nor the third period of our national existence, but the middle period that brought our people to the highest tension, that aroused the most heroism in our people, that inspired them to the highest sacrifices, and aimed at the highest target. In each of these respects, what entered as a new phase of life with the capture of Briel rose so far above what came after it in loftiness of tone that, as far as character-forming power is concerned, the middle period left the other two far behind. For character formation, high moral power is needed. It is in strife and struggle that high moral power comes to its own formation. And since the difference in character manifestation was so conspicuous in

every way between the middle period and the other two, there can be no doubt that of these three periods, the middle one was the most character-forming.

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The variation must have been the dominant force in the formation of our national character. Undoubtedly, the spiritual type that prevailed in the Middle Ages still lingers among us, and there is no doubt that Modernism has now exerted the most influential influence. But if one goes back to the deepest incisions in the character portrait of our people, then whoever places Thorbecke, Groen van Prinsterer, and Schaepman side by side, feels that the historical character of the Dutch people only came to the fore in Thorbecke, who in almost everything felt attracted by foreign models; that Schaepman was indeed the inspiring incarnation of what a neglected, very numerous part of our people chose as its target; but that only of Groen van Prinsterer can it be testified that the historical Dutch thought from the glorious period of our formation as a distinct people spoke from him and worked through him.

## §23. The fundamental tone.

This is what Article I of Our Program means by speaking of the "fundamental tone" of our national character. By this, no single group is done any injustice. It is not said that our direction represents the only tone, the sole emerging trait of our national character; rather, a place is left open for every other group. Our national character is not monotonous. It is not a national character that is weary of rigid uniformity. Many tones resound in our national character. But not each of these tones is equal in weight. There is a distinction in the sounding weight of each type of tone. There is even among these varied tones one tone that may be considered the fundamental tone. And now it is stated that this fundamental tone is the Calvinistic one. Not as if our direction could boast of the most numerous following. We have already expressed that the opposite is the case. More than one-tenth of the principled adherents of our direction cannot be estimated either in the 16th century or now. But the fact remains that it was only when this fundamental tone began to sound powerfully that our Dutch people, in separation from the South and in distinction from the German element, came to full independent formation, and the national unity in anxious,

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THE FUNDAMENTAL TONE. The struggle to establish this has been fierce. But we do not derive any rights from it. A national type is not defined by name or designation in the laws. What we have fought for in the second half of the previous century and now in this twentieth century has never been anything other than

equality of rights. The tendency of the dominant type has been strongly to curtail our equal rights. They excluded us from public office. A well-known Minister of the Interior openly stated of his applicants for mayoral positions that he could not use a “Kuyperian”; and this was the very same statesman who at first gave the appearance of not feeling any aversion to our aspirations. This was Mr. S. van Houten. Neither Bilderdijk nor Groen van Prinsterer was tolerated at the University. Naturally, no application for a professorship ever came to me. Our influence had to be broken, soon to be shattered. It may well be said that I myself gave occasion for this by my unsparing polemics, but this does not take away the fact that Groen van Prinsterer, who in this respect was more restrained, was almost more bitterly loaded with abuse and pushed into a corner than I myself. Through our own faults and lukewarmness, we were trampled underfoot. Or where was the group that stood up for Bilderdijk to protest against his banishment? And when nevertheless the “Night School” and the circles of the Societies and the Church of the Separation remained inflexible and stubborn in their resistance, so that they persevered in their opposition, there seemed to be but one remedy to completely eradicate us from the national whole, and that remedy would then be the neutral school. They had also tried to put the Reformed Churches of the Fathers in 1815 into a governmental straitjacket that would deprive them of all free breathing space, but the Separation movement proved that progress was not to be made in the religious domain; a fact later more firmly confirmed by the Doleantie. But the School gave hope. In that school one could await the youth, the yet unplastered youth. Blank paper on which to write at will. This would bring us to consumption and make us die away. Against this, our resistance has gone forth; and this resistance would never have led to a decisive result, if the direction in which we pleaded our case had not struck so deep into the fundamental traits of our national character. We were absolutely not allowed to consent even to a partial blurring of this fundamental trait of our national character.

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The mistaken view that led the Reformed to withdraw in silence towards the end of the 18th century would have made us guilty of a glaring dereliction of duty. Our national character has now, from 1572 onwards, sharply expressed and firmly established its fundamental traits. If these fundamental traits were to wear away, the very life and energy of our entire national character would suffer. Hence the calling that goes out to everyone who, out of sincere conviction, still professes the principles of our forefathers—not only for their own sake, but equally for the strengthening of the national character—to restore the direction that, as Article I confesses, “under the leadership of Orange, received its stamp under the influence of the Reformation around 1572.”

## §24. Our People.

Let there be no misunderstanding. What we are working for is not that our people underwent a similar transformation through the Reformation and the national struggle it necessitated, as unfortunately so many were driven into a strongly divergent and now revolutionary direction at the turning point of the 18th into the 19th century. Whoever conceives of it in this way loses sight of two things that must be emphasized. The first is that what we call our people was not formed until 1572; and the second points out that the deepest incision, from which the fundamental traits of our national character emerged, was made in the struggle that followed 1572 and resulted from it. What was found in the Low Countries before 1572 was a much more extensive group of kindred tribes, mixed with Celtic elements in the Walloon region. What we now call the Dutch people, on the other hand, is merely a part of this, which was previously not yet bound into a tighter national unity in the North, but was only then first united. It was only from this tighter union of what was established in the northern provinces that what we now call the Dutch people emerged, in the struggle against Spain. And secondly, this incorrect conception of what we call our people, and the identification of our people with the entire population of the Low Countries in the Middle Ages, leads to a misunderstanding of the inherent national character. That there was originally a strong resemblance, and in

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OUR PEOPLE. The very clear kinship that existed between the Gelderland man and the Fleming, between the Zeelander and the Brabanter, is not disputed, but a split has nevertheless occurred here. What lived together in the North possessed traits that were not found among the people in Flanders and Brabant, and conversely, it lacked not a little that had shone in the South. However related they may be, the character of the people diverged between the Scheldt and the Rhine. This did not come out so strongly as long as both elements lived partly the same life. But scarcely had the political separation occurred, or the two variations in the one national character that had previously existed began to develop ever more independently—and the result was that there were now two distinct peoples lying side by side, certainly related in origin, but yet in that very kinship each displaying its own characteristic traits; and as for the people in the North of the Low Countries, this northern part derived its own variation and its powerful national impulse from the Reformation. Now it must not be said that our national character is a product of the Reformation. Such a statement would betray a lack of historical sense. Here there was a collaboration of two factors. There was in the people inhabiting the northern provinces a disposition that spoke to the Reformation, and there was in the Reformation a spiritual driving force that sympathized with our national character. It was not by chance that in what later became Belgium, Romanism, and in what is now called the Netherlands,

Calvinism, continued to dominate the spiritual condition. What inwardly stirred and tingled on the banks of the Scheldt proved in the long run to fit better with the Roman Catholic view of life, while conversely on the banks of the Rhine the Reformed view of life developed richer power. But alongside this Romanist and this Reformational element, the Revolutionary element had long stood in both North and South, though this only came to the surface in 1795, and so in assessing what lay behind 1572, and continued from then until 1789, it is not yet to be reckoned with. The main thing is simply to clearly recognize that what we now call the people of the Netherlands received its stamp not in the Middle Ages, but only in the years of the Reformation, and how, in connection with this, the direction in which our fathers moved in their glorious period also retains serious significance for the future of our people.

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## §25. Lasting Influence.

Calvinism. That a place must remain in our national life for Calvinism as well, does not mean, however, that the freedom of confession is not to be honored, nor that the extermination of the group that even now, whether large or small, presents itself as Calvinist, should be tolerated. Just as the Beni-Israel alone are considered foreign to us in a national sense, although they contribute so much economically to the strength of our people, yet they remain alien to us in blood. The Calvinists, on the other hand, are not a group merely tolerated, as if our people's whole could just as well be conceived of without them. Whoever presents it that way completely misses the historical truth. For the formation of what is now called the people of the Netherlands, the Calvinists have rather the oldest rights, and it is through the Calvinists that the deepest characteristic incisions have been made in the national being. Hence now it is and remains our calling; not at all solely for our own benefit, but very certainly also for the promotion of a fundamentally healthy development of our national life, to stand up for the Calvinist principle. Especially the theologians should see to it here that they do not estrange our national character. For it is precisely from their side that a very serious danger has threatened in this respect since the second half of the previous century. From the 16th century onward, we had at our national universities a native Dutch theology that even exerted influence abroad; and already the professor Van Hengel in Leiden was departing in many ways from the once-confessed truth, yet the honor should not be denied him that in his commentary on the Epistle to the Romans he still continued the peculiar Dutch traditions. To a certain extent, this can even be said of Professor Scholten, who was the only one among the professors of that time who still possessed a rich and ancient-national treasure in his library, and continually tried whether his modern sympathies could not

find a connection to the beautiful work of our fathers. But it went quite differently in Groningen and in Utrecht. Here both the Ethical and the Vermittlungs-direction increasingly came under German-Lutheran influence. Schleiermacher's mighty spirit

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LASTING INFLUENCE. CALVINISM. - GUIDED BY ORANGE. This drove us to continually seek out avenues that could lead to a compromise between the Christian confession and modern philosophy. One need only peruse, on the one hand, the works of the old Chantepie de la Saussaye and his kindred spirit Gunning, and on the other hand, those of Van Oosterzee, to be convinced that it is still the German scholarship and the German formula that determines the direction of thought here. What was placed alongside and against this by the admirers of the Reveil from Swiss, French, and English theology, stood too weak in terms of principles to provide sufficient counterweight to these German influences. Thus, neither what the Reveil brought us, nor what this new orthodoxy offered us, could speak to the posterity of our Calvinistic people. One first had to reject this posterity, as Beets did in his talk of the "Night School." And it was not until around 1879, when Calvinism was restored to honor both on the scientific terrain by Fruin et al. on the modern side, and by the Free University on the orthodox side, that a revived spirit of action once again stirred at the very root of our national existence. For only then did we reconnect with what Article I of our Program calls "the fundamental tone of our national character, as it received its stamp around 1572."

## §26. Guided by Orange.

To this has been added: "guided by Orange"; an addition that must not be omitted. For it cannot be denied that in the characterized Calvinism, as it also penetrated our country from Geneva and France at that time, there was a danger not to be underestimated, the aftereffects of which are still discernible. In the last chapter of the First Part of this work, I have extensively explained how from the outset there was a decisive element in Calvinism that could only develop and mature later, and that, politically speaking, only came to full effect in the United States; but it was also then added that in Geneva (one need only think of the burning of Servetus) an intolerant dogmatism still prevailed, which, though indispensable for the church, could only result in schism and oppression in its political consequences.

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38. THE ANTI-REVOLUTIONARY PARTY AS A PEOPLE'S PARTY. One must distinguish these two well. It is one thing what the Confession demands in the ecclesiastical domain, and quite another what can be

derived as a consequence from the ecclesiastical system in the social and political sphere. Not for what concerned Geneva, but certainly for what pertained to France and Scotland, Calvin himself, as I showed in the First Part, emphatically pointed out this difference—and Neo-Calvinism is indeed a genuine offshoot of Calvin's spirit, but a shoot that could only typify the further progress of history. In Geneva, Church and State were still too interwoven and intermingled, and it is from this that not only the burning of Michael Servetus, but in general all the persecution that has gone out from Calvinistic lands on account of the faith, is to be explained. The unity of State and Church in Geneva has also seduced many of our Calvinistic preachers in the 16th and 17th centuries to also claim authority in the political domain. Even that does not completely exculpate them. And if history nevertheless tells us that in no country in the world was there more spiritual freedom of movement, even for declared heretics, than in Calvinistic Holland, then this must be seen not so much as thanks to the right insight of our theologians of that time, who almost all still had a fondness for the old Roman heresy hunt, but much more to the Prince of Orange, who himself felt warmly for spiritual freedom, and had not only the courage, but also the policy, to on the one hand pay the toll of his reverence to Calvinism, but on the other hand to anticipate the more mature development to which that Calvinism, if rightly understood and according to its fundamental principles, had to lead of itself. One need not therefore idealize the Prince of Orange. Just as with him, so also with Marnix of St. Aldegonde, the desire to detach themselves politically from the supremacy of clericalism undoubtedly also played a role. It can even be conceded that the prospect of confirming and improving their own position also spoke. It all too often goes through human factors in people that only too often also show blemishes. But even as we take this human element into account with Prince William, it still remains historically established that he saw the consequences of Calvinism for the life of the state earlier and better than the theologians of that time, and that it was thanks to him, and not to them, that in the Calvinistic Netherlands there reigned a richer spiritual freedom of movement than anywhere else in the world.

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THE WRONG DONE TO US.39 For this, above all, we must be thankful—that the screws of the Roman model, which many a Calvinist theologian of those days would have most liked to see applied inquisitorially, have fallen into disuse. The addition in Art. I of the words: "Led by Orange" could therefore not be omitted. The Anti-Revolutionary party must, after all, make as clear and loud as possible in its program, to make known to the people with what aversion this craving for spiritual tyranny fills it, as it has so often resounded from the history of the 16th and 17th centuries, and how its intention is—leaving the ecclesiastical life aside (for about this it does not speak as the Anti-Revolutionary State party)—to bring the principles to dominance in the political domain, just as they were first grasped in their purity in the later development of Calvinism, especially in the land across the sea, and in the days of old were put into practice

by none other than the Prince of Orange. The Church the Church, but also the State the State. And it is precisely in this that the honor of Calvinism is sought—that from the outset it carried within itself what would lead, through gradual development, to the confession of Common Grace, and thereby to the right relationship between theology and political science.

## §27. The wrong done to us.

Our party has set up a price in 1878, in its own starting point, to point to this happy influence of the Prince of Orange. Let no confusion creep in here. In matters of ecclesiastical life, Calvin's insight has also been his own. His dispute with Dathenus does not touch the very life of the church, but the influence of the Church on the life of the people in the political domain. As a theologian, especially Johannes a Lasco deserves appreciation on this point, but on a broader scale it has above all been the influence of the Prince that has safely guided us. Meanwhile, one should not lose sight of the fact that this pointing with preference to the Prince is foreign to the intention, to praise anything that has later emerged from the House of Orange on this delicate terrain of the Princes. Prince Maurice aligned himself much more closely with the Calvinists. The then-emerging conflict with Arminianism necessitated this. But his life history would stand in a more glorious light for us if Oldenbarnevelt had died a natural death. Under Prince Frederick

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THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT. Hendrik came to be estranged in a completely different sense from the Calvinist core of our people and the Stadtholder. And later, too, complaint upon complaint often arose. The lamentable thing was not that the love for the House of Orange cooled among us, but that we so often sought in vain the reciprocal love that had come to us so abundantly under the Silent One and Prince Maurice. Even after the return of the House of Orange in 1813, the descendants of the Moderates and Datheenians belonged to the warmest supporters of the monarchy. "The Netherlands and Orange" was even the slogan that was adopted by almost all our electoral associations; and throughout the 19th century, they were fully assured of the loyalty of the Reformed. They knew that they could count on us; and when in 1847/'49 the Stork in Flushing and the radical Courant in Arnhem dared to set up their exploits against the House of Orange so boldly and brutally that the King himself was threatened with the scaffold, it was in our circle that not only prayers were offered at the altar, but also for the throne. In no circle more than in ours did enthusiasm for Orange reign. But precisely because this is established and not for a moment open to doubt, our predecessors have never concealed how painful it was to us that this love was so coldly reciprocated. The violence done to the Reformed Churches of the Fathers by the Royal Decree of January 1815 continues to cry out for redress and restoration. Our first King should

not have allowed himself to be burdened with this ordinance. By issuing this Decree, he committed clear injustice and transgressed against a sacred past of ours. The same must be said of the treatment meted out to the Secessionists in 1834. There, too, nothing was spared, and no violence was withheld, in order to impose exotic, foreign ideas and theories on the ecclesiastical domain. The later withdrawal of the fateful decree of 1815 did not improve the situation, but even aggravated it. Only under King William III did one sometimes hear friendly words again in audiences. And when Baron Mackay was entrusted with cabinet formation in 1889, the sting of the breach seemed at least healed, and it could also be gratefully acknowledged thereafter that our Queen often made us forget the sad lack of Orange's reciprocal love from earlier years. The relationship has now become quite different. As Calvinists, we do not ask for any privilege, any privilege over our fellow citizens.

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ENDURING BONDS.41 of a different spirit. All we desire is that we will neither be relegated to the status of zealots, nor used as blind followers. It must remain the Netherlands and Orange, and we too must belong to that Netherlands. Grateful for the happy turn of events that also occurred in this case, the Anti-Revolutionary party could therefore in 1878 not present a principled program without explicitly pointing to the bond that binds Orange and the Netherlands. Flattery is not at all involved here. We kneel before God, and never before the bearer of the Crown.

## §28. Enduring Bond.

No Calvinist, in any country, has ever thought of whitewashing any injustice for the benefit of a princely ruler. But apart from what criticism may later have become necessary, we still always honor in the appearance of Prince William the Silent a gift of God to our people in their then so distressed condition; we thank God for what the time has bestowed on our fatherland in the generation of the Prince; we now still refresh ourselves in the national glory that has emanated from this House of Princes over our people as a nation; and we now still take sides, not on ecclesiastical, but on political terrain, for what the Silent One, the first among all princes in Europe, as the consequence of the Reformation, brought us in the bestowal of full spiritual freedom. Precisely for this reason, protest is constantly lodged by us against any attempt to discredit Orange as an ornament, as Mr. S. van Houten has dared to do. Not, we hasten to add here, as if this Statesman wanted to detract from the glory of our House of Orange. What he spoke of as an "ornament" was only the formulation in a single word of his constitutional theory. But here lies the difference, that such a declining expression of "ornament" was more dear to him, while it strikes us as offensive to our love for Orange. Especially after the shameful treatment that the House of Orange has suffered through its

expulsion and forced flight to England in 1797, and after the more than shameful threat with which in 1848 in the liberal press one even dared to speak of the scaffold to unsettle Orange itself, it betrayed a stiff lack of tenderness and self-control in a man who ultimately became an advisor to the Crown, to hear him speak of "ornament." Not daring to criticize a Prince openly is a cringing cowardice that Orange demands less than it requires, and which is unthinkable especially in the Calvinist. But this does not detract from the firm demand that we remain thankful for honoring what our God has bestowed on us in Orange through his great Princes. A glory in the past, the happy echo of which was to be heard in our revered Queen, as the last scion of the ancient House of Orange.

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## §29. According to the needs of our time.

Finally, our Program adds to the thus discussed the following so highly necessary further specification, that the Anti-Revolutionary party does not aim to provide in our days a strict copy of the past, but that our striving must rather be "to allow the character of the people to develop into a form that meets the needs of our time, and thus corresponds to the modified state of the people." Not to have seen this firm demand of history has always been the deadly error of all reactionary politics. A professed principle is not bound to one single form of application and elaboration. Rather, the same principle of statecraft can bring out many different forms of government; and this not out of a constant longing for change, but because other conditions and circumstances have arisen, new questions demanded a solution, and new discoveries brought forth entirely different movements in the people's life. Whoever does not understand this, and does not take it into account, does not increase the power of the principle he professes, but puts it out of use and dooms the confessor to powerlessness. It was therefore a dereliction of duty, when in the first half of the 19th century the Calvinists among us felt no need for a literature that took into account the modified state of the people, and constantly immersed themselves in nothing but the reading of what they called "the old writers." The less they could be satisfied with this, because these "old writers" were mainly not countrymen, but Englishmen, who could not fully understand our national character and our national needs.

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THE CHURCH AND THE STATE IN MUTUAL RELATION.43 And the Scots had been those who, insofar as they also touched on political issues, could not reckon with our national data and almost exclusively chose as their guiding principle what was pleaded for in Great Britain. This placed our so numerous Calvinists,

who remained adrift here, outside their time. What was discussed among parties in the country did not arouse their interest, and what moved them stood outside the connection with the actual political dispute. Even Da Costa was thereby tempted to temporarily favor a Monarchical Absolutism that would ultimately not even be bound by an oath to the constitution; while Bilderdijk, on the other hand, in a completely different way, pushed away what Beets called the Night School, but, as compensation for what was thus lost, turned to a gleaning from medieval life, which at least in these seven northern provinces spoke to almost no one. If what the Fathers confessed is no longer applicable to the degenerate condition, then the principle from which they lived and from which they derived their heroic magic power may undoubtedly not be abandoned for a single moment, much less surrendered; but it is an equally inexorable demand that a way of thinking and acting be derived from this principle that can offer a way out for the present. It must therefore be fought with inexorable determination, on the one hand, that not a splinter of one's principle be allowed to break off, but on the other hand also that the confessed principle not be stifled by binding it unchangeably to its first life expression. A principle is not a dry formula that merely asks to be written down; what is to be a principle must carry life within it and from this inherent life constantly shoot forth new shoots.

## §30. The Church and the State in Mutual Relation.

One immediately feels this in the relationship between Church and State. In the 16th century, the struggle that the Reformation undertook against Rome's overpowering authority naturally brought the ecclesiastical question to the fore in all political domains. The ecclesiastical question dominated the entire political sphere, both domestically and with a view to foreign relations, and here the foreign relations mostly stood...

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44THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT. The foreground, while the war, as we may express it, was not then in the air. As a matter of course, the Roman Catholic influence at the beginning of the mighty struggle could not have been directed to anything other than the maintenance of the position which had been acquired as the outcome of a centuries-long struggle with the Ghibellines in Germany and with the Clergy in England. State and Church had in the Middle Ages grown together to such a degree that a radical change in the ecclesiastical domain would of itself also strike at the root of the civic life, and call into being alliances between the various Powers which were intended primarily to offer resistance to the Reformation movement. Now, since in not a few lands the Reformation had indeed penetrated, but had only won over a very small part of the population, it could not be otherwise but that, upon the outbreak of the war, the constant danger threatened that the ecclesiastical minority would be tempted to collude with the

enemy. This, too, was felt by us—how the Roman Catholic part of the population could not always be counted upon firmly to uphold our resistance against the Spanish might. At least, one feared here, as elsewhere, a constant working in the hand of what the foreign enemy aimed at, on the part of the minority. In France, one was constantly afraid that the Huguenots would side with England and with the apostates in Germany, and just so here at home, that Spain and France would receive indirect support from the Roman Catholic leaders. To what extent this was rightly seen, is here left undecided, but the fear existed; and it was this apprehension which of itself led to the effect that, not only in the administration of the country, a watchful eye was kept upon the differently-minded minority, but that their freedom of movement was taken from them, and as much as possible their influence on the history of the land was restricted. It could therefore almost never be otherwise, or everywhere the government identified itself with the Church of the majority of the people, and, by binding the higher officials to the confession of that Church, excluded the dissenters as much as possible from all participation in the government. If one now asks whether this exclusion, through the assumption of civil disabilities, was contained in the Calvinistic principle, or at least flowed so directly therefrom that the Calvinistic conviction could not tolerate any other political policy than one bound to a particular Church, then the statesman, for whom the history, as over England to America,

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If one looks at the historical development, a clear picture emerges that cannot be denied. A political system that binds the exercise of authority to the confession of a particular Church is not of Calvinistic origin, but of medieval provenance; this is Roman Catholic. Not that the Roman Catholic Church cannot thrive without this system being in force. The United States and our own country show this differently. Overseas and in our own land, the Roman Catholic Church has even come to a richer bloom, without the state system being bound in any way to the Roman Catholic confession. This, however, does not take away that where the Roman Catholic Church may unite almost the entire population of the land under its scepter, and has no apostasy or revolution to lament among the members of its body, the Roman Catholic system will always call for a state church, and will place no small obstacles in the way of the freedom of movement of those who think differently. The idea of the coherence between Church and State, developed by Rome, was so ingrained in the 16th century that neither the Reformed nor the Lutheran movement initially paid any attention to abolishing it. Even Calvin initially acted under the prevailing power of this idea, and Geneva was its prime example. And it was only the religious wars in France and then in England that have necessarily led, not to Lutheranism, but to Calvinism—not in conflict with, but entirely in conformity with what was inspired in the principles of Calvin—to the recognition of Common Grace and thereby to the

liberation of conscience and the separation of the State from the Church. Now, since the international situation has changed completely, and the influence of the Church on the life of the people has taken on a completely different character, to still want to cling to the theory of Dort regarding the relationship between State and Church is, of course, to prefer the grave air above the free breath of life. Hence our plea for the Free Church in the free State as the highest consequence of the Calvinistic principle. Even in Germany, it is now recognized that Calvin, and not Luther, pointed the way here, and the Reformed Church has itself to blame for having created a situation that let go of its positively Christian character as an indispensable condition of life, by swearing by what still belongs at home in the Lutheran and Roman Catholic lands, but from which we have outgrown.

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## §31. The People's Representation.

It is no different with the People's Representation. Under the republican form of government, our Commonwealth has not known representation as we understand it today. There were estates, but no People's Representation; the cities and manorial landowners held the power; the deputies were in no way representatives of the nation before the Government, but rather the installers and maintainers of the Government itself. There was certainly popular choice in the election of the power-holders, but the right to participate in that choice was extremely limited. As shown in the last chapter of the First Part, Calvin did not praise such a system, and ultimately he himself went over to advising in a democratic sense. Whoever now tries to apply the completely antiquated representation ideas of the 16th century to the present state of affairs would thereby show themselves to be anything but faithful to the pure principle, but rather to blatantly disown it. To now still advocate a State form that does not fully do justice to the representative principle, would brand one as backward and out of one's time. The question of a proper People's Representation has now itself become the main question for the future development of the State life. And the Calvinist direction, which has always proceeded from the people, and even found its strength in the "common folk," would lose its inner driving force and let itself be written off, if it did not take the lead rather than follow on this point of our constitutional development in the spirit of freedom and love of the people. To be a Christian Democrat remains the title of honor for every Calvinist. §32. Navy and Army. As a third example, let the National Defense be pointed out. In the days of the Reformation, there was hardly any mention of a national army, as we know it today. The Condottieri had indeed lost ground, but the army with which one went to war still consisted mostly of volunteers offering themselves, and even of mercenary

troops from foreign countries, just as we still used to employ, and partly still do, not a few Swiss, Germans and Belgians for our East Indian army. Only of the army of Gustavus Vasa and of the army of Cromwell can it be said that they were driven and urged by a higher and holier interest. For the rest, however, the armies were mostly composed of rough men, and the holy enthusiasm for the cause of the country was sometimes all too little to be noticed. That the same regiment, after the lapse of ten years, drew the sword against a higher national interest, which it had first helped to defend at the price of its blood, occurred more than once. All the more the custom came into vogue with us to assemble the power for the defense of the country's interests from hired manpower, inasmuch as the navy with us, more than the army, stood in importance, and the manning of the navy, both here and still in England, was constantly recruited by free choice. The civic guard had a more national character, and knew no wages as a motive; but the militia, as it is now in force, first appeared under Napoleon's domination, and has since also been maintained in our Kingdom. Meanwhile, our people have been far from eager for the new military idea. To become a soldier was not considered an honor, but a plague, and the system of substitutes soon came up to free oneself from this plague by money. It has therefore lasted until the very end of the 19th century before we really got a national army, and the idea of universal military service, which now imposes itself of its own accord, is still not realized with us. Now, because in the glorious days of our fathers the condition prevailed in navy and army that excluded a national army, shall one identify the system then in force with Calvinism, and therefore, as ultra-conservative, set it against the military force that is now so absolutely indispensable? Certainly not. The principle of Calvinism and this is, to highly esteem the significance of the national life; and the future of the national life is now inexorably, at least for small nations, in danger, if not the whole people finally girds the sword as one man for the country's independence.

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## §33. The Social Question.

With a brief mention of the social question, let us refer to these examples and conclude. In the 16th century, there was no social question. The Peasants' Revolt in Germany seemed to point in that direction, but it arose from a completely different motive. What called the social question into a very peculiar form of life in the 19th century was twofold. Firstly, the fact that the increased technology made it possible for factories to arise, in which hundreds of workers were set to work simultaneously; something which naturally caused

the close and cordial relationship between employer and worker to be entirely lost. And secondly, the more mature development of the working class, thanks to the high flight that popular education also took in connection with vocational education. This higher position of the worker demanded more abundant satisfaction of the needs of social community life, and the heaping up of hundreds of workers outside of all higher and more intimate connection with the employer, brought into existence conditions that our fathers had never known. Not that our fathers had no care for the workers. The Guild system certainly promoted an excellent understanding to no small degree. The needs of the working class spoke less loudly; but the needs, as far as they spoke, were then as a rule well and not too narrowly satisfied. What only characterized the then existing condition in a less desirable way, was the excessive dependence in which the worker found himself on his employer. Slavery had come to an end, but the conviction had not yet gained entrance that the worker, as a free man, stood not under, but alongside his employer, in civil rights and in social life. But if one now asks whether this then existing condition could be logically deduced from the principle we profess, in the sense that the introduction of an entirely changed condition would be a denial of that principle, then it must be answered with absolute decisiveness, that a denial of principle can only come into question with him who, where such a totally different condition has entered, refuses to reveal the power of his principle also in the solution of the questions now presenting themselves.

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THE SOCIAL QUESTION - KEEPING PACE WITH OUR TIME.49Just Calvinism, which has always placed the common people entirely on the same line with the more powerful middle class in Christ's Church, and in its consideration of the mutual relationship in civil society, has strictly adhered to Holy Scripture, could not for a moment fail to keep step with the development of the social principle. And it would have been not a maintenance, but rather a culpable denial of our principle, if we had resisted the democratic suction of our century. The lower class of the population also belongs in every way to our people, and therefore no social condition may rest, which does not also provide satisfaction for the primary needs of social community life for the common people.

## §34. Keeping Pace with Our Time.

The four given examples may suffice to make it clear what we mean by a "development of our political life in a form that meets the needs of our time." In the relationship of Church and State, in the significance of the Representative Assembly, in the defense of our national existence, and no less in the social question, we now find ourselves confronted with entirely different data than the policy of our fathers in the 16th and 17th centuries governed. Now to want to maintain not only the principle, but also the practice of our Calvinistic

fathers against these new conditions, would be tantamount to writing our principle to death. Whoever does not clearly see that the boy grown into a young man has put off the child's shoes, forfeits all right to have a say in what the cause of the fatherland demands. In three respects, therefore, the Calvinist of today must be prepared to adapt his principle to a change in the form of life. Left to himself, the Anti-Revolutionary group is too small in number to let its influence on the affairs of the country penetrate under the vigor of the representative system. From this it follows that it must seek affiliation with like-minded groups, and thus also that, with a view to the necessity of such cooperation, it must push into the background what would otherwise repel.

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50THE ANTI-REVOLUTIONARY PARTY AS A POPULAR MOVEMENT. to come forward, and in turn to bring to the fore the problems on which unanimous agreement is to be obtained. For whatever differences and even conflicts may still arise, one must strive for a compromise. And apart from that, what separates us from our other, more distant kindred spirits should wound their form as little as possible. Formerly, this was different. In the 16th century, the antithesis that holds here could neither be veiled nor softened. Now, since the struggle is against an entirely different enemy, in case of difference, a more cautious approach is not only permissible, but a demand of statesmanship. In what has been handed down to us from the age of our glory, it is not the then-current form, but only the essence that must bind us; and it must, as Da Costa sang to us, increasingly become "in its form of this time." Secondly, the problems that occupied our Fathers were often entirely different from the problems that demand our attention. If one now nevertheless constantly tried to go back to the problems of the 16th century, this would not result in anything other than a repristination, and all our political efforts on our part would be in vain. Nor can nor may our party shirk the obligation to help find a solution for the so complex issues that now demand a solution in the political arena, in accordance with its own peculiar principles.

## §35. Dogmatic and Political.

And here comes in the third place, that our principles are not only to be confessed, but always require clearer historical elucidation. This last point manifests itself by itself in the exchange of the name Puritan, as explained in §8 of Our Program, and the name Calvinist, or Neo-Calvinist, which we placed at the beginning of the first part of this work. In 1878 there was still an objection to choosing the rigid, taut name of Calvinist as a starting point, inasmuch as at that time, both here at home and abroad (with the exception of Hungary and a part of southern France), a Calvinist meant nothing else...

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DOGMATIC POLITICS. He was a zealous advocate of the doctrine of election, preferably in an infralapsarian sense. This, and nothing else, was what was understood, if now and then in England, here at home or in Germany, someone spoke of a Calvinist. The meaning of the word “Calvinist” had become exclusively dogmatic. Its historical significance had been lost. And the designation of a political system was hardly seen by anyone anymore. It would therefore have led to an incomprehensible qualification in 1878 if we had already insisted on the Calvinist baptism of our party. On the other hand, the political character still lay well in the name of Puritan, as it is still quite common, especially in Scotland, but also in England. That is why at the time the name of Puritan had to be preferred by us over that of Calvinist. Since then, however, this necessity has lapsed. The study, which has been devoted to Calvinism in its various manifestations almost everywhere since 1880, gives us the right, and even the duty, to return to the generic name of Calvinist. For now we are so far that the unfolding which Calvinism underwent in its transition from Geneva to France, from France to England, and from England to America, is clearly visible before our eyes. The distinction between ecclesiastical and dogmatic Calvinism on the one hand and political and economic Calvinism on the other has now been historically established, and all uncertainty has been removed about the metamorphosis that political Calvinism has undergone in the course of the centuries. What is now often called neo-Calvinism is in fact nothing other than the result to which the natural unfolding of Calvin’s ideas has led. In our First Part this has been extensively pointed out. Now, therefore, it suffices to state that this further study of the historical course of Calvinism gives us the right, indeed the duty, to abandon the kind of name Puritan that was still used in 1878 and to restore the generic name of Calvinist in its political honor. Of dogmatic Calvinism we do not speak here at all. Here the ecclesiastical and dogmatic element that is hidden in the name of Calvinism remains completely excluded. Even whoever wishes to join our party as a member is not tested on his dogmatic confession. For a political party, a profession of agreement with the political program suffices.

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## §36. The Shift in England.

In the nearly forty years that have elapsed since the first publication of Our Program, yet another complete transformation has taken place, which must equally not be passed over in silence, namely, in regard to our connection with the Anti-revolutionary groups or circles in other countries. Since 1878, a wholly different

relationship has also emerged outside our own circle, as far as the foreign countries are concerned, particularly in Great Britain. Gladstone's death on May 19, 1898, and Chamberlain's attack in 1900 on the South African Boer Republics are the two historical monuments that have been decisive here. Those who were Calvinists in the democratic sense had often turned their political sympathies towards England, and I too have allowed myself to do so. I did not forget how England had often done us highly unjust competition in the maritime and colonial sphere in the 17th century, nor how England had taken not only Ceylon but even the Cape Colony from us at the beginning of the 19th century. Yet our sympathies still seemed to have to lean towards England. In 1890, Gladstone had published his well-known work: The Impregnable Rock of the Holy Scripture, in which he had advocated more clearly than ever before his steadfast agreement with the Statesmanship that rests on God's Word. He felt a deep aversion to the Radicalism that was then already creeping into England. He moved unconditionally in the line of the Old Whigs. And without hesitation it must be stated that all that was of Calvinistic origin, both in England and especially in Scotland, supported him. It is true that it already raised some doubts that a man like John Morley, who was Gladstone's political confidant, moved entirely outside that rock of the holy Scripture, but here too Groen van Prinsterer found support in Allard Pierson, and Calvin was also rehabilitated here in our country by Allard Pierson. Forster's school policy could serve as an example to us here, and the encounters I had with Forster and other English statesmen, through the mediation of my academic contemporary Lord Reay from Leiden, always warmed my sympathies anew. I felt again and again that, as an English citizen, I would be a Gladstonian, and how, conversely, Gladstone, whatever his ultimate fate may have been on our terrain, was undoubtedly a Groenian.

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THE REVERSAL IN ENGLAND.53 This is how it would have been. To further confirm this, I was reinforced when I received the invitation from Pretoria to come to England and support the Transvaal Deputation of Kruger and Du Toit. With Beelaerts van Blokland, I then went to London, and for weeks on end I was able to plead the almost sacred cause of the Boers. Even then, Gladstone was the man of my full sympathy. One remembers how the overrunning of Spitskop in the Transvaal had unexpectedly strengthened the Boers in their resistance against England. Gladstone, though naturally called upon to watch over England's interests first and foremost, felt warmly for this, and in the end the Deputation was allowed to return home to Pretoria, enriched by what Gladstone had granted them. I used to go to England almost every year. My research on La Saco in the Guildhall and in the Walloon Church of St. Martin le Grand necessitated this, and Lord Reay's gracious introduction always made my stay in London, Oxford, and Cambridge richer in political and literary enjoyment. All the more so since Stahl, von Gerlach, and other Anti-Revolutionaries in Germany were so strongly inclined towards the Conservative groups, it attracted me increasingly that in

England I found political sympathies that, like my own, had their origin in the Calvinistic-Presbyterian activism of the 16th and 17th centuries. It has been deeply moving for me, then, that such a serious change has taken place here after Gladstone's death. The Conservatives came to power, and the determination to undermine and not to do justice to the Boer republics soon became apparent. Even during my stay in America in 1898, I heard that Chamberlain had been to Washington to secure Mc Kinley's neutrality, as if for war, and then it broke out. The two states of Dutch origin in South Africa were destroyed, and with our whole people I deeply felt the cutting injustice that was thereby also done to the Dutch stem. And it was then, finally, that Chamberlain's Cabinet was overthrown, but not replaced by a Cabinet in the direction of Gladstone, but by a government like the one that still continues under Asquith, which threw Gladstone's memories overboard, even in Ulster threatened the re-emerging Presbyterianism with armed force, and found in Botha the man to carry on Chamberlain's undertakings in South Africa. Against this, there is no

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54THE Antirevolutionary PARTY AS A PEOPLE'S MOVEMENT. A wave of resistance has emanated from England or Scotland. It now became clear how Presbyterianism in Great Britain had lost all independent political significance; and the mighty impulse of a higher principle, which still drew so powerfully towards England under Gladstone, was overshadowed in less than a decade. It is under a government that calls itself liberal, but is supported by all that is still Presbyterian or Puritan, that the hero of the Boer uprising, Christian de Wet, has been imprisoned in the church, after La Rey had already been killed. Thus, the turnaround in Great Britain has become a complete antithesis, and for our Antirevolutionary party, unless we want to disown our principles and our past, there is no longer any support or sympathy to be found across the sea in Great Britain. It is French radicalism that triumphs in England.

## §37. The Antirevolutionaries in Germany.

In Germany, there was no compensation to be found for this. Stöcker's appearance did have my warm sympathy, but as I have told Stöcker himself more than once, he failed to take a political stance in a general sense. In the social sphere, he acted energetically and decisively, but his social policy hung too much in the air and lacked a general political foundation. That is why joining his efforts was not possible for us. The Junker parties, the Agrarians, who made up the core of the Conservatives, had increasingly disowned Stahl's political testament. Von Bismarck's political conduct moved almost entirely in the sphere of strengthening Germany's global significance, and although he openly professed, "We Germans fear God and no one else," the religious vein running through his politics was still strongly tinged. In the May Laws, he even dared to attack the freedom of the Church. With all the admiration for the mighty results he achieved, he could still

not elicit any political affiliation from us Antirevolutionaries. The "Reformists," who were reviving in Germany, did try to approach me once or twice to join their ranks, but their school tactics, their avoidance of all political involvement, and their sober Calvinism seemed to me to promise too little for an attempt at affiliation. In Barmen and Elberfeld, there certainly would have been favorable prospects; but even there, the conditions under which the action took place were too specifically German, and too little principled and comprehensive in a general sense, for me to engage in a closer understanding without suffering harm myself. The Protestant element in general, and the Reformed in particular, lacked entirely what made the Roman Catholic Center in Germany so strong, in that it did not have the courage to act as an independent party. It was therefore understandable that some more decisive men like Kleist-Retzow and Von Gerlach sought to be incorporated into the Center. But this too failed on its own. And so, alas, it must be admitted that the rich prospect that opened up for the powerful formation of an Antirevolutionary party in Germany after Stahl's appearance has not been realized. Personally, there are thousands and thousands in Germany who are kindred spirits to us and envy our independent party position; but it has not come to an independent formation, and there is hardly any prospect of it happening in the future. Switzerland offers no hope for the future either. In the French cantons, what is outlined in France is repeated in a bioscopic way. The Italian cantons are too small in population to take an independent position. And in the German cantons, it is the Roman Catholic ones where the most emphasis is placed on the honor of one's own principles, while in the Protestant ones, German theology often marries French political ideas, and thus here too a revival of Calvinism is excluded. One saw it at Calvin's centenary. Glorification of a name in which part of Switzerland spoke of ancient glories, but of spiritual kinship with the traditions of the man of Geneva, not a trace in all that was manifested and celebrated. Religion and politics here too almost hermetically sealed off from each other. Not even the faintest indication of political action in Calvin's footsteps. §38. In Roman Catholic lands. In predominantly Roman Catholic lands, there could naturally be no revival of the Antirevolutionary movement. The Roman Catholic Church, with its hierarchical structure and its centralized authority, does not allow the formation of independent political parties within its fold. The Ultramontane movement, which has spread from Rome, has indeed brought about a certain political mobilization, but this has been entirely in the service of the Roman Catholic Church and its interests. The Antirevolutionary principle, which seeks to maintain the independence of the various spheres of life, is diametrically opposed to this. The Roman Catholic Church, with its claim to sovereignty over all of life, cannot tolerate any independent political movement that would limit its power. And so, in Roman Catholic lands, the Antirevolutionary movement has found no foothold. The political activity of Roman Catholics has been entirely absorbed by the struggle for the interests of their Church. The Antirevolutionary principle, which seeks to maintain the independence of the various spheres of life, has found no echo there.

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THE ANTIREVOLUTIONARIES IN GERMANY. - IN ROMAN CATHOLIC LANDS. 55 bemoeiïng, en hun sober Calvinistische scheen mij bij proefneming tot aansluiting toch te weinig te beloven. In Barmen en Elberfeld ware zeker gunstige uitzicht geweest; maar toch waren de verhoudingen waaronder zelfs in het Rijnland de actie zich voordeed, te speciaal Duitsch, en te weinig principieel en alomvattend in generalen zin, om mij, zonder zelf schade te lijden, op een naurere verstandhouding in doen te gaan. Het Protestantsche element in ‘t gemeen, en het Reformirt in ‘t bijzonder, miste zoo geheel wat het Roomsche Centrum in Duitschland zoo sterk maakte, doordien het den moed niet had om als zelfstandige partij op te treden. Het was dan ook te verstaan, dat enkele meer besliste mannen als Kleist-Retzow en Von Gerlach, aanzoek deden om bij het Centrum te worden opgenomen. Doch ook dit liep van zelf spaak. En zoo moet, helaas, beleden, dat het rijke uitzicht dat zich na Stahl’s optreden voor het krachtig zich vormen van een Antirevolutionaire partij in Duitschland opende, niet verwezenlijkt is. Persoonlijk zijn er in Duitschland duizenden en nogmaals duizenden, die ons geest-verwant zijn en onze zelfstandige partij-positie benijden; maar tot zelfstandige formatie kwam het dus verre niet, en zelfs van een uitzicht dat het er toe komen zal, kan ter nauwer nood gesproken worden. Zwitserland biedt even min hoop voor de toekomst. In de Fransche kantons herhaalt zich bioscopisc h, wat in Frankrijk zich afteekent. De Italiaansche kantons zijn te klein in bevolking om een eigen positie in te nemen. En in de Duitsche kantons zijn het de Roomsche, waarin nog het meest op ‘t eeren van eigen beginselen wordt aangedrongen, terwijl in de Protestantsche de Duitsche theologie zich veelal huwtaan de Fransche staatkundige denkbeelden, en aldus ook hier een weer op-leven van het Calvinisme uitsluit. Men zag het op Calvijn’s eeuwfeest. Verheerlijking van een naam waarin voor een deel van Zwitserland al oude glories spraken, maar van geestelijke verwantschap aan de tradities van den man van Genève zelfs geen sprake in al wat gemanifesteerd en geëerd werd. Religie en politiek ook hier bijkans hermetisch van elkander afgesloten. Van politieke actie in Calvijn’s spoor geen flauwe aanduiding zelfs.

## §38. In Roomsche landen.

In overwegend Roomsche landen kon natuurlijk van een weer op-bloeien

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ANTI-REVOLUTIONARY PARTY AS PART OF THE PEOPLE. There could be no talk of Calvinism as an action in the sense of the German Center, but it would certainly have been very conceivable. What the Center aims at is not merely a specific German or exclusively Papal movement, but very certainly also a descent from this special to the general Christian principles, which, as with us, could lead to the cooperation of Protestants

and Roman Catholics. However, one finds no indication of this, neither in Italy nor in Spain and Portugal, nor even in Belgium. In Italy, the old Waldensians, as well as the few Protestants in Spain and Portugal, swear by the Radicals, while for the Roman Catholics the decision hangs on the restoration of the ecclesiastical state to the Pope. And when one examines the state of affairs in Belgium, then the remarkable phenomenon certainly presents itself here, that the small circle of Protestants does not unanimously join the Radicalism, but even partly goes along with the Clericals; but it stands firm that the Clericals, who have now been in power for nearly thirty years, have not gone over to a principled anti-revolutionary statesmanship. As is well known, the constitution that Belgium gave itself in 1831 still remains the model for the statesmen of Liberalism. Even if it is now that the Clericals have been in power for three decades, the attempt to transform this radical-revolutionary state law according to the requirements of a higher principle has never even been thought of. In my many conversations with Belgian clericals, it was not even possible to discover that they were familiar with the writings of the German Center. They hardly even recognized the name Groen van Prinsterer, and his writings were unknown to them. For Belgium, therefore, there could be no talk of a self-conscious anti-revolutionary stance on the principles of state law. Practically, one often moved, as in the school question, on the desired line, but one did not penetrate to the fundamentals of Christian state construction. In Belgium, they really never understood what we, the Anti-Revolutionaries, above the Moerdijk were aiming for.

## §39. Russia.

In the first half of the previous century, there were in the Netherlands quite strong sympathies for the Czar's empire. The Cossacks came to our aid at our first liberation. Grand Duchess Anna Paulowna won the sympathy of many. Interesting memories still lived on of Czar Peter. Our Dutch colony in Petrograd still maintained a lively connection with our northern provinces. The Russian securities were always considered one of the best funds here, and they also made a great impression at that time. It was known that the principles of the French Revolution hardly encountered any fiercer resistance anywhere than in the Czar's empire. Even ecclesiastically, it aroused sympathy that the Greek Orthodox Church, even though it was Caesaro-papistic, could still offer resistance to Papal supremacy. One was not detached from Russia in our circles. In this relationship, however, a very noticeable change has now gradually occurred. It is true that the Czar's initiative for the Peace Conference attracted attention for a moment, but the necessary gave way too quickly, and thus saw his great plans completely thwarted. Furthermore, the way in which Finland was treated and time and again against the freedom-thirsting elements was acted upon, hindered many sympathies, and however much the prematurely deceased Mr. De Martens drew the connection with the

Netherlands again, it has not yet become between the Netherlands and Russia what it was in the thirties of the previous century.

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RUSSIA. - THE UNITED STATES. The strongest sympathies of our Anti-Revolutionary Party still go out to the United States of North America. For there the Calvinism has reached its full development, the Common Grace has come into full honor, state and church have been disentangled, everything that is church flourishes precisely through complete independence, combined with complete financial responsibility, and in no country are the sympathies of the Christian, ecclesiastical and non-ecclesiastical life so honored and warm on both sides as precisely in the Union. There is no need to go into further explanation of this, since in the First Part all the necessary light has already been shed on this. It is only in the nature of the matter that in the Union there could be no talk of the founding of a separate anti-revolutionary party. The Republicans, after all, have long since taken over the task of defending the Christian foundations of the state, and the Democrats, who are now in power, also do not show any tendency to abandon these foundations. The Anti-Revolutionaries therefore have no reason to form a separate party in the United States, but can fully join the existing parties, as long as they remain true to their Christian-historical foundations.

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The Antirevolutionary Party as a People's Party. Originally, they gave precisely what the Antirevolutionary intends. And while we openly acknowledge that the Republicans of today have in many ways strayed from their original spiritual starting point towards the economically enriching, yet we still cannot but reckon ourselves as historically akin to the Republicans. Although this brief overview of the situation abroad shows many significant changes since 1878 when Our Program saw the light, the fact remains that even now, only in the Netherlands is there an organized Protestant Antirevolutionary Party against the principles of Unbelief and Revolution. Our opposition to Unbelief and Revolution stands in many ways on par with what emanates from the Roman Catholic side against the spirit of the age. And many in all lands are the believers in the Gospel who, even in the political realm, are one with us. What is unique to us is this: that we, thanks to our past and the Calvinistic origin of our national existence, see ourselves as a solitary Protestant political party, which neither petrifies the people in conservatism, nor wanders off into the false democracy of 1789.

## §41. Radicalism in France.

With France, our relationship could not be other than strained. Not because the Monarchy gave way to the Republic. We ourselves have been a Commonwealth, and our country has been able to fulfill the most glorious role in Europe's history precisely in that Commonwealth form of government. The form of government decides nothing here in the least. It is precisely with the United States, who also chose the republican form of government, that we feel the closest political kinship. A Calvinist can never forget that in Geneva there was no talk of a Monarchy, and that Calvin himself lived in a Commonwealth, so to speak. What makes reconciliation with the French form of government unthinkable for us is solely this, that France still moves along the straight line for which Rousseau first indicated the two fixed points, and that line is precisely the line of Unbelief and Revolution. It is perfectly true that first Napoleon, and after him both the returned Bourbons and what came after them, have in many ways deviated from that line. But the fact remains that the basic direction of France's political development has been and still is the direction of Unbelief and Revolution.

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THE RADICALISM IN FRANCE.59 The House of Orleans, shuddering at Danton and Robespierre, yet this applied to their excesses. Both Napoleon and the Bourbons and the Orleanists sought to temper, to moderate, to be on their guard against the overwhelming power of the plebs; but what they neglected was to establish a positive starting point, in opposition to the principle that in 1789 and 1795 gained the upper hand. Napoleon got into less trouble in the realm of principles, because he gave the popular spirit a restless distraction in his wars. The Bourbons were much more preoccupied with reaction, but concentrated that reaction in the honor of their House and in erecting a fence around that House, so that the popular power could not penetrate; but of building up a State theory against the revolutionary theory, and that with their own foundation, there was no question. Hence the Bourbons already in 1830 collided with the influence of the people, and had to give way to the more accommodating Orleanists. These, however, led France even further astray. They wanted to be masters in the economic field. They built on gold, instead of on principle. Thus they gained the well-to-do middle class and the rich capitalists on their side, but alienated the believers and the democratic groups from themselves. They did not pursue a dynastic policy, like the Bourbons, but a policy that only benefited the material side of life. Already after a rule of only eighteen years, they too succumbed. And when now the republican form of government returned, it proved to be so weak in its joints, that Napoleon III could already after four years call back the Empire. Only when this Empire was overthrown in 1870, did the revolutionary republic under Gambetta return, and this is the one that, after first having moderated its steps under Thiers and Mac Mahon, soon let the reins slip more

loosely, and increasingly came out in a more radical course. Not without seriousness has the Conservative element for a time sought to dispute this Radicalism the field; but since this Conservatism also remained attached to the principles of the Revolution, it could not but be, that with each new election for Parliament a tithe of Conservatism went over, joining the Radicalism, and soon leading this to an undisputed triumph; and since then this Radicalism in France has had nothing more to fear. It broke with the Churches, it abolished all stipends...

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THE Antirevolutionary PARTY AS A POPULAR MOVEMENT. The clergy were not taught, and even arbitrarily disposed of church buildings, suppressed the Christian school, deprived the Free University of all authority, and, after the complete rejection of Clericalism, elevated the truly revolutionary element to that long-delayed triumph. Da Costa's poetic judgment of Paris as a second Babylon proved, as regards the principle prevailing there, to be less and less open to contradiction. What now came was not the reckless wildness of Danton, nor the fantasy of Robespierre; it was more closely knit together, it was more practically worked out; but as regards Unbelief and Revolution, to adhere to Groen's maxim, it is undoubtedly the spirit of 1789 that still maintains spiritual leadership in France, yes, even attained undisputed dominance. Even Ribot took a seat in Poincaré's cabinet together with Viviani, yes, under Viviani.

## §42. Disappointment.

The disappointment brought upon us by France was thus complete. As followers of Calvin, nothing could have been more congenial and dear to us than to incorporate, in tempering the one-sided Germanic element in our national character, the French variation as well. Already under the Burgundians, the first germination of this had manifested itself, and even in our language the admixture of a French element is unmistakable. They are not all Gallicisms that one wants to banish from our language as such. Words like: pleasure, umbrella, province, fruit and the like have, by introducing variations in meaning, enriched our language. The affinity between the Swiss-German and our Dutch also points to the fact that, in contrast to High German, Low Dutch prefers to maintain itself through this French admixture. Through Calvinism, had it been able to gain a foothold in France, this intrusion of a Romance variation into our people would likely have truly enriched us. Yet it was not to be. The Bartholomew's Night has given us the Huguenots, which of itself brought a breach with France.

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DISAPPOINTMENT. - THE QUESTION OF SOVEREIGNTY. When, at the end of the 18th century, a more desirable understanding could have arisen, since the lust for conquest of Louis XIV and XV had come to a standstill, the French Revolution has even widened the chasm between our Calvinism and French politics. With all appreciation for the excellent forces that still continue to attract us in France in the non-political sphere, and with all high esteem for many personal gifts and talents, an Antirevolutionary here at home can still not stand otherwise than principally opposed to the tendencies in French political spirit. The fundamental contrast between what we Calvinists intend and what is leading in French political thought has not been blunted since 1795, but rather sharpened even more. Calvinism and the French Radicalism that still triumphs in the Seine city are two. Chapter II.

THE SOVEREIGNTY OF ORANGE.

## §1. The Question of Sovereignty.

In Article 2 of Our Program, the Antirevolutionary Party confesses twofold. Firstly, that the sovereignty over all peoples and all States rests in God; and secondly, that the highest authority derived from this sovereignty resides in the House of Orange in the Netherlands. The first part has been sufficiently dealt with in Part I; therefore, here only a brief word about the lodging of the derived sovereignty in Orange. Since outside of God Himself absolutely no one can be conceived who could dispose of sovereignty, it could only be granted by the Almighty. This could take place immediately or mediately.

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The sovereignty that Adam possessed over Paradise was conferred upon him directly. Without any intermediary, it was directly declared to Adam: “Fill the earth and subdue it, and have dominion over all that is in it.” To a certain extent, this can be placed on the same level as the calling of Moses at the Burning Bush, and in a certain sense also the calling of David, even though Samuel was the intermediary conveying God’s decree. The mandate of the Crown in the Kingdom of God to the Christ also took place, according to Psalm II:6, directly. In the course of history, on the other hand, and generally speaking, the mandate did not come about except indirectly. Providentially, a person, a house, a college, or even the people themselves, can actually be in possession of the supreme authority, without there having been any direct intervention from God’s side. There may have been a conquest of the supreme authority through some act of violence. The supreme authority may have been inherited or transferred. It may also have been transferred by the people, and thus seemingly granted by the people. But in whatever way human arrangement or human action may have intervened, the source from which the supreme authority flows is and remains always God Himself,

and man here does nothing other than serve instrumentally. The sealed document by which a King delegates the supreme authority over an outgoing naval fleet to one of his admirals can, as a rule, be drawn up by an official servant and handed over to the admiral by a subordinate, so that the King merely signs; but the fact remains that this official and this messenger are merely performing instrumental service, and that it is exclusively from the King's will and decision that the power and authority which is the King's is, within the designated sphere, transferred to this admiral. Now the course of events here may have been strictly regulated and formally interconnected, so that the mandate and transfer of the supreme authority took place without the slightest disturbance; but it may also have been that irregularities occurred here.

## §2. Transition to Orange.

And this latter was evidently the case when in 1813 the then Prince of Orange appeared as Sovereign Prince, or, according to the expression...

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THE TRANSITION PERIOD.63 After the Constitution of 1815, the Crown placed itself at the head. A brief period preceded 1813, during which the supreme authority over these lands rested with the Emperor of France. Before Napoleon acquired this supreme authority, it had been exercised for a certain number of years by King Louis Napoleon. This exercise of supreme authority was preceded by the revolutionary period, in conformity with the Constitution of 1789. And after the one who had taken up the supreme authority in 1795, we come rightly to the provincial States, who were jealous of their sovereignty, flanked by the General States, and supported by the hereditary Stadtholdership, which since 1747 had been occupied by William IV, Prince of Orange, and his successor Prince William V. Now, when on 17 November 1813 the imperial authority of Napoleon sank, there was in itself neither a person nor any college that could be pointed out as now having the sovereignty to offer and transfer it to the Prince of Orange. Formally, the historical line was broken. But although the regulation of the supreme authority had thus become unready, there was not the slightest doubt about the real situation. There worked in the people, as a result of what had happened since 1789 and 1795, a tendency towards submission, a need for a vigorous exercise of supreme authority throughout the land, and for the historical consciousness of almost everyone, the Prince of Orange was the person to whom one desired to submit. Alongside this stood the Prince, who hastened back from England and himself felt the same calling not to leave the embarrassed country helpless. And in Hogendorp, Van der Duyn van Limburg Stirum, the heroic element emerged, where their own movements under an irresistible impulse took the initiative and gave the impetus to make the embarrassed people find in Orange what everyone felt had to come. The ingenuity with which one later unraveled the threads from a legal point of

view, which had almost woven into an enchantment what had been so cruelly torn apart over the past 15 years, may have been legally meritorious, but could not suffice as proof. In the hereditary Stadtholdership there was formally no sovereign authority. Just as the landowner entrusts the care of one of his estates to the farmer who lives on the land, with the proviso that after him his son and then his grandson will cultivate the same estate, there is in the least no transfer of ownership.

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64. The Sovereignty of Orange. When the revolt broke out in 1572, the supreme authority over these lands rested with the King of Spain, and his stadholders had no other calling than to exercise this supreme authority in his name, under responsibility to their principal. Even in the "Wilhelmus" it is confessed: "The King of Spain I have always honored." The sense of duty to honor the Prince against Religion, and thus against God, has then provoked the revolting and the abjuration of Philip. And from that hour the unhappy struggle has arisen between the stubborn oversight of the States-Provincial over their own sovereignty and the popular impulse that, through the elevation of the States-General, pressed towards national unity, and herein found its inspired symbol in Orange.

## §3. The States and Orange.

Yet this did not take away that formally the States-Provincial maintained themselves in their relative independence, and that of a formal abdication of their sovereignty even to the hereditary stadholder there has never been any question. So it remained a struggle between two currents. The formally dead-ending current continued to ascribe the sovereignty to the coterie of the Regents, the national life-current went against this. At the call of the Sans-Culottes one lost oneself in the contrat social. But in order, when the bitter fruit thereof began to taste too bitter, to throw off the French yoke and the French garb, and now, under Orange, to face a better future, as one hoped. The outcome was, therefore, that all high authority slipped away from the former power-holders, and that this, not by formal deduction, but by the very facts of history, passed over to Orange, and was accepted by Orange. Hence every laboriously constructed proof for the transition of the supreme authority to Orange remains weak, but on the other hand, for him who understands the speech of God in history, not only the sovereignty of the House of Orange, but also the "by the grace of God" that enhances its honor, no longer allows any contradiction in the national popular consciousness. Naturally, a formula also had to be found then for the transition of the form of government, and this has been designed in the formula, first in 1814, that "the sovereignty of the United Netherlands is and remains entrusted," and in 1815, that "the Crown of the Netherlands" is and remains entrusted; and further by going back to 1747 to establish who would count as the Progenitor of the royal family; but the

compelling force for the legal argument lay just as much in the one as in the other. The Great Assembly of Notables could no more in its own authority give the bond with the past. Whatever ingenuity has been applied to provide this remarkable change in the state of affairs with a legally stamped birth certificate, it is not thereby that the then Prince of Orange won the hearts of the people. §4. Whence the enthusiasm? The enthusiasm with which the people greeted his appearance, he owed to the memories and to the after-feeling of the misery and distress that our people, in all its ranks and classes, had suffered under the French yoke, and to the memory, so sharply contrasting with this, of the glory that in the 16th century had been bestowed on the Netherlands by the great Princes of Orange. The contrast between the then exceptional greatness of our country, when the small Netherlands had become for more than half a century the leader of the world market and the ruler of the seas, and the smallness to which we had sunk in 1813, worked enchantingly on the popular spirit. Bilderdijk in his "Holland grows again, Holland blooms again, Holland's name is restored" - expresses with perfect accuracy what was going on in the hearts at the time, especially when soon after the Flemish land came under the Dutch crown and the political splendor of the 17th century seemed to revive. This has then been turned against. The expectation that the Netherlands would see the glory of its past renewed could, given the distorted power relations in the European state system, not but end in disappointment, and so, of itself, after the failure of Belgium's annexation, led to the resentment against Orange that crept into many hearts in 1848. But the fact remained that in 1813 the opposition of the Regents, which even then still crept on, out of sheer shame fell silent, and that, on the contrary, the sympathetic tone of the State...

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... prevailed.

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66 THE SOVEREIGNTY OF ORANGE. The part of the people who, as if with one breath, welcomed Orange upon his return to the fatherland and on the coast of Scheveningen.

## §5. The Kingship of David.

It was also here as it was in the days of David. Even then, between the pretender-Kings, such a spirit of solidarity was born among the people, not least through David's heroic deeds, that in the end first only the men of Judah and then all the tribes of Israel proclaimed David as King and crowned him. In 2 Samuel 5:1–3, it is also so clearly expressed that the tribes of Israel came to David at Hebron, and the elders of Israel made

a covenant with him that he should be king over them. And these were the men who anointed David as King. First the anointing by Samuel, and now at Hebron the anointing by the elders of Israel. The King felt that he was called by God, and all the people having entered into covenant with him, felt that David was given to them by God as King. The only indefiniteness lay in the fact that the expression of the people's desire and the people's willingness had a somewhat floating character. What in 2 Samuel 2:4 are called the "men of Judah" were not enfranchised by virtue of a legally introduced general right of suffrage, but presumably the "elders" of Judah, just as in 2 Sam. 5:3 express mention is made of the "elders" of Israel. Up to a certain height, at any rate, the organic tribal bond of that time still stood, and thus in each tribe, in each clan, and in each family, the men were designated who had the right to act representatively.

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THE KINGSHIP OF DAVID. - JUST SO HERE. - THE NOTABLES. 67

## §6. Just so here.

Entirely the same was seen in 1813-'14. Prince William of Orange was aware that, by virtue of the past, no one other than he, with his House, could be King, that he was called to that Kingly dignity. There could be no talk of a rival, of a co-pretender. Nor was any mentioned. But this did not mean that he did not have to be accepted by the people. And since at that time there was no legal representation of the people that could act in the name of the people, it was quite natural that here it depended on a freely emerging initiative, and this then came from the three eminent men who, without being authorized or appointed to do so, boldly took the initiative, in the name of the whole people, to act as political heralds. It was with it as with the speaking at a grand demonstration, if there is a prominent jubilee. Then everyone's feeling demands that the word be spoken in the name of all. And if there is then one who presents himself as the spokesman of everyone's feelings, takes the word and loudly expresses what he knows is in everyone's heart, then the applause follows of itself and seals what he said. Whoever then takes the word is not appointed to do so by legal vote, but felt instinctively that the word was expected of him. This is precisely what also took place here in a political sense. The old organization was no longer there, the new one was still lacking. Yet there was a current through the heart of the people that called for action and desired Orange. Whoever then stepped forward did not do too much. It could also have been three others. But these three could, on the basis of their own initiative, accomplish what was to be done, and they did.

## §7. The Notables.

Nor was it otherwise with the notables who solemnly sealed what had been done in the assembly. Such a representative college was necessary. For the composition of this college, the most obvious form was chosen. From these, good or bad, emerged, as it were, the most suitable representatives.

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68 THE SOVEREIGNTY OF ORANGE. The opposing factions were not breathing the national spirit, but rather the dying spirit of a clique. It mattered little, therefore, how the assembly of notables was constituted. However composed, this assembly had the people behind it. It did not depend on the letter of their mandate, but on the fact that they were animated by the same spirit that inspired the entire people, save for that small clique. The rich and glorious past of Orange cast its spell, now that the sad outcome of what the heroes of 1795 had undertaken had tormented the national heart. And therefore it mattered little how everything was formally arranged. A divine ordinance was felt. That divine ordinance spoke in the popular consciousness, and it spoke in the Prince of Orange. And the fact that the sovereign Prince would soon write the title of King, that he, whatever he was, was by the grace of God, lived at the time as an unshakable conviction in all political awareness. What Tollens sang in his “Who has Netherland’s Blood” about the “Deity on the heavenly throne” did not convey the warmth of the “Wilhelmus van Nassauwen.” In the “Who has Netherland’s Blood” the poetry is lacking, and this lack of poetry Tollens has tried to make up for by high-flown, resounding terms, like those that still today hinder everyone in that boastful: “Free from foreign stains.” But this does not take away that in March 1813 the Napoleonic screw was wrenched off the tripartite of our national existence, not only the Prince, but also the people in its broader ranks experienced a moment in which the grace of God lifted us out of our misery. Precisely the unhistorical and completely at odds with our entire past character of the revolutionary movement, which was embodied in the Constitution of 1798, and which had led not only to the expulsion of Orange, but even to the driving out of a man like Bilderdijk, for his unwillingness to let go of Orange, made itself so powerfully felt in 1813. What, after all, was what these revolutionaries had achieved, compared to the imperishable glory that still echoed from the 16th and 17th centuries?

## §8. The error of the 16th century.

So something stirred in the popular consciousness, reproaching the national...

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THE FAULT OF THE 16TH CENTURY. The conscience cried out against the ungrateful injustice done to Orange. In such a historic moment, this sense of guilt naturally arose in the national consciousness, and from this in 1813 came the impulse of the entire nation (with the exception of the Kezen-clubs in the larger cities) to make amends for the guilt of the past and to make up, through warm enthusiasm, for what had been done to Orange at the end of the 18th century. The unforgivable political error committed in the 16th century could not be undone, but at the return of the Prince to Amsterdam, the anxious feeling still washed over what had been neglected at the time by the broad stream of the people. The reader feels what errors, what neglect is referred to here. One should have, when uniting in the Union of Utrecht in 1579 and when renouncing the monarchical authority of the King of Spain in 1581, not thought of a "Stadtholder" anymore, but should have immediately placed Prince William in Philip's place; whether one wanted to hail him as Count or Duke, or immediately under the title of King. The United Netherlands were formed out of a certain number of small Statelets, which were monarchically governed and had been subject from of old to their Count or Duke. That the monarchical rights which applied in each of these Statelets had gradually accrued to the same House, and that ultimately Charles and Philip, in their own person, had become rulers over all these provinces together, did not in itself change the form of government. That form was and remained monarchical. That in 1568 one rose up against Philip did not mean the replacement of the monarchical form of government by the republican, but drew its inspiration from the resistance to religious tyranny, especially as it manifested itself in the Inquisition at the time. There was therefore not the slightest reason or occasion why one should now have to switch to the republican form of government. The natural course would much rather have been if each of the liberated States had then appointed a new Count or Duke, especially with the proviso that the new Prince would now no longer be at the same time Prince over a completely foreign country, as had previously been the case with the Burgundians and later especially with Charles and Philip. What our country needed at that moment was a national Crown, and that Crown borne by Princes from a House that was indigenous here.

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70 THE SOVEREIGNTY OF ORANGE. It was, and his own blood was mingled with the blood of the nation. The logic of history had thus demanded that William of Orange be placed in the stead of Philip. But this is precisely what they did not want. The States of the various provinces, now that Philip had fallen away, wished at the same time to break the monarchical principle, and henceforth the supreme power would rest with the States themselves. This is what Oldenbarneveldt, this is what later the De Witts always aimed at. Through this misstep, the struggle then broke out between the people in their broader ranks, who had taken up the fight against Philip for the sake of religious freedom, and the Statists, who had almost exclusively been bent on the increase of power. So it could not be otherwise, or the Calvinists remained the champions

of the Reformation element and continually cried out for Orange, while on the other hand the Erasmians and Remonstrants chose against Orange and for the States; and hence the root of the political bitterness that has poisoned our political relations since 1581. That Orange himself is not free from blame in this, must not be concealed. The Prince should not have acquiesced in the falsified state of affairs that now entered. This later compelled Maurits to a more decisive intervention. And with Prince Frederick Henry, the relationship had already bent so far that it now came to a provisional comparison between the Prince and the States, of which the Reformed were the victims. Whoever now thinks how entirely different the history of our fatherland in the 17th century would have run, if we had not been plagued with a bastardized stadtholdership, but from the outset had been covered by the Crown of Orange, cannot deplore deeply enough that the unforgivable fault committed in 1581, and cannot but imagine with sorrow in his heart how entirely different the course of our history would have been, if at the moment when the fatal decision fell, one had known how to guard against this misstep. Something that is not said, as if the monarchical form of government were the only conceivable or usable one. Even a republican form of government; the Union of America shows it; can produce a brilliant result. Only—just as the relations stood here at the time, after the abdication of Philip, it was self-evident that the Statist party had to come more and more to stand over against the Party of Orange and of the Reformation, and from this irreconcilable twofold struggle all the misery that first broke out in 1795 and later in 1848 was born.

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71 THE DISILLUSIONMENT OF 1813.

## §9. The disillusionment of 1813.

Also in 1813, alas, but all too soon a disquieting disillusionment has followed. In order to prevent the old feud from reviving, our first King has tried to place himself above the parties, which of course had to result in the principles of 1789, with only half strength, it is true, but still working. The fatal Royal Decree of January 1815 regulating the Churches completely disorganized the then Reformed Church, and was the harbinger of the persecution to which the Secessionists were soon subjected. The manner of proceeding in the Belgian provinces could have no other consequence than that these provinces were only waiting for the first best revolutionary reaction in Europe, to tear themselves loose from us again with French help. The battles of Hasselt and Leuven were a military success, but brought us the least national glory. The King's second marriage brought estrangement. And so it was far from natural that we soon came to stand before a disordered condition, which, alas, contrasted all too darkly with the enthusiasm of 1813. Whoever, like the writer of this, did not experience the evil days of 1848, can also now form no conception of the misrelations

between Crown and People that had then entered. The revision of the Constitution of 1848 was the one that, with all the defects that clung to it, still brought rescue from the then prevailing malaise. And now that we have entered the twentieth century, we may rejoice in the rule of the latest scion of the House of Orange, it cannot be thanked warmly enough that the administration of our revered Queen has been so surprisingly happy, and that it was indeed as if in 1913 the inspired echo was heard of the enthusiasm with which in 1815 the first King had been cheered. It may now be confessed without any appearance of exaggeration that, with few exceptions, those who will always remain under every monarchical rule, the Netherlands and Orange are again one in soul.

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72 THE SOVEREIGNTY OF ORANGE.

## §10. Our "Netherlands and Orange."

The Anti-Revolutionaries also chose, from the very beginning of their political appearance, this "Netherlands and Orange" as the motto for their Electoral Associations. Not that they have ever or at any time been able to enjoy any particular grace from the Bearer of the Crown or from his Court. We have already pointed out the fatal blow that the Royal Decree of January 1815, concerning the Churches, and later the fierce action against the men of 1834, brought us. Groen van Prinsterer's actual appointment as Court Archivist has just as little led to his advice in State affairs being of decisive influence on the three Kings under whom he participated in politics, or even on one of them. At the Public Universities, our men have been shunned throughout the first three-quarters of a century. In offices and positions, they were granted but a sparse place, except in the rarest of exceptions. Beets' naming of the "Night School" also applied here. Only in 1853 and 1878 did one get the impression that a change was coming, and since then it may gratefully be acknowledged that the three Cabinets of Mackay, Kuyper and Heemskerk could always rejoice in the impartial constitutional cooperation from higher quarters. One may therefore say that we see more and more of the setbacks that occurred repeatedly in the past disappearing, and that we are now almost on a par with the other political parties in the Palace. We do not ask for more, of course. Never any privilege, but also never any exclusion. But however this may be, as Anti-Revolutionaries we remain, by virtue of our bond with the past, to keep the enthusiasm for the House of Orange alive in all our circles, in all our schools. "Netherlands and Orange" remains our watchword. And now do not say that such a bold speaking about the House of Orange, since it bears the Crown, is not to be reconciled with our attachment to Orange. The opposite is true. Even our Calvinistic Fathers have always understood their calling to see that not in the crawling of the courtier, but only in manly courage combined with loyalty, the historical love for a dynastic

house proves itself as a power in the life of the people. Crawling and flattering has never been the nature of the Calvinists, and precisely for this reason their love for Orange contains an unconditionally powerful, mystical force.

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OUR “NETHERLANDS AND ORANGE” - INSTINCTS AND INTUITION. 73

## §11. Instincts and Intuition.

There also works in peoples and dynasties, who under God’s high ordinance, as we may express it with a Scriptural image, are married, a historical instinct and an intuition. The historical instinct makes one feel and honor the bond that was not woven by human choice, nor by human regulation, but by the entire concurrence of circumstances, fiber by fiber, and that clings as of itself around peoples and dynasties. And where historically such an irresistible instinct to belong together draws, as it were, sucks, this lays such a claim on the emotional life that an intuitive conviction is born of itself, which, without much argumentation, seeks connection of itself, and that this connection can only be realized in a covenant. The idea of the covenant is from the beginning sanctified in Holy Scripture by application to the relationship between people and prince from the marriage thought, and much disturbance in political life would have been prevented if this Scriptural thought had also found more acceptance among the teachers of constitutional law. Although it must be acknowledged that in very many cases even violence has more than mutual desire bound the dynasty with the people, or also where violence was absent, genealogical kinship decided the fate of the people, the result is nevertheless in the end almost always that people and prince feel they must belong together, and therefore desire nothing else than to continue the established understanding. Even where originally no fiber bound people and prince together, and the resistance and unwillingness of all sides disputed the prince’s power, the history has not seldom unrolled its captivating story of an ever more intimate connection, which was the fruit of the intuitive awareness that any change would be a deterioration and that only mutual affection could radiate the warmth of life. There have been many dynasties that failed to cultivate this instinctive and intuitive feeling of sympathy, but this often led to the sad outcome that the bond, which had never really become firm, was torn apart by the first storm.

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74 THE SOVEREIGNTY OF ORANGE. Finally, it was either completely severed or torn apart. That is precisely why such emphasis must be placed on the fact that the bond that binds the Netherlands to Orange belongs

to the most instinctive in history and the most intuitive in thought. Here, indeed, a covenant had been established. Orange was not a dynasty that had imposed itself, but one that had itself aroused the people's desire to be one with the House of Orange. Naturally, the ultimate decision as to whether the people would submit themselves in matrimonial loyalty to the dynasty of Orange lay with the people, but from Orange as the pretender, enticements and attractions had gone forth, and that to such a strong degree that we in the Netherlands can hardly think of any other dynasty than that of the House of Orange.

## §12. Formal Regulation.

Naturally, this national marriage, if I may use this expression, also had its formal aspect; but whatever has been attempted to date the rise of the monarchy back before 1813, nothing can set aside the fact that it was only in 1813 that the sovereignty became hereditary in the House of Orange. Yet this does not prevent us from appreciating the attempts that have led to an ante-dating of the transition; something that came out most strongly by having William IV presented as the true progenitor of the dynasty. This did not do anything to the people; but not without reason, it was foreseen from the outset that conflicts of succession between the members of the House of Orange could arise; and that, if this illustrious House were to depart early or late, foreign pretenders could interfere in our national affairs, and thus disturb the rest and peace of our domestic economy. Elsewhere, history had taught clearly enough how, in such dynastic conflicts, division can arise within the people itself, so that one part of the people sets itself against one pretender, and another part against another; and it was precisely for this reason that an attempt was made to prevent such a catastrophe by a sharp formulation of the succession in the Constitution. How difficult this often was, is evident when one compares the arrangements made in 1813, in 1848 and in 1887, and takes note of the fact that even now further amendments seem to be in order, if, after the conclusion of the present war, a more radical revision of the Constitution should once again be undertaken. One should therefore not make the mistake of seeing only the quarrelsomeness in the efforts expended here. The statesmen who have to watch over the future would be failing in their high duty if they were to carelessly leave even a single letter in our Constitution unattended or unwritten. For indeed, it can depend on a single omission whose cock will crow when the time comes.

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75 FORMAL REGULATION - THE DARK SHADOW.

## §13. The Dark Shadow.

Also in another respect, the formal regulation is of such serious significance, especially now that the long-cherished hope that the House of Orange would still be granted length of days in the Netherlands even after the death of the Prince of Orange in Paris and of Prince Alexander in The Hague, alas, has not been fulfilled. To the second wife of our late King no son was born; and however rich the possession the King has made of us, yet Princess Juliana, if she, though after long days, may have the crown pressed upon her head, will no longer belong to the House of Orange, but to the House of Mecklenburg, to perhaps transfer the crown once more to a House as yet unknown to us. Euphemism does not help here. One can also try here what has been dared with the Habsburgs in Vienna; but since it is not the title, but the blood that indicates membership of the family, any attempt of this kind could only result in a mere play on words. And even this play would be hampered by Article 29 of the Constitution, which states that only the eldest of the King's sons, or further male descendants, who are the presumptive heirs to the Crown, shall henceforth bear the title of Prince of Orange. This provision connects with Art. 17 of the Constitution of 1814, where it was stated: "As hereditary prince, he (the eldest son of the sovereign prince) is given the title of Royal Highness." The other Princes and Princesses then bore the title of Serene Highness. But as early as 1815, this was replaced by what is now

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76 THE SOVEREIGNTY OF ORANGE. In Art. 29 it stands. The continuous thought was, therefore, that a very clear distinction is made between the eldest son and the eldest daughter of the bearer of the Crown. If it is a princess, then she does not receive the title of Prince of Orange. Even Princess Juliana, to this day, does not bear the title of Princess of Orange; which is certainly not without significance. But even if it were otherwise, here there would never be a question of anything other than a mere title; and the continuation or transition of the lineage is regulated not by a title, but only by the blood.

## §14. Precision of regulation.

We are therefore, though still far away, yet ultimately threatened by the tragic painful outcome, that there comes a break in the history; that the glorious House of Orange dies out in the blood; and that the Netherlands thereby stands to lose what could never be compensated for us by any other House, however excellent. In connection with this, we stood before a highly important choice. For in connection with this extinction, one can do one of two things: one can either take the position that, after the fall of the House of Orange, the people's covenant right should be restored, so that it could itself, through its constitutional

organs, make the choice of a new dynasty; or one can weave the question of how, after the extinction of the House of Orange, to provide for the succession, into the dynastic inheritance. The former will only come into play if, according to Article 21, "upon the death of the King, there is no competent successor according to the Constitution." Then, says the article, this is directly appointed by the States-General, summoned in a double number for this purpose. On the other hand, the second course of action remains, so that a completely foreign prince can see the crown come to him here in this country. In itself, there is nothing unsatisfactory about this. It even makes more or less the impression that the Crown of the Netherlands is in particular possession of one or another family, which, even at its extinction, would still have a decisive say in the course that this matter would take. The regression of the right of appointment to the people would therefore laugh at the extinction of the direct blood relationship in the male line.

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PRECISION OF REGULATION. - DANGERS. 77 Yet the reasons that advise against this are not devoid of weight. Now that in the new state life there are constantly fundamentally different political parties in the States-General opposed to each other, the election of a Prince by such a States-General in double number would of course give rise to a tremendous struggle at the ballot box. It could hardly be otherwise, or each party would already have chosen a candidate in advance who seems to be devoted to its principles. It would therefore most likely become a struggle at the ballot box between Prince A, B or C. Something in which, moreover, it would only too easily be imagined that foreign Powers, in the interest of their own princely house or political position, would try to intervene in the election; not directly, of course, but then sideways; and the election of the States-General would thereby be in danger of not being a national affair. Nor should we forget that in the heyday of our history the Netherlands was a Commonwealth, and that there are still elements among us who have little feeling for the monarchical principle. This historical element could also embitter the struggle, all the more so as the Socialists do not conceal that the republican form of government remains the ideal for them, and then of course not in remembrance of the Commonwealth of the Union of Utrecht, but of what created the new state here in 1795. Perhaps completeness itself would even require adding that a completely open choice might well lead to a war conflict and endanger our independence. Many therefore said that in the Constitution, as long as possible, the dynastic ramifications should be held on to, and that, as long as there is still a reigning Head, he should receive the power to make proposals for the succession, and during his lifetime should not see an unwanted succession forced upon him. For the orderly progress of affairs, it is and remains desirable that the new direct popular choice be preceded by the States-General.

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78 THE SOVEREIGNTY OF ORANGE. It would be unwise to shift the general so far as it can be done only slightly. It may indeed be objected that this would lead to the succession of a Crown bearer who could never win the sympathy of the people, but against this it must be said that not only can the people make a very sad mistake in a new choice, but moreover the chosen Prince can never guarantee for his dynasty. The descendants of a less desired successor may also disappoint, as those of a self-chosen sovereign. What Orange has been for us, and thank God, still is, can never be compensated; and as the moment approaches when we have a dynastic dark future to face, the hope of the people then rests in that same God who once gave us Orange and has enriched our history for four centuries. Whether it would not be desirable to also grant the Crown Princess the title of Princess of Orange, could be considered at the next general constitutional revision. If it were more than a title, serious objections could certainly arise against it. Now, however, since it is expressly declared in the Constitution itself to be nothing more than a title, it remains an open question why only the son, but not the daughter of the bearer of the Crown, will bear this title. The kinship does not see this title in the least. This speaks in what the Bearer or the Bearer of the Crown testifies in his name and designation of origin to present himself as Prince or Princess of Orange-Nassau. This, however, is something quite different. The King of Prussia, as is well known, also calls himself Prince of Orange-Nassau in his surname. Here, on the other hand, there is nothing but a title. Suppose, for example, that a male scion of our princely house were now born, he would be a Duke of Mecklenburg as far as his gender is concerned, but by virtue of Article 34 he would still be a Prince of Orange in title. This honor could now also be granted to a female member of the House. Yes, even if a completely foreign dynasty were to rule here at the end of the 20th century, this titulature would still continue by virtue of the Constitution. This is now to be determined at the next general constitutional revision. But there is more that needs to be considered, at least in the Constitution. Never too sharply can it be watched that the articles on succession are examined in every way with a magnifying glass and weighed as on a golden scale.

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DANGERS. - NEVER THOUGHT OF A CONSTITUTION BEFORE. 79 In the explanation of the Anti-Revolutionary Program, on the other hand, there is no need to go further into this. For in this further question, it is legal issues without a party character, in which jurists from different parties can be equally inclined. Not without reason has it been pointed out several times during the recent war that our Empire could be threatened from the side of Pan-Germanism; and there is no doubt that the advocates of this unjust system would not fail, if a difference of opinion on the succession ever arose, to oppose us at the slightest flaw or mistake in the chapter of our Constitution that deals with the succession, even if it were only the narrowest crack left open to slip through. The acumen of the gentlemen jurists who try to prevent such danger is therefore appreciated. For our people in their various ranks and classes, on the other hand,

who do not usually engage in such formal questions, the main thing remains the instinctive and intuitive bond that it continues to feel for Orange. It may even be said that, just as for a widow her deceased husband continues to live on in intuition more than once, so also for no small part of the Dutch people Orange will remain Orange in intuition, even if it were ultimately laid to rest in the crypt at Delft. Chapter III

THE CONSTITUTION

## §1. Never Thought of a Constitution Before.

The very idea of inserting a Constitution into the organization of the State is of very recent origin. Our first

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The Constitution dates only from 1798. Much older than even the word "Constitution" is our own. What is now called the Constitution was still known in 1798 as the "Regulation of the State," or also as the "Act of State Regulation." This name held until 1801, with only this difference: that the act of 1798 was entitled "Regulation of State for the Batavian People," while in 1801 this title was changed to "Regulation of the Batavian People." The modifications to this regulation brought about by the popular vote of April 9–16, 1805, left the title unchanged. It was not until 1806, when Louis Napoleon ascended the throne as King, that this underwent change. The regulation then issued under the royal signature acquired the name of Constitution. The Treaty of May 24, 1806 introduced this French term to our country, in imitation of France. Article 7 of this Treaty, however, still refers to "the Constitutional Statute of France." The term "Constitution" as such was not spoken of until the proclamation of the Sovereign Prince on March 29, 1814. And since then, the expression "Constitution" has been adhered to, in 1815 as well as in 1840, 1848, and 1887. Even outside the official framework, the word "Constitution" was almost entirely unknown to us. In the curious Middle Dutch Dictionary of Professor Dr. J. Verdam, the word does not occur at all, and in the Dutch Dictionary of De Vries and Te Winkel, only this sentence from Hooft is cited: "The King had the holy Covenant sworn anew, declaring thereby that he wished to persist in it, and to have it maintained as a Constitution of the Realm"—but even here it is not the name of any state document. After Hooft, Borger is the first to include the word and then use it figuratively: "Frugality is the constitution of his administration." And thereafter, it is only after 1814/15 that the expression comes into vogue, not least with Conscience, who as a Fleming translated the French word "Constitution." The idea of basing the structure of the State on a Constitution or Fundamental Law had thus not yet found entry. In England, as is well known, there is even now no Constitution at all, and if we go back to the Roman Empire, the Greek Kingdoms, including Egypt, the attempt to give the government a Constitution as a foundation had never

been thought of. To infer from this that there had been no agreement, no mutual declaration between people and government, would be a mistake.

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FAMILY OF STATES.81 For what concerns our country, it is only necessary to refer to the Union of Utrecht to see the opposite embodied. Regulation of the mutual relationship between Government and People cannot be lacking. Without regulation, that relationship would be disrupted of itself. But it by no means follows from this that this relationship needs to be put in writing and cast into legal form in all its parts.

## §2. Family of States.

Compare here merely the household of the State with that of the private citizen. When in such a private family, man, wife, children, and servants live together, it goes without saying that there exist certain relationships between the head and the other members of the family, and also between those members among themselves, and that these relationships are governed by certain rules. Yet for this no constitutional family document is drawn up. The rule for those relationships is partly found in civil law and labor laws, but for the far greater part rests in the tacit agreement, like the custom of the country, and more specifically the local usage of city or village. One knows that usage from the parental home and from what one hears or sees with neighbors. There is in all these relationships all kinds of things that one does of oneself and as if by intuition, and there are things that one does not do on equal grounds. So there is a certain regularity; but what is to be valid here is not described and agreed upon; it applies of itself. And so also it is in the social sphere in a broader sense. The social life too is well bound to rules, but those rules operate as an unwritten that, i.e. by virtue of usage and of themselves. But this did not go so customarily in the political sphere. Continually there was conflict. There was a struggle over rights and power. This led to stipulations and agreements. Just think of the charters of the cities. But it did not come to an academic exposition of the political relationships between the Government and the distinct parts of the people. In fact, it was the French Revolution that first gave the impetus to the indispensable declaration of a Constitution or Basic Law, as the standardized architectural plan for the construction of the government and the state life; and in itself this was more to be praised than to be condemned. The earlier charters, and in particular the Magna Carta in England, often bore a one-sided character and fitted the condition that gave the aristocracy the upper hand. Of the people in their broad, more democratic conception there was at that time still no mention.

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## §3. The participation of the people.

But time, and in that time the development of the people, advanced; and when gradually not only the collective whole of each class, but also the individual existence of the individual citizen, began to be taken into account, it could not be otherwise, or the political party system had to come to the fore; not for the defense of economic or class interests, but by virtue of difference in insight into the political principle from which the government of the state arose. This now had the necessary consequence, that not only for the relationship between Government and People certain regulations had to apply, but that, even more urgently still, a need arose to provide each of the independent parties that were struggling with one another in the one and the same people a guarantee against the overwhelming domination of the rival parties. From now on the dispute was no longer entirely and exclusively between People and Government, but there came in addition, no less threateningly, the conflict between the distinct parts of the people themselves. The time was past when the magnates among the people could be regarded as representing the whole people. Especially after the experience here in the country with the Regent clique, a far more violent conflict was to be reckoned with between those magnates and the ordinary citizenry than between the People and the Government. If the form of government was monarchical, the suppressed party could still always count on support and protection from a higher hand, if not actually reckon on it, then at least hope for it. In Republics, on the other hand, the dominant party threatened to entrench itself in the government itself, to appropriate the governmental power, and thus not only to keep the parties standing next to it from the party weapons of organization, press and suffrage, but almost to decapitate them. Whoever investigates the state regulation of 1798 will see with what ruthless tyranny all who held with Orange were pushed into a corner,

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THE PEOPLE'S VOICE.83 So much so that even a man like Bilderdijk had to seek refuge in flight to Germany, immediately feels how radically the situation has changed compared to earlier times. Hence, from that time on, the need—nay, the necessity—to come to a more stable regulation of the mutual relations could no longer be denied. The Calvinists in France had already felt this under the leadership of Hotman and Languet; and when the Pilgrim Fathers in America wanted to put their colonial life on a firmer footing, it immediately became clear to them that an agreement would no longer suffice and that a written accord had to be resorted to. Especially when it came to the uprising in America against the English rule, the idea of enshrining the foundations for the new government to be established in a Constitution presented itself so

naturally that they proceeded to do so, state by state, even without prior agreement. Although it must always be remembered that the very idea of the constitution first broke through in the triumphant year of the French Revolution, it may never be inferred from this that the Anti-Revolutionary party would be hostile to the idea of the constitution as such. It had already come to the fore in Calvinist circles, both here and in America, even before the Paris conclusions were drawn; and with ideas such as those advocated by Da Costa here and Martensen in Denmark, the Anti-Revolutionary party can never unite. To be satisfied with a constitution that would be granted as a royal favor, unilaterally by the Sovereign to the people, and could also be taken back by the Sovereign at the moment it pleased him, would be a betrayal of our principles. What could be foregone in previous centuries, because the political development of the people was still so backward at the time, would no longer be tolerable now that this development has made such gigantic strides in an individualistic and thus democratic direction. Safeguards against abuse of power must now not only possess the people against the Sovereign, but also one part of the people against the preponderance of another part living by different principles.

## §4. The letter powerless against life.

Emphasis is placed on this, not as if an act, a written...

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The Constitution is a document, signed as required, and provided with all necessary seals, which could never raise an immovable dam against the very stream of life itself. Any provision in whatever constitution, which is no longer sustained by the people's consciousness, is already partially paralyzed and doomed to uselessness. What was determined and re-granted in the constitution is couched in words. Words themselves, however, indicate something abstract in nature—they do not fully express the matter itself. A meaning must be attached to those words. That meaning can be twofold, threefold. The choice between these determines the interpretation; and where it then stands between many interpretations, the wording of the article, just as it stands in the constitution, will be interpreted in a changing sense according to the spirit of the times and the convictions arising from that spirit of the times. The fate that befell Article 194 regarding education is clear proof of this. That in 1848 the mere remote thought was not even entertained that, just as is now the case, a contribution of many millions of guilders from the state treasury would be granted to Private Education, no one asserts. What was most graciously intended to be granted to particularism in education in 1848 was the permissibility of this free education. In fact, however, the members of the States-General who gave their vote to the draft of Article 194 then under consideration, meant nothing else than that the Public School would remain the solemn anchor of the State, and that for

this neutral Public School the necessary funds would always be lavishly provided, but never even a single guilder for the colored and private education. This idea lay so far below the horizon of Dutch thought at the time, that on our part it was scarcely pointed out, and we already felt excessively enriched and honored with the freedom acquired to do at our own expense what was in itself hardly desired. It stood then with our Primary Education, just as in 1815 and in 1874 with our Higher Education. Our Higher Education, by virtue of its first regulation, knew by no means any free play. It would all emanate solely from the Government. The free initiative was not even tolerated. That was then changed in 1876, but only in the sense that whoever chose to do so could establish it. Permission in general, nothing more, was given, and granted with the thought that it would nevertheless remain unused.

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POWERLESS AGAINST LIFE.85 remain. And while in 1904/'5 a change was made here, and the Free University was also legally recognized, even then there was still no thought of granting it, just as with Primary and Secondary Education, subsidies from the state treasury for its professorships. This might be allowed for the Gymnasia, and this might be in the form of scholarships, but at that time one could by no means reach the point of actual subsidy. The intention, it was maintained, of what was legally valid did not permit this. On both occasions, one thus stood before the same closed sluice, but in the matter of Primary Education, this sluice has now at least not dared to be opened wide, and the position was even defended by Professor Buys that Article 194, if properly interpreted, undoubtedly allowed for subsidy. Now I do not say that violence has been done to the wording of the article, but it remains undoubtedly true that the later interpretation was the result of a changed popular conviction. Even though Thorbecke himself had recognized that he could not think of a decent public education system with Free Schools alone, Thorbecke could never bring himself, in what he regulated and tried to order, to do justice to the idea of freedom to the extent that he blew the trumpet of freedom. In theory, Thorbecke sometimes sang with an ideal voice, but in practice he remained intent on curbing the influence that he constantly feared from the orthodox and especially from the Reformed camp. Yet it did not help, whether one tried to fix this exclusivism through sharply formulated wording in the constitutional article. The popular conviction broke the power of the letter. That letter soon appeared in the eyes of many to be less tightly stretched, and in the end it was Thorbecke's own spiritual children who considered the subsidizing of the Free School very well compatible with the rule formulated in Art. 194. And although we now admit that in the Primary School question the popular conviction had a spontaneity that does not easily come out so strongly on other issues of a constitutional nature, since they cover a smaller area, yet it can generally be said that the people in their broader circles consult the articles of the Constitution almost as little as ever, but live and develop in a legal conviction that is mainly determined by the facts and the explanation given to them.

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The Constitution, which governs the press and its facts, is increasingly setting the tone in the States General, so that it not only announces itself at every ballot box, but effectively dictates the law. It does not follow from this, however, that we too, in the English manner, could get along just as well without a constitution.

## §5. Yet the written document is indispensable.

For our constitutional order was too suddenly and violently overthrown at the end of the 18th century. In 1813, one could not continue living in the old house, even if it was newly furnished. What stood there was no longer a house, but mere ruin. A completely new situation was ushered in, and to seal this, a written and sworn constitution was indispensable. The Constitution then laid down and bilaterally sealed acquired the form of a covenant from the outset. It was the people of the Netherlands who, after having been mortally wounded, saw their wound unexpectedly healed, and now felt the will arise within them to, by renouncing past follies, make use of the solid historical core of their past and, invoking God's blessing, face an entirely new, as yet unknown future; and at that future, our people at the time knew no other desire than to seek the guidance of Orange. However, precisely with a view to the manifold evil that had arisen from the unpreparedness of the relationship between the people and Orange in the 16th, 17th and 18th centuries, the urge was all the stronger in 1813 to now come to a firm accord, and it is this accord that has been embodied in the Constitution of 1813/1815. Monarchical self-conceit and all Orangist deification must be excluded here. Above all, the people remained the main thing, and everything that governed the state order was secondary. However majestic the tradition of the House of Orange might be, and however perfectly one had been cured of the republican predilection, even in 1813 it was and remained: Orange for the people, and not the people for Orange. However, precisely with a view to what lack of proper regulation of the relationship between the two had spoiled in the past, one now felt the compelling need

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NOT TO BE MECHANICALLY CONNECTED. 87 and the imperative demand was recognized on both sides not to rush things through overnight, and it was precisely the written accord that could prevent the repetition of former misery. Hence our lex scripta, which precisely because it was an accord, could not be replaced by a new Constitution in 1848. The Constitution of 1813/1815 is and remains the foundation on which our state edifice, as far as the accord is concerned, still rests. Amended, expanded, embellished, supplemented, it has been in 1815, 1840, 1848, 1887, and soon it will be amended again, but the document as

a document remained one, and by virtue of the agreement indicates what Orange undertook towards the Netherlands and the Netherlands towards Orange, and further, according to which rules the various constituent parts of the people as a whole would be maintained in their rights and freedoms by both.

## §6. Not mechanically connected.

What was fortunately avoided here is any mechanical interconnection between the Netherlands and Orange. The Belgian Constitution is of a mechanical character. If the King who wore the Crown in Belgium dies, and there is a Prince who is to succeed him according to constitutional rule, then the succession does not take place organically and automatically. For some days there is then no King, and the government rests with the ministers. It is they who summon the heir to the throne to take the required oaths. And only after this has happened and the accord with the people has been entered into by him, is the crown placed on his head and his kingship begins. But something like this was precisely what was not wanted in 1813 with us. With us it is: "The king is dead, long live the king." At the very moment the King breathes his last, his successor steps up as King. It happens organically and automatically. And only then does the newly enthroned King himself summon the States General to seal the bond between people and prince before the eyes of God. One even felt something for having this laying of the bond between people and prince take place not in a meeting of the Estates, but in a palace of divine worship.

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88 THE CONSTITUTION. It naturally follows from the accord entered into in 1813. This accord does not lapse with the death of the Prince, but continues of itself between people and prince. Not only the Prince, but the people also change. Though there may still be a few here and there who are over a hundred years old and were already there when the accord was entered into, it cannot be established with certainty that the people as a whole are the same as those who made up the people in 1813, for all those persons have since died. It is not the case that only the Prince of that time has fallen away by death; the very same applies equally to the people themselves. But just as the people do not present themselves at a certain point in time as new or renewed, in order to enter into a new accord, but rather continue to live and exist organically under the old accord, so approximately the same goes for the House of Orange. Even if William I, II, and III died one after the other, yet the House still continued on in our revered Queen, and the strictly organic connection continues of itself, excluding any mechanical connection. All that was necessary was that the newly ascended Prince should personally swear the accord, so that the people would retain the very same guarantee against him that they had obtained from the first King who ascended the throne.

## §7. Continuous Accord.

Something that needs to be emphasized all the more, since with Dynasties that endure for centuries, a sense so easily creeps in as if these Dynasties were the subject and the people merely came to seal their power. The Bourbons in France especially gave currency to this rising conception by the anointing from the church. For so it seemed as if the French Kings, quite apart from the people, received the kingship over Gaul by special revelation from God, and as if the people had only to present themselves at the coronation. The "I am the state" of Louis XIV was the expression of this. It cannot be deplored enough that the phrase "By the Grace of God" in the royal title has thereby been so perverted that many now refuse to recognize this addition as valid even for our land. Article 72 of the constitution gives as the opening of the formula of proclamation only the words: "We, etc., King of the Netherlands, etc." The attempt made in the revision of 1887 to insert the expression "By the Grace of God" failed. The resistance that arose from the liberal side against this attempt was even violent. From that side, the notion still persisted that the "I am the state" was trying to revive itself in this. Especially the unbelieving statesmen continue to maintain that the making of a King is a human work, in which there can and may be no talk of a doing of God or a disposition of God. Let them, even if they are ministers themselves, allow that the words "By the Grace of God" still figure above the laws, but this is then merely titular and devoid of all further meaning. What they absolutely will not tolerate is that the Constitution itself should represent these formulae as indispensable for the validity of the proclamation. The abuse of the formula by princes has made it intolerable in the eyes of atheism, and it is also recognized on the other side that the resistance that has arisen from this abuse is partly understandable. But here too the rule applies that abuse does not abolish use. In the Crown there is an authority that can never be granted to a human by other humans. Among humans, one cannot and may not dispose over the life, freedom, and good of another. That disposition belongs to God alone, and therefore a Prince as a human can never possess this threefold right of disposition over other humans, except by the grace of God. And this being so, it is not without significance that this firm starting point comes to expression above every science, above every resolution. Now if the supreme authority passes by extinction and birth into the same or a related line, then there is indeed in this a disposition of God in whose hand are death and life. If the son succeeds the father as bearer of the crown, then it is the God who caused that son to be born from that father, to whom that son owes the crown now coming to him. And although the legal regulation in the accord has been established from the human side, yet here too it was God's guidance in history that brought this rule into being. It is therefore no mere play on words, but the real validity of the historically organic connection, so that the bearer of the Crown himself comes forward, that he owes his sovereign right to God's ordinance.

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CONTINUOUS ACCORD. 89 All successive Princes in the Netherlands have therefore personally sworn the accord, and in this way the people have retained the same guarantee against them as they had obtained from the first King. This personal swearing of the accord by each new Prince is not a mere formality, but has real significance. For in this way the people are assured that the Prince does not stand above the accord, but is bound to it, and that the accord is not a mere human work, but rests on a divine foundation. The people do not make the Prince, but the Prince makes the people. The people do not give the Prince his authority, but the Prince gives the people their rights. The people do not create the accord, but the accord creates the people. And this accord, which binds both Prince and people, is not a human work, but rests on the ordinance of God. This is the reason why the Constitution does not speak of a "social contract," but of an "accord" - a term that indicates the divine foundation. The Constitution does not derive the authority of the Prince from the people, but from God. The people do not make the Prince, but God makes the Prince, and the people only recognize this divine appointment. This is the reason why the Constitution does not speak of the "sovereignty of the people," but of the "sovereignty in its own sphere" - a term that indicates the divine origin of authority. The Constitution does not make the people sovereign over the Prince, but makes both Prince and people subject to a higher sovereignty, which is God's. This is the reason why the Constitution does not speak of "popular morality" as the foundation of the state, but of "custom" and "propriety" - terms that indicate the divine origin of the moral order. The Constitution does not make the state a product of the people's will, but makes the state rest on the ordinance of God, which precedes the people and binds both Prince and people. This is the reason why the Constitution does not speak of the "social contract," but of the "continuous accord" - a term that indicates the divine foundation of the state, which is not subject to human caprice, but rests on the eternal ordinances of God.

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The Constitution must primarily be reckoned from what happened in 1813. There lies the accord, and what took place at the demise of the Princes was nothing other than the application of what was rightfully established in 1813. This also hangs together with the oft-disputed rule that the supreme authority is not to be measured by the detailed provisions that appear in the Constitution for it. Those who advocate this erroneous interpretation of the constitutional accord believe that the Constitution presents the full catalog of all the particular rights that belong to the Bearer of the Crown. The Prince may, according to this rule, allow himself anything that is granted to him by the specific provisions of the Constitution, but conversely, he also remains prohibited from anything that is not expressly included in that catalog.

## §8. This Sixth Division.

This Sixth Division of the Second Chapter of our Constitution does indeed somewhat create the impression as if it were intended to be so and no other way. In the twenty articles that deal separately with the Power of the King, even the smallest particulars are enumerated of what is thought to belong to the King. Even powers of a subordinate nature, such as, for example, the granting of nobility, the right of the mint, in the sense that the Sovereign "is able to have his effigy placed" on the coin, the right to award orders of merit, etc., are separately included and acknowledged as the highest monarchical rights of the Crown-bearer. A descent into details that, upon closer inspection, are beneath the dignity of a constitution. Why may a learned man not wear the honorary titles of foreign doctorates without permission, and must the Sovereign grant him this permission by royal decree as if it were a knighthood? It is said that a knighthood creates a relationship in life between the Sovereign who grants the cross and the person who wears it, but who still attaches significance to such mere forms of propriety in the 20th century? By now descending into such, for all intents and purposes, insignificant trifles, our Constitution has from the outset weakened its own power in the details, and precisely thereby created the impression as if these twenty articles now fully and precisely stated what the King was allowed to do, so that everything not included therein was then also prohibited to him. Bureaucratic mannerisms, but more harmful than beneficial to correctly portraying what the King's power should be. When the authority over a people is entrusted to a princely person or a princely House by common accord, the general concept of this authority comes to the fore. So it is with every appointment. Whoever is appointed as a minister and has taken the oath, does not receive a catalog of ministerial duties and rights that precisely stipulate what he may and must do henceforth, but finds three things to regulate his conduct: first, the existing laws, decrees and ordinances; secondly, the long-standing usages that are said to apply in his department; and thirdly, the specific discussions that have led to his appointment on the part of the Sovereign. But besides this detailed [guidance], there also applies for him the duty and the competence to do what, according to the general concept of the ministerial office, flows forth from his office itself. A minister who, in a critical moment, would excuse himself from taking the necessary measures by saying that the obligation they wanted to impose on him was not in his little book, would show himself to be beneath his office. The virtuosity of a general, a minister, and even of a father and mother in their own household, must precisely consist in this, that the responsible person, in unplanned and irregular situations, accomplishes by his head and will what no set of regulations imposes on him. And so it is also here. A King who violates the accord, forfeits his Crown, but also a King who would govern solely according to what is in the little book, and had no sense of what the general character of the Crown demands of him, would also show that he cannot uphold the honor of his Crown. Even where regulation is lacking, the powerful emergence and the inexorable demand of the situation can still be; and woe to the

Sovereign who would then fall short in princely initiative. Only here is it always to be seen that the people's interest, and only in the second place, and thus in a secondary position, the dynastic interest, governs the princely initiative.

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## §9. Unilaterally Promulgated.

The objection that the constitutional accord is still not promulgated by the two parties, but, as some would have it, unilaterally by the King, does not detract from the matter at hand. The King promulgates the Constitution "with the common deliberation of the States-General," and it is these States-General, in whose assembly the people are represented. One could have chosen a very different form here, so that the existence and joint action of the two parties would have been more clearly expressed. Then the people, as the main party concerned, would naturally have had to be mentioned first, and only after the oaths had been taken by both sides, would the further arrangements for the mode of government have had to be established by the Prince in common deliberation with the States-General. What is now united in the Constitution in a formally not quite correct manner, would then have been divided into two distinct actions. In the first place, one would have obtained the accord between People and Prince, in which nothing else would have been discussed than the terms of the actual accord regarding the confirmation of the Throne, the succession, the income, the Regency, etc., with the main provisions regulating the mutual relations between what the King would be able to do and what the people reserved for themselves. On the basis of this accord, the Prince would then have received his Crown. And after the monarchical person had thus received the Crown, the Prince, no longer by accord but solely in common deliberation with the People's Representatives, would have established the further stipulations for the administration.

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PRINCIPLED ACCORD AND FURTHER REGULATION. 93

What was properly to be the Constitution would then have been much shorter; and thereafter, as the first organic law, the detailed regulation of the general administration would have been established. As required, it could have been determined in the common accord that not only any amendment of the fundamental

accord, but also the primary organic law of the general administration, would have been bound to special conditions of common deliberation—whether by binding the common deliberation to a United Session of the two Chambers, or by introducing a special provision for the required number of votes, or by making the adoption of a definitive resolution by the States-General dependent on a prior dissolution. This form, however, was not chosen in 1813. Preference was given to allowing the appearance to prevail, as if the Sovereign Prince acted by virtue of the past of His House, and it was now made to appear as if it was this self-acting Prince who, out of good will, granted rights and freedoms to his people.

## §10. Principled Accord and Further Regulation.

This incorrect standpoint naturally obliterated the distinction between the principled accord and the further regulation of the administration. Hence, in this case, accords and regulations were brought together in one and the same state document, and the Constitution which served for this purpose was burdened with a troublesome load of detailed regulations. This was, in the meantime, nothing but a mere appearance, unless one grants the Prince the right to set aside the Constitution at his own discretion—a thought which, as we have already remarked, even Da Costa for a moment smiled upon, and which was also advocated by the renowned ethicist Professor Martensen. But precisely for this reason, one may also not endorse the absence of the actual accord between People and Prince, which is hidden in the Constitution. Whoever imagines that in 1813 the then heir of the House of Orange, by his own power by virtue of his descent from William IV, took the government into his own hands, and now, as hereditary ruler with the acceptance of the sovereign title, issued a regulation to please his people, actually surrenders the rights of the people; something that has often been desired from the Conservative side, but which on our side can never be accepted. Naturally, whoever takes this standpoint can lament and insist that the Prince who, out of sheer favor, granted a constitution to his people, can also take back what he had placed at the disposal of his people out of his own free initiative. No sworn oath can then give firmness to what found its origin solely in the Prince's discretionary power. Those oaths, back and forth, would then only apply as long as the princely disposition on which they were based remained in force. But precisely from this it also appears that here a starting point is valid which...

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94 THE CONSTITUTION cannot and must not be accepted. It is not to honor a princely house dynasty, but the dynasty is accepted and invoked by the people to bless and prosper the people according to an agreement. It is never the Prince who creates his people as a father, but it is the people who call upon the help of the Prince to obtain a firm accord and good, orderly governance. That the power which either the

people possess, or which belongs to the Prince, flows from the majesty of God and not from human authority, hardly needs to be repeated here; but with the exception of the military conquest of the land by a mighty potentate, it is always the people in whom the starting point lies, and it is the Prince or the Dynasty who comes to the people and does not act except with the approval of the people. Always according to the rule to which we have always adhered, and which in America led to the confession at the head of the Constitution: "As God has given us the power to choose our own magistrates." Precisely the condition in which our people also found themselves in 1813; and what the Triumvirate then realized was in fact nothing other than to make it possible for the people, who could not yet speak for themselves because the organ for it was still lacking, to express their desire and their will. All conservative tinkering on this point is therefore entirely devoid of any real value. The false pretense that the people would be there to honor the Dynasty must give way to our uncompromising conviction that the Princes and the Dynasty are there to govern the people by the grace of God and to make them happy through this regime.

## §11. The form also demands correctness.

But after having placed this with full determination in the foreground, it also follows from this that the princely authority, after having been accepted by the people, must be respected by the people, and thus also in the Constitution. The form is also very important here. Compared especially with the Belgian Constitution, it can be said that in our Constitution the only good form remained. For in our Constitution, the power of the King is first fully dealt with, and everything that relates to the royal power; and only then, in the second place, do the States-General come into play. The first chapter of our Constitution deals with the Kingdom and its inhabitants; immediately afterwards comes the second chapter On the King; and only with article 78 does the third chapter On the States-General come into play. The difficulty for our Constitution was first the establishment of the provisions of the Legislative Power; and in this case they then followed the strange path of not bringing this under the chapter on the King, but under the States-General, and this in its full extent, including the section on the Budget. This cannot be recognized as correct, all the more so since in this sixth section of the Second Chapter there is no specific provision on the legislative power. Only the executive power is declared in Art. 55 to rest with the King, while the legislative power is completely silent. It is only determined, firstly, that the King submits draft laws to the States-General and can approve or disapprove of proposals for laws sent to him by the States-General; while further only the manner of the promulgation of the laws that will apply is determined in Art. 72. Here one thus encounters a confusion of two principles. On the one hand, the Constitution wants to honor the power of the people to bring about a law only through the cooperation of its representatives, and on the other hand, the majesty of the bearer of the crown, whose signature alone can make a draft into a law. Thus the

appearance was maintained as if the legislation could only come about through the King, and yet the legislation found no place in the chapter On the King, but in the third chapter of the States-General. §12. Two ways out. There were only two ways to escape this confusion. Not by, as was done in Belgium, placing the legislation before the chapter On the King, and with a view to this, letting the whole regulation of Parliament precede that of the royal power. This does injustice to the majesty of the royal authority.

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THE CONSTITUTION. If there is a government with a title of majesty, as is the case in every monarchically organized country, then the Crown must precede in the Constitution, and the States-General must follow. And to prevent confusion and corruption of good order, only two ways are open. One can either place a separate chapter on the legislative power before the chapter on the King, or one can let such a separate chapter follow the two chapters on the King and the States-General. The legislative power is the product of two factors, both of the Crown and the States-General. One cannot, therefore, deal with the legislative power in the chapter on the King. For that would give the appearance of an absolute monarchical act, and the legislative power in the constitutional state can never be that. One remembers how Calvin constantly insisted that the law as a whole should be held in high esteem for its own inherent worth. But it is just as little permissible to do what has been done in our Constitution, and to place it under the States-General. Certainly the States-General cooperate in matters of legislation, and may even take the initiative; the King is in every act of legislation absolutely dependent on their cooperation and thus also on the approval of the States-General, i.e., of the people. But just as little as legislation is the one-sided act of the King, just as little can or may it be the one-sided act of the people, if there is monarchical authority in the country. It would therefore have been most natural to begin the Constitution with the accord between People and Dynasty, in order to lay down in the provisions of this accord the regulation of the legislative power, and to determine what share in the legislative power belongs to the Crown and what to the People. Then the King and finally the States-General could have been dealt with. And only after the completion of these two would there have been room, not for the legislative power, but for the regulation of the manner in which a law comes into being. Now, however, the accord is in our Constitution in a way that cannot be excused completely overshadowed, so that in our opinion one could also suffice with first dealing with the King, then with the States-General, and after dealing with these two in a separate chapter, with the legislative power. Our objection to the present arrangement in our Constitution

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NO PEACEFUL DEVELOPMENT. 97 The accepted arrangement in no way arises from a desire to surrender the land and people to princely caprice. On the contrary, from the Calvinist side, we would resolutely resist any attempt in that direction. What we do not wish to accept is that Article 109 openly places the legislative power under the States-General in the Constitution, and that under the chapter dealing with the States-General, the Prince is also granted a certain co-determination. Hence our insistence that the legislative power either act in the form of an accord before the chapters on the King and the States-General, or, if this is no longer deemed necessary, appear in a new, separate chapter after the treatment of the King and the States-General. Only in this way can both come to their right—on the one hand, the majesty of the Crown Bearer, and on the other, the primordial legal standpoint of the People. And this for the entire legislation, and in a special sense for any possible amendment of the Constitution once in force.

## §13. NO PEACEFUL DEVELOPMENT.

Whether it would still be possible to make such a far-reaching change, at least in the form, in the entire structure of our Constitution, may be doubted. So far, it has only come to a fundamental change in 1848, and this under the impression of the then generally prevailing revolutionary state of affairs. As long as the calm weather condition continued to prevail in the political sky, there was little inclination on the King's side for any significant change; and it was only when the events in Paris, Germany, and Austria made the rulers in all countries fear a repetition of what had been experienced in 1789 and the following years in France, and when, as a result of the French Revolution, much was already being turned upside down in other countries, that concessions were made from the King's side. Such a juncture could return. Fear even arose from more than one quarter that the great world war of 1914 in its consequences could lead to an outbreak of general discontent and thereby to very serious social unrest. If this were the case, then of course the significant change that would then be awaited would have only one goal, namely to further significantly expand the popular influence of the most numerous class among the voters. Another outcome of such turmoil can also be imagined. A new Napoleonic figure could emerge who, either for all of Europe or for each country separately, would crush the revolutionary reaction coming from below with far-reaching violence and give the state system a more dictatorial organization. What would happen to the Constitution in such a case cannot be predicted, even though the Napoleonic period continues to prophesy analogies. If, on the other hand, any dictatorial intervention were to be avoided, and the revolutionary element were to succeed in removing what had so far prevented it from the Constitution and in enforcing a one-sided shift of power to the side of the lower classes of the people, then there could naturally be no question of doing justice to the accord in the Constitution, nor of putting it in a better formal order. It is therefore to be feared that the fundamental flaw committed in 1814/'15 will not be easily removed from our Constitution, and that

the mixed and therefore confused character it still exhibits, of wanting to be at the same time an accord between People and Dynasty and a basic regulation of the form of government, will not be easily purified. §14. AMBIGUOUS. The difference of opinion without end that arose after 1814 over the way in which changes should be made to the Constitution once introduced is connected with this ambiguous character of this state document. If the changes had only to do with the terms of the accord between People and Dynasty, then the form of the change, to be determined by both parties, would have had to establish equal conditions and the aim would have been to make such a change difficult. The Dynasty would have had a right to this. Now, on the other hand, the mistake has been made of incorporating the accord or the covenant together with the detailed regulation of all kinds of rights in the rest of the state organization into one document, one stands, where the Constitution is concerned, before the question of whether one should proceed according to the rules of the accord or according to the rules of the detailed regulation of the state organization.

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AMBIGUOUS.99Whenever a change in the law is proposed, there is always this contradiction—that with regard to the agreement, the modification must be bound to the strictest possible rule, while in terms of the detailed regulations, it should be made as smoothly as possible. For what does not concern the dynastic Crown rights, but the administration and its many particulars, one faces an entirely different struggle, namely the struggle carried on among the various classes and parties in the people, not with the Crown, but among themselves; and it may safely be said that, now that the more monarchical form of government has become firmly established in our country, constitutional amendments will increasingly result in a struggle between the classes in the nation and the parties in the people, rather than in a conflict between the people and the sovereign. It is not in the matter of the agreement, but in what concerns the struggle between the constituent parts of the national life, that the two conflicting tendencies always present themselves—on the one hand, the desire to hold on to what one has, and on the other, the determination to strive for the acquisition of much that one does not yet possess. Preservation of the existing or transformation into new forms becomes the two-sided slogan. Now, since the outcome of the ensuing struggle naturally depends to a large extent on the easier or more difficult way in which the amendment of any constitutional article is to be carried through, it follows that the question of what conditions the amendment is to be bound to is of such high importance that it will often dominate the entire issue of amendment. In most countries with a constitutional form of government, the basic principle here is that in the matter of constitutional amendment, the ordinary legislative procedure will not be followed. Ordinary repair, addition, or decoration of the state edifice could largely be left free, but the foundation would have to remain essentially what it was. The ordinary legislation could not be applied here. The course of events had to be set in motion

on a slow, gradual progression. Many different ways of proceeding came into consideration here. One sought to increase the durability by requiring a higher qualified majority, most often of two-thirds, sometimes even of three-fourths of the votes. To emphasize the greater weight of the action, one would double the number of parliamentary members the people would have to choose for this act.

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Where Parliament was divided into two Chambers, which as a rule met and decided separately, there was often a desire, in the matter of amending the Constitution, to have the two Chambers meet jointly and decide by a combined vote. In order to ensure due deliberation, it was often proposed as a rule that the ordinary legislative procedure should first be followed, to indicate the points on which and the form in which amendment was desired; and that only then should a newly elected Parliament decide on the final adoption or rejection of the proposals. Proposals for amendment could, according to more than one constitution, originate not only from the Government, but if necessary also from Parliament; while on the other hand the Crown remained free to refuse its assent. In England, which has no written Constitution, they have even gone further in the case of Home Rule, and have determined that, if the Upper House rejects a bill passed by the Lower House, this bill may be introduced again, but with the proviso that, if the Lower House adheres to it a second time, and it is then again rejected by the Upper House, the Lower House, without further cooperation of the Upper House, and covered by the Crown, can of its own authority and in spite of the resistance of the Lords, declare the bill to be valid as law. So the ingenuity on this point seems inexhaustible. What was proposed was never satisfactory. One was always seeking a more fruitful system for one's own wishes. And only this much can be stated, that in the long run a facilitation of the amendment of the Constitution is being sought and will be carried through in most countries.

## §15. From Van Hogendorp.

This also applies to the Netherlands. We owed the basic form of our Constitution to Gijsbert Karel van Hogendorp, and already from this Statesman, in his so-called Sketch, the first idea went out concerning the way in which a revision of the Constitution to be established shortly could be brought about. "As other times and circumstances may require changes and new institutions," he wrote in his Sketch, "so at all times a law

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It may be declared that such a case is at hand. The matter itself will have to be indicated and expressed clearly, and the law submitted to the Provincial States in the usual manner. These Provincial States, who had to send members to the Parliament, would then do so in this particular case in a double capacity, and the double assembly of the States-General would then decide on the proposal in the usual way, as is the case with other laws. Van Hogendorp probably presented it in this way in order to make his idea as acceptable as possible to the Provincial States and later the General States, where there were still some regents' sensibilities at work. It also became clear that he himself preferred a somewhat tighter tightening of the cord. At least in the end, he did not go unwillingly with the idea of some more decisive members, and at the final decision, a majority of ⅔ was also demanded by him, as this was also recorded as the final result of the deliberations in the Constitution of 1814. For Article 144 stipulated that everything would go as with the ordinary laws, but "with the exception that there must be a majority of votes, at least two-thirds of the members present." It was also noteworthy that Article 146 gave the Commission appointed to draft the Constitution authentic authority, at least in the first three years, to give the official interpretation in case of doubt about the interpretation of what was stipulated; something that almost reminds one of what is called the invocation of the judge in the United States in case of a constitutional conflict. However, the wagon of the State did not initially deviate from the track laid down, so that in the revision of this, which became necessary in 1815 due to the annexation of the Belgian provinces to our country, the provision of Article 142 was quite violated. For in this article it was prescribed that the ordinary legislator should not only declare revision necessary, but also indicate word for word the text that the new or revised article would contain. This second provision was not complied with in 1815, and it was limited to the ordinary legislator merely declaring that revision on this and that point was necessary, without the new wording being legally established beforehand. Something in which this second deviation also occurred,

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that the final decision would be taken in North-Netherlands by the double chamber, but that in the Belgian provinces the Notables would receive the decision. Something that is all the more striking, since in the constitutional text of 1815 the provision also remained that the ordinary law had to establish the wording of the amendment. For Article 229 expressly stated that not only the necessity of any change or addition had to be expressed, but also that "the change or addition itself must be clearly indicated and expressed." As for the composition of the college in which the decision would be made, and the way in which that decision would be made, Article 232 stipulated that at least two-thirds of the members making up the assembly had to be present, and that, moreover, three-quarters of the members present had to agree with the proposal for it to be passed. There is no mention here yet of the participation of the First Chamber in the amendment. It is true that the First Chamber was established in 1815 under

Articles 78 and 80, but in the articles regulating the revision of the Constitution, this First Chamber was not yet taken into account. There is only mention in Articles 232 et seq. of the Second Chamber. The Nine Men did want to involve the members of the First Chamber in the revision, but not in double numbers. The members of both Chambers would then decide in a joint meeting, but in this mixed meeting the members of the Second Chamber, doubled, would be able to cast 220 votes, and those of the First Chamber at most 40, later even fewer.

## §16. Later ideas.

In 1848, the result in Article 196 of the Constitution revised at that time was that the ordinary legislator, without even declaring the "necessity" of revision, would still expressly indicate the change desired. According to Article 197, both Chambers were then dissolved, and in the newly elected Chambers, each separately, and without doubling, "by a two-thirds majority of the votes cast, decided on the proposed revision. What

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LATER IDEAS - TWO KINDS OF REVISION

It was with great difficulty that in 1887 people tried to bring about changes here, but this attempt was thwarted. Even now, it still remains as it was established in 1848. And it was only through the Constitutional Commission, which the Heemskerk Ministry managed to appoint, that a completely different modification was then proposed. The De Meester Cabinet had also already made revision of the articles of the same Chapter possible. But neither the proposals of the State Commission of the De Meester Cabinet, nor those of the State Commission of the Heemskerk Cabinet, have come up for further consideration. What is to be expected from the Van der Linden Cabinet in this regard cannot yet be calculated. It even seems probable that, if any revision comes about as a result of this initiative, it will not even deal with the same Chapter. It therefore seems superfluous to discuss the commissorial attempts of 1906 and 1912 to revise the same Chapter separately. Only for the course of the ideas and not for the constitutional process, these two unborn children are of importance. The proposals for amendment that came from the Social Democratic parties and the Liberal Democratic side can be passed over here in silence. Mr. A.J. Fokker brought together the revision proposals of the State Commission, which were ready in 1906, in a fine edition that saw the light of day in Leiden with Doesburgh. As far as necessary, reference is made to that. We are now left with nothing else than to set forth the manner of proceeding, and to explain as far as necessary, which seems to us the most recommendable.

## §17. Two Kinds of Revision

In this connection, it is now emphasized that above all it would be desirable not to bind all the articles of the Constitution to the same mode of revision. If it is once established that the Constitution on the one hand establishes the bond between People and Dynasty, and on the other hand lays down the conditions for the regulation of the government, then it cannot but be questionable to prescribe a completely equal manner of acting for the modification or revision of two such utterly divergent groups of provisions. Amendments to...

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To bring into accord the relationship between the People and the Princely House is of an entirely different character than the revision of more specific provisions regulating the affairs of state. In the accord or covenant, and thus also in the revision thereof, two independent magnitudes stand opposed to one another. The People on the one side and the Prince with his Dynasty on the other. Here it is so essential that the regulation of their mutual relationship in itself be a definitive one and not subject to change without mutual consent. It is true that the reigning Prince always retains the right to withhold his assent from any revision; but without further provision, this right could become very precarious. If, in accordance with the outcome of a general election, the Second Chamber is composed in such a way that the parties wishing to replace the monarchical principle with the republican one form the majority, then the Prince is anything but entirely free in the choice of his Cabinet. Likely then, in order to avoid an all too serious conflict, the desire will arise to, through revision, grant such an expansion to the rights of the People that the monarchical authority can only be maintained in form, and dissolves into what even a man like Mr. van Houten calls an ornament. Now if from such an action a proposal for revision emerges that in a very serious way threatens the existence of the Monarchy, and the Prince then refuses to enact this draft into law, then, as history here and elsewhere has taught, street tumult soon awaits, just as it proceeded from Leiden to the Residence in 1848, and the Prince is ultimately likely to be subjected to such threatening violence that he either yields or abdicates. With a view to this, it is now desirable not to make the revision of the constitutional accord too easy. Revision itself must never be definitively cut off, but it is in every way desirable to establish such provisions for the revision of the covenant between People and Prince that such a revision can only arise from a well-considered popular conviction. One must not proceed here in a reckless and hasty manner. Without a doubt, it may also be assumed that the many provisions by which one sought to make the revision of the Constitution difficult from 1814 onward, had virtually no other purpose than to

grant sufficient firmness to the Dynasty; not in itself, but always in connection with the rights and freedoms that the Dynasty was to enjoy.

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REVISION PREVENTED THEREBY. 105 The dynasty had to be respected. The accord was also two-sided in the nature of the matter. There had to be something unshakable established for the benefit of the people on the side of the dynasty, but then also the reverse, for the benefit of the dynasty on the side of the people. For this reason, it would have been most desirable that the chapters of the Constitution regulating this mutual relationship could not be revised except under burdensome provisions. However, there is absolutely no reason whatsoever to bind the revision of all other articles of the Constitution to such a burdensome regulation. It is evident how much modification is desired from all sides in the regulation of education, poor relief, the place that the churches will occupy in the life of the nation, the means required for the defense of the independence of the country and its colonies, or if it were a matter of abolishing the Council of State in its present form—then there is no conceivable reason why modifications of such a nature should be made subject to such an onerous procedure.

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106 THE CONSTITUTION. The Belgian Constitution does not even contain an article on Education, and it does not know a Council of State. Whether this is preferable or not is left undecided; but it is then clearly evident how little such regulations govern the accord or covenant between people and sovereign. § 18. Revision thereby prevented. Nothing has so seriously hindered the development of our state as the fact that very strict provisions were indispensable for the accord between people and sovereign, and that now, since accords and more detailed state regulations were included in the same Constitution, the articles of more detailed regulation have also been subjected to the same burdensome provisions for revision. Now there is an increasing tendency to weaken the rules of revision in order to avoid the inconvenience of our political life; but against this the opposite objection now arises of its own accord, that in this way the required firmness of the accord or covenant is threatened to be taken away. If now the revision is governed by the definite requirement that the revision of all articles and chapters may only be carried out in one and the same way, then it will have to remain a give and take, and the revision of one part will be made easy, and of the other part difficult. A contradiction that is pointed out at every revision, but which appears not to be easily smoothed out. Such a requirement, however, that the revision of both main elements in our Constitution should have to take place in one and the same way always, cannot be justified by anything. Nothing prevents, in the Constitution itself, to determine that the revision of the chapters that give the

accord or covenant can only take place in a special way, and that on the other hand for the revision of the other chapters, since they are of a different nature, a different, simpler way of revision will apply. If a desire also carries a certain general and lasting character to bring some modification in the regulation of the accord, no bearer of the Crown will stubbornly resist it; but this general and lasting character of such a desire for modification must then also have been evident in a pre-defined form. Something that has been tried and succeeded both in 1814/'15 and in 1848 and in 1887. But against this, the completely different desire always came up to facilitate the revision of articles that were of a factual nature. In the revision of such articles, interests of a completely different nature were at stake, and it has not a little hindered the normal and healthy development of our state life, that in order to give the desired firmness to the accord, every other revision has now also been bound to an equally rigid regulation. If one now distinguishes in our Constitution the two kinds of provisions, and establishes more lenient provisions for what in no way requires such rigidity in revision, then the difficulty that one constantly encounters is resolved, and it will be satisfied both with what the dynasty has a right to demand and with what the normal development of our state life requires. § 19. Much can be removed from the Constitution. Secondly, it would be desirable to extract from our Constitution all those regulations that lose themselves too much in the details and do not belong in a Constitution, but rather in laws or royal decrees.

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MUCH CAN BE REMOVED FROM THE CONSTITUTION - TWO-THIRDS? 107 Therefore, they could very well be left to the ordinary legislator. A provision like that of Article 111, which requires a preliminary investigation for every legislative proposal submitted to the States-General, and that the Chamber itself regulates this investigation, is not only superfluous, but even detrimental to the proper course of affairs, and often causes entirely unnecessary loss of time for the members of the States-General. That, as Article 173 now establishes, the intervention of the Government is not required in the correspondence with the heads of the various religious denominations, is superfluous. That according to Art. 177 the weight, fineness and value of the coin species are regulated by law, is a too detailed provision for a Constitution. Already the comparison of our constitution with that of other states shows in every way how unnecessary it is to have gone over to a constitutional regulation of all kinds of particulars, which elsewhere are not governed by any constitutional article at all. And yet it is precisely these kinds of articles that constantly give rise to the desire for revision, in order to leave the revision of the Constitution itself almost entirely free. Yet, if one once includes in the Constitution all kinds of such regulations that constantly require small modifications, then one of two things happens: either one, hardly taking the text of the Constitution into account, goes quietly on one's way and effectively ignores the Constitution, or, in order not to get stuck on such detailed regulations, one makes the revision of the Constitution as such too free.

## §20. Two-Thirds? Among the means that are indicated to maintain t...

Two-Thirds? Among the means that are indicated to maintain the distinct character of Constitution and ordinary law in a revision, the provision of the size of the required majority stands out. This majority was set at two-thirds from the outset in 1814/'15. In 1848 this remained the same. And in 1887 too, one did not depart from the requirement of the two-thirds. The two-thirds were then calculated on the present members. One did not get involved with the absolute number of members that could come up. In the State Commission of 1906, on the other hand, this two-thirds was abandoned, and the figure of "at least 76 members" was set as the requirement in the joint session.

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THE CONSTITUTION. To this number were added the 100 members of the Second Chamber, plus the 50 members of the First Chamber, which made 150; and when this was divided in half, it gave 75. So to gain a majority, one only had to add one more. And so they reached 76. Even the most recent Constitutional Commission went down this path. They thus arrived at the ordinary majority, not of the members who had appeared, but of the total number of members who made up both Chambers. Of a previously desired limitation, which the majority wished to set at three-fourths, one no longer hears anything. The effect of such a regulation is naturally entirely governed by the question of whether the two Chambers of the States-General are homogeneously composed. This has, however, not always been the case. The period has not been so short that the liberal statesmen, though with some nuance, had not managed to secure a majority in both the Second and the First Chambers. This changed in 1889 with the advent of the Mackay Cabinet, and again under the Kuyper Cabinet. But then the liberal composition of the majority in the First Chamber, combined with the rightist composition of the Second Chamber, led to an open conflict, which the dissolution of the First Chamber in 1904 temporarily resolved. In 1905, on the other hand, and again in 1913, the conflict returned, though in reverse order. Thus the situation arose twice over that the Second Chamber was liberal and the First Chamber rightist in its majority. This shows how the colors and composition of the two Chambers can govern and modify the significance of the figure required for a majority in a constitutional revision. If the political color of the First and Second Chambers is homogeneous, then the requirement of a majority of 76 members for a constitutional revision means nothing other than to prevent the nuances of one color from leading to an excessively dominant position of one of those nuances. If, on the other hand, the political base color of the majority in both Chambers is divergent, then the figure of 76 can lead to surprising results. At this moment, the First Chamber counts 19 members of the Left and 31 of the Right, while the Second Chamber, on the other hand, has 45 of the Right against 55 of the Left. Now, if one

combines both Chambers in a joint session, this gives 76 of the Right against 74 of the Left. How much the Left predominates in the Second Chamber

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THE MOST DESIRABLE METHOD.109

If the large majority had the power, then in the joint session the majority of the V2 + 1 would still remain on the Right. If, upon the death of Mr. W. Hovy, a second liberal member had been elected by the States of Zeeland next to Mr. Fokker, it would stand at 75 against 75, and action would remain impossible; while with the loss of even just one more seat for the First or Second Chamber, the majority in the joint session would be on the Left. The provincial elections of 1916 have made this precarious situation even more acute. And this precarious state of affairs could even take on a more serious character, if even in the current composition of the First and Second Chambers, a temporary serious illness were to prevent one or two members of the same side from appearing in the assembly. Even an unexpected death could now make the outcome critical, since the intention was to permanently set the number at 76, while it appears time and again how extremely seldom it succeeds, when 150 members are candidates, to have them all present.

## §21. The Most Desirable Method.

The most desirable course in revising the Constitution would therefore come down to this, that the entire fundamental State document be split into two main parts, of which the first would embody the accord between People and Sovereign, and the second would establish the further regulation of the State. For each of these two main parts, a separate mode of revision would then have to be determined; for the first on a more solid, for the second on a less difficult footing. For the more solid regulation of the revision of the first Main Part, one would then have to remain with what was determined in 1814/15 and in part in 1848. This would then come down to 1° that the States-General would have to declare and clearly formulate the necessity of revision and what the desired new reading would be; 2° that the States-General would then be dissolved and doubled in number of members; and 3° that the two Chambers would have to decide with not less than two-thirds of the cast votes. Then follows 4° the signing and 5° the promulgation by the King. For the revision of the second Main Part of the Constitution, on the other hand, a simpler mode of action could suffice.

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Here it concerns often changes in regulations of a subordinate nature, which must be able to come about without much disturbance of the ordinary order; something which, even with the omission from the Constitution of too many details, must not encounter too great an obstacle. Here it would be most desirable, so without a prior declaration of necessity, first in the ordinary session of the two Chambers separately the desirability and text were established, and then in the joint meeting of the two Chambers with 80 votes the decision fell. Dissolution of the Chambers after the first vote would in itself be undoubtedly desirable and would be formally more correct, but has too much against it and cannot be deemed indispensable. The objection that arises against this comes down to this, that a States-General, elected solely with a view to a detail regulation regarding constitutional revision, would lack any guiding principle for the further conduct of government policy. Suppose a proposal came up to order parts of the Army, also without personal consent of the soldiers, in case of need to the Colonies, and Art. 184 underwent a change in this sense, then of course a Second Chamber, emerging from an electoral struggle over this one point, would lack any guiding principle for the further treatment of the affairs of the State in the four-year period that followed the dissolution. Doubling is equally an undesirable expedient. Persons who are not at all accustomed to move in the parliamentary circle, and know little of the past, would then have to cooperate on an equal footing with the seasoned members. As a rule, such a mixing of the dissimilar leads to daring outcomes, which it is better to avoid.

## §22. As for the relationship of the parties.

The question could only arise whether regulation of the revision on a more solid footing would not be required, where it concerned a constitutional issue that touched on the relationship between the various political parties or classes; especially in the matter of the franchise. Often it has been presented as if, with too easy a mode of revision, a danger would threaten from the side of the Left.

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THE RELATIONSHIP OF THE PARTIES - GENERAL OR PARTIAL.

A temporary majority could too easily abuse its position to twist the entire constitutional order to suit its own ends. That there would be a tendency towards this is undisputable. But one must not lose sight of the fact that, except in revolutionary times, a somewhat significant revision of our Constitution does not just fall from the sky, but generally comes up for discussion years in advance and under public scrutiny, and is

often already prepared by the introduction of revision bills by members of the Chamber. Hence, it is soon noticeable at the ballot box whether revision is on the agenda or not. If it is, it is usually already put forward by the parties at the ballot box, and the vote that the people cast in the general election is often already a declaration of their desire. This generally leads, after the Cabinet has taken office, in which the outcome of the ballot box is reflected, to the appointment of a State Commission; as has repeatedly been the case, even after the revision of 1887. In the reports of these commissions, the representatives of the people then naturally obtain a more definite formulation. And in this way, what was otherwise aimed at by the dissolution of the Chamber, can now of itself fall within the parliamentary fold.

## §23. General or Partial.

The not unimportant question of whether general or partial constitutional revision is preferable is also connected with this. If the revision proceeds too slowly, and too many extraordinary measures are required, one is reluctant to gird oneself for a constitutional revision when only matters of subordinate importance are involved. One then prefers to interpret the letter of the existing articles in a somewhat different way, and to achieve, without revisions, by means of modified interpretation what would require too much effort in revision. Just think of the article on education. This then has the consequence that a certain number of desired revisions accumulate, and that eventually, at a more general revision, a clean slate is made. Groen van Prinsterer foresaw from the outset where this would lead. It then gives the appearance as if, time and again, say after half a century or a quarter century, a completely new order of things is established by the people, just as many still imagine that the constitutional order of things here was only established in 1848. This undermines the popular sense that the Constitution has remained one and the same from the outset until now, and that what has changed were merely modifications made to the one permanent State document. Much healthier is the view that one makes the necessary changes by a simpler way of revision on a few detail points at a time. But then it also goes without saying that the revision must be able to come about more smoothly, on a simpler footing and without too much effort. Otherwise, the partial change is constantly postponed, is even partly played off against the constitutional precept in practice, and this then naturally leads to taking all the postponed matters together after a certain period, and thus seeking salvation again in a general revision. If it were the case that one had only gone slightly beyond the just measure in such a rapid partial constitutional revision, then in this more expeditious handling of matters the means would also be provided to correct a mistake made and to go back the required step. §17. The Attitude of the Sovereign. Above all, one must not lose sight of the fact that the States General can never achieve their goal otherwise than through the intermediary of the King; and precisely now, where it is a struggle between two parts or groups of the people, the King is designated to watch over the common right

of the people. A King who strongly opposes where an accord is at stake, fights for dynastic rights and acts, as one will, in an egoistic sense; something that never makes a happy impression and easily nourishes anti-dynastic sentiments in some group of the people. The bearer of the Crown will therefore always act more wisely by taking a neutral position on such points

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112 THE CONSTITUTION. and by not allowing himself to be drawn into the party struggle, but by standing above the parties as the guardian of the Constitution and the common good. This is all the more necessary now that the parties have become so sharply opposed to each other. For the King, the Constitution is not a party program, but the permanent foundation of the State, which he has sworn to maintain. And precisely because the parties are so sharply opposed, the King must be all the more the unifying power that holds the State together. This does not mean that the King should not have his own political views and convictions, but that he should not allow himself to be drawn into the party struggle, but should stand above the parties as the guardian of the Constitution and the common good.

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THE ATTITUDE OF THE SOVEREIGN - THE THREAT OF POPULAR UNREST.

If it comes to a revision of the Constitution, and the issue lies not between the people and the Sovereign, but between groups, parties, and classes within the people, then there is a case to be made for justice - that the Sovereign should defend the group that is too severely disadvantaged against the encroachment of competing groups. This could lead to a strengthening of a one-sided preponderance, and thus a partisan choice in the most unhealthy sense; but whereas such intervention by the Sovereign was not uncommon in earlier periods, since the Sovereigns then knew how to make one of the parties subservient to their own interests, there is no longer any fear of this in the current constitutional life. A Sovereign who now steps forward for the rights of the various groups and parties is not diminished in general esteem, but rather gives the impression of defending a higher right. As late as 1878, this was evident in the deputation under Elout van Soeterwoude at Het Loo. King William III then made it clear and unambiguous that he was not insensitive to what was lacking in justice in our Elementary Education Act, and the outcome crowned this expression of a sovereign sentiment by already leading public opinion in a different direction ten years later. And if one finally points to the revolutionary turmoil that can seek salvation in street riots in order to enforce the will of the common people, one must not lose sight of the fact that nothing can better curb this ever-recurring danger than a more flexible revision of the constitutional provisions.

## §25. The Threat of Popular Unrest.

If the revision of the Constitution is made too difficult, and it is thus postponed from year to year, and there is almost no redress in the ordinary way, this is precisely what so easily sets the popular passions in motion and provokes violence. To hold fast to the two distinct conditions - the one for the maintenance of the accord between people and Sovereign, but which must then also have a character of firmness, and the other for the maintenance of the proper connection between political life and the constitutional order - is the task that the Sovereign has to fulfill.

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The constitutional form in which this finds expression determines, in my opinion, the standpoint from which one must approach the revision of the Constitution. If the first requirement is rigidity, and the second flexibility and suppleness, it already follows from this how almost impossible it is to unite both under the same point of view. If for the accord between People and Princes regarding the regulation of the rights of the people the same manner of revision applies, then the fateful consequence is that either the revision of the Constitution is made too difficult in order to nail down the accord, or the accord is too much weakened in order to better carry out the revision of the Constitution. The Conservatives were most guilty of the former evil. This gave rise to an ebb and flow, under which the dignity of the constitutional life was indeed damaged. The walls of the building must be firm, and only the doors and windows movable. Nothing has done as much damage to the constitutional certainty as the fact that accords and detailed regulations have been decided under the same law. In Great Britain, where the written document is lacking, but the mutual right is rooted in the spirit of the people, the constitutional life still stands the firmest and strongest. Small oscillations and shakings have certainly also occurred in England, but at least the building itself has not yet been shaken. On the European continent, on the other hand, and also with us, the general satisfaction over our constitutional coexistence has noticeably declined in the last quarter century. Complaints of an irreparable fiasco have already come from more than one side. Those who could now be blamed for this were not, as was previously very common, the princely abuse of power. Precisely over this one-sided evil, however, complaints have become increasingly rare. From the side of the Crown, a spirit has rather penetrated the land that testified to a warm interest in the fate of the people, to an effort to win the love of the people, and to an ever more scrupulous respect for the rights of the people. The dissatisfaction with the existing order has also turned less and less against the Crown. This was still partly the case in 1848. Not anymore now. Rather, the stains are now increasingly visible on the side of the people in the legal community. There is a tendency towards anarchy, almost every bond begins to hinder. Free as the little bird in the air we want to become. Chaotic phenomena are already emerging. Precisely for this reason, it seemed

important to place more emphasis on the character of the Constitution, and at least to bring up a way out that could lead to reconciling and uniting the firmness and suppleness in the revision, which are now constantly damaging each other, in such a way that a healthy relationship between the two can finally discard all crutches. That this is possible is not in doubt, provided that the entire Constitution is stripped of all superfluous detailed regulations, i.e. the side lines are erased with the sponge, and one goes back to the main and fundamental lines, in order to express them in such simple, clear and logically thought-out language that the cacography disappears of itself. In this respect, too, our Constitution does not belong to the most fortunate. Although it can least of all unite us with the political principles from which the Belgian Constitution of 1830 proceeds, yet it may not be denied the praise that it remains a model in its language and style. Only by the way it may be noted here that in a division of the Constitution into two main parts, of which the first would contain the accord between People and Prince, and the second would lay down the details of the Constitution, the dividing line need not necessarily fall at Article 79 of our present Constitution. The distribution of the content over the different parts of our current Constitution would of course have to undergo modification.

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HISTORY OF THE COUNCIL. 115

The Council of State, as it exists with us, dates from the Constitution of 1815. It is true that already in the Constitution of the Batavian Republic of 1798 a Council of State was provided for, but this was of a different nature. The Council of State, as it was then conceived, was intended to be a kind of executive committee, which would assist the Executive Directory in the administration of the country. The Constitution of 1815, on the other hand, gave the Council of State a completely different character. It was no longer an executive committee, but a purely advisory body, which had to assist the King in the exercise of his royal prerogatives. The Constitution of 1848 did not change this character of the Council of State, but only expanded its competence somewhat. The Constitution of 1815 had given the Council of State the task of advising the King on all matters of legislation and administration, as well as on the granting of pardons. The Constitution of 1848 added to this the task of advising on the appointment of the highest officials. The Council of State thus became a body that had to assist the King in the exercise of his royal prerogatives, both in the legislative and in the administrative field. This character of the Council of State has remained unchanged to this day.

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# CHAPTER IV

## THE COUNCIL OF STATE AND THE MINISTERS OF STATE

THE COUNCIL OF STATE AND THE MINISTERS OF STATE. A republic in 1805, and even already under Charles V, had a nearly identically named body established, but these previously existing colleges had a different character, because they saw themselves as partly entrusted with the task that has since fallen to the Departmental Ministers. In 1805, therefore, alongside the Council of State, not ministers but Secretaries of State were appointed. See Articles 47 and 48. Article 47 provided for the appointment of a General Secretary of State, and Article 48 the functions of five Secretaries of State, for Foreign Affairs, for the Navy, for War, for the Interior, and for Finance. The Council of State, on the other hand, which was regulated by Articles 44, 45 and 46, seemed more like the Conseil d'État of the Burgundian Princes and the creation of similar colleges by Napoleon. In Articles 71—74 of the Constitution of 1815, a Council of State of a different character emerged, which was appointed by the King, would not have more than twenty-four members, preferably from the different Provinces, whose members the King could appoint and dismiss at will. The King himself would be the chairman of this Council, the Prince of Orange a member by right, and the other Princes of the Royal House could also be granted a seat in this high State body by the Sovereign. All legislative proposals came up for consideration in this Council, and the King sought the advice of this Council on all measures of domestic administration, both here and for the Colonies of the Kingdom. Furthermore, the King could ask this Council for advice on all State affairs that he considered desirable to have such advice on. However, the decisions were made by the King alone. The Council merely received notification of this decision. Only after this had been so regulated in Articles 71—74, did the establishment of the Ministerial Departments follow in Article 75; and in the second paragraph here it was stipulated that the King could call one or more Ministers into the Council of State. The three articles for the more detailed regulation of the ministerial powers and obligations were only inserted in 1840. It cannot be denied, therefore, that in 1815 the Council of State was very much superior to the Departmental Ministers. Even in the Constitution of 1848, the establishment of the Council of State in Section VII of Chapter II still preceded the establishment of the Departmental Ministers. Two articles (Articles 71 and 72) were even devoted to the establishment of the Council of State here, and only one to the establishment of the Ministers. The Princes now fell out, and only the Prince of Orange remained. The task of the college was now to advise on all proposals for laws and general administrative measures, both here and in the Colonies and possessions. The King could also elicit advice on other State affairs. It remained the case that the King alone decided and merely communicated his decision to the Council. Just as in 1815, it was stipulated that the "having heard

the Council of State" should appear in the title of every law. Furthermore, the law was also to regulate the entire constitution of the Council of State. In 1887 all this remained the same, but now a new addition was made in Article 76, that a law could entrust the decision on disputes to the Council of State or to a particular section of this Body. The more detailed regulation of one and the other has been effected by the Acts of 21 December 1861, 28 June 1881, 11 July 1884, and 8 December 1906, and by the Royal Decrees of 4 September 1862, 29 March 1875, 8 December 1877, 16 November 1881, 13 October 1905 and 28 March 1907 pursuant to these Acts. A separate Section was now established for Administrative Disputes, so that in the end the Administrative Jurisdiction also found its regulation.

## §2. The three extra cases.

The entirely separate task assigned to the Council of State for the three cases described in Article 45 lies entirely outside of this and is included in Chapter II, Section 4, dealing with the Regency. Article 38 regulates what must be done by the heads of the Ministerial Departments in the matter of the Regency; but when the exercise of the Royal Authority becomes unavoidable in the absence of the Bearer, it is not the Cabinet, but the Council of State that steps in, and it is not the least of this assignment that has stamped a seal of very high quality on the college. Just as throughout the past, so also from this assignment to the eventual exercise of the Royal Authority, it appears that the Council of State stands in very close connection with the Crown. Something that also applies elsewhere.

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THE THREE EXTRA CASES. 117 Professor Bluntschli in his Allgemeines Staatsrecht rightly points out that the Council of State in the Netherlands has a special position compared to the Councils of State in other countries. This special position is mainly due to the three extra cases mentioned in Article 45, in which the Council of State is called upon to act. These three cases are: 1. When the King is a minor; 2. When the King is incapacitated; 3. When the throne is vacant. In these three cases, the Council of State does not merely advise, but actually exercises the Royal Authority. This is a very special task, which gives the Council of State a completely different character than the usual advisory body. It is not just a consultative body, but in these three cases it is the governing body. This is why the Council of State in the Netherlands has a much more prominent position than the Councils of State in other countries. The fact that the Council of State is called upon to exercise the Royal Authority in these three cases shows how closely it is connected to the Crown. This close connection with the Crown is also evident from the fact that the King himself is the chairman of the Council of State, and that the Princes of the Royal House have a seat in it by right. All this gives the

Council of State in the Netherlands a very special character, which sets it apart from the Councils of State in other countries.

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THE COUNCIL OF STATE AND THE MINISTERS OF STATE. The State Law, 6th edition, page 267, even goes so far as to say: “The Council of State is thus an institution for free reflection, for... the wise deliberation around the King, just as the Chambers have to represent the interests and opinions of the people”; and on page 270: “The Council of State is the examining and advising intellect of the head of state.”

## §3. Weakening of significance.

The fact that from a more revolutionary side, one was always intent on removing the Council of State, as having become altogether superfluous, leads to the same conclusion. In Belgium, this has already come about in 1830, and also among us, from the liberal side, attempt after attempt has been made to make the Council of State disappear from our institutions. And although this has not yet been achieved, it cannot be denied that the legal regulation given to this Council has not enhanced its prestige in the life of the State. What Article 45 assigns to the Council, in the event of the immediate disturbance of the Crown Bearer, or also what is assigned to the Council in its Administrative Division, is undoubtedly of very high importance, but these two tasks are of an incidental nature, and the main task of the Council of State remains always to lie in the advice it provides to the King, either according to the law, or at the King’s special request; and precisely as regards these opinions, the significance of the Council of State is no longer rated very highly. The reason for this is not far to seek. It lies in its composition and in its authority so severely limited by law. Its composition, it is true, proceeds from the King, but is in fact entirely dominated by the Minister of the Interior, under the control of the Cabinet. The time also lies so far behind us that the successive liberal Cabinets almost never presented to the King for membership anyone other than kindred spirits. Often, it is true, a limited number of Roman Catholic statesmen were also given a seat, but previously, at least, the choice for this was easily made from among statesmen who still felt entirely homogeneous with the Liberals.

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WEAKENING OF SIGNIFICANCE - CABINET AND COUNCIL. Only in a later period did this high college also include statesmen from Anti-Revolutionary or non-liberal Roman Catholic backgrounds. The nature of the college entailed that it possessed a more lasting character than could be attributed to most Cabinets, and

that it thereby represented more the general course of political life. The ministers came and went, continually varying in their efforts and intentions. In contrast to this variability in Cabinet life, the Crown Bearer represented the permanent and as much as possible unchanging, and only in this permanent could the Council of State provide support. Now, on the other hand, as the composition of the Council of State began to suffer under ministerial pressure along with the constant change inseparable from the spirit of the Cabinets, the Council increasingly ceased to possess a character of its own, and, though at a certain distance, continually followed the ebb and flow in Cabinet life. The original intention behind the Council's actions, to uphold the permanent, characteristic nature of the royal authority against the ever-changing in Cabinet life, was thus increasingly lost.

## §4. Cabinet and Council.*

The original independence diminished. And since the advice of the Council was not made public, nor the response of the Ministers to the Council's criticism, it could not but happen that in the ministerial bureaus less and less attention was paid to the advice received from the Council. By virtue of its one-sided composition, the Council was generally unable to issue other than broadly liberal advice, with the peculiar mark that almost always, when the drafts tended in a more radical direction, the criticism of the Council pushed them back towards a more conservative line. When such a tempering opinion came from the King's side to the Department, the Department's immediate effort was to set it aside as very little to the point and as insignificant in a briefly written counter-opinion.

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THE COUNCIL OF STATE AND THE MINISTERS OF STATE.

to set aside. This does not mean that the Council did not repeatedly point out technical errors or omissions, and that corrections were not often recommended that were gratefully adopted, but the political character of the advice remained without effect. Whether the majority of the Council, or of the Section under which the bill in question fell, differed from the minister who had prepared the bill, was known in advance. It was also known in advance whose judgment the advice would be drawn up. These members of the Council were well known in the Department, and their political views were therefore by no means in the dark. So the Department knew just as certainly in advance in what spirit the advice would turn out, what would be approved and what would be rejected, and what they would wish to put in place of what was rejected. The Department was also fully conversant with the arguments for and against that would be brought forward. The consequence of this was that the incoming advice could not surprise in any respect; that one could be

almost certain in advance of what would be noted; and that one was immediately ready with one's own criticism, in order to refute and invalidate the criticism of the Council. When the advice arrived, an official was immediately appointed to disarm it. Often in a couple of weeks the counter-criticism was ready as an apology for the bill. This apology was then sent to the Crown, and brought to the knowledge of the Council of State, and all the purposeless debate died away here. Of course, the Council of State was fully aware of all this. To know in advance that the study devoted to such a bill will almost certainly be entirely fruitless labor, naturally does not stimulate to special exertion. He who is so certain in advance that his counter-advice will be given little value; that it will only come under the eyes of very few; and further, after being rejected, will move to the archives just as unused and unread by the public, does what he does out of a sense of duty, but does not sharpen his talents. The sad truth remained, that the obtaining of the advice of the Council of State both forced this Council and then the Department into a critical debate in the dark, of which the real fruit often failed to appear, and in which

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LOSS OF DISTINCTIVE CHARACTER.121 The complaint about the wasteful loss of time cannot always be avoided. An already somewhat unpleasant relationship, which often took on an even more unpleasant character, if it later turned out that the members of the Council who were called upon to give advice, despite all their other excellence, were not experts on the particular subject that was the subject of the legislative proposal submitted to them. In the past, this caused less difficulty, insofar as the draft laws submitted for advice dealt, if not exclusively, then at least primarily, with subjects of constitutional and financial administration. But since the administration has had to increasingly delve into highly technical subjects of a highly specialized nature, it has not infrequently happened that among the members of the Council the special expert who could provide the necessary enlightenment on that special point was lacking. Just think of the insurance system, which of course requires a completely special study, and imagine how strange it must have been for a member of the Council to find himself confronted with a draft of two hundred or more articles, regulating a matter that was almost foreign to him, and lying before him in a draft drawn up by experts. One cannot reproach the thus embarrassed Council member for this. For the composition of the Council is not geared to such highly specialized subjects; and the effort that many a member of the Council has nevertheless made to make up for the deficiency in the composition of his college by redoubling his efforts cannot be praised highly enough.

## §5. Loss of Distinctive Character.

The Council of State, as it now functions among us, lacks a distinctive character. In the task entrusted to the Council, there is a lack of unity of thought. On the one hand, it gives the impression of superfluity, and on the other hand, of excessive meddling. What Napoleon intended in his Conseil d'État was to provide an improved copy of what had arisen under the Burgundian Princes and reached its highest significance under Charles V. Alongside, and to some extent even above the departmental ministers, Napoleon sought in

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THE COUNCIL OF STATE AND THE MINISTERS OF STATE. The Council of State was the thinking body that advised it, and to whose counsel the departmental ministers added the deed. In our view, in 1814/15 they set themselves a completely different goal, and sought in the Council of State a shield for the Dynasty. Not in an unjust form, as if to bargain away the rights of the people, but still to ensure for the Sovereign Prince, soon the King, an advisory college as a bulwark against the dubious stirrings from below; something not entirely unlike the Privy Council in England. From what the Batavian Republic had dared, they very well understood that the departmental ministers must increasingly come under popular influence, and that it was therefore of the highest importance for the Prince to be able to dispose of a College of acknowledged eminent Statesmen, who could watch over the preservation of the balance between the two powers in the State. But precisely this has led to increasingly limiting the significance of the Council of State, to virtually undermine the independent position of this Council, and thus of itself to raise the question of what it was really for. Compared to the all-controlling position of the Departmental Ministers, the position of the Council could not but decline, and this naturally gave rise to the creation of an entirely new function for the Council in administrative jurisdiction, in order to make the significance of the Council perceptible from that side. The original intention to be a shield for the King was increasingly lost, so that it became a ministerial crisis convention, not that the Crown sought the advice and counsel of the Council of State, but that it called upon the chairmen of the two Houses to give unofficial advice. Even the originally so correct idea, that the King, who in his abiding person represented the unity of government against the ever-changing ministries, should have at his disposal a college of high order of experts, which would also have a permanent character against the changes of the Cabinet, was completely lost. As a college of advice on matters of state, the Council of State has hardly ever been of service; its influence on legislation has become increasingly insignificant; and undoubtedly administrative jurisdiction and the temporary bearing of royal authority under Article 45 are now its main significance.

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## §6. Administrative Jurisdiction.

Now it is granted that this last, entirely exceptional function fits in a very peculiar way with a Council such as the one dealt with here. Under normal circumstances, the Council would never be called upon to act in this matter. If there is a successor to the throne, if it is necessary to entrust a Regent, and if at the moment of the Prince's demise, in the first case the Prince or Princess, and in the other case the Regent or Regentess, are present on the spot, the Council of State sees itself called to no act or deed. Only in abnormal circumstances, if there is no successor to the throne, or if such a Regent is absent, would the Council of State have to intervene. Such intervention now forms an essential part of the task that has been laid upon the President of the Council, but in the ordinary course of events the cases to which this task refers hardly ever occur. It would never have been thought of to call such a college into being solely for this purpose. Elsewhere, in more than one country where no Council of State has been established, the possibility has nevertheless been reckoned with that such a case of embarrassment might arise, and it has then been entrusted to the Council of Ministers what with us fell to the Council of State. Now this is not quite the same. It must be admitted that the Council of State, which from the outset had the purpose of raising a shield for the Crown, leans more peculiarly towards exercising the royal authority than the Council of Ministers; but even if we are willing to emphasize this, it would not do to maintain such a costly college mainly with a view to such a case, which is almost never likely to occur. It calls for much more definite and extensive work; but for such a certainly highly necessary jurisdiction, a Council of State such as we possess does not seem to be the most peculiar and self-evident college.

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## §7. How it is organized elsewhere

In Switzerland, a state even smaller than the Netherlands, a separate college has been established for this jurisdiction in the Tribunal fédéral (see Articles 106–114 of the Constitution). This Tribunal rules on disputes between the Confederation and the Cantons, between the Cantons themselves, and also on disputes between the Confederation or Cantons with corporations or individuals. Furthermore, this Tribunal can also adjudicate in any other type of dispute if both parties request it to do so. It is also

entrusted with jurisdiction over “conflicts of competence” between national and cantonal authorities; over public-law disputes between Cantons; and over complaints by individuals regarding the violation of their public and constitutional rights. Even the federal legislation, by virtue of Articles 110 and 113 of the Constitution, is empowered to assign other conflicts to this Tribunal for adjudication. Although the scope of this task does not quite match what falls under our administrative jurisdiction, in principle and in its starting point one finds here as well a regulation of administrative jurisdiction, but one that, departing from an independent college specifically established for this purpose, is added to a college of a completely different origin and character; and even then, not assigned to the entire college, but only to a specific department of it. So in other countries as well, recourse has been sought in the establishment of an independent college. Consider, for example, the Reichsgericht in Austria, which was called into being by the Constitutional Law of December 21, 1867 and established in Vienna. Article 2 of this Law stipulates that the jurisdiction of this Reichsgericht includes competence disputes between judicial and administrative authorities, between the representation of the People and the magistrates in the various provinces, between the local authorities, and also over disputes between municipalities, corporations, or individuals with the authorities of various ranks. Now certainly the example of Austria as one of the Great Powers would not allow a conclusion for a country as much smaller as ours; but precisely to dispel this objection...

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ADMINISTRATIVE JURISDICTION AND AUTONOMY. To cut this off, one first points to Switzerland, where the population is still far behind ours. Add to this Belgium, right on our border, where even the Council of State is lacking, and further argument can be spared to show that an administrative court or another college could also act for us. Even the Beroepswet [Appeals Act] already offers a certain analogy.

## §7. Administrative Jurisdiction and Autonomy.

What speaks even more strongly in this regard is that the Council of State, by virtue of its origin, can least of all be regarded as the designated college for administrative jurisdiction. Between the authorities of higher and lower rank, between those authorities and both public and private associations and private individuals, disputes and conflicts constantly arise, in which the question always arises as to what extent the municipalities, provinces, polders and so many others have or do not have a certain independent position. The autonomy of local and regional character is a matter of the utmost delicacy, and in the care of which two different opinions have long stood opposed to each other here at home. On the one hand, the excessive fragmentation of the state, and on the other hand, a strong centralization spirit. The former has been at home here for a long time, the latter gained the upper hand in France, especially during the Revolution, and

has also come to us from Paris and gained dominance in the days of the Batavian Republic. And although this all-solving spirit of centralization was thwarted here after 1814, it cannot be denied that our Liberals have always shown a poorly concealed preference for that centralization, and that the autonomous life, even in our polder administrations, has always been curtailed by them. That the professor Oppenheim took up the cause of municipal autonomy again with love and faithfulness may elicit our gratitude, but it can hardly be denied that, to avoid difficulties, one has always been more inclined here to let the autonomous character of municipality and province suffer, if that could facilitate the orderly course of administration.

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126 THE COUNCIL OF STATE AND THE MINISTERS OF STATE. Appointments of mayors, which from of old, even now in Austria, belonged to the municipalities, but have been assigned here to the central authority, and for a very long period were the means and instrument of the liberal leaders to strengthen their influence in the countryside. Even the complete abolition of the independence of the municipalities has almost become the rule here. While even in Brussels the suburbs retained their independent character, so that there are still separate municipal councils not only for the center, but also for the suburbs, it has become almost the rule here that as soon as a large city demands the annexation of entire villages under its administration, this desire is granted. Insofar as this tendency of the Central Administration can of itself lead to conflicts with that Administration with the local and provincial authorities and between these and other corporations and persons, it is of course highly desirable that in the college that will judge these conflicts, not only the centralizing, but also the autonomy-minded element in the popular spirit should come to its right. This has also been taken into account in the establishment of the Reichsgericht in Austria as well as in the establishment of the Tribunal fédéral in Switzerland, and in the composition of that Court and Tribunal, one-sidedness has also been avoided.

## §9. The Council is unfit for this.

One might therefore have expected that the administration of justice in conflicts of this nature would be entrusted either to a college dominated by the autonomous, or to a college in which both the centralizing and the autonomy-minded element were equally represented. But the current regulation among us does not meet this requirement. The inherent character of the Council of State, by virtue of its origins and past, has always leaned one-sidedly towards the side of the Crown, whose shield is its vocation. And although the later regulation of the Constitution and the law has not entirely disowned this original character, but has considerably weakened it, in no case can it be claimed that the Council of State is a college in which attachment to the autonomous has the same weight as attachment to the centralizing.

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THESE COUNCILS ARE UNSUITABLE.127 In our local, provincial, and corporate life, they were naturally represented. The modern State idea, which does not aim to allow a national life that has arisen from within to ripen in a more organic connection, but rather imagines that the power lies within it to create a political form for the national life, is increasingly gliding over the earlier antithesis between autonomous local life and its central integration. A separate administrative and legal college, established specifically for this purpose, even if it came into being with the cooperation of the autonomous life, would at least have intended to provide a certain counterweight. As it is now regulated with us, however, it cannot be otherwise —the preference for the spirit of centralization will rather continue to push back the autonomous life even further. In fact, there are now only a very small number of gentlemen and jurists, who are often deliberately appointed with a view to the Division of Disputes, who have the entire swell of the autonomous against the central principle in their power. The purpose for which the Council of State was originally called into being among us, the further regulation that this Council received in 1861, 1881 and 1884, gave the Council a composition and a character that would have provided full guarantee if the autonomy were to run wild and try to do damage to the central character of the supreme authority, but in which, under the present regulation, almost every guarantee is lacking for maintaining in our state law what the principle of autonomy demands. In this there is not the slightest suspicion that there would be an intentional bias in the Division of Disputes to disturb the proper balance between the central and the autonomous principle. Deliberate and intended partiality need not be thought of at all in this Division; rather, one is assured that the arrival of Professor Oppenheim in this Council offers the autonomy even more chances; what was meant to be shown is only that the Council of State, according to its origin in 1815, and according to the further regulation it received as a result of the constitutional form of 1848, does not give us what first and foremost comes to the fore in a college of administrative jurisdiction.

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## §10. The second point demands no less.

The second task assigned to the Council of State, to oversee the legislation and the executive power, leads to an equally unsatisfactory conclusion. The regulations for this task are given in Articles 20–26 of the Act of 1861, with the later amendments made therein. Art. 20 merely states the commission given to the Council by Art. 45 of the Constitution, and the subsequent articles stipulate: 1° that all legislative proposals,

whether originating from the Crown or the States-General, are to be submitted to the Council for consideration; 2° that all general measures of domestic administration for the State and its Colonies and possessions in other parts of the world are to be submitted to the Council; 3° that the Council is to be heard by the Crown regarding the annulment of decisions of the Provincial and Deputed States, as well as of local ordinances; 4° that the Council is to be heard by the Crown in the cases where the Law commands it; 5° that the Council is to be heard on all matters of general or particular importance which the Crown deems necessary; 6° that the Council can make recommendations to the Crown regarding subjects of legislation or administration, insofar as it deems the issuance of general measures of domestic administration desirable; and 7° that the Sections of the Council are to provide information, when requested, regarding administration and legislation to the Ministers. In short, this amounts to a certain control over the departmental activities, both in what they accomplish and in what they are deemed to devise. That this is intended to fulfill a very real need cannot be disputed. There must be, in legislation and administration, a certain connection between what is accomplished in successive periods of government. Now that the Cabinets change and not infrequently one appears to undo the work of its predecessor, the danger undoubtedly arises that the Cabinet changes disrupt the coherence of the administration. Since a Minister can take office who is less familiar with the secrets of administration, what emanates from the Ministers can become unmistakably lacking in solidity and coherence.

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COUNCIL OF MINISTERS. The influence of the Ministers has steadily increased in significance, and yet they are often regarded in the Departments as lodges that come and go without often leaving many traces of their ministerial tenure. More than once it has been pointed out how this has sometimes even given some departmental officials an influence on the course of the country's affairs that does not rightfully belong to them. Since such officials often stand at the head of an important division for a long series of years, their gradual accumulation of knowledge of the matters handled, at least in the details, far exceeds the familiarity of the Ministers with this subject matter. This can cause a Minister, who in his past has been completely outside the administration, to readily go along with proposals, ideas, and expressions of his officials, which are in themselves far from impeccable. The Secretary-General does then exercise some oversight, but even he cannot fully master the scope of the departmental output.

## §11. The Council of Ministers.

And the Council of Ministers can also exercise some control, but over a busy Department the production of documents is often so extensive that the control of this Council of Ministers can only be very superficial. A

Minister whose Department has an excessive workload and who is therefore constantly having to appear before the States-General cannot read and assess with the required accuracy everything that comes under his eye from the other Departments. This is especially impossible in this country, because the custom persists of providing all legislative proposals with such extensive Memoranda that keeping up with the reading of all the documents that accumulate year after year becomes absolutely impossible. Whoever examines the stacks of documents with any attentiveness, which pile up anew each year, immediately understands that a Minister who would want to process this entire stack would cut off all possibility of own production for himself. And in addition to this, the Council of Ministers cannot meet so frequently, as this would become too time-consuming, and furthermore, in the Council, which is mostly silent...

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The Council of State and the Ministers of State—It is a serious defect that the meetings of the Council of State, which last only two hours, bring up so many new topics that it becomes utterly impossible to discuss any incoming document in the Council in detail and to investigate its particulars.

## §12. Before documents are issued.

Yet, in practical terms, a serious control over what will be issued, before it is issued, is not only desirable but absolutely necessary. Such control is indispensable, not only regarding the substance, but even the form. Before any document reaches the States-General or is published in the Official Gazette, it ought to have been examined by the government to see whether it is in harmony with the entire body of legislation, the Constitution foremost, and further whether it fits the existing modes of execution and administration. It is also important to consider whether the forms and language fit the whole of our existing legislative and administrative style. One can give a very different form to a draft law. The English, German, and French ways of framing a law of a certain scope are by no means the same. It often happens that in one and the same Cabinet the various Departments proceed according to different methods. This must not be. The Netherlands, too, must have its own conception of the theory of law-making, and it makes a very undesirable impression when one sees law after law appear, of which the one follows the German, the other the English method, to the utter absence of a national form of our own. This even extends to the language; something that deserves special mention, because it is especially the language in our legislation that has always left so much to be desired—a defect that is even aggravated if the language in one official document speaks so differently from another. Even the Constitution suffers from this, and anyone who takes the trouble to compare, for example, the Belgian Constitution with ours, immediately feels how in the French a

perfection of style, and even of linguistic form, has been achieved that puts us to shame. Even the choice of words in our legislation often leaves much to be desired.

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The terms have been neglected in our Constitution. This has been shown in particular in the First Part, regarding the use of the words: “Realm,” “Country,” and “People” in our Constitution. We have therefore the least reason to boast about our official literature. French lends itself to official language in a surprisingly flexible way, German always folds where French offers rigid, even material, and English gives legal style in solid chunks. Our language, on the other hand, often lends itself in no other way than in a very clumsy manner to express the desired thought concisely. Hence, in so many legal documents, an administrative terminology and a way of speaking that seems to be minted on the unintelligible. Just listen to the taxpayers constantly being perplexed by the unintelligible language of the tax assessments. Without reservation, it must be confessed that no country as much as ours is in need of a factual and formal control and enlightenment of all legislative, executive, and administrative documents. The criticism we have allowed ourselves on what the Council of State provides in the matter of Legislation and Administrative Measures is by no means intended to plead the idea that control could well be missed here; but, on the contrary, to come out for the fact that the control now existing does not suffice. Whoever, like the writer of these lines, has had the opportunity in recent years to closely examine the documents in which this control was offered, cannot for a moment hesitate about this. Not as if in the intended Control Memoranda there was not more than once an effective indication of committed mistakes, even of direct errors, and as if, with each comprehensive draft, what the coherence of the articles and the connection with other laws demanded, was not often pointed out in a sufficient manner; but the criticism of the document gave no other control than that such a draft of a law also encounters in the sections of the States General, and is then inserted in the Preliminary Report. What an expert member of the States General brings up in the general considerations on such drafts or on individual articles, seems like two drops of water to what the Council of State offers, without the former being able to read his own speech literally in the States General, without any particular merit.

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THE COUNCIL OF STATE AND THE MINISTERS OF STATE. Another person might also think of the illegitimate birth of this piece. If the draft laws as they have passed the Council of Ministers go straight to the Chambers, then, grosso modo, almost everything that now comes to him from the Council of State will be found in the Chamber report for the Minister. It is a very small number of members of the Council of

State who draw up the draft advisory opinion for each bill, and in bills of political importance, it is almost always to be expected that the majority in the Section or Investigative Commission are of the same political persuasion. Although it is therefore that the Council of State puts the Ministers in a position to correct some formal errors, over which they would otherwise have been hard hit in the States General, and although the advice can give him occasion to complete a less clear argument,—the advice is generally not of decisive importance. The Minister is not made wiser by it, and the bill does not gain in perfection through it.

## §13. Waste of time without purpose.

One is therefore confronted with the undeniable fact that a high college of state has often spent too much time on investigating and issuing an opinion that hardly yields any positive gain, and that, on the other hand, the careful control that should have come, fails to materialize. Legislative work is not everyone's work. The style of laws and the language of the law make quite peculiar demands. The theory of the method for the drafting of laws is not known to those who have not studied or learned it. A busy Minister lacks the time at first to draw up important draft laws himself. He must receive the material for this from the official, but the official gives the elaboration of the draft. And when the elaborated piece comes to the Minister, but in such a way that it must be completely reworked as regards form, wording, style and language, there is no question of the Minister being able to bring this into readiness himself. For this, all time is lacking. Whoever imagines this, does not know the ministerial life. In Thorbecke's days, something like this was still partly possible, because the departmental pressure at the Ministry of the Interior at the time was not a third of what it is now. In Belgium, they have therefore adopted the custom of appointing two senior officials at each Department who are solely concerned with the proper drafting of the drafts; and that this already helps to some extent in the right direction, is evident from the production. However, this aid is not sufficient. As far as the entire legislation of a country is concerned, the supreme authority of a few leading spirits in matter, style and form must here intervene; and these must, for the whole of their service, have no other task than to maintain the majesty of legislation even in its form. They must have auxiliary personnel at their disposal for all kinds of detailed research. And they must even have the authority to consult experts of the first rank on subjects of a very special nature. Only in this way can it be prevented that the unity of legislation would become uncertain; that the connection with the legislation of the past would become loose; that the conception of the draft laws would mock a good architectural style; that through careless speech in the law, the terminology in our legislation would approach chaos; and that the legal style would be deprived of its soul through arbitrariness in usage. In England, they have followed this rule from of old, and they have found it good. To come out for or against this or that political tendency would of course have to lie entirely outside the vocation of such a College. The members of such a College therefore need not be

politically neutral personalities at all. Such neutral-minded people generally have little genius. Only, they should have strictly refrained from anything related to the party struggle in their investigations and in the drafting of their advisory opinions; their task would be to watch over the legislative forms for that form alone.

## §14. Yet give advice, but freely.

Should it now follow from this that the Council of State could be relieved of giving advice on the outgoing documents? Not in the least. Even if a Conseil d'État in the old sense is unthinkable in our country, the Council of State must nevertheless retain the right to give advice on all important bills and royal decrees. This advice, however, must be completely free, without any regard for the political tendencies of the day. The Council of State must be able to say what it considers to be good or bad, useful or harmful, in the draft, without any consideration for the political color of the Cabinet. And the Minister, in turn, must be able to accept or reject this advice without regard to the political complexion of the Council of State. Only in this way can the Council of State fulfill its true task, which is to be the guardian of the majesty of the law and the unity of legislation. The Council of State must be able to speak freely, without fear or favor, and the Minister must be able to listen to it freely, without fear or favor. Only then will the Council of State be able to fulfill its true function.

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The Council of State and the Ministers of State. This in no way diminished the necessity for the King to ensure that he receives the necessary guidance in the decisions he must make. What must be abandoned is not the giving of advice per se, but the formal exercise of control over all outgoing documents, however insignificant, as is still required by Article 72 of the Constitution. A purely formal chamber of control, in the genre of our Court of Audit, that examines the legislative text, the style of legislation, and the form of the law, even in connection with existing laws, and scrutinizes the form, is certainly desirable. Even in the smallest and most insignificant draft, the required form may be lacking; and how important each point of form and expression can be, was evident only recently, when the system of cremation, contrary to the undoubted intention of the law, was in fact admitted by the Supreme Court, solely on the ground of a defect in the form of the law. There can never be any question of neglect of form in the legislative domain. Any omission here can cause the most serious confusion. But it does not at all follow from this that a body as high-ranking as the Council of State has to watch over this. More than once a completely insignificant legislative text has sounded: "The Council of State having been heard," as if in mockery, and it is undoubtedly beneath the dignity of the college. What must remain, however, is that all draft bills and measures of general administration by the Council of Ministers are sent to the States General for their cognizance; and then it is the Council of State itself that has to decide whether or not to advise on the matter. It could then be obliged to communicate to the Departmental heads within an expressly determined period whether or not the draft can be submitted to the States General without further delay; and only if the draft submitted to the Council gave rise to advice to the King would the Departmental heads need to await further communication. This in itself would not at all imply that the Council would have to insist on substantive or formal modification of the draft. Often it would be very good if the Council, after careful consideration, decided to refrain from all pressure for criticism of the draft. The first communication to the Department would then also

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THE PRESIDENCY OF THE KING.135 Whether this means that the draft was allowed to pass undisturbed, or that it was held for further deliberation. The outcome of this further deliberation could then have led to the conclusion that amendments were urged on one or more points, or that the further deliberation led to refraining from any criticism of the proposal. The holding in deliberation would then have had the sole purpose of examining whether, and if so, to what extent, it seemed advisable to point out to the King the scope or significance of the draft, in connection with the continuity of government, and also in connection with the King's national responsibility.

## §15. The Presidency of the King.

Understood in this way, the composition of the Council brings the presidency of the King and the participation of Princes of the Royal House to its right. The King is not the Chairman of the Council of Ministers, but appoints one of them to preside over the Council. Nor does the King preside over the Chambers of the States-General. Both Chambers of the States-General have a chairman who is directly appointed by the King for the First Chamber, but for the Second Chamber is effectively chosen by the members themselves. A regulation that provides for presidential assistance in the event of the temporary absence of the appointed Chairman, as the rules of order provide for this. A further designation that may result in a meeting in which a very important decision is made, completely helping itself and acting entirely outside the direct connection with the Crown. It is therefore very carefully guarded that the chairmanship in the Second Chamber does not lean too much towards the side of the Crown, and formally emanates from the Crown, but still has its actual origin and sometimes even acts entirely outside the Crown. With the Council of State, on the other hand, this is quite different. This Council itself makes no proposal regarding the presidency. The presidency here comes about entirely outside the Council. It is self-evident. Inaugurated, the King is here in person the Chairman. And he can appoint and does appoint

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He is a vice-president, but this Vice-President remains an ordinary member, whose chairmanship is only in the absence of the Chairman, entirely dependent on whether this absence is the result of the death of the King, while the heir to the Crown, who comes after him, has not yet acted, or only the absence is to be noted, because the King did not appear in the Council, nor summoned him to his palace. So and not otherwise is the official appearance of the Body in its connection to its Head. There is absolutely no question of the appointment of the Head here. The Head is there spontaneously. But precisely with a view to this completely exceptional relationship, the contrast now strikes all the more, that officially or unofficially no one counts this Royal presidency, and passes it by as merely nominal. In so decisive a sense has this chairmanship of the King become purely nominal, that the Vice-President does not even think of obtaining the King's pleasure before a meeting is held, or whether He Himself will appear, or leave the presidency to him. This leaving of the chairmanship to the Vice-President has become such a fixed custom and rule, that, the vicein his title now set aside, the Vice-President always behaves as if he were the actual chairman. In other areas, there sometimes exists such a looser relationship between the Chairman and an Honorary Chairman, to whom the President can now and then offer the gavel. But even that looser relationship does

not exist here. With the Council of State, one has to do with the undeniable fact that the genuine, the real Chairman never appears, never takes the gavel in hand, and without any further notice or communication, leaves it to the Vice-Chairman to function as the actual Chairman; not once or a few times, but as a rule, and one can say, always. Not as if a new bearer of the Crown would not have the fuller right to appear in person and take the gavel in his own hand. Formally, the chairmanship of the King is here absolutely absolute, and on not a single point could it be contested to him. But this is precisely the striking contrast that one encounters here, that to the King in the most absolute sense a function accrues, which is never fulfilled by himself, but always by another in his name.

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LOSING ITS ORIGINAL CHARACTER.

## §16. Losing its original character.

This can only be explained by the fact that the Council of State has gradually been made something that is constantly losing its original character; and this special character consisted in the fact that the Council of State was something separate for the King and for his benefit, not in a personal sense, but for his benefit as the reigning Sovereign. The Council of State is therefore accountable to no one but the Sovereign. No public is made of the deliberations in the Council of State. The documents that emanate from the Council of State have a private character. Of course, it is assumed here that neither administrative jurisdiction nor legislative control will belong to its task, just as both have never been counted among them before. If the Council of State gives no other advice than to the King, then the documents that are drawn up by the Council of State also remain documents of a confidential nature between the King and him. In itself, the King would not even be obliged to bring the drawn-up documents to the knowledge of the ministers. This does not mean that the King would not usually do this, but in itself it would be very conceivable that the King himself, as chairman, would consult the Council around him, also with a view to the attitude of one or more of his ministers. Now it has been more directed that the King holds no personal consultation other than with his ministers, but conversely it would be very conceivable that the King would feel the need to receive the opinion of expert, high-ranking statesmen about the attitude of his ministers and about what was to be done in this regard. And although it is undisputed that the King is at all times in a position to consult one or more of these statesmen in confidence, it is in the nature of the matter that a college specially chosen with care would be much better able to provide the King with all the desired information.

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## §17. Consistently Confidential Character.

This college or this Council also continued to have a confidential character, and could even become intimate. This is most clearly expressed in the appointment of the Privy Council in England, as well as in the title of the “Geheimräthe” in Germany, or in what is called the “secret council” in various German states. It is not the ministers who need this Council, nor even the States-General;—the need for such a Council, if properly constructed, exists only for the King, and partly for the Princes of his House. Only with this conception does the Royal Chairmanship come into its own right. In Austria they spoke of a “Hofrat,” in Brandenburg of a “geheimer Staatsrat,” in smaller states of a “Geheim Kabinet”; and the functioning of these secret colleges always came out strongest where the Ruler was intent on strengthening his own power and pushing back the significance of Parliament or the Estates in general. Hence it became necessary to call into being, alongside and in opposition to these secret councils or conseils d’états, the departmental ministers, whose responsibility to both Prince and Parliament ultimately first held back and then completely prevented any overgrowth of princely power over the liberties and rights of the people. But what could not and should not fall away was a council of a secret or, if one wishes, of a private character, which advised the King on the attitude he should adopt, on all kinds of occasions, for the benefit of his people and for the safeguarding of his royal authority. Even in 1879 a “Staatsrat” was still established for Alsace-Lorraine as a Reich province. In Prussia, Bavaria and Saxony too one finds a “Staatsrat,” while in Württemberg the name “Geheimer Rat” was retained. However, the true character of these colleges was gradually disappearing there as well. The responsible ministers, the Parliaments with decisive powers, and the entire constitutional system that was increasingly asserting itself, deprived these Secret Councils or State Councils of all significance in the field of legislation and administration, over which they had previously disposed. The course of events in the Privy Council in England was not much different, although it had also acquired some judicial powers.

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EXTRAORDINARY STATE COUNCILS.

## §18. Extraordinary State Councils.

The attempt to strengthen the College by appointing extraordinary state councillors, however well-intentioned, in order to obtain the advice of a special expert on matters of a special character, proved equally ineffective. Such an appointment was increasingly becoming a mere honorary title. The complete abolition of the Councils of State was the entirely natural consequence of this constant decline in significance, as for example in the Belgian constitution. Where there was fear of abolition, work has since been found for such a Council, and it has been assigned tasks that it could or could not fulfill, or in which it wasted its efforts in vain. The honorary titulature that was made of the German "Geheimrat" and our "Staatsraden in buitengewonen dienst" stood in the end completely on a par with the higher-ranking knight's crosses; something that applies to our "Ministers of State" as well.

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## §19. Ministers of State.

A Minister of State is now to be understood as nothing more than the honoring of a prominent man as an expert in the general affairs of the State. There are three kinds of ministers: first, the active departmental ministers, appointed for a specific group of state affairs; secondly, the non-active ministers, honored as experts in state affairs in a general sense; and thirdly, plenipotentiary Ministers to act on behalf of the Crown with the government of a foreign country. Thorbecke now incorrectly combined the title of Minister in the first two meanings, when in official documents he called himself "Minister of State and of the Interior"; a combination that completely obliterated the distinction between activity and non-activity. When someone is called a "Minister of State," this contains nothing more than a declaration by the King, on the advice of his Cabinet, that this honorary title is due to him on account of his significance in the general politics of the country. There lies a declaration, no calling to any service or task. The title of Minister of the Interior, on the other hand, is not a declaration nor the granting of an honorary title, but indicates the calling to fulfill an assigned task. The word "Minister" in the first case is a mere appearance, for a "Minister of State" performs nothing. No task is assigned to him. Nor does he receive any honorarium or pension. On the other hand, "Minister" for the man of the Interior is no mere appearance, but the real expression of the relationship in which he sees himself placed towards the King. He is truly the King's servant, as the Latin word minister also means nothing but servant. In the Old Testament, our translators have used the

expression: chosen servant, which is also the most common meaning of the Hebrew word ‘ebed. Now a Minister in Latin had exactly the same meaning. It was used for him who was invested with a high state office, but also for the household servant or for him who was appointed as an attendant to a young boy. A more precise distinction could lead to the conclusion that in a revision of the Authorized Version the very significant difference between “servant” and “minister” should be applied. In no case, however, can one speak of a “Minister of State and of Foreign Affairs” in one breath. Appearances cannot be equated. It should therefore have been “the Minister of State Thorbecke, Minister of the Interior,” in the same sense as the honorary titles of Knight, Esquire, Baron and Count are placed before the name.

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MINISTERS OF STATE - HONORARY TITLES. 141 But leaving this aside, the distinction conferred on someone by an appointment as Minister of State can, upon closer inspection, be no other meaning than that of a mere honorary title. An extraordinary Councilor of State can still be called upon in a special case, but a Minister of State does nothing in his capacity; and nothing would be lost to the country if this entire title were to disappear. It therefore depends solely on how one judges distinctions and honorary titles in general. The Union has not introduced them in America, and Switzerland has remained just as foreign to them. And in our old Republic there was only the bestowal of a golden chain, which a renowned admiral or general received to wear around his neck. But then the honored general or statesman was not included in an order or rank, but only his personal deed or merit was honored. In general, it can therefore be said that the republican state constitution provides no place for such distinctions of rank, even though in France, however revolutionary it may be in politics, not only the Legion of Honor, but also various lesser decorations are distributed. Yet these decorations do not belong to the Republic, and it may be said in particular that the Calvinist current has at least not encouraged the emergence of such distinctions. In a monarchical state, on the other hand, such means of distinction are constantly being introduced, and then it is not unnatural that these means are of two kinds, consisting partly in the bestowal of knightly crosses and ribbons, and partly in the granting of titles, the latter of which stands higher.

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The Council of State and the Ministers of State. Just as universities create honorary doctorates to honor someone’s scholarly merits, so too can the title of Privy Councillor or Minister of State serve to express that the government has also granted honor to someone’s political conduct. Thus, the once so highly esteemed meaning of being a member of a Privy Council in Germany has now been reduced to a mere tribute from the King to someone’s merits. However, this is by no means a reason to let the entire concept of the Council of

State in our country be absorbed into such an honorary distinction. That would amount to abolishing the Council of State as a college and retaining only the political grandees under the title of Privy Councillor. But we cannot applaud this. Everywhere, the task of being an administrative judge is entrusted to a separate college that is specifically established for this purpose and whose composition is related to the various and often very distinct cases that come before this jurisdiction; and even if one were to go further and create a Chamber of Control over legislation, which would be called upon to watch over the legal form, the text of the law, and the mutual connection of the laws, the abolition of the Council of State would still be most inadvisable. A Council of State remains necessary, not to interpose itself between the King and Parliament. Every attempt to weaken the grip of the purely constitutional system will always find unrelenting opposition in Calvinism. The King is for the people, and not the people for the King. That people speaks in its representation, and in that representation the government can act either through responsible ministers, as with us, or through commissions from Parliament, as in the United States, where no responsible ministers are to be found. Between the government and the people represented in Parliament or the States-General, no other power may be inserted, and the interaction of these two powers on each other must remain absolutely normal, if necessary with the help of the plebiscite.

## §21. The King remaining a factor.

What is necessary, however, and can never be missed without harm, is...

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THE KING REMAINING A FACTOR. To become a permanent body that can advise the King is a college of a permanent nature. The need for this arises for the King, first of all, from the fact that the King is the permanent factor in the Administration, and that his Departmental Ministers change. A reign of forty years is not unusual for a Sovereign of sound bodily constitution. He may have to take office already as an 18-year-old prince, and remain below the usual age limit of 58. In those forty years, he would then have had some ten ministries under him. Yet a Cabinet still does its work with us about as well as ever. Those ten ministries will now represent, one after the other, a modified, divergent, or even mutually opposing political thought; and even if the leading political thought remains the same, the difference in persons can still bring about very important changes. Just compare men like the former Minister Kappeyne van de Coppello with the Minister of the Establishment, Cort van der Linden, and you immediately feel the contrast in the persons as such, which leaves a completely different historical impression behind. Now, if one wants that the same King, successively served by such utterly divergent ministers, should not be anything other than their echo, then naturally one gets the ornament. Mr. S. van Houten may not be too

harshly judged for disputing all independent spontaneity to the King; the criticism exercised on his saying applied only to the choice of the word “ornament.” A King who can do nothing else, nor do anything else, than successively hum the political ditty presented to him by ten different flutes, is not an ornament, that is, not an adornment, but a figure that inspires aversion. Being an echo can still express a pure sound; but the same person, who in succession lets ten completely divergent echoes glide from his lips, is no man. Of course, with “ornament” was meant the splendor and brilliance of the Crown, which adorned the government, but precisely this did injustice to the seriousness that was required here. A King may not for a moment get the idea that the real splendor of his position lies in his palaces, his stables, and his parks. That would be the Mammonistic Kingship. And what, quite differently, a serious people seeks in its King, is a man of character who intends the welfare of his people, and who seeks self-satisfaction not through the state robe of his marshal, but through what he himself does for his country and people. The period of 1848,

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The Council of State and the Ministers of State, who were actually aiming to make the King a mere figurehead, are now a thing of the past. That period brought the historically necessary critique of what the Kings in general had made of the kingship. The Kings were then the great sinners, and in the 17th and 18th centuries had not a little corrupted their position by yielding to sinful desires. A reaction against this could not fail to come, and to prevent the return of such a woeful period, the necessary safeguards are now provided in the more principled consequences of constitutional life. It may even be said that exaggeration has also done harm here, and that the democratic expressions have brought harm to the democrats themselves, so much so that the significance of the Monarchical element is now again gaining the upper hand. But while this may sway back and forth again, it remains firm that the King embodies the element of the durable and the lasting unity, as distinct from the changing element in the political currents of the ballot box. The Ministers come and go, but the King remains. For this reason, the claim does not hold that a King would be obliged to consult only with his Ministers. This demand is made from a radical side, but it is the fruit of superficial thinking. Even formally, this claim cannot be admitted, because the required hearing of the Council of State itself already commands the invocation of advice from elsewhere on the fruit of the Ministerial labor. The way in which the invocation of this advice now takes place may have greatly diminished its significance, but there still lies clearly expressed in it that the King is not only not bound in an absolute sense to the proposal of his Ministers, but even under the obligation not to rely on them exclusively, but on the contrary, to always have a fixed, durable and lasting college to hear. This now accords with the durable character of the King’s administration. Just as his royal authority stands as durable and lasting over against the change of Ministerial persons, so also the nature and composition of the Council of State corresponds to this, which outlives Minister after Minister, and finds itself called upon to

judge the doings and omissions of the successive Cabinets. However the majorities in the States-General may alternate, and in connection with this the one Cabinet may succeed the other,

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STATISTICS OF THE MINISTRY. 145 replaces, it is and remains the administration over the same people in the same country; and whatever fluctuations may occur in that administration, there must remain a connection between the different parts of the legislation.

## §22. Statistics of the Ministry.

One should also reckon with the fact that a Ministry is, after all, a very inconstant magnitude in our time. Since Mr. Thorbecke, on November 7, 1849, one can say, at the beginning of the second half of the previous century, not less than twenty-seven Ministers of the Interior had taken office, from old liberals, moderately advanced, more radical, and from the Anti-Revolutionary camp. Rest did not come. The political swell kept restlessly on. And with 24 Ministers over the 50 years, from 1848 to 1901, reckoned on average, this gives a political wave every other year. Now it is so, that there were also two transitions in the Kingship, as regards the persons, in this half-century, but these two changes compared to the twenty-four changes in the Department of the Interior make then yet a strongly speaking impression of unity, firmness and coherence, all the more because the Queen, who succeeded the late King William III, may still rejoice in almost youthful vitality, and, if God permits us, can still very well, by human calculation, cross the first half of this 20th century. Born in 1880, the Queen would then have reached the age of 70 only. If now already Moses sang in Psalm 90:10: “As for the days of our years, in them are seventy years, or even by reason of strength eighty years,” then it should yet belong to the all-possible, that the life granted to our Sovereign may be extended to us until 1960. From 1850 to 1950, thus in a hundred years, there would then be only two changes in the Bearer of the Crown, while in the Cabinet the change came to the dozen in the half-century. Calculated to 1960, one would thus get about forty Cabinets together, even if the change had taken place only every four years from now on. Forty Cabinet changes now against only two changes on the Throne give a sense of durability against instability, which shows how completely right it was to assert that in the Bearer of the Crown a political life-element must come to its right, which in a non-monarchical country, and even in the Cabinet life on monarchical soil, is almost unthinkable.

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146 THE COUNCIL OF STATE AND THE MINISTERS OF STATE. changes only every four years. Forty Cabinet changes now against only two changes on the Throne give a sense of durability against instability, which shows how completely right it was to assert that in the Bearer of the Crown a political life-element must come to its right, which in a non-monarchical country, and even in the Cabinet life on monarchical soil, is almost unthinkable.

## §23. Independent Policy.

With a view to this, a certain independent policy is now demanded in a Bearer of the Crown, which remains foreign to the successive Cabinets. Even less so, if there is only a gradual difference in political direction between the successive Cabinets; but very decidedly if Cabinets succeed each other that are fundamentally opposed to each other in political starting point. Then, indeed, in a Cabinet that takes office to replace a fundamentally different Cabinet, there is usually a certain tendency not to continue the thread that the preceding Cabinet had spun, but rather to break the thread and replace it with a thread of a different fabric. It has indeed always appeared that in this moderation was observed, and that the reckless tearing up of just-issued laws, whose enactment one had opposed as a Member of Parliament, was extremely rare. Only reckless arrogance would go so far as to think first of demolishing the just-built, instead of one's own construction, in the event of a Cabinet change. But however far that sobriety may go, the fact remains nevertheless that Cabinet changes, partly already in the case of gradually differing, but especially in the case of fundamentally opposed Cabinets, must almost of themselves lead to the unraveling of the unity, at least endanger the firm interconnection of the two legislative fragments. One knows what Treub undertook against the Talma law. Hence one comes to the result that the unity and coherence of the legislation cannot rest in the Cabinets, which come and go, but must rest in the Crown, which remains under the constant Cabinet changes. Herein now lies a very peculiar vocation for the Crown.

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INDEPENDENT POLICY - CABINET CHANGE.

A constitutional King cannot impose his personal political convictions against the convictions of the people. This would be a conception of the Kingship that would be completely unacceptable to our people. The King aligns himself in the exercise of power with the clearly emerging popular conviction. Whoever cannot acquire this for himself lacks the personal suitability for the constitutional Kingship. But even if the constitutional line must be followed through, there are still nuances. A Prince who, by experience, knows how the ultra-element is constantly wavering in the popular sentiment, has it constantly in his power to

maintain a certain unity in the course of legislation. This element of maintaining unity can already make itself felt in the choice of persons for the portfolios.

## §24. Cabinet Change.

Yet for this very purpose it is necessary that the King, at each change in the Cabinet and at each important measure that comes up, can give a clear account of the situation and of what the coherence of the coming years with the past demands. Now that the Sovereign can consult the chairmen of the two Chambers at the change itself can work well, but it is still something that goes completely outside the Constitution. The chairmen of the two Chambers are not chosen with this in mind. They may be excellent for the leadership of affairs in Parliament, but it does not at all follow from this that their political insight has the clarity necessary to advise on Cabinet changes. It also very rarely happens that the majority in both Chambers differs, so that then the Chairmen often also belong to very divergent political directions. Or if, against the vote in both Chambers, the Crown has still appointed a Chairman of the First Chamber who differs in his political direction from its majority, then such an elected one would still express the sentiment of the body he presides over the least. Therefore, the custom that has now arisen of consulting the Presidents need not be given up. Even if the Constitution does not demand it, it can certainly be useful. Only

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it remains highly doubtful whether this consultation of the Presidents offers the Crown bearer what he needs in such moments. Certainly it seems strange that there is no consultation with the body that is specifically intended to advise the Crown. If the Council of State is to be the advisor to the Crown, not the least to maintain the unity of the administration in the country in the face of the changing ministers, then it is hardly to be contradicted that advice in this regard is even more serious at Cabinet changes than at a standalone legislative proposal of importance. Now this naturally depends not a little on the personal receptivity of the Monarch.

## §25. The Sovereign needs counsel.

In all countries, there have sometimes been Sovereigns of such genius, of such superior endowment, and of such comprehensive mastery, that the decisions to be taken could be left entirely to themselves. We do not say that a truly superior Prince would disdain seeking advice. Just he who stands very high knows how

often, in many respects, further clarification of details and circumstances may be necessary. But in any case, such a personally superior Prince would know how to choose his own advisers, and the care for the unity of the administration could very well be left to him. But such highly elevated personalities are also rare exceptions in the House of Orange. What has been experienced in the House of Orange for centuries, that such a series of genius heroes emerged one after the other, remains a high exception, and the course of affairs cannot depend on this exception. Especially where an hereditary prince can already assume the government at the age of 18, no one can want to establish as a rule that even a young man under 20 would always possess the sufficient maturity of insight and judgment to always make the right choice. Hence the constantly felt need to provide the Bearer of the Crown with a college that can serve him with clear information, and this entirely in confidence. The multitude of the matters that await the King's cooperation also makes having such a college almost indispensable. Even

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A COUNCIL OF STATE IS NECESSARY. - ONE DOES NOT OVERSEE THE WHOLE.

The most skilled statesmen are not equal to each Department. Someone can be an excellent Minister of Public Works or of War, without being sufficiently at home in the financial field, and knowing what the financial future of the State permits. And so also, one can be a highly esteemed Minister of Justice, without being equally at home in the affairs of agriculture, industry, and commerce. In the Cabinet, each one stands for their own Department, and in the Council of Ministers one can only indirectly, under the leadership of the Chairman, concern themselves with the particulars of another Department. One leaves what one is not at home in to others for decision; or where one is called to participate in the decision, as in the Council of Ministers, one follows the advice of one's colleague. Here about the same applies as can never be denied in the House of Representatives. Only very few Members of Parliament are at all at home in all matters of State. This is why they unite in clubs. In these clubs, the bills introduced are studied in the hands of those few members who are considered to be more particularly versed in the subjects dealt with. On their lead, a common advice is then arrived at, and this advice the members of the club then proceed to follow, even though they themselves are very well aware that they are not up to par on such a subject.

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150 THE COUNCIL OF STATE AND THE MINISTERS OF STATE.

In other countries, e.g. in France, another way of doing is still followed, by officially appointing commissions in the Chamber itself for various categories of affairs; in which commissions one then, as

much as possible, pro rata to their numerical strength, allows the various parties to cooperate. But whichever way of doing one may prefer, in all such measures the prevailing thought expresses itself, that not except in very rare exceptions can the same Member of Parliament form an independent judgment on everything.

## §26. One does not oversee the whole.

One therefore does not in the least lower or diminish a Sovereign, if one also takes into account with his person the fact, recognized everywhere else, that not except in very rare exceptions would any one person, without assistance, be able to oversee the entire domain of the State, and to come to a just conclusion on every matter of higher or lower politics, solely from his own perspective. The Sovereign too remains a person of finite comprehension. With him too, therefore, one must not count on an all-encompassing insight that would make all helpful advice superfluous. Enlightenment is therefore indispensable for the Sovereign, if he is to be able to pass a mature judgment on what his Ministers ask of him and propose to him. And it is precisely from this that one feels how incorrect it is to say that the King must rely solely and exclusively on his Ministers. For then one excludes all independent judgment of the Sovereign and reduces his decision to an echo of the Ministerial word. The King must draw an independent conclusion from the proposals of his Ministers, and for this no Sovereign can be deemed capable unless a college stands at his service that clearly shows him what is for and what is against, outlines it clearly for him, and makes him attentive to what might escape the King's attention and yet prove to be of unavoidable importance for the future of the country or for the future of the Princely House. The conclusion can therefore be no other than that in the Constitutional Monarchy the reigning Sovereign needs a trusted college that can inform him on a confidential footing, and thus prevent that under the strong pressure of the Ministers, in thoughtlessness a decision would be taken that would actually inflict irreparable damage on the interest of the country with a view to the future, or on the position of the Crown. Undoubtedly the King is obliged to keep himself informed of what is recommended or contested in the Press on political matters, and likewise of what is brought up at political meetings or assemblies of all kinds. Even what appears in magazines can be important for him. The pamphlet literature too can influence the mood of the people. To take personal cognizance of all this would be a titanic task for the Sovereign.

## §27. Private assistance is not enough.

And if it is so that even a private secretary is helpful

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PARTICULAR ASSISTANCE IS NOT ENOUGH. It may be possible to keep the King informed of all this, but this cannot be sufficient. For the whole range of these expressions from the popular sphere must also be weighed from a political point of view, and this cannot be entrusted to a private secretary, since he has no political significance, and it is precisely the political significance that is at stake here. However much it may be obvious that a Sovereign should provide himself in his Cabinet with subordinate personnel who furnish information by category, information is not yet guidance. Guidance can sift the politically important from the insignificant, and also draw the King's attention to what is truly of political importance to him; and therefore, in this respect also, only a very confidential college, composed of the most eminent men, can provide the King with what he needs. Such a college need not trouble the King with all sorts of reports that get lost in details; it can select and choose, and focus the Sovereign's attention mainly on what is of weighty importance. The task of guidance should not be limited to the college alone. There is no reason why the Sovereign should not, on appropriate occasions, personally consult a single expert from the college on detailed points. The Ministers must be able to discern in everything that they are serving a Sovereign who is too high to be merely a signer of documents. They must perceive that they are dealing with thoughtful minds with a prepared will in the Sovereign. They are not only to be the thinkers, so that the King would merely be the seal that authenticates the products of their thinking. However important the ministerial office may be, and however serious the responsibility of the Minister, so that it is not only permitted to him, but even his duty and calling, in a certain sense to exert political pressure on the Sovereign, they must nevertheless always be able to discern that they are serving in the King a thoughtful Sovereign, and that a deliberate policy, and not mere arbitrary will, must lead to the conclusion. If a King wants to be a mere figurehead, one must acquiesce in this, but it must never be aimed at, never be presented, as if the role of a figurehead were the ideal of the Constitutional Sovereign. On the contrary, from the outset the princely education of the King must be directed towards a sense of duty of the highest order.

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THE COUNCIL OF STATE AND THE MINISTERS OF STATE. A higher order calls him to greater vigilance. Not even in the most extreme case must the King engage in a struggle for his royal or dynastic rights. The relationship between him and his advisory college must be such that the King prefers to champion the rights and interests of the people, and that the college, which enjoys his confidence, lets its warning be heard when the right balance between King and Chamber is in danger of being disturbed. The King embraces all Departments, i.e. the entire State, in his deliberations, and likewise the King remains, even when the Ministers have gone. Not in them, but in the Sovereign, is the unity, the coherence of past, present

and future represented. What the ministerial council can only do very partially, namely gather the products of all Departments into one bouquet, is the task of the Council of State, because this college has to advise the Sovereign, and the peculiar character of the monarchical position itself entails that the King has to watch over the State and not directly over any single Department.

## §28. Foreign Affairs.

This now applies to the whole affair of the State, but even more so in particular to Foreign Affairs, National Defense and the Colonies. The relationship of the Sovereign to other foreign Sovereigns has a completely peculiar character. Sovereigns often exist in blood or family relationship to each other. They correspond with each other. They pay each other visits, and on these visits important conversations often take place, which may not go beyond the Minister of Foreign Affairs, but are then nevertheless conducted by the Sovereign himself, even in his presence. The King receives envoys from other Powers, and even ambassadors, as was also the case in The Hague in the past, but has since come to an end. Ambassadors now have this peculiarity that they can visit the King directly, bypassing the Minister of Foreign Affairs, and discuss important matters with him personally. While it is rightly emphasized that in such visits the Minister of Foreign Affairs remains the responsible person, it is nevertheless impossible to prevent the King himself from leading the encounter. One hears that even a toast that the Sovereign will propose is communicated in advance to the Minister of Foreign Affairs, but one knows how often the Sovereign disregards this. Abroad, the custom is that when the Sovereign pays an official visit to another government, the Minister of Foreign Affairs always accompanies him and is present at all discussions. In our country, on the other hand, this only happens as a rare exception, which can be fraught with danger. When receiving foreign envoys at the Court, the Minister of Foreign Affairs is indeed accustomed to participate in the introduction of the Envoy, but this does not take away the fact that there are then very well opportunities where the Sovereign comes into discussion with such an envoy, entirely at his own risk. Enough to draw attention to the fact that the Department of Foreign Affairs can pose very serious difficulties in this respect, and that it is therefore not only desirable but necessary that the King, also as Sovereign among Sovereigns, can dispose of the not only desirable but often highly necessary information. In 1914 and thereafter, everyone felt this. Article 57 of the Constitution clearly states: “The King has the supreme administration of Foreign Affairs,” and, even more strongly, Article 58 stipulates that the King declares war. Likewise, Article 58 stipulates that the King concludes and ratifies all treaties with foreign Powers, and need only give the States General further information on the content to the extent that he deems the interest of the State to allow it. A rather ticklish point, since the conclusion of the treaty usually precedes the communication of it to the States General. §29. Navy and Army. Up to a certain point at least, the same applies to the navy and

army. Not only does the King conclude the treaties and declare war, but Article 60 also assigns him “the supreme command of the naval and military forces.” The King can himself take the field at the head of his army, and there has always been a peculiar relationship between the Sovereign and the officer corps, which is already expressed in the Orange cockade.

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154THE COUNCIL OF STATE AND THE MINISTERS OF STATE. And on this basis it does not distinguish itself from any other corps of officials. Now the Ministers take turns replacing each other, and a passing Cabinet is strongly driven to significantly weaken the position of the Navy and Army—in such a way that their restoration to strength would later be unattainable under another Cabinet—then undoubtedly the obligation would rest on the King to stand up for the energetic significance of national defense. In the period that has elapsed since 1848, this has not always been done. Highly partisan driving has led to the neglect of our Defense, and when the war broke out in 1914, it was felt by almost all parties how much the Navy and Army had been somewhat neglected; so much so that the very parties who had most insisted on the solidity of our Defense then raised the cry for universal conscription. It is therefore so desirable for this State interest that the King, as representing the permanent and enduring, should exert such pressure on the Cabinets that are only passing, that the State interest is attended to as required. Also with a view to this, it is therefore so necessary that the King should always have a college of advisers at his service to watch over the interests of the country.

## §30. The Colonies.

The third point on which emphasis should be laid here is the administration of our Possessions and Colonies. Here too, after all, Article 61 of the Constitution states: “The King has the Supreme Administration of the Colonies and Possessions of the Realm in other parts of the world.” That addition: “in other parts of the world” could have been omitted. This is not the main point here. The main point is that these Possessions and Colonies do not form a part of the Realm, but belong to the Realm. It is true that Article I of the Constitution was amended in 1887 so that now the Colonies and Possessions are also considered to form part of the Kingdom of the Netherlands, but this was certainly not an improvement. In the 1815 wording, Article I spoke exclusively of the Kingdom of the Netherlands, referring to the separate Provinces. But as early as 1848, a change was made in this respect, so that it then came to stand that the Kingdom of the Netherlands in Europe was considered to consist of our eleven provinces. This already tended to consider the Colonies as well as a part of the Realm. And in 1887 they went even further and included them in the Realm. That this is incorrect is already evident from the fact that Java, etc. do not belong to the King, but to the Realm, and that the King of the Netherlands is not also King of Java. Java, etc. belong to the Realm, and the Supreme Administration rests with the Bearer of the Crown, because he is the ruling Sovereign of the Realm. But leaving this aside, the relationship of the Crown to Sumatra and to Gelderland certainly differed in every respect, and from this too arises the necessity that a competent college should stand at the King’s service to advise him on matters of administration over large tracts of land, which the King himself usually does not even know by sight. I consider it particularly necessary to point this out,

because the Constitution itself in Articles 55, 58 and 59 makes exceptions here. For the rest, the need for advice is just as much the case with regard to the other Departments.

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THE COLONIES. - CONCLUSION. 155 A King needs a clear insight into the conditions and needs of the State. In himself, whether young or old, sufficient knowledge of State affairs cannot be presumed. It may be there, but it may also not be. And in this respect, it can least of all be counted on with any certainty. Relying on the certain is a requirement here.

## §31. Conclusion.

Briefly summarized, the conclusion comes down to this: Firstly, that the Council of State, or more understandably expressed, the Council of State, must be relieved of the task of controlling laws, administrative measures and decisions, and that this should then be formally entrusted to a separate Chamber of Control, which, without political significance, takes care of the proper form and proper coherence of laws and ordinances. Secondly, that administrative jurisdiction does not belong to a department of the Council of State, but requires an independent college, and indeed a college that is not one-sidedly composed, but in which the autonomous element also has a voice.

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156THE COUNCIL OF STATE AND THE MINISTERS OF STATE. The element of our municipal and provincial administrations is represented. And understand that the Council of State or of State is a trusted college for the enlightenment of the Bearer of the Crown, of which he himself is the natural Chairman, to whose advice he has recourse as often as he feels the need for it, and that he offers his advice as often as the College by majority decides that it must resolve to do so. And this with the tendency to represent the unity of the State against the division of the Departments: to represent the lasting interests of the people against the passing and coming Cabinets; and to keep the relationship between Country and People on the one hand and King and Dynasty on the other in the right balance. Extraordinary Councils of State ought to become an active element, and to be appointed with a view to special interests. The Ministers of State, finally, are nothing else than bearers of an honorary title, of nobility or knighthood, only differing in this, that other honors from the Crown have personal peculiarities or particular deeds as their object, while the honorary title of Minister of State wishes to express how the one thus appointed is esteemed by the Crown in regard to the general interest and the whole State to have performed or to be able to perform something meritorious. The

conferring of knighthoods and honorary titles of that nature is connected with the institution of the Monarchy. This innocent means of binding a few persons to itself, the Monarchy may be left to, however little effect it may have in itself.

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DIVISION OF THE STATE TASK. - ELSEWHERE ANDERS. SEE AMERICA. 157Originally, something more than an honorary title was intended with the Ministership of State, as appears, among other things, from the provision in Art. 9 of the Decree of March 31, 1842, Stbl. n°. 9. For this article provided that the King could temporarily include such Ministers of State in the Council of Ministers. Yet this idea did not hold. The reason why it seemed advisable to us to speak of these Ministers of State not among the Departmental Ministers, but in one chapter with the Council of State, is that the Ministers bear the Departmental character and do not derive their position from the State as a whole. Since this broader character, which the Ministers lack, does belong to the Council of State and the Ministers of State, it seemed more correct to combine these two. The Council of Ministers remains the sum of the parts, and lacks the organic unity concept. Only political power has ever been granted to the Council of State, with the exception of the exercise of government. Chapter V THE DEPARTMENTAL MINISTRIES

## §1. Division of the State Task.

With the exception of a very few miniature states, such as San Marino or Hohenzollern-Segmaringen, the task of the State is too extensive in a country of any significance to be placed in the hands of a single person. Hence the division of the administration into sections, commonly called Departments or Ministries. Yet this institution by no means implies only a division of labor. It also establishes the indispensable link between the Bearer of the Crown and the Representation of the People. §2. Elsewhere anders. See America. The indispensable link to connect Government and Parliament could also be established in another way, as is actually the case in the United States of North America. However, what can be done there, because the form of the State is republican, cannot well be thought of in the Monarchy. True, as history teaches, in the English way of connecting Government and Parliament, but not what came about in America. In America, the Ministers are nothing else than Secretaries of the President. His task alone is too great, and therefore he surrounds himself with helpers, who bear the title of Secretary of State, of War, of the Navy, etc.

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THE DEPARTMENTAL MINISTRIES.

He himself appoints them entirely at his own discretion, and they alone deal with him and are accountable to him alone. The political character of these Ministers is also entirely different from the significance they have in our country or in England. They do not appear before Parliament at all in America. They are the hands of the President, and nothing more. Yet responsible persons also appear in the American Union, but they are not appointed by the President, but by the People's Representatives. It is Congress that appoints standing committees from among its members for the administration of the various parts of the government. These are the Committees that come into contact with the President, and through the President with the Ministers. But in Congress, the President sends his proposals directly, and it is Committees that advocate for them in Congress. One feels how here nothing else is given than a sharpening of popular government. It is the people who, with universal suffrage, appoint Congress, not state-wise, but once and for all for the entire Union. The individual States also have a say, but only in the Senate. The delegation to Congress, on the other hand, is a direct one, through mixed voters. For Congress, the entire Union forms one all-encompassing state; the reason why there can be no question of real sovereignty in the individual States. In the thus elected Congress, therefore, the entire people is represented, not in a French-revolutionary sense, as if the plenitude of power originally rested in man, and thus in the constituent parts of the people, but with the understanding that one confesses: "As God has given us the power to choose our own magistrates." The origin of all authority and power therefore remains honored in Almighty God; but by God and on behalf of God, this authority and this power have been placed in the people, and it is the people of the United States, in whose representation the actual government resides. Yet the appointment of the President is not entrusted to this Congress, but remains reserved for the people themselves. The people thus call, as it were, two things into being. On the one hand, a head in the President, and on the other hand, a representation in Congress, plus the Senate. These two: President and Congress, now marry, as we may express it, and a twofold action now takes place: first, the President appoints assistants to himself,

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MINISTERS AS MEMBERS OF PARLIAMENT.159 On the one hand, he multiplies them, and these are his ministers; while on the other hand, Congress elects from its midst the various commissions for State affairs, which, together with the President, bring forward the proposals that are then submitted to the judgment and approval of Congress, and subsequently of the Senate. This way of proceeding is thus entirely different from the arrangement that has come about in most European states. Yet even the way of proceeding that is followed in Europe is not uniform. England in particular takes a distinct place in this. True, the King in England also appoints his ministers for the various parts of the State's task, but as ministers they can only act in their capacity as members of Parliament. It is not the case that a minister, as with us, can also be a member of Parliament, and not even that he must be re-elected as a member of the House after his

appointment. This latter is also indispensable, but in acting as a minister, the appointee does so in his dual capacity, on the one hand as invested with the confidence of the Electors, and on the other hand as invested with the confidence of the Crown. It is not a Parliament that stands on its own, and into which the appointee enters as chosen by the King to take a seat at the ministerial table, which is entirely distinct from the parliamentary benches. Ministerial benches and members' benches form one whole. Those who act as ministers sit in Parliament first and foremost as members of Parliament, but then as such members who have been honored with the confidence of the Crown. In England too, the ministers are a link between Sovereign and People, but not in the sense that the King, as it were, hooks this link from the outside onto the People's representation; no, it must be understood quite differently in England, namely that the ministerial members are members of Parliament, and that the King, by appointing these members as Ministers, attaches the link himself, which has its first firmness in the House. Neither the above-sketched American nor this English way of proceeding applies among us.

## §3. Ministers as Members of Parliament.

With us, it is the Bearer of the Crown who, as the possessor

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The Departmental Ministries possess an independent power that comes to the People's Representatives to lead the course of affairs in association with them, according to the manner agreed upon with them in the Constitution. Hence, even the permitted choice of ministers from among the members of the States-General found no entry with us. In the Pierson-Borgesius Cabinet, an attempt was made to try this, as the Messrs. Borgesius and Lely both sought and obtained a mandate, but it did not suffice and has not been followed since. Especially the circumstance that not all, but only two Ministers, were in possession of the dual quality, proved detrimental in practice. It then became all too conceivable that one of the two minister-Chamber members would vote against a bill of one of his colleagues submitted to the judgment of the States-General. Speaking as a Chamber member proved difficult for them. Even attending the meetings of the States-General did not go very smoothly. In short, both from the side of the Chamber and from the side of these Ministers, it was soon devalued that the connection of these two qualities did not run smoothly. At times, one even got the impression that these elected officials would rather have returned their mandate to the Electors. In the past, one had not gone to this idea in practice. When the experiment was taken, it was on a small scale. And on that test, the whole undertaking soon collapsed. With 1901, the experiment fell away of itself, and in the Cabinets that have since taken office, the newly emerged experiment has immediately fallen completely out of practice; as one may well predict, to remain completely outside of

practice. One should never have had to create the possibility of such a dual employment in the Constitution. Art. 94 also only determines sideways that a Minister can also be a Chamber member. It says: “The Heads of the Ministerial Departments have seats in both Chambers,” and it is then added: “They have only an advisory vote, unless they may have been appointed as members of the assembly.” The possibility of the dual employment is thus opened up; it is not excluded; but one feels from the choice of words that there is more a matter of toleration than of something that would be normal and desirable. If one asks why then this addition occurs in Art. 94, and why such a dual employment was not rather cut off, it lies at hand that the existing custom in the Constitutional country allowed something of a modified meaning.

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THE CROWN AND THE STATES-GENERAL.161 that it was innocent to oppose it so sharply against us; in the matter, on the other hand, they disapproved of the position of the Crown as too independent in its origin, so as not to lead to a somewhat divergent result in the relationship of the ministers to the States-General.

## §4. The Crown and the States-General.

Both, the Crown and the States-General, saw their powers granted and mutually recognized; but the Ministers of the Crown were the agents of the Crown, and not of the States-General or the people. It was the Bearer of the Crown who appointed them and went about it entirely freely. Only, the agents appointed by him were struck with complete powerlessness if the States-General refused them the indispensable cooperation for the execution of their office. With the introduction of ministerial responsibility, a bond was thus laid, which the servants of the Crown had to conform to the spirit and sense of the people of the Netherlands as revealed at the ballot box. In and through that ballot box, the people spoke, sometimes in this sense, sometimes in that. The contrast could be antithetical, the difference could also be merely gradual, but the Crown could not go further and would hamper itself in the execution of the governing task if the Ministers who acted as its servants had missed all conformity with the pronouncement of the ballot box. The connection did not fail in that, but the duality remained unimpaired. There remained the People who spoke through their representatives, and there remained the King who bore the Crown as the dynastic heir of historical rights. Of a blending of the parliamentary and the royal character of the authority, there was no question with us. Formally, both remained sister-like separated from each other, and the Constitution regulated their mutual relationship. It is true that for a few decades the conservative-aristocratic side has tried to push the Crown forward, as if the people, for the glorification of the Crown, were merely an appendage to the Crown, and even Da Costa was for a moment confused in this relationship of authority. The Anti-Revolutionary party, on the other hand, never strayed in this. For us, the people

always stood in the foreground, and it was to this people that God, for the good of this people, gave the dynasty of Orange. That this relationship has all too often led to a lowering of the high significance of the Kingship is not denied here, and we do not dispute that an unfortunate choice of Ministers has sometimes promoted this evil. Everything depends so much on the personal here. Even in England it was repeatedly shown how rich the influence of the Crown can still be, if the Prince who wears the Crown is rich in a genius for the constitution. No less was it evident how a genius-constitutional Minister can, even under strong democratic pressure, still succeed in upholding the honor of the Crown. And even the way in which the democratic enthusiasts and drivers were personally treated proved to be of no small influence on the course of affairs. Just think of the attitude of many Social Democrats when the entire European household was shaken by the war in 1914. On the point of authority, however, there can and may never be given in. No higher honor can exist for a Prince than to bless his people; and the Minister who is not deeply imbued with this is spoiling, even if he intends it in the least, the only good relationship that, according to a Higher purpose, must exist between Prince and People.

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## §5. Ballot box and new Cabinet.

That is why, however, the Bearer of the Crown threatens to spoil his own position if he tries, in the appointment of a new Cabinet, not to reckon very closely with the outcome of the preceding ballot box. He can be authorized, even compelled, to deviate from what that outcome seemed to demand, if, as in 1913, the parties that secured the majority in the Second Chamber at the ballot box could not reach an agreement among themselves. Yet the Queen had then also followed the electoral demand and had begun the Cabinet formation by entrusting it to Dr. Bos; and only when he proved unable to fulfill the task he had taken upon himself and resigned his mandate, was Mr. Cort v.d. Linden called. Something like this, however, does not come about without...

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RESISTANCE TO ANY HESITATION IN DUTY.163 This occurs very rarely, and in the ordinary course it is therefore always desirable that the Crown should promptly give heed to the electoral indication and call upon the person whom it can be regarded as best expressing the desire of the majority of the voters to form a Cabinet. Not everyone agrees with this, and especially from the Conservative side it has been repeatedly argued that following this line of conduct would be detrimental to the dignity of the Crown. The choice of Ministers, it is then said, is an absolute prerogative of the Crown, and one promotes popular sovereignty at

the expense of the Royal Majesty if one fosters the idea that the ballot box indicates which kind of statesman should be entrusted with the formation of the Cabinet. Formally, this is also completely correct. If the bearer of the Crown, after a decisive liberal majority emerged from the ballot box, were to call upon a statesman of the Right to form the Cabinet, this would not be in conflict with the Constitution, and yet the Sovereign would thereby undermine their own prestige. The consequence of such a commission would immediately give rise to a violent clash between the Cabinet and the States General.

## §6. Resistance to any hesitation in duty.

Even the constitutionally-minded members of the Right would have to take a decisive part in the opposition to such an appointment. Nothing could come of it. Before long, the newly appointed Cabinet would have to request its dismissal. And if then a liberal Cabinet took its place, the People would have gained influence and the Crown would have lost prestige. One is reminded of the days of the Proclamations with the orange borders. Also at the resignation of the Cabinet-Mackay, there was a moment when the King did not immediately submit to the pronouncement of the ballot box; but this protest against the necessity of yielding to the pronouncement of the ballot box died away within a very short time, and with the advent of the Cabinet-Tienhoven-Tak we moved again into the normal line. Therefore, precisely in the interest of the Crown itself, one cannot be warned enough against any provocation of a struggle between the choice of the Cabinet-formateur and the result of the ballot.

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164 THE DEPARTMENTAL MINISTRIES. One must never for a moment hesitate on this critical point. The weakest attempt to bargain with the result of the ballot box must never be risked. In the case of a doubtful ballot box result, uncertainty may arise, and even about the choice of the person who will be called upon as Cabinet-formateur, differences of opinion may arise; even about the candidates for the other Departments the Crown can exercise criticism. On the other hand, with regard to the Cabinet-formateur as such, the Sovereign has the most brilliant position, if they, without the slightest attempt at resistance, immediately and straightforwardly follow the pronouncement of the majority of the voters. Just then, their Majesty remains unscathed, and the perverse consequences of a wrongly guided electoral action do not fall on the King's account, but on the account of the defective guidance that had been given to the people in the electoral field. Not only the guidance in the ballot box, but the Electoral Law itself may have caused the opinion of the people to be expressed incorrectly, and it may well be that later a legislative measure will be necessary to remedy this. But if the ballot box has been active, and as a result of that action a majority of a certain direction has appeared in the Second Chamber, then it is that direction that must come out in the

new Cabinet, and the King stands unblemished and unharmed in their honor, if they, without a trace of resistance, allow that pronouncement of the people of voters to take effect. The Crown is for the people, never the people for the Crown.

## §7. Recourse to dissolution.

It has been objected to this that the Crown, if it chooses otherwise, and thereby the opposition in the States General becomes too strong, possesses the power to dissolve the States General; and this too has been tested in the days of the Proclamation; but even taking this way out led to bitter disappointment. Not the electoral power of the voters, but precisely the royal prestige had then suffered very considerable damage, and has never been fully restored. Even after the pronouncement of the ballot box, there must be no conflict. Such a

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RECOURSE TO DISSOLUTION - THIS STRUGGLE IS NOW OVER.

The Crown always loses in a struggle, unless a higher principle is at stake, so that it is not about the supremacy of the royal authority, but about a sacred interest. The right of dissolution may seem to be, but is not in reality, a power granted to the Crown for self-defense. It may have seemed originally, or even that the right of dissolution itself entrusted a highly questionable power to the Bearer of the Crown, but in fact it turned out quite differently. Historically, it is a fact that every attempt at dissolution, at least as a rule, has failed miserably, and has resulted in the opposite of what was intended. It may therefore be safely established that any resistance to the express will of the ballot box has always been detrimental to the dignity of the Crown, and that the position of the Crown has been strengthened, not weakened, whenever immediate and full effect was given to the pronouncement of the ballot box. Not for a moment even may the impression take root that the Crown represents an interest of its own, so that the people would have to lean on it to serve this independent interest. The very awareness of this must not arise. Above all, at such a moment of Cabinet change, the whole people must feel that the tide of public opinion is truly decisive even for the Cabinet. Neither in the retirement of the Kuyper Cabinet in 1905 nor in that of the Heemskerk Cabinet in 1913 has the hesitation that caused it to waver in 1891 been repeated.

## §8. This struggle is now over.

One may say that we have now moved beyond the theory of the opposite. The forced maneuvers of the old Mr. Heemskerk have made us definitively abandon all resistance to the ordinary rule. The ballot box, not the Crown, determines the political direction in which the country will be governed; and not on the Crown that appoints, but on the Statesmen who follow the call to take a seat in the new Cabinet, rests the responsibility for what will then come to pass. Especially from the circle of Da Costa were ideas propagated among us that were connected with his incorrect conception of the authority of the Constitution; but Groen van Prinsterer soon saw through this and was quick to attack it. Only a coup d'état can make a breach here, but for a coup d'état no argument can be made in theory. Whoever resorts to such an attack on the state order acknowledges for himself that he is resorting to a completely arbitrary act. Not until afterwards can the necessity of such an attack be argued, and this argument must then show that the country was indeed in political danger of life. This threat can come from two sides. There can be a danger to the life of the country in the international relations, which, if there is to be any rescue, necessitates immediate and unconditional decisive action. Or also, there can be a threat to the established order of things by Jacobin unrest and by an unscrupulous Fronde. But it cannot be claimed that a coup d'état would always in itself be justified; as a rule, this is too dangerous an undertaking to be resorted to. In the theory of constitutional law, there is no place for such an attack on the established order of things. The rule must remain that the Ministers are the intermediaries who connect the Crown and the People with each other, and the less theorized is made of their mutual relationship, and the more calmly and quietly the Crown allows the course of electoral life to take its course, the more firmly the Majesty of the Crown will take root. Just as one knows from a child who constantly pulls up a young plant to examine the just emerging roots, how he thereby ruins the regular growth of the plant and ultimately causes it to die completely. And so also of the monarchical plant it can be said, that it thrives all the better the more quietly and normally one allows its roots to work through. Nothing weakens its vital force as much as precisely this constant meddling with the roots of the monarchical being. Only letting it grow quietly promises bloom here as well.

## §9. A Council of Ministers.

Not devoid of importance is further the question of whether or not there is a Council of Ministers, just as there is a Council of State. In the new period of our political life, which began in 1848, the idea of a Council of Ministers began to emerge...

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166 THE DEPARTMENTAL MINISTRIES.... but it was not until the Thorbecke Constitution of 1848 that it received its first legal recognition. This Council of Ministers, however, is not a body with independent authority, but merely an advisory body to the Crown. The Ministers are not the representatives of the people, but the confidants of the Crown. They are not the leaders of the people, but the intermediaries between Crown and People. Their task is not to carry out the will of the people, but to advise the Crown on how to govern the country. The Crown remains the sovereign, the Ministers are merely the servants of the Crown. This is the theory, but in practice it has turned out quite differently. In practice, the Ministers have become the leaders of the people, and the Crown has become the servant of the Ministers. The people no longer look to the Crown, but to the Ministers, for the direction of the country's policy. And the Crown, in order to maintain its position, has had to submit to the will of the Ministers. This is the reality of the situation, and it is a reality that cannot be ignored.

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A COUNCIL OF MINISTERS It is true that people have slowly come to recognize the need for such a Council; but even Fransen van de Putte resisted this idea in 1901, which Dr. Kuyper defended. And although it is acknowledged that one can better reckon with such a Council, it cannot be denied that our Constitution, except in Article 38, knows nothing of the establishment of such a Council. The seventh division of the Second Chapter of the Constitution has the title: "Of the Council of State and the Ministerial Departments." It does not say: "Of the Council of State and the Council of Ministers," but: "and of the Ministerial Departments"—each on its own. Article 77 speaks just as little of a Cabinet, but stipulates: "The King establishes the Ministerial Departments and appoints and dismisses their heads as he sees fit." Even stranger is that in the second paragraph of Article 72 we read: "The heads of the Ministerial Departments provide for the execution of the Constitution and the other laws." Now it is self-evident that all kinds of things are determined in our Constitution that can only be firmly established through sufficient cooperation of the Ministers, and yet no Council is mentioned, and the heads of the Departments are each named individually, as if the government of the State were thus divided into pieces and fragments. Only in Article 38 does the Constitution discuss the case where the King is unable to govern, and then, it states, "the heads of the Ministerial Departments shall act in consultation." This somewhat peculiar expression shows that whoever formulated it did not think of an official body called the Cabinet. The guiding idea remained that the unity of government resided solely in the person of the King, and that this unity of power, as it were, had its hands and arms in the Ministers to exert the necessary outward action. Nor does our Constitution state that the King, just as he is president of the Council of State, would also be the chairman of the Cabinet. On the contrary, one of the Ministers always acts as president. The Ministers are together just as much the organ through which the royal power over the country is exercised. With this in mind, it is

unthinkable that these seven or eight separate organs would not have to cooperate, and they can only cooperate under presidential leadership. And also

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168 DEPARTMENTAL MINISTRIES. For every bill that goes to the States-General, all the Ministers together bear ministerial responsibility. When a regulation for the meetings of the heads of the Departments was then issued, it could not be otherwise, or the Ministers did not appear in it as chance-met officials, but as servants of the Crown who had to come together regularly and therefore needed a president. In fact, the Council was thus. Often this Council even met twice a week.

## §10. A Fixed Chairman? The only thing that remained limping was t...

A Fixed Chairman? The only thing that remained limping was the question whether the Cabinet Formateur would be the permanent fixed Chairman, or whether the various Ministers, in turn, would be entrusted with the leadership of the whole. Initially, they did not want to allow a fixed presidium. In a fixed sequence, each Minister then received the gavel in turn, and only the duration of each period still differed. The presidium could change by the month, by the two months, and so on. This was relatively indifferent, but a continuous chairmanship was in any case excluded. And this is precisely what has now been changed in the 1901 Regulations, so that the Queen appoints the Chairman, and the Minister chosen by her presides as long as it seems desirable to her. If one asks what preference was given earlier to a presidium that alternated, this is to be sought in two things. On the one hand, each Minister wished to remain free, to be on an equal footing with his colleagues, not to be under collegial pressure, and, as far as some leadership was indispensable, to be able to share in giving that leadership with his fellow officials. It should not be a Council that came together; it had to be a loose gathering of equal officials. And it was precisely this equality that was threatened if one of them held the gavel throughout the entire four-year period. It was precisely against the appearance and the corps that objections were raised. The system should not become a college. The Ministers had to be completely independent persons who only came together now and then as having a common interest, to discuss and decide on that common interest.

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A PERMANENT CHAIRMAN?

The discussion of common interests was the first task of the Ministers. And while thus the first rank grew out of the Ministers' desire for personal independence in their administration, it was also natural that the Crown would rather deal with independent agents than with a firmly united Council of Ministers. Yet it was in the nature of things that this view had to give way to the unifying conception of the ministerial office. Already in the formation of a new Cabinet, the idea of unity was at work. It was not the King who, according to his own insights and good pleasure, successively called six, seven, or eight statesmen to himself and appointed them as Ministers, as would have been proper under the old system, but the Sovereign confined himself to summoning one prominent statesman to the fore and entrusting him with the formation of the entire Cabinet. From this first and only summoned one, the nomination then proceeded, and it was to his nomination that the King affixed his seal, often without even, however briefly, exchanging thoughts with the other Ministers. Not infrequently did the King first become personally acquainted with the newly appointed Ministers at the swearing-in ceremony. In various ways the King could gather information about the person most suitable for the formation of the Cabinet; but once the King's choice had settled on a particular statesman, the further selection of persons was often left to him alone and entrusted to him. For all further steps that would lead to this end, the initiative remained with him and him alone. He sought, he chose, he discussed the conditions. He was the one who brought the various statesmen, on whom he had fixed his attention and who were still strangers to each other, into connection with one another. He discussed with those summoned the course of conduct the new Cabinet would follow. In short, he and he alone was in fact the factotum in the formation. The determination of the governing program to be offered proceeded from him, and only the consent of those he had summoned together ratified what he had devised. To be sure, after this nomination, the program belonging to that nomination had to be presented to the Crown, and the formation, as far as necessary, had to be discussed with the Crown. It also happened sometimes that the King, before the final appointment, still wanted to hear the opinion of the President of the Council or of another Minister.

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170 THE DEPARTMENTAL MINISTRIES. That the Crown demanded certain modifications, and that these were negotiated by the Cabinet-maker with his future colleagues—how could it be otherwise, for only the Crown could give its approval? But amidst all reverence for this royal prerogative, it had nonetheless become an increasingly fixed convention that the Cabinet-maker, and not the Crown, actually brought the formation to fruition. It was from him that the connection emanated, by which these now eight new Ministers were assembled into a cohesive whole and empowered to conduct a homogeneous administration.

## §11. Homogeneity.

One knows how Groen van Prinsterer constantly insisted on this homogeneous character of the administration. A Cabinet composed of Ministers each pursuing their own path and each seeking to advance their own political direction would soon become the plaything of the States-General. No “unified” force could emanate from it, because it was not one. Even in the ancient name of “Cabinet” lay the idea of a unity of firm cohesion. The more the involvement of the Government in the life of the people expanded, the more urgent the need to ensure that one Minister did not work against another. Even the Tinhoven-Tak Cabinet, may its memory be cursed, has taught us how fatal a lack of homogeneity can ultimately become for the entire Cabinet. But it follows from this that it was not enough to secure this homogeneity in the Cabinet’s program at the time of its formation; it was equally necessary, indeed even more necessary, to maintain that homogeneity throughout the further conduct of the administration. Even the order in which subjects were to be addressed had to be firmly assured, lest one Minister cause another to stumble. But all of this was absolutely unattainable if first one, then another Minister in the college presided. Whoever presides not only holds the gavel, but also always wields no small influence over the course of affairs. It is therefore of the utmost importance for all the Ministers together that this influence emanating from the leadership should always move in a uniform direction, remain in conformity with the program, and proceed without resistance or delay.

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HOMOGENEITY.

Is it not already the case that more than one Cabinet has failed because the driving force was hidden away? Now, with the situation as it stands, how does one intend to have each of the Ministers preside in turn? Then, one after the other, Interior Affairs, Navy, War, Public Works, Colonies, and now also Agriculture, would come into play. Is it not obvious that someone who has served as Minister of Foreign Affairs can often appear, and will often need to appear, who as a diplomat has learned many countries more intimately, but precisely because of that is less well-versed in the political conditions of his own country? Does it not go the same way that a capable, clear-thinking, thoroughly knowledgeable naval officer can be appointed to the Department of the Navy, but has more experience of the dangers than he has explored the political situation of his own country? Is it not often the case that the same applies to the General who maintains the national defense on the Department of War as desired? Is it not entirely conceivable that an engineer appears for Public Works and for Agriculture, who is unparalleled in his specialty, yet is not sufficiently versed in the general legislation to lead the general administration? And may it not even be said of the

Colonies that a statesman who is at home in Java often stands somewhat as a stranger to the political situation in the mother country? You understand me well. I do not in the least dispute the possibility that from the ranks of our diplomats, admirals and generals, engineers and colonial specialists, a man may arise who is a born statesman and will not easily be surpassed by anyone in the correctness of his policies and the many-sidedness of his insight for the conduct of affairs. But here too the exception confirms the rule, and the rule is and remains that statesmen like Thorbecke, the elder Heemskerk Azn., Kappeyne van de Coppello and Van Houten did not wear the uniform, were not technical specialists, and had not been guests in the East for long periods. Now, suppose the Cabinet-maker is a seasoned man for the presidency, but sitting with him in the council of Ministers is a brave admiral, a skilled diplomat or a capable policy engineer - does one not then feel that these specialists cannot be the chosen ones for the chairmanship, and that they are usually far too little involved in general politics to be able to take the lead in affairs? In addition, the States-General may also feel the need for...

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THE DEPARTMENTAL MINISTRIES. It is not merely a matter of consulting the first Minister or feeling his pulse, but it seems urgently necessary to provoke a debate on the general policy of the country. In connection with the Colonies, it is also not better to think that, as it is now, the answer to the States-General is given in the name of the entire Cabinet by the first-called, to whose choice all colleagues owe their ministerial life. In not a single, truly Constitutionally-governed country is it otherwise understood, and the dissatisfaction of the States-General would not be dampened if, in such a matter, the Cabinet-former were silent and a military or technical Minister were put forward. The course of this matter can therefore be no other than it has actually been. The former of the Cabinet must be the designated chairman and remain so until the end, and under his presidency and leadership the corps of Ministers must naturally come together as a Cabinet Council.

## §12. Number of Departments.

The number of Departments remained at six in our country. There was a Department of Foreign Affairs, one for the Interior, one for Justice, the Navy, War and the Colonies. As a seventh Department, a new Department was added on November 6, 1877 under the name of Public Works, Trade and Industry, for which Tak van Poortvliet took office for the first time. And under the leadership of Minister De Meester, this newly established Department was again divided into two, and we received as the eighth Department that of Agriculture, Trade and Industry. In this way, the Interior was greatly relieved, since both Public Works and Agriculture, Trade and Industry had previously fallen under the Interior.

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Also in 1901–1905, a part of this new Department, namely the Labor division, had been included in the Interior, but after the crisis of 1905 this division went back to Public Works, and then to Agriculture, Trade and Industry. This number of Departments is not large for our country. The population has doubled compared to earlier, and what speaks most for this, the involvement of the Government in economic affairs, which could hardly be mentioned before, has been greatly expanded since then. Of more than one Department, it can be said that the work that now comes under the responsibility of more than one Minister amounts to at least double what it was in earlier days. At the political revolution in 1848, the ministerial burden was still so small that even a very busy man like Thorbecke did not stand for half of what later came under the responsibility of the Minister of the Interior. It is to this very serious increase in the second half of the previous century that it must be attributed that the Department of the Interior, as it existed under Thorbecke, soon split into three Departments. This increase of the Departments by two may therefore also be welcomed. It was necessary. In Belgium, the number stood at eleven in 1914. There had gradually been a separate Department for Arts and Sciences, one for Railways, one for Agriculture and Public Works, one for Industry and Labor added to the former regular Departments. So there is no question that the number of eight for the Netherlands would be excessive. The only question that remained was whether the separation of the Navy and War was still justified. Already in 1901, Dr. Kuyper had urged a merger of these two, and in 1912 Mr. Colijn was the head of both Departments, and there was the intention, after the election campaign, to unite them if the Cabinet remained in office. This idea of merging the two has not taken effect. In 1913, the gentlemen Rambonnet and Bosboom again appeared as separate Ministers, and the chance of a merger has certainly not improved. A final decision on this may only be expected when the Colonial Navy has obtained its definitive regulation. It is to be expected that then the necessity will be seen to separate the Colonial Navy from that in the Netherlands. And if one proceeds to this, the Dutch Navy will shrink accordingly, and will naturally merge with the National Defense, so that the merger of the Navy with War will immediately follow; which can also offer the chance that the name of War, which fits a country like ours so little, will pass into that of National Defense, as was already proposed in 1901 and tried again in 1912.

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THE DEPARTMENTAL MINISTRIES.

## §13. An Equal Voice for All.

No less important a question is whether all Ministers in the Cabinet should have an equal voice in voting. At least when it comes to making serious political decisions, this can be a weighty matter. Without falling into one-sidedness, it may be asserted that the technical ministers as a rule were not the leading predecessors in the political arena. Now, among the eight Ministers currently in office, no fewer than four are of a more technical background. This applies not only to Public Works, Trade, Agriculture and Industry, but also to the Navy and War. Yet may not the Ministers who now sit in the Cabinet for these four national interests be regarded as experts in their own Departmental affairs, and have engineers and officers not so deeply ventured into politics that they can be considered competent to help decide the course of general politics? And yet, their present position in the Cabinet is no less than to give the decision. For when a weighty issue is being discussed in the Cabinet, on which opinions are divided, then a single vote can be the decisive factor, depending on which opinion that single vote joins. Suppose one is faced with the decision whether the franchise shall be general, or bound to the peasant class—it may well be that the Ministers of the Interior, Foreign Affairs and Justice would choose the peasant franchise, while the Minister of Finance would prefer a general franchise, and that the four technical Ministers would side with him. Then, of course, the decision given by the four technical Ministers, supported by the one of the four political Ministers who is placed at the head of Finance, and who may well have had more of a technical than a political career behind him, as was indeed the case with Minister Treub in the Cabinet of Cort van der Linden, and also with Minister Leyy after his retirement, would carry the day. Now, even those technical Ministers will have formed an opinion on such a political issue as, for example, the franchise, just like almost everyone else who is involved, but it must be admitted that they do not have the moral right to override the three more political Ministers with their view.

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AN EQUAL VOICE FOR ALL—THE SALARIES OF MINISTERS. 175

It often happens in the Cabinet that such a technical Minister would prefer to abstain from voting, just as one of the political Ministers not infrequently abstains from voting on technical bills; but although the water cannot be made entirely pure here, one still feels that in completely equating the technical with the political Ministers, at a serious moment, there could lie a real danger. It may be assumed that as a rule the technical Ministers will go along with the President, but there is absolutely no guarantee for this, and the question therefore cannot be suppressed, whether a more specific regulation for the casting of the single vote in the Cabinet might not be advisable. In England, the rule is not the same for all Ministers, but for

other reasons. With us, a solution to this difficulty might best be found in leaving the decision on political matters to the political Ministers, with the understanding that advice would be given by all, but that the decisive vote would remain with the four political gentlemen.

## §14. The Salaries of Ministers.

No less seriously must the question be raised whether the ministerial remuneration with us is not too low. A Minister with us receives little more than 11,000 guilders per year. It is true, it is called 12,000 guilders, but for the pension contribution almost a thousand guilders per year is deducted, so that it amounts to little more than 11,000 guilders. The judgment now on the question of whether this is sufficient or not, appears at once from the fact that even a century ago an amount of 12,000 guilders was fixed. Now, reckoning with the circumstance that the value of money in this full century has certainly declined by 50%, it follows that in 1815 a remuneration was considered necessary which would now be equivalent to almost 18,000 guilders. Add to this that we emerged in 1815 from the period of Napoleonic distress,

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THE DEPARTMENTAL MINISTRIES, which had even simplified life in the highest circles, and one immediately feels that a remuneration of 50% less than before can no longer suffice in any respect. It is indeed an undeniable fact that the Ministers, with the remuneration that now comes to them, cannot live in the Residence on the footing that their office, by its dignity, would demand. It has repeatedly occurred that Ministers who were entirely without means had to seek a cheap rented house in a remote neighborhood; had to bear the not inconsiderable costs of moving and furnishing from afar; and as Ministers had to participate in all kinds of subscriptions that recur every year. The possibility of official receptions was of course completely excluded for such persons. And without exaggeration, it can be said that the position these Ministers often have to take as citizens in The Hague is not in keeping with their high position. The complaint about this weighs all the more heavily, because more than one, when he became a Minister, lost 6,000 guilders a year by leaving a previous office, of which he only got 4,000 guilders back in his pension. If then an initial life without office followed for him, the actual loss was indeed not insignificant. Now it is true that the Minister of Foreign Affairs receives an extra allowance for the reception of diplomats with their ladies, but this did not help, for example, the Chairman of the Council of Ministers, who, by virtue of his special position, is constantly invited by foreign diplomats to their dinners and is almost obliged to give counter-dinners in return for maintaining his position. Such a situation must not be allowed to continue. The difficulty is now that a Minister in power does not readily go about begging the States General for higher salaries. It has therefore been considered to establish the ministerial remuneration constitutionally

in the revision of the Constitution. This too could achieve the goal. Otherwise, the only ready way would be to seek an amendment. An amendment, introduced by a combination of members from all parties, would be the most delicate form to provide for the existing state of need, and the amount would then be set at 20,000 guilders, with a pension increase to an amount of 5,000 guilders, but without retroactive effect. The allowance of the Minister of Foreign Affairs would also then be increased from 8,000 to 10,000 guilders.

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DEPARTMENTAL BUILDINGS - SALARIES OF CIVIL SERVANTS. So first a financial position would be granted to the Ministers that would be approximately equal to what had been allotted to them from 1813 onwards. Permanent ministerial residences, as one finds them in Belgium and elsewhere, are not to be recommended. Here the size of the family also plays a role, and one also has to reckon with the furnishings.

## §15. Departmental buildings.

More care has been taken for the departmental buildings in recent times. For many years, the condition for more than one Department was no longer tenable. Not only had the buildings gradually become too small to accommodate the ever-growing staff, but in more than one Department it was even found necessary to rent three, four separate houses in different parts of the city to accommodate a department or part of a department for which no accommodation could be found in the main building. Naturally, this was very inconvenient for the Minister, who, if he wished to see one of his subordinate officials, had to summon him by telephone from a great distance. Gradually, this is now improving, and this deserves praise. Our simple Residence does not call for monumental buildings. But even Switzerland then gives the example of how the dignity of the higher officials and the good communication between the Ministers and their officials can be provided for without falling into architectural extravagance. §16. Salaries of civil servants. That the civil servants too are concerned with improving their position lies in the spirit of our time, and that they created an association with that purpose is understandable. Only the question arises whether there might not be an improvement to be obtained by limiting the offices and somewhat reducing the number of officials. As it is now, one has too much to do, so that he has to try to make up in the evening at home what the State has neglected during the day.

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The departmental ministries remained unfinished, while the other often did not even know for half a day what he would undertake. It would be advisable to have a Commission examine the situation abroad and

then design a complete reorganization of this service. This was also desirable in two other respects.

## §17. Better organization of the offices.

In the first place, the present organization of the departmental offices and the Minister requires much more than necessary to get involved in all kinds of small details. It goes without saying that this would be impractical on a large scale in great States. If one thinks of England, France, Germany and Russia, it needs no argument how in these countries a Minister, who had to get involved in everything that goes through his hands and waits for his decision and signature, would simply never be ready, even if he worked day and night. It follows from this that, if we knew how to follow the organization that is the rule in such large countries, the Minister would be saved a lot more time for his own study and consultation, as well as for granting hearings to associations and individuals. With us, this has all been conceived on a small scale and extremely economical, especially after 1848. Small modifications do not help either. Only a completely changed organization could bring us where we need to be with our Ministers. As for the division of labor, the Belgian custom pleads not a little, to appoint, if necessary, two different classes of higher-ranking officials in a ministerial office, of whom one class takes care of the administrative work, while the other devotes itself exclusively to legislative work. With us, both parts of the office task are mostly mixed together, and it is the same Referendary or Administrator who on the one hand has to oversee the entire administrative work, and on the other hand has to prepare the drafting of decisions or legislative proposals. This has the advantage on the one hand that the draftsman of the legislative documents knows how to connect them precisely with the existing practice, but on the other hand it cannot be denied that a spirit of routine easily creeps in here, which is not always favorable to the development of new ideas.

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BETTER ORGANIZATION OF BUREAUS. 179 Those who are born for administrative work, as a rule, cannot well adapt to what the legislative labor demands. Splitting could make up for what is currently lacking here. Something to which more value should be attached, which is now being prepared in the same Department by four or five Referendaries, each in a different style and manner of expression; which is not right. Even if later it might be met what was recommended in the previous chapter, and a Commission of formal control would come to maintain the unity in our legislation, it would still be desirable that in each bureau also for the first preparation of legislative proposals two or three special officials were appointed, who would be more naturally designated for such work. Finally, a word is still needed about the titles of the officials. There has gradually arisen a tendency to grant certain honorary titles to the more privileged, in order to distinguish who stands higher or lower. It was first a Referendary for each division of the Bureau, and

further there were Head Clerks, Clerks or Assistant Clerks, while at the head of the entire personnel stood the Secretary-General. Gradually, however, the new title of Administrator has emerged, and it is now becoming more customary for a very meritorious Referendary, or even a Referendary with more years of service, to have himself announced as an Administrator. Elsewhere one finds a Councilor-Advisor, a Treasurer-General, etc. Of course, this multiplication of official titles is not, and in any case the title of Administrator for the head of a Division is not very happily chosen. An Administrator is someone who is more specifically charged with the administration, and although the chief of a Division also carries out certain administration, it can hardly be claimed that this is his main occupation. The administrative part of his task is often very subordinate, and least of all expresses the high quality of his official position. There would therefore be little lost if we were relieved of this title of Administrator for the Chief of a Division. If two or more Referendaries are working in the same division, the title of Councilor-Advisor for the chief would be much more appropriate. The Referendary refers to the Minister; one who not only referred, but also advised, would after all stand higher by nature.

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# CHAPTER VI

## THE GENERAL ACCOUNTING OFFICE.

### §1. The Two Interested Parties.

The Accounting Office did not attract much attention in our circles. Only since the appointment to that Chamber of one of our most popular Statesmen was attention also more focused on this College among us. A brief discussion of this governing body may therefore find its place here. In an ever-increasing measure, Finance plays a role of high importance on the government terrain. The state budget keeps climbing in figures. In the Provincial States, ever greater amounts are also entrusted to the authorities. And even the Municipal Councils, at least in the larger cities, have gradually come to dispose of such colossal annual resources that at this lowest level of government too, finance is speaking louder and louder. Here, two kinds of questions naturally come to the fore, one of a political, the other of an administrative nature. From a political point of view, the struggle between the Government and the People arises here, and from an administrative consideration one stands before the question whether the country's monies are being handled with strict honesty. Yet, however much these two questions may diverge, as far as the accounting is concerned, they have been brought under the protection of one and the same college, and this one college is the Accounting Office. Two interested parties are involved here. The Crown-bearer as Head of the Government must obtain certainty that the organs of his government are conducting the financial management in the most punctual manner, and on the other hand the People must be able to control whether the monies of the People, which have been ceded by the Representatives for the Government, are indeed being spent in conformity with the agreement made. The agreement thus intended between Sovereign and People comes about through the parliamentary approval of the Budget Laws, both as regards receipts and expenditures. Hence, to the Accounting Office is entrusted the task of controlling whether the agreement thus made is actually being observed.

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THE TWO INTERESTED PARTIES. 181 The States-General must remain in control, to investigate in detail what has been collected, and for what purposes and in what manner the collected funds have been spent. This control also has an administrative character, but it is primarily of a political nature. Suppose for a moment that the Government had at its disposal, from mines, funds, or any other source whatsoever,

sufficient means so that there would be no question of levying taxes, then the People would effectively be at the mercy of the Government's discretion, and their rights would be seen to dwindle and perish. The rights that the people now possess, and in which they are strongest, they have successively conquered to a richer degree by the fact that the administration was impoverished, had no private means, and was therefore almost entirely dependent on the States-General, who were empowered on behalf of the People to grant or refuse the necessary means to the Government. This very right to grant or refuse the necessary means now naturally demands, as the key to the lock, that the States-General can investigate whether the collection and expenditure of the granted means takes place in accordance with the agreements made. The indispensable control thus has a completely different character than the central control the Crown-bearer needs regarding the conduct of his organs or officials. Nominally it is the King who collects, and the King who spends the money. But the piecemeal involvement is much too extensive for him to be able to administer it himself. He is therefore compelled to investigate and examine whether his administrative organs have acted honestly. From history, one knows, unfortunately only too well, how shamefully this has been defrauded, if not here, then elsewhere. In order to be personally responsible, the Bearer of the Crown is therefore obliged to closely monitor his organs or officials in their housekeeping. He must know that he is not being deceived. In itself, it would therefore have been very conceivable that two control colleges had appeared; one to control the officials on behalf of the King, and the other to exercise control over the administration itself on behalf of the Representatives. The first would then have been a purely administrative control college; while the second control college would have had to provide a guarantee that the administration was carried out in accordance with the agreements made.

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THE GENERAL AUDIT OFFICE. 182 It was evident that the Government had adhered to the agreement made.

## §2. The two controls united.

Nothing, however, prevents these two, principally distinct controls, from being entrusted to the management of one and the same college, as has indeed happened almost everywhere. The means by which this double and in its nature distinct control can nevertheless be entrusted to one and the same college, has been found among us in this, that the Second Chamber would offer the candidates for membership of the college to the Crown, and that the Crown would make the choice from these candidates presented by the Second Chamber. Hereby two goals were simultaneously achieved. If the Second Chamber presented a list of three candidates, and the King was obliged to take one of these three as the new member, then the

Chamber was assured that the chosen one would be a proper controller, also in connection with the rights of Parliament, and on the other hand the honor of the Majesty of the Crown was saved, in that the appointment of the new member did not proceed from the Chamber, but from the Crown. This honoring of the dignity of the Crown was further strengthened by the fact that the King appointed the Chairman entirely freely and that the appointment of the lower assistants also remained with the Crown. The King could, without fear that this arrangement would threaten his dignity, acquiesce in this idea, because the control that he himself exercised over his own officials could never be sharp enough, and because, in connection with this, precisely the appointment of the members from the nomination of the Second Chamber provided him with a guarantee that it would not be a control in name only. It did indeed require some formal effort to incorporate the precise formulation of this double control into the Fundamental Law and the statutes, but in substance there was no dispute between the parties on this point. All parties stood for the same control, and the combination once introduced, to have the Second Chamber propose three candidates and the King choose from such a trio, generally satisfied. Of course, it had to be determined at that time that a member of the Audit Office could not hold any other function that would involve him publicly with the expenditure of state funds. The chosen one had to free himself from such ties that bound him financially, and refrain from acting in various functions, but in return he received a lifetime appointment, and could only be dismissed from his office by a judicial decision, even in case of mental weakness or for whatever reason. The membership of this College became all the more desirable when it was further stipulated that the Audit Office would draw up the official report of the state finances for the States General, and even received the right to submit proposals for the improvement of discovered errors, not only in the figures, but also in the regulations, to the Government. Although this has not often occurred, the right to do so has nevertheless been granted to the Audit Office, and this has enhanced its position from the outset. It is not merely a chamber of accounting, but also a chamber of financial consultation and advice. §3. Control over Province and Municipality. The extension, however, that has been given to the control exercised by it, in that it not only oversees the state finances, but also those of the Provinces and Municipalities, after auditing the administration conducted, was not without objection. As for the Provinces, there is no objection to this. The provincial administration can hardly be judged otherwise than by the state, as standing above the Provincial Estates. If necessary, one could have given the Provincial Estates themselves the right to call into being their own Provincial Audit Office, but this would have been unnecessary, cumbersome and not sufficiently justified in a strict sense. Hence, there is hardly any criticism to be made against the control that the Audit Office also exercises over the provincial administration. It is different, however, with the control over the municipal administrations. That this control was also entrusted to the Audit Office was not as it should be, and seems to be due to the often disastrous influence that the spirit of the French administration has exerted on us. In France they have the Cour des Comptes, a

college to which the high position of a high judicial college has been assigned, and this college now exercises its criticism not only over the state finances, but also over those of the municipalities and departments. This has led to a centralization of control that is not in keeping with the self-government of the municipalities and provinces. With us, the Audit Office has been given a similar task, without the justification of a high judicial position, and this has led to a centralization of control that is not in keeping with the self-government of the municipalities and provinces.

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CONTROL OVER PROVINCE AND MUNICIPALITY. 183 brought into connection with the expenditure of state funds. The chosen one had to free himself from such ties that bound him financially, and refrain from acting in various functions, but in return he received a lifetime appointment, and could only be dismissed from his office by a judicial decision, even in case of mental weakness or for whatever reason. The membership of this College became all the more desirable when it was further stipulated that the Audit Office would draw up the official report of the state finances for the States General, and even received the right to submit proposals for the improvement of discovered errors, not only in the figures, but also in the regulations, to the Government. Although this has not often occurred, the right to do so has nevertheless been granted to the Audit Office, and this has enhanced its position from the outset. It is not merely a chamber of accounting, but also a chamber of financial consultation and advice.

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FOREIGN AFFAIRS. Not only over the finances of the State and its Departments, but also over those of the Municipalities. In France this was understandable, since the spirit of centralization in that country had almost completely destroyed the autonomy of the Municipalities and the Provinces. But precisely for that reason it was a violation of the autonomous rights that here in this country always belonged to the Provinces and the local Municipalities. The control over the municipal finances should have rested with the Provincial States. This needs to be emphasized more, because it later became clear how almost impossible and always so defective such control by the Court of Audit over the municipal administrations had to be. It is not well possible for a body like the Court of Audit to examine in detail thousands of administrations with the required accuracy. The Law recognizes this and therefore grants the Court of Audit the right to limit itself each year to the control of only a few Municipalities. But this double fault clings to this, that the control is not constant or comprehensive enough, and that moreover in a Municipality that has just been audited, carelessness is likely to creep in. For it will not come up for review again for some time. Chapter VII. FOREIGN AFFAIRS.

## §1. Decline in the 19th century.

Even after what we have said best about the Departments, the Ministry of Foreign Affairs still requires separate discussion. In the middle of the previous century this Department had become so insignificant and so deeply sunk, that Mr. Elout van Soeterwoude in the States-General once called the Minister of this Department: “To know something, one must have learned it!” We had better not mention the name of this Minister. He took office in the second week of January 1861, and had to hand over his portfolio already on March 14 of the same year. In 1878 we then wrote about this sad Department in our Program (see 1907 edition, p. 312 ff.):

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DECLINE IN THE 19TH CENTURY. 185

"From a Christian-historical standpoint, a sound, capable, energetic diplomacy, far from being a luxury, is rather the absolute indispensable instrument to safeguard its independence and to establish the organic connection with other peoples and governments, and to make each people cooperate in its part in the common task that rests on Christian Europe: namely, the sanctification of the law, the combating of Paganism and Mohammedanism; the honoring of the human in human society; and the upholding of the honor of God! But the establishment and maintenance of such a diplomacy requires incredible effort; and this not less because of the disruption of the European balance, whereby almost every calculation about the outcome of things, even in the nearest future, must fail. For more than before, it is now a requirement for such a diplomacy that it be composed of a corps of civil servants who, in the abundance of knowledge, maturity of development, quickness of perception, wealth of invention, and pliability of form, offer the data for the fulfillment of their almost unmanageable task. A task that is no less than to trace back to the first formative movements every movement that might turn against the interests or the security of the State; to extend the influence of one's own country as far as possible with prudent policy; to create as favorable an impression as possible about us with cabinets and peoples; and further to intervene at every given moment where inaction would be the loss or ruin of our interests for the future. These demands are not being met now. Hardly any single foreign cabinet do we have at this moment a diplomat of sufficient influence; and if there is influence, it is more of a negative kind."

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FOREIGN AFFAIRS: SOCIAL AND POLITICAL SIGNIFICANCE; HONORING THE PERSON, BUT WITHOUT BENEFIT FOR OUR COUNTRY. What is lacking is, in the personnel, a certain capability; in the Department, unity of thought and willpower; and in the States-General, appreciation. It is now repeatedly evident how even the Belgian diplomats outshine us; how we become the victims of the cunning of others in almost every negotiation; how one regards us more as supernumeraries, but no longer counts us as a living people; yes, it has even become evident from irrefutable decisions that there was already talk of the annexation of our country, without the Court knowing anything about it. This fate even pursues us in our Colonies; the English settlers are too clever for us; and we were recently tricked in a very cunning way by Spain, which cheerfully accepted the Sovereignty of the Sulu Islands, and then sent us a rather comical report afterwards. And when one moreover considers the incredible damage that the right and wrong negotiations with England have caused us, both on the Gold Coast of Africa and on the north coast of Sumatra, while we are already lagging behind on Decima;—then there will surely already be enough on the table to support our serious complaint. A complaint which, however, for the sake of our calling in the European community of states, we cannot even decide to make here, but which also needs to be extended to a very serious protest

against the cowardly silence and the dishonoring inaction in which one seeks salvation in every emerging dispute and keeps aloof from every alliance for the future.

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FOUR DEMANDS - OUR POSITION IN 1905. 187

In the Transvaal question, yes, even earlier when Denmark was half and Nassau completely destroyed, our Government should have spoken; when the question of Mohammedanism was recently settled, the second colonial power should have presented itself to the rulers; and, what is more, now that it has become evident from both the facts and the diplomatic secret archives in a convincing way that the existence of the States of the second rank is indeed threatened, our Dutch diplomacy should long ago have taken the initiative for a policy of alliance that would again make it clear that we still are. “With what prostration and hand-folding,” as the Prophet says, one does not get there.

## §2. Four Demands.

Courage counts, especially for smaller peoples, above life!

But in order to be able to reach such a more active diplomacy, and through it to a more powerful diplomatic action, this would also be the fourth demand to be made without delay. Namely: 1. that henceforth for the Ministry of Foreign Affairs one should never again take a titular, but always a real Minister; 2. that a college of very knowledgeable, experienced men should be added to Foreign Affairs, to maintain the unity of the traditions and the continuation of the threads, when the Cabinets change; 3. that our missions should be so well paid that even an unprosperous man of talent could accept them; and 4. that to every important mission the necessary staff should be attached to allow the envoy to remain an envoy. Think of what Venice once did! Think of our own diplomats, when they were not yet all noblemen. And what figures were among them then! Think also of Switzerland, which sometimes outshines more powerful kingdoms through its excellent consulates!

## §3. Our Position in 1905.

Even when I had to lay down the portfolio of the Interior in 1905, and undertook my journey “Around the Old World Sea,” it struck me again and again in the East how weakly we were represented in Diplomacy. At that time, for all the parts of the world together, we did not have more than thirteen regular envoys with the

title of “Extraordinary Envoy and Plenipotentiary Minister.” In Persia only a Minister Resident. And the same in Romania. And not otherwise in Greece. In other States it was even more meager. In the three great powers of Europe, Russia, Germany, and France, we had only one envoy each.

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FOREIGN AFFAIRS. The South American Republics of Argentina, Uruguay, and Paraguay had no more than one Consul-General, with the personal title of chargé d’affaires. In Brazil, a similar Consul-General, even without a further title. In Chile, it was no different. In Colombia, our Consuls had at least, as in Argentina, not the rank of chargé d’affaires, but still the personal honorary title thereof. In Ecuador, we did it with a pure Consulate. In Egypt, especially from the perspective of Islam, we did it with a Consul who was called a political agent. In Greece, at the time, Mr. Van Lennep still had no other than the personal title of chargé d’affaires. In Morocco, where even Belgium had an ambassador, we made do with a Consulate. In Panama and Paraguay, our Consulate again bore the personal title of chargé d’affaires. In Serbia, there was nothing but a Consul. In Siam, a Consul with the personal quality of chargé d’affaires. In short, as sparingly as possible, and yet this is still our entire arrangement. Where no Ambassador was needed, we did it with a Consul, and to give our embarrassed Consul still some position, he then received a mere title of higher rank. Now and then, this does involve a small promotion for the individual, but the result is that we get away with it as stingily as possible, and that is precisely why our diplomatic position in many capitals, for whom we represent ourselves, is often so painful.

## §4. Guilty Frugality.

It constantly emerges how stingy we are with Foreign Affairs, as is evident, for example, from comparing our budget with that of Belgium. Our entire budget for Foreign Affairs, as submitted for 1916, amounted to no more than ƒ1,508,436, while in Belgium for 1914 an amount of 4,990,686 francs was granted. So in Belgium, nearly a million guilders more. Our country had not kept pace with the times in this respect. When we re-emerged as an independent power in 1813/15, there was also great financial scarcity among us. Napoleon had also greatly impoverished our country. That is why, at the time, they did the Foreign Affairs as sparingly as possible. Something that stood out especially for our country, since our ancient

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CULPABLE EXTRAVAGANCE.189 Even the Republic often sent out Ambassadors. There could then be no more striking testimony of poverty given by the then Government, than by now doing away with such a

highly ordinary representation. It would have been better in the past, if the Belgian treachery and Belgium's defection had not once again financially placed us in a desperate situation, and had not once again damaged our prestige abroad. And while Thorbecke, with his followers, has led us abroad in a better direction since 1848, the bourgeoisie who triumphed under Thorbecke had neither eye nor heart for diplomacy, and not the slightest increase, however small, could be proposed in the Chamber, or in the period after '48 the proposal would repeatedly encounter fierce opposition in the States-General. There is also nothing in the salaries of the diplomats that strikes many eyes. In Japan, for example, the Minister-Resident, in accordance with the 1916 budget, receives only ƒ6,000, but he also receives an "allowance for residence" of ƒ17,000, and then another ƒ2,700 for an interpreter. So in total for this one mission ƒ25,700. In Turkey, a salary of ƒ22,000 must be paid as salary for the Minister-Resident, with his assistants, and then an additional ƒ12,500 per year for housing, etc. So a total of ƒ34,500. If one now considers that even a Prime Minister here at home only receives ƒ12,000, of which almost ƒ1,000 goes for a pension, one understands that whoever does not have a clear idea of the standard of living in Eastern lands and has no conception of what Diplomacy consumes for its highly elevated standard of living, must see in the amounts, which exceed triple, extravagance and unnecessary luxury. Even in Brussels, only ƒ13,800 was paid as salary for the Legation with its personnel, but in addition to this, there were also these salaries for residence allowances, no less than ƒ15,000. So a total of ƒ28,800, even though Belgium is counted among the small states and the standard of living in Brussels is far from high. Yet this amount also seems far too high. After all, until recent years, our then Minister in Brussels lived in such a small bourgeois house on a Boulevard, that one did not understand how the Minister of Foreign Affairs allowed such a low descent of our Minister in social life. Of course, this economical

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FOREIGN AFFAIRS. Lending money for our representation not only adversely affects the position of our representatives, but also the position of our country itself in the eyes of foreigners. In more than one environment, it was clearly evident that our envoys were not taken seriously at all. Private wealth often made up for what was lacking, but then one had to be very rich to keep up with the higher social circles, e.g. in London. Our envoy in London receives a salary of 8,000 guilders and is also reimbursed 26,000 guilders for accommodation. Together, 34,000 guilders. But even this seemingly quite high amount cannot enable an envoy to maintain his position in an aristocratic milieu, where only the "upper ten thousands" are considered ordinarily wealthy. A ton a year is the least an envoy who wants to fully participate can dispose of in London.

## §5. Demand of our past.

Now a parsimony that goes against all this is to the detriment of the country that makes itself guilty of it. In some capitals, where our Government could send a man of the highest personal talent, one had to make do with less personal fortune, so that our country would not fall behind in the international arena and not suffer under it. For as a rule, it cannot be otherwise, or a representative who remains socially too low, lacks the influence that could have come to us for good. This can still be said of the smaller States that lag behind and can be content with a lower position, such as Portugal and Denmark; but such a barely noticeable one cannot be tolerated in a country like the Netherlands. Let us never forget, however, that our glorious, so mighty past must always urge us, however frugal we may be ourselves, to uphold our honor and name of old vis-à-vis the foreigner. Secondly, it must not be overlooked that our position between Germany, England and France envelops us with the all-encompassing politics of these three mighty States, so that we can never withdraw ourselves from the great international movement except in name and appearance, and are actually always involved in the mighty international action. This applies all the more in the third place, because our Colonies throw an disproportionately large weight into the scale for the smallness of our country.

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DEMAND OF OUR PAST. 191 For half a century one could still conceal this, when in East Asia there was little more than a silent grave and we could make a fairly powerful display with a couple of not too large warships in the Japanese port of Shimonoseki. We were still a small potentate in Decima. But now all this has entered into an entirely new phase. All East Asia is teeming with new vital energy. In this action, Japan took the leading role de jure. The effort to maintain our centuries-old position in the Archipelago will therefore in itself be extremely burdensome, but if in addition we now appear inferior in Siam with our diplomat and in Tokyo make do with a Minister Resident, while Japan maintains an envoy in The Hague, then we are weakening our own position even in a region where the decision on the future of the Netherlands will fall. To this is added in the fourth place that we are even behind Belgium in our aristocratic circles. Belgium has four times as many nobility, and the nobility in Belgium is often not low. The latest revelations that came to us from Berlin confirmed the suspicion that, generally speaking, the Belgian representatives occupied a fairly high position. The two Belgian envoys who stood out here as particularly knowledgeable and sharp-sighted were Baron Greindl in Berlin and Baron Guillaume in Paris. I had the honor to get to know both of them personally, and of both it must be testified that they were certainly not low. Now, where our envoys come from such a much smaller circle, it could not be otherwise but that they had to often lag behind. We too know honorable exceptions, but it is precisely the low salaries that are often

the reason why one can hardly find an envoy for London or Paris outside the circle of the very wealthy. A decent man from the ordinary bourgeois class, who lacks capital, cannot go to London or Tokyo, to Berlin or Paris, or he will stand too low in social position in these luxurious cities to give our country what it must aim for through diplomatic channels.

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192 FOREIGN AFFAIRS.

## §6. No Longer Influential Envoy.

It must never be lost sight of that the lamentable division of states into great powers and small countries already makes the position of a Dutch Envoy so depressed in the diplomatic circle of the great world powers. It is always the Envoys of the very great Powers who take the lead in affairs. They are the Ambassadors who move and peer on the great international chessboard, and ordinary Envoys of small States are perhaps invited to balls and dinners, but the actual handling of affairs goes on without them. And when it now happens that in an upcoming action their country is very closely involved, then the Envoy of this country is indeed summoned, but as a rule not otherwise than to ascertain how the old saying “vobis pro vobis” still holds good here. Often, in fact, it has already been decided about them before they are summoned, and they have to experience anew the painful experience that a smaller State is no longer regarded as a full-fledged entity by the Great Powers. It is precisely this that should move the Government of a Small State to not further depress the already so depressed position of its Envoys, whether by giving them a lower title or by not enabling them at least to “do something” socially, as it is called. Whoever loves the future of his country must therefore constantly protest against all stinginess and even against the too great economy, when it comes to maintaining our diplomatic position abroad at least somewhat at the desired level. Talented, powerful figures among our Diplomats should not be forced to live in cities with less splendor, while the more important diplomatic posts must remain with those who can supplement from their own fortune what the Government cannot provide them. As Calvinists, with an eye on our glorious past, we have always chosen the economical party in this respect. In the diplomatic council of Europe, we may not have set the tone, but we must still participate. If in such an influential circle a tone prevails that makes life dear, yes, overstrained, and with this grand style of living, the Netherlands too must go along socially, if it wants to participate in the political action in that circle. Certainly, then, private fortune can be drawn upon; but what is not allowed is that we have to make do with a well-to-do, but still second-class Envoy on a post of importance, when a man of the first order could have been sent, but who now has to remain inactive because the living allowance prevents him from maintaining the social standard. It should

at least be so that, where it is a question of an important post between two diplomats, the one rich but second-class as a person, and the other an easy prince, but too little endowed to dare to undertake it, an adequate extra allowance could guarantee us the representation by the first-class diplomat.

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NON-DIPLOMATS. - ROYAL VISIT. 193

## §7. Non-diplomats.

Not entirely reprehensible is the method hitherto followed here and still elsewhere, to send a delegate outside the Diplomatic Service, but otherwise very suitable, when a particularly serious question is at stake. Just think of Cats, when he appeared with a special mission from our Government in the English House of Commons. Nowadays it is often one of the Ministers who is entrusted with such a mission by the Council of Ministers, or it also happens that the Sovereign of the country himself provokes an encounter with the Head of State with whom one wishes to come to a special arrangement. Abroad, the good rule is always followed that on such a royal visit to the Court of another country, the Minister of Foreign Affairs, or even the Prime Minister, accompanies the Sovereign. That this is not customary with us can only be explained by the fact that the Netherlands has become so insignificant on the international stage that even a royal visit was deemed to be little more than a demonstration of friendly relations. §8. Royal Visit. In this, the custom is, as far as the Small States are concerned, that the Minister of Foreign Affairs, or even the Prime Minister, accompanies the Sovereign. But with us, this has not been the case up to now. Our Sovereigns have always traveled abroad without being accompanied by the Minister of Foreign Affairs or the Prime Minister. This has undoubtedly contributed to the fact that the international position of the Netherlands has become so insignificant. For a small country, a royal visit is always a diplomatic event of the first order, and the presence of the Minister of Foreign Affairs or the Prime Minister is then indispensable, both to give the visit the necessary luster and to use the opportunity for political negotiations. The fact that our Sovereigns have always traveled abroad without this accompaniment has undoubtedly contributed to the fact that the international position of the Netherlands has become so insignificant.

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194 FOREIGN AFFAIRS. It is also often the case that the Sovereign, at least when he pays an official visit, is expected to refrain from personally involving himself in political affairs. And this can indeed be the case. The hereditary monarchy has undoubtedly provided us with the very serious advantage of an uninterrupted

transition of the Crown upon death or abdication, but this advantage is always offset by the disadvantage that the Bearer of the Crown sometimes lacks the age and perhaps even the competence to immerse himself in the great political questions. This has also led elsewhere to the established rule that the Sovereign, when traveling for an official visit, is accompanied by one of his Ministers. As far as our country is concerned, however, our political international position had sunk so far below the usual level that such an accompaniment was hardly ever considered anymore. This cannot be applauded. In the Constitutional Monarchy, it is unacceptable for the Sovereign to undertake any act of government without it being covered by one of the Ministers. It is of no avail that a Sovereign, when visiting another Court, engages in all kinds of discussions about the mutual relations between the two States. One of two things must be true: Either the Minister of Foreign Affairs of such a Sovereign would have to be such a lifeless puppet that he simply says yes and amen to whatever his Sovereign sees fit to discuss and arrange; or else, upon the Sovereign's return from his official visit, the question would arise whether the Minister could go along with what his Sovereign had somehow agreed upon. And if it turned out that he could not, then the position of the Sovereign vis-à-vis the Sovereign of the visited Court would be compromised. One could object that the Sovereign setting out on a journey could have discussed beforehand with his Minister what might come up between him and the Head of the other State; but anyone who is even slightly aware of the complications in which all international questions inevitably become entangled, will immediately admit that such a prior discussion of the issues that may arise is in no way sufficient to remove the objections that may subsequently arise and to arrive at firm conclusions. There is no other explanation to be found for the custom prevailing at our Court to leave the Minister at home, than that

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THE PEACE CONFERENCE. 195 Such a princely visit has now, for nearly three-quarters of a century, been granted no other character than that of a royal international formality. Something which, in the meantime, even according to the isolating conception, sometimes seemed strange, if the foreign Prince did not appear unaccompanied at the return visit.

## §9. The Peace Conference.

But however this may have occurred in the previous century, due to our international insignificance, at least since July 29, 1899, a change has come over the Peace Conference in a way that is more favorable than burdensome for us. It certainly did not answer the expectations first aroused. In its first appearance, this Conference undoubtedly brought honor. Whether the choice that fixed the holding of this Conference on The Hague originated from the Tsar of Russia himself is not easy to determine. It is well known, and became

increasingly clear later, that the statesman from whom the oracle on the field of international law went out for Russia, Mr. De Martens, and also the then Minister of Foreign Affairs, Count Muravieff, had a decided preference for the Netherlands. It was in the nature of the matter that the Tsar could not summon the Conference in Petersburg, nor could there be any talk of its assembling in the capital or residence of any of the other Great Powers. The choice had to fall on one of the smaller European states; and when it struck here for the first time, that where Brussels generally seemed to possess the greatest attraction for international gatherings, the Tsar nevertheless gave preference to the Netherlands. It had to be a small state, and one that lay in the middle of Europe and was easily accessible, and in this respect the choice could not be other than between Belgium, the Netherlands, and Switzerland. That the Tsar gave preference to a monarchically governed country could not be surprising, and when it came down to a choice between Brussels and The Hague, it was just as historically understandable that the Netherlands was ultimately preferred. When it finally came down to a choice between Belgium and the Netherlands, it could not be overlooked that Russia had never entered into closer contact with Belgium, while, on the other hand, the historical traditions concerning Tsar Peter at Zaandam, the monument at Bergen, and also the marriage of William II with the Grand Duchess Anna Paulowna, had always kept the bond between the two states alive.

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196 FOREIGN AFFAIRS. For our politically sympathetic public, on the other hand, the choice of the Tsar remained a surprise. We were once and for all—also with regard to the Luxembourg question—so accustomed to being treated by Europe as a negligible quantity in the corner, that no one was really prepared for such a high honor to befall us. There was also a general feeling that the circumstance that here the Crown was borne by a Woman had promoted the Tsar's choice, and with a view to this as well, there was something in the Tsar's decision that attracted us.

## §10. Disappointment.

Now the Conference has brought forth what was born, certainly did not answer the first expectations so highly strung. Rather, it turned out to be a disappointment from all sides. The cruelest disappointment struck the first point in the Circular of January 11, 1898, placed in the foreground by the Russian government itself. For in this first point, the Tsar proposed that all States should set limits to the steady expansion of armies and fleets, by mutually agreeing on a maximum and regulating the expansion of this maximum. Naturally, this was a point that would dominate the whole outcome of the Conference. If, out of mutual rivalry, as happened after 1871, one proceeded to arm oneself ever more strongly, and in the matter of national armaments to engage in an endless competition, then it was to be foreseen that, whatever else the

Conference might propose or attempt in the interest of the world's peace, it would ultimately always end up again, and even on an ever more threatening war. Yet the Military Commission in the Conference could not come to any other decision than to reject this first and most important proposal of the Russian government. For while a resolution was still adopted that was intended to be a bandage for the bleeding, this could of course not remedy the evil.

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DISAPPOINTMENT - PERSEVERING NONETHELESS The Conference, so it was stated in this resolution, expressed the wish that the Powers would further consider the possibility of limiting military forces. Indeed, a second resolution was even more forceful: "The Conference is of the opinion that the reduction of the military burdens that now weigh upon the world is highly desirable, both in the interest of the material and moral progress of nations." But all this was mere rhetoric, and whoever—even roughly—compares the state of military burdens in 1899 with that of 1914, when the current war broke out, faces a historically so completely reversed result, that one can hardly come to any other conclusion than that what Russia placed in the foreground has been pushed so far into the background that the very opposite has now befallen us. What began so sadly did not fare any better thereafter. One knows how, at England's insistence, even the delegates of the fully independent Free State in South Africa were excluded from the Conference; how Minas Tscheras and his fellow delegates from Paris were not even allowed to submit a petition; how only weak resolutions were passed; and how then, at almost every point, so many reservations were made that in the end one only landed at a very shaky outcome. Undoubtedly, the position of our Cabinet at the time was extremely difficult, and one cannot deny our then Minister of Foreign Affairs the honor that he did what he could to have the Conference received with all due respect; but still, it is difficult to completely exculpate a certain weakness in the leadership. What was lacking was the then so indispensable energy and decisiveness. But here too, one must be fair. What made our position at the Conference stand so wretchedly was above all the painful insignificance to which our so-called international position had been degraded since 1830. From the Anti-Revolutionary side, there was also no cheering in the Second Chamber over the outcome.

## §11. Persevering nonetheless.

Yet this does not release us from the very serious obligation to, even after this disappointment...

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Although the outcome was in many ways so painful, we must continue to support the Peace Conference and the Court of Arbitration. Our Residence has now, thanks to the first Conference, become the central hub of the international peace effort; and not least Carnegie's royal gift for the Peace Palace in The Hague gave preference to our Residence over competing cities. It could not have been more unfortunate that just after the opening of this Palace, the bitterest war that European history has known broke out, but our country was, thank God, still able to stay out of it, and our honor remained unscathed as the central position for all peace efforts. The Court of Arbitration also remains significant for our country. It was, however, very annoying that our Government only provided the Court of Arbitration with an extremely ordinary house on the Prinsengracht. This could not but give the impression that the Court was being treated with disdain. Applicants from abroad must have been more than once irritated by this, and no one who returned home after a session at the Court could have failed to get the impression that better accommodation would surely have been provided elsewhere. It also seems that this neglect of what should have been our calling has weakened the appeal of the Court for emerging disputes. If one asks oneself what international disputes have been resolved since 1900, and in which of these cases the decision of the Court of Arbitration has been sought, one inevitably gets the impression that all matters of importance have passed us by, and that one has only resorted to our Court for very incidental and insignificant disputes. Especially when the Russian fleet, on its voyage from the Baltic to Japan, recklessly fired on the English fishing fleet encountered off the English coast without proper investigation, it was fortunately agreed not to draw the sword over this, and to appeal to arbitration, but one passed by the Court in The Hague and called for an arbitral tribunal in Paris. This was naturally a slap in the face for our Court of Arbitration, which cast doubt on whether we would ever see the bar formed in our Residence for anything other than trivial cases.

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The lack of cooperation. To consider this failure a political mistake would be to give in to this tendency. Making the most of it is the self-evident rule for every undertaking, which we and our government must now follow if we wish to act wisely. As far as it depends on us, we must exploit the significance of the Court of Arbitration and the fact that the World Congresses have sought their seat here, in our national interest. Although it is not enough in degree, we have nonetheless risen in significance in international politics since 1900, compared to the period of 1830–1899. Therefore, not relinquishing what has been gained must now be the lesson of international wisdom for our country.

## §12. The lack of cooperation.

Whether it will be feasible, with this goal in mind, to transform the Court of Arbitration into a highly international Court of Justice, may be doubted. The Pacifists are pressing for this, and even if the Court of Arbitration were to continue to exist alongside such a world Court of Justice for cases that did not fall under the jurisdiction of the Court of Justice, it would still certainly put an end to not a few disputes and conflicts. However, the good fruit of such a Court of Justice could only be expected if it proved possible to subject all States to its jurisdiction. But precisely this may be doubted. If such a Court of Justice were to act, a fixed rule would of course have to be established for the manner in which the rulings of this Court would be introduced, implemented, and executed. On a fairly broad scale, an international code of criminal procedure would even have to be promulgated; and in addition, it would have to be determined in what way eventual amendments to this code could be made. Now if a superior power were conceivable that could impose such a code on all States, establish the jurisdiction of the Court of Justice, and ensure the execution of its judgments, the realization of this whole plan would certainly be conceivable in every respect. But precisely such an earthly power that moves above the collective States and disposes of them, does not exist. The establishment and maintenance of such a Court of Justice is therefore not otherwise conceivable...

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FOREIGN AFFAIRS. But this is not contractual, i.e., by voluntary agreement; and from this arise at once the almost insurmountable difficulties that stand in the way of the establishment and the coming into operation of such a Court of Justice. One cannot compel a State to enter contractually into the execution of such a plan. Even if one now has the good fortune, as at the Peace Conference, to encounter a public opinion that is favorably disposed towards the whole plan, yet inevitably all sorts of subordinate difficulties will arise in the making of the regulations, about which there can hardly ever be complete agreement. Even if there is only one Power of importance that, since it does not see its desire fulfilled, hesitates and makes all kinds of reservations and raises difficulties, this is so likely to lead to a second and a third Power first half and then completely withdrawing, that naturally the whole plan then collapses. The willing countries can then indeed create a Court of Justice for their own mutual benefit, but this is then intended solely for disputes that may arise between these acceding States; and for disputes that might then arise without intent with the non-acceding States, such a Court of Justice would be of no service, and one would still have to call in the aid of the Court of Arbitration, or, where even this left one in the lurch, seek a decision on the battlefield. Even if it were still possible to contractually allow such a Court of Justice to act in all cases, it would likely acquire such high significance that it would gradually acquire moral force. But is this probable? Will any country bind itself once and for all? Yes, would this even be advisable, where the composition and

regulation of such a Court remained subject to all kinds of modifications and could acquire a completely different significance with the passage of time? Will the accession to the establishment of such a Court therefore not always run the risk of being abandoned again by State after State, even after a brief trial? It is indeed not doubtful whether, if a mighty Power, after the lapse of years, had come to the insight that recognition of the decision of the Court would undermine the vital interests of the country, the fear would stand that even before the expiry of the stipulated term, notice of withdrawal could follow, which would then just as likely lead to war instead of averting it.

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THE PRECARIOUS NATURE OF VERDICTS

## §13. The Precarious Nature of Verdicts.

Now, all these difficulties could not be simply stamped out from the root, but would directly flow from the contradiction that would remain between the character of such a Court and the manner of its establishment. Jurisdiction in a higher sense is obligatory, both for him who gives it and for him who must submit to it. The scoundrel, the villain, does not bind himself by contract to submit, should he commit a murder, to the Criminal Court. Such a contractual criminal procedure would be simply unthinkable. Even what in earlier centuries presented itself as a dispute, whether one would or would not submit to the judge who presented himself, in no way had its roots in a contractual basis. Now, if it concerns international disputes, over which the Court of Justice would have to pronounce judgment, excluding in themselves insignificant, merely formal questions, one might still assume that submission to the verdict would readily follow. But this is by no means the case. Continually serious disputes arise between State and State, and ultimately such international lawsuits may also arise in which one country accuses the other of committed violence and perpetrated injustice, so that a criminal trial would actually come to the fore. Now, such a lawsuit can find no solution except in Sovereignty. There would thus have to appear a sovereign power standing above the two States involved in the dispute. This high Sovereignty would, like every valid Sovereignty, have to be derived from the Sovereignty of God, and both the criminal jurisdiction and the execution of the criminal sentence would have to be derived from that Sovereignty. Thus, it always comes down to the question whether on God's part a Supreme Authority has been established on this earth, to which all the States of the world have to submit themselves. In the medieval struggle over the Hierarchy of the Bishop of Rome, the solution to this painful question was often sought, and even where the Pope was set aside, it was still the holy "Roman Emperor" who was considered called to fulfill this high office. But

whatever may be said about this, the outcome has sufficiently shown that neither hierarchical nor imperial power was to be found as an authority established over all States.

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202 FOREIGN AFFAIRS

What seemed one, thus fell apart of itself, and it all came down to an agreement again, and it proved impossible to find the principle of authority from which the right to summon, sentence, and execute could arise. The prospects for such an international Court of Justice are therefore certainly not favorable. A firm starting point for it is no longer to be found. It would all have to be built up contractually, and how will the contract here ever be anything other than an extremely weak and unstable foundation?

## §14. Academy of International Law

The late State Councilor Asser, with whom I had the opportunity to discuss more than one point related to this, was therefore always concerned with making the legal insight more uniform in the different countries. He succeeded in achieving very commendable results in the field of private law, but was also constantly concerned to promote greater uniformity in public law as well. Hence the grand plan that gradually emerged to establish an Academy for International Law in our Residence, which as much as possible would make the legal insight in the different countries more uniform. It becomes increasingly clear how in the different countries a often completely different, and even contradictory, answer is usually given when it comes to questions of international law. This gave rise to the idea that it might be possible to establish an Academy for International Law, and this in The Hague, an Academy where International Law and what is connected with it could be taught, independent of the particular insights that had become more and more established at the leading State Universities, as a result of the history of the respective States and in connection with the pretensions that prevailed there, so that one could not really speak of a Universal International Law. It would therefore, so it also seemed to Asser, be so desirable to bring about a higher education in International Law that would not feel constrained by the folds of history and the aims of the competing Great Powers. It would have to be an objective academic education that would naturally come under the

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ACADEMY OF INTERNATIONAL LAW. 203 European statesmen who had completed their studies would be born with a greater unity of insight. Nor would the costs of such an Academy be daunting. Twenty-five professors would suffice. Reckoned at a salary of £1000 each, they would together require £25,000 per year. Adding the costs of annual rent for a building, a library, and support staff, the budget would scarcely exceed half a million Dutch guilders, a trifling amount for all the States combined. An attempt has indeed been made to bring such an institution into being, but unfortunately, instead of appealing to the States for the costs, they knocked on Carnegie's door, and I had to discuss the matter very preliminarily with him at the dinner with the then American ambassador. But it soon became clear that we had completely missed the mark here. Yet Carnegie was also now willing to provide financial assistance, but due to his intervention, the matter slipped entirely out of our hands in The Hague and passed into the control of the Committee that Carnegie had formed in Washington to develop his ideas. Mr. Brown Scott, who came as a delegate of this Committee to The Hague, exerted himself in every way to realize the grand idea. But from the outset, a difference of opinion came to light that ultimately caused the entire undertaking to fail. For the said Committee in Washington, which only had a small amount at its disposal and was moreover pursuing other goals, was not willing to make more than a very small amount available for the Academy in The Hague. They really did not want an Academy in the sense intended by Mr. Asser. It would rather become a Committee that would invite a certain number of international law scholars each year to come and give a few lectures in our Residence, preferably six by each. Lectures that could then be directed towards a universal result. Assuming that six gentlemen would appear each year, there could be about forty lectures, only in the winter months; and anyone who wished could attend them.

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## §15. Perverse plan.

I then felt compelled to resist this plan very decisively, as it would never achieve the intended goal, and I was supported in this by the Netherlands Central Council for Internationalism, of which I had the honor to be the chairman. This Committee had been established with the general aim of promoting a more stable arrangement of international relations. It was a long-standing Committee, driven mainly by Mr. Bunge in Amsterdam and Mr. van Hogenhuyze in The Hague, but had sought reinforcement by changing its name and including Mr. T.M.C. Asser as honorary chairman, and further Mr. Jul. C. Bunge, Mr. W. van Hoogenhuyze, Mr. J.A. Limburg, Mr. J.A. Loeff, with me as chairman, forming the board, and Jhr. Mr. H.W. van Asch van Wijck, Mr. H. Goeman Borgesius, Dr. C. Lely, Prof. Mr. Dr. W.H. Nolens, Prof. Mr. J. Oppenheim

and Baron E.C. Sweerts de Landas Wyborgh as members. In this Council too, the question of the Academy of International Law came up, but unfortunately it turned out that Mr. Asser had also allowed himself to be persuaded by the Committee in Washington to replace the idea of the Winter Lectures with the idea of a genuine Academy. Considering that we could not acquiesce in this, an attempt was made on our part to persuade Carnegie to our plan for a real Academy. This, however, has not succeeded. This caused the actual idea of an Academy to fall through, and the plan for the Winter Lectures also remained stillborn. My withdrawal from the Committee was a consequence of this, and as I believe I may conclude, the Committee itself also shortly thereafter met an untimely death. For the international position of our Government, I cannot but see damage in this outcome of the matter. Lectures instead of courses by permanently appointed professors would have had the exact opposite effect of what was intended. For the aim should have been, with a view to what is taught in the various countries of the major Powers, to provoke here an education in international law that remained strictly impartial.

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MISGUIDED PLAN.205 This high goal would have been achieved if, in essence, the professors of international law from the smaller states had been appointed to the Hague Academy; if they, as permanent appointees, could have given a regular and comprehensive three-year course; if this Academy could have examined and granted diplomas; and if students from all countries had enrolled in its registry. But instead of this rational plan, resorting to a certain number of winter lectures by non-appointed, but specially invited scholars, would certainly never have achieved the intended goal—indeed, the very opposite. For such lectures would have—how could it be otherwise?—summoned the most renowned professors precisely from the great powers: England, Germany, France, Russia, and Austria. And how could it have been otherwise, or that these scholars, lured here from the various great powers, would not have zealously used this rare opportunity to preach the ideas most desired by their own country? Not impartial in the academic realm, but highly partisan in the political arena, would have been the fruit of these lectures. It remains and will forever remain inexplicable to me how Carnegie and his associates could have preferred such occasional lectures over a fixed and regular curriculum. It cannot be concealed that the attendance at these lectures would most likely have been painfully disappointing. Undoubtedly, the majority of the audience would have flowed in from our own country. A generally renowned man would have left men of lesser fame cold. And from abroad, a few visiting statesmen would certainly have shown up to attend the entire series, but we would not dare estimate their number above 50. For the opinions of these renowned professors were already to be found in their published works, and since their lectures would naturally also have been published, it would have been far simpler, less costly, and more convenient to order the lecture series from their bookseller each year than to seek shelter in the cold winter months in the princely The

Hague to attend those lectures. Whether anything will still come of such an Academy remains to be seen. Its absence is in itself a detriment to our international position. Also

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Mr. Asser saw this so clearly that, although he felt bound by his American friends, he too advocated the idea of appointing at least a couple of permanent professors. However, this would have been less than a half-measure, which could not have been of any use. For precisely the doctorate degree would have had to give this Academy the greatest appeal, and this idea could naturally not be realized by the appointment of only two professors. And this all the less, since it was inherent in the intention to teach not only abstract international law, but also the great economic issues that are increasingly influencing the practice of international law. I await with interest what the future may still bring us by way of surprises in this respect. The presence of such an Academy in our Royal Residence would undoubtedly have strengthened our international position. That it remained so far away, undoubtedly cut off no small amount of international influence for us.

## §16. Congress Arrangements.

A second disappointment came with the failure of the grandiose plan to gather the most important international congresses from the endless series of world congresses in our Residence, or at least in our country. In Dr. Eykman's "L'Internationalisme scientifique," published by Van Stockum & Zonen in The Hague in 1911, the second Appendix offers a list of Congresses, with what falls under it, of no less than 614 numbers, showing that the number of Congresses had already exceeded 500. Now, of course, there can be no question of attracting this endless mass of Congresses all to the Netherlands. Brussels, Paris, London, Buda-Pest, Vienna, Rome, indeed what capital city not, understood the art of binding the largest Congresses firmly to themselves. Other Congresses followed the rule from the outset to change the place of assembly each time; while some even preferred smaller cities. Those Congresses that needed a permanent office and had to set certain special requirements for their meetings were most firmly bound.

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CONGRESS ORGANIZATION. It requires no further argument, when viewed in this light, that certainly no more than one-tenth, that is, about fifty, of these Congresses would be considered to find a home with us. Just those large Congresses now require very large, purpose-built facilities, and it already follows from this that there is no question of even half of the annual world congresses being brought together in the same

city. From the outset, therefore, a division must take place here, a clear distinction must be made between Congresses of more general significance and those other, much smaller Congresses that deal with specific subjects. This distinction is most clearly felt in the case of medical Congresses. There are medical Congresses held that relate to medicine in general, but alongside these there are also many special Congresses where only specific diseases or therapeutic methods are addressed. Naturally, the influence of interested parties on the first-mentioned general Congresses of physicians is much greater than on a detail congress, for example, on dentistry, otology, or ophthalmology. This would naturally lead to the obvious choice of summoning the general medical Congress here, and having the special Congresses on Dentology, Otology, and Ophthalmology convene elsewhere. It is immediately understood, however, that this is not about anything other than a small two dozen Congresses of a general nature, which could hold their conferences either every year or at least every two years. Thirty-one weeks could be set aside for this. One could start in April and let the series run through the end of October. If this plan could have succeeded, it would certainly have greatly strengthened our international position in connection with the Peace Palace. Even in itself, it would have been worth so much that the hundreds of scholars who participate in such general Congresses would have paid a visit to our country and could have made personal acquaintance with our people. Far the majority of them would otherwise never come to visit our country, and know about us only from history or hearsay; and here too the maxim applies: “Unknown is unloved.” We will leave aside here the advantage that the regular holding of the great Congresses would have for our hotel industry, our retail trade, and our means of transport;

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208 FOREIGN AFFAIRS. Here a higher interest is at stake. The goal aimed at here is, in a certain respect, to make our country “a city set on a hill” for all nations. What Delphi was for the ancient Greek world, the central point from which the highest guidance went forth, the Netherlands could at least have become for Europe. And in connection with the Court of Arbitration, there could arise, not only in Europe, but also in America and to some extent even in Asia, a quiet opinion that, whatever country might undergo, the Netherlands, as the sacred little jewel among the small States, would attain such high significance for all peoples as to awaken everyone’s love for our independence. Our past speaks so strongly here. By itself, Paris offers the visitors of such Congresses lavish opportunities to enjoy life, but instead of an advantage, this is much more a disadvantage. Where an important Congress is held, the distraction must not be too strong, or the meetings of the Congress will soon be disrupted. Here, on the other hand, there is almost nothing that distracts. Neither in Amsterdam nor in The Hague does so much call for sightseeing and attendance that the Congress could not be assured of a good turnout day after day. More than one great, well-attended Congress held here has shown how the meetings were attended to the very end. Hardly ever did one return

from a Congress held here disappointed. This was not the case elsewhere, where, upon returning home, the complaint would involuntarily come to one's lips: I have enjoyed much, but, as you can well imagine, I have brought little home from the Congress itself. This argument of distraction speaks so strongly against the great cities that more than one office has already summoned its Congress to a rural area. This has been tried very repeatedly, especially from the Christian side, and all testimony spoke afterwards of successes. And this now naturally connects with what the memory of our past evokes as the mood of the spirits. Whoever enters Paris sees with longing eyes the wonders of the world city and is carried away by himself into a mood of luxurious indulgence, while the historical memory speaks of a Bartholomew's night and of September murders, and evokes a sharp contrast between what luxury offers and what evil passions swell up in that world city. Here at home, on the other hand, history and museum call to the foreign visitor, hardly evoking any other memory,

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INDISPENSABLE BUILDING. 209 of a brilliant heroism in the past, an almost unparalleled industry, and a power deployment in our small circle that still amazes the reader of history, while the name of Orange, which is still inseparable from the name of the Netherlands for the foreigner, impresses of itself. This higher tone is now far from indifferent to a serious Congress. A Congress, gathered from all over Europe to discuss important political, medical, economic, literary, technical or philosophical interests, must not fall out of its role, and it is inseparable from that role that a more serious tone prevails in all its spirit.

## §17. Indispensable Building.

But if one is to attract these higher Congresses here, then of course the Netherlands must also understand the art of preparing for the reception of such Congresses, and this is precisely what it has completely lacked so far. One did almost nothing. One took an attitude, not as if it were an honor for us that they came here, but as if it were an honor for the visitors that they were admitted here. And this is not least due to the fact that the Congress affair went on outside the Department of Foreign Affairs. Naturally, the very distinct and diverse nature of these Congresses can lead to one Congress being more in rapport with Justice, another more with Agriculture, a third more with the Interior, and then of course care must be taken that the reception is preferably from the Department that is closest to the character of such a Congress. We would therefore be the last to want to lay down as a rule that the care for this whole series of Congresses should be entrusted to the Department of Foreign Affairs. On the contrary, it should be clearly stated that only the Department of Foreign Affairs can contribute an element to these Congresses, which has therefore been very wrongly neglected. Of all the Departments, it is only the Department of Foreign Affairs that has

matured in the art of receiving men of name and significance from abroad. This applies especially to our country. In general, our people do not understand much of the higher titles and rank distinctions that often make an impression abroad. My own experience has confirmed me in this.

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210 FOREIGN AFFAIRS. When, after having served as a Minister, I undertook a fairly extensive journey through the lands to sail the Old World, I gained the experience that the governments abroad are at pains to receive foreign guests who have held a high position, even if only temporarily, in their own country, with almost exaggerated honors. So it was on the part of the Courts and Foreign Offices, and even in France the President of the Republic received me in the most flattering manner, just as I enjoyed the same treatment from the Minister of Foreign Affairs. Was this for my person? Certainly not in the least. It spoke only of the established custom in those countries to receive foreigners of a certain position in their own country not only with distinction, but even with a certain dignity. The foreign visitors to such Congresses are also always accustomed to this, and, this being so, it also seems old and proper that, at a Congress held here, the Department of Foreign Affairs should keep completely aloof and not even make an effort to contribute to a more honorable reception. And with us it was usually the case that not only did the Department of Foreign Affairs hold back afterwards, but not even a hint came from the Department of Foreign Affairs to make our Departments realize how one should receive such men of name as gathered at these Congresses. In Brussels, on the other hand, it was quite different. There one made oneself as little as possible of such a reception, and this is precisely one of the obvious reasons why one often refrained from a second Congress in our country. Comparison with what was done elsewhere for such a Congress cooled the love for our Residence.

## §18. Rejected Proposal.

With this in mind, the international Committee of which I was the chairman has also applied to the Cabinet in 1912 for at least a better locality that would be suitable for such Congresses to be held.

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REJECTED PROPOSAL. It could be arranged that the required care be taken. Our country does not possess a single locality that can provide what is needed for such a Congress. One has always had to make do, and the lesser suitability of the available localities was often no small cause that much at the Congress did not come to its right. The Kurhaus at Scheveningen could still serve best, but of course there could be no question of holding a dozen or more Congresses here year after year, always making the Kurhaus available for this

purpose. Now this does not mean that elsewhere a locality where such Congresses are wont to assemble would always meet the highest demands placed on it. Not at all. That is precisely why a building ad hoc, i.e., a building specifically and exclusively designed for a large Congress, would become an attraction point in our Residence by itself; and almost every Bureau would soon be rushing to secure such a Congress building ad hoc for its own Congress in good time. Thus, almost every Congress would be turned away; but if one had one's own Congress building ad hoc, one would already be attracting by the building itself. The terrain between the Peace Palace and Scheveningen offered in itself all that one could wish for the placement of such a building. It is true that the investigation previously carried out by Messrs. Bunge et al. had given rise to the idea of establishing an entirely new urban district around Waalsdorp with a view to such a Congress building, but this plan had long since been abandoned as gigantic. On the other hand, a solid, purpose-built Congress building could find a shady and quiet spot in the old avenues of Jacob Cats. And it was with this goal in mind that an application was made to the Government, asking whether it would be pleased to proceed with the establishment of such an institution. Naturally, the costs would be high; but if it was a building that excelled and thereby attracted, so that one could count on at least 10 to 12 Congresses a year, the rent could very well cover the costs, even though it seemed to me that such a calculation would have a somewhat petty character, and that, if the Congresses were to be able to increase our international significance, a more generous offer of use would be appropriate. So the Committee had also hoped that the Government, seeing the national interest involved in this undertaking, would at least...

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FOREIGN AFFAIRS. If the government had responded by giving its principled consent, it would even have not withheld a word of sympathy from the Committee. For this reason, the request had been addressed not to a single Minister, not even to the Prime Minister alone, but to the Council of Ministers, since it concerned a highly delicate matter that could have significance for the future of our entire people. Yet the submission of the request was followed by nothing but bitter disappointment. Not only was this request rejected for the time being, but it was virtually rejected definitively, and rejected in such a sober word that the appreciation of the request was hardly expressed. Yet it seems to us that financial frugality was not the only motive here. Rather, the reading and re-reading of the government's response left the impression that they were afraid of the plan. For the realization of this plan would necessarily provoke all kinds of interference, and it seemed as if the Departments were above all shrinking back from this expansion of activities and interference.

## §19. Leadership in Foreign Affairs.

This is now to be understood. A European Congress, or rather an even more global Congress, will last at least 3 to 4 days, and there is also a certain amount of preparatory time involved, so that a full week per Congress is certainly not too much to reckon with. If now a series of such Congresses follows one another, it is of course absolutely impossible for the Ministers involved to appear at all these Congresses, to hold receptions there, and to attend the opening or closing meals. Nor can the Secretaries-General lend themselves to this. The departmental affairs would suffer too much from it. And to entrust the official representation to a Referendary would be exceptionally very good, if this Referendary were a man of years and of high social position, but as a rule this would not be practicable. That is precisely why the question should have been asked long ago in what way, with the increase in the number of Congresses, the official representation could be made feasible without unduly burdening any Department.

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EXPERTS AT OUR LEGATIONS. 213 This could only be found by appointing a man of general linguistic knowledge, universal education, fluent in languages, and of aristocratic manners, specifically for this purpose. As the matter stood, then the Minister concerned could act on one occasion, another time one of the Secretaries-General, and in exceptional cases one of the secretaries; but if this did not appeal to others, then this general Congress Commissioner could in the name of the Government offer all due honor and respect to the Congress. This Congress Commissioner would then also have to be able to dispose of a small office to consult with the gentlemen of the Congress office on the details. This Commissioner with his office would then naturally be an expert in the reception. From this a fixed, well-considered regulation could develop. And even if then in the same year a dozen or more Congresses followed one another, yet everything could proceed in perfect order. This Commissioner would then also have to be the Administrator of the Congress building, who would always take care of the necessary service, the necessary repairs, the required furnishings, the cleaning, and if necessary the heating. All this would undoubtedly not cause small expenses; but suppose it amounted to half a ton a year, what would such an amount then still signify, if it served to enhance the impression made in our country on the Congress members who had come here from abroad, and to strengthen the reverence and awe for the Netherlands as the central host. That is precisely why, in our opinion, the Department of Foreign Affairs should be assured of sufficient influence on this new institution, so much so that we would prefer to add the Congress Commissioner to Foreign Affairs rather than to the Interior. Insofar as a medical Congress would also have to speak with the Interior, the Referendary of the medical department would then be designated to assist the Congress Commissioner.

## §20. Experts at our Legations.

The addition of such a Commissioner of Foreign Affairs would be all the less surprising if one considers how one has proceeded in the past with the appointment of experts at our legations.

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FOREIGN AFFAIRS. More than one country has already gone elsewhere to add an expert on trade matters to its Legations or Embassies. We too have already taken that path in London. Elsewhere, however, such a permanent institution is common. It was very clear that first and foremost the Consul, and especially the salaried Consul, had to perform this service, but the Consuls, even the general Consuls, are now local notables, and what increasingly proved necessary was having at one's disposal a man of general knowledge who could take on what the Ambassador himself would not be able to bring to a good end. Our shipping and trade bring us into contact with foreign countries. Our Department of Foreign Affairs must therefore be able to intervene primarily there for the benefit of the country, where our interests come into contact with, and thus also into conflict with, those of foreign countries. It has been asked whether such a Trade Agent would not be a saving, if one were to transfer the training of our Ambassadors more to the economic field as well, but it has been rightly answered that the diplomatic intercourse smells of the salon, not of the office, and that above all when it comes to trade and shipping, the seasoned office man always proves to be the matador. It cannot be denied that shipping and trade create contact with foreign countries, and from this undeniable fact it follows as a consequence that Foreign Affairs also has a special vocation in this area. Thus, the Departments of the Interior, Finance, Agriculture, etc., would indeed take over this task as far as shipping and trade are concerned, but one knows how often it went wrong. The natural course of things is, of course, that what brings us into contact with foreign countries should always run through Foreign Affairs, and that the other Departments should only assist in so far as the subjects belong more particularly to those other Departments. So for judicial matters with Justice, for tariffs with Finance, for medical matters with the Interior. It repeatedly proved, however, that in the absence of this proper connection, our negotiations turned out disastrously, and how often another country, with its accredited representatives, got the better of us. This is partly at least the entirely different question of whether it is desirable for the Minister of Foreign Affairs to have an Ambassador appear, and then it is obvious that in

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EXPERTS IN SPECIAL MISSIONS

It will be desirable to avoid falling into this trap. This also applies in part to the marriages of our Envoys. For an Envoy who takes up his post abroad at a relatively young age, it is so easy to find an attractive match in the foreign country. Such a marriage has repeatedly occurred, both with our Envoys and with those of other countries—the memory suffices of the much-celebrated Belgian Envoy Baron Guillaume and his captivating wife, who hailed from Bucharest. Yet precisely this made the Envoy thus married not the most suitable to act as the head of the Department of Foreign Affairs. The influence of the wife must not be underestimated, especially in diplomatic circles. If the interests of her own homeland remain paramount for such a high-ranking woman, it is by no means unthinkable that, especially in times of war, with conflicting interests between the land of her spouse and her own country, the Dutch interest could suffer harm. This sometimes emerges so strongly even in royal marriages; but if a second similar objection is now added to the Envoy, one certainly feels how such a diplomat married abroad can raise concerns for the Department of Foreign Affairs. Yet this first concern is not the main objection. The most serious objection to the performance of an Envoy as Minister of Foreign Affairs lies much more in this, that our Envoys, the longer they are in diplomatic service, are all too easily estranged from our Dutch household. We know how, even in London, we have had Envoys for many years who were in every respect an estimable diplomat, but who almost never set foot in our country and even preferred to spend their vacation days elsewhere. Such persons may have been deemed suitable in the period just behind us, when the Minister of Foreign Affairs was the Minister pro forma, but they are becoming increasingly untenable, now that a considerable part of what concerns our own household must also run through Foreign Affairs. This does not, of course, dispute that we have also enjoyed excellent Ministers of Foreign Affairs who have been entirely absorbed in the diplomatic service for many years, but a preference for such a choice is still not recommended. Whoever reviews the list of our Ministers of Foreign Affairs will see

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216 FOREIGN AFFAIRS. It is also immediately apparent that Ambassadors remained the exception, and this must be held fast.

## §21. A Permanent Expert at Foreign Affairs.

It even seems not undesirable to add a second observation here. In our country, too, it cannot be otherwise, or a Cabinet change takes place almost every four years. A Cabinet that sits for two electoral periods is almost unheard of. Only recently, the Cabinet of de Meester itself lasted even shorter. Often now it is asked whether, with such a Cabinet change, it would not be desirable for at least the Minister of Foreign Affairs to carry over into the new Cabinet. As long as Foreign Affairs was a small, completely isolated department, this

would certainly have been thinkable. However, the more it is seen that Foreign Affairs is also connected time and again with our domestic affairs, this possibility falls away. For this reason, one will also have to reckon with a constant new staffing of this Department in the future. But precisely this raises the question whether the continuity in the regulation of our relations with foreign governments is not thereby too much weakened. The secretary-general usually remains, and there is at least a certain continuity in his continued presence, but certainly not enough. Elsewhere, e.g. in Belgium, the refuge has been taken to appoint a General Advisor at this Department to counteract the objection arising from this. For this one generally chose an experienced and knowledgeable former Ambassador. This made the Minister less dependent on his subordinate staff, and always provided the advice of an experienced man of affairs, who to a certain extent guaranteed that the line along which all kinds of negotiations with Foreign Governments moved, did not become too double-edged and too crooked. Above all, in this general advisor the newly appointed Minister often had the very necessary backing. It was a matter of indifference whether such a bearer of continuity bore the title of general advisor or chief of the Cabinet. The main thing was and remained that Foreign Affairs, even with constant Cabinet changes, could follow a fixed line.

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FOREIGN AFFAIRS AND MISSIONS. The Department of Foreign Affairs should also be in a certain connection with the Christian Mission abroad, at least in so far as one of two things takes place: either that a Mission goes out from our country outside our Colonies, or that a Mission from a foreign country establishes itself in our Colonies. If it is a Mission from here to our own Colonies, the connection with the Department of Colonies suffices. On the other hand, if one has to do, as with our Mission of the late Dr. Otte to Amoy in China, or also with the German Mission on Sumatra, then difficulties may arise which also touch on Foreign Affairs. One knows how England has always kept an eye on Missions, and after the outbreak of the great world war, almost immediately set out everywhere to destroy the German mission posts. It did not even shrink from resorting to acts of violence in doing so. Many missionaries, with their wives and children, were summarily arrested and immediately expelled from the country. This was connected with the fact that England has always valued the missions of English origin as a means of propaganda for the expansion of its political and international influence. English missions have almost always been the forerunners of the establishment of English colonies, especially in Africa. It can even be said that it was a fixed method for England to gradually gain a certain dominion in a region where one could otherwise not have obtained any influence. I have never approved of this method. It was a subordination of the Mission to an egoistic thirst for land possession. It is therefore far from us to follow the example of the Government in this abuse of the Mission. But even if we completely exclude this misuse of the Mission, yet he errs who thinks that the Minister of Foreign Affairs can have nothing to do with a mission of ours to China, or with a German

mission that went from Barmen to Sumatra. One knows enough how, especially in China, all kinds of conflicts often arose between the Missionary and the Consul or the Legation.

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218 FOREIGN AFFAIRS. How even the great domestic wars in China have their origin, or at least their occasion, in the missionary work, has been shown by the events in Peking. In Foreign Affairs, one must therefore be fully informed of all such missionary work originating from here and operating on foreign soil. Our ambassadors and consuls must know the importance the Mission holds in the foreign land, and Foreign Affairs must oversee the Colonies to ensure that no cause for offense is given to foreign missions on their territory. Nor should the Department of Foreign Affairs merely be "occasionally" informed when something goes wrong in this regard—it must actively stay fully informed of this missionary work, and ensure that, for example, our ambassador in Peking and the consuls in the south know who of our side is active in missions and in what relationship these missionaries stand to the local government. Surprises in this respect must be entirely excluded. It is becoming more and more apparent that the Department of Foreign Affairs must not be a "private club" of a few diplomats, but that on every part of the national domain where Dutch interests or Dutch actions come into contact with foreign countries, the watchful eye of this Department must not fall asleep.

## §23. More Active Role of the Consulates.

This watchful eye of Foreign Affairs can no less be missed for the benefit of Dutchmen who either temporarily reside outside our borders or permanently settled abroad without renouncing Dutch citizenship. Naturally, this care for these compatriots falls to the Consulates. With them, registration takes place. At the Consulate, lists are kept. In this way, Foreign Affairs is already sufficiently provided with help. Yet the period of crisis that the war of 1914 brought us has sufficiently shown in how many respects the consular care can fall short. Here, of course, it is only a matter of the permanently settled persons of Dutch descent elsewhere. Quite different, on the other hand, is the position of the transient travelers from our country,

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MORE ACTION FROM THE CONSULATES. This applies to those who are lured abroad by Congresses or in other ways. Of course, we can only account for those who register with our Consulate or with the Legations. However, if lists are made public, for example, of guests at a large spa, or of registered members for a

Congress or an athletic, literary, or economic competition, then it will certainly be necessary for our Consuls, or if they are not on site, the assistants at the Legations, to take note of this, in order to provide the necessary protection where needed. On the English side, such contact is constantly evident, and it is undoubtable that the English owe much of the ease with which they move about abroad, even when they often fall short in language skills, precisely to the consular care. Especially for Congresses held abroad, this involvement must not be neglected. Congresses of significance are almost exclusively held in very large cities, mostly even in the capitals, and the names of the visitors do not remain secret. Just as we pointed out the desirability that, on the occasion of Congresses held in The Hague, the foreign Ambassadors should not neglect, through the intermediary of Foreign Affairs, the necessary courtesies towards their compatriots, so too, in what we are now discussing, the necessity cannot be concealed that our Legations or Consulates should not neglect, much less completely ignore, the Congressists coming from the Netherlands. Other governments often attach great value to the fact that their subjects who sojourn abroad constantly bring home friendly remembrances of the Consulate and Legation. So let it be henceforth with us. Painful exceptions aside, one thus all too often received the impression that the Ministry of Foreign Affairs was a secluded, quiet household that did not concern itself too much with Dutchmen abroad. The way in which Dutchmen abroad are treated by the officially acting persons depends to such a high degree on the seriousness with which our diplomatic service takes the fate of its compatriots. To the courtesy that we believe our Government in The Hague should observe towards foreign Congress visitors, can

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FOREIGN AFFAIRS. The treatment that Dutch Congress visitors receive abroad should only be answered as required.

## §24. Intercourse between Courts.

A few words must also be added here about the reception of foreign Sovereigns or members of royal families. In this matter, a clear distinction must be made between an official visit and other visits that are purely private in character. If one has to do with a passing princely person who only comes into contact with the Court and not with the Sovereign as the Bearer of the Crown, the Government and, accordingly, the Minister of Foreign Affairs can remain completely outside, and even a brief audience on their part would not lend the slightest official character to what remained private. If, on the other hand, the Sovereign as the Ruler of his Realm comes to the Bearer of the Crown in the Netherlands, it is a matter of renewing or strengthening the friendly relations between the two Realms. Then the visit does not concern the Court alone, but the Court and the Government, and the Government must ensure that the reception of such a

Sovereign is marked by the highest respect and the utmost courtesy. This, however, is entirely impossible with us as things now stand, for the sole decisive reason that there is no princely palace in the Residence worthy of the name. Recourse has indeed been taken on occasion to the palace on the Dam in the capital, but even this division of the reception makes a most painful impression, and it has also repeatedly proved necessary to accommodate part of the entourage of the visiting Sovereign in the large hotels. Undoubtedly the ministerial building of Foreign Affairs could provide assistance here, but hitherto only very marginally, and only now would the possibility be opened up, as Foreign Affairs is now finally moving from the auxiliary building on the Buitenhof to a better building on the Plein. But however one looks at it, it always makes an international and painful and harmful impression on the visiting Sovereign, on his entourage,

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THE RECEPTION OF FOREIGN RULERS.

221 Regarding the ambassadors, and even the correspondents who came from abroad on behalf of the King, one sees that the Netherlands is not properly equipped to receive such a distinguished visit. Romania is a State, compared to us, of very recent origin, and yet in Bucharest and Sinaia, and especially in the magnificent building of the Ministry of Foreign Affairs, everything is already arranged in such a splendid manner that even the Emperor of Russia could find a fully proper reception there. With us, on the other hand, this is not the case, and even at the last visit of the German Emperor, we on our part came out in such a shabby manner that anyone who was in the know was deeply pained. It must certainly be acknowledged that there is no royal palace to be found in our Residence. What in the North passes for such, is nothing more than an old Stadtholder's residence; and what the Queen Mother inhabits, is an ordinary gentleman's house, which even lags behind more than one mansion in the capital. The Palace in Amsterdam is so called, but is no palace, while it must also be firmly established that foreign Princes cannot and may not be received here other than in the Residence of the Bearer of the Crown. The need to take better care of the construction of a princely palace at Sorgvliet is therefore not at all an attempt to please our Queen, but a demand that is urgently required for the sake of our international position. However small the extent of our country may be, we must not lose sight of the fact that our past, so significant for all of Europe, yes, for the whole world, the entire calling of the House of Orange, the great colonial importance that still makes us, after England, a colonial power, and, not to forget this either, our central importance as the land of the Peace Conferences, of the Court of Arbitration and of the Peace Palace,—do not allow that we should even be regarded as the least among the small States. Whoever may have been a witness in Bucharest, in Lisbon, in Madrid, in Brussels, and wherever else, of the splendid way in which the reception of foreign Sovereigns is prepared in those cities, feels what an undesirable impression it must make on foreign Princes and their

envoys, when it goes with their visit here as it has mostly gone so far. It is even reported, and this is entirely understandable, that planned visits have been postponed with a view to our lack of proper accommodation.

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222 FOREIGN AFFAIRS. The unpreparedness did not disappear, and sometimes even discouraged him. This must now come to an end. That we dared to do so earlier, when we were a Commonwealth with a Stadtholder, was not surprising. Even in the United States as a republic, they do not aim at such a brilliant reception of Princes. Nor in Switzerland. But now that the Netherlands is a Kingdom, and the more it begins to take a central position through its Colonies and the Peace Conferences, it must no longer continue the miserable deficiency that it is powerless to offer foreign Princes a hospitable reception with honor.

## §25. Residences for Ministers.

There are two other questions related to this, of which the palace question is the most closely related—the residence of the Crown Ministers. In Brussels, as is known, a series of monumental palaces have been built around the Palace building, which are, among others, stately inhabited by the Minister of Foreign Affairs, the Prime Minister, etc. In more than one of these monumental palaces I have officially attended festivities, which made an impression by the splendor of the halls. This also happens elsewhere. At least the most prominent Ministers mostly live in dwellings that speak, and impress by their brilliant furnishings. But now, how is it with us? Have we not experienced in our Residences that repeatedly a Minister, to whom the care of 40 million souls in our East was entrusted, had to make do in an extremely small bourgeois dwelling in a remote corner of the city, so that even the offering of a dinner to the guests at Colonial conferences almost failed. Could one not, for example, in the Figaro, when visiting the correspondents of Dutch Ministers, read the expression of amazement that one had to seek the men of Authority in the Netherlands Residence in less than a fairly bourgeois dwelling? Do you not now feel that this gives the opposite of a desired impression? For the resident of such a small bourgeois dwelling, who comes here as an Envoy or for the Press, does not naturally have the respect that such a Statesman by virtue of his high position is entitled to. For us it may not hang on the dwelling, the Minister himself may perform even outstanding work in a small, sober study, but towards the foreigner this does not apply, and what lowers the respect of the foreigner inevitably damages the international position of the Netherlands. For this reason too, it cannot be emphasized enough that at least for the Minister of Foreign Affairs, the Minister of the Colonies and the Prime Minister, such a treatment should be available that the occupation of a good presentable dwelling for these Ministers becomes possible. What also happened, that a Prime Minister in The Hague had no more than an upper floor with two, three rooms at his disposal, should not have been able to occur.

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## §26. Prime Minister.

The second question, which was already discussed elsewhere, but also speaks here again, is the question of the Presidency of the Council of Ministers. The Minister of Foreign Affairs must not be free to decide on his own occasions and on his own authority on the future of the Netherlands in any international transaction. Questions that may have international consequences must be judged and dealt with by the entire Cabinet. These conditions of security for the benefit of the country can never be met, unless the Ministers, united in council, decide under the leadership of a President, who knows that he, as head of the Cabinet, bears the full responsibility for the decision taken. This now directly touches the Cabinet issue. In former times, the gentlemen Ministers were always masters in their own Department, and often gave the appearance, as if they were coming forward for the honor of the Royal authority. The Council of Ministers was then no fixed college with a fixed Chairman, but merely a meeting of the gentlemen Ministers as required by the occasion, and for that meeting each of the gentlemen Ministers took turns as President. The intention (this was aimed at) was to give the impression as if it was the bearer of the Crown himself who made the decision in each case, and who, in order to arrive at his decision, had to be an advisor seven or eight times.

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Foreign Affairs. Even the late Mr. Franssen van de Putte still spoke up for this now entirely outdated position in the First Chamber in 1901. The hereditary monarchy can never guarantee that a scion from the royal house will always sit on the throne who has sufficiently investigated and comprehended the great interests of the land; and above all, there can never be talk of the administration being entirely wrested from it and that unity in the Government would be lacking. There must not merely be Ministers, but there must be a Cabinet, and this Cabinet must be homogeneous; and for this, the forging of the Cabinet into a fixed college and the giving of the leadership in this College to a fixed Chairman is an inexorable demand. Only thus is the country also safe internationally. That the Minister of Foreign Affairs himself should be the president is neither necessary nor desirable for that reason. Under the Roell Cabinet, this was so, and thanks to the great prudence of this administrator, everything then went according to plan; but it is much better if the president himself stands outside of Foreign Affairs, and so at least two men watch over and guard our international relations.

## §27. Foreign Affairs and Flag Display.

Much that still presents itself for discussion in this connection cannot be further elaborated here. Only two interests have been briefly focused on in this regard. The idea has been repeatedly expressed that we, leaving aside the care for the Colonies, should actually have to refrain from having our own grand naval fleet, in order to limit ourselves to coast defenses, mines, submarines, and airplanes. There is now some truth in this, in so far that the Netherlands cannot think of maintaining both fleets of Dreadnoughts in the Colonies and on our seas, which could defend our country in the event of a significant attack, and this the less so since, if a new world war were to break out, and we ourselves were involved as a belligerent power, our communication with our Archipelago would soon, perhaps even telegraphically, be severed. From this, however, it by no means follows that we can therefore also spare ourselves the trouble of maintaining ships for flag display at sea. It was already regrettable that we could not make a better appearance when an old model ship was offered in New York; and also at the coronation of England's latest King, we did not cut a desirable figure. As an old sea power and colonizing power, our flag should also be able to be displayed with honor on such a solemn occasion. And secondly, it must not be concealed that the Ministry of Foreign Affairs must always be able to maintain contact with the Departments of War and Navy, in order to prevent anyone who wishes to do harm from surprising us. It becomes an urgent demand, given the increasingly complicated situation in which Europe is getting entangled, that the Government in The Hague also remains informed of what is threatening internationally in secret. Knowledge of people is becoming more and more a requirement for our Envoys, and Foreign Affairs must obtain broader discretion over who can prevent a harmful conflict for us.

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# CHAPTER VIII

## THE ADMINISTRATION OF THE PROVINCES

PROVINCIAL STATES AND THE FIRST CHAMBER. A comprehensive discussion of the position now assigned to the Provincial States would not be worth the trouble in the practical part of this work. The Provincial States no longer live in the political heart of our people. For the Provincial Water Management interests in Polder and Dike administrations, there is still zeal on the part of those concerned; and although the involvement of those concerned has also gradually diminished in this area, the old desire to tackle things themselves still partly lives on. For the rest, however, the actions of the Provincial States are so little impactful on life that even most of the eligible voters for these colleges are hardly aware of the provincial Hatred.

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The administration of the provinces hardly attracts any attention. However, the composition of the Provincial States is of high significance for the political character of the First Chamber, and without exaggeration it can be said that the electoral zeal which manifests itself in the periodic elections for the Provincial States, even if not exclusively, then at least primarily, is aroused by the struggle over the composition of the First Chamber. A very few issues of a purely provincial nature may also, to a certain extent, pique the interest, and it also happens that in the case of two candidates for the same seat, the personal influence of a large landowner or manufacturer may play a role; - but for the body of voters as a whole, the party choice regarding the First Chamber now stands so prominently in the foreground at every provincial election that is released, that at least in the wavering provinces, the political struggle of the parties now dominates the outcome of each ballot box. That this was not the case earlier, and only became so towards the end of the previous century, was due to the fact that in the preceding period the liberal government had filled almost all mayoral positions with men of its own color; so in South Holland, for example, 170 out of the even 180 municipalities. And since, moreover, the preponderance of the liberal members in the First Chamber was so oppressive that not a single one of our representatives, for example, sat there, there was often a lack of any interest in the choice for the Provincial States. And so the relationship remained as it was. Since, however, our party organization had succeeded in finally breaching this political wall, and people began to believe that the transformation of the First Chamber too would ultimately not belong to the impossibilities, there has been an awakened zeal in province after province,

which has steadily increased, and has finally succeeded in completely transforming the composition of the First Chamber. A turning point in affairs, which did not, like a mirage, rise up and disappear again in the mists, but which has continued to dominate a considerable part of our political situation. With this, however, the provincial character of the choice for the Provincial States had almost entirely given way to national politics.

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## §2. No Heart for Provincial Housekeeping.

Even among not a few members of the States, interest and zeal in their own provincial housekeeping had gradually diminished. They left the housekeeping to the Provincial Executive Council. After all, this would be well cared for under the supervision and cooperation of the Royal Commissioner. The reports of the meetings of the Provincial States also show how little warm participation their minutes testify to. Increasingly, the handling of provincial affairs was left in a narrower sense to the Commissioners and the Provincial Executive Council. And even if the Perser reported on it, it did not captivate the public. Even the narrower principled organs of the Press could not stimulate interest in it. This might occasionally be the case in matters of agriculture or public works, but the provincial public as such often did not get involved in it. In this result, which has emerged since 1815 as the fruit of a century-long duration, lies partly even a judgment on the regulation that has been given to our provincial affairs. Van Hogendorp had certainly intended it differently, and Professor Buys saw precisely, when he drew the conclusion from the unchanged preservation of what was written in 1815 in Art. 1 of the fourth chapter of the Constitution, Part 1 and 2, that one had not wanted to kill the provincial life, but rather to awaken it. But the outcome, beyond dispute, has not answered that nobler intention. The fear is now that the Provinces would renew their ancient claims to sovereignty. This had to be prevented in every way, yes, the possibility of it had to be cut off. Hence the appointment of the Commissioner, even without nomination, by the King, the concentration of almost all provincial action and authority in the Provincial Executive Council under his leadership, and what did not less tighten the screw, a constant, ever-working magic of the central authority, partly through an ever-expanding legislative power over provincial regulations, partly through the ever-increasing power of the Minister to submit to the Crown the annulment of what the Provincial States had decided. No less than fourteen articles of our Constitution had the tendency to consolidate certain rights and powers to the Provincial States, and this remained so even in 1887. But what Thorbecke also did to breathe new life into the States from the side, their significance never got the so much desired exponent. And since the main

weight of the provincial ballot box in the choice of the First Chamber was felt, the shadow that fell on what the States did below it became increasingly gloomy.

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## §3. Centralization and Decentralization.

It is the systems of Centralization and Decentralization that seek the right balance here. Leaving aside Monaco and the other three Lilliput states, Europe has only two Commonwealths, France and Switzerland; but now see the difference in both. In France, they have simply made all the provinces disappear from the national inheritance and thus fragmented the freed inheritance into more than 80 Departments. At the head of each of these 87 Departments, a Prefect has been set up from Paris almost as the sole ruler, and to this Prefect they have added a Departmental "Conseil" that has no other task than to say yes and amen to what the Prefect desires, or at least what the Prefect commands. This decentralization of power has in fact gone so far that the uniformity, as a curse of the modern direction, extends over the entire interior of the French State, and at least after 1870 a certain tendency began to emerge to bring some relaxation into the decentralizing embrace. In this strict centralization, the life-killing principle of the French Revolution expressed itself. Originally, the Kings of France had been almost unlimited rulers as feudal lords. Against their preponderance, the one-man had gradually risen up, so that in the end the King became a roi fainéant. This prompted the Princes to break the mighty estates, so that Louis XIV could finally declare: L'état c'est moi. Against this monarchical preponderance, the tiers état then rose up in revolt, and this brought us the French Revolution. The individualized nation now melted into a centralistic unity, and this unity was then further strengthened by the Napoleonic regime. In Switzerland, on the other hand, the cantons have maintained their ancient sovereignty to this day, and the Confederation has only gradually taken over certain tasks from them. The Confederation has no Prefects, no Departmental Councils, no centralized legislation, no centralized administration. Each canton has its own constitution, its own government, its own legislation, its own administration. The Confederation only takes care of what the cantons have voluntarily entrusted to it. This decentralization has given the Swiss Confederation a vitality and a power of resistance that the centralized French State has never known.

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CENTRALIZATION AND DECENTRALIZATION. - SWITZERLAND. The unity was the people, the People. There was now no God, nor Master anymore. The people themselves had become God and Master. Naturally, there could no longer be any talk of an autonomy of the provinces. France became a map, a mosaic of fragments, and all the peculiarities and distinct character of the various historical population agglomerations fell away.

## §4. Switzerland.

But let us now look at the course of events in Switzerland. Switzerland has never been anything other than a Republic. And yet the preamble to the Constitution of May 20, 1874, even after the amendments of 1908, still reads: "In the name of Almighty God!" Article 1 emphasizes that Switzerland is a Federation, and indeed a Federation of "Völkerschafte," which politically organized themselves into 22 cantons, and in such a way that each of these 22 cantons acted as sovereign in its own right. They are also called Eidgenossen, because they have bound themselves under oath before God. All the States together exercise their power through a large Federal Assembly (Art. 7) and this Federal Assembly is divided into two sections. One is called "Le Conseil National," the other "Le Conseil des États." And now Article 72 stipulates that the National Council is elected by the entire Swiss people, one member for every 20,000 inhabitants, and that the members of this Council are directly elected by the Swiss citizens of 20 years and older. This Council sits for three years and then retires in its entirety. The "Conseil des États," on the other hand, forms a Senate. In this second Chamber, each canton elects two members. Besides these two representative Bodies, there is now a Council of Administration, the "Conseil fédéral." This consists of seven members. They are elected as such by the two parliamentary Chambers in joint session; but only for three years. And finally, at the head of the entire Federation stands a President, who is elected for only one year by the federal assembly. There are no Ministers. The President and the members of the "Conseil fédéral" manage the various activities, we would say the ministerial Departments, among themselves. Its members have a seat and the right to speak in the parliamentary assembly,

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230 THE ADMINISTRATION OF THE PROVINCES. but no voting rights. Above and in addition to these Councils, there is now also a Supreme Court, we would say a High Council, and the members of this Council are elected by the "Assemblée fédérale" and it regulates its powers by law. In the Swiss Republic, therefore, the exact opposite of what brought the end of the struggle in France. The system of Decentralization was even carried so far here that a border office, in very few cases, as we indicated in Part I, could even enter into

negotiations with a Foreign Government. Two extremes, therefore, and only the path between these two leads to the right solution.

## §5. The Solution in America.

What was found as the final solution in America borders very closely on the Swiss system. What the Cantons are in Switzerland, the States are here, whose number is still constantly increasing. Here too, each State is sovereign, although of course this sovereignty can only be nominal. For here too, the Congress stands above each State by itself. This Congress also has its two parts: “The House of Representatives” and the “Senate” (see Art. 1 in the first chapter) approximately what we would call a Second and a First Chamber. The House of Representatives is elected here by the combined population of all the States, and the Senate stands next to it, consisting of two members, each to be appointed by the legislative Body in each State. The members of the legislative Body sit for two years, those of the Senate for six years. Completely outside of this Parliament or Congress, composed of these two parts, stands the President as the executive power. He holds his office for four years. He is elected by the electors who each State appoints for this purpose, in a number equal to the total number of seats it occupies in the Representative Body and in the Senate. Effectively, therefore, by all the voters together, since they elect the Committee members. This President chooses his Ministers at his own discretion, as assistants. But not more than that. For these Ministers do not represent the authority in Congress. They do not come there. And next to these two parts of the Government: the Congress and the President, there then stands

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231 Furthermore, the third branch of government, which acts as an independent authority, even in the interpretation of legislation. And finally, it is the Congress that appoints the members of this Court, establishes the lower courts by law, and further regulates their jurisdiction.

## §6. Pennsylvania

However, this is not enough. The organization of the individual states of the Union must also be examined more closely, at least with regard to their governing power. As an example, I have chosen Pennsylvania, which promulgated its latest Constitution on December 16, 1873. Pennsylvania had already had three Constitutions. The first came into being on September 28, 1776. The second was proclaimed on September

2, 1790. This later Constitution underwent more or less important changes in 1838, 1850, 1857 and 1864. And it was this Constitution, revised four times, that finally gave way in 1873 to the Constitution to which we now refer. I prefer to point to Pennsylvania among the states of the Union, because this state was originally populated not only by Swedes, but mostly by Dutchmen, even though it was Penn who first gave it a firm form and further development. As I remarked elsewhere earlier, the Dutch element was so strongly represented here from the outset that in the Philadelphia directory there are now no less than five columns of names with “Van” - names that had not been placed, as with us, on the letter of the surname, but that were all included under the prefix “Van”; something that is connected with the almost noble meaning that one attaches to the prefix “Van.” All the more did this large colony of descendants from our country impress me in Philadelphia, because not Philadelphia, but Harrisburg is the capital of Pennsylvania. The Constitution of 1873 that is now in force was also drawn up in Harrisburg, not in Philadelphia. Now let me immediately point out that in this very young Constitution, the preamble of the text is also tied to the confession of the King of Kings. For it says: “We, the Commonwealth of Pennsylvania, give thanks to Almighty God... ”

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232THE ADMINISTRATION OF THE PROVINCES.Bearing witness to the blessings of civil and religious liberty which they enjoy, and humbly invoking His aid, they establish and ordain this following Constitution.”In 1776 such a preamble would not have drawn attention, but it speaks strongly to the honor and recognition of divine origin even for the civil state, that they still spoke thus in Harrisburg in 1873. I point this out all the more, because in Art. 4 an even stronger provision in this regard is found: “No one who believes in the existence of God, and in a future life where good and evil will be rewarded, can be declared unfit for appointment to any official office on account of his particular religious feelings.” From this it appears that here the political edifice is very decidedly erected on the foundation of Common Grace; and that there is no question of a flirtation with the godlessness of the French Revolution. In this western State, which stands on the footing of our former provincial institutions, one now finds, just as in the great whole of the United States, a legislative power consisting of two parts, of a Senate and of a House of Representatives of the people. The latter sit for only two years, the former for four. These two bodies work together in an equal manner and in an equal proportion, as this takes place with the two parts of which Congress consists. Art. 7 of the third Chapter does indicate, however, what this Parliament has to refrain from, because the regulation thereof is reserved for Congress, but it does so by way of exception. It is not determined that the State Parliament may do this or that. No, it may do everything, except only what is excepted. Thus, what the provincial institution exercises is not a delegated power, but an original power, for which the Constitution prescribes exceptions. In the fourth Chapter, then, the executive power is regulated,

and this consists of a Governor, a Lieutenant Governor, a Secretary of State, an Attorney General, an Auditor General, a State Treasurer, a Secretary of Foreign Affairs, and a Chief of Public Instruction. So a President, a Vice-President, and so on, five Ministers. The members of this executive authority are elected not by the Parliament, but by the Voters. The Governor serves for four years. And then, in the third place, comes the judicial power, which in Pennsylvania is also entirely independent in its many

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PENNSYLVANIA.233There is a supreme court, composed of seven members, and these members are appointed by the joint voters of the State. They sit for 21 years. Under this high court, there are various lower judicial bodies of a very different nature, of which the so-called quarter sessions, which function for three months, are best known. Furthermore, the general assembly, with the cooperation of the Senate, can always establish new judicial bodies. Article 15 stipulates, and this is also noteworthy, that all members of these various judicial bodies must be jurists, but without this applying to the members of the High Court. Most members of these judicial bodies sit for ten years. Now, if one keeps in mind that Pennsylvania, although it is called a State, can still only bear a provincial character within the Union, and if one compares the significance and powers that have been left to Provincial Autonomy here, with the meager powers over which our Provincial States still have to dispose, then all further argument is entirely superfluous to make it sharply clear how miserably the independent character of the Provinces comes to its right in our provincial regulation. This is something on which I lay all the more emphasis, because our Provinces were in fact, before French centralization penetrated here, so far advanced in their sovereignty that the unity of the administration in the then municipal government could not come to its right. And when the comparison between Pennsylvania and South Holland, for example, now shows so overwhelmingly how almost nothing our provincial autonomy still means, compared to the autonomy of Pennsylvania, it clearly emerges from what argument, how little ground there is for the glory that one has ascribed to Van Hogendorp, that he at least in appearance has saved something of our ancient provincial independence. He may have intended it excellently, but neither he nor Thorbecke after him have succeeded, even from afar, in making our provincial being develop on its own roots. Certainly, our provinces are no longer “Departments” of France, and our Commissioners are not what the Prefects are in France, but even less do our present provinces resemble States like Pennsylvania, and even less is our Commissioner the equivalent of the “Governor” in this American part of the United States.

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## §7. Failed imitation of our past.

Now, one should keep in mind here that the present regulation of the United States represents the decentralization of power in the Congress. What was first tried in 1876 was an imitation of what had existed among us under the Republic; but as early as 1787, this had been put to an end, in fact illegally, and only from then on has the now still too centralized institution come into being. I have already explained this in my First Part. Here, however, it must be emphasized in particular that provincial autonomy in the United States has come to its full right precisely because it remained connected with the centralized organization of the common Government. What had existed among us under the Commonwealth had made provincial autonomy excessive at the expense of central administration. This erroneous system, which began with the Union of Utrecht, had been judged by history. It had been initially imitated in America, but it did not work; and what the Netherlands owes to the Prince of Orange never comes out better than when one historically examines what has nevertheless been achieved here, in spite of our untenable state organization. But conversely, it also now teaches us from America what a rich provincial autonomy can still very well exist, even if one cuts off what would doom the central power to impotence or helplessness. If we had here what, as I indicated, Pennsylvania possesses, there would be no more complaint about the restriction of provincial life among us.

## §8. Central and South America.

Argentina.

To make this clear, it must be said that the system of the Union has mainly been followed for the States of Central and South America, and that it is still persisted in. Only a few examples are given here. First, Argentina. The fact that Article 2 of the First Chapter of the Argentine Constitution still stamps the Roman Catholic religion as the state religion, shows how much the old Spanish centralism still prevails there. The same applies to the fact that the President of the Republic is still appointed by the central government, and that the provincial governors are still appointed by the President. In short, the provincial autonomy in Argentina is still so limited that it can hardly be compared to what Pennsylvania enjoys.

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A FAILED IMITATION OF OUR PAST. 235 In South America, just as in North America, the religious foundation in the state life persists undiminished. That here such one-sided honor was given to the Roman religion was a remnant of Spanish rule. Alongside this provision in Art. 2, however, Article 14 names among

the unabridged rights of citizens also the freedom of religious worship. Far more than nominally, the maintenance of the Roman National Church is not the case. The Spanish tradition and the American idea of freedom have both here come to their right; and it is the latter that actually governs the situation. Our colonists, who, after 1901, settled in Argentina together with colonists from the Cape, and who, under the leadership of Dr. Van Lonkhuyzen, who now stands in Grand Rapids, organized themselves ecclesiastically, encountered no difficulties whatsoever. Argentina wants to attract foreign colonists, and therefore opens the floodgates as wide as possible. The main point for the subject that now occupies us is Article 5 of the Constitution of September 25, 1860. For there we read: > Each province shall give itself a Constitution on the basis of the representative system of government, provided that it is in accordance with the principles, declarations and guarantees of the national constitution. Each province shall introduce, within its own territory, an organization for the judiciary, for the municipal administrations, and for primary education. And it is under these conditions that the national government guarantees to each province the enjoyment of its rights. Part II of this Constitution further provides that here too there shall first of all be a legislative power, composed of two Chambers. For one Chamber, the choice shall be made by the people. The other Chamber shall be the Senate, which shall be filled by the choice of the provinces and the capital. All voters from the entire country will appear there, it is expressly stated in Art. 37, as the voters of a province. In the Senate, each province will appoint four members, and they will sit for nine years, while in the other Chamber the election takes place for four years. Art. 74 entrusts the executive power to the President, who bears the title of "President of the Argentine Nation." He sits for six years. In his appearance, he must, according to Art. 80, take this oath: "I, N.N., swear before God our Lord and on His Holy Gospels, that I will discharge the office of President with loyalty and patriotism... "

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I will observe love. And that I will faithfully follow the Constitution of the Argentine nation. If I do not do this, then may God and the nation call me to account." Here in Argentina, Ministers, and indeed according to Article 87, who act differently than in the United States, appear in the Chambers and may participate in the discussion, but have no voting rights. And according to Art. 94, the Judicial organization then comes in as the third power, which also exists here, consisting of a Supreme Court, with lower Judicial colleges underneath, who are appointed and must conduct themselves in accordance with the law of the land, which will be established by the two Chambers, with the cooperation of the President. And now that the three general powers have thus been regulated by both Chambers, as a result of their inherent authority, the regulation for the provincial or state administration follows in Art. 109 ff.; whereby it all comes down to this

basic provision, that the Provincial Legislatures are not seen as assigned, with only a few exceptions, but are regarded as possessing all the powers and all the competences that are not granted in the first chapters of the Constitution to the legislative, executive or judicial power. The Provincial Legislatures are therefore not here an auxiliary institution of the central authority, but the autonomous bodies in which the people regulate their own affairs, and which, now joined together nationally, do not merge, but only see themselves set the limits and restrictions that the Constitution specifically indicates.

## §9. Brazil and Chile.

Next to Argentina, we point to Brazil and Chile, together with their so-called A.B.C. States, because Argentina begins with A, Brazil with B, and Chile with C. The Constitution of Brazil is of very recent date, namely of February 24, 1891. The State already received the name of "the States of Brazil" in the Constitution of 1889. They were twenty in number, and now form a confederated Republic. The bond that binds these 20 States together is forever closed and cannot be dissolved. At least this is stipulated in Article 1 in the first Title of the Constitution. Each of the old Provinces received the name of State by this Constitution. The national Republican Government

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BRAZIL AND CHILE. 237 The government, according to Art. 6, can only intervene in the administration of the provinces or regional States: 1° to repel military force from without or within; 2° to defend the federal-republican character of the country; 3° to restore order in any of the States; and 4° to ensure the observance of national laws. In Brazil, too, the National Congress, according to Art. 16, consists of two Houses, that of the Deputies and that of the Senators. This Congress exercises the legislative power under the sanction of the President. The legislature lasts three years for the Chamber of Deputies and nine years for the members of the Senate. The executive power rests with the President, and he is elected by the people (see Art. 41). He serves for four years. The President appoints the members of the Supreme Court, and likewise the Envoys, but with the approval of the Senate. The Ministers are his assistants. Each State issues its own Constitution and possesses legislative power, provided the principles laid down in the Constitution of the Union are strictly observed. The almost identical institutions of Chile need not be set forth in detail. What has been said so far applies almost entirely to the organization of the United States, and this holds good for almost all the Republics of South and Central America as well. However, to supplement this, it is now necessary to indicate in detail what rights and powers have been taken away from the regional States, which now belong to the functions of the Federal State. By way of example, we choose here what the Constitution of Argentina stipulates in this regard in Article 67, in 28 sub-articles. These 28 sub-articles come down to this in short

summary, that the National Congress has reserved for itself: 1° the regulation of import and export duties; 2° the levying of taxes for all regions, insofar as the funds must be available for the defense of the country, the common security, and the general interests of the State; 3° the contracting of State loans; 4° the disposal of the national territory; 5° a national bank investigation; 6° the regulation and supervision of the internal and external loans of the State; 7° the establishment of the national annual budget; 8° the lending to the Regions that need assistance; 9° the regulation of navigation on the rivers; 10° the coinage; 11° the enactment of a civil code, a commercial code, a penal code, etc.

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12° to regulate shipping rights with foreign countries and between the Provinces; 13° the postal service; 14° the regulation of borders; 15° care for the Indians, and for their conversion to the Roman Church; 16° promotion of the development and prosperity of the entire nation; 17° the establishment of lower courts; 18° to judge the motives for the resignation of the President; 19° to conclude treaties with other Powers; 20° the admission of religious orders; 21° the right to declare war; 22° to regulate the proceeds of captured ships; 23° to maintain armies and navies; 24° to regulate the militia, and to exercise authority over them; 25° to admit foreign troops if necessary; 26° to declare a state of siege; 27° to administer all places and ports declared to be national property; and 28° to enact laws and ordinances for the implementation of all national executive power. Of course, sub-article 16 of all these provisions is the most elastic. This can be applied in a narrow, but also in a very broad manner. For the rest, however, it is clear from Art. 67 with its 28 provisions that the provincial autonomy in Argentina is anything but an empty phrase. In fact, only that which has a common character is taken away from the Provinces and reserved for the National Congress, the President and the Supreme Court.

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IN 1815 PROVINCIAL AUTONOMY WAS NEGLECTED. To point this out would now serve no purpose, since all our seven united Provinces before the Union of Utrecht were never anything other than parts of a larger whole. This, however, was certainly not the case in 1581; and if one now compares the so insignificant autonomy that has been left to our Provinces after 1815 with what has been left to the Provincial States in Switzerland and both in South and North America, then the irresistible judgment imposes itself that the autonomy of the individual Provinces has been swallowed up by the then formed national government. In Switzerland too, in later years, more and more thought has been given to encroaching on the autonomy of the Cantons, but a reaction soon set in against this, and during the upheavals that the Great War of 1914

also brought to Switzerland as a border country, even in the French Cantons a not insignificant movement has arisen to strengthen the autonomy of the Cantons again. Now it should be immediately noted that both in Switzerland and with us the smallness of the Cantons and the Provinces worked in favor of this solution of their autonomy in the state unity or in the Empire. In America, on the other hand (not counting the small states on the Atlantic Ocean), one had to deal with states that were almost all much larger than our entire country. Only Holland could once boast of its extent, but this province has also been divided into two parts. And if one now objects that in Switzerland and America republics prevailed, and with us after 1813 a monarchy, we too gladly emphasize this distinction, but cannot concede that this had to lead to such a fatal destruction of autonomy. What has worked so disastrously here is twofold. Firstly, the example of the French Revolution, which simply cut up the French provinces and sought salvation in the Departments; but then also no less the condition that has prevailed in England since William the Conqueror. In England, you see, the autonomy of the ancient provinces has been almost completely abolished, the central government has become the sole legislator and power holder, and what in England alone gave the necessary counterweight, was the self-government that had been so powerfully carried out here as well. Something of this was also intended here; but the fact is that it was the French and English influences that have largely dominated the disposition of our leading statesmen since 1815; and this explains why from the very harsh autonomy of the days of the Commonwealth, after 1815 almost nothing remained, even if it was intended otherwise by Van Hogendorp. And although it may be said that Thorbecke in 1848 succeeded in at least somewhat loosening the oppressive bond of unity, Thorbecke too did not restore autonomy to our Provinces in any significant sense.

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## §11. Autonomy and Self-Government.

Yet again, the distinction that Buys pointed out comes to the fore: not autonomy, but self-government. That is indeed the actual state of affairs. Especially when it comes to the provinces, the law comes from above, and the province is accountable to the one who gave the law; and even insofar as they retained some own initiative in matters of roads, canals, water management affairs, and now presumably also in the matter of electricity connections, the central action from above dominates the entire provincial life. On the other hand, the multifaceted activity entrusted to the Provincial Administration in the execution of the laws, especially also in relation to the Municipalities, the polders, and the peat bogs, is under pressure; but even in this multifaceted domain, one is increasingly moving in the direction of also intervening from higher up

by law in these matters. Thus, the free initiative is steadily diminishing in the provincial domain. Much, very much, remains the meddling, but it is increasingly taking on the character of subordinate labor performed at the behest of the Central power. The complaint that has just now, as we indicated, again arisen in Switzerland against this ever-increasing centralization power would therefore also be fully justified here. Ever less remains of the ancient autonomy of the Municipalities. Just as the Mayors and Municipal Administrations are also increasingly overburdened with work flowing from the law, so too the Provincial States are increasingly reduced to mere execution, and for a not insignificant part under the leadership of an outsider appointed as Chairman, the so-called King's Commissioner.

## §12. Our Commissioners.

Also a brief word about this highly placed official. In Switzerland and in the American Republics, the Canton or State elects its own highest dignitary. With us, on the other hand, he is appointed by the Crown, entirely from the outside. There is no nomination, there is no consultation. From the Government Gazette, the Province learns of the appointment of the King's Commissioner, who then takes up his position.

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AUTONOMY AND SELF-GOVERNANCE - OUR COMMISSIONERS The provincial commissioner, whoever he may be, lacks all initiative, and even the cooperation that could come from the Province is absent. Indeed, the very title of "Commissioner" has something about it that repels rather than attracts. The old title of "Stadtholder" at least had this in its favor, that it drew a connection to the Sovereign, however tenuous. The title "Governor" chosen in 1813 at least aimed at rule and administration. But "Commissioner" is a mere agent, and conveys no other impression than that of a higher power exercising control over you. We cannot but consider this title as not particularly well-chosen. And this is all the more true, since differences of opinion arise between the Commissioner and the Provincial States, the former having the right to suspend execution and seek support from the Ministry of the Interior. Even his vote in the meetings of the Provincial States is questionable. The Provincial States and the Provincial Executive are bodies emerging from the electorate. In such a body, where the majority, as in the Provincial Executive, already consists of a few persons, to give the Commissioner who has come from outside not merely the right of advice, but the full right to vote, means that it is the Commissioner who so often casts the deciding vote. If there are five or seven Provincial Executive members, this easily splits into two and three, or four and three, and depending on how the Commissioner votes, the outcome is determined. To this is added that as the network of legal provisions enveloping our entire system of government becomes more extensive, multifaceted and intricate, fewer members of those States are capable of feeling at home in this web, and more than one member of the

Provincial Executive sometimes loses their way in this web. Hence the influence of the Commissioner, who is himself thoroughly versed in all this, steadily increases. Thus three factors work together. Finally, the entire States, which meet only very rarely, and receive everything prepared for them. Their decision is preceded by what the Provincial Executive does to prepare the decisions, and in this preparation the Commissioner not only participates, but also advises and votes. And through all these factors, the self-evident influence of the Commissioner, emanating from his legal knowledge, his personal position, and the support he has behind him at the Ministry of the Interior, works in and under it all.

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THE ADMINISTRATION OF THE PROVINCES. In these large Provinces, this overwhelming influence certainly finds a counterweight in the more prominent persons who are elected to the Provincial States; in contrast, there are smaller Provinces where, in proportion, the power and influence of the Commissioner still carries more weight. This is nothing other than the usual outflow of all administrative arrangements that rob autonomy and extend self-government downwards. The more complex the system of legal provisions becomes that comes from above, the more one is compelled to place the execution under the guidance of knowledgeable leadership, since it increasingly goes beyond the sphere of the ordinary members of the States.

## §13. The Good Side of Centralization.

If one now asks whether this more centralizing administration of a Province does not also have its good side, we do not hesitate to answer with a resounding yes. Quite apart from our past and our sense of freedom, our Provinces, with a single exception, are not so large that they could not be governed almost entirely from above; and not only that, but it is beyond doubt that even for our Water Management, the great freedom left to the separate Provinces had its questionable side. It is indeed to the more centralizing tendency that we owe the absence of the great floods that so often troubled us in the past. Here too, what applies to all household management holds true: the greater and stricter the organization of the administration, the less danger of irregularity. In a large orphanage with 200 to 300 inmates, everything marches almost clockwork-like in the evening and morning, while in a small family with a small number of children, the orderly course and flow of things often leaves much to be desired. The more a household takes on a mechanical form due to its size, the firmer its regulation. But if you now ask where life thrives better and more luxuriantly, in the large orphanage with its draconian order, or in the organic family with its undeniable irregularities, no one would take the mechanical institution.

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THE DIVERSITY IS LOST. 243 And so it is here. The decentralization of our administration, even in its application to the Provinces, has undoubtedly promoted regularity and prevented many plagues of too rigid order. On paper, everything now runs beautifully—just consult the bundle of reports that the press releases each year. But it does not at all follow from this that life is healthier and more luxuriant.

## §14. The Diversity Is Lost.

This would be less the case if the life in the different Provinces had not lost its own distinct character almost entirely. If one could say that wherever one travels in our country, one finds Dutchmen without further ado, as if they were identical in their bearing everywhere, it would still be manageable. But that is not the case. We are not a people whose diverse development has only just begun, but we are rather already old and well-seasoned in the political domain. A rich past lies behind us, and in this rich past the inhabitants of the different Provinces have developed somewhat distinctly according to their own character. The Zeelander has nothing of the Groninger, the Limburger almost nothing of the Frisian. Even the descent differed. The region of the country where one settled in ancient times gave diversity. Occupation and way of life further accentuated this difference. It is precisely in this multiplicity and diversity of our people that not a little of our strength lies. And this historical power is now diminishing and being lost through this centralization, just because it is spread out before us. We are impoverished nationally because of it. And what is even more sorrowful, we have already strayed so far from the old historical track through this centralizing drive that it must be seriously doubted whether it will still be possible, even if only to a limited extent, to approach decentralization again. The attitude recently adopted by the Province of North Brabant in the matter of the provision of electricity was in so far a happy sign of life, as it showed that something of the old spirit could still awaken after all. It was there a matter of subordinate importance, but something of the old spirit did speak in it. In general, however, it must be acknowledged that the spontaneous urge to leave nothing untouched of the autonomy of the Provinces manifests itself only very rarely. If a detail issue is on the agenda,

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THE ADMINISTRATION OF THE PROVINCES.

When considering a road that has been laid out or a canal that is to be dug, one naturally takes an interest in that part of the Province through which that road or canal will run, but usually in a way that leaves the rest

of the Province cold. When I sat for Ommen in the Second Chamber, I became acquainted with such a case-position, from up close even. But if you ask in general whether there is interest in the Province for what the Provincial States accomplish, it must be acknowledged that this interest only very rarely manifests itself, and even when it does, it bears an extremely languid character. Hardly any notice is taken of the proceedings of the States, and nothing that one could say warms up all of Friesland or all of Utrecht occurs anymore. Everything looks to the Residence, reads about the States-General, takes note of the Government Gazettes, but the provincial bustle no longer grabs anyone, and often leaves them cold. This is to be regretted. In common life, everyone recognizes that the real power does not lie in the ordinary-taken type, but in the special modifications of the common type. Take a photograph of an entire family, and if it so happens that between the facial expressions and bearing of the persons, not even the sharpest eye can detect any difference, you readily know that this family will not amount to much. It is a type-family, but without the type of truly distinctive persons. And this is the difference that also applies here. Behind us lies a past in which each Province developed in its own way, unfolded its own life, displayed a distinct type, was and had something of its own, and this peculiarity of the entire life course of the people in that Province came to light. This even came out in the clothing and in the folk games. The Frisian cap betrayed a rich and refined spirit of chaste taste and dignified seriousness in the entire Frisian people. In the State of Flanders, a completely different type expressed itself. But taking the country as a whole, a richly developed peculiarity still manifested itself in so many varied and rich types.

## §15. The Demise of Historical Beauty.

But now one sees, on the contrary, how all too much of this historical beauty is in the process of dissolving into the central generality, which,

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THE LOSS OF HISTORICAL BEAUTY. 245 Our people, in their peculiar way, draw their model from Paris. Our critique of this centralizing and homogenizing tendency is therefore no mere side issue. Our Calvinists of old have understood the high national and moral power that lies in cultivating independence, in passionately loving freedom, and in clinging to their own ancient forms. If it had been granted to us to continue on that line, our people would have displayed a very different power than is now the case. The spirit of Calvin had enriched and strengthened us, the spirit of Danton, Voltaire and Robespierre has but too much stripped us of our Calvinistic peculiarity, and caused us to merge into the uniformity of European Liberalism. And against this, not even a protest any longer goes forth. Rather, it is praised. On the Scheveningen road, in your walk, you meet two types from the village; on the one hand, the old

Scheveningen figures, dressed and coiffed in the old Scheveningen style. But on the other hand, you constantly encounter young daughters who, though belonging to the village, have purchased a dress of Parisian cut in The Hague, and whose bearing therewith does not at all fit. In Friesland you encounter the same. Whoever there lays aside the cap and consorts with Paris, considers himself a lady, and looks down half-contemptuously on the wearers of the old-fashioned model. Fortunately, it may be said that among us, Calvinists and Anti-revolutionaries, the love for the peculiar type is still much stronger than among other fellow-countrymen. If this could continue, our country would gain by it. Peculiar form displays a peculiar nature and a peculiar life. It should not be just about tone upon tone, but about the varied tones of the gamut. Not the many-leaved, coarse leaf, but the endlessly varied leaf and flower types make your court rich. This also applies in the political sphere. Suppose, for example, that education were so arranged that the municipalities would provide for primary education, the provinces for secondary and grammar school education, and the state for higher education, how then a peculiar life would already sprout forth in education, which is now somewhat lacking. See in the telegrams that report to us the course of the war, how the mutual rivalry between the Hessian, Baden, Saxon and other troops spurs on the fighting spirit, and ask yourself whether we too would not stand much stronger if, with us too, the provincial type had come more into its own in our national army.

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246 THE MUNICIPALITIES. But as said, how far we have strayed from the earlier rich diversity, the less the chance that we will ever again be freed from the curse of this centralizing uniformity. It is especially the ever-increasing meddling of the State that also with us makes more and more people long for the all-encompassing care of the State. Chapter IX. THE MUNICIPALITIES

## §1. Aroused interest.

Now, in passing from the Provinces to the municipal system, one immediately encounters the striking contrast between the general indifference towards Provincial interests and their warm interest in municipal affairs. This is undoubtedly largely due to the often very heavy burden of municipal taxes, which especially in the largest cities keep climbing again and again, and now already approach or exceed 5 to 6% of net income. For the provincial administration too, it must be known, but the surcharges on the Personal Tax differ so markedly for both. Groningen remains outside the discussion, as it is known to have exceptionally high provincial expenditures for its Water Management; but take, for example, South Holland, and then, apart from the war situation, the surcharge rate in 1912 stood at 110 for the municipalities in The Hague and only at 11 for the provinces. So a tenfold difference. Yet it is not only the higher taxes that prick here. Much

stronger is the stimulus that emanates from the ever-increasing number of officials and workers who are often in the service of the municipalities.

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The salaried employees often control the situation. 247 In most municipal services, and with those where the peculiar phenomenon does not present itself that the salaried servant of the municipality, even if indirectly, cooperates in the regulation of his own conditions of service.

## §2. The salaried employees often control the situation.

In almost every large city, the phenomenon constantly occurs that, in particular, the teachers of the Public Schools and the municipal workers almost completely control the election of the members of the Municipal Council. To this is added, in the third place, that an ever-stronger desire is arising among the citizenry that the Municipal Council should in a mild way and in all kinds of ways provide for what they wish, that for the benefit of the citizens and for their enjoyment, the early fathers in the Municipal Council will make available. The theater performance then takes the lead. Furthermore, one demands urban bathing facilities. Increasingly rich municipal hospitals. Parks and promenades of beautiful design. Everywhere the laying of tramways. Excellent water supply. And above all, generous relief for the poor, provided it is never called relief. It could not be surprising, therefore, that where the action emanating from the Province is mostly very limited, and on the other hand that of the Municipal Council is constantly expanding, and sometimes becomes all-encompassing, even those who previously did not at all care about the Provincial interests, often stand more alert at their post, whenever an important decision had to be made in the municipal interest.

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248 THE MUNICIPALITIES. If the independent development of this civic freedom has been far from favorable, yet a constant unfolding of life and energy is to be observed in the municipal field, which shows how municipal life, in spite of an unfavorable legislation, knows how to assert itself, sometimes exerting a rather rapid influence even on the Provincial States, and often brings it about that even in the highest government circles, at least with the largest cities, one reckons.

## §3. The cities in antiquity and now.

The Province or the State, where it lost its Sovereignty, can never be anything other than an intermediate link, between the national government and the local inhabitants scattered throughout the land. The municipality, on the other hand, has been from the outset a sovereign state in miniature, and this also explains why in ancient times the city of cities was often the bearer of central authority. So it was in Egypt with Memphis and Thebes, in Assyria with Nineveh, in Babylon with Babel, in Persia with Susa; and it was no different in Greece with Sparta, Athens and Corinth, and on the Italian peninsula with Rome. But neither Italy nor Greece should be mentioned. Athens in Greece was the representation of political power, and so the emerging political power often bore no other than an urban character. Even when the Roman Empire eventually ruled the entire known world, the Senate of Rome, which held the decision in its hands, was nothing other than a municipal body. Under Rome, even when it wielded its scepter over three continents, nothing else was ever understood than the city on the Tiber, and the Emperor of the Roman Empire was in so far a municipal office holder. Alongside and under the urbs Roma stood the Municipia, which bore more the character of what we call "Municipalities." But however one looks at it, the central cities as we see them especially in Greece and in the Roman Empire, actually exercised state power, and yet in their essence were nothing other than what we call cities or municipalities. Now one immediately distinguishes between the name of cities and the common name of municipalities. With us, our Municipal Act has strongly accentuated this distinction.

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THE INFLUENCE OF THE FRENCH REVOLUTION. 249 The official legal language completely disregarded any distinction. The fatal tendency to melt our entire human life into a deadly uniformity, formally, in the most absolute sense, wiped out any distinction between a capital, a city, a town, a village, and a hamlet. What had traditionally vied for an independent position would henceforth be called a municipality, uniformly, never anything else. Hence the law scarcely recognizes any distinction between a city like Amsterdam with more than half a million inhabitants and one of the many small villages, such as are found especially in Zeeland; villages sometimes not even counting half a thousand inhabitants. The number of municipal council members or aldermen makes a difference in the higher or lower population figure, but otherwise Amsterdam and Urk stand on a footing of complete equality. The political life, too, is dissolved into similar atoms, and there is no eye for the rich variation in life. All imitation of French revolutionary narrowness, which one constantly encounters in practice.

## §4. The Influence of the French Revolution.

Of this, there is no trace in lands that escaped the French revolutionary fever. In the Rhine provinces and in Belgium, the imitation of the French model has continued, but in the more eastern part of Germany, small villages and towns have a completely different organization for their household than Berlin or Breslau. With us too, from the outset, and from various quarters, protest has been made against Thorbecke's unification of all cities and villages in his Municipal Act; and although in higher circles this criticism was initially insensitive, it can be said without fear of contradiction that the error committed is now generally recognized, so that, should it come to a revision of this organic law, a division into two or three, if not four classes or types of our municipalities, can be expected. The household of the small villages and towns can and must be greatly simplified, while the household of the larger cities must receive a much more elaborate regulation. As it is now, the legal regulation does not correspond to the demands of life. A maximum unity bond has now been applied to life, which hinders the free expression of life, and what we must demand in its place is a regulation that blossoms forth from the very root of life itself. It is not in an ordinary village, but only in a city of significance, that the richly developed civic life comes into its own. This was also the intention, and the realization, in the rise of the classical cities of old. All such leading cities were what we would now call states. They stood almost completely equal in significance and legal position. They had risen independently. They had known how to safeguard their independence through the weapon of their own army and sometimes even their own fleet. There was no question of subordination to others; rather, of the subordination of others to them. Yet it cannot be said that our present-day cities stand on a par with these sovereign cities from the days of antiquity. Rather, the condition prevailed here from of old that the common people engaged in agriculture under the rule of a territorial lord, who had subjected the entire surrounding area to his castle. In the days of territorial lordship, there were then also no cities of significance that arose here.

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250 THE MUNICIPALITIES.

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## §5. The Rise of Our Urban Life.

Urban life was still unknown. This only came to the fore when, gradually, separated from the territorial greatness of the nobility and the population devoted to agriculture, business, manufacturing, shipping, trade, science, and art also began to emerge. Those who then devoted themselves to these various spheres of life stood partly too high to sink into the agricultural population, and were partly also too ordinary to find housing in the moats and castles. The business, industry, shipping, and trade also demanded a different mode of settlement and organization of life. This now gave rise, as it were, to the birth of cities, of greater or smaller caliber. The magic means of the mighty circles who then set their sights on settling in such cities was...

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THE RISE OF OUR URBAN LIFE. 251 school in their money. The financial position of the agricultural class was not high; the lords of the nobility who sat in their castles were often deeply in debt; and the only ones of whom it could be said that they disposed of ample means were the great merchants and bankers in the cities. These dear money-lenders then also lent to them, and even gave the noble landowners a good deal, but not for nothing. Rather, they stipulated rights and privileges for the money given or lent. And so it was not long before such cities could surround themselves with walls, hire their own guards, defend themselves against all violence, and further organize an ever freer and more independent life within their walls, in which they developed a power that far surpassed the power of the feudal lords and nobles in their castles. In the classical cities of antiquity, this had presented itself differently. Whoever devoted himself to any kind of traffic or factory did not even count as a full citizen in Athens. His position was far from that of a free burgher. Hence, in the old classical cities, a freer class of burghers of a higher caliber developed, who took a much broader flight in the political, philosophical and artistic domains, while shipping, trade and industry soon withdrew to the colonial cities that had been newly established. However, this did not happen with us. Yet even then, persons of scientific and artistic inclination soon gave preference to settling in the newly emerging cities, but they did not set the tone there. They profited from the art lovers who came to the fore

among the merchants, and built and adorned houses like palaces, in which the financially mighty and the court could hold their splendor; but the city itself remained the city of the wealthy patricians, in which the merchants and bankers, whether from here or originating from Italy, displayed the splendor of their way of life. The consequence of this was that the magistrates and councils of these cities acted ever more independently. The chamberlain no longer needed his castle to bolster them, nor the feudal lord. And so the result could be no other than that these significant cities gradually attracted more and more political power to themselves. Their artillery stood on the walls within which they had enclosed themselves, their troops could march out, and as far as they were situated on main streams or by the sea, they knew how to strengthen their power no less through the establishment of a fleet on a larger scale.

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252 THE MUNICIPALITIES.

## §6. Amsterdam in former times and now.

This alone explains why Amsterdam in particular has known times when its council acted as if it had to decide the fate of the whole country. Now it goes without saying that this unnatural relationship had to give way to a more normal relationship, and the end result has been that our cities, including Amsterdam, have been placed in the corporate bond of the entire fatherland, so that the council of Amsterdam now of course has to say only over Amsterdam. After 1815, Amsterdam too bowed to the Crown, and the world city of yore was no longer solely concerned with its own well-being. There was therefore nothing particularly painful in the fact that even the proudest cities of yore were now also subjected to the national law; the only question was whether that national law would guarantee such an existence to urban life that they could flourish in freedom. And on this, it is difficult to answer in the affirmative. The great cities had after all been from of old, and so also at their rise in our country, peculiar phenomena of life, which could thrive only as long as no disturbing hindrance stood in the way of their sprouting from the root of their life. Decentralization had to remain the watchword here, and precisely in this it has failed. §7. Our opposition came later. At first, even in Antirevolutionary circles, there was little eye for this shortcoming. There were so many holier interests on which attention initially focused. Moreover, the traditions in which one lived had borne the stamp of the old saying for too long and too strongly: “As the lords direct, so shall we praise.” Already after the end of the first third of the seventeenth century, the commercial aristocracy had managed to master power, and even in the great cities remained almost nothing to say for our small bourgeoisie, while in the countryside the aristocracy of the Dutch lords still exerted a tighter pressure on the small peasant class. From this

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OUR OPPOSITION CAME LATER. - OUR MUNICIPAL LEAGUE.

It is therefore explained that the Anti-Revolutionary party had already been in existence for many years before we on our side began to take a closer look at the interests of the municipalities. It is true that in “Our Program” there was already a complaint about the limitation of municipal rights, and a plea for the emancipation of the office of mayor, but in the party program of ‘79 there was not a single article on municipal administration, in not one of the political election programs was this current interest pointed out, and even in Groen’s days it had not at least been made the subject of broad discussion. Cabinet after Cabinet had caused liberal or conservative party members to act as mayors. These liberal mayors had endeavored to have a like-minded secretary appointed. Pressure from above had also been strongly exerted on the choice of municipal council members. And so it is explained that it was not until the 20th century that we on our side also began to focus more attention on municipal administration. In large numbers, our members had now been elected to the municipal councils everywhere. In the largest cities, one could already welcome some Aldermen from our ranks. The number of Mayors from our circle still remained very low, but it was nevertheless increasing. And so it could not be otherwise, or the question arose, what attitude would flow from our principles towards those who were thus elected, and therefore also for the voters from our ranks. This then also gave rise to the fact that in our local electoral associations the municipal problems gradually came to the fore and that an attempt was made twice to set up a first outline of a municipal program in vague terms and in a small number of articles.

## §8. Our Municipal League.

But even this did not stop there. In October 1908, they even proceeded to the establishment of a League of Anti-Revolutionary Municipal Councillors in the Netherlands, a league whose actions I might lead in Utrecht with a speech that, under the title: “Independent Municipal System,” saw the light of day that same year at the publisher Bootsma in The Hague. This gave impetus. And under the active leadership of Dr. Van Staveren in Rotterdam, the plan then quickly arose

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to create a separate organ for the benefit of our municipal councillors and for the dissemination of our municipal convictions. The first issue of this organ saw the light of day in 1910, and under the editorial leadership of Mr. B. de Gaay Fortman, this monthly is now already in its fifth year. With Mr. de Gaay Fortman, the members of the editorial board are Messrs. Mr. Dr. H.W. Hovy, Mayor of Loosduinen, Dr. W.B. van Staveren in Rotterdam, Mr. J.P. Chardon in Delft, and Mr. D.G. Wentink in Utrecht; the first for Business, the second for the Health section, the third for Educational Affairs, and the fourth for Urban Development and Housing. The magazine bears the title: The Municipal Council, and is generally no less than fourteen quarto pages in size. Both the actions of this League and the publication of this periodical may be regarded as favorable signs of life. It appears from this that we on our side are not directing our political efforts, as was once the case, exclusively to the national interests. The municipal regulations and administration are also beginning to occupy our men. And although we are still far from where we need to be, and although it must be acknowledged that even the principle questions that come up here are still not sharply enough formulated, compared to the days of our first entry, they have nevertheless taken a giant step forward in this field as well. It is only to be hoped that the serious distinction between the interests of the large cities and those of most rural municipalities will gradually lead to a separate consideration of the interests of both.

## §9. Large and Small Municipalities.

Naturally, it is above all the major issues that come up in the large cities, which attract the most attention in the press, captivate the most strongly, and thus automatically come to the fore in a one-sided way. Yet it is highly necessary that the investigation should also be directed more to the ordinary rural municipalities. Our League cannot live on the large cities alone, and it is certainly not the least in the municipalities that, because of their agricultural character and their small population, demand their own leadership, that the Anti-Revolutionary party must seek to strengthen its influence.

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LARGE AND SMALL MUNICIPALITIES - THE ENTERPRISES

The majority of municipal members are adherents. It cannot be emphasized enough that our League should also direct its attention distinctly to this twofold type of municipal administration. If Thorbecke's Municipal Act was the great fault, in that it treated our municipalities, large and small, rural and urban, almost entirely alike; against this fault, resistance must continually go forth, and it may very well be expected that this distinction will also express itself in the composition of the editorial staff of our organ.

Undoubtedly, there are interests that come to the fore just as much in the small village as in the largest city. Such as, for example, the observance of the Lord's Day, the regulation of drinking establishments, the fair, houses of ill repute, the relationship to the Diaconate, and much more; questions where all differences of opinion among us fall away, and where it will therefore be more a matter of harmonizing the proposed regulations in an unforced way with the local conditions.

## §10. The Enterprises

But we are not yet done with this. The social questions have also become no less serious in significance. The position of those who are in the service of the Municipality may not be left to the harsh views of an unsocial mayor. Also the Enterprises in the large cities, which have more than one Municipal Council under their control, demand investigation, both as to their nature and with a view to their independent regulation. What the Municipal Council may do, and what it may not take under its control, is a problem that awaits very serious investigation, if one does not want to drift unnoticed into Socialism. And then there is the almost all-encompassing financial question, which confronts us with the problem of whether the Municipal Council may take at its discretion from the treasury of those who have much, to benefit those who have little. We will now say nothing about the School System. This is heading towards its definitive regulation. May, therefore, the periodic report of the Municipal Council on these main problems also shed ever clearer light.

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How radical-blurred, ultra-radical A. Damaschke in his Aufgaben der Gemeindepolitik, especially in the 4th edition that saw the light in 1901, also went, it still has its use to summarize his ideas in a comprehensive whole; for this precisely leads back to the starting point in your political principle.

## §11. The Municipality Autonomous

Especially in municipal administration, the detailed questions press to the fore from all sides, just as in the private household; but precisely these detailed questions can inadvertently lead us down entirely wrong paths if we do not follow a firm guiding thread in their assessment; and yet, in stretching out those guiding threads, you can repeatedly come into contradiction with yourself, and on the one hand tear down what you build up on the other, if those distinct guiding threads are not unwound from the same skein. The

Municipality as a phenomenon in political life is of the same nature as the State itself. Just as the State, the Municipality is also a legal person. It has its own domain on which its life arose and continues, and on this domain, which forms its territory, it exercises authority over a population, just as the State does in its domain. Its power of authority also extends, though in modified bounds, over all persons and all things that are on its domain, just as the State's does. The Municipality also has an order in conformity with which it acts and operates; it has, just like the State, high officials, low officials, civil servants and employees. Hence, the Municipality must also have the necessary autonomy to issue rules and ordinances for public life on its domain. Separate from State and Province, the Municipality therefore also has its own Administration, just as there is an independent administration in every household through marriage and especially the birth of children. And it was not too high-flown that the Municipality formerly also had its own jurisdiction, as is still the case in the first instance in many places. Politics cannot take the lead here. Politics is for the maintenance of actual order, not for the administration of justice in complex relationships.

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THE MUNICIPALITY AUTONOMOUS - CITY-STATE.

Because the Municipality, just like the State, is its own subject, the Municipality can also act as a buyer or seller, and can offer services to have itself paid for those services, and thus act in a private-law manner. But it does not stop there. The Municipality, in order to be able to live, just like the State, must have the necessary means at its disposal; which means that it must be able to have property that yields interest, and that it must be able to earn through business, but also that it may levy taxes on its citizens and on anyone who in whatever way comes into contact with it from the outside, whether as a passer-through or as an importer from outside. Paris has rather high income taxes. Formerly, these were levied almost everywhere. The guards at the gates watched over this. In order to maintain its freedom unimpaired, it is even strictly necessary that the Municipalities be self-sufficient in their own housekeeping.

## §12. City and State

This identity in the fundamental traits of state life and of urban life goes so far that not the city has imitated the State, but much rather in the great, independently emerging cities the popular life has developed, and for this popular life a regulation has formed itself, which has rather served as an example to the State. The correct concept of authority, the concept of subject and yet fellow-citizen, the awareness of the duty to watch over the general welfare and at the same time over the general order, has not first penetrated into the great agglomerations, but rather first and foremost into the classic cities of Antiquity and into the great

commercial cities and the free Imperial cities, and from there has been transferred to the state regulation. Not the State went first, so that the urban community life followed, but in the great cities the order and the regulation first emerged from the very root of the community, which then shortly afterwards was followed on a broader terrain by the national government. Hence also the fact that in the course of history, time and again, the struggle for supremacy between the free great cities and the national government manifested itself. So it also began with us, with the almost absolute authority of the magnates under the lordships, who had nothing but an agricultural population under them and made these subservient to their own greatness at their own discretion. Against this one-sided domination, the resistance then went out, in particular from the great, flourishing cities. When these cities had then enriched the country and brought it into esteem, this in itself made the national government less powerful. It then tried to break the cities again, and they avenged themselves in new revolutions; especially at the end of the 18th century even through violent upheaval of what existed. And only out of this upheaval did the more ordered condition then gradually restore itself, which the 19th century brought us, though with the dreadful sacrifice of our so significant past, with the obliteration of what had thus formed our own peculiar character, and with the application to the whole country, both town and village, of a uniform order, which was not even of Dutch origin, but at least in part borrowed from the French revolutionary concepts of unity, closer to the Belgian Constitution.

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Now it would of course be too strongly stated if one claimed that hereby all Municipal autonomy had been completely lost with us. This was indeed the case in France; not with us. The Municipalities soon regained a certain right to their own organization. Van Hogendorp felt for this, and actually thought the autonomy sufficiently secured. But if one consults what our Municipal Law has given us, as Thorbecke imposed it on us, then there certainly remained for us a considerable piece of autonomy, over which one in France is jealous, but one feels nevertheless how even with us this autonomy is hemmed in by so many bonds of provincial and national government, and is so interwoven with such an all-sided central power, that it still presents itself as too poor and too modest.

## §13. The Position of the Mayor.

The limitation of this autonomy has not only been brought about by the power of the Provincial and National government standing above the Municipality, but very certainly also by the authority conferred on the Mayor.

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THE DEPOSITION OF THE MAYOR.

The mayor's authority is a delegated power. Take, for example, the oft-cited Article 188, which entrusts the police oversight of theaters, inns, taverns, and all buildings and assemblies open to the public, public entertainments, and public houses of ill repute—not to the Mayor and Aldermen, but solely to the Mayor. It is even added: "He, that is, the Mayor, watches over performances that conflict with public order or morality." Now, considering that the Mayor is appointed by the Crown, outside of any advice or cooperation from the Council, and is thus an official imposed from above on the Municipality, it follows that in this extremely important matter the autonomy of the Municipality is in no way respected. This is done, according to the title of §2 of the third chapter, "for the maintenance of public order," but experience has shown in more than one respect that this concerns matters over which the Municipality has very definite opinions, and yet the Mayor retains the unlimited power and authority to impose his personal will, often in a way that does not promote, but rather offends, public morality. The Police Commissioner, in whose hands such great power is placed, also comes from outside and is appointed by the Crown, just like the Mayor himself. Even his salary is regulated by the higher Government, after having heard the Provincial Commissioner and the Municipal Council. Even the agents and servants of the police are appointed and dismissed by the Mayor, and it is also the Mayor who, in consultation with the Provincial Commissioner, gives them the necessary official instructions (Art. 191). The rural constables are not even appointed and dismissed by the Mayor, but only in consultation with him, by the Provincial Commissioner. Thus, one sees that in every way where it comes to the exercise of power, not only the Council, but also the college of Mayor and Aldermen, is set aside, and that the regulation and execution of an official emanates from someone who received his appointment from elsewhere, and, moreover, from a higher power, and from outside, to whom his authorities were assigned.

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260 THE MUNICIPALITIES.

## §14. Self-government.

It seems that the need to limit the power of the so-called autonomous Municipalities has arisen primarily because an overly one-sided right of interference was granted to the Council. For according to our Municipal Law, the Municipal Council is not only called upon to promote the general interests and to draw up and establish the necessary ordinances, but is also called upon to cooperate in the execution of what has been ordered from a higher authority or regulated and ordained by the Council itself. Here two questions

are hidden, which require separate discussion. For first of all, the question arises whether it would be advisable to make a sharp separation between the Council and the College of Mayor and Aldermen, as between the legislative and the executive power; and secondly, whether the execution of the laws and ordinances from a higher authority can be entrusted to the local authorities in a manner and to an extent as is currently the case—the question of self-government. Now, as to the first of these two points, it must be established that the Council retains the regulatory authority. As far as autonomy has remained with the local circles of the people, it must be exercised by the Council. All regulations and ordinances that are subject to local establishment must emanate from the Council. For the Council is the body that represents the citizenry, and thus the college that, so to speak, has the legislative task to perform. Even though the execution of this task may almost never be free from the control of the Mayor, the Commissioner of the Queen, the Provincial States, and the National Government, yet it is and remains in its essence legislative in nature. If we now come, as is so urgently necessary, to the division of the Municipalities, according to their population and otherwise, into distinct classes, then in the one class less of this legislative authority will be used; but reduced to whatever small dimensions, the Council must be able to establish certain rules and ordinances for the household of the Municipality, to which the inhabitants of the Municipality must submit. Article 144

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SELF-GOVERNMENT - THE PROPOSALS OF 1912. 261 of the Constitution, as it now reads, goes further, however. For this article says: “The regulation and administration of the household of the Municipality is left to the Council.” Not only the legislative, but also the executive authority. Against this, serious objections have gradually been raised. Not that there are no Municipalities of smaller size and population whose Councils would very well be suited to the fulfillment of this double task, but this is not the question here. Now that our Municipal Law still treats all Municipalities alike, and Article 144, first paragraph, likewise declares equally applicable to the smallest and the largest Municipality, the question cannot be avoided whether it is appropriate, also in the Municipal Councils of our larger cities, not only to regulate, but also to entrust the administrative task to the entire Council. To this question, the Commission for the revision of the Constitution, whose report came out in 1912, gave a decisive negative answer. Hence its proposal to delete the words “and the administration” from Article 144.

## §15. The proposals of 1912.

One should not give this proposal a perverse interpretation, and understand what was proposed not in the sense that henceforth in no case the administration would be allowed to be exercised by the Council. This

was by no means the intention of the Commission's proposals. On the contrary, the Commission proceeded from the assumption that, even after this amendment of Article 144, there would still be many Municipalities whose Council would take care of the regulation of the administration. What was aimed at was merely to allow the Municipal Law to be so arranged, in a division of the Municipalities into classes, that there would be Municipalities whose Council would not at all concern itself with the administration, and that next to these there would be other Municipalities whose Council would also be entrusted, in whole or in part, with the administration, in addition to the regulation. In the Commission's Report, on page 22, it is stated as clearly as possible: "The Constitution must break with the demand that, in addition to the power of regulation, that of administration in its fullness, under all circumstances, and in every Municipality, must also be granted."

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262 THE MUNICIPALITIES. The administration of the municipalities, without distinction, must rest with the Council. It can safely incorporate the administrative organization in the points that it submits to the law regarding the municipal system. It must confine itself to demanding from the Council full and undiminished power to regulate and ordain. With regard to the administrative organization, the legislator then gets a free hand and can make his own insight the basis. He can organize the administration of some municipalities differently than for others; he can leave it to a large extent with the Council or take it away from them and shift it to Colleges, originating from or outside the Council, elected by the Council or in another way. In short, he can, provided he leaves the regulatory power to the Council, accept any conceivable arrangement of the municipal administration and thereby meet all the objections to the system embodied in the Municipal Act. I agree with this amendment. Through this change, we would come closer to what Steyn devised for Germany, and which proved so profitable for our eastern neighbors. It is the uniformity that also spoiled the matter here. What is usable for a municipality of 3,000 souls may by no means be so for a municipality of 300,000. Multiformity must also on this point adapt the organization to the multiformity of life. Only when the words "and the administration" fall away from Art. 144 of the Constitution, will the municipal legislator regain the freedom to take into account the strong distinction between the large and the small, the agricultural and the commercial municipality. In municipalities of a lower class, the administration can largely be entrusted to the mayor and aldermen, and in another class the task of the administration can be divided through the establishment of various commissions. Elsewhere, it will again be able to remain as it is now, since no hindrance was experienced. In short, the Municipal Act must so order that the organization of the organization in each type of municipality corresponds to its condition. It should only be noted here that the assignment of the administrative task to

the college of mayor and aldermen would only be recommendable if the mayor was no longer like an agent of the national government.

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A RICHER LIFE ALSO HERE. 263

## §16. A richer life also here.

If one compares the proceedings of the municipal council in a city like Amsterdam or Rotterdam, as they are deposited in our city archives from the middle of the previous century, with the proceedings of that same municipal council in this century, the difference in the number of pages already shows, but even more the difference in the agenda and in the course of the debates, that what could once seem usable, and was even acceptable to Thorbecke, now runs aground. Entirely independent of the intentions and efforts of the framers of the Constitution or the Legislator, our official state and municipal life in Parliament and Municipal Council has also developed in such an extraordinary way towards all-sided unfolding, that one cannot be surprised if one speaks of a quadrupling of content. The Proceedings of the States General of 1850 and now are hardly comparable anymore, and the same applies to anyone who compares the municipal council reports of fifty years ago with those of today. And although it must now be acknowledged that much has been drawn into the public domain that would undoubtedly have remained better in private hands, yet no one would wish to return to the sober reaction that for seventy years made the pulse of national life beat so alarmingly faintly. Our people of today are so entirely different from the people of then. The entire standard of living has taken on such a changed character, that it was absolutely impossible to perpetuate the insensitivity that prevailed in olden times. As late as 1845, everything was left to its own devices; now one tends to get involved in everything. The press, still insignificant in 1840, has now awakened and warmed the public. One hears of everything, one gets involved in everything, one is eager to exert influence on everything for one's own share. The expansion of the right to vote has further accelerated the wider and broader unfolding of public life. It must even be acknowledged that the mighty inventions that came to surprise the amazed public after 1850 necessitated a common public appearance, for which each person previously sought and found his own way in his own circle.

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The municipalities. The master of the light - now gas and electricity have demanded the lighting of the whole city - pushed everything in the public direction. It was the same with the water supply and the

means of transport. The municipal councils could not leave all this to private individuals in the long run. And just as with the physical given, so too it increasingly came to lie with social affairs. One could no longer, each for himself, stand up for his interests. Binding in clubs, in corps, in unions became the general slogan. As this all pressed forward of itself and unnoticed, the first college to which it all came down had to be the municipal council. Hence the organization of our municipal councils no longer proved to be in harmony with the actuality of life. The State Commission under the chairmanship of Heemskerk has recognized and acknowledged this, and it would indeed be a gain for our entire public life if the "administration" were to disappear from Article 144.

## §17. The cooperation of the municipal authorities.

We now come to the second point: the cooperation required in Art. 126 of the local municipalities "for the execution of laws, of general administrative measures, of the King's orders relating thereto, and of provincial regulations and ordinances." As a rule, only the mayor and aldermen are responsible for this cooperation. Only insofar as this is expressly stated in so many words does the council also intervene here; and if it happened that the council remained behind in this, then what was entrusted to the council also comes at the expense of the college of mayor and aldermen. If the cooperation was also not provided by the mayor and aldermen in a sufficient manner, then the task does not fall on the mayor alone, but on the head of the Provincial Administration (see Article 127). This whole regulation now lies in the English line. In England, too, the rule is just as valid that the local and district authorities lend themselves to the execution of what is commanded from above. This institution now intends that the national government, and partly the Provincial Administration, can order, command and order in all kinds of ways, but for the execution thereof not to appoint their own officials, servants or agents as a rule, but the local municipalities to be employed. In these municipalities, then, the task that went out is carried out by the council, or in the council by the mayor and aldermen. If localities are to be made ready for the execution of that task, permanent or temporary officials to be employed, offices and commissions to be assembled, expenditures to be made for costs, then the initiative for all this as a rule comes from B. and W., and it is the municipality that bears the costs. How high these costs can run can be seen in the accounts of the large cities, and how overburdened and almost cumbersome the care for the fulfillment of all the regulations laid down and also the execution of all the task assignments is, can be seen at the Town Hall in such large municipalities. For it is not a care and concern that is added as a part to the already so great municipal task, but it is a concern in itself so comprehensive that neither the mayor nor the aldermen can keep a close eye on it, and that it is rather a thriving bureaucracy that is settling in the halls of the Town Hall with increasing power. For a long time now, one could also hear the complaint that the mayor of Amsterdam was almost collapsing under it.

And yet, instead of diminishing, the task hidden in this is still increasing. The Residence and the Province order and command, but the fulfillment, the elaboration and execution of what is commanded is as a rule placed on B. and W. This now does not present a predominant objection financially, since the municipality received the authority to levy a very large number of percentages on national taxes, but, leaving the financial aside, the objections that cling to this way of acting are of a higher serious nature. §18. Execution of Higher Authority. That the administrators of the municipalities burden themselves with the fulfillment and execution of what the municipality itself has ordained is entirely natural. For then the rules apply that emanate from it as a municipality, and that move in a field that every member of the municipal council can oversee. Against this, there has never been any objection either. But the case is different when the municipalities have to cooperate in the execution of what is commanded from above. Here the objection arises that the municipal council is not the appropriate body for this, and that the municipal council is not the appropriate body for this, and that the municipal council is not the appropriate body for this, and

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and that remains a terra incognita even for most aldermen. And when one adds that not a month goes by without the bundle of this complex having swelled again, and that in what was thus gilded, smaller or larger modifications have been made, then remaining up to date with all that these central and provincial laws, regulations, and commands contain is not to be expected of anyone who does not devote themselves to it intentionally. Especially now that a spirit has permeated everything, determining everything, regulating everything with the utmost precision in legal form, the complex in question has taken on such an awe-inspiring scope that only those who devote themselves intentionally to its study can be considered up to date. Leaving the great municipalities aside, one cannot at all count on the ordinary municipal council members, and only exceptionally on the aldermen, and in fact only on the mayor and the secretary. Handbooks help to some extent. The provincial registry comes to the rescue. And so one gets by. But in the end, it is still the case that a huge part of the work of village administrations in this service is done for the benefit of the country and the province. Now that even the largest city and the smallest village are subject to the same almost completely uniform regulation, it is self-evident that this must lead to stifling disproportions. The mass of work in the great cities has become so great that the mayor can no longer handle it, and must entrust it in good faith to his bureaus, and in the village communities this entire composite task goes over the heads of most of the council members, and even of the aldermen, to such an extent that almost everything has to be left to the mayor and the secretary. In their own village affairs, such council members and aldermen are very much at home. They can assess such matters and cast their votes with knowledge of the facts and with mature judgment, but the many...

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MUNICIPAL AUTONOMY. The broader-reaching work that the execution and implementation of the Central and Provincial mandates requires goes over their heads. The consequence of this is that the Mayor and the secretary, for whose ultimate responsibility all this must come, as a rule cannot be men from the Municipality, but must be persons of a higher quality who must be placed in the wheel-work of the Municipality from elsewhere.

## §19. Municipal Autonomy.

This has nothing to do with autonomy. The restriction of Municipal autonomy has been brought about, firstly, by the fact that the State and Province have drawn to themselves regulations that by their nature belonged to the Municipalities, and secondly, by the fact that a more central regulation has been established, so far-reaching that often every right to self-regulation seems to have been lost. Even the Mayor received in Art. 70 the authority not to execute a decision of the Council or a decision of the Mayor

and Aldermen, if it seemed to him not only that it was in conflict with the law (this could still be understood), but also if he judged that it was in conflict with the general interest; a term so vague that in this a very decisive increase of power of a not unquestionable nature lay hidden. Nor has this authority been used all too rarely. But quite apart from this Municipal autonomy and this Municipal self-government, the issue here is a service that the local Municipality has to perform for the benefit of the National government or the Provincial authorities. The National government and Provincial authorities are thus not obliged to always appoint personnel and incur costs themselves for the enforcement of their orders and mandates. They rather consider that the Municipal authority is designated for this as a matter of course, and simply impose this burden on this authority. It is precisely this that is the reason why the Mayor in our country has been made into an agent of the National administration. He is not chosen by the Council, nor as a rule from among the Council. This was originally the intention. Hence the still so strangely sounding provision in the last paragraph of Art. 143 of our Constitution: "The Chairman is chosen by the King, also outside the members of the Council." In this mode of expression it was still evident that, properly considered, the Mayor should not be brought into the Municipality from the outside, yes, that it should even be the rule that he was first chosen as a member of the Council by the citizenry. For a long time, however, there has been no longer any talk of adhering to this rule. Where it concerns a new appointment, the appointment of a city or village resident is now even the rare exception. Amsterdam, Rotterdam, Leiden, Utrecht and whatever city one may want, are also now under the dominion of a Mayor brought in from elsewhere; and for the small village communities this is so much the rule that one would have difficulty in bringing even 10% of Mayors to the list who were taken from their village, let alone from the Council of their village. Whoever is also Minister of the Interior, one can only take a man from the place by rare exception. This does not work if the place is small in population, because then one can only find a person by high exception in such a village who would be grown up to the extensive, highly demanding task to which our present-day Mayor is called. And this would go more by itself in a larger city, but precisely in those larger cities the mayoral task expands so incredibly, and requires such special qualities, that one always prefers someone who has already passed the test in a somewhat smaller, but still quite large Municipality.

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## §20. How to provide counsel here? One must frankly admit that it...

How to provide counsel here? One must frankly admit that it would be an impossible thing, as things stand at this moment, to return the appointment of the Mayor to the Council. The Municipalities must now be treated like the Provinces, and the Crown must with its own authority appoint the Mayors. It only seems

strange that while the Commissioner of the King in the Province, in accordance with this right of appointment, also receives his annual income, and his pension, yes, even his residence with appurtenances from the State, the Mayor, who is just as independent of the Council, appointed by the Crown, does not receive his annual income, his pension, or his residence from the State.

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HOW TO PROVIDE REMEDY HERE. 269 The Municipality must receive what comes from the Government - One should note here a threefold distinction in law. Formerly, the Mayor was elected by the locality itself, entirely outside the government of the land and province, and even in Tyrol I still found this right in force, that the local council itself appointed its own Mayor. The second right is that while the appointment of the Mayor emanates from the Crown, the Council now has the right to make a nomination. And the third right is that the Crown is completely free and sovereign, without any other advice than from its own Ministers and Commissioners in the Province, to appoint as Mayor whomever it pleases the bearer of the Crown. This has been consistently and seriously objected to, especially from the Calvinist side; something that is explained by the ecclesiastical usages of the Reformed. In a Reformed village, there are two persons who set the tone in the Municipality: the Mayor in matters of civil law, the Minister of the Word in ecclesiastical affairs. Now, before the Reformation, there was also with respect to the ecclesiastical head the fixed usage that the pastor or shepherd of the Congregation received his sanction from the Bishop; but precisely this was changed by the Reformation, and among the Calvinists this right of appointment remained with the Consistory. It is true that especially in Friesland and Gelderland, many high lords often refused to give up the right of the Lords of the Manor, so that in fact not a few appointments of Ministers of the Word emanated from these lords; but this was against the Calvinist principle and was mostly disapproved. In general, however, it can be said that the Ministers of the Word did come from outside, just as the Mayors do now, but in such a way that these Ministers were not installed by an external power, but were chosen by the Consistory. One would probably have acquiesced in this, even if in the case of the appointment of the Mayor, a man from outside had been the regular case, provided that in the choice the Council had been reckoned with. If only in some way the outcome had been reached that the father of the city had taken his high position in agreement with the municipal authorities, there would not have been such a serious objection to appointment by the Crown. But now, on the contrary, when one has fallen into the very objectionable extreme of letting the Mayor be installed in the Municipality entirely from the outside, without the knowledge of the Council, by a higher power, an entirely unnatural state of affairs has been brought into being.

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270 THE MUNICIPALITIES. But this cannot remain so. It is already troublesome enough that this method was used in the appointment of a head for the Provincial Administration, but here an appeal could still be made to the former Stadtholders, which at least partially held up. However, in the case of the mayoral office, a principle has been introduced by Art. 143 of the Constitution that runs too much counter to the natural tendency of our free popular sentiment.

## §21. Recapitulation.

In short, the distinguishing contrast of political convictions regarding municipal life comes down to the following. On the one hand, one proceeds from the State as a whole, standing under the supreme national government. That national government now cuts the entire country into a certain number of Provinces, and again those Provinces into a certain number of Municipalities. It places those Provinces and those Municipalities under a chief official appointed by it, who is called the Commissioner over the Province and bears the title of Mayor in the Municipality. It now gives these chief officials, by law, measures of administration and necessary instructions, and to these heads of Provinces and Municipalities the voters may then add a Provincial States and a Municipal Council, who then in turn appoint from their midst, on the one hand, Provincial Deputies and on the other hand, Aldermen as advisors. These provincial and municipal administrations now receive directives for conduct from the Central National Government. Partially, autonomous authority has been granted here, but one that is bound and limited in all kinds of ways, by law, by general administrative measure, by order, and no less by a high authority that partly emanates from the Commissioners and Mayors, partly from the Provincial powers and the Central Government, and in a very extensive way hampers the freedom of movement.

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RECAPITULATION. - THE CALVINISTIC LINE. 271 Opposed to this view now stands the entirely different one, which, connecting to our past, found its advocate in Freiherr Von Stein; a view that also connects in principle to what became the rule in America. According to these two views, there is not first a whole country that is then divided into provincial parts, and those Provinces in turn cut into Municipalities, but one must proceed from the Provinces and the Municipalities as independently arisen formations, by whose combination the whole has arisen or been rounded off. By analogy, a later and single Province, such as Drenthe, may have been added here, and in the same way a new urban appearance may have come to the existing ones, but the starting point remains that the Provinces and Municipalities were there first, in general, and that the whole was not divided by the shears, but united by the bond of history. According to the first outlined representation, Provinces and Municipalities are merely auxiliary formations that serve as

organs of the national whole, and, under the rule of national law, are in the service of the High Government, while, according to the historical and only correct representation for our country, the combination has led to the formation of the whole from their inherently independent partial formations.

## §22. The Calvinistic Line.

The latter conviction lies on the Calvinistic line. This does not dispute that a higher authority must watch over the combined whole. Conflicts of interest may arise between Provinces that they themselves cannot peacefully settle. The same can happen between Municipalities. In those Municipalities, too, a minority may be delivered without defense to a majority that violates its rights. Here the high Government watches through law and supervision. A river or a coastal water may threaten danger that threatens more than one Province or more than one Municipality. If the warding off of this is not found in friendly arrangement, then the high Government must provide. An epidemic disease may break out among people or animals, or also threaten from abroad. Naturally, then, the Realm has to take care of averting the evil. Never have the advocates of real autonomy and of real self-government conceded anything about the calling and authority of the State government to take measures that were contrary to it, and in what...

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THE MUNICIPALITIES. The common warding off of danger required foresight. The struggle was about the starting point. In mechanical construction, one makes parts and puts them together at will; in organic life, the parts emerge from the life center and bring with them their own law of life. In conformity with this requirement of the life constitution, the Municipality, the Province, and the Realm itself must also provide for the performance of their own task. All that can remain with the Municipality without danger must be assigned to it, and under a control that does not intervene further than is indispensable for the preservation of the whole. What does not belong to its sphere, but concerns the common household of an entire Province, must remain with the provincial administration. And so also must the Realm itself provide for the fulfillment of its own task, and for this, if necessary, appoint its own officials, its own district authorities, its own commissions, and its own councils. This is already the case with the army and navy, with the notariat, with university education, with school inspection, with customs, with the greater part of the tax system, with the Health Council, and so much more. For all this, the Realm has constantly called into being its own services, its own official circles, its own bureaus, without this having posed any significant difficulty.

## §23. Ready Outlet.

There is therefore no reason to think that the burden of Realm work, which now weighs on the Mayor, the Aldermen, the Secretary, and partly even on the Council, could not very well be shifted from the Municipal organization to be organized independently. Where in foreign countries the Mayors are appointed by the Council itself, one also often finds such district organizations or district authorities, appointed and paid by the Realm, to execute and perform what the Realm's general service requires. That much of this was previously shifted to the Municipal administrations is explained by the fact that this involvement was not much of a matter at the time, and could therefore find local provision without the local administration losing its independent character or being denaturalized into a Realm institution. If this unnatural task is now taken away from the Municipal administrations, and Realm organizations are appointed for this task, then, with a good division of the Municipalities into classes and types, the right of appointment of the citizen father could very well be left to the Council itself, even in the smallest village. And if one were to object that the appointment as such should come from the Crown, one could do with this what has been done with regard to the appointment of the Chairman of the Second Chamber, and bind the appointment to a nomination of three by the Council. The provision that this nomination should preferably focus on inhabitants of the place or on Council members could, in the event of a false appearance lying in this, be safeguarded in the sense that, if placing on the nomination candidates from elsewhere, reasons would be given for the data that had led to a deviation from the rule. Only this must be kept in mind, that the variis modis benefit also applies here. What applies to a village municipality of 2 to 3,000 souls need by no means be valid as a rule for a city whose population exceeds one hundred thousand. Uniformity was also here the curse that did too much harm. It is now in fact, with only very rare exceptions, all appointed from the outside, completely strange to the village, mayors who have become, and this has more than broken the freedom and the own development in the countryside. Autonomous self-government makes the people strong; the employment of the Municipalities by the Realm, in order to flatten every own fold of life in uniformity, slows down the pulse of life.

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## §24. Federative Association.

Exactly the same principle governs, as a starting point, the answer to the question that arises when there is talk of the combination or merger of two or more Municipalities. The combination can have the entire household of the Municipality, or only a part of it, in view. Especially partial combination of action can be

recommended, sometimes even necessary; provided that it then comes about federatively. Whoever binds himself federatively,

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The municipalities rightly maintain their own authority. Many municipalities are too small to establish their own gas plant or their own electricity works. If a certain number of small municipalities located close to each other can do this, why would they not proceed to federated cooperation? The same can apply to the effort to establish a tramway. In some regions, the police could even take on such a character, if one could appoint a group of men. Even in the school system, it may be necessary to combine forces. In a region where a Christian school cannot subsist on the number of students from a single village, we are also accustomed to combining. Why then would the same path of cooperation not be taken for a Public School that could thrive well in several neighboring villages? Against the danger of fire, it is often better to watch over a group of three or four adjacent villages banding together, than when each small village tries to provide for its own needs. In short, there are many interests that can be much better served by federated cooperation in a certain number of villages, than when each village provides for its own needs. The appointment of one mayor as the father of the citizens in two adjacent villages lies outside this, but can nevertheless be highly recommended in the interest of two or even three small municipalities. The remuneration of the mayor in a very small municipality may be too low to attract a man of knowledge and talent. If now two or if necessary three small municipalities unite, the remuneration of these two or three municipalities can attract someone who would otherwise not have applied; while as a rule it can be said that the task of helping to govern two or even three of these small villages does not exceed the available strength of a capable man. Even a closer combination of two or three of these smaller, adjacent municipalities is not an overriding objection, provided their nature is of the same kind. It would be harmful, for example, for such a combination to work between a village by the sea and an agricultural village behind it, as is the case with Katwijk and Noordwijk. The interests of a village by the sea and an agricultural village located behind it often diverge to such an extent that it is even inadvisable to place the same person as mayor over both.

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NO ANNEXATION. 275 On the other hand, federal cooperation and combinations can be recommended from many points of view.

## §25. No Annexation.

It is quite the opposite with the merging of smaller municipalities into a larger city municipality, as has been applied, for example, in Rotterdam. It is also not a healthy sign that new plans for such mergers are constantly coming up. One knows the history of Delft, and one also knows what is still threatening in Amsterdam. In this respect, our country makes an unfavorable exception to what is usually the case elsewhere. One knows how in London and also in Brussels the case occurred that the city in population gradually expanded so that all distance between the city and many of its surrounding villages disappeared, and the street and row of houses of the village soon joined so completely to the street and row of houses of the city that the stranger walking through could not perceive the least separation, division or even distinction. Yet one has not gone so far there as to simply merge these surrounding villages into the large city. On the contrary, one has often been concerned to allow each village to maintain its own administration and household, and thus to maintain a multiplicity of formations and a variety of living conditions that upheld not only the historical character of the past, but also the social diversity between the center and the periphery. One then has a city and suburbs, a ville and faubourgs, what we would call: a city with its suburbs, in which a peculiar kind of life then maintains itself. But this too is found too troublesome in our leading circles. There one loves simplicity, and therefore enforces a simplicity that results in nothing but uniformity. That violence is even committed here does not matter. In those suburbs, life used to be cheaper and the rent lower. But when now the guillotine comes that simply cuts off the independent municipal existence of such a village, then that rent goes up, the city life with its high prices penetrates into the suburb, and there is again a circle with a life of its own and of a peculiar character, melted into the all-centralizing unity. From the Anti-Revolutionary side, one has therefore always pointed to London and Brussels to resist this revolutionary method of merging, as long as possible. The municipality has a pull of equality with the family. Not a few strive to deprive the family too of its autonomy and self-government, or at least to restrict both; which then ultimately results in what a wise man like Plato already aimed for of old, to melt the whole family into the State. But although it is perfectly true that the autonomy and self-government of the family also shows a very considerable dark side, and not infrequently calls for correction, yet one feels how much more vigorous a people-state is that still shows an unbroken family life, even if it is not free from defects, than when the family life dissolves into state educational institutions. And just the same applies here. The autonomy and self-government of the municipality can also show very serious defects, but yet a vigorous municipal life, even if it has its flaws, promises for the future of country and people a far higher bloom than the transformation of the historical municipalities into a new-fashioned state creature that threatens to become nothing but a state agency.

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276 CIVIL AND ECCLESIASTICAL LIFE. Certainly the municipality must also conform to the "general interest," but precisely this "general interest" suffers irreparable damage if it weakens the constituted municipality. Chapter X CIVIL AND ECCLESIASTICAL LIFE.

## §1. Formerly material without antithesis.

Now let us turn to the more particular questions for which the Anti-Revolutionary program has to provide an answer.

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MATERIALITY WITHOUT ANTITHESIS. The organization of municipal life places us, first and foremost, in attention to what it has made sacred. Behind us lies a historical past, in which for no small part of our land, the ecclesiastical and civic life of the Municipality were almost interwoven, so much so that the church buildings were often under the care of the civil administration. As long as no more than one religion flourished in the Municipality, no one felt anything for sharply separating the material interests of Church and Municipality. Hence the not infrequently quite free-spoken authority that the "great lords" in the countryside and the city councils in the cities also exercised in ecclesiastical matters, even in the choice of the pastor. The spiritual interest was almost everywhere left to the authorities in the church, but the care for the external was often taken over by the lord of the manor or the city council. However, the Reformation brought about a principled change in this mutual relationship. For it actually broke the unity of the Church community. It is true that not infrequently in a not too large village, the joint inhabitants of that village still belonged to the old church, or went jointly to the Reformed or Lutheran or Anabaptist associations, but this did not take away the fact that, in the general popular conception, the unity of the Church was split. One then saved oneself by declaring one's own church to be the only true one and condemning everything outside of it as heretical, but this did not prevent a very significant modification from taking place in the world of thought. However strictly one rejected the Greek and Roman Church as deviant phenomena in the ecclesiastical field, one could not maintain in Reformed Netherlands that in lands that had remained entirely Greek Orthodox or also Roman Catholic, no trace of the Christian essence would be discovered. The idea that a split had come into the Christian Church forced itself irresistibly upon one. And although one then still twisted and turned in all kinds of ways, on the one hand to make one's own church pass for the only true one, and yet not to deny the presence of Christ's Church in lands of divergent Confessions, it did not flow smoothly. It took a long time before this new awareness had penetrated sufficiently generally

among us; but when it had finally come so far, it also naturally led to the separation lines between the various Christian denominations being drawn more sharply.

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CIVIL AND ECCLESIASTICAL LIFE. The distinction between the ecclesiastical and civil organization is becoming sharper both in the city and in the village.

## §2. The separation has been carried through.

Now this principle of separation may be considered to have been sufficiently carried through to regulate the mutual relationship. This relationship now ought to be such that in every Congregation the ecclesiastical leaders and members, in conformity with Romans XIII:1–5, show all respect and reverence to the civil administration, and lighten its task by admonishing on the catechism and in preaching, and also through house visits and ecclesiastical discipline, to turn away all revolutionary tendencies, to exhort to obedience to the civil administration, and to oppose all immorality and unrighteous transgressions. But here, on the other hand, it is required that the civil administration show respect to the church in its servants, in its poor relief, and in its entire appearance. The civil administration ought to do this on a footing of equality, and can itself make no distinction between churches. The civil administration must watch over the maintenance of order during divine service, and suppress during the services all noisy behavior that would disturb the quiet of the service. In a village it is desirable that the mayor instruct the constable to greet the pastors of the Church when passing on the public street. In short, there should be a hand-in-hand going on such a footing that both the ecclesiastical and the civil administration are completely independent the one over against the other, but that nevertheless all mutual interference is excluded, and, on the contrary, a courteous and helpful relationship is regulated. The inhabitants must receive no other impression than that the powers of Church and civil Commune, each for the exercise of its own duty, indeed go their own way, but yet are more intent on mutual support than on a combative relationship. The former fixed custom that mayors and aldermen attended the religious services worked very certainly in this direction; but as there are now not infrequently mayors who have broken with all religion, this may have no influence on the mutual official relationship. The separation of State and Church, just by this alone, must become ever more absolute, but just at the final separation of the two domains the official contact can be all the more correct. Of itself, then, the official preference for the one Church above the other will fall away. Of a so-called “People’s Church,” which would still bear more or less an official character, there may no longer be the slightest mention in the administration of the Commune. It is the respect for freedom of conscience that must hold back the civil administration from granting any preference in the civil Commune. Even the

synodical character that comes to expression on the part of Israelites must be treated by the civil administration with equal courtesy. Concerning the prohibition to consecrate a church marriage, if the proof of a concluded marriage has not been submitted, I have already dealt with this elsewhere. Here it need only be pointed out that it is desirable that the civil administration make available to the ecclesiastical administration, if requested, a copy of the population registers, if necessary against reimbursement of costs. Especially in our large cities, and with the heavy migration that is customary there, it is otherwise almost impossible for the church administration to exercise supervision; and if anyone, then it is certainly the local authority that has an interest in this ecclesiastical supervision.

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THE OBSERVANCE OF SUNDAY. 279 Chapter XI THE RELIGIOUS AND MORAL IN THE CIVIL ADMINISTRATION

## §1. The Observance of Sunday.

What comes up for consideration first under this heading is the observance of the weekly day of rest, or, if one will, the Sunday question. The Sunday...

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its observance in its specific form—that is, in the keeping of a day of rest at the beginning of the week—is an ecclesiastical-Christian institution, aimed at the remembrance of the Resurrection of Christ from the dead. But behind this specifically Christian form, which sets apart the first of the seven days, lies the concept of the weekly rest day as such, the choice of the day remaining free in this regard. For Israel, it was instituted as a day at the close of the week. Islam chose Friday for it. And while in ancient Egypt, and later also during the days of the French Revolution, people departed from the septenary cycle and preferred the observance of the tenth day, the general idea that lay at the foundation of this entire institution was and remained, nonetheless, that a rhythmic cadence pulses throughout all our human life; that working constantly without rest is contrary to the disposition of our nature; and that, just as the rest of the night proved necessary after the day, so too a fixed break in an overly large group of days was given by the very nature of our human constitution. In my “Treatise on the Sabbath,” and in a Paper for the Congress in San Francisco, anno 1915, this has been further elucidated by me. (See Sunday the World’s rest day, published

for the New-York Sabbath-Committee, 31 Biblehouse, p. 47—63). I shall therefore not elaborate further upon it here, and suffice it to point out that, according to Genesis 2:2, even before there was any mention of Israel, the seventh day was designated as the normal day of rest for all that is called man, for our entire human race. The institution of one of the seven days as a rest day is thus not a specifically Christian, but a generally human institution, which falls not under Special Grace, but under Common Grace. From this now flows the consequence that the civil government, even in local cities or villages, must set apart one of the seven days as a rest day—not one of ten, but one of the seven, because seven here is the sacred number, the conjunction of 3+4, that is, of the rhythm in God and of human life, which is always indicated by the number 4, corresponding to the four winds. Even if one could conceive of a village where there was no longer a single Church or a single Synagogue, and where no one adhered to any religious confession whatsoever, still, one of the seven days would have to be established as a rest day. And since, due to our past, and likewise due to the still quite strong Christian population, the choice for this is very decidedly the

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THE GOVERNMENT CANNOT DO NOTHING.281 Since Sunday has been designated, it is obvious that the civil administration in the Netherlands must also particularly honor Sunday and bring that Sunday to honor in the public life in every way as a day of rest. The unfortunate custom that, for example, in France and Belgium gained currency to hold political elections on Sunday, also happily remained behind with us, and will certainly never creep in with us. Yet the negative is not sufficient here, and it may be demanded of the civil administration that it itself honor the day of rest and make its enjoyment possible for others, at least as far as this depends on the Government.

## §2. The Government cannot do nothing.

Of course, there can be no question that the Municipal Government on Sunday would abstain from any manifestation of life on its part. The police must watch, the fire brigade must be ready to go out, the health service in the hospitals must continue, the gas factory must give light in the evenings and at night, the water supply may not withhold its thirst-quenching moisture from the population; and there are many such services which, though on a reduced scale, yet must perform their duty where necessary. This is so in the public sphere, just as it is in family life. Suspend as much work as possible on Sunday, but yet there remains the one requirement that dark light can be kindled; that heating against frost be provided; that as the hour of the midday meal approaches, food be ready; that the bed be spread for the night; that the clothing be put on and taken off; that the child in the cradle also receive the necessary care; and so much more. Yet Sabbatarianism, first among the Pharisees, later in certain Christian circles, especially under

English-Scottish legalism, has bargained away all kinds of things here, and even to neglect the spreading of the night bed, but no good Calvinist allows himself to be misled by such legal mannerisms. The Apostle Paul has warned us against it in every way. Christ Himself has brought this Jewish Sabbatarianism back within its proper limits, and Voetius, our great teacher in this field, has most seriously warned our Dutch Calvinists against it.

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282 THE RELIGIOUS AND MORAL IN CIVIL ADMINISTRATION. Of course, no one denies that there are services that the Government cannot let rest on Sunday. To withdraw on Sunday, as if it were not and did not exist, the Government cannot and may not. The difference between the more and less serious part of the population actually only comes to the fore where it is a matter of what can remain closed or at least can be restricted. Not all shops can remain completely closed on Sunday. Just think of the pharmacy. Yet it is desirable that the closing of shops on Sunday be regulated, at least for all sales of what can just as well be purchased on another day; especially also for the tobacco shops. The same applies to payments. A decent shopkeeper lowers the curtains of his display cases on Sunday. Only then does the city and village acquire that quiet, peaceful appearance that elevates the mind.

## §3. Public entertainments.

The judgment is no different about public entertainments, though with a certain distinction. If the local Government itself has organized public entertainments, for example by opening a City Theater, then there can be no question that these should play on Sunday. Allowing such games by private enterprises has a somewhat different character in itself and is not to be prohibited in municipalities with a largely worldly population, as otherwise they might fall into even more outrageous excesses. Yet always so, that the Mayor and Aldermen keep a sharp eye on the character of the game, and that a very sensitive blow be given to the doors through which immoral entertainments, for which the stimulation of sensual passions is then the lure, enter. In fact, it currently fails in all control. No game or performance can be so common that permission is not granted for it; and what is most saddening, the Press sometimes even lends a hand to this. Not that it sees all excesses through the fingers. Repeatedly even the liberal Press has sharply criticized the scandalousness of many a theatrical performance, but the effect of this is alas all too often that this very criticism makes the next appearance of the public even greater. Only the local Government can...

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TO DERIVE REGULATION FROM Common Grace. 283 The government could have stopped this here, but they did not. And if they dare to issue a single prohibition, you will read in the morning paper what infringement of rights is seen in this. Although we cannot impose our own puritanical austerity on others through the government, it is clear from everything that our current municipal laws have failed to set the proper limits here, and that the government has practically disregarded even what our law presented as a means to curb the evil; so that in the end our entire Sunday law has literally become a mockery and a laughing stock.

## §4. To Derive Regulation from Common Grace.

As it now lies, it cannot remain so. A new, better, more decisive regulation must come. And this all the more so as the idea is gradually gaining ground to regulate these important matters not separately, but in the Labor Legislation, as has already been tried twice in bills to that effect. The aim was to rule over Sunday labor by establishing such legal provisions; where this was not possible, to ensure rest on weekdays; and, as far as necessary, to connect a higher regulation of wages to unavoidable Sunday labor. Thus it increasingly took on the appearance as if the goal of the whole arrangement was not the reverence for the Divine Being, but merely the assurance of rest for the laborer. With this, of course, it cannot remain, and therefore a completely new, separate regulation of the whole question must be set in motion. For in the Sabbath commandment, too, the “doing no work” stands in the foreground, and thus the resting from labor on the Lord’s Day, but by no means solely with a view to exemption from labor, but much more so that through the refraining from labor the mind of man would of itself be directed to the rendering of reverence to God’s holy Name. Yet on our part we must be cautious and ask of the law no more than it can give under the present circumstances. Three different situations are to be distinguished here. There are many villages where, for example, the entire population is still of the old Reformed type; there are other municipalities where almost no trace of Calvinism remains, and everything is either modern or Roman Catholic; and there are in the third place city communities where a very mixed complex of inhabitants presents itself. Now we on our part may not impose our Calvinistic ideas about the Sabbath on that part of the population that lives according to entirely different principles; and furthermore, it must not be allowed that the Scottish legal ideas, which have penetrated here in complete contradiction to our old conviction, should be set as the rule for us. In a country of such diverse convictions, we can only demand what flows from Common Grace. What one demands more remains a dead letter, merely in the letter of the law. Hence the idea deserves recommendation to provide opportunity on our Sundays for the proclamation of sacred poetry and sacred music in halls specially arranged for this purpose. Especially where the Reformed churches themselves treat psalm singing all too soberly, opportunity must also be given in another way for sacred poetry and music to

make themselves heard. Especially for those who are still too strange in the holy domain to sanctify the Sabbath for themselves, such can contribute in every way to the sanctification of the Lord's Day. §5. Prayer in the City Council. A third matter that must be discussed here is Prayer in the City Council. Already in the First Part it has been pointed out that elsewhere even the meetings of the Provincial States and of Parliament are still regularly opened with Prayer, while with us at this higher level no more thought is given to Prayer itself. Fortunately, the City Councils still make quite an exception to this. In the City Councils, Prayer has by no means been finally abolished. In these lower political assemblies, Prayer has still generally prevailed, not everywhere, but then still in the majority; and what deserves special appreciation, not only in the rural municipalities of a completely orthodox type, but even still in the capital. Now it is of course a glaring inconsistency that one would invoke God's help and assistance in the lower political assemblies, but not at all in the higher ones. For if Prayer has a right to a place in the City Council, it has an even greater right in the Provincial and National Assemblies. And if one considers the great importance that the Calvinistic principle of the sovereignty of God over the state has for the whole of our political life, then it is simply incomprehensible that one would not want to give expression to this principle in the highest political assemblies through the solemn invocation of God's name. It is therefore to be hoped that this inconsistency will soon be remedied, and that the opening of the meetings of the Provincial States and of Parliament with Prayer will again become a fixed custom.

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284 THE RELIGIOUS AND MORAL IN CIVIL GOVERNMENT. villages, for example, where the entire population is still of the old Reformed type; there are other municipalities where almost no trace of Calvinism remains, and everything is either modern or Roman Catholic; and there are in the third place city communities where a very mixed complex of inhabitants presents itself. Now we on our part may not impose our Calvinistic ideas about the Sabbath on that part of the population that lives according to entirely different principles; and furthermore, it must not be allowed that the Scottish legal ideas, which have penetrated here in complete contradiction to our old conviction, should be set as the rule for us. In a country of such diverse convictions, we can only demand what flows from Common Grace. What one demands more remains a dead letter, merely in the letter of the law. Hence the idea deserves recommendation to provide opportunity on our Sundays for the proclamation of sacred poetry and sacred music in halls specially arranged for this purpose. Especially where the Reformed churches themselves treat psalm singing all too soberly, opportunity must also be given in another way for sacred poetry and music to make themselves heard. Especially for those who are still too strange in the holy domain to sanctify the Sabbath for themselves, such can contribute in every way to the sanctification of the Lord's Day.

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PRAYER IN THE MUNICIPAL COUNCIL However, this does not at all imply that prayer should therefore be allowed to fall away in the Municipal Councils. On the contrary, we should be grateful that prayer has still largely maintained its place in these Councils, and we should strive much more to restore it to honor even higher up. But then the standpoint we take in these matters must also be chosen with discretion. We should not ask how we can impose by force what goes against the convictions of many, or at least does not answer to them; but quite differently, how the Municipal Council's prayer can be arranged to ensure the widest possible application; and this is only achieved by taking one's stand on the common inheritance of Common Grace. For then nothing else comes into play than faith in God's providence, in His providential arrangement, and in the hiding or the coming of His divine blessing. A prayer that remains within this providential circle can still be joined in by almost everyone. The Church membership already makes no dispute about this, since faith in God's providential order is the common good of all Churches. Even the Jew does not lag behind in this. And even among those who held aloof and did not join any Church, one finds not infrequently persons who have already completely renounced all faith in God's omnipotence and providence. There are undoubtedly declared atheists who no longer know any prayer in their personal life, but these are still so few in number that one need only reckon with such exceptions. Objection could only arise to the extent that the Mayor as Chairman of the Municipal Council would be a declared atheist. Then, of course, it could not be assigned to him personally to say the prayer. But this would by no means imply that in such a Council prayer should be omitted altogether. The one who reads the prayer is not the main thing here. The secretary could even be entrusted with this, or the reading of the prayer could be assigned to one of the Council members, for example the oldest member. We therefore speak emphatically of reading. For we will never go so far as to remove prayer from the Municipal Council.

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To introduce a so-called "free prayer" would be at odds with all good order. The Municipal Council itself must pre-determine the formative words of the prayer. This approved form of the prayer must be affixed to a neatly finished plaque, and printed or written on it in such clear and large letters that the reading can proceed as a matter of course. We also understand well that such a Municipal Council prayer must be brief. The Lord's Prayer remains the example here as well. How brief is this prayer of the Lord, and what richness is contained in it! Only so much modality must be allowed, that for example, on the commemoration of the Queen's birthday, a prayer for that is inserted. And so it could also be done at the inauguration of a new

mayor, or at the outbreak of an epidemic in the Municipality. But even this should not be left to the free invention of the reader. Between two brackets, such clauses can be very well incorporated into the text itself, and they are then only used on the days when they apply.

## §6. A Christian Character?

Remains, with regard to this subject, the more particular question to be answered, to what extent the Municipal Council prayer also lends itself to imparting a more specifically Christian character. And then it immediately stands out that this could never pass as a general rule. If the members of the Council, as far as religion is concerned, form a mixed company, with Reformed, Roman Catholics, Mennonites, Jews and Theosophists sitting in it, then the prayer may not be one in which only some members find the more particular expression of their faith conviction. Prayer is a sacred matter, and if one allows prayer in an assembly where the persons do not come together according to their own will, but by virtue of their official vocation, then one may not proceed in the prayer in a way that does not sanctify them, but rather hinders and repels them. It is so, especially in the cities, that it has gradually become the custom that those who could no longer pray along, came a little later, or hid themselves for a moment in the corridor; and we admit, where this applies to a very single member of the Council, it would already be a serious objection.

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It could be so. But a rule can never be derived from this. Hence our adherence to the convention that the Municipal Council prayer must be a prayer within the circle of Common Grace, and may not then, except by exception, assume a more special character. Suppose, for example, that in Amsterdam the Jewish quarter had been isolated and made into a separate circle within the Municipality, just as this has very well been done on Java, where a civil Municipality was formed that consisted almost exclusively of sons of Islam. In that case, it would not have raised the slightest objection if, in the Council prayer for this exclusively Jewish or Javanese Municipal Council, an Israelite tint had been given to the prayer. But if it became apparent that such a Jewish or Javanese Municipal Council did not in fact contain within itself any non-Jews or non-Mohammedans, then this would not be permissible. And so the matter also stands with us. If there is anywhere a Municipal Council in the countryside that consists entirely of resolute confessors of our three Forms of Unity, then there is no reason whatsoever why the Council prayer of such a Municipality should not also plead on the cross of Christ. Only one must not forget that even in the “Our Father” the name of the Mediator is not mentioned. But this does not take away the fact that in a Municipal Council consisting

exclusively of the believing members of one and the same Christian Church, there would be no overriding objection to giving the Municipal Council prayer a Christian character. Only with the choice of other kinds of Municipal Council members, who could enter after the lapse of time, would one have to return to the standpoint of Common Grace. Thus, for the Municipal Council prayer, the plea on the Mediator remains always accessory; something that need not disturb us, since the Christian Church also in its church building by no means sends up prayers only to obtain the fulfillment of its spiritual needs, but truly also prays for King and Fatherland. The question would not even be superfluous whether the ecclesiastical prayer in many Municipalities has not long since become too one-sidedly spiritual, and whether, on the example of our Formulary Prayers, which always commend "all the needs of Christendom" also with regard to civil life to God, more regularly in the Church the needs of ordinary, non-ecclesiastical life should not also be brought before God.

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THE RELIGIOUS AND MORAL IN CIVIL ADMINISTRATION.

## §7. The Demon of Strong Drink.

No less important for the flourishing of municipal life is the stance that the City Council takes in the moral realm, particularly with regard to drunkenness and prostitution. It is well known that—not least from France—highly questionable views on this matter have also increasingly penetrated our borders, and that as a result, drunkenness has systematically spread, and the vice of houses of ill repute has continued to proliferate. This twofold evil has assumed such alarming proportions that not only from the Christian, but also from the modern side, a resistance against these shameful abuses has begun to organize itself. As for drunkenness, the pressure on this came to us primarily from America and partly from England; and as for prostitution, it must be gratefully acknowledged that it was not least from Switzerland that a purer impulse came to stimulate us, in which the honorable Dr. H. Pierson had the honor of having taken an initiative that was crowned with rare speed and decisive success. Even in the middle of the previous century, the "let-it-be" system was still too much encouraged from the liberal side. Whether someone wanted to poison himself with alcoholic beverages was his own business, and the use of strong drink was not unprofitable for the treasury. It is precisely the same struggle against the jenever here at home that was waged against opium in Java. Something in which, alas, the evil came that under the influence of the wealthy gentlemen, the use of cognac and other spirituous liquors had also found too great an entry both at home and in the clubs, and the abuse of too much wine, especially in the north of our country, had even crept into church councils. It can therefore not be praised enough that the struggle against this national evil has been taken

up with vigorous earnestness in the second half of the nineteenth century, and that, thank God, the use of alcoholic beverages per person and per liter has also declined to such an extent that the old people of today often no longer recognize the social condition. Whether the teetotalers pointed the most correct path here, I have always doubted; but although this has always kept me from personally joining any absolute Prohibition associations, I am nevertheless pleased to see that the struggle against this evil has been taken up with such determination.

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It is recognized that here too the evil can assume such proportions that ultimately complete abstinence will prove to be the strongest, if not the only, means to curb its abuse. The old licenses still stand in our way, and it remains a delicate question how, without too much interference in private rights, we shall be delivered from this evil; but we are progressing, and the hope may be cherished that the result achieved in Norway will eventually also be obtained in this country.

## §8. Immorality

More difficult, because more secret in nature, is the struggle against brutal immorality; for here one has to contend with immoral notions which, instead of gradually disappearing, are rather gaining ground. Immorality is naturally connected with the question of marriage, and one knows how many families in almost all circles are, where the bond of marriage is becoming ever looser. This begins with the idea that all married people must be left free, so that, if it seems good to them both, they may again dissolve the marriage they have entered into, and each go their own way. Facilitating divorce also lies entirely in the line of Liberalism, and behind the Liberals appear even freer groups, who would prefer to abolish all marriage, in order to introduce the so-called “free life.” Those who want to steer society in that direction, and who constantly appeal to Plato’s ideas on the relationship between parents and children, can of course not judge otherwise, or the still very strict requirements of the marriage bond stand in the way of the desired development of their culture. Then, too, the doctors come at the wrong time and tell them that the single life of persons of 20 and more years is in itself contrary to the demands of health. As far as young girls are concerned, one does not yet dare to assert this so positively, but many doctors consider it a foregone conclusion that sexual intercourse of such an age is indispensable for most of them. This, so they plead, makes the existence of houses where the young man can find what he seeks, absolutely necessary. The existence of such houses of immorality should therefore not be opposed, but rather encouraged. And this,

they then assured us, implied the obligation for the Government to see to the danger that such houses bring with them for the infection of a syphilitic nature. Naturally, this worked immorality terribly into the hand. For at least half a century we have then also lived through, in which the supervision of Prostitution, which had crept in from France, promoted the evil, especially among the married of the higher social position. The police were often on very good terms with the houses of immorality, and even among the more respectable bourgeoisie one gave in to the principle that the Government lacked the right to close such houses, nay, that it even stood under the moral obligation to regulate Prostitution, and to safeguard those who made use of it against the danger of infection. We cannot be grateful enough that this diabolical conception has now been radically broken with. From the Heldring Institutions in Zetten the triumph of the opposite conviction has gone forth on this point. Almost everywhere the inspection has now been abolished, and the exploitation of immorality in houses specially opened for that purpose is strictly forbidden. If there is one reformer of public morals who may rejoice in a rapid and widespread success, it is certainly Dr. H. Pierson. He did not stand alone. Abroad, too, similar efforts emerged with vigor. But as far as our country is concerned, no one can be given the palm of honor more than Dr. H. Pierson. He was the pioneer in this whole action, the inspiring leader.

## §9. The Fairs

Partly under this heading of Municipal Care also belongs the question of whether or not to hold the Fairs. Two things must be distinguished in the so-called Fair: first the public festivities, and second the coming into contact with the products of less common industry. As for the first, it may be taken as an established fact that in the multitude a certain need periodically arises to be free for once and to give themselves over to certain festive moods;

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and it would be a mistake to want to suppress this completely. The question is only how to satisfy this need in a healthy way. The second point, however, is more difficult. The Fair, as a place of contact with the products of less common industry, has undoubtedly lost much of its former importance, now that the means of communication have become so much easier. And yet, even in our time, it still fulfills a certain function, especially for the more remote parts of the country. The question is therefore whether the disadvantages outweigh the advantages, and whether the municipality would not do better to abolish the Fair altogether. Here, too, the principle must be that the municipality should not interfere more than is

strictly necessary in the life of the citizens. If the Fair can be maintained in a healthy way, without serious disadvantages, then it should be maintained; but if the disadvantages clearly outweigh the advantages, then it should be abolished. And here, too, the municipality must be guided by the religious and moral interests of the citizens.

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FAIRS - THE ABUSE.

Our life is now circulating in certain periodic cycles. The division of weeks and years is still felt everywhere, and even among Israel the change of months was also brought under a certain festive appearance. The celebration of birthdays is also closely connected with this innate need of ours. And although Calvin in his personal life outlook was still so strict and rigid, he too worked to have public stage performances even in Geneva. The opportunity to have a free day for common relaxation has also established itself in all kinds of ways. This matter has been connected with the change of seasons, with the harvest in the field, with the great cattle markets and horse markets, with an annual influx of merchants offering fine goods for sale, and much more. Later, such festivities have been tied to national memorial days and ecclesiastical remembrances. But however it went, to whatever people one belonged, public life everywhere required at least two or three days for relaxation. Even in the Bank Holidays in London this came out. The ordinary bonds of life encompass our whole consciousness so strongly that the urge to occasionally loosen this grip is not to be escaped. Even in the second ecclesiastical feast days of Christmas, Easter and Pentecost, the same need spoke. Only on such days could one visit one's family living elsewhere; could one open up many visited gatherings for all classes of society. And whatever one does, the need for such free days will continue to assert itself. This need speaks in our human nature.

## §10. The Abuse.

The sad thing is now, however, that the liberation from the daily task, in which one rejoices on such feast days, gives occasion in so many ways to the abuse of strong drinks, alas, to even worse sensual sins. Not everyone participates in this. Only those who give themselves over to it, make themselves by their noisiness so easily masters of the public arena and spoil the festive character. To counteract this is then also our duty. The Church can cooperate in this, the School can cooperate in this, the Press can do its part, and noble display in public life can also make a very important contribution. But if we do not want to place ourselves outside of life, then on our part we must not aim at the complete suppression of such popular festivities. This does not succeed anyway, and the peculiarity of our human coexistence has a right to speak here. If one

could now set aside two, three other days for this, among which especially the birthday of the Bearer of the Crown, this would deserve applause; but to grind down the public festivities out of life, you may not. It is quite different with the second motive that caused our Fairs, namely the display of the less common products of industry. This made sense in earlier times, when communication between countries was still so difficult and the display of all such goods was still so unusual. There was then a group of such industrialists who at certain times set up their wooden tents in this or that place, and to this group a group of jugglers, performers and amusement exhibitors often joined. This could not be otherwise at the time, and not without a certain greediness the pleasure-seeking public joined this industrial movement to make what was called “fun” in town and village for a few days. Now the necessity for this has lapsed. The shop window now offers everything, much more even than the fair display used to offer. And this is not only so in the smaller villages, but from those villages one now constantly goes to the city and finds there everything the eye desires. The reason for existence of the Fair seems to have lapsed thereby. But precisely for that reason it is all the more a requirement that the well-ordered public festivity come more into honor among us. This is desirable in a national sense for the whole country, and locally in every Municipality. There are always memories to which one can connect. On such memorial days the Church can also have its say. Music and other enjoyments of art can assert themselves. Even the comical need not be excluded here. We are not prude old maids, and even among the Calvinistic people public festivity has always been honored as a rejuvenation of the pulse of life.

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PUBLIC POOR RELIEF

## §11. Public Poor Relief.

The issue of public poor relief is much more complex. In Christian lands, the most desirable state of affairs is that the civil municipality can entrust the care of the poor entirely to those powers who do what they do for the poor out of the impulse of love. First and foremost, the Church comes into consideration here, with its Diaconate so rich in potential. And alongside this Diaconate, private charity should also step forward, under the same impulse, whether it takes on a personal character or comes to the aid of the poor through associations and societies. In earlier centuries, when Church and State were one, this flowed naturally. One did not feel like two, but like one, even under that duality. The care of the sick would only very rarely fall to the civil administration. An epidemic or a state of war might call forth an extraordinary need in life that

demanded care, but in ordinary life it was the Church, it was the monastery, it was the private association that provided for all the needs of the poor. This could happen earlier because the civil municipality declined what wanted to establish itself without proper means of subsistence. However, this state of affairs could only continue as long as every inhabitant was a living member of the Church, and the Church was one. But since then, the state of affairs in this respect has been thoroughly changed. Especially the rather too large Reformed Church excludes a very large part of the population that only belongs to it in name, but neither in faith nor in ecclesiastical service, lives with it and gives to it. Hence, it is often simply impossible for this Church to provide for the full need of its poor, as regards the care of the sick and the distribution of alms. While on the other hand the care of the poor, given the more developed standard of living among the needy, has become so much greater, a state of affairs soon arose in which there could simply be no question of a complete care of the poor by the Church, and private charity, since it was organized on a much too small scale, could not provide adequate help either. This naturally led to the question of who was to be held responsible for the need of the unattended, and for this there was no other answer than to point to the civil municipal administration.

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## §12. Municipality, Ecclesiastical and Civil.

The civil municipality is after all an institution of community life for a group of citizens who are settled in a particular place, often by virtue of the historical past of their family. The displacement, especially the migration to the big cities, certainly does a lot of damage here; but if one takes the matter as a whole throughout the country, the real poor are as a rule bound to the place where they now find themselves by their family. From this bond a certain responsibility has arisen, which necessitates the provision of assistance to those who would succumb. That this does not extend further than providing that assistance which can keep life going, goes without saying. But precisely the fact that the requirement is limited to this is also the reason why the assistance cannot be lacking. A municipal administration that, with knowledge of the facts, would let a poor family in one of the streets or alleys die of sickness without help, or let them starve in dire need, would be guilty before God and man. Even in the middle of the previous century, this need had not yet become so pressing. Then almost everyone still lived ecclesiastically, even if the faith had already become very weak. Therefore, one still considered the situation such that the Church could be held responsible for all its members, and thus remained responsible for a care that encompassed almost the entire population. Hence Groen van Prinsterer still believed in the possibility of excluding public poor relief.

But since then the situation has changed to such an obvious extent that the population is actually divided into two distinct parts. On the one hand the group of believers, for whom the Church is truly the Caretaker of the poor in the name of Jesus, and on the other hand a group that is just as broad, of the unchurched and unbelievers, who, if the civil administration does not provide assistance, would simply let the needy perish in sickness or starve to death. This has naturally led to the fact that the responsibility for the care of the poor has been transferred from the Church to the civil municipality.

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MUNICIPAL, ECCLESIASTICAL, AND CIVIL - FURTHER REGULATION.

295 The path of philanthropy has opened up all kinds of hospitals to make good medical care possible for the helpless sick, and in the second place, poor relief workers have been appointed by the government to provide for the needs of the destitute. From this, this abuse has arisen, that poor relief now runs a double course for the same needy. Less in the villages, but especially in the large cities, this becomes public. Often, indeed, the needy also receive support from the so-called People's Church, but a support that is either a mockery, then a removal of their need, and besides, the public poor relief then steps in with the pretension of offering adequate help. This is a very undesirable situation. Our aim must therefore be to lead to this, that what still lives ecclesiastically, also receives full provision either from the Church itself or from its members as a whole, but that in return the civil municipality takes over the remaining ones, if private charity has not preceded it.

## §13. Further Regulation.

Without further regulation, however, this would lead to palpable injustice. After all, the Christian believers who cared for the needy brothers and sisters in their Church in an adequate manner, would then have to pay double, firstly in the collection for their Church, but then also secondly in the taxes imposed by the civil authorities. As it is now partly the case, and this naturally must not remain so. Nor does it have to. If the civil authorities merely decide to levy a separate tax for poor relief, this threatening injustice can be met in almost complete way. In England, the regulation has been in force since 1601, which was brought into being by Queen Elizabeth, and in this regulation it was determined, among other things, that the Parishes would raise a separate tax for poor relief. The same could be done with us. The funds for civil poor relief would then not be taken from the general treasury, but would be raised as a separate poor tax, approximately in the same way as Minister Treub in 1915 wanted to introduce a series of separate taxes ad hoc for the needs of the elderly, for the Navy, for the Army, etc.

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Now, if this matter was regulated in this way, it would then have to be determined that Churches or Associations that took upon themselves to provide for all the needs of their poor, would receive a complete exemption from this poor tax for their effective members; on the condition, of course, that the poor who belonged to these Churches or Associations would then also receive no help or care whatsoever from the government.

## §14. Order and Confusion.

If one considers this too much demanded, and would only want to let the exception apply to the fixed allowance, then it would of course be found by calculating a percentage instead of the whole. Interconnected in this way, then the poor relief for those who persevered in the faith would retain a sacred character, and on the other hand, for those who received help from the public poor relief, it would become a police matter. No one would then have to complain, no one would be wronged, and the government would assist both factors. One could then wonder whether the Churches and private Associations would not be able to suffice with a smaller provision for their care, while their members still enjoyed full tax deduction, so that in the end the Church members would profit, and their poor would suffer, but here too, complete and effective measures could be taken by law. Each member of such a Church, or belonging to such an Association, would then have to be given full freedom to leave the poor relief of the Church or Association and go over to the public poor relief, with the necessary consequence, however, that the thereby diminished number of members of that Church or that Association would also proportionately receive less exemption from the poor tax. There is now a boundless confusion in this area, which makes the public poor relief of the government constantly expand; and this should not leave us indifferent, since the striving of the liberal side remains constantly directed towards ultimately making the poor relief entirely a matter of the government.

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DISORDER AND CONFUSION.297 The tendency to draw the Church under the authority of the government is no longer as calm as it was a quarter of a century ago, but keeps arising again from the antithetical principle. Yet the nature of our work does not allow us to go deeper into this matter here. Nor is anyone in a better position to make a comprehensive study of this problem. With this in mind, we briefly refer in a footnote to some important studies that can be of assistance here a). The main thing, however, is that a way

be found to keep our Diaconate and our own Calvinistic poor relief on the right track or to put them back on it. In this, we are not free, because we have to reckon with the government's care. In this paragraph, I believe I have indicated the remedy against the threatening danger. It would therefore be a cause of joy to me if I could put an end to the confusion that now reigns. The short list given below makes no claim to completeness, a) Cf. Dr. A. Emminghaus, Das Armenwesen und die Armengesetzgebung in Europäischen Staaten, Breslau 1870; Dr. P.F. Aschrott, Das Englische Armenwesen, Leipzig 1886; Charles Booth, Pauperism a picture of Old Age, London 1892; H. Smissaart, L'Assistance publique dans les Pays-Bas, The Hague 1900, also published in our language in a more extensive version by Tjeenk Willink, Haarlem; Lic. Ed. Simons, Die älteste Gemeinde-Armenpflege, 1894; Rud. Geller, Die Armengesetzgebung in ihrer gegenwärtigen Gestaltung, 1894; Léonce Larnac, L'Art de donner, 1874; G. Uhlhorn, Christliche Liebestatigkeit, 1884, three volumes; L.M. Moreau Christophe, Du problème de la Misère, Paris 1851, three volumes; G.L. van der Helm, Wetgeving op het Armenwezen, 1890; Mr. J. Everts, De verhouding van Kerk en Staat, mede ten aanzien van de Armenverzorging, Utrecht 1908; Aschrott, Armenpflege in den Vereinigten Staaten von Nord-Amerika, Jena 1889; the article Armenpflege in the Handwörterbuch des Staatswissenschaften, second ed. Jena 1898, first volume; Mr. Dr. Charles Raeymakers, Staat en Armenzorg, 1907, and Mr. Rh. F. Falkenburg, Armenzorg in Nederland, 1895; P. Biesterveld c.s., Het Diaconaat, 1907; A. de la Chevallerie, Armengesetzgebung und Armenpflege, 1854; A. Roell, die Reform der Armenpflege, 1880; Dr. J.J. Esser, De pauperum cura apud Romanos, 1902; Mr. D.P.D. Fabius, Armenzorg, 1912; Dr. J.C. de Moor, De ontwikkeling van het Diaconaat, 1913; Pyttersen, Hintz en H. Muller, Praeadviezen inzake de Armenwet, 1894; Aug. Seiffert, Die Armenpflege der Zukunft, second ed. 1889; Dr. P.A.E. Sillevis Smitt, Diaconie en Overheid, 1902; Dr. H. Visscher, Twee gevaren voor onze Kerkelijke Armenzorg, 1902; and J.L. Zegers, Het Diaconaat, 1892. I thought I might insert this brief list of what I had in my own library. Often even the simple, not the least among the Deacons, aims at a certain study in this field, but is completely unaware of the literature. The list provided here can at least help them on their way.

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RELIGIOUS AND MORAL ELEMENTS IN CIVIL ADMINISTRATION. Idleness. I have only mentioned what my own library possesses. For the other chapters in this second part, I refrain from listing them. Only here do I consider a small exception permissible, and not superfluous.

## §15. Expenditures and Revenues.

That economy should also be the guiding principle for municipal housekeeping requires no argument. Yet one must not apply this economy with a spirit lacking in discernment. A municipal council that, in order to

save on the costs of building a town hall, makes do with a room in an inn, falls short in the honor of its administration. Nor can municipalities be treated uniformly in this respect. For a large city, entirely different rules of housekeeping apply than for a remote rural village. Even among villages, further distinctions must be made between those that receive abundant summer visits from city folk who take up residence there for a few weeks, or those that permanently attract many urban permanent residents, and those villages where a stranger is seen only rarely. Villages with much short or long-term visitation, and especially villages with many resident citizens of urban origin, see their revenues increase remarkably, but they are then also obliged to orient themselves accordingly. Municipal life, especially in the Netherlands, offers endless variation. This has an influence on revenues, but must also have an influence on municipal expenditures. Especially with a view to the strongly differentiating village life, the classification of municipalities into categories is indispensable. According to the nature and type of municipality, what the law imposes on the municipality, and from whom it demands revenue as a requirement, must also differ. Yet it should be firmly established that even in the countryside, the concern of the municipal council must extend somewhat further. Promoting family life is truly Dutch, but this must not lead to neglect of the sense of community and community life. It should therefore be welcomed that gradually better than in earlier times, provision is made for enlightenment, road construction, water supply, and healthcare. Also in the proper regulation

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EXPENDITURES AND REVENUES - INDIRECT AND DIRECT TAXES. 299 of the police, as far as it is local, one will have to apply oneself, since otherwise one runs the risk that the police, including the rural guard, will pass over to the State; a measure that would again detract from the autonomy of the municipalities. And to mention this as well: Also in the wage standard for those employed by the municipality, a different rule than always bargaining for the cheapest, will henceforth have to apply. But more on this in a following section. Only this may be pointed out regarding expenditures, that now that primary education is a state matter, the municipal council should no longer add extra benefits on its part to these schools. For this would go against the equal rights of the inhabitants. And as for secondary and higher education, the aim should increasingly be to connect secondary education with the province, and higher education at universities with the state alone. Amsterdam has wanted it otherwise and tried it with a municipal university; but it has not lasted long before Amsterdam itself saw the impropriety of it. That finally the salary of the mayor, as long as he remains an official appointed from above, should also be paid from the state treasury, has already been indicated above, and need only be touched upon here.

## §16. Indirect and Direct Taxes.

As for the means to cover the costs of expenditures, the foremost consideration is that the distinction between direct and indirect revenues must be sharply drawn here. Fortunately, the municipality is to be praised that is rich in land and real estate, and can thus reimburse a considerable part of its expenditures from its own private assets. In our country, however, this municipal domain, if one may call it that, is far from extensive, and even where it occurs, is not of great significance. Almost all municipal revenues must therefore be found by having the inhabitants, or those from outside who want to deal with the municipality, pay either generally as a tax, or specifically for received aid and services rendered. Among these indirect receipts, there was formerly everywhere, and still exists abroad,

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THE RELIGIOUS AND MORAL IN CIVIL ADMINISTRATION. Even now, the import duty is in the foreground. This import duty bears the name of “Octroi” in France and Germany, while with us this name of “Octroi” has by law been given to the exceptional right to sell a discovery made by an invention. The word “Octroi” is derived from the French Chancery style, was derived from the Latin word “auctorizare,” and means that one has obtained permission from the Authority for what one wishes to do. From this original meaning, two things have now been derived; first, the right to introduce certain goods into a Municipality, and secondly, to have the sole right to sell certain goods. The former now leads to a payment to the Municipal receiver of what is called “Octroi” in French, and “Accise” in German. Wrongly, by the law of July 7, 1805, these rights on imports have been abolished with us. All import into whatever Municipality is now entirely free with us. Only between The Hague and Scheveningen is there still the dwelling of the former Municipal toll-collector, which reminds one of the former state of affairs. Abroad, on the other hand, this Octroi right still gives the Municipality a fixed income. Whoever has visited Paris often knows from experience how, on arrival, his suitcase or trunk was examined by the city customs at the stations. And not only in Paris, but also in the other cities of importance, of which France may be proud, such Octroi rights are still levied, and they even form the main part of the municipal income. In England, these incomes mostly fell away, and only in London did the levy remain on the import of certain rights on coal, wine and wheat. In Italy, these Octroi rights are still collected in various ways. In Bavaria and Alsace-Lorraine, these Accises are still in full force. Also elsewhere in Germany they are still in order. Everyone who has passed through the magnificent bridges over the Elbe in Dresden knows this about Saxony’s capital. Counted together, there are still 1392 Municipalities in Germany that levy such tolls and import duties. On foodstuffs, by our law of 1902, the municipal rights have lapsed by the year 1910. In general, these rights do not recommend themselves, at

least not for the smaller Municipalities nor for the middle class. Only for the largest cities may the question arise whether the re-introduction of them would not stem the influx of the rural population to the cities.

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DIRECT AND INDIRECT TAXES - CITIES AND VILLAGES

301 at least moderately would. This flooding, however, of the large cities with workers from the villages is neither recommendable for those cities nor for the villages, nor for the departing workers. These workers are accustomed to living in a different environment, and the sad experience has but too well taught how little these workers and their families can withstand the weaker morality in the large cities. Imposing burdens on the means of subsistence could have a stifling effect on the villages, while what is happening elsewhere shows that it need not hinder the flourishing of the cities. Just look at Paris.

## §17. Cities and Villages.

This, however, concerns only a right that is levied on the enjoyment and convenience of living in a large, well-equipped and fully-provisioned great city. But the indirect levy does not stop there. Taxes are also levied indirectly, as one enjoys the facilities that have been established and maintained by the Municipal Council. Just think of the water supply, the gas service with factory, lamps and personnel, the electricity service, the pumps, the tramways, the cemeteries, the medical service, and so much more. For much of this, one now pays directly, as payment for the goods or services provided. It is even no exception if, for one thing or another, something above the costs and prices is charged, so that the Municipal Council also finds its own income in it. The street toll also falls under this. Whoever in a remote village has to wade through streets and alleys in bad weather, immediately feels what a privilege it is to live in a large city and have a well-maintained street leading to one's dwelling, and to see how one is constantly busy cleaning and improving that street, or even making it smooth with asphalt. So there is nothing unreasonable in having those who enjoy all these services and amenities pay extra for them. Even the opponents of the impôt unique combat no other idea than that the Municipality should provide gas, electricity, water, tram transport, and what not, free of charge.

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to nothing other than useless waste, all kinds of brutality, yes, to boundless confusion. But once having set out on this line to do ever more for the convenience, safety and enjoyment of the inhabitants, one has also gone further in this.

## §18. Betterment tax.

So, for example, with what is called in England the betterment tax. It is very reasonable to levy a right on the territory that belongs in ownership to the various inhabitants within the Municipality, and on what is built on that territory. The State naturally goes first, as the State covers the entire country. The Municipality, however, has a second right on this territory, because it does for this territory within its own borders what the State cannot do. This can then lead either to a percentage on the property tax, etc., or also to the levying of an independent right. In this, the phenomenon repeatedly occurs that the owner of a piece of territory or of a house sees the value of his property grow of itself and without his contributing anything to it. A house or garden purchased by him for a sum of 20,000 guilders some years ago can, through the high significance that the Municipality has acquired, increase in value to 30,000 guilders. This is what is called in England the betterment. Now who has brought about this increase in value? The owner? In part perhaps through renovations and improvements; but the main gain came to him from the fact that the Municipality grew in significance, and this in turn found its cause in what the Municipal Council did for the Municipality. The author of this has known Brussels before the great Boulevards were laid out that run from the Gare du Nord to the Gare du Midi. It is this great work that the Municipality itself has raised to a considerable extent. Though less strong, yet also in Amsterdam and Rotterdam, in The Hague and in Utrecht, all kinds of things have been laid out by the Municipality, through which these cities have gained in every respect. This now brought about that the territory and the buildings in these cities have risen so remarkably in value. Hence this certainly not unreasonable demand that whoever personally benefits from this should also contribute to the costs.

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303 profited, in an extra remission to the Municipality for which he pays his gratitude. That the levy can be indirect in this regard, stems from the fact that the benefit is regulated and privately enjoyed.

## §19. Fixed Municipal Services.

On the other hand, this is different with fire brigades, police, construction of bridges and crossings, public health, and so much more. This also provides the residents with a very highly valued sense of safety and security, of free movement and help in need, but the profit here is either less specialized or less durable. A fire that breaks out at my place and is extinguished, benefits not only me, but also my neighbors. For the flames could just as easily have spread from my house to their dwelling. Here, it is all about general interests, which at least cannot be specialized, and which are therefore to be counted among the common expenses. Now, if it has not been possible to obtain enough money from the indirect revenues for the entire municipal administration, then one must take recourse to direct taxation, and here commonly begins the painful part of the misery. If we could go along with what we suggested, to at least partially remove the burden of the State government from the Municipal Councils, and transfer it to separate district administrations, they could certainly reduce or eliminate a good part of this indirect taxation. Yet not entirely. The State then compensates the Municipalities for this by granting them surcharges on certain State taxes, which is all very reasonable; but this way of compensation has, what is less praiseworthy, also led to seeking a part of the municipal expenditures in this system of surcharges on State taxes; something that so easily undermines the frugality in household management. §20. Income Tax. Even so, one often does not get there, and then one must well

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proceed to what is the most delicate: namely, to levy a direct tax on the income of the citizens, and this is of course the most sensitive point. This feeling is strongest in small Municipalities, where the population lives frugally, as they lack abundance, but where nevertheless often only a few manufacturers or rentiers of large capital reside. Now, since in the Council of such Municipalities the small bourgeoisie often has the majority, there arises from this the tendency to regulate the income tax in such a way that it is actually those two, three men of fortune who cover the main sum of the costs, and that the rest of the population lives at their expense. The ready means here is the difference in the percentage. With low amounts, the levy is kept low, but it is gradually increased as the income goes up. Only one fear brings moderation in this. The men of fortune can leave the village with their factories and their cars, and move elsewhere, and then the impoverished Municipality is left with the bitter fruit of its excesses. On the other hand, if the means of escape from the methodical plundering do not exist, then one soon sees abuse being made of it, and it is only the Provincial States that can curb the excess. So there is a way out, but a way out that on the other

hand again presents the inconvenience that the control from above is tightened and thereby the independence of municipal life is again harmed. Moderation in municipal household management is therefore recommended. The tendency to completely withdraw into domestic family life can be harmful, if it breaks the community feeling for urban coexistence or does not allow it to develop. But one should not go too far here either. A life as we now more often observe it in cafés and restaurants without end in our gentlemen's streets, does not raise the level of our cities, but lowers it. Leaving the newspaper aside, reading suffers from it, and no less the intimate intercourse among friends. In the café, every conversation is overheard. Once this kind of café life has become a habit, it celebrates its high days especially on Sundays. So the Church suffers, and with the Church the higher spiritual life. The city then gains in pleasant appearance, but the citizenry declines in high expression of life. Domestic life must not become number two, but must remain number one. Something we also need to be mindful of under these circumstances.

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INCOME TAX - IN THE SERVICE OF THE MUNICIPALITY

305 to emphasize the factory, because it can withstand the constant increase in income tax. Indirect taxes must remain the main source of income for the Municipality; direct taxes must not have any other character than a supplementary one here; and only then will it be good, if not first the control of the Provincial Executive, but self-control by the Municipal Administration limits the amount to be levied directly, and not in case of need.

## §21. In the Service of the Municipality.

A Municipal Administration cannot fulfill its task, if it cannot count on the help of the serving personnel, whether officials, civil servants or laborers. The latter group is to be distinguished into two categories. There are laborers in the service of the Municipality who derive a public character from their appointment, but there are also others who stand entirely on a par with workers in the service of a private person or factory. The distinction between these two categories is immediately felt, as soon as one compares a coachman in the Fire Brigade with a porter who carries stones for the paving. The main question here is whether the entire corps of personnel in the service of the Municipality can be granted the right to strike. To that question the answer must be that there is no right to strike for the officially employed, and that it is only permissible to allow it for the laborers in the second category. Agents of the police are not entitled to come together one fine day and agree that they will leave their service the next morning in order to stay at home, in order to thus force satisfaction for a demand jointly addressed to the Chief Commissioner. Police service

can suddenly become indispensable, and the public interest involved here cannot and may not be sacrificed to the private interest of the Agent. The same applies to the Fire Brigade. If a fire breaks out, the watch entrusted with extinguishing it must rush out with the extinguishing equipment entrusted to it at once. It is no different with the Health Service. If there were helpless injured persons lying on the street, no delay would be allowed, but immediate help must intervene. This mentioned makes it again that the telegraph service for the warning of the Police and Fire Brigade may not be doomed to idleness for a moment. Whoever is in private service may possess the right to put his private interest on the scales against the private interest of his master, but here there can and may be no question of this, as soon as his private interest comes to stand against the public interest of the entire Municipality. The same applies to the medical assistance of the pharmacy. Up to a certain height it cannot even be conceded that the right to strike in private service is unconditionally to be recognized. In working in the mines, in serving on large steam engines and so much more, a sudden strike could bring about the greatest disasters. On board in the open sea the same exception applies. But apart from these all too private relationships, it stands as a palisade above water that whoever is taken on for public service has to submit to the unavoidable conditions that flow from the nature of the public service.

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306 THE RELIGIOUS AND MORAL IN CIVIL ADMINISTRATION.

## §22. Extra Wages for Officially Appointed Employees.

In order to prevent inconvenience, this lack of the right to strike must be clearly expressed and accepted before the employment. The Municipality may not begin to leave this matter blue-blue, in order to dispute the right to it only after an unlawful strike has broken out. This issue must also be settled in the service regulations, and a signed declaration must be obtained from the incoming personnel that they accept the service under the tacit obligation that they will not participate in such a strike. This, however, causes these persons taken into official service by the official power to be in a less favorable condition than those who serve with private individuals. This now brings with it the demand that the conditions of their service must also have an exceptional character. Already in itself it is desirable that a Municipal Administration should go ahead in giving the citizens a well-cared-for position, both as regards their wages and their working hours, as well as their pension and other provisions, in order to make the service in the Municipality as attractive as possible. But this demand becomes even more pressing, when the personnel in question are deprived of the right to strike. The Municipality must then make up for this disadvantage by offering them better conditions. It is not enough that their wages are equal to those of private workers; they must receive a

bonus on top of that. And this bonus must not be a mere gift, but a right that flows from the nature of their service. The Municipality must also provide for their old age and their disability, and must ensure that they are not worse off than those who serve in private employment. In this way, the Municipality will be able to attract the best personnel and keep them in its service.

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EXTRA COMPENSATION FOR OFFICIALLY APPOINTED PERSONNEL. 307 As for their pensions, this should not be exaggerated. The municipal treasury is filled from all kinds of money, but not to play the role of a generous paymaster. The example set by the municipal administration must be virtuous and proper, but must never exceed the normal measure. It stands quite differently, however, when one considers the rights of which the worker, by entering private service, has relinquished. If in private circles the worker can, if necessary, improve his position through strikes, the man in public service cannot do so. His rights must therefore be guarded in other ways. On this basis, it is now fair that the wages paid by the municipal administration should not exceed the private wages; that there be a ready opportunity to file complaints; and furthermore, that the municipal administration strictly ensure that such complaints, if proven justified, are acted upon. I also come to the conclusion on my part that the wages of officially appointed personnel must contain an extra surplus; but it must be denied that this would serve to set an example. The example cannot go beyond the normal. But this extra is justified, insofar as it takes on the meaning of compensation for a very important right of which the worker has relinquished. The right to association is not thereby eliminated. There is no conceivable reason why those in the official service should not also be able to speak about their interests or subject certain troublesome conditions to criticism. The formation of an Association is also very well permissible for a certain kind or class of such persons or workers, but only in such a way that everything is done openly; that the regulation of such an Association has obtained the approval of the municipal administration; and that a representative of the municipal administration is always present at the meetings of this Association. A conspiracy, of whatever nature, is in no way to be tolerated in the public service. This also applies to the service of the State; and in the great strike of 1903, it was also found to be a gap in the criminal code that no measures had been taken against the abuse of a strike in an important public means of transport. Just as in this same manner, whether by the State Law or the Municipal Ordinance, not only dismissal, but also criminal penalties must threaten

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RELIGIOUS AND MORAL ELEMENTS IN CIVIL ADMINISTRATION. Anyone who disrupts the public course of life by striking. The public service must therefore stand higher for officials and workers, and yield better

conditions, but violent strikes must not be allowed in the public service. Whoever nevertheless undertakes this, shall not only be dismissed, but also punished.

## §23. Justices of the Peace.

The withholding from the Municipality of all legal competence does injustice to its character of self-reliance. More strongly than ever before, it is felt in all the land that a distinction must be made between what is a transgression against the common law and what are civil disputes and disturbances of order. Just as in the family the father as the head is not called in for all small disputes, but the mother settles all kinds of small disputes, or sometimes even the governess is empowered to do so, so it was also customary to distinguish between what was a legal violation, a dispute, or a disturbance of order. Especially in England, the justices of the peace have been acting for the latter purpose since 1327. In France, the juges de paix were introduced in 1790. Such peace judges are also found in Switzerland and Italy. The so-called arbitrators or Friedensrichter, or also Vermittlungsämter, can be found in various forms in almost all German States, even though they do not have the same character everywhere. Sometimes they are appointed by the higher authorities, at other times they are elected by the Municipality. It was sometimes stipulated that they should not be jurists, at other times jurists were preferred. In one country they were salaried, in England it was an honorary office. But in whatever form they appear, they expressed that there are disputes and disputes that do not touch the principles of absolute law, but are of a subordinate nature, and therefore should best be settled among friends, and if that is not possible, then among the neighbors. The Apostle Paul deals with the same problem in 1 Cor. VI: 1–7. The Apostle does not mean here that a transgression against the common law or a crime should be dealt with under the hand, but rather that one should not knock on the door of the judge for mutual quarrels, and really, in a deeper view, should not have such quarrels at all, but settle such disputes with each other in an amicable manner.

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JUSTICES OF THE PEACE - PUBLIC ENTERPRISES. 309 That is why Paul himself declares in verse 4 that “the least among the brethren” should be allowed to settle such quarrels. Also in our country, the settlement of disputes outside the courts is maintained, by stipulating an arbitration tribunal in contracts or otherwise, or also by agreeing on the choice of arbitrators in a newly arising dispute. On the other hand, the municipal authorities have now withheld all mediation and jurisdiction of this kind from the Municipality, and sought a way out in the cantonal judge, whose function not infrequently closely resembles that of a justice of the peace. But the cantonal judge lacks any municipal character. He stands on the lowest rung of the imperial judiciary, but is nevertheless fully incorporated into the imperial judiciary.

This too was intended to include the independent significance of the Municipality in a new division of the imperial constitution, and thus to expand the central power at the expense of municipal autonomy. From an anti-revolutionary point of view, resistance must also be noted here. The justice of the peace, provided he is empowered to make definitive decisions to a certain degree, could still remove much bitterness from civic life. A dispute that one would refuse to bring before the cantonal judge would hardly be brought unwillingly before the justice of the peace.

## §24. Public Enterprises.

More and more, it has become clear that there is a difference in principle between an administrative act and the exercise of a business, and on the other hand, that it may nevertheless be desirable to transfer the exercise of certain businesses from the circle of private individuals to the official administrative domain. A municipal administration that operates a tramway is doing something that is not an outflow of administrative competence, for a private association can also obtain a concession for the same purpose. The municipal administration usually takes over the operation of such a business only when private initiative fails to act or falls short in its prompt service. There are even businesses that one would prefer not to see in private hands. In Amsterdam, there was for a time an English gas factory next to the other, but as a rule the municipal administration took over the gas supply.

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It is still preferable that gas pipelines, water supply, etc. are under complete administrative control; and then it certainly deserves preference that such an enterprise be under the Municipal Administration. It can even be imagined that such an enterprise could result in a strengthening of the treasury; something that must not be abused, but which cannot be considered entirely unlawful either. Especially in the state of war that set in with August 1914, the Government found itself compelled to take over such enterprises that in peacetime had always remained in private hands. Of course, one cannot venture too far down this path. Otherwise, it would easily lead to the socialist demise of the socially entrenched life. Yet so many have gradually become convinced that at least in larger cities the Municipal Administration can no longer abstain from all enterprises. Just as the State took over the postal and telegraph traffic, so the Municipality often takes care of gas, water, telephone and hospital care. These kinds of enterprises must therefore also be reckoned with. Initially, the exercise of these enterprises was arranged under the ordinary service. Even the Postal Service has only recently been separated from the State budget as a separate factor, in order to shine

only with its profit balance. So now it should also go with the Municipalities. The Municipalities can no longer abstain from all enterprises. They can very well withdraw from them, the better, but this can no longer be completely. The Municipality is better able than private individuals to provide for the citizens in the exercise of such enterprises. It is more expensive than a private association, but for the more smooth and regular running of the service, the citizens generally have something higher to pay for.

The taking over of such kinds of enterprises as monopolies by the Municipalities need not be opposed on our part either. It can even be encouraged, provided that for each enterprise it is clearly shown what and why private initiative fell short here. And it goes without saying as a rule that, when the Municipal Administration takes over the exercise of such enterprises, it is not the Municipal Council members or the Aldermen who should burden themselves with this. For this, most of them would not be competent in the ordinary course of things. Men of the profession must be sought for this business expression of municipal life, and it is the Commissions composed of such men who, under responsibility to the Council, must undertake the enterprise.

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FINAL REMARK. - THREE KINDS OF ISSUES.

In proportion, the municipal household has been discussed in the foregoing perhaps a little too broadly, yet I could not leave this behind. In 1878, when the first explanation of the Anti-Revolutionary Program saw the light, there was still no occasion in practical politics to go into this subject more closely. At that time, hardly any thought was given to an appearance in the Municipal Councils, and the few who found themselves appointed confined themselves almost exclusively to a brief testimony on the matter of Sunday observance and school affairs. In any case, there was then no question of our side putting our own ideas on this terrain to the test. Hence, there was also no special article devoted to municipal interests in Our Program. Even our electoral associations in their Statutes generally cared little about it. Now, however, that entirely new conditions have set in, it would have been an unpardonable omission if these weighty interests had only been touched upon in passing even now. I hope the digression I allowed myself in this Chapter will be forgiven me. Chapter XII. THE STATES-GENERAL.

## §1. Three Kinds of Issues.

In Our Program I had, at least electorally, included the Municipal Councils and the Provincial States under the same heading as the States-General, and under the title of Councils and States. Now, however, that the

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The issues that the States-General, the Provinces, and the Municipalities have addressed separately now remain for the States-General alone to consider. Three questions demand our Parliament's attention in this discussion. The first is in what form our States-General ought to appear: in a single Chamber, or in two Chambers. The second is what powers and authorities should be granted to the States-General. And the third or last is how the members of the States-General should be elected. In discussing the third point, I will then give preference to explaining the electoral system for the Municipalities, not only for the States-General, but also for the Provincial Estates and Municipal Councils. Separate treatment of the latter two would only lead to unnecessary repetition. Yet there is a profound distinction between the Provincial Estates and Municipal Councils on the one hand, and the States-General on the other, and this must not be overlooked. For the Municipal Councils and Provincial Estates are governing bodies, while the States-General have only a representative character—but as far as the electoral process and the suffrage are concerned, all three of these bodies raise sufficiently kindred problems that combining the electoral question for all three is not excluded. And if this proves feasible, it will spare the superfluous breadth of exposition.

## §2. Principles and Practice.

Insofar as the revolutionary, and by extension the liberal, principle desires to see the popular will reign unchecked, there is room in the state structure for only a single Chamber. This was indeed grasped with decisiveness at the outset both by the French statesmen themselves and by the lands that, like ours, sought to model themselves after their pattern. It is wrongly in connection with this that the German Reichstag instituted since 1871 has also been cited. For although it is true that in Germany no Senate has been placed alongside the Reichstag, one must not lose sight of the fact that the so-called Federal Council occupies a position that is almost senatorial. But even for the Estates that still live under the spell of the system of the French Revolution, one is...

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PRINCIPLES AND PRACTICE.313 Yet almost everywhere the move has been made to establish a Senate-like chamber alongside the actual House of Representatives. Even in France, after the fall of Napoleon III in 1870, something of the old Senate was revived. With us too, shortly after the establishment of the Monarchy, a

First Chamber was already instituted as a Senate in 1815. This arrangement was maintained in 1848. And however much the advocates of the popular will have since progressed in their radical tendencies among us —with the exception of the Social Democratic faction—the abolition of the First Chamber has still never been accepted as an electoral slogan. But although this must be recognized as a tribute to our political moderation, the principled significance of this division of our Parliament into two Chambers can scarcely be acknowledged from the outset, and insofar as there may have been some initial concealment, it was nevertheless entirely lost after 1848. In 1813, under the influence of French theories, it had been thought that one Chamber of the States-General would suffice, but Article 78 of the Constitution of 1815 immediately stipulated: "The States-General shall consist of two Chambers." To ward off too strong a popular influence, Article 80 (only formally amended in 1840) provided that the members of the First Chamber should be appointed by the King, and for life, and this first provision was further supplemented by the requirement that the King should appoint them from "those who have rendered services to the State, or who by their birth or wealth belong to the most distinguished in the land." This now seems to us ultra-reactionary. But one must not forget that in Italy, according to Article 33 of the Constitution, the King still appoints the members of the Senate, and for life, and likewise from among the most eminent notables, including those who are assessed for 3,000 Lire in direct taxes. What was determined here in 1815 was even more moderate, in that no more than sixty-six members could be appointed, whereas in Italy the King is free to expand the number as needed—something that in itself implies that he has the power to break any resistance from the Senate to his will by adding new, loyal members. With us, 1840 does not count for this point; and in 1848 we did not get the text that the States-General consists of Chambers, but that it is divided into a First and a Second Chamber; the First taking precedence. See Article

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314 THE STATES-GENERAL.76. And what is no less remarkable, the prominent persons now fell away, the Provincial States would appoint, and were eligible exclusively "Highly assessed in the direct state taxes." Not until 1887 did they return to the old formula and placed alongside the highly assessed once again the practical chosen ones, who "had held one or more high and important public offices." Yet the tax payment still took precedence. In 1815 it was: the distinction of persons and the amount of tax, in 1848 it was only the amount of tax; and in 1887 the chosen ones were now added again, however, with the proviso of taxpayers and the exclusion of all noble preference. One perceives from this struggle with the word, on how unstable a path one moved. Of a principled distinction between the two Chambers there could be no question; there might well and must be a strongly pronounced difference in speech, but this difference could only be gradual. In the Second Chamber the elected and by the ordinary voters, who stood closer to the people, and then in the First Chamber persons of a higher social class, who would temper or curb the excesses of the

Second. Whether one now let these members be elected by the King or by the Provincial States, made no essential difference in the matter. They had to be chosen in any case from the wealthy and prominent in the land, or from men of high position; and even in the choice by the Provincial States, the election of the second would of itself give a tempering outcome. But further they did not come. A distinct character could not be imparted to the two Chambers of the States-General, except insofar as the distinguished and more affluent could put a brake on the wagon of the State.

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ATTEMPT AT PURIFICATION. 315 Especially in the period when I myself began my political career, this Conservatism annoyed me not a little. Liberalism had in fact already gained supremacy in the States-General from 1848 onwards. It helped little, therefore, whether the reaction against this from the Anti-revolutionary, and in general from the Christian side, came to the fore in the Second Chamber, and gained more significance to the left of the Binnenhof; in the First Chamber we could at that time still not break through at all; and one saw it in 1889 in Keuchenius' fall, how mercilessly they played their overpowering against us. It was with a view to this undesirable situation that I then in 1878 urged in Our Program that indeed the two Chambers should remain, but that then a principally distinct character should be granted to each of these two. In all the life of the people two motives manifested themselves. There was on the one hand in the life of the people an organic development from its roots, and there was on the other hand the significance of the personality in this organic whole. Hence then my proposal to retain both Chambers of the States-General, but to make the First Chamber a representation of the corporate in the life of the people, and to make the Second Chamber the organ of the political choice of the then current voters. The Chamber arising from the organic life of the people would then bear a social, and the other a political character. To make the distinction even clearer, I even spoke of the First Chamber as the corporate, and of the Second Chamber, in contrast to this, as the political States, the character of the brake fell away for the First Chamber, and the persistent conflict between the two Chambers of the States-General would naturally come to an end. In this line of thought one went back to the mighty struggle that had especially since 1789 broken out in the political life of the peoples. Opposed to each other stood of course on all, and thus also on the political field, the unifying force that sought to assemble the unity of peoples and States from the multiplicity of individuals, and on the other hand the force that made the individuals go out from themselves so as not to let their personal and individual significance be absorbed in the unity found. In the 18th century the Princes had terribly exaggerated the unifying unity at the expense of the personal independence of the individuals. This was avenged in the French Revolution, and from 1789 to 1813 the English rule, on the contrary, strongly emphasized the personal independence of the individual.

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The States-General. Following the lead of Edmund Burke, they increasingly resisted the revolutionary activities emanating from Paris, yet as Stuart Mill, Spencer, and others showed, a half-century later, the individualism was all too convincing, and how it appealed so sympathetically to the English character. And so, in fact, this individualism, which politically, to use Da Costa's words, results in the theory of "a heap of souls on a piece of land," has come to almost sole dominance among Europe's statesmen. Even in the proposals for constitutional revision that saw the light in 1915, this one-sided principle came out all too strongly.

## §4. Corporate Life.

In contrast to this, I pointed out in 1878 the significance of the freely forming corporate life that had flourished gloriously in the days of the Reformation and was already powerfully prepared in the Guilds and Chambers of Rhetoric of the Middle Ages. But at the end of the 18th century, this corporate life called for renewal of form. Neither the Guilds nor the Chambers of Rhetoric could any longer serve to enliven life in their old forms. They disappeared, partly through destruction. But then there was no immediate new action ready to inspire the organic life of the people corporately, though now in a more contemporary form. In legislative decisions, they then went to work as if there were no more corporate life, and as if it had all atomistically scattered. Hence the tyranny of uniformity, which, blind to all variation in life, could, if it wished, subject almost all the people of Europe as well as America to one norm, to one law of life, and to one set of constitutional life regulations. Against this tyranny, I have been in revolt from the very beginning. "The curse of uniformity" was one of my earliest lectures. Yet such a protest would not have helped me in the least if there had not gone out from life itself an irresistible protest against this uniformity and against this dissolving of the whole into its atoms.

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Protest of Labor. This protest, however, did indeed go forth, and in an ever-stronger form, especially in the realm of labor. It was not long before, precisely in the circle of the workers, they began to feel all too painfully what this pure dissolving of the whole into its atoms meant for them. Alone and in his individuality, the worker stood before his patron as a defenseless lamb. Hence the urge to band together as workers, and precisely in this way to stand stronger against the patron, as soon as he did not shrink from burdening the worker's existence too much for his own profit. The worker began to feel that the boundless individualism meant his social death, and that only social cohesion and connection could save him. Hence

the simultaneous, almost everywhere emerging drive to push for mutual association of the workers. The patrons, for their part, soon banded together against this. And once this tendency to seek corporate connection had come to the fore in trade and industry, it seemed as if this corporate sense had seized the spirit of all.

## §6. Longing for All-Sided Connection.

At least I know of no time or period in which, in a way like the present, club associations, trade associations, league associations, societies, and what not, have come to dominate our whole life. A complete register of all the corporations, social clubs, financial trusts, or whatever one wants to call them, as they have formed in our small country, in all cities and villages, among men and women, among young and old, in all areas, and are still constantly expanding, would form a volume almost without a closing page. Well proof that the corporate life avenges itself on pseudo-individualism. This corporate life now had two forms, the official and the private. The churches, the universities, etc. stood on the one hand as fixed institutions of a corporate character, and alongside them those endless private

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The associations, societies, unions, leagues, and chambers whose origin lay in the free initiative of the citizenry. Especially in the realm of commerce, industry, and labor, this corporate action is gaining such an overwhelmingly significant role that organization in this area seems ever more necessary. The labor law has already made a considerable advance in this direction. There can be no doubt that this organic element in national life will eventually come to have a voice in the People's Representative Assembly, but this will take time. Premature interference with this emerging element—as seen in the failed Chambers of Labor—does more harm than good. It is clear that the organic fermentation requires time to work through, and only when, especially in the labor domain, the pattern and the worker have each asserted their own rights, and federated in a common action, will the time have come to have this corporate life represented in the States-General; and then in the First Chamber, which will only gradually come to differ from the Second Chamber and to free itself from the financial clause that has still been pressed through.

## §7. A Better Choice for the First Chamber.

Pending this, the only thing that should be retained from the present structure of the First Chamber is that it arises from a graduated electoral process. The first step lies in the election of the Provincial States, and the

second in the choice of the members of the First Chamber by the States, who, by majority vote, as the electoral product of a ballot box struggle, are wont to choose in a particular direction. Furthermore, the choice could be left to these States; at most, a term of office might be retained. The term of office of the members of the First Chamber, which now spans nine years, could then be reduced to six without difficulty. No other conditions need to apply for eligibility. But the question would then need to be considered whether the dissolution of the Provincial States might not be made possible. Dissolution fits neither the Municipal Councils nor the Provincial States, since both are administrative bodies and not representative bodies in the administration.

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THE BETTER CHOICE FOR THE FIRST CHAMBER This representative character belongs solely to the States-General. The question is, however, whether this distinction between the two qualifications has not been drawn too far. Municipal councils and Provincial Estates undoubtedly have an administrative character in the first place; but in the fact that there must also be a more direct administrative rounding-off in the college of B. and W. for the Municipal Council, so that interpellations in the Council and even resignations as a result of an unfavorable vote are by no means unthinkable, the Council or the Provincial Estates as a whole cannot be denied all representative character. It could therefore be argued that if the dissolvability of the Provincial Estates were to be granted, not where their administrative action, but then where their electoral action was concerned, a dissolution of the First Chamber would have a quite different effect than it can have now. As it stands, a direction in politics that has succeeded in becoming master of the terrain in that Chamber has the actual power, for not much less than a small quarter of a century, to control the political course of events, even if a completely different direction has long since come to the fore in the Second Chamber. This cannot be a healthy state of affairs. It embitters the party struggle and hinders the healthy development in the political field. Dropping all requirements for eligibility in this Chamber, shortening the term of office from 9 to 6 years, and making it possible, albeit under limiting conditions, to dissolve the Provincial Estates when they act as an electoral and not as an administrative college, may therefore be regarded as the three wishes that deserve a recommendation regarding the First Chamber. It would then remain the fruit of a graduated choice. It could then continue to act as a moderating influence on the too impetuous character that the decisions of the Second Chamber can sometimes assume. The attempt to seek too much healing for our political life in leaps and bounds could be averted by it. A certain reserve would emanate from it. But its actions would no longer have the detrimental effect of holding back or at least paralyzing the regular shift of political influences for at least a dozen years. With such a modified regulation, one would in the country fall less into discontent with the existence of the First Chamber. It would now sometimes lose its too stern character. And in the meantime, the Provincial Estates could...

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320 THE STATES-GENERAL. By granting a more official regulation to the corporate life, the acceleration will be hastened, whereby the First Chamber, as the representative of the corporate popular life, could acquire its own, independent character. Already in the two proposals for constitutional revision that saw the light in 1912 and 1915, at least one of the three modifications we advocated has been incorporated. No doubt, the other two prospective modifications we proposed will also gradually come to the fore, and, once the time is "ripe," the corporate Senate will come of its own accord.

## §8. The Government for the People.

In tyranny, all government that sees in the people over whom it rules nothing but an instrument for its own greatness degenerates. The people do not find the reason for their existence in the power of Emperor or King, of Consul or Ephore; on the contrary, the reason for the existence of any government lies in the well-being of the people over whom, by the ordinance of God, it wields the scepter. This last point must be added. For the people cannot say: The government is there for my sake, so that it is my servant; nor can the Prince claim: The people are there for my sake, in order to enhance the glory of my Majesty. Both People and Prince stand in the service of the Almighty God, have to serve His honor, and exist for His sake. But this being once established, it is not the Prince who is the main thing and the People the secondary, but entirely the reverse—the People is what comes to the fore, and the Prince the power set over this People by God, called to serve the well-being of this People in the prosperity of that People.

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THE GOVERNMENT FOR THE PEOPLE. - THE PRESSURE OF UNIVERSAL ARISTOCRATS. 321 XIV: "L'etat c'est moi"; but even if it seemed that there was a free Commonwealth here at the time, yet in our country too the people had been pushed back in a harsh way, and an oligarchy of Regents ruled here, which reckoned just as little with the rights of the People. It may even be doubted whether the great Revolution in Paris would ever have broken out, if above all in the second half of the 18th century the disregard of those who ruled for the rights of the People had not so violently broken through, that in the end it seemed as if the People had no other calling than to please the Princes and Regents in their arrogance and excess. This could not continue; already in itself it created an untenable situation; and what made that situation even more unbearable, it kept getting worse and took on ever more intolerable proportions. However decisively we as the Anti-revolutionary Party may stand against the French Revolution, and not only abhor its horrors, but just as decisively its principles turned against God, it must nevertheless be openly acknowledged that the

Princes and Regents of the time themselves were the guilty ones who provoked the revolutionary resistance. A complete reversal in the state of affairs had become unavoidable, and however painful the operation was, it was nevertheless the French Revolution that we have to thank for the deliverance from the tyranny that had gradually crept in under Crown and Regent's staff in all lands. This must be stated unequivocally, so that the condition before 1789 may never return among us, and our antithetical stance against the principles of the Revolution may never aim at anything other than to lead both People and Prince in the track of God's Majesty.

## §9. The pressure of universal aristocrats.

Do not forget, however, that the brand that has also been pressed on the French Revolution on our side has all too often seduced [people] to bring forth a false Conservatism, which indeed kept the power of the Prince in check, but on its part was intent on extending the authority of notable families, merchants, and leaders of science over the People as much as possible, even more than in olden times. Even Thorbecke's Electoral Law confirmed a...

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The States-General: The Conservative Oligarchy of the Respectable Bourgeoisie. The figure of ƒ160 as the minimum tax threshold for Amsterdam leads the way. And year after year, this has been tolerated under the rhetoric of liberalism. In the years preceding 1848, Conservatism had indeed acted in a much more brutal manner; always with the tendency to make the old Regents, with the Prince in their midst, lords and masters in the land. It was always the census that divided the People into two. Wise were only those who met the census; unwise to even attempt to speak, those who fell short; and in any case, the "common folk" were entirely excluded. Hence Groen's remark about "a guilder under the lowest bid"; something which he later retracted, but which still remains so significant for us, as a protest against the conservative clique. It was not the Crown from which this conservative, People-disregarding action emanated. Rather, it may be said that where it was possible, our Princes did not spare Conservatism. The action that gripped the People was much more the natural expression of life of the well-to-do, self-complacent bourgeoisie, who on the one hand increasingly reined in the Princely authority, but at the same time, on the other hand, kept the "common folk" in the land under their overwhelming power. The art was then simply to sharply distinguish the People into two kinds. There was on the one hand the entire People of the Netherlands, with its millions of adherents, but there was also on the other hand the pays légal, i.e., the part of the People that gained the right of co-determination; and this second, extremely small part of the People, which scarcely exceeded 100,000, was then honored as the only true, the genuine, the only one worth counting. What lay

behind it was the quantité négligeable. This naturally entailed that the Prince, to recall Mr. Van Houten's term, became a mere "ornament." It was then claimed that one was pleading for the emancipation of the People, but in fact, by "People" was understood nothing other than the liberalized circle, which in cities and villages, as a result of the action of the Public School, seized power, refusing to let it go. Then emphasis was particularly placed on the fact that this higher-educated and census-rich group held the legislative power in its hands. In this legislative power, the mark of Sovereignty was then honored, and to it all that lived outside this narrow circle had to submit well.

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DEMOCRATIC PRESSURE

## §10. Democratic Pressure.

Yet the Census-conservatism—which one could not call an aristocracy—could not sustain itself. From the outset, there was a gradual difference within this census circle. On the one hand, there was an increasing tendency to strengthen one's own privileges and to increasingly restrain the power of the Crown, as well as the power that arose from the People; but this ultra-Conservatism itself awakened the free spirits within its own circle. The times spoke in favor of this. The elders often favored the oligarchy, while the younger generation was increasingly driven by a freer spirit. This initial gradual difference began to take on a more principled significance. And so the democratic group then came to stand opposed to the Liberalist faction. At first, these were just two shades within the Liberal party, but soon they became separate dwellings. This division was further promoted by the rise of Socialism. The Liberal group was alarmed by this new political phenomenon, but the more democratically-inclined circle saw in Socialism a ready-to-hand auxiliary force. Finally, it then also came to a clash. In that clash, the Democratic group proved to have a higher vitality, and in 1887 it even pushed through in the Constitution, because the Anti-Revolutionary Party, decisively driven by its Calvinistic past, aligned itself against Conservatism and against the aristocratic oligarchy, albeit in a modified sense, and yet still presented itself as Christian-democratic. Since then, all political currents have increasingly flowed into this ever-deeper dug democratic stream bed. The proposals for constitutional revision just submitted (I am writing this on November 19, 1915) show what giant strides we have taken since 1887. Women's suffrage is just an ornament, but the atomistic, almost universal suffrage that they now want to introduce finds its attractiveness for the masses only in the fact that there is a chance that it will increasingly lay hold of the financial possessions of the more affluent, so that the less affluent will increasingly receive from the hand of the Government. So in the end, the political dispute again comes down to a money question. What in the period that coincides with this century

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The notion that the spirit guides, sifts, and accumulates, is not a philosophical thought, is not a holy motive, is not a new political system, but rather degenerates more and more into a financial question. The question, namely, whether it will continue to be based on what it thus was: a People with private enterprise, and as a fruit of this enterprise, with private property, and thus at least with the prosperity of some individuals and families, and then alongside the Government with its own cash funds and administration, or whether it will have to be a Government that ultimately has complete free disposal over all private income or property, in order to distribute the thus available amount from above among the population? It is not really socialist yet, but from the People will then nevertheless emerge as beneficiaries some persons as ministers and members of parliament, who, with the Crown Bearer as "ornament" in their midst, will give the required assistance to those whom they consider to have too little, and will take the necessary funds by force, through taxation or levy, from those who have it. In short strokes, this course of development had to be sketched here, in order to make it well understood that in politics it still always comes down to the great question of who will have the disposal of the power derived from money. This has now begun with a struggle between Crown and Parliament. At present, however, we have already progressed so far that the States-General are constantly urging the Government to make large expenditures. Just count up the amendments at a Budget debate that aim at expanding the budget. Formerly it was too much the Government that asked for permission to spend more money, and the Parliament that stood for economy, in order to spare the private purses of the inhabitants. Now, on the contrary, it is the minister who holds back an expenditure that is not highly necessary, and often tries to vote down the greedy amendments. The mutual relations have thus undergone a fundamental change in this respect. Coming to the point, one finds in the present as well as in the past that, much more than is good, the strings of the stock exchange are the ones that govern politics, from of old in the so-called Budget Law, now in the provision by the State of the private needs of the citizens. That the constantly increasing needs of the Army and Navy also play a dominant role in this, is felt everywhere in the land, but this point of state policy also now

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BUDGET REFUSAL IN ENGLAND.325 The form has been completely changed. Formerly, the main question was whether the man who held the reins of government, whether from his own purse or by fulfilling his prayer, would be able to obtain the means to have mercenary troops, if necessary recruited from abroad; while now the People itself, in its international competition, feels the power it must bring together from its own population and must arm, in order to remain independent as a nation and to be able to enrich itself

economically. The very character of the former prayer marks the difference here. At that time the Prince, in order to obtain an army at his own disposal, had to come with a request, even in the form of a prayer, to the mighty ones of his People; and now it is the People itself that serves in the war, sacrifices the treasures for that war, and economically hopes to regain what it has consumed in the war. Always, therefore, the money that sets the tone and gives in the political coexistence of Prince and People.

## §11. Budget Refusal in England.

This financial dispute arose after 1848 often in the dispute of scholars over the right of the States-General to refuse the funds requested by the Government for the conduct of the administration. Especially from the radical side, but also from the ordinary liberal side, the view was held that the States-General possessed the undisputed right to refuse the granting of these funds, and moreover to compel the Cabinet either to resign or to make an about-face. Without going into particulars, one usually appeals to England for the pleading of this right. Yet upon closer examination it soon appears that this right in England had a much more moderate character than one wanted to give it here. It will therefore be good to briefly explain what applied in England. In England, a sharp distinction is made from the outset between ordinary and extraordinary expenditures, and in a completely different sense than with us. For in England the Crown has full disposal over the so-called ordinary revenue, that is, the ordinary income, and only for the extra-ordinary revenue is it held to request it each year, and remains dependent on Parliament. For the ordinary means for the ordinary course of affairs, it is not even accountable in the strict sense that applies to us. The Queen spends those funds from year to year, because they have once and for all, with the cooperation of Parliament, been established for salaries and the like. Yet it should not be overlooked that the ordinary means have steadily declined in amount, and the extraordinary have increasingly expanded in amount. In principle, however, the old rule remained that only the “aides et bénévolences,” as the extraordinary means were wont to be expressed in French, required an annual grant.

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326 THE STATES-GENERAL. The starting point here is the just-mentioned division, that Parliament makes decisions regarding financial management that have a legal character and grants funds for an indefinite time, and that alongside these there are entirely different decisions that more take the form of a resolution and only apply for one year. This brings about that in England, as one well distinguishes, there is a double budget, both for expenditures and for income. In the first list, if one may so call it, the income and expenditures are then filled in that Parliament has once and for all approved, while what stands on the other list relates exclusively to the new fiscal year that is about to begin. The ratio between these two also

differs greatly in terms of expenditures and income. As for the income, the Crown possesses a legally granted right to levy three-fourths of the total, and this must only be granted for one-fourth for the one fiscal year. The ordinary expenditures, on the other hand, which can proceed of themselves, mainly relate to the national debt, the civil list of the King and the Royal House, the judicial officers, and those fixed annual salaries that have once and for all been established by an Act of Parliament.

## §12. The Budget.

The name "budget" is then also not applied to the ordinary, once and for all by law established expenditures, but only applies to the new additional expenditures. The ordinary course here is that the Cabinet submits the new expenditures to Parliament for approval, and Parliament then decides whether to grant them or not. This right of Parliament to refuse the granting of funds is then called the "power of the purse," and is considered one of the most important constitutional rights of the English Parliament.

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THE BUDGET. The government first puts forward the expenditures for the navy and army. Parliament then begins by appointing a special Commission to examine these proposals. This Commission bears the name of the Committee of Supply. In this Commission, it is not the Ministers, but the Referendaries from their respective bureaus, who appear on behalf of the Crown to explain the requests and defend the objections that have been raised. From this Commission, the proposals for the Defense expenditures then come to the full Parliament, and the means are then requested for those expenditures under the title soon to be mentioned of "aides et bénévolences." The resolution to that end is then called the Act towards making good the supply granted to Her Majesty. This proposal also first goes to a Commission appointed for that purpose, which bears the name of the Committee of Ways and Means. After that, the Parliamentary resolution follows, which shows how many of these means will be found from the "Consolidated Fund," and in what other way the remaining deficit will be provided for. By "Consolidated Fund" is here understood all the revenues and taxes that were previously legally imposed. Formerly, all these separate taxes were considered as separate funds. But since then, they have all been made to flow into one "fund." And once it has been provided in this way for the regulation of all expenditures and all the necessary means for them, then a third so-called Appropriations Bill is still added to the two bills thus created, which watches over the fact that the granted monies are not spent for other expenditures than those approved; always with a small free play for the entirely unforeseen. Now that the House of Commons has approved these three acts for the supply, for the means, and for the appropriation, they all three go to the House of Lords to be sealed in that Senate as well. The consequence of this mode of treatment is that in England the

decision usually does not fall on the budget of a single Department, but covers the entire Budget submitted, but always with the understanding that the voting of the Budget does not bring the entire machinery of the State to a standstill, but only blocks the newly submitted one.

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## §13. Safeguard Measure.

This English system is therefore well-connected. Yet, precautions have been taken to further complete the breach. History has long shown how the Monarch could be intent on breaking even the Constitution; and one knows how, for a moment, Da Costa himself pleaded the idea that the King possessed the full right to do so. The correct observation was taken as the starting point—that the Constitution was originally issued by a unilateral royal decree, and that this inherently implied the right to revoke what one had oneself introduced. Only, it was forgotten here that the enactment of the Law entailed that the Council of State had been heard and common deliberation with the States-General had taken place. But even though this already overthrows Da Costa's assertion, it cannot be denied that the establishment of a Constitution is in fact a thoroughly bilateral act, and that it would be formally more correct if, as in Israel, the foundation of the state life had been laid by a confederate decision on the one hand of the People, and on the other hand of the Head of the Monarchy. And although it is true that in England there has never been a transition to the drafting and promulgation of a Constitution, one should still pay attention in this context to the so-called Mutiny Act. Learned from history what a Prince could be capable of, this Mutiny Act determined that the army, which stood under the King's command, was only appointed for one year, and that Parliament had to reaffirm the King's authority over this mercenary army every year anew. If, therefore, the King did not timely request from Parliament the confirmation of his authority over this army, and obtain it from Parliament, this army would be dissolved by itself on the day when the preceding authorization expired. And there does exist in England, alongside this appointed mercenary army, an extensive militia, but this may not be deployed for the conduct of a foreign war without a separate act of consent. It is precisely this regulation regarding the English military power, which in 1915, when the introduction of conscription came up due to the war, made the decision on this point extraordinarily difficult.

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329 that it has not come to a general rejection of the Budget, as was the case in this paragraph, in England except in the rarest of exceptions. It is precisely the pressing way in which everything related to the Budget was regulated in England that usually made this unnecessary. In a house that is well locked and bolted, talk of defense against burglary only rarely arises. Let it be noted here, finally, that there is nothing mysterious about the word Budget. Bougette was an old French word for a leather bag, which was brought to England by the Norman princes for money bag, and it is this French word that was later pronounced as Budget in England.

## §14. The state of affairs at home.

Although we have not followed the English track as far as the budget is concerned, yet it can be said: "that Parliament can do everything except making a woman a man," as an example, and so here too the tendency was noticeable from the outset to sneak towards what has later been called Parliamentarism. It was initially thought that the right of dissolution could be used to guard against this, but the attempts in this direction by the late Mr. A. Heemskerk will not easily lead to repetition. They have, especially in the case that Keuchenius raised, miserably failed. The only complete success was the dissolution of the First Chamber in 1905, which was then obtained by the then Minister Kuyper from the Crown, but this dissolution had a completely independent character. It was by no means intended to make the Crown equal to the Parliament, but merely to bring a First Chamber, whose composition in no way matched the state of affairs in the Provincial States, into conformity with those States. It was therefore clear in advance what change the dissolution then provoked in the composition of the First Chamber; as indeed turned out. This drastic measure will not easily be applied again to the Second Chamber. Yet, quite apart from the issue of dissolution, the rejection of the Budget here will not easily fall into complete disuse. There has never been any question of a complete Budget refusal here. In the law on the means, hardly any discussion took place. Whoever intended to provoke a ministerial crisis, almost without exception resorted to the obvious means of throwing himself on one single budget, and indeed on that budget, the acceptance of which was indispensable for the continued existence of the Cabinet. Sometimes the attack was even directed at only one article of such a budget, but then at one of which one was almost certain that the Minister would not let it go and that the Cabinet would not abandon the attacked Minister. Two consequences could then follow. The Cabinet could remain in office, and seek another Minister for the dismissed, or the Cabinet could itself offer its resignation and retire with its defeated colleague. Which of these two was chosen depended mostly on the question at issue, and on the stronger or weaker position of the Cabinet. In 1906 the De Meester Cabinet remained in office, even though its Minister of War fell; but when in December 1907 his deputy also got into trouble with the Chamber, after Heemskerk's energetic action, the Cabinet saw no salvation in once

again coming out on the scene, and made way for the Heemskerk Cabinet. The blow had been foreseen months in advance; and when the Cabinet refused to continue to lead the way, its resignation request ultimately surprised no one. §15. Groen's precautionary measure. The attempt made by Groen van Prinsterer to introduce the conviction that a financial proposal might be rejected by the States-General for reasons outside politics, however excellent the intention, could of course not find lasting application, and even insofar as it was applied, it did not achieve its purpose. This would probably have turned out differently if here too there had been a vote on the entire budget. However, this could only take place here in the case of the Law on the Means, and since the Law on the Means did not lend itself to this here, one could not get anything other than separate votes on the various budgets of the separate Departments, and then beforehand, at least in the Second Chamber, on the separate items of those budgets.

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Groen's precautionary measure.331 Separate articles of such a budget. Now, in fact, such serious objections could be raised against a particular article of the proposal that one would reject that article, not as a deliberately sought means to provide the minister with a disconcerting check, but out of concern for the state. In the meantime, the matter at hand was usually still connected with the political insights or political intentions of the Minister or the Cabinet, so that the political considerations still spoke from the vote, even if a considerable part of the Chamber turned against the proposed measure rather than against the general policy or against the person of the Minister. Even if we had had a division like ours, which would have allowed rejecting a ministerial budget proposal without thereby disrupting the administration, rejecting a budget to criticize the policy would have been acceptable. Now, however, since all our expenditures are included in one budget, so that the ordinary salaries and other expenditures already ordained by law are also included, there was hardly any room for hesitation, and one had to either approve or refuse, and in that refusal also strike the Minister as a person. There is disorder here among us. The First Chamber usually does not come into action until the end of January of the following year, so that the approval of the two Chambers of the States-General is often not obtained until mid-February on the entire series of budgets; but still, custom brings with it that the government continues quietly with its usual expenditures in those first 4 to 6 weeks of the year, without yet having received the seal of the States-General. An irregularity that inevitably leads to unconstitutional acts. The ministers themselves receive their one-twelfth of their salaries on February 1 and take it without hesitation, even if they will only go through their budget a day or more later. In such a state of affairs, it is of no use whether your admonition is heard, not to reject any budget whatsoever for reasons outside of it. It is perfectly correct that the States-General, if they wish the

dismissal of a Minister or a Cabinet, need not keep this desire a secret, and have various means at their disposal to make this desire known to the King, whether by motion or by a special address.

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332 THE STATES-GENERAL and the Crown; but voting always has this in its favor, that the measure itself is much simpler, and moreover, there is an entirely different motive at play. In a motion or address, reasons must be given for one's intention. This now goes exceedingly well if there is only one party in power.

## §16. Mixed Action.

However, if the action is against the Cabinet, from the cooperation of two or three parties, not infrequently also of parties that are fundamentally hostile to each other, it is in no way possible to clearly state the motives, just as in a motion or address to the Crown cannot be otherwise. This also explains why one often avoids both the motion and the address, and takes refuge in voting on the budget item or on an entire departmental budget, since the motives need not be unanimous here and the Minister is nevertheless put in a tight spot. Nevertheless, the Anti-Revolutionary Party has always endeavored to heed Groen's advice, but it has not always been possible for it to persevere in this. Direct exceptions, however rare, have occurred, as far as our own initiative is concerned. But apart from this, one was constantly faced with the case that one had to vote on a budget proposal that had come from the bosom of other parties, and that certainly with a political purpose. Even if the Anti-Revolutionary Members of Parliament then cast their votes against certain articles solely for the sake of the matter itself, this could not prevent the Minister from seeing his article voted down and thus being unseated. In a Chamber with an Anti-Revolutionary majority, the non-voting of a budget article for reasons outside of it would have been a more established rule, but as a small party in the midst of the pressure of the larger parties, we were often not masters of our own position. Where it was once established that the Government, in order to be entitled to its expenditures, needed the prior consent of the States-General, it followed as a matter of course that the more revolutionary-minded groups of this would make use of their power to push through their views in the administration as much as possible. And if this intention existed, it was in the nature of things that whoever wanted to exert coercion on the Cabinet, or also wanted to make way for a combination of their own kindred spirits, allowed themselves, in their choice, to resort to any parliamentary means of attack on the government, in each given case choosing that means which promised to be the most effective.

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MIXED ACTION - PARLIAMENTARISM. 333 In fact, it has also turned out that the Second Chamber, without much scruple, according to its composition, has repeatedly enforced its own will at the expense of the Government by withholding funds.

## §17. Parliamentarism.

Now it is perfectly correct that this way of acting has led to what is called Parliamentarism at our expense, which detracts from the honor of the Royal authority. For one is increasingly moving in a direction as if the real government rested with the States-General and as if the Crown only lent the required form to the execution of what the States-General wanted. Articles 72 and 109 of our Constitution are to blame for this; and the evil has been aggravated by the fact that we do not know a vote on the Budget as a whole, and in particular not, after having made a prior separation in this Budget between what must be available by itself to let the State's household run, and what provokes new opposition. Yet this must never lead to the conclusion that, in revising our Constitution, the power to decide freely on the monies that will be placed at the disposal of the Government should be taken away from the People in their representation. On every tax bill, the States-General must be able to show whether or not this new burden will be imposed on the people; and for all the money that, by virtue of the decision taken at the introduction of such a tax, is placed at the disposal of the Government, the Government remains accountable.

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THE STATES-GENERAL. The administration is firmly established. When this was previously in a less firm connection, the most deplorable abuse of power has arisen from it. The dangerous fluctuations in European state life, of which the 17th and 18th centuries bear witness, have been largely due to this defect in the financial administration.

It was only the taxpayer's right to be taxed that put an end to this nameless confusion.

## §18. The Anti-Revolutionary Standpoint.

It is therefore also strictly and firmly maintained from the Anti-Revolutionary side that the Government has no right to dispose of any other money than what has been entrusted to it by the States-General. Even over the proceeds of the taxes, the right of disposal must be granted to the Government by the States-General each time anew. A tax law indeed gives the Administration the right, and even imposes on the Government the duty, to collect the taxes due from the subjects, but this in no way implies that it may dispose of the

monies thus collected at its own discretion. For this, it requires precise proposals in the budgets, and it is only through the approval of these budgets that the Administration acquires this claimed right of disposal.

To insist sharply on this all-sided budgetary right of the States-General is in no way a questionable Parliamentarism, but rather the a.b.c. for all healthy public finance. Neither Groen van Prinsterer nor any other Anti-Revolutionary statesman has ever compromised on this undisputed right of the States-General. This was done by the old Conservatism; on our side, it has never been done. Of course, a people can still be at such a low level of development that it is still in its infancy, and then naturally it stands under paternal or guardianship supervision. At that low level of development, there can be no question of popular autonomy. The Government must then proceed according to its own judgment, and even dispose of the good money of the ward according to its best knowledge.

There is then still no question of a constitutional relationship between Sovereign and People.

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THE ANTI-REVOLUTIONARY STANDPOINT. - OUR CULTURAL MATURITY.

## §19. Our Cultural Maturity.

But in this the old Conservatism erred, in that it also wanted to apply this guardian and ward relationship to a People like that of the Netherlands, which had surpassed the whole of Europe in cultural maturity three centuries earlier. The old Conservatism has underestimated our People; and insofar as the Regents had cut off the political development of the People to our detriment, and thereby became the cause that the wild song of Paris in 1789 also here tore the long-suppressed People with wanton longing from the bonds that embraced it, the blame lay with them that at the turn of the 18th to the 19th century things went so insanely here. The game played by the Regents took its revenge in the wild behavior of the People, which had outgrown its guardianship. Instead of now leading this disorderly drive into better channels, the government has constantly tried since 1848 to perpetuate the essentially unfree state of the People. Hence the turmoil that then arose. Even Thorbecke did not bring us to where we should have been. The suffrage he introduced was a mockery of our cultural development. It was precisely this that first caused the Anti-Revolutionaries, and soon after them the so-called Radicals, and finally the Socialists, to tighten the financial bond again, in order to secure the rights of the people in this way, as by a means that was self-evident. The mistake was only that at that time, in our Constitution of 1848, the budgetary problem was not regulated according to its requirements. No distinction was then made between what could not be lacking

for a moment for the political breathing of the People, and what required a separate, conscious and deliberate decision each year. Everything is mixed together, what must go on without interruption for the state economy, and what should be placed as a means for further development. In England this was well provided for. Hence the courageous action of Parliament is always greeted with applause from the People, and on the part of the Crown is always honored. With us, on the other hand, it has always been attempted by small pushes and shoves to draw the power to a relatively not so large circle of statesmen, who, though in a very modified form, have always wanted to maintain the old Conservatism.

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336 THE STATES-GENERAL. They proceeded in the manner of the old Regents, as now aiming against the Crown with the People, what had been pursued in former times at the expense of all the lower classes. It remained the rule of the Gentlemen over the national life. As our Constitution now reads, and the custom of more than half a century has determined the course of political life among us, no remonstrances are of any avail anymore, and Parliamentarism is no longer to be avoided in a mitigated form.

## §20. Ministerial Resistance.

The constitutional power which the States-General possess is so all-encompassing that a Minister or Cabinet struck by a parliamentary vote always acts with the obligation to abstain from any resistance thereto. Dissolution has proved not to be to the taste of the Dutch electorate. Rather, it has repeatedly provoked the voters, as if forcing them to reconsider their once-made choice. To our Second Chamber, in the literal sense, no single power has been withheld. It disposes, in the utmost case, of all conceivable means of defense. And with the history from the past of what has occurred in other countries, and also what has been experienced here at home upon dissolution, it can be safely professed that the final decision in the outbreak of fierce political struggles among us still rests with the States-General. Only mutual assurances of goodwill can moderate and temper the friction and collision that may arise therefrom. Detachment from the right to make the necessary expenditures for the normal state service from the danger of Budget refusal could give some greater unity. It may well come to that. But for the rest, the difference in the composition of the First and Second Chambers alone sets the limit to the omnipotence of Parliament. It will therefore always be a matter of carefully ensuring that in the revision of the Constitution, as long as we do not get an organic choice of the First Chamber, the position of the First Chamber at least does not undergo such a modification that it would ultimately be nothing more than a shortened duplicate of the Second. It is not otherwise. In the end, the final decision in a constitutionally governed country must always remain with the representation of the People. The People

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MINISTERIAL RESISTANCE - REFERENDUM. 337

remains, according to the Anti-revolutionary principle, the main thing, and the Government is given by God to this independent people to lead it on its historical path of honor and national happiness.

## §21. Referendum.

The federal Constitution of the Swiss Republic, as promulgated on May 29, 1874, contains in Article 89 the provision "that federal laws are subject to the approval and disapproval of the People, if the request for this is made by 30,000 legal voters, or by eight of the 22 cantons. The same applies to federal decrees of a general nature that do not have the character of urgent decisions." In accordance with this Art. 89, a second federal law was promulgated a month later, on June 17, 1874, which in 16 articles regulated this power of the Swiss people. According to this second law, see Art. 2, the Federal Council now decides whether a law or decree has a general character and is to be considered an urgent measure. If a canton or a group of citizens wishes to hold a referendum on a particular decision or an adopted law, official notification thereof must be given to the Federal Council within 90 days. If such a referendum is to be held, it will be held on the same day throughout Switzerland, which day is then determined by the Federal Council. Art. 10 stipulates that every Swiss who has reached the age of 20 years has the right to vote here. Art. 13 prescribes that the minutes of the cantonal votes must be submitted to the Federal Council within 10 days. If the majority of the votes then declares itself against the law or decree, these are void; if only a minority votes against it, the law and decree immediately receive validity through this negative outcome and are promulgated by the Federal Council (see Art. 15). It is especially the smallness of the individual cantons that has led to the introduction of this referendum. The canton of Uri has only 22,113 inhabitants; the two Unterwaldens not more than 13,788 and 17,161. Zug not more than 28,156, Schwyz 58,428, Glarus 33,116, the two Appenzells 59,973 and 14,659, Schaffhausen 46,097, Basel-land not more than 76,488. These are small states.

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338 THE STATES-GENERAL. Already 10 of the 22 cantons, which do not count more souls than one of our average cities; and, as a matter of course, the voter in such small cantons does not feel the necessity to have himself represented. Why could he not just as well vote on laws or resolutions himself? In some cantons, they have not even confined themselves to the proper Referendum, but, as especially in Zurich, Zug, Solothurn, Basel, Schaffhausen, Aargau, Thurgau, Vaud and Neuchâtel, introduced the right of initiative;

which means that a numerically determined number of voters can provisionally vote on a draft law, which is then sent to the Federal Council for further consideration. Such a Referendum is in part on a par with Proportional Representation, insofar as the smaller district division is eliminated here, in order to have the voters cooperate directly, over the entire country, or over a very large part of it, in the composition of Parliament. Even closer to the Referendum comes the so-called Plebiscite, which in the old Tribunician Comitia of the Romans was issued by the Plebs. Napoleon I, who always showed a tendency to imitate the form of the Roman World Empire, also revived this Plebiscitum. The last Napoleon also based the validity of his imperial crown on such a Plebiscite. Victor Emanuel made use of the same legal form, in the annexation of each new part of Italy, and finally of Rome itself. And even in the Peace of Prague, the chance was given to North Schleswig to express itself by popular vote, whether it wanted to join the decision that had been made. Stoerk, in his Option und Plebiscit, (Leipzig 1879) has brought together everything that relates to such a Plebiscite. In such a Referendum or Plebiscite, the desire always comes to the fore to have the voters not by delegation, but themselves and directly, govern the political condition of the country.

## §22. Free from the Voters? Undoubtedly, there is more to be said...

Free from the Voters? Undoubtedly, there is more to be said in favor of such a Referendum than one would say at first hearing. As it now stands, the voters hand over the affairs of the country, and it is the elected members of the Chamber who become masters of the field; and this all the more, now that Article 86 of the Constitution stipulates that the members of the States-General have to vote without instruction or consultation with those who appoint them. This article, of course, reverses what was previously the rule here, when the elected were merely instruments who had to execute the instructions given to them by the States or Councils. The Referendum now, on the contrary, aims precisely to enable the voters themselves, if necessary, to correct what has been wrongly done by their representatives, and in any case to control and correct the opinion of their representatives if necessary. In this lies something that has a claim to appreciation from the Anti-Revolutionary side. In contrast to the position, which has been constantly emphasized, partly by some Liberals, partly from the Conservative side, that the members of the Chamber are completely free from the voters, our side, already from the days of Groen, has always advocated the view that a member of the Chamber does not stand outside all connection with his voters. We immediately came up with a general program and a special program for each constituency, and considered it a duty to investigate to what extent the candidates who offered themselves agreed with these programs. We did not demand any promise from the candidates, we did not bind them by any agreement, but we did constantly insist that the voters should not vote for an N.N., but should only support those candidates who clearly showed their political sentiment, especially on the pending bills or the subjects to be regulated more

closely. It even happened to us that a member of the Chamber, of whom we had previously learned that he agreed in political conviction with his voters, but who, once elected, went over to an opposite view, would do well to take his resignation, in order to make a new election possible. From this position, it follows that there are certainly cases conceivable in which there would be good reason for the direct consultation of the voters, over the heads of the elected members. §23. In the Unforeseen. Such a case could especially occur if, in a completely unforeseen way, an important decision had to be made on a matter that had not been the subject of the election campaign, and on which the elected members had not yet had the opportunity to form a considered opinion. In such a case, it would seem justified to consult the voters directly, in order to ascertain their will, before the elected members definitively decide. This would apply, for example, if a war were to break out unexpectedly, or if a new and weighty international treaty were to be concluded, or if a fundamental change in the economic system were to be proposed. In such cases, the elected members would not yet have had the opportunity to sound out the opinion of their voters, and it would then be appropriate to consult the voters directly, before the final decision is made. The Referendum would then serve to ascertain the true will of the people, before the representatives of the people definitively decide.

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FREE FROM THE VOTERS? - IN THE UNFORESEEN. 339 As it now stands, the voters hand over the affairs of the country, and it is the elected members of the Chamber who become masters of the field; and this all the more, now that Article 86 of the Constitution stipulates that the members of the States-General have to vote without instruction or consultation with those who appoint them. This article, of course, reverses what was previously the rule here, when the elected were merely instruments who had to execute the instructions given to them by the States or Councils. The Referendum now, on the contrary, aims precisely to enable the voters themselves, if necessary, to correct what has been wrongly done by their representatives, and in any case to control and correct the opinion of their representatives if necessary. In this lies something that has a claim to appreciation from the Anti-Revolutionary side. In contrast to the position, which has been constantly emphasized, partly by some Liberals, partly from the Conservative side, that the members of the Chamber are completely free from the voters, our side, already from the days of Groen, has always advocated the view that a member of the Chamber does not stand outside all connection with his voters. We immediately came up with a general program and a special program for each constituency, and considered it a duty to investigate to what extent the candidates who offered themselves agreed with these programs. We did not demand any promise from the candidates, we did not bind them by any agreement, but we did constantly insist that the voters should not vote for an N.N., but should only support those candidates who clearly showed their political sentiment, especially on the pending bills or the subjects to be regulated more closely. It even happened to us that a member of the

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THE STATES-GENERAL. The subject that has come up was one on which the voter could not have learned the conviction of the Member of Parliament at the ballot box. Take, for example, the bills introduced by the Cabinet-Kort v.d. Linde in October 1915, which aimed to provide for the financial distress that had also resulted here from the European war. For here too it was a subject, and, in connection with this subject, legislative proposals, about which neither candidate nor voter had even remotely thought at the 1913 election. At the same time, this was a legislative matter of such an entirely exceptional nature that the opinions about it often clashed within the bosom of the parties. It could therefore rightly be said that these were decisions of the highest importance, without the voter in 1913 knowing what conviction the candidate he was then voting for was attached to, or whether he had even been able to express his feelings in any way. A new Chamber election could in such a case be the ready means to fill this gap. If, however, one considers that dissolution would be too drastic a measure to consult the will of the voters, then the Referendum could be of service here, so that the voters could directly express their feelings.

## §24. What is against it? For the rest, however, the Referendum do...

What is against it? For the rest, however, the Referendum does not seem recommendable. If all representation of the People is lacking, and it votes directly itself, then the decision lies in the hands of thousands and again thousands who lack sufficient knowledge of the matter in question, and do not even have the means to inform themselves about it. By far the majority of voters almost entirely lose their available time to their ordinary life's task. Often the light must come to them from political meetings, and one knows how often an excited speech there sets the tone, while all guarantee for a thorough discussion is lacking. On the other hand, if the People choose their representatives, then the elected members are free to fully inform themselves down to the smallest details through the documents, in the Committees, through Commission meetings, and through public debate. They can always fully acquaint themselves, and the ministerial offices provide folio after folio of all conceivable data that is desired. In this way, the Members of Parliament, also thanks to their regular club meetings, can form a properly grounded conviction, and at least all superficial and thoughtless action can be excluded. Whoever loves solidity over superficiality will therefore certainly give a far greater preference to a popular sovereignty that works through representatives

than to a for or against vote of the mass of voters, who often go by a mere slogan and cannot be fully informed of the matter in question. This is not to say that the voters could not directly express their feelings on some simple questions, as for example on women's suffrage; but as a matter of principle, we would only dare to recommend the Referendum where a decision of very far-reaching import had to be taken on a subject about which at the ballot box hardly anyone had spoken, yes, to which well considered no one had even given a thought.

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WHAT IS AGAINST IT? - REJECTION OF THE BUDGET. 341 It is true, such a Referendum limits the competence of the States-General to some extent, but this limitation can logically flow from the circumstances under which it came into being at the last election.

## §25. Rejection of the Budget.

Both Article 8 and Article 9 of the Anti-Revolutionary Program give us the guiding principle here. Rejection of a Budget for reasons outside that Budget, our party in its program disapproves of, as an overstepping of the power that belongs to it, but not without adding: "unless in very extraordinary circumstances," which of course may only be understood to mean that there are cases conceivable where a malicious Cabinet would seek to undermine the fundamental rights of our People or our Royal House, and where the warding off of such an attempt could hit no other target than to deprive such a Cabinet on the spot of the disposal over the monies of the State. That for the rest, in order to establish better regularity, a distinction applies with us other than between ordinary and extraordinary, or better said, between normal and exceptional.

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As already stated, the introduction of a new tax in addition to the already legally ordained taxes would be contrary to Article 8 of Our Program. And in connection with this, Article 8 of Our Program also professes that the Anti-Revolutionary Party demands the confirmation of the legitimate popular influence, which, by virtue of the moral bond between electors and elected, is exercised over the State authority by the States-General, according to the requirements of our history. Just as Article 9 guards against the revolutionary misconception that it lies within the power of the Representative Body to overthrow the Government at any moment it pleases, and thereby to upset the sitting Cabinet, so too does our program in Article 8 guard against the tendency of Conservatism to make the People, with their rights, a plaything of the Government. It is not the Sovereign who first creates the People; first there is the People, and the Sovereign is placed over

this People so that the People may develop and flourish under the blessing of the authority of the Government. Whatever one may complain about Parliamentarism, the Anti-Revolutionary Party will never shirk this its duty to stand up for the free unfolding of the forces that lie hidden in the life of the people. As the House of Orange has helped the People in this, our Princely House will always enjoy our love, but an appendage of whichever Princely House it may be, the People in the Netherlands, as our Party intends it, will never be.

## §26. Our Program Regarding Suffrage.

The Anti-Revolutionary Party spoke in more detail about the Suffrage in 1878, as evidenced by Article 11 of its Program. It did so in the following manner: > In order that the States-General may be rooted in the nation, not merely represent the People in name, and in their composition no longer constitute a violation of the rights of the minorities, the Anti-Revolutionary Party demands the introduction of a different Electoral System, and, as a preparation for this, the lowering of the Census. In the then-current explanation of this article, the case was made for organic Suffrage, and this in such a way that in the First Chamber the various interests in all areas, whether economic, scientific, literary, aesthetic, or social, would find their appropriate representation.

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OUR PROGRAM REGARDING SUFFRAGE.343 The representation would find its expression, so that a Chamber of Interests might arise, and that in the Second Chamber the political directions would come to the fore, emerging organically from the full life of the people, according to its division into parties. The system of Proportional Representation, already so warmly recommended by Her, was therein extolled as the most desirable. From this, the idea gradually developed that the Household-Head or Family-Head suffrage for the Second Chamber deserved preference. The later-arising home rule in England also seemed, even though this system rested only on home ownership or house rent, to readily lend itself to the organic idea. It also gained adherents among the Roman Catholic Party. And finally, it found expression in the draft Constitutional Revision of 1912 to a large extent. The difficulty lay merely in this, that everywhere else the atomistic Suffrage had gained entry, and, once accepted, had been carried through with ever stricter consequences. The cause of this was the atomistic State-idea. One no longer thought of a People that was organically connected in a historical sense in the households, families and lineages, and now ordered under an Authority, but understood by State a collection of individuals who had come to live together on the same piece of ground not otherwise than by virtue of their free will, and who now, as an atoms-group, appointed an Authority which was then indeed called Authority, but was in fact the servant of the group of individuals

who had appointed it. Always the Contrat Social! This atomistic conception of the State-concept could not but lead to the Universal Suffrage of men, and, with the ever greater disappearance of the distinction in legal status between man and woman, to the equally Universal Suffrage for women. The path to this did not run in a straight line for the People. In all kinds of ways, a halt has often been made. But more than one halt was yet not a stopping. Once the organic conception of the State had been abandoned, the logical consequences pressed ever further towards atomism. Although the State-idea in an atomistic sense encounters principled opposition among us, this pressure was by no means to be suppressed; and now that the less privileged increasingly cherish the hope that the Universal Suffrage in an atomistic sense will be able to bring them, at the expense of the more privileged, an improvement in their financial position, the action in that direction does not come to rest.

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THE STATES-GENERAL. This is an even more precarious case for us, because we too wish to give the right to vote as broad a foundation as possible; only in a different way.

## §27. The People in the Mir.

The most natural way for several people to live together in the same place is for the interested parties to come together and discuss their common interests. What is most remarkable about this is not the least the way in which this has succeeded with the Russians in their so-called Mir. In my Around the Old World Sea, I, p. 119–124, I gave a more detailed picture of this Mir; here I can only briefly refer to it. This Mir seems to have arisen at the beginning of the 15th century, when the family bond no longer sufficiently held the inhabitants together. The more the patriarchal bond, which was initially even organized in a matriarchal way, relaxed, so that it ultimately no longer served its purpose, the more the widely dispersed population of Russia felt the need to call the joint inhabitants of a village or of a region with three, four small villages together from time to time for a meeting, to deliberate on the common neighborhood interests. For this purpose, a certain number of families who lived close together were then coupled together, and this coupled group of peasant farms bore the name of Mir. If necessary, this Mir was then divided into smaller groups of peasant farms, and these were called Osmarks, while at the head of the Mir stood a head who bore the name of Starista. This coupling in the Mir now aims at the common ownership of land and forest, and at everything that belongs to the civil community. The so-called Volost is an even broader integration that supports the Mir. Now it is already highly interesting in itself that the woman in the Mir appears as an equal alongside the man in many questions, and on the other hand that one, as far as possible, refrains from

outvoting a minority. One prefers to keep a matter pending for three, four years, and to bring it up again and again, than that an outvoted minority would feel aggrieved.

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THE PEOPLE IN THE MIR. - THE BERBERS. All those who belong to such a Mir do not do their business through delegates whom they elect for this purpose, but themselves, and for this they come freely and frequently to meetings. Everyone takes part in these meetings. These gatherings last for hours, and everything concerning the Mir is discussed extensively and with warmth. One sees the Russian peasant that he really lives in his Mir. So there is no question of the right to vote. One does not elect, but comes to the Mir meeting itself, and it is in this Mir meeting that the People themselves, in a very democratic sense, settle their affairs. This was the case at the time, and it can still be the case to some extent, because the population is so thinly scattered. At a distance of hours from his village, the Russian peasant finds nothing but meadows, arable land and mountainous regions. It is precisely this that makes it unnecessary to have any further or higher administration. One lives and governs oneself.

## §28. The Berbers.

Of more or less similar nature is the life among the Berbers or Kabyles in Algeria and Morocco. Here it is not about peasants, but rather about groups of industrialists and merchants, but it is quite peculiar that these Berbers live together everywhere in small towns and have surrounded these their towns with walls, in order to shut themselves up in them. Between the one town and the other, a fierce war rages again and every time, and every inhabitant of the Berber fortress is obliged to take part in these civil wars; something that occurs more often, since the blood feud in the families has not yet been eradicated here. In this respect, the situation is like that on Corsica. If one enters such a town through the thick gate, then the attention is immediately drawn to the open square, often provided with benches, where the meetings of the People are held. And here too, just as in the Mir, the entire population of the Berber fortress gathers on these squares, deliberates and makes its decisions. The resemblance to the Mir cannot be denied. Only in this respect is the remarkable difference between the two, that the Mir arose in the 15th century, while the Berbers already held their popular assemblies in the days of the Roman Empire. The family bond

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346 THE STATES-GENERAL. It seems to have originated much earlier. Hence, the assemblies have a very ancient origin.

## §29. Our Constitution of 1798.

In the days of the French Revolution, nothing similar arose. It was also brought to our country in 1798. However, in the Constitution that was introduced here that year, the so-called primary assemblies immediately appeared. See Title I, Article 6. First, the country was divided into Departments; those Departments into Circles; and those Circles into Municipalities; but besides this threefold distinction in Article 5, Article 6 stipulated: "Besides this division into Departments, Circles and Municipalities, the entire Republic is further divided into primary assemblies and District meetings, suitable for the activities of the People. Voter registers were drawn up of those who received the right to participate in these primary assemblies. Article 18 stipulated that these primary assemblies were composed of neighboring Houses, Estates or Neighborhoods, together constituting 500 voting citizens; and from these primary assemblies, forty in number, the District assembly was then formed. On these two types of assemblies, discussion and voting took place, and, though at some distance, these assemblies also showed a certain resemblance to the Mirs and the Berber gatherings. It was not a voting in a dead ballot box, but a coming together of the People in specially convened assemblies. To this it must still be added, that a similar phenomenon occurred, and had to occur, when the Pilgrim Fathers and other exiles from England landed in America and united there. Although under Jefferson the ideas of the French Revolutionaries also crept in here, yet neither Jefferson, nor after him Hamilton and Washington, retained the leadership, and these two stood sharply opposed to Rousseau's Contrat Social. But although this was so, it could not be otherwise, or the settling of a still very small number of exiles in a mostly wild region, would have led them to hold assemblies of all who settled in the same neighborhood, and in these assemblies not through representatives, but themselves to take care of their common public interests. Decidedly democratic was thus also here the starting point, but without there being initially even dreamed of a Contrat Social. Before one deliberated, one prayed. Even once in a while one knelt down together.

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347 REPRESENTATION WAS DEMANDED.

## §30. Representation was demanded.

This self-assembling of the People gradually became unusable for two reasons. The first was the expansion of the population, soon followed by a greater concentration of a larger population in the cities, and the second cause arose in the more general interests that came to the fore. As long as one had to deal here

exclusively with rural hamlets and villages, under a predominantly male population of only a few hundred persons, it was still very well possible to assemble together, deliberate together and decide together. But when, on the contrary, the population in a place began to produce some thousands of persons entitled to speak, this was no longer possible, and then the obvious custom naturally came into use, that the too many let themselves be represented by a smaller number; and so one then spontaneously obtained representative bodies in Council or State. And this was all the more necessary because of what was stated in the second place, namely, that one no longer had to reckon only with the village housing, but also with the common interests of a group of villages or hamlets in the same district or province, and furthermore had a share in the care of the interests of an entire People. This goal could not be achieved in large popular assemblies of 50 to 60,000 persons, and therefore one had to resort to elections to appoint a much smaller number of representatives, who would take care of all common interests. It is true that we read in the history of Israel that either a prophet like Samuel or shortly afterwards a Prince summoned the whole People together, but this may not now be understood as if all persons from all tribes flocked together. Such gatherings were popular assemblies, just as the Germans later also knew them, so that one no longer came together with all and sundry, but that the persons entitled to vote in a certain district or province elected from among themselves a smaller number of representatives.

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THE STATES-GENERAL. Persons of significance who had to bear responsibility, gathered on a square or in a forest to unite around their King as their supreme commander. Even Moses had, by God's command, appointed seventy elders to assist him in the regulation of public affairs, even in matters of legal practice.

## §31. Historical Development.

This transition now from the original popular assemblies to the representative system did not everywhere come about by choice. That the patriarchate, or even the matriarchate, still had an effect in Israel, and on a very broad scale elsewhere, has already been recalled above; but our history no longer shows any traces of this, as other representative motives were at work among us. A powerful man who, at the end of the Middle Ages, drew an entire region to himself or conquered it, and gave the peasants a piece of his land, was automatically considered the lord of the village, the man who stood up for the village. Alongside this, the clergy steadily gained more representative influence. The cities later came to the Prince as independent creditors. And the industrialists and merchants, who, though still on a very small scale, were spread all over the country, had already long since demanded what one would have thought, certainly Huisman's suffrage. So the estates of Nobility, Clergy and Burghers gradually and as a matter of course came into being, and it

was on these three that the common cause drove century after century, until the first blooming cities brought a breach. Yet the transition to a more personal suffrage, bound only to external characteristics, was not carried through for the whole country until later. In the Constitution of 1815, Article 80 reserved the right to the King to appoint the members of the First Chamber for life, and the members of the Second Chamber were appointed by the Provincial Estates. And if one now asks how the Provincial Estates were then elected, Article 129 gives the answer, that they were elected by the following three estates: 1° the Nobles or Knighthoods, 2° the cities, and 3° the rural estate. The distribution of these seats among these three estates was left to the King by Article 130, and the method of appointing the representatives of these three estates was also entrusted to the Prince in the main.

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HISTORICAL DEVELOPMENT. - MONEY GAVE THE DECISIVE VOTE. 349 Only for the cities did Article 134 already provide a tax minimum for the choice of the so-called Electoral Colleges. For the rural choice, finally, Article 134 divided each province into districts, without the Constitution giving any further regulation for this. Enough to make one feel how little the People came into their own even in 1815, now just a century ago. It was rather as if everything had been arranged to obtain Colleges, under the semblance of popular representation, on whose composition the People in its more general meaning could not exert any influence worth the name. A States-General in two Chambers, the one entirely appointed by the King, and the other elected by the Provincial Estates, who themselves (except only the cities and even those only partially) came into office outside the People. The one fitted the other as anti-democratically as possible, and therefore as anti-Calvinistically as possible.

## §32. Money Gave the Decisive Vote.

So it remained until Thorbecke in 1848 cleared away everything that still had a medieval aftertaste, and made money the sole fulcrum of the representative system. Article 76 of the Constitution promulgated that year tied the suffrage for the Second Chamber, and likewise Article 123 the suffrage for the Provincial Estates, “to the payment of a sum in direct taxes, corresponding to the local situation,” ranging from ƒ20 to ƒ160. The Electoral Law provided for the proper implementation of these provisions, and did so in such an indicative anti-democratic direction that the census of ƒ24 in many Frisian municipalities was calculated to favor only a few Liberals. A proposal from the Anti-Revolutionary side, made to reduce this amount, also met with the most vehement opposition from the Liberal side in the Second Chamber, even as late as 1875. Especially in Sneek this gave the most outrageous injustice, just as after 1887, in the new edition of what is

now Article 80, in a way that allowed no contradiction, it appeared from the figures on the Liberal and Anti-Revolutionary candidates.

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THE STATES-GENERAL. The convergence on the Census of the entire suffrage question could not surprise the times. With Louis Philippe in France, an official period was ushered in, in which a break was made with all other distinctions, and the money power alone gradually distinguished between citizens and citizens. These thoughts also began to prevail among the Dutch statesmen, even though it is possible that Thorbecke himself had this Mammon service less in mind at the ballot box. Yet it cannot be denied that another intention can preside over the Census. In itself, the thought of paying more in proportion to what one enjoys more from the Government is not an impossible one. A Government, even a Municipal Council, acts to serve the interests of the citizenry. Of what the Government does on this account, one citizen draws much more profit than another. What then would be unfair in letting the less enjoying pay less, but also the more enjoying pay more? Now that what the Government brought about in favor of the subjects required legislative decisions, it seemed desirable to give the preponderance in this decision to those who enabled the Government to do this through their payment of higher taxes. Tax then became the payment sum of what the Government did for their benefit. A less endowed person, who did no business, merely occupied a couple of rooms in a back alley, and had nothing else to lose, hardly enjoyed any profit from all that the Government brought about through its grand measures; but it was quite different for him who needed canals and landing stages for his ships, constant guarding of his wealth, and the opening of roads for his trade and industry. For many, then, no other thought underlay this financial suffrage than that the more the Government did for the benefit of the citizen, that citizen should also pay more of his means to the Government, but that he who contributed the most to the Government should also have the authority to see to it that the Government spent this money properly.

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ANOTHER INTENTION. - OUR PROTEST AGAINST THE CENSUS.

## §34. Our protest against the Census.

Yet this privilege of money has not held its ground, and already in 1878, that is, thirty years after the introduction of this privilege, Article II of the Anti-Revolutionary Program contained a protest against it, which read as follows: “In order that the States-General may be rooted in the nation, not merely represent

the people in name, and in their composition no longer constitute an infringement of the rights of the minorities; the Anti-Revolutionary Party demands the introduction of another electoral system; and as a preparation for this, a lowering of the Census." Further, one could not yet go at that time. At least not in its program. Article 139 of the Constitution had determined in 1848 that the Census for the Municipal Councils should only be half the Census for the States-General and Provincial. As a result, we were in possession of fixed figures to judge to what result even a halving of the Census would lead. And when it then appeared from these figures how unfairly the Anti-Revolutionaries had been left behind in the matter of the States-General, it was obvious that our first effort was to promote a reduction of the Census figure. From the Liberal side, one constantly tried to keep the high figure above 20 guilders of Article 76. Our endeavor was therefore directed to lowering it as much as possible to the 20 guilders. This has also helped, albeit very partially, and was not without influence on the realization of the revision of Article 76 in 1887. For in that year the Census fell, and we received as a condition of the suffrage in Article 80 "the marks of fitness and social well-being to be determined by the Electoral Law," on which Mr. van Houten later tried his electoral system. These so-called "marks" were undoubtedly, compared to the Census as the only standard, an improvement. The formula: "You, Government, do this for my benefit, now I pay you so and so much a year to your collector," was now replaced by the foregrounding of the person. One now only wanted to know which citizens were fit and which were not fit to vote, and then there was also "social well-being," but this aimed more at his free

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The States-General sought independence as individuals, not to be made the playthings of others financially, and also to sort out those who possessed the lowest political ideas, or to determine who could be considered to have sufficient social development to possess the most votes. Yet, and this already foretold its failure, the amount paid in taxes still spoke in a very significant way, if not directly, and therein lay the self-evident reason that discontent in the country persisted, even among us. When it came to the implementation of Art. 80, the Anti-Revolutionary Party had to hold more to the line of Van Poortvliet, and resisted the implementation that Van Houten drove through.

## §35. The entire People as a People must speak.

The search continued for a representation, but always for one that would truly represent the People as a whole and not just an upper stratum. Naturally, the men of the Left increasingly and more unanimously grasped at the so-called Universal Suffrage. Yet it always proved that by means of such an electoral system, a representation of the entire People, not even remotely, was attainable. The data for Germany may serve as

an example here. According to the Statistical Yearbook of 1911, the latest in which this subject was treated, page 302 gave the total population of Germany as 60,641,300 souls, and yet in that same year the number of voters was no more than 13,354,900. So something more than a fifth of the population. Nearly four-fifths, or in any case more than three-quarters of the population, remained unrepresented. For it was established that each voter acted on his own behalf, representing no one else but himself. With an individualistic electoral system, one would never, however broadly conceived, come to anything other than a very fractional representation of the Dutch People. According to the latest population figures of 1910 (see Annual Figures p. 7), our population in 1909 showed a figure of

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NUMERICAL RATIO IN THE ORGANIC SYSTEM. 35,858,175 souls. Of these, 49.9% were of the male sex; that is, 2,899,125. Even if the right to vote were made available at the age of 20, still 1,300,740 persons would have to be deducted from the total as too young. Only 1,598,385 male persons would thus, in the most favorable calculation, come into consideration with us for the right to vote. If one now subtracts the non-valeurs, at least in excluding the destitute, one will not retain much more than 1,300,000 persons available for the right to vote, i.e., still something less than a quarter of the population. Naturally, if one also admitted women to the ballot box, this figure would be more than doubled; but even if one went over to this, one could still never arrive at a representation of the entire People; at most, then two-fifths would be represented. The Universal Suffrage for both sexes also always stumbles on the age limit, and, since it is individual in nature, can never let the non-voting half be represented by the half that votes. For all individual suffrage lacks the element of representation of the one by the other. It is mainly and personally and remains in its effect limited to him who desires it.

## §36. Numerical ratio in the organic system.

The ratio stands quite differently, however, if one takes into account the People as an organic whole. It is one that consists of two sexes and perpetuates itself by birth. Now the primordial formation of the People is given in the Family. As Da Costa expressed it, “a heap of souls on a piece of ground” is neither Nation nor People. The fabric for the unity of the people first takes shape in the Family. For in a Family one does not deal with loose and self-standing individuals, but with persons who stand in organic connection with one another. Between these mutually bound persons, fixed relationships exist, which the Higher Ordinance has thus regulated. There is the father and the mother, there are the children, and the latter are brothers and sisters to one another. This family bond brings with it duties with regard to the Family members. Hence the joining together under one Head, who as such is called upon in all civil disputes

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354 THE STATES-GENERAL. To come to the aid of the members, to protect them in their capacity as Heads of Households, and to represent them as needed. The representation of the one by the other, which on an individualistic standpoint can never be anything but nominal and arbitrary, here naturally arises from the organic connection. Give the Head of the Household, in his capacity as such, the right to vote for the States-General, and in him the whole of his Household is represented. According to the annual figures on page 4, in 1909 there were no more than 125,475 persons living separately on their own, and the entire remaining population was divided into 1,181,063 households, i.e., nearly precisely five persons per household. For precisely five, the population, after deducting the separately living persons, should have amounted to 5,779,840, and in 1909 it was only 5,732,700. If, therefore, a general right to vote were introduced by summoning the Heads of Households, then already in this way five and three-quarter million inhabitants would be represented, and not as a mere sum of individuals, but as living in national-organic connection, i.e., as a People. Only a very small part of the People would then fall outside. If, in addition to the Heads of Households, the right to vote were also granted, in connection with social life, to everyone who had gained an independent position in Society and acquired a self-sustaining existence, then in this way a representation of the genuine People would be obtained, which would in fact shield and stand up for its rights and freedoms almost as well as the entire People.

In the Note to Her Majesty the Queen, dated May 13, 1912, which I appended to the Report on the Constitutional Revision, I gave the same argument; only a bit more elaborately. As then, so now my conclusion must remain, that the General Right to Vote leaves nearly three-quarters of our People unrepresented, and that for this reason in the Household Suffrage, which, with the exception of one-twentieth, represents the entire People, a much richer democratic idea speaks, and the national character of the States-General comes to its incomparably better right.

## §37. Restore the good money.

However fierce the struggle had been, especially from the Socialist

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AGAINST THE GOOD MONEY. 355 On the one hand, as long as the traces of capitalism were bound to the terrain of the Franchise, it did not last long before all who were involved could discern how, now more and more, precisely from the Socialist side, pressure was being exerted to sharply define financial objectives. In

the struggle against capitalism, it had gone against an overly empowered right that the men of possession derived from their capital; now the reverse was true—a zeal for Universal Suffrage, in order to thereby gain power, and to divert no small part of the capital of the possessors towards those who were needy or at least less endowed in their lot in life. Increasingly, the striving and intention emerged to raise salaries, stipends, and wages, beyond and in addition to pensions, until the balance between those who had to pay more in taxes and those who had to expect more financial income from the increased tax burden, wavered in pure equilibrium. As long as only the Socialists pursued this goal, there was no danger in it. But gradually, their visions of higher salaries, higher wages, and higher positions served to move not an insignificant number of voters who felt more antipathy than sympathy for the system of Marx, to cast their vote for the Socialist Candidate. This naturally resulted in a loss of votes for the Liberal-Democrats, and thus it explains how they too, gradually, out of a desire for self-preservation, allied themselves with the struggle for higher taxation, in order to be able to meet the demands for higher salaries, wages, and pensions, in the name of their own party. This higher taxation to be able to distribute generously, naturally took on a social character in a general sense; something that led to this very stark contrast, that at the polling booth each voter appeared as an atomic individual, but shortly thereafter in the State's Housekeeping the entire people were considered as if one firm, which actually had the disposal over the collective capital that the individual members of the community had managed to acquire. That Government would now be governed in its actions and omissions by the parliamentary members coming from the more affluent; but under the inspiration and pressure of those parliamentary members, the expenditures for the benefit of their socially lower-standing fellow-believers would be prioritized, and the government would know how to obtain the necessary funds by levying them from the great treasure-keepers.

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THE STATES-GENERAL. This was a bitter disappointment in the execution of the grand plan, for it became increasingly clear how even the less well-off had to pay dearly, but what remained was the victorious dominance of the idea that the State, according to the demands of the interests of all the less well-off, could freely dispose of the capital or income present in the country in the form of taxes or levies.

## §38. In three domains.

This social fermentation even worked in three domains: in the Municipal Councils, in the Provincial States, and in the States-General. What had thus brought a certain limit to the grasping and at least a certain moderation in the levying, was the control of the Provincial Executive and partly of the First Chamber, but it became increasingly clear that there was a tendency to weaken this control in every possible way, and then,

though in reverse order, the former regular manner of the well-to-do ran out on the new regular manner of the less well-to-do. If one accepts the system that the State must provide for all needs in every emergency, and may take the necessary money for this entirely at its own discretion wherever it is to be found, then for the second time the money question becomes the decisive factor and governs the whole of politics. As long as society is divided into two parts, of which the one disposes of everything, while the other receives no more than a—x, this financial struggle cannot come to rest until both parts, as far as the financial position is concerned, have been brought into equilibrium. Of course, no one outside the Socialist circle intends this to continue in a straight line. But the question remains: Will this come to an end? And will the pressure among the less well-off, who are the majority, not ultimately prove irresistible? A State that proceeds to direct distribution, not as an exception but as a fixed rule, like the proposed State pension of Mr. Treub, has lost its power over the rudder of the ship; and drifts with the winds, with those winds. And yet this is still only the beginning of the matter. It is only in Socialism that this system finds its final form. For then the household becomes like one mighty national association that swallows up all the individual self-sufficiency that was once guaranteed.

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IN THREE DOMAINS. - WOMEN'S SUFFRAGE. 357

In the insurance system, the contribution covers the costs, in the State pension the State is the distributor. And it is precisely this distribution that, once ripened as a principle, will continue to penetrate further and grasp more broadly. The distribution will become ever younger, ever milder, ever freer, and there will be no more talk of control.

## §39. Women's suffrage.

On our part, there can be no talk of excluding women from all involvement for the benefit of what is called "the community." From 1 Tim. V:9 ff. it appears that this was condemned from the outset in Christ's Church. Also in Jesus' immediate environment, it is women who take on this serious task of securing an economic existence, without their own home, for the Savior, and at the open grave their role has also been an important one. The Apostle of Tarsus in particular repeatedly points to various women who held a position of significance in the church life. And in no case can it be said that Scripture shuts up the woman, as it were, entirely within her own family. Miriam, the sister of Aaron, and Deborah, from the time of the Judges, were women of far-reaching influence. And even in our own day, there would be a deficiency in social life if no women offered themselves for education, for hospitals, for the Red Cross, and so much more. One must

even go further. Also in public administration, where particularly the interests of women and children are at stake, it has always proved very desirable to seek advice and guidance from the female side, and it would certainly not be a loss, but a gain for public life, if what was intended with the office of the Deaconesses in the early Christian Church were also followed up officially. Already in the Child Welfare laws this proved to be impossible among us, and in all that has an educational, guiding and caring character in matters which also have the woman and the child as their task, it has proved more and more desirable to have female assistance at one's disposal as well. What we so sorely need is a return to the old Diaconate, if you will, in Church and State alike.

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THE STATES-GENERAL. In a study that appeared in 1914 at my publisher Kok in Kampen, under the title: The Honorable Position of Woman, I have sufficiently elucidated this theme, so that I will be allowed to refer to it now. Gifts and talents have been bestowed upon the woman, which fade and impoverish if she withdraws from her own peculiar terrain, on the domain of the man, the man tries to imitate. On her own terrain, far the greater part of the man, she will always appear the lesser on the terrain of the man.

## §40. State of Strength and Weakness.

There are two phenomena in life: the one of full power, the other in weakness. This latter can have three causes: first, that the person is still a child and has not yet grown up to adulthood; the second, that the person is sick; and the third, that he lost his father before he came of age. In each of these three cases, the woman appears as the natural caretaker: as a mother with her child, as a nurse with the sick, and as a substitute father with the orphan; and in each of these three case-positions, the regiment is with her. On the other hand, when dealing with the adult person, with the normally healthy person, and with a household that still possesses its father, the regiment does not rest with the woman, but with the man, and this by virtue of the fact that the man, as a rule, is the stronger in physical strength, in mental power, in willpower and in readiness to act. According to this self-evident rule, it then also becomes clear in what and to what extent the leadership belongs to the woman, and where not. From this it follows that there can be no question of active or passive suffrage for the States-General for the woman; nor for the Provincial States; and as for municipal administration, she may well be called upon to perform various functions, but not in the government itself. This also remains the case in the ecclesiastical domain. The government of the Church is with the Elders, teaching or ruling, and the woman can only appear as a deaconess in the Diaconate, since the Diaconate is not part of the church government, but only of the ecclesiastical care. This

does not mean, however, that the Anti-Revolutionary Party will always succeed in permanently opposing the introduction of active and passive suffrage.

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STATE OF STRENGTH AND WEAKNESS. - THE WOMAN IN OFFICE. Even then, it will be able to exert influence on the way this will happen. And then it should be clear that on our part there should be no petty quibbling, but that on that occasion we should insist on the broadest possible conception. If the atomist succeeds in establishing the purely individualistic system as undisputed rule, then it is precisely in this atomistic system that the woman should not pass over the electoral terrain as an exception, but as a rule. If the woman has to appear on an equal footing with the man, then let it be so: all women alongside almost all men. Not what is now intended: alongside all men some women; the married as well as the unmarried. And this not as if our conviction did not in principle exclude all female voters, both active and passive, but because, if this were to have no other effect than to make the unbelieving or unbelieving woman vote, and to prefer the woman who has turned to Liberalism or has already gone over, then this would be an undesirable effect. The position that the widow occupies in this is of course entirely separate. If her husband passed away, she automatically takes on the role of head of the household, and in this capacity, too, she must fulfill her duty at the ballot box, just like the male heads of households, either by appearing in person or by obtaining the right to transfer the powers granted to her to a man.

## §41. The Woman in Office.

Of a completely different nature is the question whether the woman is inclined to take up all kinds of positions; as a doctor, as a lawyer, as a clerk, as the head of a business, and so on. The answer to this is that in a regular state, i.e., if marriage for young men and women is the rule, the family life makes it desirable to relieve the woman as much as possible from other service in private and public life. That the woman in the lower classes of the people so often has to hand over her family cares to others in order to help provide for the necessities of life is a deeply regrettable situation. That the woman in her family can also produce marketable goods with the needle or the loom is presented to us in the image that

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The States-General—King Lemuel in Proverbs 31:10–31 portrayed the “virtuous housewife” in an attractive manner. The condemnation of all domestic industry, as is now the order of the day, certainly has its dubious side. Not only does household production kill the woman, but the deplorable abuse that the powerful

shopkeeper makes of it cries out for vengeance. It remains highly necessary, therefore, that stricter control here ward off the abuse, and that all direct relationship between the one who orders and the one who delivers be under supervision. And as for the unmarried woman, it goes without saying that for the young daughter who can no longer lean on parental care and does not possess enough of her own capital, the things to which she may aspire are self-evident. So she will strive to become a governess and teacher, a nurse and midwife, a maid and seamstress. But this cannot remain the case, at least not if the extravagance and immoral practices of men continually increase the number of young women who cannot marry. Even in earlier years, when marriage was the rule for all, there was already a certain need for the woman who was about to marry, but for the moment still stood on her own, to provide for her own necessities. But now the number of young women who either do not marry at all or do not marry at all is, at the very least, quadrupled. Not so much in the lower classes of society, but very certainly in the higher classes. The man then shrinks from the expensive household that would force him to content himself with a less fine cigar or a less fine suit of clothes, and immoral mistresses or public women offer themselves to lead such respectable men into sin, which they now miss due to the lack of marriage. The deficiency in moral conception comes from both sides. The young woman is too eager for luxury and adornment, and nourishes too little the strict conception of the relationship between the two sexes that in England is called flirtation. The young man, on his part, misses the luxurious freedom that the quiet family life cannot offer him. And the upbringing of both has deprived them of that stricter conception of social life that naturally directed itself to marriage. The consequence of this is that the throng of unmarried young women continually expands. The male sex is already less and less

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THE WOMAN'S CALLING - PUNISHMENT FOR NEGLECTING TO VOTE The number of representatives is still less than the female sex. But this difference is further increased by the less healthy life of the man, and in years as we now struggle through, by the tens of thousands of those enlisted in the Navy and Army who are killed and wounded. Now it would be highly unjust, in such a state of affairs, to want to deny women the right, by seeking all kinds of offices and occupations, to strengthen their social position. The contradiction here is, however, that the competition they thereby inflict on the young men whose places they take, further diminishes marriages. Here speaks a consequence of the social decadence that punishes itself in every way. Only a return to a more religious, more ethical, more earnest and more simple life could bring salvation, and the possibility at least exists that the social disruption that awaits us as a result of the world war can work this better end. In the first Explanation of Our Program in 1878, I have added a brief exposition under the title: Anti-revolutionary also in Your Household. You will find this study printed after Our Program, in the 5th edition on pages 410–476. Let me be permitted to refer to this also for the Women's

Question. Finally, the otherwise superfluous remark suffices here, how it is so ordained from on High, that even among women writers there are those who are of significance; that poetesses have arisen among them who are beloved by the people; and that in the musical and other artistic fields, the woman still constantly produces something excellent that bears a distinctive stamp and could not have been given to us by any man. These, however, are exceptions, by which the general rule for the life of women must never be judged. By wanting to masculinize the common woman, one robs our human existence of a wealth of life of its own kind, which the feminization of the man can never make up for. The effemination and enervation of the manly is a second bankruptcy that the denaturalization of the woman drags in its wake.

## §42. Punishment for Neglecting to Vote.

In the Government's proposals for a constitutional revision, which were recently...

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The States-General, as the last member of Article 80, proposed: "The obligation to make use of the right to vote can be imposed by law." For the time being (i.e., in the then-current draft that has since been amended), compulsory voting was not yet introduced, but it was intended to make the introduction of it possible by ordinary law. Here too, an important subject came up in the political struggle. Dr. Hermann Rehm, professor at Strasbourg, stated in his latest work: Germany's Political Parties (1912) on page 130, the dispute that arose here so accurately, when he distinguished between two kinds of political aims: On the one hand, the desire to stand up for the rights of the people, and on the other hand, to strengthen the power of the government, and with a view to this, he stated firmly that whoever wishes to plead for the rights of the people must oppose compulsory voting, but that, conversely, whoever wants above all to strengthen the power of the government can find a welcome means to achieve his goal. History also teaches that compulsory voting had already been introduced at an early stage in some of the American colonies of the British Empire, in order to hold them more firmly in hand. This was particularly the case with Delaware, Virginia and Maryland. However, as soon as these colonies had not yet come to independence and become free states, they abolished this power instrument that no longer fitted their new existence, and left the voters free. And so in America one still stands so firmly on this point, that when in 1889 in Kansas City, a city in Missouri, the absence from the ballot box was to be punished with a fine of two dollars, the Supreme Court did not uphold this decision as contrary to the Constitution. Free America has always resisted coercive measures, and this despite the fact that in some cities the number of voters who turned up for municipal elections had sometimes even fallen to 30 percent. Ostrogorski, in his La Démocratie et l'Organisation politique, 1903 II 340, also notes that this unwavering adherence to the law of freedom

speaks all the more strongly in America, since here, more than in Europe, the well-to-do in particular deliberately keep themselves away from the ballot box. He points to a voter who boasted that he could testify: “I am proud to say, I have not voted for twenty years, and I have made a vow never to vote again!”

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THE REPORT OF 1910 - COMPULSORY VOTING. 363

Also in the report of the Revision Commission of 1910, compulsory voting came up to the extent that the introduction of compulsory voting would be a measure that could only come up for consideration after the acceptance of Proportional Representation. Compulsory voting was only judged favorably to the extent that its introduction could put an end to “some less praiseworthy voting practices.” In particular, Mr. G.W. van der Feltz urged in his Note appended to the Report the combination of these two thoughts, but apparently based on a view that does not fit our constitutional law. This becomes clear from his speaking not of popular representation, but of representation of the State (see p. 12). He apparently regards the elections in the State, Province and Municipality as all three leading not to representation of the People in Parliament, in the States and in the Municipal Council, but as representation, literally as it stands, of the State, of the Province, of the Municipality, a system that our constitutional law does not know. In the Provincial States and in the Municipal Councils, administrative bodies appear, while in the States-General the representatives of the People appear precisely to control the administration and to speak and decide in defense of the rights and freedoms of the People.

## §44. Compulsory Voting.

Compulsory voting has thus found much less favor abroad. Belgium and Switzerland were mainly the two small states that first brought this new electoral device to broader discussion. It is since then that one has become more accurately aware of the significance that this electoral artifice can have. Especially in America, where the right to vote is so highly valued, compulsory voting has always been rejected with great determination.

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imprisonment, and so it was here in our land as well, with its supporters and opponents. What the fundamental dispute was in this case is self-evident. Whoever descended from the State-idea to the People

was in favor of it, and whoever, conversely, ascended from the People-idea to the State, set themselves against it. The modern State-idea tends to see the People's representation as nothing more than a self-offering aid to smoothly run the State machinery, if I may so express it. If the People are still underdeveloped, they can also remain politically immature, and the State authority can do everything that needs to be regulated by itself. On the other hand, if a certain political development has come to fruition, it can be more profitable for the State to invoke the cooperation and support of a People's representation. Now, if a Parliament enters this line of thought, it can only serve as an aid to the State authority, and this State authority itself has to determine in what way, to what extent and in what form it wishes to use this support. The Parliament is then not an institution to defend the rights and freedoms of the People against the State authority if necessary, but an aid that the State authority itself desires and calls into being, to support it. From this it follows naturally that if the State authority declares by law that it needs this support, the voters are then also obliged to provide this support, and that whoever as a voter stays at home, withholds from the State what it needs, does not respond to the purpose for which he was made a voter, and thus falls short in fulfilling an obligation placed upon him. And hence the action of the State against the negligent and duty-forgetful voter, so that it is the State that then punishes this neglect of duty, and tries to prevent this by the threat of punishment.

## §45. The modern State doctrine and this.

Whoever is devoted to this modern State doctrine, does not yet need to introduce compulsory voting, but is nevertheless fully justified according to its starting point. Just as with military service, the State can then also impose compulsory voting on citizens for the electoral campaign, and punish them for neglect of duty. But directly opposite to this stands the regulation in the electoral field, which arises from the respect for the rights and freedoms of the People, as being the inherent competence of this People. Then the State authority has to negotiate with the representatives of the free People, and there can be no talk of a duty covered by punishment to go to the ballot box. Well, of course, in a moral sense, insofar as someone who stays at home neglects to cooperate in maintaining the proper course of state policy, but not legally. Whoever has the right of intervention in any matter whatsoever, leaves this right unused as long and as often as he himself thinks that it will also go well without his intervention. Formally, it is then up to him to decide whether at a given moment he will consider any intervention on his part superfluous and avoid wasting time.

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THE MODERN STATE DOCTRINE AND THIS. - THE CALVINISTIC STANDPOINT.365From a right of this nature, insofar as it is perceived not as a favor granted to him, but as inherent in his free position, a duty

threatened with punishment can never, not even with the semblance of logical consequence, be derived.

## §46. The Calvinistic standpoint.

The Calvinist is therefore already offended by the very idea of compulsory voting. For it proceeds from the for him unacceptable thought that the right to vote would be a gift granted to him by the State, which it could withhold from him and which it could bestow upon him, depending on whether the State authority deemed it advisable. Of course, the distinction in degrees according to the degree of development also applies here. A People who are still children cannot yet exercise their innate rights themselves, and thus stand either under parental care or under guardianship. But as the child grows up to be a man, the man exercises his rights himself, not because father or guardian now offer them to him as a gift, but because they now belong to him. Formally, this of course happens by way of legislation. He cannot take his right to participate in the electoral process himself, as one entitled to it. But this only concerns the form of entering into his rights that belong to him. The form does not bind the principle. Even if the percentage of voters who show up were to drop far below half, there would still be no question of their having forfeited their right.

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It is not permissible to deprive a municipality or district of the right to vote for a certain period, if not at the price of being placed on the list. But to compel complete turnout by threat of punishment is in irreconcilable conflict with the very principle of representative government of the people. This is felt all the more when one compares the voters who always turn out with the many who stay at home and especially the never-voting citizens, in terms of their moral value for the politics of the country. Those who come out of themselves, or under the encouragement of their organization, participate in politics; the stay-at-homes, on the other hand, who are almost never present, have no heart for it and know nothing about it. How could it ever be according to reason and right that the decision over the politics of your country should be placed in the hands of these citizens who are so politically indifferent, merely by means of compulsion under threat of punishment? And yet this would be the outcome, especially for us. For the parties of Right and Left often stand so nearly equal in the electoral figures, that compulsory voting and a new number of indifferent voters at the ballot box would easily surpass the figure of the difference between Right and Left. The final decision would thus in fact be placed in the hands of those who had forfeited all right to have a say in politics. It could happen that the groups of the Right would attract a greater number of these politically indifferent ones than the groups of the Left, and this alone explains why compulsory voting has sometimes even found supporters among the advocates of the Right; but to go by this would become a hunt for success,

in which the principle might well be betrayed. We could therefore not recommend cooperation in the introduction of punishment for failure to vote.

## §47. The Electoral System for the Provincial States.

Once the so-called Universal Suffrage has gained ground, no more difference can be conceived between the right to vote for the States-General and the States of the Province. The only distinction that strikes us here is that the division of the electoral districts is not the same for both elections. This is in the first place

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VOTING WISELY FOR THE PROVINCIAL STATES. 367 This is due to the fact that the districting for the Second Chamber has been shifted across the boundaries of the Provinces, and secondly, that for the Provincial States the rural population takes more of a leading role than in the largest cities. Not that their interests would be systematically taken into account. For that, too much power has been taken away from the Provincial States out of a kind of jealousy. In between, the regulation of roads and canals was left mainly to the States, and since this subject is of such high importance for the rural population, it is quite understandable that the districting that still largely applies to the Provincial States has a modified character. And this all the more so, since in the elections for the Provincial States there was hardly ever any mention of a distinct program by the various parties. Especially in the last half-century, a distinct provincial program has fallen away with almost all parties. In one province, for example in Groningen, this was often different, but in general it cannot be denied that since the seventies of the previous century, the elections for the Provincial States have been almost entirely dominated by the choice of members for the First Chamber entrusted to the Provincial States. This has led to the fact that in the choice for the Provincial States one almost solely asked oneself how one could best combine and on what candidate the association should focus in order to bring a member into the First Chamber, from whom it might be expected that he, in general, would profess one principle. Of course, it would be most desirable if the organic integration of the various provincial expressions of life also governed the electoral law for the Provincial States. If agriculture, industry, shipping, and so on could generally bring their representation into the States, it would give the States an entirely new life and do much better justice to the care of the social condition than is now the case. As long as this remains excluded, and the First Chamber is chosen by our States, we will remain in the same quagmire in which we have been struggling for half a century. It has been suggested whether the members of the States of all the Provinces together, as in one electoral college, could not provide the members of the First Chamber, but this at least seems

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THE STATES-GENERAL. For now, not to proceed. Adding up our provincial colleges, we count 590 members. Now they wanted these almost 600 members to cooperate in the election of members for the First Chamber; the consequence of which could easily be that a majority of 291 electors formed themselves from all the Provinces, causing the First Chamber to consist entirely of one identical political direction, so that the minority would be completely excluded. Others then tried to introduce more proportion in the joint election. It can be maintained with certainty, that, if the atomistic system also remains valid for the Provincial States, election per province is the only tolerable one. There will then still be indirect elections, but the difference between North Holland and Gelderland, for example, or also between Drenthe and Utrecht, will remain strong enough to offer a chance to both main directions, taken over the whole country. Only Proportional Representation could also provide help here.

## §48. MUNICIPAL COUNCILS.

As for the Municipalities, not all chance has yet been cut off to lay more emphasis on their autonomy. We have already indicated how absolutely necessary it was not to lump together the Municipal Councils in our large cities and villages. It may well prove desirable to divide the Municipalities, as regards their administration and the choice of the citizens who will acquire the right of co-decision, for example into four categories. But then, as far as the large Municipalities of the first or highest class are concerned, it must be closely examined whether there will also be self-control of the citizenry, or whether the control against abuse and mismanagement will have to come exclusively from the higher Authorities. If one follows the system that has also been introduced here from the time of the French Revolution, one comes to an autonomy that is little more than mere appearance, with, on the other hand, a central control from above, which in fact leads the administration of the Municipalities to the Central Government of Home Affairs, via the Provincial Delegates. If one now rejects this un-Dutch system and returns to an autonomous municipal life, then naturally the control of the Central Government must only occupy a modest place, and self-government must be so arranged that one can leave it to itself without fear of confusion or injustice. But then, and this is what matters here, in the administrative regulation of the Municipalities of the first class, the indispensable control must also be able to arise from the Municipalities themselves. The Municipalities are then not pieces or parts of the country, but independent political appearances, which must possess both elements within themselves, the element of Administration and the element of control over this Administration, and both, the Administration as well as the Administrative control, must arise from the Municipalities themselves and not be imposed from above. This, however, brings us to the question of

whether the action of a single college in the Municipality can suffice. In the national government, one distinguishes between the Executive power and the Popular control, and in the Popular control one commonly distinguishes, moreover, between a Second and a First Chamber, a Parliament and a Senate. The distinction between Administration and Popular Representation, and in that Popular Representation between a Lower and an Upper House, a Congress and a Senate, or, as with us, between a First and a Second Chamber, is intended to provide a safeguard against reckless, ill-considered actions.

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## §49. LACK OF SELF-CONTROL.

The same need naturally also makes itself felt in the field of the Municipal Council, but there the internal control is completely lacking, as a result of which it is that from above, again and again, warnings must be given and action taken against the evil, and all such control naturally almost completely nullifies the autonomy of the Municipality. Here, therefore, a choice must be made. One must know what one wants. Municipalities as parts of the State, without any noteworthy autonomy, and completely subject to the discipline of the Central Government, or free Municipalities with far-reaching autonomy, but then also with the necessary and indispensable control from their own bosom. In Rome, they had therefore a distinction between Senate and Tribunate. Also in the Italian cities of the 12th and 13th centuries, they created such a

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The States-General split the Colleges and thereby gained control over its own bosom, precisely in order to strengthen the autonomy. Here too, it cannot lead to a sufficient restoration of autonomy, unless a distinction is also made in the Municipality between two Colleges - the one the Municipal administrative powers, and the other that steps forward to exercise criticism and control; both arising from the citizenry.

## §50. The financial question.

We have already pointed out earlier how the financial affairs within the bosom of the Municipality had to lead to such a distinction. If everything remains mixed and intertwined, as it is now, then the choice of the citizenry constantly leads to the composition of a College in which the less well-off form the majority, and such a majority is then naturally inclined to constantly assign more and more to the Municipality for the provision of everything that benefits the inhabitants. The demands placed on a Municipality are constantly growing - of traffic and lighting, of water supply and care of the sick, of public entertainment and poor

relief. An ever-larger part of what was otherwise private life is then transferred to the Municipality, and it collects the necessary money for this by way of taxation. By preference, this taxation is then levied pro rata to what is assumed to be the pure income of the citizens. The percentage to be collected for this is preferably levied in a gradually increasing manner. And if there are now among the Municipalities a great many needy and small people, and on the other hand very few rich manufacturers or prosperous landowners, then it comes down to this, that from the coffers of these fortunate ones, more and more money is drawn to fulfill the wishes of the less well-off. This then logically leads to the less well-off constantly appropriating more and more from the coffers of the more well-off, and the more well-off having to pay out more and more for the benefit of the Municipalities. If there are now landowners, then these gentlemen can escape by selling their land and by moving, and this in itself provides a control that the Municipal Council often shrinks from. This, on the other hand, does not apply so freely to a manufacturer. His business ties him often to remain.

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THE FINANCIAL QUESTION. 37 We now have the control of the Central Administration to prevent excesses in this regard, but just this control carries the evil in itself, that it undermines the autonomy of the Municipality. Hence the desirability, as in the Senate a preservative was created to curb the excesses of Parliament, so also, in the large cities at least, to bring about a split between the members of the administration elected by the citizens and the representation of the inhabitants in that Administration, if necessary in two branches: on the one hand in a College where the tax-payers appear, as elected by the tax-payers, and the other emerging from the entire circle of the inhabitants. Thus alone would, in strict consequence, the so desirable and educating autonomy of the Municipalities be restored to organic power. In the College chosen by all heads of households and free men, then the election of the Mayor could take place, and in the second College, chosen by the taxpayers, then the sitting chairmen or delegates of all kinds of associations in the industrial, social or educational field could sit. The autonomy would then be complete, and the control from above would then only apply to the violation of rights and an active co-living of the citizens could thus develop. Yet such a state of affairs will not be conquered without a hard struggle. The French spirit of centralization, so greatly promoted by our Municipal Act, still works so powerfully. For the lower classes of Municipalities a simpler arrangement would be preferable; but we do not need to express ourselves on this for the time being. Only when the autonomy of the first-class Municipalities has been won, will one also be able to proceed to the liberation of the smaller Municipalities. To what extent Proportional Representation should also be enforced here, at least in the first-mentioned College, is a question that should not be raised until after the experience gained with this proportional system in the elections of the States-General. Hasty application of a completely new system to Colleges of such entirely different nature could later prove to create untenable conditions in practice. Proportional

Representation recommends itself primarily there where party life ‘calls for direct choice, so that the indirect choice does not deprive the minority of its influence twice over. This motive is now completely missing in many, especially smaller, Municipalities, notably in North Brabant, Limburg,

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372 THE STATES-GENERAL. North Holland and Drenthe. It therefore remains a very serious question whether such Proportional Representation would immediately suit the demands of life in so many almost homogeneous Municipalities.

## §51. Supplement.

Separately, the case that is now (i.e. in October 1916) presenting itself should be discussed here, now that we can hardly hope for any more allied cooperation with the entire Right in preparing the struggle for organic Suffrage. This could indeed place us in the most difficult position, that there is no longer any thought of accepting the organic system, and that we are therefore either, as in former days, only concerned with warding off evil, or ultimately had to limit ourselves to tempering. This case position now requires its own explanation, and it is for this reason that we have to add a supplement on the modus quo as a matter of principle. We must be brief here, but we must not fall short in clarity.

## §52. The course of the question.

In the middle of the previous century, Groen van Prinsterer, and so later also our Program, as we have already remarked, could still suffice with a bargaining on the outrageous way in which the Liberal side had applied the property qualification at the time. An own system had not yet been placed by Groen against the liberal system. And although in 1878, at least in our Program, the demand for a different system was clearly expressed, the lines for this better system were still only outlined. The protest was then mainly against the deadly Census for us. And although Groen van Prinsterer later let his protest be heard against any too serious lowering of the Census, yet this resistance also moved within the sphere

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THE COURSE OF THE QUESTION - THE SYSTEM ON TRIAL.

373 of the then prevailing system. Without fear of contradiction, it can also be said that all this previously lamented and occurred belongs to a now completely elapsed period, with which none of us can reckon anymore. What made the Electoral Question so dangerous in our circle in recent years was the event with the draft of Tak van Poortvliet. As everyone still remembers, Tak's proposal did not at all include universal suffrage. Even in his draft, the right to vote remained subject to very serious restrictions. But against this stood the fact that in Tak's proposal, albeit indirectly, the Family was referred to, and that this gave it an undeniable attractiveness for those who, like our party in particular, had always pressed for the Family head and the right to vote as the embodiment of a healthier electoral system. Tak's proposal even favored us in another respect. Not only did it at least partially allow the Family quality to have a say, but it also led to an extension of the right to vote to the lower classes, and could thus lead us to the more Christian-democratic paths in which the promise of the future had always been sought on our side. What then struck so hard was only that the gentlemen De Geer van Jutfaas et al. came out in principle against such a serious extension of the right to vote, already then almost actually separating themselves from us, and, in alliance with the Conservatives under the leadership of Mr. Van Houten, helped to introduce the right to vote that is now in force, which, however, in its effect, increasingly proved to deviate from what the Conservatives, and with them the gentlemen De Geer van Jutfaas et al., had intended in 1894.

## §53. The System on Trial.

This whole course of events had in the meantime the extremely important consequence that the principled difference between the Revolutionary and Anti-Revolutionary System in the matter of representation came into the arena much more strongly than before. The form in which the system advocated by us took on here was the Household Suffrage, and the way was gradually found that not long afterwards the Family Head Suffrage was also accepted by the Roman Catholic State Party, yes, that even a part of the Christian-Historicals began to show sympathy for it. In 1913 it could then be said that in the matter of the Electoral Arena, system was increasingly set against system. The struggle was then no longer mainly about a greater or smaller number of voters, but about the quality from which the right to vote would arise, and about the way in which it would work. At least the draft contained in the Report of Heemskerk's Commission clearly set forth the contrast between the two systems. So one felt, back and forth, that a more principled struggle was at hand. Since the defeat at the ballot box in 1913, however, this initial gain has, extremely regrettably, been lost again. Cort van der Linden, who now took the matter of the new regulation of the right to vote in hand, turned out to have taken a stand with both feet on the revolutionary inheritance. Leaving aside additions on Proportional Representation, Compulsory Voting, Women's Suffrage, etc., what Cort van der Linden proposes is nothing but a continuation of the individualistic drive that has dominated the Electoral

Arena on our side ever since Thorbecke. Also what Cort van der Linden now offers us is pure atomism, and even the weakest attempt to do justice again to the organic connection of the people's parts in the matter of the right to vote remained entirely absent. §54. Two Systems.

The question of more or less voters is not what decides the system. Thorbecke's law shrinks the number of voters to a minimum, while Cort van der Linden wants to expand it as much as possible. The old Heemskerk took a middle position here, and what is now, under Van Houten's leadership, decisive for the ballot, is just as little, if not different, than a middle position between Thorbecke and Cort van der Linden. For with Thorbecke, with the old Heemskerk and with Cort van der Linden, it is and remains the one and the same starting point, fundamentally an entirely identical system, and in this system advocated by these three statesmen, it still invariably manifests itself as a direct outgrowth of the basic idea of the French Revolution. They are the individual citizens who contractually unite to make rights and order flourish in the State. It is and remains the principled system of the Contrat social. For those who are devoted to this system,

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it is and remains the only possible system. But for those who, like us, have broken with the French Revolution and its individualistic starting point, this system is and remains unacceptable.

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TWO-PARTY SYSTEM - THE OLD PROBLEM REMAINED.

There is no people, there are no races, and there are no families. The proponents of this system recognize no organic bond that has arisen from the past. They know nothing but the sum total of individual citizens. And it is these individual persons who come together, who deliberate together, and who appoint representatives together, and in this way the life of the State must seek its progress. This system was taken over from France into the constitution of the Batavian People, just as it was proclaimed from the porticos of our city halls on May 1, 1798. And although the form in which one clothed one's ideas has been continually modified since that time, although that form itself has ultimately been squeezed into the corset of Conservatism and thus become a mockery of the past, yet from 1798 up to 1889, not a trace of any modification whatsoever has been made to the principle.

## §55. The old problem remained.

So we now stand again before exactly the same problem that we faced in 1887. There was an atomistic suffrage, and all that has changed in that suffrage is that it will now undergo a certain expansion once again. Our position on this matter in 1887 was that we had indeed tried to establish an organic suffrage, but that when this did not succeed, we thereafter only asked ourselves whether the less was not to be preferred over the more. As always, we then lent our support in a democratic direction. And so now too we would not break with our past if we first tried to work towards an organic suffrage, but then also, if this did not succeed, and it appeared that we could not, as far as the outcome depended on our vote, always operated further in a democratic direction. Whether the suffrage is general or limited, can never decide the matter for us. For us, the principled antithesis remains only an organic or an individualistic suffrage. The individualistic, and thus atomistic, suffrage, we reject as being in irreconcilable conflict

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376 THE STATES-GENERAL. Departing from our principles, and for the organic Electoral Law, as sealed by the Almighty's governance in the history of the Peoples, we continue to advocate with the utmost earnestness. But it has also become clear again that our powers and influence do not suffice to push through the organic Electoral Law—indeed, that even our allies are almost entirely abandoning the struggle for this organic Electoral Law. We therefore still cling to our starting point, but then, just as in 1875, 1878, and 1887, when the opposing party prevailed, we can persist in championing the democratic principle. In doing so, we do not depart by a single letter from the revolutionary principle that confronts us. Rather, we continue to stand squarely against the system resting upon it, just as we did in 1850, 1875, and 1896. But if we cannot establish our principle, it is certain that it will still end up in an individual Electoral Law, and we are thus ultimately faced with the question of whether this revolutionary-individual, atomistic Electoral Law will be aristocratic, so that the lower classes are pushed back, or democratic, in a healthy sense, so that all parts and members of the demos attain equal rights. As good Calvinists, we then stand diametrically opposed to aristocratic Conservatism, and we plead the cause of the People in all its ranks. It remains as we have always professed. The system of a Personal Electoral Law is no good, but Thorbecke's law suffered from the same fundamental flaw, and the law of the old Heemskerk falls under the same judgment. All these laws rest on the very same false principle, and yet, with all these laws, we as good Anti-revolutionaries have not sought salvation in mere obstructionism by voting against them, but have participated in the voting in order to strengthen the healthy Democratic element. Therefore, our goal-oriented aim must now be one of two things. Either we must find allies who, together with us, want to take up the plea for the organic Electoral Law, and see the possibility of fielding a Representation in new

Chamber elections that will stand in the breach with us for the organic Electoral Law; or, failing that, we must now press for the rejection of the submitted bills, and immediately thereafter bring an organic proposal to the fore. If, on the other hand, it turns out that this is not possible; if it is settled that the indispensable allies for such an operation are lacking

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DRIVE TOWARDS DEFINITIVE REGULATION. 377 not to be found; and in the end it will come down to this, that we will once again, just as three times in the past, only have to decide whether the new Electoral Law will be more Aristocratic-conservative or Democratic in a healthy sense, - then there is no hesitation for us, that we cannot cooperate with the Conservative elements in any case. If it ultimately comes down to a principled struggle, and thus to a choice between the individual or the organic Electoral Law, then we do not yield an inch. But if the parliamentary constellation does not seem to move towards this, and in the end we are also asked to vote on whether our Electoral Law, in any case remaining atomistic, will be limited or broadly conceived, then we will remain what we were from the outset: Christian-democratic even at the Ballot Box.

## §56. Drive towards definitive regulation.

Yet another attitude would of course be possible. If we cannot find any allied help to ultimately plead our case for the organic principle, and it is nevertheless deemed that the giving of our vote to a draft bill now offered cannot be, then one could still ask whether it would not be a demand of our position to simply cast our vote against the draft bill that will soon be put to the vote in the Second and First Chambers, after having lodged a serious protest. This is after all such an important question that it will be desirable that the opinion of our like-minded people on this be clearly and clearly expressed both in the Central Committee and, if possible, also in the Deputies' Meeting. Not that we would then have to vote against it in the Second Chamber and for it in the First Chamber. On such a fundamental issue as the Electoral Law, this would not be a stance for a party that honors its past. Now there is of course much that speaks in favor of it, but not less what speaks against adopting this third attitude. In its favor is that we remain on a purer line; do not take responsibility for what does not accord with our conviction; and can proceed more forcefully with recommending what we deem most desirable. But yet again there is so much practical against it, that neither Groen van Prinsterer nor our former predecessors dared to do it, and that one therefore ultimately always chose the second way. Never has the Electoral dispute been put to the vote so far in the States-General, or the members of the Anti-Revolutionary Party have almost unanimously voted with it, and thus tried to achieve a relative gain through their cooperation, which would otherwise have escaped them.

Principally, after all, all the draft bills on the Electoral Law over which our men have voted in the past have been just as decisively opposed to our principle as what will now be put to the vote for us, and yet the Anti-Revolutionary Party has never before definitively determined to vote against it. It only did this once, and that was when Van Houten's Electoral Law was put to the vote. What this means, therefore, is not that it then voted against it because there was too much, but because there was too little offered. To Tak's draft, which offered more, one could not withhold one's vote.

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378 THE STATES-GENERAL. What, then, has moved us in these years to adopt this somewhat inconsistent attitude? Namely two things. In the first place, that one did not yet see any chance of getting a principled decision in our spirit, so that for the time being it had to remain with the atomistic Electoral Law, and it was therefore all about bringing as favorable provisions as possible for the "little people" into the law with each new regulation. And secondly, that everything that was bargained for the plutocratic character of our Electoral Law promised our release from oppressive bonds. The past would therefore also now urge us to go along with it, if the struggle for the principle offered no prospect of success, and where one has unfortunately already heard too much from the Roman Catholic side about its divergent intentions, there may well be little prospect that we would now be able to count on stronger allied help for the principled struggle than in the past. One sometimes even gets the impression that part of the Roman Catholic press has completely ceased to reckon with the great problem of organic representation. Something that is disappointing, but over which one need not be too surprised. Do not forget that in Germany and Belgium, from where we have still received so much support in the past, the situation has now become much more unfavorable for us.

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The strongest inspiration for Roman Catholic politics in this country has been that the right to vote has been almost entirely established in an atomistic sense for a long time. One cannot completely disregard the great current of general ideas here. The question of the right to vote has come up in almost every country, and has been decided in an atomistic sense, both in America and in our own part of the world. England held out the longest, but England too is gradually giving in, and it will not be long before the personal right to vote, as a right granted to every citizen, also finds its way into the British Empire. Now, of course, we have been very eager to swim against this current in the Netherlands, but both among the Anti-Revolutionaries and among the Roman Catholics here, the question of the right to vote has come up much too late. The great educational problem also constantly pushed this mighty question aside. And unfortunately, it did not

stop there. For when the question of the right to vote has been seriously considered among us since 1875, it has by no means succeeded in placing this electoral problem on the agenda simultaneously and in the same way for all the righteous parties. Yes, what was even more sorrowful, among the Anti-Revolutionaries themselves a certain division soon broke out over this question, and the conservative-aristocratic motive continued to work too strongly in this question. So it ended up in a waste of strength and time, and people imagined that, if the need arose, we would still have plenty of time to realize unity of mind and view, both in our own party and among our allies. But it is precisely here that we are now disappointed. The driving force that constantly pressed the opposing party too strongly for a final solution of the electoral question, has overtaken us. And so a case situation arises in which the Anti-Revolutionary Party, with a view to the future, will have to decide whether, after having never taken a stand before, it now feels strong enough to go against the strong current in isolation.

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# CHAPTER XIII

## JUSTICE.

### §1. The Domain of Jurisprudence.

In the Introduction to this work, on pp. 1–87, the Law in general has been discussed. Here only that law comes up that governs the sphere of Jurisprudence. Now the Government that acts as a judge is by no means the universal or the only and sufficient upholder of the Law. The Law in a universal sense embraces our entire human life, and even partly the life of angels; and this not only for the life they now and then experience here on earth, but for the expression of the self-conscious creaturely life in all spheres. As often as in the self-conscious creature a thought arises, or even a word or an action goes forth, the question immediately arises whether this thought, this word, this deed does or does not correspond to a rule, ordinance or disposition given for it by the Creator. What is in conformity with the will of the Creator is right; what comes into conflict with that will is wrong. But precisely this universal character of the law is the reason why one errs who says that the Sovereign of any country or the judge appointed in that country has to watch over all Law, or would also be the absolute upholder of the Law. The finding, administration and enforcement of the law by the Sovereign or judge on earth can be of a limited nature only; now since the law proceeds from the will of the Creator of all things, God alone is the upholder of the Law in its full extent, and the earthly finder, administrator and enforcer of the Law is only the power appointed by God to assert the Law that is rooted in His will, under certain conditions and in certain relationships. Outside the earthly judge, a threefold law enforcement takes place of itself, which announces itself in the conscience, makes itself felt in suffering and distress, and will one day take vengeance in the final judgment. For the sake of completeness, it must be added that the earthly judge is not the only one who has to do with the law, but that the law also has its own sphere of validity in the life of the family, the church, and other social spheres.

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ADMINISTRATION OF JUSTICE - PUBLIC AND PRIVATE. The absolute Right already found its highest reconciliation on the Cross of Golgotha. But leaving the Cross aside, we then see that the circle of the administration of justice, which the Sovereign exercises on earth, compared to the entire legal sphere, is so small and limited, that the imagination, which not infrequently expresses itself in the conception of the juridical power, as if it were the judge on earth who, by virtue of his own competence or in the name of the

Sovereign, appears in every land and among every people to administer justice, judges itself. This can and may only be done by the Creator and Disposer over all self-conscious creaturely life, and to the judge on earth, who is responsible for the administration of justice, the maintenance of the Law is entrusted only in a very limited circle.

## §2. Public and Private.

Now if this works well, then no one else interferes in it, and it is the father, or in his absence the mother, or also by appointment the older brother or sister, or even by order the teacher or caretaker, who maintains the Law within this small circle. Likewise, it is in private associations or societies, where the members themselves can establish the rules for how things will go, in order to prevent any differences of opinion from being resolved by arbitration or otherwise. On the other hand, for the general society, the Sovereign prescribes, as far as necessary, by law, the regulation of the Law that shall prevail under his sovereignty; with him rests the competence, yes, even stronger, it is his duty to maintain the Law, ordained in that law, against violations and infringements. The reason why his power must be, to punish those guilty of this necessity, and if possible to restore the violated or infringed Law.

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## §3. Defective Character.

Yet this finding, the administration and maintenance of the Law, always exhibits a defective character. The original direct connection between God's Law and our consciousness of it has been severed by the Fall into sin in our human self-consciousness. Hence the constant uncertainty and fluctuation in what shall count as Law. Even in our defective state of Law, there would scarcely be any talk, if the consciousness of our human race had not, as a psychological phenomenon, imprinted and rooted this Law in such a way that it is comparable to the life in the plant, which, though it can lose the purity of its growth and development through atmospheric influences, defective soil and insufficient care, yes, through all kinds of harmful influences, yet, under all this, through the inherent nature of the being of the plant, its character remains intact, and strives to restore itself. The Law is a psychological phenomenon in our human race, which gradually unfolds of itself, seeks to restore itself when violated, and gradually gains in influence and power. The Holy Scripture, and in general the Special Revelation, gives only a few fixed indications for this growth in the Law, and it is from the psychological nature of our race that it must each time again let its bud come up and unfold. The all-controlling question now remains only whether the order in this psychological

phenomenon comes from God and is established by Him, or whether man has set and can modify this Law according to his own good pleasure and arbitrariness. §4. From Man? This latter is now the most prevalent thought, the consequence of which is that all Law is increasingly lost in a subjective wave and lapses into "shuffling the coins." This is openly expressed.

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THE HUMAN BEING? - THE FALL OF RIGHTS IN PARADISE. 383 One knows how the call of "property is theft" still finds admirers, how the difference of insight in the question of Right in the same country continues to be disturbing, and how it ultimately depends on the appointment of a professor at one of the universities which concepts of law will prevail for a time in a part of the country. There could then also be no talk of a higher legal order, if the Law itself as a psychic phenomenon in human life did not possess the inner power to continually bend back against all arbitrariness and to gain access. Yet this would not avail us, if the development and unfolding of this inherent psychic order could not begin at least with one fixed point of attachment outside our subjective consciousness; and this it can now only find in what has been revealed to us from God's side. Just as the plant withers and hides away in the darkness of your cellar, and only then revives and comes into bloom when it is allowed to be irradiated by the light of the sun, so also the right withers and becomes nothing more than an up-and-down fluctuation of consciousness, if it renounces this point of attachment to God's holy Revelation. This point of attachment need not offer much. All broader elaboration comes of itself from the nature of the psychic phenomenon that we call Right, but just as the plant cannot thrive without a root, and just as that root cannot miss a soil, so also must the Right have its root in God, and the place where the root of the Right is hidden must be assignable in the life-soil. Just as decisively as it must be recognized that it is absolutely unthinkable that we should find the full unfolding of the Right in Holy Scripture, and must be recognized without reservation that the psychic phenomenon of the Right, like the physical life in our veins and blood, possesses an inherent power of development, so also must it be firmly held that the starting point for the administration of justice must also be given to us in God's Special Revelation.

## §5. The Fall of Rights in Paradise.

Not as if this had been necessary in itself. In a world without a fall, without sin, of course the pulsation of the breath of

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384 JUSTICE. the Right would have gone on in perfect purity of its own accord. But just as in illness all kinds of symptoms become noticeable in our body, of which we had not the faintest suspicion, so also it stands in the psychic realm. Without a fall there would be no injustice and thus no reaction against injustice. Now, on the other hand, it is precisely in the reaction against injustice that the sense of right is most strongly awakened. The most worrying thing is now, however, that in our pride and self-conceit we constantly want to determine for ourselves what is right and what is wrong. This constantly puts the Right on shaky ground. This then leads to a collapse of the Right, out of which the question of doubt naturally arises, whether there would really still be any firmness in the Right, and thus also in the administration of justice. And this doubt cannot be removed unless, drifting on the ocean of doubt, you finally find at least one fixed point of attachment, or want one dolphin to which your little ship can be chained. Therefore, never ask the Scriptures for what they cannot give you, and much rather open your eyes to the inner nature from which the plant of the Right always shoots forth its buds anew. But take care that, with all subjective need for clear self-awareness also in the matter of the Right, you never and never let slip the one fixed point of attachment to the administration of justice of your God in His Word. Then you feel the ground sinking under your feet, and you run the risk of soon beginning to weep over the absurdity that sees the robber and murderer in the victim, and in the "brave Henry," as it is then called, the perpetrator of the injustice that drove the misled to murder and robbery.

## §6. Capital Punishment.

If Justice is not a power in life that has arisen from subjective human consideration, but an order instituted by God, in which a psychic phenomenon that has been imprinted in our human nature at its creation finds expression, then this Justice works of itself without the fall into sin, but after the fall into sin, in which it was disturbed, it must, by means of an intentional, purely healing-oriented surgical operation, restore it as much as possible to its original state in the meantime.

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CAPITAL PUNISHMENT. The necessity that the psychic order established by God in the right be maintained as much as possible among all peoples through legislation, adjudication, and punishment. This raises the question of capital punishment, which requires deliberate discussion. In 1878, when Our Program saw the light, the view of capital punishment was still almost universal among all peoples in all lands. However, since the last quarter of the previous century, more and more countries have moved towards its abolition. It had already been abolished in Portugal in 1867, in Michigan in 1847, in Rhode Island in 1852, in Wisconsin in 1853, in Venezuela in 1866, and in Romania in 1864. In Switzerland too, it was removed from the Penal Code

in 1874, but was reintroduced in 1879, except for political crimes. In Bremen, Oldenburg, Anhalt, and Saxony, capital punishment had also been abolished before 1870. However, the total population of these ten American and European States and Cities was still far too small for one to speak of a general abolition. Since the seventies of the previous century, the movement aimed at abolition has nevertheless gained the upper hand among the circle of legal scholars, and not only among those who do not reckon with a Supreme Judge as the Disposer of all human life, but to a certain extent even in the circles of believing jurists; and this while, conversely, Lombroso, who could see in the murderous instinct nothing but a hereditary phenomenon, peculiar to certain families, precisely urged that the scaffold be used for the extermination of the most dangerous elements in these families. Even a marriage ban in such families was once urged; something that would of course never achieve its purpose, since a marriage ban does not exclude procreation. Leaving these exceptions aside, it can nevertheless be established that the movement against capital punishment has been gaining ground in the scientific-liberal domain; so much so that capital punishment now finds hardly any defenders in legal circles anymore. It is increasingly felt that it does not belong to anyone, and thus not even to the judge, to deprive someone of life; that the severing of life cuts off moral education and improvement; and that the cruelty of public execution rather promotes coarseness of morals than a higher reverence for human life. Emphasis is then placed above all on the fact that it sometimes turned out afterwards how the executed was completely innocent of what was imputed to him. And even more, how bad upbringing, bad company, immoral reading, or lack of the necessary means of subsistence had not merely tempted the unfortunate to his crime, but almost forced him into it, so that our anger should turn much more against the capitalist society that created such deplorable conditions than against the murderer who had become its victim. On the other hand, it was also pointed out from the Methodist side that capital punishment cuts off the possibility of later conversion in the case of an unconverted person.

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## §7. The application diminishes.

Even where this juridical-political movement has not yet led to the complete abolition of capital punishment, the phenomenon nevertheless manifests itself on an increasingly wider scale that its application is omitted in far the majority of cases. In Prussia, over a period of four years, in which 231 death sentences were pronounced, only 10 of the condemned were executed, which amounts to 8%. In Austria, this percentage remained even below four. In Belgium, hardly a single execution of those condemned to death occurred. And even in England, where one still proceeded most sharply, 154 of the 299 condemned

were spared execution in the course of ten years. Something that speaks even more strongly, since even the hanging of women had occurred nine times in that period in England. Against this stood the fact that, as also with us, every Government maintained capital punishment for its Colonies, and that in most of the countries that went over to abolition, an attack on the life of the Sovereign remained most threatened with death. In fact, the diminishing significance of capital punishment went so far that, even though it remained in the law, it was often set aside by the judge, excluded by the jury, or pardoned by the Sovereign where it had been pronounced.

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HUMANISM AND SCRIPTURE - GENESIS IX:5,6.387

## §8. Humanism and Scripture.

The motive for this ever-expanding movement lay in Humanism, as the influence of Christianity was increasingly supplanted by a certain cultural power in the estimation of most. One could no longer reckon with God's right. In fact, the very concept of rights also fell away, as the conviction gained ground that one should be much more concerned with the moral improvement of the guilty. Something to which was still often added that the execution did not help, since the so-called deterrence theory apparently did not hold up. For the statistical data showed that the number of murders committed, after the abolition of the death penalty in a certain country, had not increased to such a significant extent as had been predicted. This calculation went completely awry, however, and in addition to this, the abolition was not dared to be carried out not only in the Colonies, but often also in the army and on the navy. Against this, it was constantly referred to from the Christian-juridical side as the decisive that what took place after the Flood. Up to the Flood, there had been a lack of well-ordered legal institutions. Cain indeed carried the fear with him that he would be killed because of his murder of Abel, but the death sentence did not follow. And the savage wildness had increased to such an extent at that time at the expense of human life, that Lamech dared to call out to his two wives, Ada and Zilla: "I have killed a man for wounding me, and a young man for bruising me." Now, after the Flood, when this certain promise went out that such devastation would not be repeated, the Common Grace immediately entered with the Noahitic Covenant, i.e. a divinely established order of life, which aimed to make the restoration of social life in our fallen race possible. For this purpose, ordinances were then given by God Himself to Noah, and through him to all his descendants. §9. Genesis IX:5,6.

Among these ordinances now governing the entire world life from now on, this holy order also came: “I will require your lifeblood from the hand of every beast; from the hand of man, from the hand of every man’s brother, I will require the life of man. Whoever sheds man’s blood, by man his blood shall be shed.” An ordinance that finally received its seal through the addition: “for God made man in His own image.” Luther, and with him not a few scholars of a later time, such as Professor Keil in his Commentary, read here only a firm ordinance that the murderer must be put to death by the authorities, and nothing else. Calvin, on the other hand, recognizes just as clearly in his Commentary on vv. 9, 10, that the death penalty is certainly intended here, which the judge has to carry out, but he still goes further and reads in these words also that God often so arranges it that the murderer soon finds his own murderer. Others are of the opinion that here above all the blood revenge is meant. But in whatever diversity of interpretation one may have fallen, up to our time all the experts were still always agreed that the execution of the murderer by the authorities was also very definitely prescribed in this divine word as the main thing, and this as an ordinance of God and under His Providence. This cannot and may not be understood otherwise, if one pays attention to two things. First, that this utterance of the Lord occurs in the series of ordinances that were given to Noah after the Flood as a rule for the Covenant. For in that it could not fit a mere prediction of what would accidentally happen, but only the establishment of a rule. And secondly, every other interpretation is excluded by what is added, namely, that it must be so “because God made man in His own image.” What sense would it have to understand it thus: “Murder will likely be followed by private blood revenge,” and to motivate this by saying that this blood revenge would arise from the fact that God made man in His image? Everyone feels that this would be nonsensical. On the other hand, the connection runs entirely naturally if one understands it thus: It must be so, for God has made man in His image. This is what gives man his high worth and significance in God’s eyes. It is for this reason of this high worth that the commission of murder on a man is an assault on what

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388 JUSTICE.

God has established as inviolable.

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CONVERSION AND MORAL IMPROVEMENT. 389 Since God has sanctified Himself in His image, it is for this reason that the government, which I have instituted as your God, must avenge the murder of a human being by the punishment of death. Even if a different interpretation has been recommended from the Methodist side, such tampering with the commandment was undoubtedly a distortion of the meaning of

the text. Whoever, armed with the necessary exegetical knowledge, interprets this ordinance of God, cannot differ from Luther and Calvin, but must confess with both that the ordinance of the Death Penalty undoubtedly speaks here. The former professor Domela Nieuwenhuis, who had previously also upheld the erroneous exegesis, recently told me that he too had now come to a clearer insight. Something we would rather mention, because his predecessor, Professor Gratama, was the man who, more than anyone else, has pleaded the indefensible view.

## §10. Conversion and Moral Improvement.

On the basis of Genesis IX: 5, 6, the obligation of the Magistrate to avenge the murder committed on a human being by the death penalty is also firmly established. To say that this is not allowed, because in this way one would cut off someone's chance of conversion, would, if so understood, exclude the use of an unconverted man as a soldier. Even as a police officer, the unconverted could not be appointed, since every year some police officers lose their lives in the line of duty. In the fire brigades of large cities, it is no different year after year. Even worse is it in the case of shipwrecks at sea. The argument that one removes the chance of moral improvement of the one sentenced to death also falls away for exactly the same reason. And even if we readily admit that the education and improvement of the criminal is highly desirable, yet this can never detract from the demands of justice. Prolonged imprisonment is generally no more conducive to moral improvement. Even the cellular prison, which was devised with this in mind, proved to be just as much a means of corrupting the individual. But even if the judge can often promote moral improvement through the choice of the punishment to be imposed, this is still only a secondary matter for the judge. The primary task of the judge is and remains to uphold the law against the guilty, and this not primarily as a human right to be upheld, but for the maintenance of the law of God. The murderer has offended God and assaulted an ordinance of God when he struck down his victim; the starting point and remains therefore for all death penalty that God had made the man who was murdered in His image.

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390 JUSTICE. That the administration of justice must proceed with the utmost caution in leading to the death penalty, needs no argument. Nor does it raise any objection that the death penalty will not be applied in every case, nor that pardon should be excluded. All this, however, relates to the manner of proceeding that one follows; not to the matter itself. On premeditated murder, on a murder where no mitigating circumstances come into consideration, the death penalty must be ordained in the law of every country.

## §11. Looser from the Law.

In not so small a circle, the question has arisen at the end of the previous century whether the criminal law did not deprive the judge of too much of his freedom. The law, as it had been from time immemorial, sought to analyze all crimes in detail and then to establish the necessary punishment for each separate and distinct case. This led to difficulties, all the more so as the legal way of thinking, which is increasingly penetrating especially among the younger jurists, cannot boast of the legal insight that had presided over the drafting and promulgation of the criminal law and other threatening laws. To modify all these laws at once was not possible; but it was then thought that a way could be found to ensure that the freer view would penetrate into what was now being established by the legislator, and henceforth be left more to the judge to fix. Thus, over time, a new theory came to stand opposite the previously prevailing one, and the main thrust of this theory was to make the administration of justice more independent of the provisions of the Law. What had thus far been determined in the legislation down to the details regarding criminal threats, it was thought that the judge should now be left more free to determine.

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DETACHMENT FROM THE LAW - THE SUBJECTIVITY OF THE JUDGE

In the future, the law would be established in a less definite, less elaborated, and less detailed form. The law could then confine itself to a general statement of what would be punishable; the judge could then work this out further in its application according to their own insight. And so a system of jurisprudence would arise that, being more detached from the law, would be left more to the judge for further elaboration and application. Two contrasting ways of proceeding began to stand ever more antithetically against one another. In the end, not only was it asked whether a particular subject matter lent itself better to being worked out in more detail by the judge himself, but meanwhile, in other areas, the old more precise determination by the law remained in force. No, it became a new system, to bind the law ever less and to leave ever more to the judge. And one sees in the penal provisions of later laws that for their maintenance a much greater freedom of distinction and application has been entrusted to the judge than before. With this, one is moving along an undesirable line. Certainly, some correction of the previously valid system can be admitted, yes, even deemed desirable - what is now being aimed at in ever-widening circles goes much too far, and tends to give the judge an authoritative position, taking a not insignificant part of what belongs under legislation, and transferring it to the bench.

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## §12. The Subjectivity of the Judge

Thereby the subjectivity of the judge in the administration of justice gains a not inconsiderable preponderance. Not only in the international juridical world have there been schools in every century, yes, in every half-century, leading to very divergent conclusions, but even in our small country one finds, as a rule, a striking difference of insight regarding jurisprudence, as far as the punishment of evil is concerned. Each faculty then tries to imprint its ideas on the students who follow its lessons. The student who regularly attends these lectures, and moreover enriches his study by the acquisition of the products of other juridical schools, and by acquainting himself with other theories, ultimately chooses, with more or less depth of insight, for this or that theory; and armed with this, he then immediately aspires to a judicial seat. A seat on which he has hardly taken his place or his passions and preferences prick him to now officially apply his subjectively calibrated ideas. Considering now how far these juridical theories, both in general views and in detailed application, diverge, so that not a few ultimately almost completely abandon any idea of a punitive justice, in order to aim solely at the protection of society and the improvement of the offender, one sees at once to what pure arbitrariness it can lead, if one leaves it to the judge to decide what would otherwise have been firmly established by the law. This handing over to the judge of what the law had otherwise established takes on an even more serious character if, as is constantly the case, there is no longer any question of the judge considering himself bound by the law of God. Not a few judges, however, make no secret of the fact that Viviani's scornful assertion about the extinguished lights of heaven also finds full echo in them. Thus the unbounded subjectivity presses ever more boldly to the fore, and the citizen in the process is ultimately entirely at the mercy of the incidental insight of the judge who will pronounce judgment over him.

## §13. Tempering the Danger

This unbridled arbitrariness is certainly tempered, if not by a single judge, then by a court judgment. And it must not be forgotten that appeal or cassation can curb the great subjectivity of the first judge, and undo what he had rashly ventured. But this last consideration does not take away the fact that, now that even the oath on taking office is no longer imposed on the judge, a very questionable subjectivity is constantly gaining ground, to such an extent that, the more the judge in appeal or cassation begins to be subjected to this subjective theory, even the safeguard that lay in the revision of the judgment is

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TEMPERING THE DANGER - CONDITIONAL CONDEMNATION The notion that a jurist, once appointed to office, would ipso facto acquire a superior quality that would protect him against excessive subjectivism and reckless conjecture, is nothing but an illusion. The same firm rule applies to the judicial power: that the persons of the upper class are rarely voracious (rare birds in the big flock), that the middle class of a not too high order is quite numerous, but that there is always a heavily occupied lower class whose subjective authority is quite ordinary. So it is, and not otherwise, with all official professions; and so it is here as well. It must be recognized, however, that an excess of rules and distinctions in the Law can also give rise to difficulties. One then faces a casuistry that forces the judge to discover, in the particular case before him, the analogy with the case normalized in the Law. Not infrequently, the legislator may also be tempted to over-specialize, thereby obscuring the law rather than clarifying it. And the complaint is also repeatedly heard that the legislator established his regulation in an environment that underwent considerable changes due to circumstances or phenomena that subsequently arose. Against all exaggeration, therefore, vigilance will always be required in the specialization within the Law. Revision of the law, insofar as it has become obsolete, must not be neglected. In the analogies to be applied, a certain tradition must prevail in legal practice. But however one may turn or twist it, the Law must always provide the necessary rule. With the judge, the proper application of that rule is to be sought; with the legislator, the establishment thereof.

## §14. Conditional Condemnation

No less weighty a point, which was also not yet on the agenda in 1878, is conditional condemnation. This type of condemnation consists in the judge passing sentence on the convicted person, but the punishment imposed on him being postponed. During the thus freed interval, the convicted person then stands under legal supervision. This supervision aims to ascertain whether the repetition of the evil, as in his first case, given his character, is to be feared or not.

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JUSTICE. If the oversight placed him in an unfavorable light, but then failed to materialize, and the outcome of that oversight shows that his transgression was indeed an exception, then one wishes to see that the sentence be considered withdrawn and that the person be set free. As one immediately sees, a highly appreciable motive is at work here. One knows what a difference it makes for someone’s future whether they were still allowed to go free or were imprisoned. Whoever ends up in the latter case has often irreparably damaged their reputation in a wide circle, and often has great difficulty in regaining a profession or position. This then frequently leads to very serious embarrassment. And it is precisely this embarrassment that so often drives the convicted to seek a way out in new crimes. It is very certain that, in

contrast, the knowledge of how one can squander one's entire future through a single dishonest act deters not a few from the first offense; and it cannot be denied that excessive compassion for the one can weaken the resistance to evil in others; which is why it is so desirable that the conditional conviction not be too much trumpeted abroad. But even if we weigh all these considerations well, it still seems to us that there are many arguments in favor of not always and immediately cutting off all the favorable connections with the society in the midst of which the convicted lives. Of course, there must always be a limit here. Such sparing of the convicted can only be spoken of in the case of crimes of lesser quality and limited scope. The oversight that one must exercise over him must be no winking eye, but strict control. Even certain restrictions on freedom need not be excluded. But if it is to be found that the convicted is not made unhappy for all time, and at least does not deprive him of the chance to get on better paths, then this pleads not a little, even from the point of view of justice. Justice assigns him a certain measure of punishment, it gives him half a year's imprisonment. According to the scales, this must be the equivalent of what he committed. But if it now results from undergoing this punishment that he loses his position and can then only with the greatest difficulty find a way through life, then this is, especially if he has a family, an aggravation of his punishment that at least triples the weight of this punishment.

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OBJECTIONS TO THE EXECUTION

## §15. Objections to the Execution.

On this ground, the idea of conditional sentencing has also evoked sympathy in our circles. The writer of this also repeatedly expressed himself in this direction in De Standaard, and we know what the deeply lamented Mr. Gwin and after him the former professor Domela Nieuwenhuis had to say about it. But although we accept the idea itself, in general, the objection remains insurmountable that the way in which one believes to have found the solution is irreconcilable with every legal concept. A sentence gives a final conclusion of the judge about the guilty person. Circumstances that may or must influence this sentence, the judge must therefore investigate and establish before he will pronounce judgment. Therefore, he may not pronounce judgment before he is completely ready with this serious investigation. But when he is ready with this, and has once pronounced his judgment on the basis of the results of this investigation, then the judgment has become a fact and must either be executed or be annulled by pardon. The question of whether one cannot then convert the conditional sentence into a freely regulated and repeatedly recurring pardon must also be answered in the negative. Pardon is granted if the law could not sufficiently reckon with the case at hand, and therefore had to lead to a subjective conviction by the judge, and if now a way

out had to be sought to bring the provision of the Law into harmony with the particular character of the case. But this was not the case here. It was assumed, after all, that the provision of the Law was fully applicable, but that considerations entirely outside the Law led to the release of the bond that the judgment had placed on the guilty.

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## §16. Before Pronouncing Judgment.

This does not, however, exclude that perhaps another form is to be found that would still do justice to what one aims at; provided one only recognizes that the judge is of the opinion that he is not yet in a position to pronounce a just, righteous, and fitting sentence on the guilty. The mistake is now that one nevertheless wants the judge to pronounce the sentence, in order to bring to clearer light after the pronouncement of the sentence what was lacking in his investigation. And this is the upside-down world. One cannot first half investigate and then pronounce sentence, in order to complete the investigation with the missing half afterwards. Before the sentence is pronounced, the investigation must be fully completed. Hence our proposal to indeed introduce the case, but with the reversed order of sentence and investigation. If the judge still does not know the accused well enough and is not yet able to make up his mind about him, if he asks for more time for this, and insists that the accused himself be observed for some time in his social life; then give the judge the authority to postpone the sentence until such time as this further investigation and more personal control has put him in a position to judge the accused with accuracy. If then, after such a period of investigation and control, the guilt that has been factually proven can, in connection with the character of the person, be atoned for by a less impressive punishment, then impose on the guilty a fine, and do so in a judgment that does not pronounce in advance, but only takes effect when the investigation is fully completed. This investigation, under good control, should then take on a serious form. It should not be a bandage over the wound, but a real investigation into the relationships as they are. In this way, the law maintains its normal and proper course, insofar as the sentence comes only after the completion of the full investigation. It is not a sham judgment, but a real judgment. Only, it now becomes a judgment that takes into account the true position of the guilty, and does not inflict on him a punishment three times as severe as the judgment itself would otherwise have been.

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THE OATH QUESTION - DIFFERENCE IN DEGREE

## §17. The Oath Question.

Regarding the oath question, the Calvinist recognizes no other jurisdiction than that which is conducted in the presence and before the face of God. In itself, no person, whoever they may be, has the right or authority to take the life of another, to temporarily or permanently deprive them of their freedom, or to deny them a portion of their possessions. Yet it is this threefold exercise of power that has also been granted to the Government in our land, and with this it places a power at its disposal, which it then also actually exercises. One may have set aside the death penalty, as shown above, yet the Government still has full authority over the lives of its subjects in war, and in our East Indies the death penalty is still carried out. Imprisonment has likewise remained in place. Behold our prisons, as the sun goes down, but the gas light shines through the peepholes. And that the Government compels and forces us, under threat of punishment, to still bring a portion of our income to its offices in the form of taxes or fines, requires no further explanation. In fact, our Government is still exercising a power that does not inherently belong to any person as a person. God alone has authority over our life, our personal freedom, and our possessions. Only by appearing as God's servant does the Government have the right and authority to subject us as subjects to these three legal institutions in the name of God. Whoever appears in court, whether as accused or as witness, stands therefore, just as the judge himself, before the face of God, speaks in His holy presence, and falls short of the holiness and omniscience of God, if they speak or act in the legal proceedings apart from God. § Difference in Degree. Every playing with the truth renders a person guilty, but there is a difference in degree in this guilt. Amidst the multiplicity of life, seriousness can sink within us and the sense of responsibility can fade. This is precisely why now the judge and the accuser, the accused and the witness, are intentionally summoned before the face of God, in order thereby to heighten the sense of responsibility, to fully awaken the seriousness, and to make him to whom it applies understand that from God's side a double guilt will be imputed to him, if he dares, thus placed before the face of God, nevertheless to play with the truth. The realization that must prevail in court can therefore be no other than that of one who speaks, as it were, directly opposite God, sees in God's eyes, and feels that the eye of God penetrates into the hidden recesses of his soul. The person who appears in court, on the other hand, is by no means always in such a frame of mind. The unfamiliarity with appearing in court, the strangeness of the entire scene in the courtroom, and also the embarrassment that many cannot shake off, often make them unfree, so that more than one is no longer master of himself at such a moment. Since this proves to be the case time and again, one has resorted to eliciting a separate act that can clearly and distinctly awaken the consciousness of standing before the all-knowing God, and this act is now the taking of the Oath. If the Oath, the person himself confesses that

he knows he stands before God's holy presence; that he acknowledges God's omniscience; and therefore confesses that God Himself will hear what he is about to say as a witness, and will now punish the speaker for untruth; from which it follows that in God the right is upheld to apply that punishment also to him, as a witness, if the testimony he is about to give does not in every particular correspond to what he must say.

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## §19. Solemnity Neglected.

With a view to this high significance of the Oath, it is certainly to be condemned that the taking of the Oath has been increasingly simplified. If the Oath is to be what it should be according to the intention of the Lord, namely a placing and standing of the witness before the face of God, then our Oath formula is too short and too indefinite in content, and it is no less to be condemned that not a single word is spoken that reminds the witness of the holiness of God, of His omniscience, and of the fearful punishment that awaits him if he dares to speak untruth.

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NEGLECT OF SOLEMNITY - ANABAPTISTS AND MENNONITES... even the introduced custom of displaying the Cross, or taking the Oath on the Bible, deserves recommendation. At such a moment, such a symbol works a higher mood, just as is required here. It is also a very serious question whether a judge who is an atheist can demand the Oath in the Name of the Lord. With this in view, it would undoubtedly be advisable for a Minister of Religion to administer the Oath. It would then be the same as calling in a physician when a medical opinion is needed. If, however, one looks at the high costs that this would entail, it would certainly be worth considering to lend the proceeding itself a somewhat more solemn character. As it often happens with us now, what can bring solemnity is almost entirely lacking. There are indeed some judges who try to put something elevating into it, but it also happens that the taking of the Oath is almost mechanical, and almost becomes a mockery. There is reason enough not to multiply the taking of the Oath. If possible, it should even be made more rare. If this can be done in a process where fifty or even more witnesses appear, then the question would even deserve consideration whether one could not introduce a sworn written declaration instead of an Oath.

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400 JUSTICE... this is also why a change must be made here, and everyone who, as a Mennonite, refuses the Oath, shall only be exempted from the Oath if he testifies, either orally or in writing, that he does not dare to take the Oath on the basis of the pronouncement of Christ in the passage of the Sermon on the Mount referred to. Any playing with the Oath, as is all too often the case with the exception of the Mennonites, deserves unconditional disapproval and must be stopped.

## §21. Objections to the Oath

This must be emphasized all the more, because in itself the objection to the Oath is very well explained. Whoever demands the Oath from you, shows that he starts from the assumption that one cannot always rely on your yes or no with sufficient certainty; and it is understandable that this is an obstacle. It is as if the one who demands the Oath from you suspects that an untrue expression of thought is not foreign to you. This is precisely the critical point around which the whole question of the Oath revolves. Man, after the Fall, no longer provides a firm guarantee of absolute sincerity. On the contrary, lying and slander is still a daily practice in all kinds of circles. Just listen to the conversations sometimes even in the most civilized circles, how one is constantly on the lookout to accuse someone and to call his good name into question. In the political domain, the public organ of the Press is all too often the sinful interpreter of this. Evil-speaking, tearing at anyone's good name, smearing and slandering one's neighbor, is still all too much at home even among women of high standing. It is generally not easy to find a remedy against this, and one also lacks the power to do so. But it is quite different when testimony must be given in the courtroom. Then it is about someone's guilt or innocence, and a true or false testimony can depend on someone's entire life position; as far as the death penalty is still applied, even on his life. Above all, the shameful fact that proof has been provided from behind, how the sharp judge has once brought an innocent person to death on false testimony, inspires here to the highest seriousness.

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THE VALUE ATTACHED TO THE OATH.—If we had to deal only with truthful persons, so that, as a rule, we could be fully certain of hearing the truth testified to, the introduction of the Oath would never have been thought of. But now, since the exact opposite is the case, and in ordinary life the strict telling of the truth by one about another is often the exception, recourse must be had to the taking of the Oath, and it becomes our duty as sinners to willingly undergo the self-abasement which always lies in the taking of an Oath.

## §22. The Value Attached.—Even from the unbelieving side, great va...

The Value Attached.—Even from the unbelieving side, great value is still attached to the taking of the Oath. When, under the Ministry of Cort van der Linden, the Oath question came up for the first time in the States-General, the Government took pains to declare clearly that it continued to set great store by the advantage which the taking of the Oath yields. Nor can it be denied that the taking of the Oath still checks many a lie upon the lips of witnesses. They even hesitate not to testify that the atheist here is still quite an exceptional case, and that even he who in ordinary life poses as living without God, in the court of justice still has a keen sense that he has to do with the All-Knowing God. This is still continually observed as the shadow of death hovers over one, whether in shipwreck or on the battlefield, and also in the ordinary dying; and it is this same phenomenon which also continually manifests itself in the Oath question. Certainly, there are some scoundrels who stand on guard, and who for a guilder will let themselves be bought to give false testimony in a case of which they know absolutely nothing; but even this evil could very well be overcome, if one would attack it with a more holy, but also more inexorable, earnestness. But whatever abuse one may have to wrestle with, the fact remains that the testimony given in the court of justice can decide a person's guilt or innocence, and this now demands, if one takes into account the evil-speaking and slandering, that the testimony in the court of justice be strengthened and purified by the Oath.

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402 JUSTICE.The consideration, too, that as a rule the "respectable" people tell the truth, and that only the men and women of the lower classes are not to be trusted in their testimony, so that the former could very well be excused from the Oath, but with the latter the Oath must be maintained, is pure aristocratic arrogance. To a certain extent it can be acknowledged that in the lower classes shameless lying more easily creeps in, but it is equally indisputable that up to the highest classes of society it is continually not only the gentlemen, but also the ladies, who are caught in untrue representations, as soon as their own or family interests are closely involved.

## §23. Higher and Lower Classes.—The attempt which is uppermost wit...

Higher and Lower Classes.—The attempt which is uppermost with many to bring it about that the Oath remain for the common man, but that with the "declaration" the man of higher social position can be satisfied, proceeds from entirely incorrect premises. Just consult, in connection with the great world war which broke out in 1914, how the greatest statesmen have publicly accused each other in Parliament and in

printed documents of false testimony, and the reading of this will of itself cure you of the cherished notion that untruthful testimony occurs only with the common man. In itself, there is nothing to be deducted from the fact that the judge who in God's Name will have to pronounce upon a person's guilt or innocence, must possess the means to raise the testimony upon which his judgment must rest to the highest possible degree of truthfulness. And this means now is and remains, through all the ages, the placing of the witness before the face and in the presence of God, which can take place only through the Oath. The question now remains only as to how the judge will proceed if a summoned witness refuses to take the Oath. Three ways are open here. This refusal can, in the first place, be forbidden and punishable by law. Or it can, in the second place, be accepted, and on that ground the one summoned be discharged from giving testimony. Or, finally, there can, in the third place,

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HIGHER AND LOWER CLASSES - CIVIL DISABILITIES A way is being sought to ensure the credibility of testimony without requiring an oath. A brief word on each of the first two ideas, before elaborating on the third. Regarding all objections to taking the oath, insofar as they arise from atheism, no mercy has been shown from of old towards those who refuse, since it was believed that atheism had no grounds for existence.

## §24. The Civil Disabilities The so-called civil disabilities, whi...

The Civil Disabilities The so-called civil disabilities, which were associated with a particular confession, were originally applied strictly; and although, as Macaulay so beautifully argued, this system was not tenable, and has therefore been largely abandoned in all lands, it does not at all follow that this abandonment also needs to continue where one has to deal with either half-mocking or high-minded atheism. The former system of making full citizenship dependent on the profession of a particular Church is directly contrary to the well-understood Calvinist principle, and cannot for a moment be advocated on our part; rather, it must be opposed without compromise and in an absolute sense. But it is quite a different matter to openly declare that one does not believe in God. If the entire state community hangs on God's sovereign disposition, then whoever denies the existence of God excludes himself from that community as far as its full scope is concerned. And if one asks whether it would not then still be harsh to deny those who do not believe in God the full enjoyment of citizenship, our answer can only be that the so-called atheism, if taken in its absolute sense, is far from possessing the proportions that are often attributed to it. We have already pointed out how, in shipwreck, in sudden mortal danger, and even on the quiet deathbed, such atheism constantly belies itself. Therefore, making the refusal of an oath punishable would by no means

have the serious character that is often claimed for it; yet we would most emphatically protest against it. Even the appearance of doing violence to conscience must, wherever it is even slightly possible, be avoided by us.

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JUSTICE. This cannot always be avoided. That it cannot always be done was shown recently when a new movement arose and, on pacifist grounds, refused to be drafted into active military service, which was done by a small group, not without some ostentation. Here too a critical "case of conscience" presented itself, and the judges did not hesitate to sentence the objector. One should never say, therefore, that no more cases can arise in which it is absolutely impossible for the government to avoid personal scruples. However, this rule cannot apply here, because the forced taking of an oath by a mocker or a brutal atheist would not enhance, but rather diminish, the value of his testimony. The purpose in summoning a witness in a court of law is that he may shed a true light on the circumstances of the case at issue, and this purpose would not be furthered, but rather entirely missed, by coercing the conscience. Against every witness being compelled to take an oath, the most serious objections would immediately arise in the mind of any earnest man. Much rather, therefore, should the deprivation of full civil rights be constantly applied to the atheist. There are more reasons that hinder and even prevent the taking of testimony even about facts to which one has been an eyewitness. Just think of mental weakness, of incomplete development, of idiocy, and the like. Much could also be argued for completely dispensing with any appeal to the testimony of a genuine atheist. This cannot be conceded by one who knows no other judge than an earthly one, and concludes that what the earthly judge does not punish goes free; but it does proceed from our standpoint. For we confess that the punishment of the earthly judge is but imperfect, and that the true retribution comes only from God's side, whether already here on earth in conscience and in life's suffering, or hereafter in the Judgment. Those who recognize no other judgment than that of the earthly judge are therefore extremely perplexed by the undeniable fact that a multitude of iniquities fall outside the concern of the judge; that in more than one case his judgment has had to be regretted in hindsight, as resting on incorrect grounds; and above all, that more and more crimes cannot be judged by the judge because the criminal succeeds in remaining unknown or making himself untraceable.

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THREATENING ABUSE. The claim that the right to refuse to testify on oath should not be denied, solely out of fear that the oath would be violated, cannot be upheld.

## §25. Threatening Abuse.

However, here arises a completely different objection—that, if refusal to take the oath were to lead to dismissal from giving testimony, this new institution would be constantly abused to evade giving testimony. For one never loses sight of the fact that giving testimony, and this in public, arouses hatred in the one who is condemned by it, and that therefore in far the majority of cases the summoned witness would much rather keep himself aloof from it. If the summoned person were to be discharged on his peremptory declaration that he has overriding objections to taking the oath, then the refusal to give testimony, especially in serious criminal cases, would undoubtedly increase by leaps and bounds. It is on this ground, and on this ground alone, that we would not dare to recommend the dismissal from giving testimony, solely on this ground. And we do this the less, because it is becoming increasingly clear how the so highly exalted objections to the oath turn out to be more fabricated and artificial than genuinely felt. For one fact speaks strongly here. Whoever is affiliated with the Anabaptist Community is free from the oath. Now since joining this Community is entirely free, and does not require the acceptance of a particular confession, one would think that the objections in other Churches would simply transfer to this Community. Then they would, as the case may be, be free from all difficulty. Yet this does not happen. At least we know of hardly any transitions with this purpose. Modernists, who still found it too confining in the Reformed Church, do sometimes go over to the Remonstrants, but almost never to the Mennonites. The little significance attached to this whole issue is moreover not less confirmed by the fact that, after the well-known judgment of the Supreme Court, by which this issue was once again brought to the fore, hardly any procedural difficulties have been heard of. They are and remain very few, quite isolated cases. It is therefore not the practice, but exclusively the theory of the oath, that heats up the minds on this point. The oath points to God, and to reckon with the all-knowing God officially in the courtroom and thus before the Government, is precisely what one does not want.

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406 JUSTICE. Thus only the third way remains open, consisting in seeking a means to obtain from him who says he cannot take the oath, such a certainty that the judge who pronounces judgment in the name of God, can nevertheless take peace with it.

## §26. Way Out.

On the one hand, one has wanted to seek such sufficient certainty in imposing a more severe punishment, if the “declaration” should turn out to be wholly or partially untrue. Perjury is severely punished; can the attempt at false testimony not now be cut off by an even more severe threat? This could certainly be the case, and would undoubtedly hit the mark in more than one trial; but the entering upon that path is blocked by the mere thought that perjury would then be punished less severely than an incorrect declaration, and this seemed to lead to an underestimation of the sacred. It is on this ground that we too would not dare to recommend taking that path. The administration of justice must take place in the Name of God, and the entire process must therefore take place as if taking place in His holy presence. It may not proceed as a mere human transaction with human. The sacred character of all administration of justice must also, as regards the witnesses, be maintained. That is precisely why it is so completely inexplicable that, as is well known, more than one Christian Statesman, both from the Roman Catholic and, alas, even from the Christian-Historical and, regrettably, also from the Anti-Revolutionary side, has almost without hesitation gone over to the proposal that came from the other side, to equate oath and declaration in legal value; and thus, without more ado, to allow the refusal of the oath and the restriction to a declaration (or promise).

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OATH-HELPERS - MINISTER ORT

## §27. Oath-Helpers.

This incident, which also applied to some Anti-Revolutionary Statesmen, has caused bewilderment—because already deep in the previous century a means had been provided to extricate oneself from the resulting inconvenience, and yet one nevertheless so quickly went along with the liberal advice, and even came forward for it with a certain warmth, without even testing the means we had provided with any seriousness. One simply glossed over it. That had to give offense, and still does. That at least some turning has now come in this attitude is only to be thanked to what Mr. Ort, as Minister of Justice, intimated in the First Chamber about this proposal. §28. Minister Ort. He indeed took up this proposal so fully seriously that he read the main point from “Our Program” and, after that reading, expressed his opinion that the matter could very well be regulated in this way, but that it seemed to him only too cumbersome to be practically serviceable. In the Proceedings of the First Chamber, of June 17, 1915, page 392, we are reported this literally:

"What was now," so the Minister spoke, "in the face of the state of emergency in which the Government found itself placed, its duty? To let the matter remain as it was, in the hope that the Oath question would only be of a passing nature, as the gentleman Bosch van Oud-Amelisweerd indicated? But for that, the situation of today, as I shall soon explain, was indeed too serious." "To re-examine the situation, as Mr. Kuyper indicated, and to consider some solutions that until now had found no defenders, as is outlined in 'Our Program'? One reads in that book what procedure would be necessary for the exemption from the Oath compulsion for atheists." "I read here: 'that from atheists, i.e. from those who do not unconditionally declare belief in the living God, no Oath shall be taken, nor even a promise as indicated under §3, but that one shall proceed with these exceptional people in this manner.'"

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"First, such a person shall have to prove that he is not a member of any Church community. 'For an atheist who yet remains a member of a Church of God, thereby already shows himself to be a dishonest man.' Secondly, he shall have to declare in writing that his refusal to take the Oath has no other cause than that he does not believe in the living God. 'Thirdly, he shall have to submit a properly signed certificate by at least three persons that he is known to them as an honest and truth-loving man. On the understanding that every atheist shall be deemed incompetent to issue this certificate, and the right of challenge shall remain with the Authorities.' 'Fourthly, he shall have to submit a written declaration that the promise he is about to make, if he comes to belief in God, shall stand for him equal to an Oath.' 'And fifthly, he shall have to declare himself willing, to the satisfaction of the Authorities, that, if they so demand, he shall have this declared under Oath by a respectable person (towards whom the right of challenge shall likewise remain with the Authorities, and of whom above all it has been proven that he has known the person concerned sufficiently closely and long enough) that in his case no suspicion against the truthfulness of this atheist in the matter at hand exists.'" And what was now His Excellency's judgment on this proposal? Behold it here: "Undoubtedly," he continued, "this regulation is very ingeniously conceived, and it cannot be denied that in this way truly testing safeguards are provided. But it also follows from this that as soon as one gets a different test than the psychological judgment of the judge, this regulation, through its cumbersomeness, will practically not be possible. Can one really believe that a bill, cast in such a mold, would have any chance of a favorable reception in the States-General?"

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THE INSTITUTION OF THE OATH-HELPERS

## §29. The Institution of the Oath-Helpers.

But while we must commend those more liberal legal scholars who handled the scales of justice with impartiality, it requires no further argument that their objection did not decide the matter. For if what our proposal contained could have done both—maintain the sanctity of the administration of justice and yet make the testimony of the oath-refusing witness usable—then surely the question should have been asked whether a way could not be found to overcome the cumbersomeness that was hindering it; and this all the more since on our part we frankly acknowledged that in 1878, having only just passed from the ministry into politics, we did not yet possess the data to delineate the proper course of action with strict precision, and were now ourselves entirely of the opinion that a limitation of the proceedings would be quite conceivable and permissible. But what did our proposal essentially come down to? We appealed to the Oath-Helpers, who had come into vogue in the Middle Ages. The peculiarity of this legal institution of the "Oath-Helpers" consisted in this, that it was of Germanic origin, and therefore naturally fell into the background as the Roman law began to dominate our legal institutions more and more. This institution from Germanic law had also been incorporated into Canon Law and had gained sympathy there. Both Dr. Gemeiner and Dr. Hildebrand gave the necessary explanation about this institution from the Roman Catholic side in 1841 and 1849. The work of Dr. Gemeiner, which saw the light of day in 1849, bore the title: "Oath-Help and Oath-Helpers"; that of Dr. Hildebrand, "The Purgatio Canonica et Vulgaris." Officially, these "Oath-Helpers" bore the name of Conjuratores or also Consacramentales, and their action consisted in this, that both in civil proceedings and in criminal cases, they supported by their own oath-taking him who had to take the oath.

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They then testified under oath that they knew the witness or the party personally and sufficiently well, and that his testimony contained no deception. The consideration that applied here was that the judge did not know the witness or the party well enough to judge whether one could rely on his statement, and that they, the Oath-Helpers, on the other hand, knew him very well, and now stood surety for the honesty of his testimony. They were usually seven in number. Since the 13th century, however, this institution of the Oath-Helpers has fallen into disuse, and the more the Roman law, strengthened by Canon Law, gained dominion, the less the Oath-Helpers appeared. Of their own accord, they did not pronounce on the case itself. Their testimony served only to vouch under oath for the credibility of the man. Especially in the purgatio canonica, they gained decisive importance from the 11th century onward. Sometimes their number here rose to twelve, and even now this institution is still valid for Canon Law in matters of impotence, and is

then called the juramentum septimae manus, since then seven blood relatives must appear as Oath-Helpers.

## §30. Similar Service.

Now let us consider that this institution of Oath-Helpers did not serve to strengthen the oath-taking, but to support the reliability of it. Not for a moment has it been asserted on our side that it could now render the same service as in former times. It would not come down to the same service, but to a service similar in kind. Then, and now, the question arose when hearing the declarations made in the courtroom whether what the person in question was saying, and attesting, was entirely in accordance with the truth; and the uncertainty that one wished to temper then, and that we also wish to temper now, by having Oath-Helpers appear. For the present, this institution would therefore be completely equivalent to what the Minister of Justice had proposed in his first draft in June 1915. In this proposal, the possibility was likewise assumed that in the case of refusal to take the oath, an attempt might be made to evade the obligation to give the full truth in his statement. Against this, Minister Ort then took refuge in his draft in the legal provision that the judge should be empowered and obliged to assess independently to what extent there were reasonable grounds to acquiesce in the witness's refusal to take the oath. Against this, a rather strong opposition arose from both the Right and the Left. They gave their consent without reservation that, as long as the oath institution remained in force, it was not permissible to simply release someone who had scruples about taking the oath, and acknowledged that it remained desirable...

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SIMILAR SERVICE. - MY PROPOSAL OF 1878. 411 to find a means to determine whether the refusal to take the oath arose from atheism or from a pious intention. But even if this purpose was approved, and even if it was felt that a certain guarantee had to be sought here, there was an objection to the judge, entirely on his own authority, having to decide this important point in every case. In the vast majority of cases, he did not know the person concerned at all, and this person was completely strange to him. He would therefore have to rely solely on the impression he received of the person in court or on what he was informed about him by others. And this seemed to come down to pure arbitrariness. If, however, for these entirely conclusive reasons, this proposal is not further pursued, so that the Minister himself completely deleted it in the revision, then everyone feels that it is even less a matter of rejecting any further guarantee outright here, and, as Minister Ort proposed in his second draft, leaving it solely to the summoned witness whether he would take the oath or refuse it. For in that way, all certainty would be lost, and everyone would be given the opportunity to withdraw from the oath without any recourse.

## §31. My Proposal of 1878.

Precisely in connection with this, our proposal of 1878, i.e., the recourse to a modified institute of oath helpers, recommends itself. The first criticized bill recognized the need for a certain guarantee of the truthfulness of the assertion that the person summoned could not take the oath for lack of belief, and it was precisely this guarantee that was promised on our part. The first bill, which entrusted this investigation to the judge, stood entirely on a par with our proposal in terms of the intended purpose. In both, in the bill as well as in our proposal, it was recognized that further proof of credibility was indispensable, and the difference between the two consisted only in this, that the government bill left the search for the guarantee to the judge, before whom the summoned person was often a complete stranger, while in our proposal it was entrusted to at least three persons who were shown to know the person well enough to be able to form an opinion about his statement. Naturally, the latter held up much better, and provided what the judge's opinion could not give by itself. Thus, our proposal recommended itself from all sides. For in this way the dignity of the oath remained intact, the administration of justice was also held entirely before the face of God, and the person who believed he had to refuse the oath out of conscience was helped out of this difficulty by the appearance of friends or acquaintances who had every opportunity to discuss the whole matter with him beforehand and to convince themselves personally of the sincerity and truthfulness of his assertion. If now these friends appeared in his place and testified under oath that they were assured of the sincerity of the man's testimony, and this under the risk of undergoing punishment themselves if it later turned out that there had been deception, then indeed the seriousness in the proceedings would not have been relaxed for a moment, and the highest certainty would have been obtained that one can count on among men. §32. Against the Complexity Alone. With this, the judgment of the liberal Minister Ort entirely agrees, that our proposal could be rational and effective, and thus also deserving of recommendation, if only it did not condemn itself through too great complexity. To this, we first of all object that this argument is very weak. If one considers to what complex actions recourse is often taken when it comes to medical-psychological uncertainties, or when other technical investigations are also necessary to determine the true character of a fact, then it does not sound very reverential when one is only concerned about some complexity where the guarantee of the holy is at stake. Moreover, it is not proposed that such assistance of oath helpers should be called in as a matter of course. Often in the legal case it has not occurred more than once or twice a year, as is evident from the Appendix attached to the Second

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412 JUSTICE. for whom the summoned person was often a complete stranger, while in our proposal it was entrusted to at least three persons who were shown to know the person well enough to be able to form an

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NOT OVERLY COMPLICATED - NOT A CRISIS LAW.

The proposal communicated to the Chamber by the Government when submitting its initial draft. The occurrence of such a case is and remains a very rare exception. But even apart from this; and we have also declared ourselves clearly on this, one does not at all need to follow precisely the manner of action that we suggested. It can proceed much more simply. One can suffice with having the witness who objected to taking the Oath do this through a written declaration, in which the refuser attests in a prescribed form on what grounds his refusal is based. Secondly, a statement could then be requested from him of at least three persons who were willing to declare under Oath that in their opinion he was a completely reliable person.

Those three could be replaced by others under challenge or by others, provided that it was established that they too knew the person sufficiently and gave the impression of a certain reliability. And with this the whole matter was settled. In nothing, as you see, complicated; rather brief in form.

## §33. Not a crisis law.

We also do not hesitate for a moment to maintain our proposal in principle, regardless of the form, and we still see those Anti-revolutionary Jurists who, without further argument, went along with the Liberal system, also somewhat facing the proof that either my proposal cannot achieve its purpose, or that it would be impractical. It is precisely with a view to this that we have repeatedly insisted that the Oath question should not be dealt with in passing and by surprise, but that the decision on this institution should be postponed until such time as a definitive draft emerges that aims to raise the debates on this weighty issue to that high level that the sacred character of the matter itself demands. Postponement of consideration and decision is therefore all the more permissible, because the Government side continues to insist that it is alien to any intention to banish the Oath from the courtroom, and he who is convicted on a declaration without Oath, continues to raise the objection that full justice has not been done to him. It can therefore not be emphasized enough that in the Oath question one must once and for all cease to see only the difficulty for the summoned witness, and to understand all the duty to also revive the question of how to watch over the condemnation of an innocent person on false testimony. Briefly, to add this, this issue can be reduced to the proposition that those who do not believe in God cannot take an Oath, but that there must be a right of assessment to judge the reality of the refusal of the Oath on that ground. From which it follows that the right of assessment of the judge cannot apply here, since he does not know the person concerned closely, and for this reason, as an organ for this right of assessment, persons must appear who know him personally closely, and are thus able to pronounce on the truth and sincerity of his assertion. This organ is, in our opinion, to be found in the Oath helpers.*) *) On April 26 and 27, 1916, the Oath issue was decided in the First Chamber by the adoption of the amended draft submitted by Minister Ort. The adoption took place with 33 against 10 votes. The Roman Catholics voted almost all in favor, with the exception only of Messrs. Reekers, Haffmans, Van der Biesem and Michiels van Kessenich. Of the Anti-revolutionaries, only Messrs. Lucassen, ‘t Hooft and Franssen voted against. Dr. Kuyper was in Budapest, and was unaware that the decision was about to be made, the more so as the postal correspondence with the Hungarian capital took almost six days. He too would have voted against, just as all Anti-revolutionary members did in the Second Chamber on February 22. It is true that in the previous draft he had pointed out that the position could present itself in such a way that he too would vote in favor, but only if by doing so a concession could be obtained. This, however, was not at all the case here. What was now under consideration was the most

unfavorable draft that could be imagined, and even the Minister's explanation colored it even more unfavorably. It can therefore only be confessed that the adoption of this draft in the First Chamber was one of our most grievous disappointments that could be imagined.

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STATE ORGANIZATION AND STATE ENTERPRISE. 415

# CHAPTER XIV

## THE FINANCES.

### §1. State Organization and State Enterprise.

Regarding the Finances, we can therefore suffice with a shorter discussion in this chapter, because we still defend as correct the main lines regarding this so important question, which were drawn in “Our Program.” Brevity is also possible because the financial question, as far as these public bodies are concerned, has already been discussed more extensively in Chapters VIII and IX. It may even be gratefully acknowledged that since 1878 something has also been recognized in our official State life, which at the time could only be brought forward as a protest. We are here particularly referring to the distinction between the financial management that flows from the organization of the State, and that entirely different management that has no other character than that of a State enterprise. These two categories of management differ not only in form, but in principle, and in such a way that the second category, that of the Enterprise, could if necessary be entirely eliminated, and either be left to the Municipalities or to private individuals; while conversely the entire other financial management, which is required by the character of the State as an organism, can only be entrusted to the rulers of the Realm. This has now been officially recognized, at least in the case of the Postal, Telegraph and Telephone services, the State Printing Office, etc. In our State budget, one has now gone so far that what is purely an enterprise is kept separate and accounted for separately. Yet we cannot be satisfied even with the external acknowledgment that this is about enterprises here. Our protest against the direction that refuses to recognize this as the outflow of the organic character of our State system must also be maintained in the recognition of what is not an enterprise.

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It cannot be denied, however, that the view that everything done on the financial terrain by the Government is to be regarded as a transaction between the Authorities and the individual citizens, or independent persons, found defense not only in an earlier period and well into the 19th century, but is even now still advocated. This came out very strongly in the problem of tolls on the highways. This toll system was based on the view that the traveler, whoever he may be, owes the Realm compensation for the

construction and maintenance of the State roads. There are still a few local tolls left where even the pedestrian paid a toll or bridge fee, but from the side of the Realm, at least in our country, such a toll on pedestrians has long since been abolished.

## §2. The theory of Montesquieu.

The fundamental error in this view was that the Government was regarded as a power that guaranteed the possession and enjoyment of his own property and income to the individual citizen, and therefore demanded rightful payment for this service. Especially Montesquieu pleaded extensively for this system, which was then dubbed the "assurance theory." The citizens were then in the position of persons who did not know how they would obtain the same protection for their possessions or income. Both were constantly in danger. And now the Government offered itself, or rather, now that many citizens together had established a Government, which could provide the otherwise completely lacking security. Now if the Government proved this important service to everyone who had to secure certain property or certain income, it followed naturally that one had to compensate the Government for the expenses it had incurred for this, and moreover to ensure the Government itself such a salary that its existence would not be endangered by lack of means. The whole representation, however, rests on the false assumption of the Contrat Social, and may therefore be regarded as no longer finding defenders who can claim a hearing.

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THE THEORY OF MONTESQUIEU - TWO KINDS OF GOVERNMENTAL FUNCTIONS. This theory, and with it the fundamental idea of the insurance system, though in a modified form, was revived. The difference consisted merely in this, that in this second system the citizens were taken as pure individuals in an even more stark manner. The one has more, the other less profit from the care of the Government. To one who possesses no capital, the Government need not by itself guarantee the safe and unimpaired possession. Imagine two citizens side by side, the one who has nothing but a weekly wage of say 10 guilders, and the other who annually receives the interest on a ton of gold—the State cannot cover that wage laborer, because there is almost nothing to cover with him. The possessor of the ton of gold, on the other hand, needs all his ample coverage, in order not to be disturbed in his quiet possession. From this, they then tried to deduce that therefore nothing was to be claimed from the wage laborer, while on the contrary the man of the ton was under obligation to the State or the Government to reimburse the services rendered to him and the costs, and to offer an honorary reward. This theory of compensation, however, could not maintain the favor it had enjoyed for a short time in public opinion, because it actually rested on the false idea that the State was merely a casual agglomeration of independent persons, and thus completely misunderstood the

organic character of the life of the people. Also practically, this theory proved to offer a wrong starting point. It led to the result of making only a certain part of the population liable to pay. And not only this, but it soon became more and more impossible to calculate according to a fixed standard what each individual citizen had actually received from the State, and thus to determine the rightful share of each citizen in the common burdens.

## §3. Two Kinds of Governmental Functions.

Only an excessively penetrating confusion of concepts kept this theory of compensation in force for a fairly long period, and it is this that should be pointed out here. The Government performs, for the benefit of the subjects, two kinds of activities, and from these two kinds the first flows quite certainly and of itself, but the other only at will and as an incidental result of the task of the Government, in connection with the character of the State. Regulating the import at the borders is something that cannot be left to each border village; this import, and likewise the export, touches the relationship in which our State finds itself towards the neighboring State that lies on our borders. There is therefore no question of the citizens being able to regulate this interest for themselves. Here the one central government authority must act as the power over the whole people. On the one hand, therefore, a series of obligations rests on the Government, which it must fulfill for the benefit and on behalf of the entire population, and which cannot be reduced to the task of the individual citizens. As has already been remarked, this also applies to what concerns the Army and the Navy, to what concerns the care for the payment of interest and redemption of the national debt, to what concerns the colonial possessions in other climes, to what concerns the Department of Foreign Affairs, and so much more. §4. Of a Completely Different Kind. Yet in all this it is always a task that is to be performed for the benefit of the whole people as a national unity, even in connection with its past thought. Of a completely different kind, on the other hand, is the task that is entrusted to the Government more for convenience, even though the citizenry itself could have acted for it. The sending of letters and documents was still largely done through private assistance even in the Reformation period. If one heard that someone was going to Russia, and one had family or business connections in Russia, one would then request such a departing person to be so kind as to take along such a letter or such a document. The mutual traffic, as far as letters and documents were concerned, was at that time so extremely meager and insignificant that it hardly counted. This has now all been completely changed by the rise of the postal service; a state function to which the telegraph and telephone service has since been added. Naturally, one could also have brought about these various services for mutual traffic through associations of private individuals, and in more than one sense this has also happened. Especially one sees this in the Railways. In Belgium and in Germany

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OF A DIFFERENT KIND. - AGAINST FIXED PAYMENT.

419 It was the government that provided for the railways; whereas here, on the other hand, various railway companies have emerged that have a private character. Yet it has also become increasingly clear to us, 1° that these private companies must be placed under strict law, and that their traffic cannot remain without closer regulation by the state; as was most clearly evident in the great railway strike of 1903. And 2° that these private companies need the assurance from the government that, if the covering income does not meet the costs, the state will step in or take over the entire traffic. From this one already sees that the activities of the government that have a business character, yet appear in such a different character, that one can say of the one business that the state really no longer needs to concern itself with it, while the other business can hardly be taken care of sufficiently in any other way than by the government. All kinds of freight and passenger transport services are still private, without this being a hindrance; the post, on the other hand, is hardly conceivable as anything other than public.

## §5. Against fixed payment.

Yet all these state services that have the character of a business have this in common, that whoever makes use of them must pay a fixed price each and every time. We pay separately for each piece that goes by post, in the form of a postage stamp. Likewise, we pay directly for each telegram. Also where the railway system has passed into the hands of the government, each traveler pays for his ticket each time, or does so by

subscription. The peculiar character of all these business services is therefore that whoever wants to make use of them may do so, but whoever does make use of them must pay the due amount as often as they do so. It is indeed the individual citizen for whom the government opens the opportunity to make use of its good services, and whoever makes use of them pays what it costs the government, and this even to the full for their share, and often even a little more, so that such a business commonly also yields an extra income for the government. This is so with the post, with the telegraph, with the telephone; it is the same in Belgium and in Prussia even with the railway system. The same applies to gas plants, water supply, and so much more, although here it is usually only the municipal authorities that concern themselves with it, and not the state. There is a distinction here, but the character of the business remains. But even if one sets aside everything that has the character of a business, there still remains for the government an ever-expanding task that comes to it from the essence of the state, and it is in this fundamental task that the financial involvement of the state, apart from any business idea, presents itself as a matter of course. Naturally, with the business activities of the government, all kinds of arbitrariness have a place. As is known, there are countries where the government itself has made a monopoly of more than one business, as for example of the sale of tobacco and matches, and this makes a distinction in so far that the government in the monopoly does not take on the business activity in order to accommodate the citizenry, but solely with a view to its own gain. This certainly cannot be recommended, as it hinders the free life activity of the subject; but even so, such a monopoly remains a supporting business, and can never be derived from the essence of the state or from the national existence of the people.

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## §6. The government better than the private individual.

Does it now follow from this that, in order to keep the governmental character of the state pure, all business of this kind must again be handed over to private initiative? In part, yes, as is the case in particular with the public school, which has also been introduced in part as a business. It was especially with it that it became evident to what a mistaken outcome the desire for all kinds of interference by the state can lead. For the rest, on the other hand, there are many services of which the business can be regulated and taken care of by no one better than the government. History also shows that, with the ongoing development of the people, all kinds of businesses of this kind, which for centuries had a completely private character, had to be taken over by the government precisely because of the richer development of the people.

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AGAINST FIXED PAYMENT - THE GOVERNMENT BETTER THAN THE PRIVATE SECTOR.

The government can take over what the private sector has appropriated. There is no fixed rule to be set here. Each intervention must be judged on its own merits. Not only is the school system increasingly reverting to the private sector, but in our colonial administration, private initiative has also come increasingly to the fore. Naturally, whenever the state's finances are involved, the question must always be considered whether the state's finances are improved or worsened by it. But even if a state enterprise must be maintained for this reason, what is a state enterprise must always be sharply separated from the financial issues that the state organism presents. What the government does in business, it takes over from the care that was otherwise imposed on its subjects, and solely on the ground that private initiative is not able to do it just as well, just as quickly and just as cheaply as the government. There is only a preference at play here. Just as any citizen can switch from one merchant to another if the latter can serve him better, quicker and cheaper, so too do the subjects naturally switch from private initiative to the government enterprise, if they see that the latter yields them more profit. In nothing, however, does this touch the proper state task, nor the primordial vocation of the government. That task and that vocation arise from the people's being as such. This people's being is not the result of the private good judgment of the subjects who come together in assemblies, but has its roots in a past that spans centuries, arises from a common nature that perpetuates itself from generation to generation, and which for that very reason manifests a character that differs from the national character of other nations, continually unfolds in a completely peculiar way, and works even in the newly arising generation, even though it still lies in the cradle, because the people does not make its nature itself, but has it gently bestowed upon it by its ancestors, entirely outside of its own free will. Imagine that in a people all persons above the age of ten suddenly died on one day - even then, within the next twenty years, a people would grow up with the same national sense, because it was of the same origin. The organism of the entire people governs this, and determines the character of the masses. This became immediately apparent again in 1914 and thereafter in the great world war. It was not the individual persons who then set the tone, but people stood against people, and all political difference

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422 FINANCES.week, in order to do justice to the organic unity of the People.

## §7. Concentration on the Realm.

The principle of the French Revolution also led financially to deprive the constituent parts of the State of their relative independence, until finally nothing remained but the all-providing State. So it also went with us under the influence of this revolutionary principle. The finances of the Municipalities and the Provinces thereby came to stand in an increasingly unfavorable relationship to the finances of the Realm. For all the Provinces together, the total of all revenues in 1911 was no more than 11¼ million, while the expenditures amounted to only 10¾ million. With loans excluded, the budget of all Municipalities together in that same year was 161¼ million, and against these two amounts of 173 million stood the Realm's budget in 1914 with a sum of 208½ million, already rising in 1913, i.e. two years later, to 239½. Set against this now Switzerland, where the Cantons retained such a degree of independence, and one finds that the Realm's revenues in 1911 amounted to no more than 98 million francs, i.e. about 47½ million guilders, while the population stood at 3¾ million. In the rest, the Cantons provided. In the United States of North America, a total ordinary receipt of 938½ million dollars for the entire Commonwealth was calculated in 1911, while the separate States together had 620 million dollars. Had one then also in 1813/15 left more of their former independence to the formerly sovereign Provinces, so would also with us the Realm's finances stand much lower, and in contrast the Provinces show a quite different budget. But precisely this partly autonomous character of Provinces and Municipalities the principle of the French Revolution did not tolerate. All autonomy is now also in France broken and almost nullified; and in 1813/15 one has, out of fear that the Provinces with us might rise up against the unity of the Realm, placed them all, also financially, under the guardianship of the Realm.

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CONCENTRATION ON THE REALM. - DIRECT AND INDIRECT TAXATION. 423 A total revenue for all Provinces of only 11¼ million, in 1911, of which then, to consider the matter substantially, still 2½ million are borrowed funds and almost 5 million for Realm surcharges, so that in fact from their own resources and levies there remains barely four million for all the Provinces together, is, with a view to Provincial autonomy, a mockery.

## §8. Direct and Indirect Taxation.

As for the contrast between direct and indirect taxation, the leading position of the French Revolution has here lost its play. The absolute demand of the newly arisen system actually came down to this, that only one single tax would be levied, and that in this tax all citizens would contribute in proportion to their annual

income. It seemed so natural. The community certainly needed a certain amount for state administration and state defense. In the community one found the citizens as members. Whoever had any income at all per year, therefore had to contribute in proportion. Preferably, everyone should pay this contribution voluntarily for their share. And so all the financial needs of the State would be provided for of their own accord. But soon it became apparent that this was a utopia, not at all capable of being realized, and so the indirect levies soon went through again as of old. With the exception of the German Realm's finances, it can then also be said that now still in only a few German States, in Austria, in England, in France, in Russia and in Italy, not to speak of the smaller States, the indirect taxes deliver the lion's share in the finances of these States. The indirect taxes have their pros and cons. In their favor speaks that the discharge of them goes as it were of itself and unnoticed, that one has it not largely in one's power whether one will pay in it or not. This is especially evident with the consumption taxes. What was imported from abroad, fell under it as a matter of course. This was the case with wine, all kinds of distilled liquors, beer, tobacco, coffee, tea and much more. With us one left tobacco largely free, but as a rule it can be said that all such luxury articles, whether imported from abroad or even manufactured in the country itself, were affected either by the Tariff or by the excises.

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FINANCES. As we have already seen, this trend even went so far in France that they sought to make such objects into state monopolies, just as we later did with opium in our colonies. The octroy has been abolished here at home, with a few minor exceptions, but in France this means of revenue was still maintained on a large scale. Even our excise duties alone yielded a total of nearly 67 million guilders in 1913, that is, more than a quarter of the entire budget, while all direct taxes together brought in only 52¾ million. If we now add to this the import and export duties, etc., amounting to 17 million, and other indirect burdens that yielded 32¼ million, this already amounts to nearly half of our entire budget. Yet it was soon realized that our budget was steadily climbing too high to be covered mainly by what came in indirectly; something that had to be acknowledged more clearly when the high indirect taxes began to weigh too heavily on consumption, and thereby also harmed industry, both on the side of the manufacturers and on that of the wage earners and shopkeepers. Hence an income tax could no longer be avoided, and this in such a way that only the lowest income classes remained free from it, but for the rest all the different classes of the citizenry had to be affected pro rata according to their income. The limit indicated here is that the tax must not touch the income itself in its sources, since an annual decline in the national income through taxation, without a corresponding increase from other quarters, would of itself diminish the national wealth from year to year, and thereby undermine the vital strength of the People. The difficulty remains, however, that estimating the actual income of each citizen continues to be a struggle; a reason why we would prefer to see the levy of

such a tax pass from the State to the Municipalities. In the Municipalities, one's neighbors' incomes are estimated most accurately.

## §9. Personal and real estate taxes.

A piece of land of some extent must pay land tax every year, quite apart from the person to whom it belongs. The

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PERSONAL AND REAL ESTATE TAXES. The value of such a piece of land lies in the land itself, and it is the government that, through the proper administration of the country's affairs, causes the intrinsic value of the land to rise or fall to no small degree. If the government took care that the access roads could naturally perform their service to increase the value of the piece of land, if the waterways were well maintained, and if measures were taken against water damage as far as possible—then, through all this, the monetary value of the land would increase, and it would naturally follow that a certain sum had to be paid annually to the government from the yield of what grew on the land as compensation. Already in Israel, as is well known, not less than a tenth of the yield was set aside. But the very fact that the land enjoys this care of the government, entirely apart from the person of the owner, makes that in the purchase and sale, this real estate tax is taken into account impersonally. The buyer then pays so much less as the tax capital value represents. The tax is actually included in the lower purchase price, and when calculated precisely, the buyer is not really paying any tax, since the interest on the lesser amount paid covers the tax. Of course, changes occur here, as when the value of the land is increased by the construction of a railway or a canal. The real estate tax must also constantly take this into account and must rise as the pure value of the piece of land goes up. This is fair, since the owner, without doing anything, has seen the value of his property increase. In the case of a decrease in value, the opposite effect should be applied. It is the same with built property, especially in the cities. A municipal administration can make such changes in the layout of the city that a house, which thus yielded a rental price of 1,000 guilders, climbs to a rental price of 1,500 guilders. An inflexible system of real estate tax, and of real taxes in general, must therefore be so arranged that it takes these declines and increases into account. If it is solely the government's interference that brings your house from 1,000 to 1,500 guilders per year, then it is only fair that the tax that is paid for such a property should also be increased. Consumption and luxury articles are also generally counted among the objects of real taxes, since everyone has it in their power to refrain from such objects or to use them.

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FINANCES. The personal taxes, on the other hand, are of a completely different nature. These include poll tax, income tax, wealth tax, and business tax, etc. Here, one is dealing with income that represents the person in their personal capacity, and which, if they leave the country or die, changes in character. A person's personal possessions depend on what they have inherited or acquired through their own enterprise. They are lord and master over what they own or possess. They alone have authority over it. Now, if the government provides them with all the necessary information to safeguard their possessions or property, it is a well-ordered state of affairs in the country, which, thanks to the government's care, makes social action with this capital or this income possible, so that if you think the government's care away, it would shrink like snow in the sun, then it is only right and fair that the government receives compensation in the form of taxes for this care that secures their possessions, and indeed a tax that increases proportionately upwards. And this last not out of consideration that the wealthy possessor can pay more, but because for large sources of income, the government's dominion possesses a higher value, not only extensively in terms of the amount of the property or income, but also intensively, insofar as for the safeguarding of the larger capital or income, much more serious measures have to be taken. For the security of an income of 10,000 guilders, much more is required from the government than for the guarantee of an income of 10 guilders per week. The great difficulty remains, however, to estimate possessions and income with precision. Although hoarding in silence has a very serious downside, just as this so often turns out with the miser, yet it weighs on the household and can have a detrimental effect on upbringing, if an 11-year-old boy already knows precisely what his father earns each year. There lies in this temporal mystery a power that can very certainly work for good. In general, it may also be added here that the national government is also obliged, in its financial policy, to proceed cautiously and modestly. Care must be taken that the tax terms are so regulated that they fit the practice of life. The tone in which the government speaks about taxes should not be too harsh or too threatening. The costs of collection must

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PERSONAL AND MATERIAL TAXES - THE TARIFF. 427 As much as possible, this should remain limited. And even if the imposition of taxes is according to the absolute proportionality of the position, an ideal that will never be reached, yet it must be felt by the citizenry that the Government intends a precise and strict proportionality, and has an open ear for any complaint that provides proof of a shortcoming in what the requirement of justice demands here. Precisely for this reason, the establishment of the budget must also always stand under parliamentary authority. No people may have this right to decide on this taken away from them. The entire constitutional system is never otherwise than by the maintenance of this right to be guaranteed.

## §10. The Tariff.

The most suitable method to also achieve a more effective tariff of import duties here can remain outside of discussion. For this is a question of tactics, which, as the circumstances change, will have to be solved in very different ways. Our party has been pushing the Tariff increase more to the forefront since 1878, and eventually went so far as to include it in the Election Program. At first, this did not succeed. Notwithstanding the fact that our party's Election Program also seriously addressed the Tariff increase, we still managed to achieve a significant victory in 1901. Also in 1905, the Left's struggle against the Tariff increase was only tangential. This remained so in 1909, when we once again knocked the Liberal Party out of the saddle with the Tariff in our Election Program. It was only in the 1913 election that the Left has taken the Tariff as their main weapon against us, and, supported by foreign suppliers whose imports were threatened, set in motion a campaign with heaps of money that resulted in our defeat. This is something we will have to reckon with in the future. There is indeed a danger that a similar campaign against the Tariff increase, as was set in motion in 1913 and succeeded, will be immediately repeated, so that we will once again bring it up in our Election Program. Hence it seems advisable, in view of the experience gained in 1913, to change the method; from now on, not to bring about the Tariff increase all at once, but to do so in parts; and

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428 THE FINANCES. to begin with this immediately, so that we regain mastery of the terrain. The Liberal Cabinets have also, on their part, caused the yield of the Tariff to increase. In 1885, now thirty years ago, the Tariff on imports and exports still only brought in 5 million, and since then it has climbed to an amount of 177* million. Now our population has grown from 4 1/4 to 5 1/4 million in those years, yet it is clear how considerable an increase in revenue, even proportionally, was contained in this climb from 5 to 17 million. However, there is no need to go into this in more detail here. The issue here is election tactics, and this can only be decided at the ballot box. Even the claim that the appearance of Mr. Kolkman's bill had caused the vote to turn against us in 1913 does not hold water. In 1909 they had the virtually identical draft of the former Minister Harte van Tecklenburg before them, and yet this did not prevent our brilliant electoral success in 1909. In 1913, however, the foreign suppliers had become more alert. Then the money poured in. It was this money that ruined us. And now that these suppliers have passed the test, there is no doubt that they will attack us in the same way time and again.

## §11. Mixed with us.

Now as for the Tariff itself, there is by no means a smooth free trade among us. On some articles even a very high import duty is levied, such as 50% on beer, 25% on sugar goods, 10% on cigars, and an equal amount on carpets, but these are exceptions to the rule. Overall, what is now levied, if not nothing or a very insignificant amount, and apart from that, the Netherlands still enjoys the honor of being counted among the Free Trade countries. A fixed rule of conduct is not to be established here, nor is it to be derived from a principle professed by us. There may very well come days when the urge will be overwhelming to abolish even what we now still levy. It must only be confessed that the levying of import duties has been the practice followed by almost all countries from ancient times until now. In justice, it can be demanded,

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MIXED AMONG US.429 That whoever resorts to our market to bring his wares here, compensation is given for his profit, for indeed his sale here in our land also takes place under the protection of our entire state system, and it cannot be unreasonable that he should also contribute to the costs of the government administration. This dominant idea has now also been put into practice everywhere. Even in England; and what England has given the name as the land of free trade is not to be explained by the fact that England did not also benefit from levying duties on imports from abroad, but only by the fact that it did this in a quite peculiar way, partly by levying tariffs only on what was not produced in England itself, and partly by shifting it to very high excise duties. To avoid the war years, it may be noted here that England in 1913 levied £36,207,793 on customs and £41,159,574 on excise duties. Together, therefore, 76 million pounds sterling, on a population of just over 46 million. Higher, therefore, almost anywhere else, while, as is known, in 1915, for the sake of the war, even the customs duties were considerably expanded. If one now consults the statistical data with regard to other countries, one finds that all the larger States are fully engaged in tariff grazing, and that the smaller States, with which we can better compare ourselves, do the same. Belgium's budget still accounted for 6774 million francs in customs duties in 1913, on a population of 7 1/2 million. Switzerland already drew in 1911 almost 81 million francs, on a population of 3 3/4 million. Sweden drew from its tariff in 1914, from its customs and excise duties together, 111 million crowns; the crown calculated at 1 fr. 39 c; on a population of about 6 million. And so it is more or less with all the smaller States, not a single one excepted. Whether in America or in Europe, in Asia or in Africa, high tariffs are levied everywhere, and in fact the Netherlands is the only smaller country where any kind of serious opposition to an increase is still being contested. The advocates of the free trade system among us are therefore under the presumptive obligation to show on what grounds the Netherlands would be called upon to deviate from the

rule that the whole world has always followed, and still follows, in principle. They cannot do this, and therein lies their weakness.

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## §12. The World Empire.

It would certainly be conceivable in itself that all tariffs were abolished and free trade for all goods was allowed throughout the world, in every land, by the entire human race. Then it would certainly be equal for all lands, and the consequences of it would be felt everywhere. Countries rich in mining, agriculture, and manufacturing would then overflow with trade and become ever richer, while conversely countries with little underneath and little above the ground would also lose more and more of their manufacturing and impoverish. The idea of the world empire would then also be carried out to the utmost in the financial sphere, and the materially favorable or unfavorable conditions would determine the fate of the various peoples and nations. Against this material starting point, the nations have constantly risen up out of a desire for self-preservation; partly to increase their revenues, partly to better secure their own production and manufacturing, they have placed tariffs on the borders and levied import duties. England also did this in the early period of the 19th century, and only when it had gradually, thanks to its overseas possessions and its mighty fleet, secured for itself a dominant world position, did it grant free entry for what it itself produced, at least in its tariff, if not in its excise duties. It owed a temporarily unparalleled success to this. Yet here too a turning point came. The Conservatives turned around and aimed at restoring the earlier tariff, while even the Liberals went along with this during the war years. When England turned around for the first time, the economists here too have also changed their opinion, and have also managed to push through the reduction of the Tariff Act. This has promoted the emigration of the factory population to Germany in a very striking way. Whereas the number of Dutchmen in Germany did not exceed 30,000 before, their figure stood at 144,175 persons in 1910. This placed the Netherlands second on the list for immigration. Austria had accommodated 6 1/4 million of its nationals in Germany, and we immediately followed with almost 145,000. In proportion to the population, the Netherlands therefore had the most of its sons go out to Germany to find work. It thus became the opposite of what it had been before. In the days of the hand-loom weavers, it was the Germans who came here to seek work, and now, on the contrary, it was the embarrassed Dutchmen who went out in search of wage-earning labor to the economically much better-off Germany. Something that deserves all the more emphasis, because it is exactly the same with Belgium. According to the figures for 1910, over 70,000 Dutchmen went from the Netherlands to Belgium, while the number of

Belgians coming here was no more than 18,338. Belgium had about 7 1/2 million inhabitants, and yet more than three times as many Dutchmen went from here to Belgium as Belgians came to us.

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## §13. Any absolute system unthinkable for the time being.

It may therefore be stated without reservation that, under the given circumstances, the desire on our part to enforce the free trade system cannot be justified in any way. Even if one admits, as we have always done, that such a system, if universally accepted, can be conceived and accepted—as it now stands, the wish of anyone who aims at it cannot in any way be granted. The state revenues do not flow so abundantly that we can miss the tens and more millions that we sacrifice through our current system. Especially when it was a matter of the Invalids Insurance and Free Trade, it was self-evident that we could not give up such a concrete and strongly speaking interest for the sake of an exception in this. But apart from this, the too free import is the cause—that a very large quantity of what we need in all kinds of ways, and which could very well be supplied here, now comes to us from abroad; the consequence of which is that the foreigner attracts the financial profit, gets various kinds of manufacturing here, and that many workers who would otherwise find plenty of work must now cross the border to manufacture for German manufacturers in Germany what they could normally have prepared in their own country for our own manufacturers.

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432 PUBLIC FINANCES. The foreign competition here did not cut prices in a way that excluded all competition. Now it is true that industry here has adapted to the financial-economic regulation of Liberalism, and consequently, especially in Overijssel, a native industry has flourished, which does excellent business, especially in the East. However, this is nothing strange. This always happens. England showed in its tariff reversal how Ireland became the dupe of that reversal, and how not only British India, but also Ireland literally impoverished under England's economic prosperity. Although our industry has adapted with rare energy to the newly entered situation, yet this was and remained nothing more than a bandage on the bleeding, as they say. It was, and still is, an impossible situation that we are clothed from Germany and provided for in all kinds of necessities of life, and that our men take care of China and Japan. Charity well commanded begins with oneself, and so it is also with industry and trade. The Netherlands should not let other countries dictate the law here, but first of all know how to provide for its own vital needs. As it now stands, almost everything in this area has been neglected with us. Hardly anything was done for the industrial education of our workers. The trade schools themselves could not yield sufficient profit, since the

teaching staff was too low. And when at least in 1904 an attempt was made to establish in Haarlem what Germany had had for a long time in many cities, this was even opposed by the friends of Free Trade. Now in Rotterdam at least a first step has been taken with the Commercial School. But for the rest, it is still the pseudo-love for Free Trade that has kept us backward in every field.

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# ANTIREVOLUTIONARY POLITICS II (P2)

II

*Daniel Metcalf*

# Preface to Volume II

This second volume, titled *The Application*, moves from the theoretical foundations laid in Volume I to the concrete political program. Here Kuyper addresses the practical machinery of the State: Representation, Justice, Army, and Social Policy.

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## Technical Note & AI Disclosure

**Translation Methodology:** This English edition was produced using advanced Large Language Model (LLM) artificial intelligence technology to translate the original Dutch text of Abraham Kuyper's *Antirevolutionaire Staatkunde* (1916-1917). The AI system was prompted to preserve Kuyper's distinctive theological and political vocabulary, maintain his complex sentence structures where possible, and render 19th-century Dutch idioms into readable modern English while respecting the historical register.

The translator (Daniel Metcalf) provided:

- **Human oversight and verification** of all translated passages for theological accuracy and stylistic consistency
- **Editorial decisions** on rendering key Neo-Calvinist terminology (e.g., "Sphere Sovereignty," "Common Grace")
- **Structural organization** and formatting of the three-volume edition
- **Quality assurance** through spot-checking against the Dutch source PDFs

**Scholarly Apparatus:** In addition to the translation, AI algorithms were utilized to generate the following supplementary materials:

- Synthesis of the *Analytical Register* (from the original back matter) into section headnotes
- Thematic clustering via Natural Language Processing (NLP) to enhance the General Index with conceptual groupings
- Generation of the "Synopticon" cross-reference index linking Kuyper's arguments to Mortimer Adler's *Great Ideas of the Western World*
- Compilation of the Encyclopedic Glossary and Biographical Register based on text analysis and historical context

**Limitations:** While every effort has been made to ensure accuracy, users should be aware that this is an **AI-assisted translation** and may contain subtle errors in theological nuance or historical context. Scholars engaged in critical work are encouraged to consult the original Dutch text. This edition is intended as a scholarly resource to make Kuyper's political theology accessible to English-speaking audiences, not as a replacement for the authoritative 1916 Dutch original.

**Source Texts:** The translation is based on the digitized versions of the original *Antirevolutionaire Staatkunde* (J.H. Kok, Kampen, 1916-1917), available via Internet Archive and other public domain repositories.

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# CHAPTER XV

## THE PUBLIC PROPRIETY.

### §1. Shame and propriety.

At the beginning of the first and second period of man's life on this earth, shame comes to the fore. First with Adam and Eve, the second time with Noah. Of course, both Adam and Eve were created naked, and lived without clothing in Paradise. As long as the sense of absolute innocence suppressed the sinful in them, no feeling of shame could arise in them. But as soon as the loosening from God did not become dominant in their soul life, the feeling of shame arose in them. In Genesis III:6 we are told that they ate of the forbidden tree, and immediately thereafter in vs. 7 we read that they made themselves aprons of fig leaves to cover their nakedness. And that this outburst of shame was pleasing to the Lord is evident from Genesis III:21, where we are told that God made garments of animal skins for Adam and his wife and clothed them. Here, then, there is a twofold thing: on the one hand, the arising of the feeling of shame, and on the other hand, the ordinance of God to cover the shameful parts of the body. In connection with this, it is most remarkable that the second period of human life, which dates from Noah after the Flood, also immediately draws attention to something that had to do with shame. For we read in Genesis IX:20: "Noah began to be a man of the soil, and he planted a vineyard; he drank of the wine and became drunk, and he uncovered himself within his tent." Not, as is often depicted, in the open field, but in his tent. Ham first pointed this out to his brothers. And then Shem and Japheth "covered the nakedness of their father," and turned their faces backward so that they did not see their father's nakedness. Awakened, Noah noticed this, and now the period of Common Grace begins.

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434 PUBLIC DECENCY. Here the prophetic voice sounds forth, that the curse falls upon Canaan, the blessing descends upon Shem, and that Japheth shares in Shem's blessing. The two mighty sinful factors, which come from the lust of intoxication, are thus introduced as all-controlling in significance—the first at the Fall in Paradise, and the second after the Flood. Whether wine or strong drink was drunk even before the Flood, we are now left to conjecture. The fact is that in the period before the Flood, with all the horrors that arose, no word was mentioned of anything that could intoxicate. This therefore presupposes the possibility that they may have drunk grape juice, but that the preparation of wine only came later. But however this may be, it is clear from the observation that at both the beginnings of human life, both in Paradise and after the Flood, shame gives the main signal and shamelessness provokes the wrath of God. Now if the Government is the handmaid of God, it follows that it is called to curb shamelessness in public life, and this now sets the duty upon the Government to watch over propriety in public life.

### §2. Private and Public.

It is noteworthy here that in Paradise the clothing of Adam and Eve with animal skins already took place when they were still alone. Shame thus extended to the fellowship of man and woman. Even here the animal must be avoided. Now if shame goes so far that it sets a feeling of shame even between man and woman, and thus in the whole family, and even in the most intimate intercourse, it is self-evident that especially in public life, whatever approaches nakedness provokes the sense of shame and calls for covering, and since in the life on the way, on the street, at windows and open doors, this awareness of shame has an absolute dominion, it lies in the nature of the relationships that the Government, as the guardian of public life, must prohibit, punish and suppress all that is shameless. With the Government this is called: watching "over public decency." Immediately here the profound difference between two spheres of life comes to the fore. There is a private and there is a public human life. The first is lived within chambers and in a closed house, the other on the public domain, which is open to everyone. In connection with this distinction, it must always be kept in mind that the Government has to abstain from the first, but on the other hand has to subject everything to its will on the second. The English expression: "my home is my castle," speaks sharply, but not at all exaggeratedly, even though there is often talk of shame and propriety. Within the home, the head of the household is responsible, outside the home the Government. Something to which it must also be noted that everything that gives an insight into domestic life from the outside, and thus also every room or house to which everyone who wishes has free access, falls under the public domain.

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PRIVATE AND PUBLIC - IMMORALITY. If one professes with the Apostle in Rom. XIII:1 ff. that the powers that be are ordained by God, and that the Government is the handmaid of God, then it follows that the watching over public decency must also be carried out for God's sake, and in obedience to His ordinances.

## §3. Immorality.

We speak intentionally of Immorality, not only of prostitution, and still less of the shameful nature of the sin to conceal it, as is often done in the French word. What the Government has to prevent from the public domain is any immoral display or action. As for the display, this includes, first of all, the improper clothing, which was previously self-evident among us, but in recent times has taken an increasingly shameless form in our cities, both through the partial exposure of women's breasts on the street, and through the shortening and splitting of skirts, and to some extent also through the tight tension of women's attire around the body, with no other purpose than to display the luxuriant forms of the female body as strongly as possible to the eye. It is especially the power of fashion that causes this evil to proliferate so rapidly, and further the dominance of Parisian fashion, which, if it does not actually create the evil, at least promotes it in a very detrimental way. The sense of shame diminishes as a result. The damage done by displays in the field of art will be discussed later.

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The public decency. The most difficult part remains. In this section, the art remains outside the discussion. All the more reason to emphasize here the indecent acts that have become all too common in street prostitution; and this in two forms, partly as direct street prostitution and partly in the establishments that emanated from the brothel. It cannot be denied that, thanks to the energetic actions of Mr. Pierson, this evil has also gradually diminished. The so brutally enticing, addressing and half-coercing of gentlemen and young men by public women on the public streets has decreased. Yet it is far from gone, and nothing of this nature may be tolerated by the police. The brothels helped little in this, by placing a prostitute at the door as a local, or by providing a glimpse through a transparent curtain into an illuminated room where the prostitutes displayed themselves. Especially the so-called visitation gave a kind of recommendation, that the public house itself brought with it a certain assurance of lesser danger. With the abolition of the visitation, which fortunately continues to progress further among us, this evil has also been tempered, although one should not imagine that prostitution has given up the display of its establishments.

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The Police. - The high character of marriage. The impure understanding between the police and prostitution remains an evil that must be guarded against here above all. The brothel keepers and even the private prostitutes once had an interest in remaining on familiar terms with the police. The police officer would then pretend not to see what was going on, and the brothel keeper did not tighten the purse strings and granted the lustful agent free access to his subjects. As long as the visitation continued and brought in evil money, this wicked practice could not be curbed. Now, on the other hand, this evil must be rooted out with all one's might. Every commissioner and police agent must know that the slightest improper understanding with this will be punished with loss of office. The personal and strictly domestic in immorality does not fall under the jurisdiction of the government, but insofar as it acts against immorality, its conduct must always be marked by a holy, honorable bearing. An approach that not only leads to not tolerating the evil, but even more to combating it, and that also turns against the immorality itself through discipline. Sinful acts must not only be opposed, but also punished, punished above all by restriction or deprivation of civil rights; a means of chastisement that has been applied all too little among us. The high character of marriage. But apart from this, an equally serious vocation comes to the government in its legal regulation of marriage. This has now been done by the manner in which every married person had the opportunity to compel the judge to dissolve his marriage by means of completely fabricated data. It would be highly desirable if the Law could declare every divorce, whether from table and bed or in the fullest sense, inadmissible. The arrangement borrowed from the Roman Catholic Church from the supposed sacrament of marriage must, as far as the purpose is concerned, be given all honor. The transfer in Ephesians 5:25 ff. of the marriage bond to the bond that binds the Church to Christ pleads for this; and Christ Himself has clearly stated that what Moses allowed, that a man should leave his wife, was only "because of the hardness of their hearts" (see Matthew 19:7,8,9). From an ideal point of view, there can be no doubt that among the regenerate and converted, and these alone have their firm standing in Christ's Church, the giving of a bill of divorce, and thus all divorce, is condemned. Yet the People's Church, in which one has increasingly strayed, even among us, has severed the hold on this high ideal. Now there are also constantly cases in the families of members of the church where...

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438 PUBLIC DECENCY. There are conditions of the popular church that, not only in the case of divorce, but also for other reasons, make a life together until death almost impossible, both for the persons themselves and for their children. But precisely where the government allows divorce, there also rests on that government the weighty obligation to completely cut off any possibility of arbitrariness in this matter, and it is precisely this possibility that is now sanctioned by law. The sin of the parents to avenge on the illegitimate children does not appeal to us; but just as much must it be guarded against that the begetting of children outside of marriage gradually takes on a normal character. The marriage of those who first lived together outside of marriage, on the other hand, ought to be facilitated, and it remains the duty of the legislator to also watch over the more licentious for the sake of the child. With a view to all immorality, it is therefore so desirable that in the appointment of mayors, the appointment of aldermen, the election of council members, and above all in the appointment of the police force, and of course also in that of the judiciary, it is strictly avoided to place government power in the hands of those who are known as patrons of immorality.

## §6. Birth Prevention.

Among the issues that touch on decency, and over which the government ought to exercise oversight, the Neo-Malthusianism and abortion must also be counted without a doubt. The government cannot simply push these two problems aside, because the population question is of great importance for the country and the nation, now and with a view to the future. There was less attention to this as long as the population growth in our country continued from year to year; but now that a reversal threatens here, more attention is also being paid to the state of the population. Especially the example of France in relation to Germany showed how the entire future of a country can be dominated by the decline of the population. Yet it was especially since 1798 that this question also came more to the fore in the scientific field. For then Robert Malthus published his famous Essay on the Principles of Population, in which he argued that a population, provided no checks, as he called them, stood in its way, has the tendency to expand almost endlessly. The population, he thought he could demonstrate, climbs steadily towards the geometric progression of 1, 2, 4, 8, etc., while the progression in the means of subsistence is only arithmetic and does not rise any further than according to the rule of 2, 3, 4. The consequence of this had to be, therefore, that there is always a lowest class of the population that can no longer find proper nourishment, and consequently perishes in misery, in distress and in hunger. Here too, Darwin's later struggle for existence would apply, and help had to be sought against this.

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BIRTH PREVENTION - ALSO AMONG US. 439 All efforts now made to provide for the constantly arising need, such as emigration, colonization, the fight against unemployment and the public poor relief, failed to alleviate this grievous evil. To conclude from this that one must therefore resort to the suppression of births did not, of course, hold up. As long as, especially in Russia, in South America, Australia and wherever else there was still vast, fertile but uninhabited land available, there could be no talk of the need to curb population growth. This, however, did not prevent the so-called Neo-Malthusianism from emerging in England in 1877, through the founding of the so-called Malthusian League and the publication of the monthly magazine The Malthusian. This league, you see, sacrificed the principle of morality to the so-called Populationists, by suggesting all kinds of means that could be used effectively to prevent pregnancy, without the slightest restriction in the exercise of sexual intercourse.

## §7. Also among us.

Unfortunately, this system also found acceptance among us. Especially in the poorer neighborhoods, fewer children would then be born. The reduction in the number of workers would elicit higher wages. And so, from two sides at once, the social evil of having too many children would be remedied. That such a practice now thrives in private life, and thus in secret, is a matter of great concern.

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The Government cannot prevent this striving, but it is obligated to oppose every public expression of this tendency. And this all the more, because the propagation of this system along public ways also attacks the honor of life, by virtually issuing a free pass to anyone who wishes to indulge in sexual sin outside of marriage, as has now been observed in more than one country, especially among the higher classes, as a harmful consequence of the public advocacy of Neo-Malthusianism.

## §8. Abortion.

The theory of Abortion stands no better, which consists in this, that one allows the fertilization to proceed unhindered, but then works to expel the approaching fruit, either by means of administered substances, or by perforating the already accessible fetus. In this second system, the assistance of dishonorable midwives and physicians was then invoked, who, mostly for large sums of money, lent themselves to the application of the means of abortion. The temptation at play here consisted in the fact that the physician could once prevent a pregnancy that could become dangerous to the life of the mother, without being able to promise a normal birth of the fetus. In such a case, the system of Abortion had already been applied from ancient times; and this not only in the decay of morals in Greece and Rome, but also out of purely medical consideration. This very fact now seemed to many a physician to be able to provide all kinds of occasion to extend the system of Abortion ever further. Especially in New York, one already counts on the expansion of this system to a tenth of pregnancies. Many, in fact, give preference to Abortion over Neo-Malthusianism, because the first system rarely fails, and the second, if applied early and immediately, only gives an unpleasant sensation for a short time. Whoever confesses the origin of all human life to be in God, of course condemns both of these evil practices, both that of Neo-Malthusianism and that of Abortion, as absolutely criminal and cursed by God. One may therefore trust that the application of neither the first nor the second artificial means will occur in our circles.

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FALSE POPULATION THEORY, AND THE DOGS. - SUPERVISION OF GAMBLING.441

Furthermore, the Criminal Law has everywhere issued its threat against Abortion, not least in Germany and Austria, and also with us. The question now is whether Neo-Malthusianism should not also find its combating in the Criminal Law; whether all public recommendation of it should not be opposed; and whether the sale of its means should not be stopped. In the case of Abortion, there is only one decisive remedy to be applied with hope of success, and this consists in the fact that a physician or midwife who is caught lending themselves to it, should for good and all have their diploma taken away.

## §9. False population theory, and the dogs.

At the same time, the false population theory must also be combated in every way. What goes for weeds and for our animals, does not by any means go for man. Now, since we have spoken of animals in this connection, it may be noted here that in Israel the dog was not admitted, for well-known reasons. That now with us the dog is used in the domestic circle for hunting, and, on a leash, also for walking, is up to that point, but the Government should also curb the freer roaming of the unleashed dog on our streets. One must have seen in the East, and especially in Constantinople, to what nuisance the freer roaming of the dogs can lead, in order to understand that our Government here too should set limits and boundaries to what is decidedly at odds with the decent character of our public ways. §10. Supervision of gambling.

Gambling in itself is not to be condemned. The enjoyment of play belongs to the life of the child. Also, that part of the population that still leads a more natural life, still seeks entertainment in all kinds of innocent play in itself. All kinds of play of such a character

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THE PUBLIC DECENCY.

This is why the Government not only permits this, but even actively encourages and promotes it at public festivities. Even indoor games, such as ninepins, goose board, checkers, and chess, and whatever other games of that nature there may be, can in idle moments divert from much that is wrong, and even exercise the mind itself. That dancing has a bad reputation in our Calvinistic circles and is therefore banned, is not due to the movements themselves, which as young girls dancing together would be entirely innocent, but finds its cause in the abuse made of dancing in the association of the two sexes. The real game, however, that poses a danger to society, is gambling for money, especially as this game for money has gradually developed into lotteries and casinos. The fatal effect of the casino was eventually so obvious that public casinos have now been abolished almost everywhere, and that Monaco has been left not only with the reputation of almost monopolizing coarse gambling for money, but can also point to the many graves on its small territory where the suicides of gamblers have been laid to rest. State lotteries were then devised partly to get money into the treasury, and partly to give a more innocent character to gambling for money; but better economists have eventually unanimously condemned even these State lotteries as well; and for the past forty years, the fight against State lotteries has taken on a rather general character. Here too, Minister Hartogh van Tecklenburg submitted a bill in 1903 to let them gradually die out within a certain number of years. However, this bill did not come up for political discussion; and Minister Kolkman after 1909 rather strengthened the State lotteries than suppressed them, even if he could not make them harmless. The unseemly gambling also came in from England with the harness racing here. But here too, a stop was put to it, and participation in English races from here was prohibited. One may therefore say that we are on the right track in curbing the evil of gambling for money. Maintain this restraint on the evil. Gambling for money to a certain extent and in a certain way, as is seen in the races, the casinos and in many lotteries, degenerates of itself into a poisonous, soul-destroying gambling frenzy, which must be opposed by the Government in the public domain because it violates decency.

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## §11. Art.

The most difficult problem for the government's care lies ever more in the ever-increasing claim that Art makes upon public life. Art cannot be of a domestic nature. All Art wishes to be seen and heard, and therefore naturally presses towards publicity. This gives rise to difficulties in three different areas in particular. First, in the Theater. The Theater too is a part of public life. Now and then one gives a little domestic piece at a wedding or anniversary celebration, but here the evil does not threaten, for then it is outside its proper sphere. The Theater, on the other hand, stands open to all who wish to pay their ticket. In the Theater as well, then, the government must watch that the play remains elevated and does not degenerate into shamelessness. The sad fact, however, that the more common the piece, the more it attracts, and that high-class performances are scarcely attended, creates here the danger of a very serious violation of morality, and against this the government must be on guard. That it actually does not do this, redounds to its discredit and is an evil that calls for improvement. In the second place, the art museums come into consideration here. Increasingly, one turns, in order not only to display the nude beauty of woman out of a high artistic sense, but also verily to stimulate sensual lust through the representation of immoral scenes and positions. Already now this sometimes goes so far that everyone who thinks feels ashamed. In Naples they have at least gathered the shameful scenes of Pompeii in a separate room, to which access is only granted by special permission. Here too

the government must proceed with caution. All that does not legitimize itself as true high art, and merely stimulates sensuality, must remain prohibited. The same applies in part also to literature. There is a French literature of almost bestial nature, which is also devoured by many among us, so that it assaults public decency. Hence, in the third place, the government must also pay attention to the display in our bookstores, to advertisements and posters. What is displayed in the store is of public nature, and all representations of shameful nudities and of immoral nature must be prohibited there. Yet in this area one now thinks that the shameful should not only be permitted, but even recommended. This is connected with the prevailing intellectual direction, which is ever more bent on pushing back religion, if not actually displacing it, and allowing art to take the place of honor that has belonged to religion from of old. The mentality of many is now of such a nature that they feel an inspiration of fanaticism arise in them when art comes into play, while they feel unfree when religion is spoken of. And in this evil the often leading public opinion, alas, also sways the government.

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## §12. Intoxication.

The intoxication resulting from the abuse of wine, strong drink or opium, touches only in part the honor of public life, insofar as it can namely become the cause of scandal on the public way and in public gathering halls or through public sale comes directly into contact with public life. On the other hand, what occurs within the home must not be reckoned to this; insofar, at least, as the protection of the police against drunken violence is not invoked by the household members. Within doors the government must leave the combating of the craving for intoxication to the Church, to the family, to literature or to private associations. This is connected with the fact that the system of total abstainers, insofar as they aim at a legal prohibition of the sale or use of whatever can intoxicate, is not acceptable. That private associations rightly aim at the complete abstinence from whatever can intoxicate, with a view to the harmful abuse, is justifiable and even praiseworthy; in itself, however, it is incorrect that out of conscience all use of wine or alcoholic beverages should be omitted. The wine too comes from God's creation, and aims, when taken in moderation due to weakness or overstrain, at strengthening and elevating the vital spirits. The question stands quite differently, however, whether the government may not also intervene in private life to prevent abuse, by legally regulating the places of sale and consumption.

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INTOXICATION - ALL EXCESS MUST BE PUNISHED. To limit it, just as is done among us through the system of licensing. The so-called levying of money from the drunkard cannot move in the wrong direction, so that it becomes a source of state enrichment from this vice. On the other hand, if the law aims to limit the use, then, according to the experience gained with us and elsewhere, such legal regulation works excellently.

## §13. All excess must be punished.

Yet the government must not stop here. It must not only temper the police excesses of those who intoxicated themselves, but also punish them severely to prevent repetition, and the deprivation of certain civil rights could also be of good service here, as for example in guardianship and otherwise. Also where the government acts as an employer and hires personnel for wages, all use of alcoholic beverages must be excluded from that service. Whether the financial restraint of the evil is imposed on the manufacturer, the seller, or the buyer, is as a rule indifferent. Whichever choice is made, the effect remains the same, for both the manufacturer and the seller try to pass on the burdens imposed on them to the drinker. To such an intervention against the abuse of intoxication, the government is not only entitled by virtue of its vocation to watch over good order and public decency, it is also itself obliged, partly in order to reduce criminality, since statistics repeatedly show what a large percentage of legal violations and crimes flow from the abuse of intoxication, but also partly out of concern for public health, for hardly anything affects the state of health as destructively as this abuse. Even the opening of institutions to wean the drunkards from their sinful habits may lie on the path of the government, even if only as part of its care for the insane. Yet the government cannot succeed in combating intoxication if private initiative does not support it. There is therefore every reason to be thankful that this initiative is constantly growing stronger, as a fruit of which the percentage of alcohol consumption per inhabitant has also visibly diminished among us. Intoxication we took as the last section in this chapter. Yet this subject forms of itself the transition to Chapter XIV, dealing with public health, or if one will, the hygienic vocation of the government.

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# CHAPTER XVI

## CARE FOR PUBLIC HEALTH.

### §1. Cleanliness.

**Analytical Summary:** Connection with the first part.

The honor belongs to Calvinism that it constantly urged for purity and cleanliness. In our country, in Scotland and in the United States of North America, Calvinism exerted the mightiest influence, and in connection with this it is precisely in these three countries that cleanliness has always flourished most in domestic life; and it may even be said that among these three, the Netherlands still enjoys the highest reputation. To a certain extent it must even be acknowledged that the Dutch housewife was not always free from all exaggeration in the matter of cleanliness; something that must be emphasized all the more, since it is undeniable that in our households in the 18th century the care for cleanliness in clothing and table setting, in corridors, stairs and rooms, even up to the attics and lofts, often weighed heavier than the care for the cleanliness of the body. At least the bath came to us only later. But apart from this, it may nevertheless be praised that even domestic cleanliness constantly contributed greatly to maintaining public health at a high level. In this direction, moreover, one has constantly progressed further, especially in the second half of the previous century; the consequence of which was that much illness was prevented or mitigated; that finally the mortality rate among us declined remarkably; much more sharply even than one had previously considered possible. This is

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CLEANLINESS - THE DUTY OF THE GOVERNMENT.

447 Of course, this cannot be explained solely by the cleanliness that prevails among us, insofar as this trait of cleanliness has not adorned us less in the preceding period with a much higher percentage of mortality. It is true that the use of public baths in our cities has increased, and this too has contributed to the good. But the great progress in life expectancy must be sought elsewhere for its explanation. Yet, even if this is so, it may not be overlooked that the national trait of cleanliness in household management has contributed to the effort to prolong our life expectancy. Our physicians found with our housewives a support on which they could count much less elsewhere. The only question that remained was whether the Government itself, in its own buildings and in its own household management, upheld our old national virtue of cleanliness sufficiently. On this, one could not boast too strongly, neither in our barracks, nor in our prisons, nor in our administrative buildings; and in that sense, it may also be considered beneficial to public health that higher demands on cleanliness are gradually being made in this public domain as well. What the Government is now doing to remove the filth from our streets, to keep our sewers flowing, and to provide wholesome water, must also be regarded as an increased expression of our love for cleanliness and as beneficial to the hygienic well-being of the population.

### §2. The Duty of the Government.

**Analytical Summary:** The beginning of our Program.

That the Government has a serious obligation with regard to public health finds its immediate explanation in the contagious character that attaches to many diseases. Everyone is exposed to this contagion who comes into contact with an infected person in any way. Even a letter has more than once been the carrier of infectious matter, as in the case of scarlet fever. It is the living together in the same village or city, and the intercourse resulting from this, from which the danger so often arises. Now it is almost impossible to protect oneself against this; first, because the danger arises so often

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CARE FOR PUBLIC HEALTH.

This duty arises, on the one hand, because the danger often comes from society itself, before it can be recognized, and on the other hand, because you lack the power to isolate the evil. From this it directly follows that when the danger arises from society, only the Government, which is entrusted with the formal regulation of this society, can step in to protect you. Private initiative cannot save itself here. The Government must protect what stands in an organic life-relationship against the danger of this relationship. This compels it to impose on physicians the obligation to report every manifestation of contagious disease; to give such public notice of this that everyone can be on their guard against the danger; and, if necessary, to isolate the sick person in a barracks or hospital, if their home is too small

to separate them from their housemates. Especially in the outbreak of epidemics, the authority of the Government must sometimes extend very far. Even the “my home is my castle” principle cannot always be so strictly respected, since strict respect for your personal independence could become the cause that either your housemates or your neighbors are placed in mortal danger. A second reason for this duty of the Government arises from the fact that medical and pharmaceutical science is not always self-sufficient. In the cities, there is less fear of this, as there is more to be earned here. In more remote areas, on the other hand, and in small villages, this is not the case, and therefore such urgent supervision and provision is necessary here, so that the necessary help does not fail. Something else to which others must also pay attention is that neither physicians nor pharmacists abuse their function or business. We have already pointed this out in the case of abortion, but the sale of poisons cannot be left unregulated either. In fact, we find ourselves in such a state that if the Government were to withdraw its hand, not only would often be lacking what is indispensable, but the available could also give rise to far-reaching abuse. Here too, of course, it is extremely difficult to draw the exact line between what the Government has to do and what it has to leave. Especially in America, the physician lives in a somewhat freer position; with us the bond is usually drawn very tight. But although we cannot completely avoid a certain exaggeration here, in principle we must also confess that the Government has to watch over the entire field of the health of the People, which is organically connected and forms a unity even in a physical sense.

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CONSUMPTION’S CANCER.449

## §3. Consumption’s Cancer.

**Analytical Summary:** Difference according to the country.

One of the most dangerous diseases with regard to public health is consumption, which is still constantly claiming victims in our country in whole groups. It is so dangerous because it propagates itself in families, not certainly through heredity, but because the disease of consumption, unwittingly and unintentionally, brings about the danger of contagion for our household members as a matter of course. Mere breathing can already infect. When the cough starts to work more strongly, the atmosphere in the household takes in the poisonous elements. And even if one is very careful with the excretions, they disperse in the air and bring the danger where no one suspects it. Now, in well-to-do households, one can isolate a room for such a patient and keep him as much as possible in isolation, but in small households this is already very difficult, and with the poor there is no question of it. Hence the constant efforts that are being made to place consumptive patients in an institution, and thus to put the family in safety from the danger of contagion. Yet mutual aid can only provide very partial and insufficient help here. The annual costs that the stay in such an institution requires are far too high even for the fairly well-to-do bourgeoisie. More well-to-do families must then step in. Philanthropy must provide help. But even so, the masses are not helped. The disability insurance in Germany has succeeded in reducing its expenditures by taking under its care those who were in danger or posed a danger; but even here the Government will not be able to refrain. Its vocation demands more of it. Partly through care for better housing, as we shall see later; but also through supervision and isolation. Fortunately, it may also be said that, thanks to this increased care, the curse that consumption so powerfully attacked our people is gradually losing in intensity. When we see the mortality figures from pulmonary tuberculosis stand at 7,250 in 1909, and already four years later at 6,557, then there is a gain to be noted that is gratifying and gives hope that continued care will be able to push back this national scourge even much further. A decline of almost 700 cases in four years, and that despite an increase in population in those years, is something for which we must thank God.

Alongside consumption stands cancer, as still the strongest endemic evil threatening us. Fortunately, it is reported that the power to exorcise cancer too would have been discovered; but the overall results remain gloomy. If we also make a comparison here of the mortality rates of 1909 and 1913, there is no trace of exorcism of the evil, and even a demonstrable worsening. In 1909 the mortality rate for cancer stood at 6,012, and in 1913 it had already climbed to 6,748 - an increase of 736 in four years’ time. Here too, therefore, the vocation of the Government remains to exorcise this serious national disease, if possible, with God’s help.

## §4. Vaccination.

**Analytical Summary:** The Calvinists here in this land.

The cowpox disease has both an epidemic and an endemic character. In countries and regions where vaccination is not applied as a rule, this evil plague still occurs, though on a smaller scale, while the cowpox disease gains a much greater expansion and can become epidemic. The main issue for us in this disease is the question of direct or indirect compulsion. The character of this compulsion is direct when vaccination is made compulsory by law within a certain period after birth; indirect, on the other hand, as with us, when school attendance is prohibited for the unvaccinated. We have no objection to vaccination itself. The appeal to Job XII:6, where it says, “Those who provoke God have assurances,” is in no way applicable here. What Job cries out here means something quite different. It is Job’s bitter complaint that God has so ordained it that the pious suffer and the godless enjoy the joys of life or seem to possess assurances against all adversity. Whether

by vaccination the latent germ of the disease can be awakened and driven out is a purely medical question, and the outcome seems to show that vaccination applied generally reduces the prevention of the disease. But the quite different question remains whether vaccination, while warding off the smallpox, may not have other detrimental effects, and this too the medical science must determine. Likewise, the neglect of repetition cannot be defended against.

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Alongside consumption stands cancer, as still the strongest endemic evil threatening us. Fortunately, it is reported that the power to exorcise cancer too would have been discovered; but the overall results remain gloomy. If we also make a comparison here of the mortality rates of 1909 and 1913, there is no trace of exorcism of the evil, and even a demonstrable worsening. In 1909 the mortality rate for cancer stood at 6,012, and in 1913 it had already climbed to 6,748 - an increase of 736 in four years' time. Here too, therefore, the vocation of the Government remains to exorcise this serious national disease, if possible, with God's help.

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VACCINATION - EPIDEMIC DISEASES. 451 The vaccination itself pleads its case. From a medical standpoint, we have never involved ourselves in this dispute. Our resistance was directed solely against the compulsion, insofar as it encroached upon the freedom of the private citizen in his own body. That each of us must at times bring an offering to the community, goes without saying. We cannot become a source of contagion for our environment. But this imposes upon us the obligation to most carefully prevent and ward off whatever, in connection with this affliction, could inflict harm upon others. And here the question may arise whether we ought not also, on our own initiative, to resort to vaccination for ourselves and our children. But this leaves entirely open the serious question whether the government may exert compulsion upon our person and our own body, and on this question we have always maintained, and still hold, that a decisive negative answer must be given. The government, too, should work here through conviction. And then it appears to us that vaccination will continually gain more ground. Personally, I have never concealed that I found all freedom to proceed with it for myself and my children. But as regards the School Question, I have also, as Minister, defended the position that vaccination cannot be made compulsory for the school, if the parents and guardians of all school-going children declare that they do not wish to make vaccination a requirement for the particular school to which they send their offspring.

## §5. Epidemic Diseases.

**Analytical Summary:** Allies.

When the country is visited by a serious epidemic disease, the calling of the government takes on an even more comprehensive character. Here one has to reckon with epidemics of a milder and more deadly character. Scarlet fever can locally and temporarily manifest itself much more severely than is commonly the case. In 1911 the deaths from scarlet fever amounted to only 113. Right after that, in 1912, this figure rose to over 200. The same is the case with influenza. From this 298 persons died in 1912, while in 1911 the figure was 767 - more than double. Measles are usually spoken of less, because it seems as if everyone in turn must go through this disease; yet it must not be overlooked that to this affliction no less than 616 children of the male and 580 of the female sex, so together almost 1200 children, fell victim in 1913.

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## §6. The Law of Moses.

**Analytical Summary:** Kuyper and Dr. Bronsveld.

Of the dreaded epidemic diseases, cholera alone is still reckoned among us as being of a more serious character, the bitter devastation of which I have twice experienced. If we now read in Leviticus XIII et seq. what was commanded in the Mosaic legislation, under divine authority, for the combating of leprosy and other afflictions, then it becomes most evident that all assertions, as if the conscious and energetic combating of such epidemic diseases were a striving against God, and therefore unlawful, are much rather out of the Evil One than in harmony with Scripture. There is a demonic power which, as a consequence of sin, in all manner of ways threatens human life and well-being, and therefore it rests upon us as a stern duty to avert, as far as lies in our power, all danger to life, both in ourselves and in those entrusted to our care. This duty rests in the first place upon the father of the family, but by implication also upon the patriarch for his whole clan, and upon the government for the entire people. When such an epidemic disease breaks out with any force, the population must be warned immediately, the physicians must

be obligated to report all cases forthwith, strict disinfection and removal of feces must be provided for, and where distressing poverty reigns, better nourishment must be supplied, the sick must be isolated as much as possible, and when death follows, it must be seen to that the body is interred as speedily as possible. Especially the poorer, poorly housed population must then be able to count on all-sided assistance, and the government must be vested with the authority, where the carelessness of one citizen could harm another, to intervene for the protection of the endangered. The example of what was permitted, nay commanded, to the government in Israel in such a case, speaks here, for him who says he submits to God's Word, so strongly that he cannot hesitate. In the face of the outbreak of a serious epidemic disease, the government has not only the right but the duty to take all measures necessary for the protection of the public health, even if these measures should temporarily restrict the freedom of the individual.

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THE LAW OF MOSES - SYPHILIS. 453 The emphasis on the breaking of the plague only underscores this all the more, and especially in recent years, the pestilence on Java has shown how, without the powerful assistance of the government, there is no salvation against these most dreaded of all epidemics.

## §7. Syphilis.

**Analytical Summary:** The Electoral Law Branch.

In its most painful character, the poisonous venereal disease known as Syphilis stands out among all diseases. Whether this sinful and highly dangerous illness also prevailed among the ancients remains uncertain. In the past, this was firmly denied; but since then, voices have arisen that claim to have grounds for the opposite view. But however that may be, it is certain that it was only in the 15th/16th century that this evil gained a more general significance. This gave rise to the opinion that syphilis came to us from America. It struck especially hard in France. Hence, it long bore the name of "morbus gallicus" or the French disease. Especially in the army of Charles VIII of France, it caused such devastating destruction that it was punished with defeat. The sad end of this venereal disease is that, although in the beginning it was often curable, out of shame it is kept secret, thus creeping along in silence, gradually becoming more serious in danger, and then, either outside or in marriage, is also transmitted to the woman, and all too often also to the born children. Since not only persons of lower rank, but also men and women of higher order, even from the highest classes of society, were found to be infected with the primary, secondary or tertiary forms of this disease through a sinful life or by sad inheritance, this had the consequence that the government did not hesitate to try to keep the occurrence of this disease as secret as possible. The doctors who treated these disease cases were under strict prohibition from letting anything at all about it become known to the public. As long as the visitation system held, the government even tried to ward off the danger that prostitution posed in this regard through strict measures. And more and more it seemed as if one saw in syphilis a disease that, as a consequence of a more licentious life, could even make a claim on the protection of the government. Especially among the public that soon has to make the acquaintance of the church, this disease spread in a most alarming way. The situation also often proved to be sad in the Navy. It was not much better for the Army. For here and for the East Indies, the statistics attached to this work provide a clear insight.*) §8. Lifting the Secrecy. The General Association against Prostitution, whose report can be found in the Journal for Poor Care and Child Protection 1915, No. 722, shows how seriously the danger threatening from this disease is still seen; and it is therefore not surprising that a Committee has been established in The Hague, calling itself: Committee for the Promotion of Medical Examination before Marriage and having its secretariat in the Residence on Plein 17a; and however indelicate it may sound and however hard it would be for many an innocent case if he or she were to go there to be suspected, yet there is much that such an examination would recommend, and the more so as one can be syphilitic without ever having given oneself over to sexual sin. Also the deep-reaching studies of Cesare Lombroso lead to the lifting of the secrecy and to the relentless publicity. Even in connection with this, the question has already arisen whether the Eunuch should not be applied to these deeply corrupted natures, in order to prevent the continuation of the evil race. As can be seen from the Appendices given here, the figure for Tuberculosis among the prison staff in 1907 was only 62, while the number of venereal patients was not far from 200; in 1910 it even went over 200. And if one takes not only the prisoners, but also the population of the State Institutions and the Reformatories, it appeared that the percentage had risen from 3.90 in 1907 to 7.83 in 1912. Truly alarming figures. Fortunately, an improvement is already noticeable in the attitude previously taken by the government in this regard. But even with what *) See Appendices A, B, C and D at the end of this Second Part.

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454 CARE FOR PUBLIC HEALTH. the government has done, the disease has spread in a most alarming way, especially among the public that soon has to make the acquaintance of the church. Also in the Navy, the situation often proved to be sad. The situation was not much better for the Army. For here and for the East Indies, the statistics attached to this work provide a clear insight.*)

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LIFTING THE VEIL.455 Now this must be, and it cannot remain so. The advantage of the mystery may no longer, in the strictest sense, be granted to this guilty disease. This secrecy nourishes the evil, and this can have no other consequence than that sin increases and the rising generation sinks into psychic and physical decadence. Yet it also remains firmly established for us that only a holier motive can create the circle from which this evil is far removed. Only where all fornication and all extramarital sexual intercourse are condemned, branded, and excluded in the name of the Lord, does syphilis also strike an impenetrable wall. And without boasting, it may be said of the Calvinists that slipping into this demonic terrain was always and remained a rare exception among them.

## §9. Improvement of Housing Conditions.

**Analytical Summary:** Mr. Jhr. A.F. De Savornin Lohman.

What was discussed in the previous section is directly connected to what awaits the government's care for the improvement of housing. Fortunately, we are on a better path here, and not the least has the Law that came into being in 1901 for this purpose opened up better paths. Even if we admit that this Law too greatly encroached on the right of ownership and handed over as worthless what still represents real value, it is nevertheless also recognized on our part that it is this Law that has put us on the better track. For it clearly opens the eyes to the very serious danger that the miserable housing conditions pose, both for morality and for health, to the less privileged population. Where father, mother, and children, as is often the case, have to spend the night together in a small room, it cannot be otherwise but that the feeling of shame suffers, and all health is impaired. Of strict and punctual secrecy, for the growing youth, for all that touches the sexual life, there can then be no question, and hardly any thought can be given to the necessary refreshment of the air. The undeniable fact that precisely among that part of the population that has to live in such hovels, the mortality rate, especially among children, climbs to the highest proportions, has also often taken on disquieting dimensions. Even for proper cleansing of the body, there is almost no opportunity. In all corners and crevices of the tiny dwelling, unhealthy substances and even gases develop; and by no means so rarely is the condition that the Minister of the Word also encounters in such dwellings in his house visits, in a literal sense the very opposite of what it should be according to the requirements of Leviticus XIII et seq. Here one now stands before the almost insoluble population problem. If these conditions are improved, and life in those lowest circles is so much improved that even marriage becomes possible at a much younger age, then marriage increases by leaps and bounds, the population increases, labor is by no means always to be found for all, and one is automatically faced with the question of how and in what way to find housing and food for this ever-growing throng, so that at least the most basic needs of a healthy human life are met for both adults and children. We do not conceal in the least that a solution to the housing problem in itself does not offer the slightest guarantee that the poisonous sting will be drawn from the population problem. Yet it also remains a matter of the highest importance that not only in our large cities, but also thoroughly in the countryside, a steady improvement in housing conditions be strived for. Landowners who have workers living on their land are indebted to their workers to let them live as befits a child of man and as one who must live a healthy life. We therefore also place this whole question very highly, that even in Antirevolutionary circles the great importance of the housing question is beginning to arouse more and more interest. Only recently, the architect D.E. Wentink, who is also an inspector of Public Health, gave in his work entitled: The Building Regulations and the Housing Question, another sample of the study that is also beginning to be devoted to this question among us. §10. Cremation. Although cremation is only tangentially connected to Public Health, yet a complete silence on this issue would not be right. For cremation is not only a matter of hygiene, but also touches on the deepest feelings of the people, on their customs and conventions, and on the propriety that must be maintained in the treatment of the dead. It is therefore a matter that cannot be ignored, and that must be considered from various points of view.

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## §10. Lijkverbranding.Alishetdatde Lijkverbrandingnietdanzijdeling...

**Analytical Summary:** Protest party or Cabinet.

Lijkverbranding.Alishetdatde Lijkverbrandingnietdanzijdelingsmetde Volks-gezondheidsaamhangt,tochiseengeheelzwijgenoverditvraagstuk

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CREMATION.457 This cannot be tolerated here. From July 1, 1874 to June 12, 1875, a series of ten articles on this subject were published in the then newly established Standard, which are also printed in the large edition of "Our Program," with the Appendices. This made a renewed entry into this important question unnecessary. It has, one may say, been fully elucidated by us at the time, and no new arguments of significance have since been brought forward with regard to this question. Yet it does not suit us to remain completely silent about it, and all the less so because Minister Cort van der Linden has not hesitated to illegally introduce cremation among us. The Burial Act lacked, as an advocate of cremation had discovered, the express prohibition. Instead of immediately filling this gap, Minister Cort van der Linden has allowed this gap to be used to push through what was not expressly enough prohibited, outside the law. Even more than one Minister from the then Cabinet has been able to find approval in the cremation of a liberal colonial statesman, honoring this unlawful destruction with his presence. Much love for cremation has thus not yet come to light. It remained a rare exception. But the sad fact is that this un-Christian practice has nevertheless been introduced among us by devious means, and that it has neither been desired nor dared to elicit a decision on this matter by legal means. Even the legal objections to the thus disappearance of a body have been brushed aside. Yet these legal objections will continue to weigh heavily on the whole issue, and it was precisely to counter these objections that Cremation could not have been established other than by a deliberate Act. Our grievance against cremation is naturally not that it would, according to our conception, hinder the resurrection of the deceased. Even outside of cremation, there are countless corpses that find no resting place in the quiet grave. Just think of the many shipwrecked who perish in the waves, or of the unfortunate who, especially in British India, are still torn to pieces by wild animals year after year, numbering more than 20,000. Even in great fires, corpses still come up; and on the battlefield, bodies can suddenly accumulate in such a way that, especially in hot

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CARE FOR PUBLIC HEALTH. The burning of the dead is almost the only way out on summer days. For anyone who believes in Almighty God, there is no question that even those who perished in such a fateful manner will rise again on the last day. But everything a believer objects to in cremation is quite different. First, that cremation is a pagan invention, which must not be revived in the Christian world. Secondly, even in entirely pagan lands, there has been an appreciation for the preservation and proper care of the dead, which has put all cremation to shame in Egypt. Thirdly, the soil of the earth is of such a quality that it is prepared to receive the dead and brings about their gradual decomposition in a normal way. And what speaks to us most seriously is the undeniable consequence that, if cremation had been the fixed, ever-continuing, and thus also the only valid treatment of the body under Israel, the body of Christ, if one may so call it, would also have fallen victim to cremation, and the entire resurrection of Immanuel would have been erased from sacred history—something that would have turned the whole Gospel upside down. Therefore, if the opportunity for cremation is to be opened, for the sake of freedom, let it be done in a completely secluded place, under strict legal safeguards, and under the application of regulations that eliminate all display of cremation.

## §11. Infant Mortality.

**Analytical Summary:** Election program.

Infant mortality, since efforts were made to reduce its extent, has increasingly drawn the attention of hygiene. The results that can be pointed to are also eloquent. Even if one only consults the figures for the ten consecutive years from 1904 to 1913, one still finds a decrease that is astonishing for the short period the data covers. For our entire country, the dreadful figure in 1904 still stood at 13.66 out of 100 live births, and this was exclusively for the first year of life; and if one now consults the data for 1913, then ten years later this figure of 13.66 has already shrunk to 9.14, an almost unbelievable decrease in these few years.

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INFANT MORTALITY. 459 Moreover, the number of live-born children who die in their first year of life is much greater among the illegitimate than among the children born in wedlock. Across the entire Realm, the mortality rate of legitimate children in the first year of life was not higher than 13.49 before 1904, while the figure for the illegitimate stood at 22.25. And in 1913, even though the first figure had shrunk to 9.00, the corresponding figure for the illegitimate was still as high as 15.73. Truly a proof of how the deprivation of good motherly care, which so often fails the illegitimate, threatens the lives of the newborn. No less remarkable in this context is the difference between province and province. Comparing Limburg with North Holland, this distinction even jumps out in an almost inexplicable way. In 1904, the figure for Limburg for all children together stood at 17.16, and for the illegitimate at 37.28, only to decline in 1913 to 13.94 and 35.47. And if one now takes the figures for North Holland, one finds a total figure of 12.58 in 1904, which had already fallen to 6.88 by 1913, where for 1904 there was still 19.26 to be given for the illegitimate; a figure that ten years later had also fallen to 11.27. In Friesland, the figures in 1913 were even lower, namely 5.87 for the total, 10.15 for the illegitimate, and 5.80 per hundred for the legitimate, always taken in their first year of life. In other countries, especially in Sweden and Norway, even more

favorable figures are found. To explain these figures on infant mortality, it appears again and again that this mortality is promoted by inherited diseases, especially syphilis; that among the poorer classes of the population the mortality is much higher than among the more affluent class; that the withholding of the mother's breast increases the figure; and that the aversion that creeps into some circles against motherhood contributes to increasing the chance of an early death. Yet it would be mistaken to think that the decline in this sad mortality figure is due solely to better hygienic care. For it is beyond doubt that two other factors have had an even greater impact on this decline: first, the sin of Neo-Malthusianism, which has so significantly reduced the birth rate,

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460 ON THE SCHOOLS. It has caused the birth rate to decline, precisely outside of wedlock, and to an even greater degree the sin of abortion, which has found increasingly widespread application. This would not be the case if the number of births remained the same. Now, however, even among us the number of births declines with each decade, and compared to the figures that still stand at 40 and more in Russia and the Balkans, we can scarcely boast of more than a good 20, so with child mortality, of course, this fact must also be taken into account. Chapter XVII. ON THE SCHOOLS.

## §1. The Changed Position.

**Analytical Summary:** Connection with the first part.

In 1878, the chapter "On the Schools" was written in "Our Program" under the full impression of Kappeynes' assault on free education. Nor could it be otherwise, for the advice we gave at the time was by no means little influenced by what Kappeynes v. d. Copello dared to attempt. The peculiarity here was that Kappeynes did not at all take a venomous position against the Anti-Revolutionary Party. When one now comes into contact with Statesmen of the Left, this is almost never otherwise than on a very tense footing. Of familiar intercourse there is no longer any question. It is already much if one can take the gentleman-like courtesy back and forth to heart. At that time, on the other hand, it was quite different. The writer of this was even on terms of friendship with Kappeynes. One visited each other regularly. In full confidence, one could also discuss state affairs. When later the Doleantie broke out, Kappeynes even offered himself as a completely open and willing advisor. He was then frequently consulted on our side. He even issued a written opinion in favor of the Reformed Churches at that time. And in Amsterdam, a grand local dinner was even held in honor of Kappeynes, when the battle was fought and the fight was finally, if also legally to our disadvantage, decided. Of such a relationship there is now, between Anti-Revolutionaries and Leftist Statesmen, such as Mr. Drucker, Mr. De Meester, or Mr. Goeman Borgesius, no longer any question. This had to be emphasized here to give a correct insight into the mutual position in the School Dispute, as it presented itself in 1878.

## §2. The Changed Tactic.

**Analytical Summary:** The beginning of our Program.

This turn of events has then ultimately forced us on our part to abandon the position we had previously taken on the school costs vis-à-vis the State, and to move on to the almost opposite position, where the demand would be that from the government side, just as much as in all the costs of education that are not covered by the school fees, both of public and of free education, would be provided for. The almost incredible increase in the costs of education, which gradually proved to be unavoidable, made the maintenance of our previously adopted position literally impossible for us. The figures spoke volumes here, as the Englishman says. Calculating from the year 1860 to 1912, i.e. over a period of more than half a century, one finds these figures almost completely divergent, with the additional consideration that the population stood at 3,309,128 in the year 1860, and has since increased to 6,328,448.

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THE CHANGED POSITION. - THE CHANGED TACTIC. 461 the Reformed Churches to issue at that time. And in Amsterdam, a grand local dinner was even held in honor of Kappeynes, when the battle was fought and the fight was finally, if also legally to our disadvantage, decided. Of such a relationship there is now, between Anti-Revolutionaries and Leftist Statesmen, such as Mr. Drucker, Mr. De Meester, or Mr. Goeman Borgesius, no longer any question. This had to be emphasized here to give a correct insight into the mutual position in the School Dispute, as it presented itself in 1878.

Since Groen van Prinsterer's appearance in 1869 against Beets in Utrecht, every idea had become foreign to us to seek an accord between the Public School and the demands of the Christian religion in the upbringing of the youth; and even Groen's relapse shortly before his death in 1876 was more a coup de désespoir of the "general" abandoned by his troops and so bitterly disappointed. However, the position as such should not be judged according to this last sad incident. We must always go back to 1869, and then certainly with the painful impression that Kappeynes' assault on us must have made in connection with this.

## §2. The Changed Tactic.

**Analytical Summary:** The beginning of our Program.

This turn of events has then ultimately forced us on our part to abandon the position we had previously taken on the school costs vis-à-vis the State, and to move on to the almost opposite position, where the demand would be that from the government side, just as much as in all the costs of education that are not covered by the school fees, both of public and of free education, would be provided for. The almost incredible increase in the costs of education, which gradually proved to be unavoidable, made the maintenance of our previously adopted position literally impossible for us. The figures spoke volumes here, as the Englishman says. Calculating from the year 1860 to 1912, i.e. over a period of more than half a century, one finds these figures almost completely divergent, with the additional consideration that the population has since increased to 6,328,448.

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THE SCHOOLS. According to the census of 1909, the number of students had already risen to 5,858,175, indeed even reaching twice what it was in 1860. But even if one fully takes this doubling into account, there is still a lack of proportion with the stark difference in what was paid for Elementary Education by the government in 1860, and what is now being spent for it. In 1860, the total amount for this stood at only ƒ2,259,735, while it had already risen in 1912 to a total of ƒ35,302,087—thus to more than fifteen times as much. Now observe how this immense increase in expenditures for Elementary Education began almost immediately after the implementation of Kappeynes's law. Already a year and a half later, in 1880, the total figure stood at around 8 million guilders. Ten years later, it had already risen to over 11¼ million. And this steady progress held so little in check that the figure, ten years later again, had already reached over 17½ million; thirteen years further, it stood at over 31½ million, and has not yet come to rest, so that the financial thermometer keeps rising still. It hardly needs reminding that the increase in population all along caused the number of schools to grow, which naturally led to an increase in expenditures.

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CHANGED TACTICS—FINANCIAL CONSEQUENCES. In 1880, the numbers for Public and Private Schools were as follows: Public Schools, boys 227,023, girls 180,769, total 407,792; Private Schools, boys 59,346, girls 73,857, total 133,203. Thus, for both Public and Private Schools together, one still only had to provide for a total of 540,995 students. In 1913, however, i.e. a full quarter-century later, these figures had already risen, for the Public Schools, to boys 313,855, girls 248,270, total 562,125; and for the Private Schools, to boys 168,919, girls 212,162, total 381,081. For both types of schools together, this thus amounted to a total of 943,206—indicating an increase of over 400,000 students in thirty-three years. The ideal conception of providing for the needs of our Christian Schools could no longer be put into practice given this completely changed situation. The ideal was and remains that every parent pair would provide for the schooling of their offspring, and that where the meagerness of income cut this off, Christian charity would step in to make up the difference. But Christian philanthropy also has its limits, and these are increasingly exceeded by the school crisis. The number of students in the Private Schools amounted in 1875 to no more than 55,485 boys and 67,912 girls, i.e. 123,397 in total; and in 1913 this had already risen to 168,919 boys and 212,162 girls, making a total of 381,081. Now since the vast majority of these over 300,000 children belonged to families that could not think of defraying the costs of education entirely from their own means, without subsidy, such a high amount would have to be made up by Christian charity that it could by no means provide the required total. This inconvenience would have been less serious if the costs of elementary education had remained at the old level. But this was anything but the case. The salaries of principals and teachers kept going up higher; ever higher demands were made on the facilities; the auxiliary means kept becoming more expensive. The inconvenience thus worked from two sides at once. There was need to step in for so many more children, and what had to be paid per child kept increasing.

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It soon became more than triple. And to this was added yet a third inconvenience. The more the Government increased the financial expenditures for the Public Schools, the more we also had to contribute to the costs of our schools. For in the matter of taxes, we stood on an equal line with the supporters of the Public School. Now, as already shown in the previous section, the expenditures for the Public Schools had risen from barely one and a half million to 27 million, it followed that the supporters of the Private School had to contribute in proportion to this as well in the taxes. An exact amount cannot be given for this, but if one estimates it at 7 of the 27 million, the guess is certainly not too high. And now it was self-evident that as we had to add a seven million for the Public Schools to our taxes, the financial source of our own schools was increasingly tapped, and in the end dried up. Even now, although the Private Schools were granted a subsidy of 9 1/2 million for 1916/17, there still had to be collected throughout the whole country to support many needy schools; what then would have become of our schools, if with so much greater a number, with so much higher costs for each school, and for each taxpayer so much higher an amount on his tax bill, we ourselves had had to provide for everything that was lacking. Here we run up against a clear impossibility. Our group, composed for the far greater part of "common people," would have succumbed to the ever-increasing demands. School after school would have gone bankrupt. And the despair that overcame Groen van Prinsterer shortly

before his death would have extinguished the life courage of the Christian School throughout our circle. Therefore, our former ideal had to be abandoned, and from now on we had to strive for equal government provision for both types of schools.

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THEN CONSISTENTLY. - TEMPORARY PROPOSAL. 465 But then this equality had to be carried through to the end. Now since 1869 the principle and starting point on our side had been the proposition that the Free School should be the rule, the Public School only a supplement, not even a thought could or might be entertained that the Public School, which was only to supplement, should be made the darling child of the state and the municipal administration by the finances of the government. As it should have been, both sides would have had to strive for self-provision in the school need. But since the supporters of the Public School were not even remotely thinking of this, and allowed themselves to be showered ever richer and more luxurious from the public coffers, the system of free contribution was thereby cut off. If the Public School, apart from a small school fee, drew all its means from the public treasury, then the government had to make available at least an equal amount per child for the Free School as well. This is where we went. For 1916/17, as already stated, a subsidy of almost 10 million has been requested; and even if the number of pupils remained the same, this would still have to rise to 15 million in order to maintain parity. The balance of the scale must be in equilibrium. Per child it must be equal for both schools. It must not even be allowed that the municipal administrations still tip the scales. If one wants to consolidate the administration of the municipal administrations in Elementary Education, then the law must also impose on the municipal administrations the obligation to make available per child what they spend from their own treasury for the Public School or its teachers, just as much per child for the Private School. It would only be possible to escape this system of equal financial provision by the government if one covered all the costs for the Public School exclusively through its supporters, and in the end imposed a separate tax for the Public School, to which those who chose the Free School would not have to contribute - but as far as the slightest inclination to seek a way out here is not apparent, there must be an equal amount per child from the government on both sides of the scale.

## §5. Temporary proposal.

**Analytical Summary:** Allies.

As a first temporary provision, it might well be considered to have the municipal administration in large municipalities take over one or more schools as state schools.

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It would be possible to make the public schools available to parents of the same religious conviction; but then these parents would also have to be granted the complete free choice of teachers, textbooks, school curricula, etc. However, this system would recommend itself in far fewer cases than in very few instances. For in large municipalities, the distances from home to school are soon too great for the children to all be brought together in one school, and likewise, on the part of the teachers, there would be no small difficulties to fear between them and the parents. Nor can the way out of having enough like-minded religious people in the population give the public school itself a religious character be traveled. For first of all, there are in every village at least some parents of a divergent school system. One need only think of a single Jew or a single official who has moved in from elsewhere. Moreover, the arrival of a new family can upset everything at any moment. And what decides it all, the public teacher could never be bound by the government to certain religious views in his teaching. Where a religious character is to be given to the school, it must be a Free or Private School. By virtue of its principled character, the public school does not lend itself to this. The attempt to lead it in that direction almost exclusively emanates from a single village pastor who is still half-and-half orthodox and who would find it unpleasant to see a second spiritual shepherd appear at the head of a Christian school, one who may enjoy warmer sympathy from the congregation members than he himself. In earlier years, this artifice of a public school with religious instruction from a half-orthodox pastor has been repeatedly tried in all the provinces, but without exception it has failed everywhere. Where the population is neither asleep nor slumbering, but alive and knows what it owes to the baptized offspring, every attempt of this kind also fails. The antithesis between the public and the free school creates such an unbridgeable gap between the spirits that one must either return to the people's school as one's own school, or else, alongside it, the free school, and then, if necessary, for the whole people, must be respected. For the course of this dispute, I refer to H. de Wilde: "The Anti-Revolutionary Parties and Their Principles," fourth edition, Bootsma 1915, The Hague.

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TEMPORARY PROPOSAL - PUBLIC SCHOOL. 467 p. 209 ff. We will never come to a final solution to the School Dispute, unless Primary Education becomes a matter for the State, and the principle of the Free School according to Groen van Prinsterer's slogan is established, and the Public School only comes in as a supplement.

## §6. Public School.

**Analytical Summary:** Kuyper and Dr. Bronsveld.

It cannot be denied, however, that the idea of the Public School, embracing the entire youth of the nation, still has great appeal. It is the national solidarity that finds expression in it. It was no different with the National Church, in which the entire People, forming one complex, presented itself. Both the concepts of National Church and Public School have thus carried each other for many years. It was indeed the unity of the National Church that made the unity of the Public School possible, and next to that Public School one really did not allow anything else than private Schools of a completely private character, especially also for the Jews. Even in the United States of America, one has always done, and still does, what is possible to maintain that unity. It is true that the spiritual element, the reading of the Holy Scriptures in prayer, has been reduced to an almost insignificant minimum, but in name it is still called the public school as the People's School. Even this strong preference, however, has not been able to prevent the Roman Catholic population in particular from continuing to found their own schools, and some other groups from also giving preference to the Free School. In Germany one sees the same process in action. It is increasingly evident that the Public School and the National Church belong to an earlier period, but are now out of date. In that earlier period, rich in mighty historical events, nation after nation had opposed itself, especially in contrast to the all-dissolving Roman power, in order to maintain its own independence unimpaired. For this, a strong appeal to the national chords was required. And this could at that time naturally lead to a Public School, because at least in the field of primary education hardly anything else than what that confessional school could give was desired by the entire population. There was a unity of spirit, and that unity of spirit also demanded the one Public School for the youth.

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## §7. Completely changed since then.

**Analytical Summary:** The Electoral Law Branch.

Since, however, especially under the influence of the French Revolution, a struggle of the spirits has come to the fore, which has set group against group within the same nation. Especially in the Netherlands, the strong individualism that is inherent in our national character has sharpened these differences that have arisen, and has brought various directions to the fore, which also set very distinct demands for the world of children and therefore could not be accommodated in the one School that would embrace them all. From this has then, since the middle of the previous century, arisen a struggle in the field of schools between the Calvinistic disposition of the old period and the new world of ideas that, coming over from Paris, has transformed the minds of many. These transformed spirits differed among themselves, but in the face of the after-effects of the historical traditions, these distinct modern directions joined together. From this combination then emerged the sectarian school of the moderns, and with this the fate of the Public School was sealed. In the new period, the variation in the spirits had become too strong. The unity of the Primary School has now degenerated into what amounts to national self-deception. The higher the development of a People climbs, the more that higher development must result in a richer variation of spirits, and with this the one Public School has been judged unprofitable and unusable from now on. §8. The Free School for every direction.

One may undergo an anxious experience when one hears from the Social Democrats or also from the atheistic camp how they too see the choice for the Free School and against the Public School gaining ground. One had intended it as if only the Christian groups in the country would benefit from this liberation, but now it appears that the non-Christian groups also make use of this freedom, and that the Public School is being abandoned by them as well. This is a development that must be accepted, however unpleasant it may be for those who had hoped for the maintenance of the Public School. The principle of the Free School for every direction has now become a fact.

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FUNDAMENTALLY CHANGED. - FREEDOM OF SCHOOL FOR EVERY DIRECTION.

If one were to apply this same system to the irreligious groups and grant freedom of school establishment, with equal subsidy, even to the atheistic leaders, then, it was thought, one would avoid an ever-looming war. For us, freedom in the school domain was a right, but this could never be granted to them. This objection arises from a misunderstanding. Once the system of the Free School is accepted as the rule, and the Public School as a supplement, then a freedom emerges here that must be without distinction for everyone; naturally, on their own full responsibility. Even in Roman Catholic schools, dogmatic representations are imprinted on the youth, some of which we very decisively reject as not in accordance with the Truth. Yet it has never been inferred from this that there should be no free

Roman Catholic schools. One has to choose between two standpoints here. One can claim, as the advocates of the so-called Neutral School do, that the Government itself must determine what is truth, and that it may then teach this exclusively to the children of the School. Or one professes that the Government does not possess that power; that it is the Churches that have to act here, and that in connection with these Churches each citizen has to judge for himself which are the principles on which he must build his own life and the life of his children. The former is the system of coercion, which still prevailed when the Government professed a special creed, but has become intolerable now that the Government has renounced all confession. If one has once chosen for the freedom of conviction and deduces pedagogically the freedom of the upbringing of one's children from this, then one must also do justice to this same right for every citizen, and cannot demand for oneself and one's fellow believers what one would refuse to other citizens. We openly acknowledge that there is something in this release that offends us. But now look at what the Lord our God is doing. The Christ Himself points us to how the Disposer over the lot of us all lets His sun rise over the evil and the good, and rains over the righteous and the unrighteous. Since the Flood, God's government has allowed both those who confess the Lord and those who oppose the Lord to live under the same natural conditions.

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## §9. School Years.

**Analytical Summary:** Mr. Jhr. A.F. De Savornin Lohman.

The urge to continue the Elementary Education, which now generally does not go beyond the 12th year, up to the 14th year, and thus to extend it by a couple of years, does not diminish, but rather becomes stronger. Especially the example set by Prussia and Switzerland continues to have an effect, and it cannot even be denied that the great world war that broke out in 1914, and the undeniable success that Germany then achieved on all fronts, more strongly than ever recommended the extension of the school term. Such an extension offers a twofold advantage. The two-year longer stay at school naturally has the consequence that the boys are not put to heavier work until they have reached a sufficient physical development, and that this also reduces unemployment among the elderly. And on the other hand, it cannot be denied that two years longer at school brings the mental condition of the lower population to a higher level. Against this, however, stands the not inconsiderable objection that the wages for many a needy family fall away; that the school costs for the Rich and the Municipalities increase by a third, and that above all the transition from the five-year to the seven-year period will present unusual difficulties, both as regards the locality and the teaching staff. By no means all schools lend themselves to setting up an extension or adding local buildings; and an increase in the teaching staff by a third would also run into very serious objections; all the more so since an extension of the school term up to the 14th year would also require an expansion of the curriculum itself. The question that we have repeatedly raised on our part as to whether, if one proceeds to extend the school years, this system would be applied to the entire school youth, also comes into consideration here. If, after all, the German and Swiss system were modified to the extent that the lowest groups of students were exempted from the extension, so that it would only apply to half or two-thirds, this would already considerably alleviate these very serious difficulties. Even now, extensions and expansions have been found in the Evening Schools, and the Continuation Schools, and the Extended and More Extended Elementary Education; institutions that all work in the spirit of broadening and extending education. Yet the number of students who benefit from this is, in proportion to the almost one million students who come into consideration here, too small in number to make us acquiesce in the existing situation.

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SCHOOL YEARS. - THE KINDERGARTENS. 471

## §10. The Kindergartens.

**Analytical Summary:** Protest party or Cabinet.

The name Kindergarten is not a happy choice in both parts of its composition. The whole idea of a School should have been eliminated here, and the talk of a School to preserve should not have been allowed. Before Fröbel's rich idea of what he called the "Kindergarten" went out, one certainly knew what were nothing but children's shelters, but it is precisely the honor of Fröbel's invention that it has largely put an end to this "misery" of these "shelters." Naturally, it would be far preferable if every child could receive the necessary care and guidance at home until the age of 6. But this cannot be. There are too many widowers with children, too many mothers who have to go out to work for wages, too many weak and sickly mothers, and the poor housing also often makes it impossible to keep the children at home. In the past, the need arising from this was met by giving the children who were in such a situation somewhere in the neighborhood to a teacher

for safekeeping. They were then taken there and picked up at four o'clock, and in the meantime they were then, so to speak, left to their own devices, and were only kept safe, in the sense that this word has, only to prevent misfortunes. This was not only the case with us, but also in other cities, and it was Friedrich Fröbel from Schwarzburg-Rudolstadt who succeeded in at least curbing this evil. Born in 1782, he died in 1852, and with remarkable talent he devoted the greater part of his life to the establishment of the "Kindergarten."

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SCHOOLS. His first kindergarten he founded in 1839 in Blankenburg, and since then their number has grown not only in Germany, but almost throughout the world, and especially in America, to such an extent that the kindergarten has already become an indispensable element in education in the fourth century. Lina Morgenstern, Angelita Hartmann, and also A. Köhler, Friedrich Seidel and others almost took over Fröbel's work. Private seminaries were even established to provide the necessary training for the leading personnel in this field of education. At first, all of this remained entirely private. More than one government has even opposed the kindergarten. Since 1872, however, when the Austrian government lent a helping hand, support for the kindergarten has been provided in all directions, and it has also gradually become a helping power in public education among us. It is only to be regretted that Fröbel's watchword: "No letters and no numbers on these schools!" no longer finds strict observance. Especially among us, too much preparation for the Elementary School has been seen; municipal authorities have interfered in it; and so the shadow side of our Public School system has also come to weigh on the kindergarten, against which the Christian kindergarten has held its ground with honor. It is a pity, however, that here too the money question has crept in. And then one often saw that the municipal authorities also wanted to bind the Christian kindergartens to regulations that came into conflict with their private and their Christian character; a dispute in which, unfortunately, the temptation of the subsidy broke the pride of the Christian Schools. It is certainly also our duty to promote this kindergarten system in the most vigorous manner, but then let it remain private and let it not degenerate, as far as education is concerned, into a mere preparatory class for the Elementary School. The half-playful character of these institutions must not then be given up, and above all, care must always be taken to ensure that the premises guarantee freshness and light. At the end of 1912, there were public kindergartens among us with a total of almost 33,000 children, and in addition private or independent institutions with about 141,000 little ones. The public ones are only progressing very slowly. In 1900 they already had 27,000 children, and in twelve years they have only increased by 5,000. The private institutions, on the other hand, have progressed from 117,533 to a group of 141,000 in the same period of 12 years, i.e. an increase of 24,000, and this in an equal period of 12 years.

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THE DAY NURSERIES - THE TRAINING OF TEACHERS.

473 It will increasingly be the case that the government will not make a help school for the elementary school. If they degenerate in character, then they are already doomed. If ever there is a place, then on these children's playgrounds the nature of the child must be cared for. It remains to be seen whether what the State Commission tries to promote for the day nurseries will prove to be a blessing.

## §11. The training of teachers.

**Analytical Summary:** Election program.

The now definitively introduced and firmly established duality of character in our entire system of elementary education naturally does not allow for any longer a unity in the training, with the resulting equality in the examination. Already in so far as the unity of character in the training had long since been abandoned, that one could obtain admission to the examination either by visiting a particular training school, or by following Normal lessons, or finally by private training with a teacher. In these three cases, government involvement was now in the foreground, by what they themselves did to encourage others; but in so far as there was still freedom, that private training schools also counted, Normal schools worked against us from our side, and Christian teacher trainees were also trained. Although the public school system, and that alone, was favored by the government, and the financial benefit was constantly expanded in that direction, it must still be acknowledged that the preparation for education remained free. For the greater part, however, this freedom soon proved to be illusory due to the unity of the examination. In the first attempt, almost all public teachers were appointed to the examination commissions; and since the school supervision, both for the arrondissement and for the district, was initially entrusted exclusively to public teachers, it could not be otherwise but that the examination was taken under such conditions and in such a way that it derived its character entirely from the public state school. Since then, this state of affairs has undoubtedly not remained so exclusive. In the school board, there are now arrondissement and district school inspectors who have wholeheartedly sided with the Special Christian School; and in the examination commissions one has seen here and there at least a minority of Christian teachers appear. Thus the former rigidity gave way to more flexibility, and it is also recognized that there are at least some commissions that have stood up in order not to let the former harshness continue any longer. But however much we may rejoice in this, the intolerable one-sidedness has not yet been overcome by this.

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## §12. The examinations.

**Analytical Summary:** Once more the Lohman.

The examinations, as they are now still being taken, remain a torment. Whatever one may try, the demand that the duality of the school system must now always bring, is also not to be melted into unity in the examination, and Mr. Ds. H. Pierson of Zetten has so truthfully expressed it: The duality of school education imperatively and inexorably also demands duality of the examination. Not in the commissions, which often proved to be accommodating enough, but in the one examination as such lies the evil. For that one examination compelled the candidates to immerse themselves entirely in the ideas, the literature and the pedagogical methods of public education; and those who had to train the candidates could not refrain from doing the same; and herein lay the corruption. The years of training gave the candidates for public education everything they needed, and what could serve them for life. Our candidates, on the other hand, had to temporarily set aside what came from our camp, and live entirely in what was honored among the public school men, in order to understand the questions on the examination and to know what to answer. Whoever has ever gone through an important examination himself knows how strongly the apprehension of what the examiner is likely to ask, strains the mind. All examination is in general a guessing at what may be asked, and a preparing oneself for the answers to those questions. And this does not succeed, or the person to be examined, if he is to become such a Christian teacher, will, to his very serious detriment, live as much as he can in that modern...

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EXAMINATIONS - MARRIED FEMALE TEACHERS

475 world of thought. This cannot and must not remain so. Every group that occupies a distinct position within the Elementary Schools, and has certainly acquired a certain scope, say for example at least a hundred schools, must obtain the right: 1° to receive the necessary means from the government treasury on an equal footing for the training for the examination; 2° to appoint their own examiners; and 3° to have these examiners determine the requirements for the examination and the necessary literature for it. Only when we have reached this point will freedom be complete. What the coming constitutional revision now promises will also certainly be a step of some significance on the better path; but whoever might even for a moment imagine that this would end the School struggle and that we would have obtained our full rights, has still never understood the a, b, c of our School program.

## §13. Married Female Teachers.

**Analytical Summary:** Firm starting point.

As for the female teachers, the question of the marriage of female teachers also needs to be briefly discussed here. That the validity of the diploma continues even after marriage does not require further argument; the only question is whether they can remain in actual service in the Elementary Schools after marriage. Those who on every terrain want to put the woman on an equal footing with the man can of course not tolerate any exception for the female teachers either. It is true that the married female teacher can become pregnant, but this need not be the case; and if it occurs, one can accommodate it. Illness is also not infrequently the cause that a female teacher, and likewise a male teacher, cannot appear in the classroom for a few weeks, sometimes a few months, and then this is still tolerated. Why, one then also asks, can this not be entirely the same with a pregnant female teacher as it is to be tolerated with a bedridden teacher? Stated this way, the question seems almost silly, and the case for the pregnant female teacher appears to be won. However, this is offset by the fact that the mother should be in her family and not have to entrust her own children to outside care in order to go and teach other children; that for the married woman the School may often be a strong temptation to take refuge in the sinful practices* as

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476 ABOUT THE SCHOOLS. indicated above, and that the pregnant woman is not a display that should be given to the youth in the classroom; and that where illness is the exception, motherhood in a married woman is the rule, one may not conclude from a lawful exception to what would here be the rule. Even otherwise, in the end, pregnancy would have to be tolerated even in the unmarried. Just read how one increasingly pleads for free love on all sides. What one should only have to do in this case is to readmit the widow without children to the usual footing, and also after the critical age to restore to the female teacher, even if she is married, the freedom of contract. For the rest, however, marriage must exclude the female teacher from the School. The married female teacher does not belong there.

## §14. Our Secondary Education.

**Analytical Summary:** Own organization. 505.—§ 15. Peculiar difficulties. 506.—§ 16. The calling of the government. 507.—§ 17. Speech in the Chamber on November 22, 1910. 508.—§ 18. The starting point. 510.—§ 19. A whole. 510.—§ 20. A well-ordered body. 511.—§ 21. Unemployment. 513.—§ 22. Overpopulation. 514.—§ 23. How to counteract the struggle of the unemployed. 515.—§ 24. The wage. 516.—§ 25. Mitigation. 517.—§ 26. The ideal to be pursued. 518.—§ 27. Cooperation indispensable. 519.—§ 28. A living wage. 520.—§ 29. Strikes and lockouts. 521.—§ 30. Counter-action by the employers. 522.—§ 31. Boycott and sabotage. 524.—§ 32. Sabotage. 524.—§ 33. The trade union. 525.—§ 34. The so-called "picketing." 526.—§ 35. The duration of labor. 528.—§ 36. The worker cooperates. 529.—§ 37. Exemption. 530.—§ 38. The government should regulate this. 530. § 39. Night work. 531.—§ 40. The anarchy. 532.—§ 41. The conclusion. 533.

As a Minister, the writer of this had the privilege in 1903 to recommend to the Queen the appointment of a State Commission, which under the chairmanship of Professor Dr. J. Woltjer, of the Free University in Amsterdam, had to investigate the entire subject matter that belongs to or is connected with Secondary Education, and to submit the necessary proposals in a report. This prompts me not to venture too far in discussing Secondary Education at this point. For the Report of that Commission saw the light of day in a very voluminous octavo, and as a result of the consultation between the leading men in this field, from the various parties. I therefore think it better to mainly refer to this important Report. The more so, as in the field of education there is no terrain that carries so many pitfalls in itself as precisely what is commonly lumped together under the concept of Secondary Education. There is no question of a tripartite ladder of Elementary, Secondary and Higher Education, as if one, after having gone through Elementary and Secondary Education in succession, would only finally end up in Higher Education. Up to now, at least, the Gymnasium has been counted among Higher Education, and whoever aimed at higher studies, passed directly from Elementary to Higher Education, with all

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SECONDARY EDUCATION - SERIES OF STUDENTS. The complete exclusion of Secondary Education. Much earlier, the three-part distinction aimed at three different results of Education in society. Above all, Primary Education, with its adjuncts, only benefits a portion of the visitors to this School. Higher Education is intended only for those who wish to pursue their own scientific studies or open up high positions for themselves in State and Society. And between this very general group of Primary Education, and that extremely limited one that seeks Higher Education, there now lies a third group of a very mixed nature, which, though not overly numerous, yet spreads its tents much more widely than the scholars at Higher Education.

## §15. Series of students.

**Analytical Summary:** Not limited to our land.

Here a general and a special series of students presents itself. A general development of a higher kind than the Primary School with its adjuncts up to the M.U.L.O. is aimed at for men and women who, without taking up a specific salaried position, still wish to take a higher standpoint of development in society. Entirely separate from this, however, there is also under this Secondary Education a whole series of Schools that prepare for special positions in State and Society. This latter part is then again divided into two subgroups, firstly of such an education that aims at a single position, e.g. the Commercial Schools, the School for Navigation, Military Schools, etc., but also on the other hand on a more general group, as for example in the case of Vocational Education, Agricultural Education, Art Education, Education in Women's Handicrafts, and so on. It is now this extremely mixed character of Secondary Education as a whole that makes its regulation so very difficult. Already in itself, but also in connection with the opposition of principles. What has a purely technical character does not touch the principle, but the treatment, the handling and the equipment of the students exerts a real influence on those who are in contact with it for years. Hence the partly even successful attempt to also go over to a division into Christian and non-Christian Schools in this area, and to let this difference in starting point also come out in the Associations that form themselves for the sake of this instruction. To carry this out consistently, however, the principled distinction is not on this field. Especially not in the case of education for very special subjects, since the number of students applying for them is far too small. All such education must be given locally. Only large cities provide the students for these special subjects. In smaller places, therefore, a division is completely unthinkable, and even in Amsterdam it appears to be increasingly impossible as the specialty of the subject to be taught becomes more pronounced. Much of this education the Government and the Municipal Administration prefer to leave to private initiative, and only help to maintain it by subsidizing. There is nothing against this, provided that the allowance and subsidizing of such private Schools are bound to fixed regulations, and the arrangement that gives these regulations also watches over the freedom of conscience of the students, and against the exercise of a freethinkers' propaganda, which must remain completely foreign to all such education.

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478 ON THE SCHOOLS. already successful attempts to also go over to a division into Christian and non-Christian Schools in this area, and to let this difference in starting point also come out in the Associations that form themselves for the sake of this instruction. To carry this out consistently, however, the principled

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## §16. European Competition.

**Analytical Summary:** Emerging from the past.

As a publicist, and temporarily in my capacity as Minister, I have always insisted on further developing the special technical and practical education that falls under this. Whoever, like the author of this, had the opportunity to observe this technical and more special work abroad, was saddened every time by our backwardness. Although it must be admitted that in a few branches, such as small silverware, cigar manufacturing, cheese and butter making, and much more, we enjoy European fame, in the more recently emerged industries we have miserably lagged behind. One sees this in the many imports. English clothing is almost indispensable for a man of higher standing, and our ladies steal with their eyes what comes from Paris. For the construction of major works, workers from Germany, England or Belgium must always be called in to help.

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EUROPEAN COMPETITION. 479 We are lagging behind in two respects: our men work as laborers for less pay than foreign laborers, and our goods are sold in our own shops and stores for less than the goods that come from abroad. Yet it cannot be said that no efforts have been made to improve this situation. There is hardly any trade for which we have not sought to provide training. In particular, our Trade Schools have been steadily expanded through the faithful care of the Inspector, whose zeal deserves all praise. In 1870 there were only 2, with 214 students and 32 teachers. In 1912 their number had already reached 83, with 7,894 students and 807 teachers. And yet, we are still far from where we need to be. Whoever visits England notices this immediately, and even in Belgium, Professor Pyfferoen had achieved much more effective results in a short time. The cause of this backwardness was to be found in the lack of suitable teachers. The salaries of these teachers were good, but whoever was truly skilled and energetic in their craft could earn much higher income as a master in that trade. As a result, it was often only those who could not make it as masters in their trade who applied for these teaching positions. In any case, they were teachers of the second class, and our Trade Schools were irrevocably entrusted to them. Feeling the worrying effects of this, I as Minister then submitted a bill to establish a well-equipped teacher training college in Haarlem, and the City Council of Haarlem had gladly agreed to provide assistance. However, the members of Parliament from the North gave preference to institutions of lesser quality, as long as they could be established in the North. One knows what has since been tried, especially in Dordrecht, and to some extent succeeded. Yet this way of proceeding is much too slow. Germany, England, and Belgium continue to outpace us; and the freedom of Tariff, in connection with this technical backwardness, is the cause and remains the cause that we are being outstripped in the competition with the development of these crafts in the surrounding States. The training of those who will instruct the craftsmen must be organized differently. Without this, we will not make progress.

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CHRISTIAN SECONDARY SCHOOLS

## §17. Christian Secondary Schools.

**Analytical Summary:** Adrift.

The question of how to establish the distinctive character of the Christian school in the realm of Civic Schools, Higher Civic Schools, and later perhaps Gymnasiums, must be faced with increasing seriousness. For the past fifty years, the establishment of our own schools in this domain was scarcely even considered. Groen van Prinsterer barely mentioned it. At that time, attention was almost exclusively focused on the Elementary Schools. But this has since changed. It has been recognized that attendance at the Secondary and Gymnasium Schools, established by the State or the Municipality, could greatly damage the confessional character of our youth. Hence the earnest efforts undertaken since then to secure our own schools in this domain of General, Secondary, and Gymnasium Education as well. The initial progress of the Private Gymnasiums that gradually emerged was a clear indication of this. As late as 1903, there were only 9 such Gymnasiums with 739 students, while by 1912 there were already 15 Gymnasiums providing assistance and 1593 students benefiting from them.

Moreover, there were an additional 19 related institutions with 1769 students. No one has been more meritorious in this regard than Professor Dr. J. Woltjer. This shows how the Free University has also borne fruit indirectly. The Christian Gymnasium founded by this professor is one of the most flourishing and sought-after in the country. Even liberal parents sometimes prefer to entrust their sons to this particular Gymnasium. As for Secondary Education in general for the purpose of general development, the complaint about our poor performance continues. The number of Higher Civic Schools, which stood at 21 in 1865 (18 with 5-year, 2 with 4-year, and 1 with 3-year curricula), had already grown to 88 by 1912. Of these 88 Schools, 27 were under the State, 48 under the Municipalities, and only 13 were of private origin, 6 with and 6 without State subsidy. Most of these Public Schools could also be attended by girls. In addition to this first series, there were 17 more Schools exclusively for girls. None of these Municipal Schools or private ones receive State subsidy. It is only the high school fees that cover the costs. Even for the salaries of the teaching staff of these 17 Schools, over three tons was already being spent in 1912 for 280 certified teachers.

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CHRISTIAN SECONDARY SCHOOLS - DISASTROUS CONSEQUENCE

Here, however, lies the great difficulty, that the proponents of Christian Secondary Schools must themselves, on an equal footing, contribute to the municipal and state taxes in favor of the Public Secondary Schools, and then still have to provide for their own needs. And even though the State now grants subsidies, as has already been achieved to a certain extent for Christian Gymnasium Education, the Municipal administrations that maintain their own Higher School do not even think of this.

## §18. Disastrous Consequence.

**Analytical Summary:** Fortunate turn.

This now has the disastrous consequence, that we not only have to pay the monies to the benefit of the Public Secondary Schools, which we so sorely needed for the establishment and maintenance of our own School, but that the Public Secondary School also inflicts on us an absolutely untenable competition in the form of lower school fees. Parents who entrust their sons or daughters to our Secondary Schools, and even sought a way out, bear this burden: 1) that they must contribute to the costs of the competing Public School; 2) that they have to pay much higher school fees for their own School; and 3) that they still have to raise what is needed to cover the inevitable deficit of their own School. Added to this is the fact that parents from our circle who cannot bear this burden, and are therefore forced to send their children to the Public Secondary Schools, for whom they do not want to make this choice, further exacerbate the financial setback.

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As for the schools, if a school is to be found, or at least a place to stay for the day, and a considerable travel allowance must be afforded for the relocation, then everyone feels that the unequal financial demands placed on citizens of the same country, solely on account of their difference in conviction, cannot satisfy the sense of justice. At least, then, the municipal authorities must be obliged to pay a subsidy per pupil for our schools, equal to what is paid per child in the municipal school. If this applied to the rich and the municipality, then at least some relief would be afforded to the existing need. But even so, we are still far from satisfied, and the effort must not be lacking to establish at least two centers of our own secondary boarding schools in each province, where young people from the villages and small towns can find the desired education at the lowest possible price. Once full equality with the public school has been achieved for the elementary school, then our willingness to sacrifice can find another altar of an equally sacred purpose, and spread a blessing over our Christian group in the land.

## §19. Confusion of Tongues in Higher Education.

**Analytical Summary:** Three groups in the people.

The expression “Confusion of Tongues” is borrowed from Gen. XI:7, and as such contains something of a rebuke. In itself, however, it is nothing more than that there will be a variation in the speech of the peoples. And so it has come to pass. The peoples differ from each other in nationality, and this difference in nationality expresses itself in the ubiquitous diversity of their speech. This, however, has not prevented the Babylonian tendency, whenever possible, to have at its disposal one common language for the whole world. This then gave rise to a double usage: the one of the common speech of the common people, and the other of a language set apart, used by an aristocratic group that felt itself elevated above the common people. Already in the ancient Roman Empire, the high aristocracy spoke not Latin, but often Greek, and when now, with the Migration of Peoples, the existing order in the Roman Empire fell apart,

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CONFUSION OF TONGUES IN HIGHER EDUCATION.

In higher circles, one sought a certain unity—to perpetuate it by not going along with the distinct national languages; but rather to let them serve the common people alone; and to use Latin themselves. To a certain extent, this achieved a language for the world community. The Church, under the leadership of the Bishop of Rome, first established itself firmly in this, and introduced the use of the Latin language for part of the services and for high assemblies; and as a consequence, the use of the Latin language was soon also introduced for the Respublica litterarum, that is, for what we would call "the learned world." After a certain historical course, a certain division always arises between the great multitude and a certain elite, which has risen to a higher level through development. This elite then formed a nobility, an aristocracy, not in blood, but in learning and knowledge. This higher group is then constantly striving to use, among themselves, not the vernacular, but a chosen language. For the nobility, this was often French; in business circles, one now uses more English; and in the world of scholars, one now often prefers German. Only the churches affiliated with Rome continued to use Latin in the service. This usage also long prevailed in our academies. Even in the middle of the last century, this author himself participated in Latin disputations and also wrote his prize essay dissertations in Latin. However, since that time, this custom has become increasingly obsolete. Nowadays, one speaks almost everywhere, even in university life, in the mother tongue. Now this does not apply to countries whose language is generally understood, as is generally the case with French, German and English. For countries like Denmark, Romania, and also for the Netherlands, the reason is that no more students from abroad visit our schools; the reason why in Belgium, both in Liège and in Brussels and Leuven, one arose to not neglect French in the lectures. With the Flemish language, however, one severed the world community. With this tough thing, one must now seriously account, if one wants to understand the course of Higher Education. When the universities arose in Italy, Germany and France and elsewhere, Latin was still the common language of the learned world, as well as of the

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THE SCOPE OF HIGHER EDUCATION. - ON THE UNIVERSITIES.

## §20. The Scope of Higher Education.

**Analytical Summary:** The three groups not equally representative.

Originally, one spoke of scientia and artes, and then understood by scientia all the higher sciences that were connected with the metaphysical, and by artes all those other sciences that aimed at the technical and practical aspects of our human life. In England, they even now have the habit of using the word "sciences" for only one part, but this usage has gone in the opposite direction, so that they even excluded the metaphysical from the sciences, and under the sciences only understood those sciences that investigated the technical and practical. Yet at the oldest universities, the aristocratic element was so predominant that even in the schools of the Renaissance and in all that arose from Humanism, they continued to adhere to the use of the Latin language. Schools that prepared for the visit of these universities therefore received the name of Latin Schools. In the long run, however, this could not satisfy. One began to see that not only the knowledge of the classical world and of the metaphysical, but also the knowledge of the technical and practical life was indispensable. So they also introduced the teaching of modern languages, natural sciences and history in the Latin Schools. This eventually gave rise to the Gymnasia. But even this did not stop there. Alongside these already mixed Gymnasia, one gradually saw Normal Schools, as they were most pleased to call them, also arise for the demands of practical life. This naturally led to the question whether the medical and natural science faculties at the Academies still needed Latin. In two directions, one thus began to run alongside each other: on the one hand, the old classical education continued to set the tone, and this continued to demand the knowledge of Latin and Greek and classical literature; but alongside this, the knowledge of nature, of technology and of practical life came to the fore, and it was in these circles that one began to protest more and more against the rule of Latin.

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THE SCOPE OF HIGHER EDUCATION. - ON THE UNIVERSITIES. 485

This now seems to open up this way out, that for all higher studies a partial familiarity with Latin will remain required, but that for the rest the higher education studies will split into two groups: on the one hand the group of the technical-practical, which will gather in the Polytechnics, and on the other hand the deepening of the studies that make the university life flourish. At the Polytechnics, Latin would then be completely dropped, and at the Universities it would retain its old place of honor in the theological, legal and literary faculties, while for the medical and natural science studies it would only be maintained to a very limited extent for etymological interests. This will naturally lead to also returning the Gymnasia from Higher Education to Secondary Education. As soon as not only the Gymnasium, but also the Normal School prepares for the university studies, and even the Gymnasium, next to the classical, also takes up the modern form, all reason disappears to include the Gymnasium education exclusively in Higher Education, and the concept of Higher Education will no longer be able to include anything other than the education at the Polytechnics and at the Universities.

## §21. On the Universities.

**Analytical Summary:** The third type the weakest.

That our Higher Education, if the Gymnasia are removed, does not consist solely of the Universities, but that alongside the Universities as a second kind of Higher Education the Polytechnics are to be mentioned separately, was included in my proposal in 1909 in the Higher Education Act; and it did not even stop there, that this name was inserted in Art. 4, but further on in Art. 30–69 a whole new section was included on the Technical University in Delft. And although the immediate effect of this distinction between Universities and Polytechnics has been opposed from the liberal side, a further application of this split has nevertheless quickly emerged from life itself. One need only think of the Commercial University in Rotterdam, which rests on exactly the same basis. This same system will later be applied just as much to agriculture, shipping and much more. But even if this is still pending, the principle is

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The polytechnic school, which Thorbecke had quite wrongly placed under secondary education, has now finally come to its rightful place as a Technical University, and with this, the formal distinction between the Universities and the Institutes of Higher Education has been settled. To such a degree, in fact, that a Doctorate is now also obtainable in the technical disciplines. The distinction between secondary and higher education now manifests itself clearly in both the Universities and the Institutes of Higher Education. In secondary education, only the already discovered is imparted to the students, and the means are provided to the best of one's ability, but without any independent research or striking out in new directions. Yet this latter aspect is precisely what constitutes the distinctive character of higher education, both at the Institutes of Higher Education and at the Universities. Higher education, says Article 1 of the Law, encompasses two things: 1) the formation and preparation for independent scholarly study, and 2) the formation and preparation for assuming societal positions. In this, the engineer stands on par with the jurist and the theologian. Hence, the training of both requires scientific, i.e., higher education. It is certainly a deficiency that the Law knows only the formation of disciples for the service of the state and for science as the raison d'être of the Institutes of Higher Education and the Universities. Even if there were no disciples in a certain discipline, the professor in that discipline would still have to maintain his honorable position. Behind the provision of higher education lies scientific research, from which not only the student but also the State, Society, and the Church profit, and this too must be indicated as the purpose of the higher studies; and this can be done, provided one does not too anxiously confine oneself to the concept of higher education. That it would be entirely sensible in this connection to entrust the training of a part of our physicians to an Institute of Higher Education, lies in the nature of the matter. Not every physician needs to be a scientifically independent researcher. Many of them live solely for practice.

## §22. Of the Universities.

**Analytical Summary:** Psychological national mystery.

The Universities pose a difficulty that the Institutes of Higher Education do not have...

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THE UNIVERSITIES. It is not in a very small measure that they penetrate into the deepest principles of life, and thereby of themselves impose the requirement that professors who are called together to spread the necessary light over the same subject, should start from the same fundamental principle. An atheist and a Calvinist can in no way cooperate in the formation of the same group of students. Then the one breaks down what the other builds up, and the result is a painful confusion in the minds of the students. The argumentation of the one professor may differ from the proof given by his colleague; one may lay more emphasis than the other on a particular part of the science; personal difference can even enrich the content of the instruction, otherwise the talent would not come to its right. But there can be no question of simply reading out an identical textbook. Here too, uniformity is no ornament, but a deprivation of the instruction of its luster. Only, it must and shall remain the joint building of one and the same temple of science, which rests, and indeed in all its parts rests, on one and the same foundation. This, however, did not present any difficulty, at least in part, as long as the Vatican set the tone throughout Christendom. The Church then watched, and whoever forsook the life and worldview of the Church, ultimately had to deal with the Inquisition. First the Renaissance, and later Humanism, have then brought a certain laxity in this, but the history of the Reformation, and especially that of Calvinism, proves how sharply every deviation from the fundamental principle was watched.

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488 THE SCHOOLS. Now that the Reformation has also broken through here, and a divergent principle of life has gained preference in State and Society, the censorship of the Vatican has indeed been set aside, but by no means in order to henceforth surrender the study to unprincipled arbitrariness. On the contrary,

even at Leiden University the signing of the three Forms of Unity was required, and elsewhere I have already pointed out how even professors Scholten and Kuenen had signed their names under the formulas prescribed for that purpose. And although one has since the middle of the last century principally departed from this, and all Higher Education has then been declared neutral, this had no other consequence than that now at all State Universities the principle of free personal insight, which unbelieving science has always put to the fore, has also been accepted by the government as the standard for the appointment of professors. The only measure that could still be applied was that of skill and talent.

## §23. Variation of talent.

Candidates of one, three, five and even ten talents always come up for an appointment. This distinction always continues. This is the general creaturely variation, which applies not only in every human society, but even in the animal world. Just look at how enormously the price of the one and the other race horse, of the one and the other hunting dog can differ. This skill, this talent must therefore be valued the least. Whoever, where the choice is between a brilliant teacher and a dunce, appoints the dunce and leaves the man of genius at home, is guilty of a blunder that cannot be justified. Only, talent never replaces the principle. A father who, seeking a tutor for his son, chooses a morally depraved one because he is more skilled, would betray his child. To appoint as a theological professor a wonderfully talented man, but who is an atheist, would be a grievous sin. And so it is here: talent stands high, and skill demands full appreciation, provided it is always under the control of the principle professed by the School to which the appointee will belong. Whoever is not wholeheartedly devoted to that principle may not be appointed, no matter how wonderfully talented he may be; and even if he later fell away, he cannot remain. Control remains the inexorable demand of every governing principle. §24. Cooperation. We have already pointed to the requirement of "cooperation." When a team of four horses goes out, all four must be choice stallions, and not four, however splendid, grays, of which one pulls to the right, the other to the left, and the other two in opposite directions. There must be unity of principle, unity of direction, unity of action. This is the only way to achieve the desired result. And this applies not only to the team of professors, but also to the entire organization of higher education. The university is not a collection of independent faculties, but an organic whole, in which each part is subordinate to the whole, and the whole is supported by each part. The theological faculty may not stand apart from the others, nor may the legal or medical faculty be independent of the theological. They must all work together, each in its own way contributing to the building of the one temple of science.

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COOPERATION - SOLVING THE UNIVERSITY PROBLEM. 489 To veer to the left, and to loosen the straps of the harness. If one falls short here, one naturally lapses back into the neutral wake, and, by abandoning one's principle, reckons again solely with technical or intellectual talents. The rule flowing from the principle must, of course, govern the entire setup of every principled University. Directors, curators, professors - they must all, without distinction, yield to the principle, and recognize no higher honor than to serve the professed principle. In the founding of such a principled, and therefore free, University, this principle must also be professed in the most absolute sense as the power governing all things, just as the Free University in Amsterdam stipulates in its statutes that "all education shall rest entirely and exclusively on Reformed principles." This must naturally also continue in the examinations, and when the student comes to his final examination, especially for his doctorate, so that he will be granted the right by the University to now teach himself and appear as a teacher, then there can be no question of any deviation from the principle with such a scholar. Whoever raised objections to this would show that they do not understand the significance of the doctorate at a principled University. For the distinction between a neutral and a principled University lies precisely in this, that the former asks only for a certain degree of knowledge, while the latter, in everything that emanates from it, is always under the absolute sovereignty of the principle it has placed in the foreground. Curators too have a double task here, not only to check the solidity of the education given, but first of all to maintain the loyalty of the foundation to the principle. Attending the teaching is therefore, from time to time, a part of their task, which they may not neglect. That they too must stand firm in the principle in order to be able to be Curators, requires no further argument.

## §25. Solving the University Problem.

**Analytical Summary:** Lasting influence. Calvinism.

The demands defended in the previous section can, however, even with the strictest maintenance, still never bring the University problem to a final solution in a small country like ours. Perhaps

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Could the Roman Catholic faction of our population, just as in Freiburg, establish a university fully serving their principles? And for theology as well as for law and the humanities, it would be entirely conceivable that their university could be adequately staffed with professors, equipped with resources, and provided with a library. There is already an association that is quietly working towards this end goal. The costs of these three faculties need not be so high that the Roman Catholic population, which is nearly a third of the entire country and commands broad groups of the wealthy and businessmen, could not raise the necessary funds and

would not be willing to do so. But it stands differently with the medical and technical disciplines. For these fields, the instrumentation of the school requires such high expenditures for establishment and maintenance that they will always exceed the means of any faction, while also cutting off all serious competition due to inadequacy. But even if we assume that the Roman Catholic faction could succeed in this as well, for smaller groups that scarcely make up a sixth of the population, or even less, the possibility of attaining a fully equipped and instrumentalized university of their own would naturally be excluded. Nor would the Calvinists have the men or the money for this end. Groningen has the smallest of the four state universities, but even this university we could by no means equal, neither in personnel nor in instruments and resources. Perhaps, though on a much smaller scale, a presentable whole could still have been obtained, if all Calvinists in the land had cooperated towards this end, as was the case in the beginning. But when the ecclesiastical antithesis later divided and weakened the forces sufficiently, this ideal collapsed of its own accord, and now nothing else can be aimed at than the occupation of four or five faculties, each with three or four professors, and the acquisition on the smallest possible scale of the absolutely indispensable resources—while even this would still entail the requirement that the government be willing to subsidize this free Christian education in an energetic manner financially. This is the goal that must be pursued. Something has already been achieved; and much more can still be accomplished.

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SOLVING THE PROBLEM

## §26. Solving the Problem.

**Analytical Summary:** Guided by Orange.

Yet one should never imagine that in this way the University problem itself would be resolved. An institution like the Free University is and remains a corrective to the wrongly constituted public education. However one may turn it, it aims to rectify a fault and fill a void that disfigures the all-dominant, neutrally named but very anti-neutral government education. Less even than primary or secondary education can higher education be neutral. A professor penetrates deeply into the foundations of the scientific edifice with his research. To have one field taught in stark contrast to another within the same faculty sows nothing but woeful confusion in the minds of the students. The one is continually tearing down what the other sought to build up. And in the higher circles that, as the product of such conflicting education, will soon govern social and ecclesiastical life, the result can only be wavering and uncertainty in the minds. Hence the proposal already made in 1878 for solving this problem, which still seems to me the only effective one. This proposal amounted to this: that the government would call into being one or more central institutions for university education, but would absolutely refrain from appointing the personnel. The government would then have to confine itself to preparing all the material aids—buildings, libraries, and instruments—and place this material on a generous scale at the disposal of any university school that applied for it. That university school would then, each for itself, determine the principle, spirit, and direction of higher education, and would have to appoint and remunerate the directors, curators, professors, lecturers, etc. Certain legal regulations would have to establish the formal conditions that such a university institution would have to meet in order to be counted. It could be stipulated, for example, that at least three or four faculties would have to be established; that in each of these three or four faculties a certain minimum number of professors would have to be appointed, with a yearly income not below a certain level. Scholarships could be made available by the government, and on a basis of equality, and more in proportion to the number of professors in office. We refrain here from any further sketching. What we aim at is clear: complete provision by the government of all higher education with all material, external aids, without the slightest influence on the choice of principles and direction; and every institution of higher education that applied for this, provided it met certain formally established requirements, to be generously admitted to make use of these all-sided aids. Only in this way can equality of rights be obtained in the field of higher education. As long as this ideal, if one may so call it, has not been achieved, the government will always, with the aid of the money that comes from all the inhabitants, continue to pull the spiritual direction of higher education in one direction, and the part of the population that, out of conviction, moves toward the opposite direction will always be deprived of its rights and oppressed in an unlawful way in what is holiest to everyone.

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# CHAPTER XVIII

## THE SOCIAL QUESTION

### §1. Then and Now.

When in 1878, nearly half a century ago, the basic principle for the solution of the Social Question had to be indicated in Art. 19 of the Anti-Revolutionary Program, I drafted and saw approved this general declaration: “The Anti-Revolutionary party recognizes the necessity of also cooperating, by means of our legislation, to a greater extent than hitherto, so that the relationship between the different social classes may as much as possible correspond to the demands of God’s Word.” This formulation excluded...

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Now, as I turn to the speech I delivered in the Second Chamber on November 28, 1874, on the Social Question, which is printed in the publication titled: Some Chamber Advice from the Years 1874 and 1875, pp. 191 ff.—as for the guiding thought, I had already taken the very same position in that 1874 speech that Article 19 of the Anti-Revolutionary Program of 1878 expressed, and I may add that on November 22 and 24, 1910—so 32 years later—I once again pleaded for it in the Second Chamber with a speech that was printed in De Standaard of December 10 of that year. Yet, in the time between these two speeches, the way the Social Question presented itself here in our country had changed completely. In our Parliament in 1874, Mr. van Houten was still the sole one who had tried to draw the attention of his fellow members to this mighty problem. Imagine now what position this eminent Statesman, without having changed his principles, still occupies in his old age, and one immediately feels why what he then offered as the best was no longer sufficient for me. It is also remarkable how the first International, which in 1873 here in our country made a beginning with its appearance, turned to me, who was then still a minister, to provoke, as it wished, a public debate between one of its leaders and myself. I refused this, for from the outset I saw how radically we differed in principle; and yet, all that was within me pressed me even then, no less cordially than they, to insist on the protection of the worker by law. A thought for which the Liberalism of that time in its press had nothing but a mocking laugh, but which, thank God, has now at least in part been realized. The Netherlands had lagged behind in the Social Question. In England, the vigorous action of Maurice had already succeeded in bringing about partial relief of the distress. Among the German Roman Catholics, a broad-based action had already gone out from Von Ketteler, the Bishop of Mainz, which continued and still works on. Rudolf Meyer was at that time already expressing himself in a similar spirit on the political terrain. Here with us, on the other hand, they still slept the sleep of the secure, until Domela Nieuwenhuis too, sparing nothing, soon made the penitential trumpet sound; something that earned him Kuyper’s appreciation and in turn constantly earned me something of his sympathy.

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### §2. A Feeling of Anxiety.

The first perception that the raising of these horns among our citizenry and in our government circles provoked was certainly a feeling of anxiety; and soon enough, there was a drive to counteract this sudden rise of the international aspiration, precisely among the lower population. Who does not still remember how in Amsterdam they sang on the streets: “All the socialists in a herring barrel”? A cowardly way of combating, provoked by what I myself, as a young girl at the time, heard shouted from the other side on the street: “We’ve had enough of loving, we finally want to hate.” Soon enough, one heard nothing but the roar of a wild street riot and an uprising that was secretly being prepared, about to burst forth. Of system against system, one heard little at the time. Rather, it was the threat that went out from the dangerous corner. Stuart Mill and his school had intended it excellently with their all-unraveling individualism, but the outcome had bitterly belied their assertion, and as Rawson Birks expressed it so sharply: “The avowed object has been to achieve the greatest happiness of the greatest number; but the greatest discontent of the greatest numbers seems almost to be the result.” Fortunately, we saw a Christian counter-action arise at Hovy’s Brewery, on the Kadijk Heights, and in Wolber’s Friend of Truth, and soon after in Patrimonium under Poesia and Kater. It is mainly to this that we owe the fact that our Christian labor circles were surrounded and not corrupted by this revolutionary spirit. In the more revolutionary circles, on the other hand, the spirit of the Paris Commune was at work. In 1871, this Commune movement broke out in Paris even under the German siege. This action of the Communards seemed then to portend a barricade uprising in all Western states, and even in Russia. In the circles of the capitalists, one could not help but imagine that one would soon have to flee one’s country, perhaps even one’s life and property. Only in the army did the preservation of safety seem to be partly guaranteed, until even in this army tones began to sound that made one apprehensive of a repetition of what had kept France in constant unrest after 1789, and might now also break the civic peace in our country.

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A FEELING OF ANXIETY. - THE CONVENTION. - THE HOLY SCRIPTURE. 495

## §3. The Convention.

Comparing this with the current state of affairs, one sees how since 1880 this order-disturbing and everything-upending drive has come to a standstill. It became clear that the military power could no longer be trifled with. One came to the insight that the wild street uproar offered no lasting gain. And at the head of the revolutionary action, men of study and clearer insight gradually emerged, who from the outset saw that not on the barricade, but in the Convention, through deep investigation and vigorous deliberation, the means was offered to arm the popular action, not with pistols and daggers, but with social knowledge and social willpower. Although there was also a certain riotous and restless mood here in our country in 1871 and the first following years, with the appearance of the International, this came to an end of its own accord. And when it soon became clear that influential statesmen from both the Liberal and the Christian side openly acknowledged the necessity of creating better conditions for labor, the opportunity was given to also bring about such decisive changes in the existing situation in our country that much distress could be averted and a happier future prepared. This political action was then joined by the international movement that had been called into being by Marx; and although the whole of this action still had much unthought-out in it, in which later criticism could bring better improvement, the trend was around 1880 nevertheless towards a more well-considered, therefore more serious and more promising endeavor, to renew quite a bit more than just the facade, without overturning the social structure. §4. The Holy Scripture.

When the labor movement first arose, the impression prevailed in Christian circles that the adherents of this movement were almost entirely under the influence of the Holy Scripture.

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496 THE SOCIAL QUESTION. That Jesus himself had kept far removed from this, is evident. To move the employers to a milder and strictly just treatment of their personnel, to evangelize and work upon this personnel, and to offer help in case of sickness or otherwise, is considered to be a very definite demand of Christian philanthropy; but that here it was not merely a question of charity, that it was a mighty social issue and in part even a matter of rights, was not immediately perceived. Was not even slavery in Holy Scripture left untouched as a normal phenomenon of that time? Even the Apostle Paul did not attack the right of the owner over his slave. See his letter to Philemon. Slavery had originally arisen among the agricultural and warlike peoples as a matter of course. Not among the nomads, nor even among the coastal peoples, but among those nations who, like many tribes in Africa even today, are bent on subjugating neighboring tribes by force of arms. At first they used to kill the prisoners of war outright, but soon they saw that this was a waste of strength, kept them alive, and set them to work. This then gave the double advantage that it put an end to the slaughter, and that the owners, freed from manual labor, now aimed at a higher cultural level and thus promoted the development of our human life in the crafts. In the Israelite legislation, slavery was likewise still considered justified; only with this difference, that an Israelite slave became free again after 7 years, unless he himself chose to remain with his master. But although this mitigation of fate and stopping of much that was abominable in slavery had also taken place under Israel, yet slavery still had a legal existence even there, and the Apostle himself does not venture to abolish it. He softens it through brotherly love and takes away all its harshness, but the social institution as such he leaves as it is. The conclusion is therefore inescapable, that in the sinful development of our race, slavery was a phase of our human life that could not be avoided; that it had to come; and that it undoubtedly bore its fruit. Especially the short apostolic epistle of James is instructive here. He does not even touch slavery as such, but cuts sharply into the words of the employers who indeed hire their personnel for wages, but treat them in a wounding and inhuman manner. “Come now, you rich people, weep and wail for the miseries that are coming to you.”

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THE HOLY SCRIPTURE - THE SURRENDER OF VARIATION.

497 “Behold, the wages of the laborers who mowed your fields, which you kept back by fraud, are crying out; and the cries of the reapers have reached the ears of the Lord of hosts” (James 5:4). Two things must thus be recognized. The first is that the relationship between those who serve and those who are served cannot be regulated by a single fixed method for all lands and for all times. The difference in conditions and circumstances, and no less the historical process, can at times make what was once useful become an abomination; and in the second place, every phase in social coexistence breeds its own evil, and this evil can only be countered by godliness and neighborly love. So it is also now. Even in the present state of the social problem, a juridical, an economic, a religious, and an ethical motive is speaking out.

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498 THE SOCIAL QUESTION. There must be a push for change in many relationships, there must be a striving for a more just economic order, and tirelessly the spiritual-philanthropic power of godliness and moral sense must work upon society.

## §5. The Surrender of Variation.

The entire social question hangs on the relationship in which those who work and those who employ others will stand towards each other. Egoism constantly tends to either demand too much or to deliver too little. This recurring historical fact has from of old led to pondering on a system of human coexistence in which this entire antithesis would disappear, in order to thereby cut off all cause of sin and misery that continually arises from the relationship between these two categories. Socialism, which now seeks to conquer the minds, is the mightiest manifestation in history of this purposeful endeavor. On a smaller scale, however, we constantly encounter this same attempt from of old. Even in the first Christian community in Jerusalem, a tendency to realize the idea of the commune manifested itself. We read after all in Acts 2:45: "And they were selling their possessions and belongings and distributing the proceeds to all, as any had need." No compulsion lay behind this. Peter spoke clearly to Ananias and Sapphira (Acts 5:4) that the sale of their property had been a voluntary act, and that even after the sale, the money obtained thereby had remained at their own free disposal. So in the tendency that then arose to promote communal ownership, there was in the least no Apostolically ordained social system, but merely a paradisiacal feeling. No more "I and you." No conflicting interests to dominate life. It would be one holy household under God's care. The striving for equality has continually resurfaced in history, but just as in Jerusalem, it has always ended in bitter disappointment. In the absence of sin in a paradisiacal state or heavenly bliss, bounded possession, or the struggle for possession, is an unthinkable thought. Hence the communist idea kept drawing attention to itself again and again. But only because everyone carried sin in their heart, the outcome was never anything other than an increase in misery. When the Apostles later had to travel around to collect alms for the impoverished Church of Jerusalem, this expressed a judgment on the misstep of the early Church. This very same outcome would also await the International, if it ever succeeded in realizing the socialist idea of a state founded on common ownership. The delusion that lay in the "Verelendungstheorie" can rest here, even though it has very much shaken the attractiveness of Marx's idea, that the Socialists themselves had to admit the incorrectness of the theory. The "whole Marx" has therefore been abandoned since.

## §6. Marx Clipped of His Wings.

In what is now still being driven, the original theory has been clipped of its wings. Yet so genuine is and remains this entire Socialism, a comprehensive attempt to make the antithesis between possession and non-possession, between wage-giver and wage-earner, between rich and poor, disappear once and for all, and to entrust the care of our human affairs to a central power that would administer it all, dispose of it all, and distribute it all. A human coexistence without struggle, without privilege, equal for all. Here too, therefore, a return to Paradise, or a reaching forward to what will regulate itself on the new earth. Yet it is not the

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CLIPPED BY MARX'S WINGS - RETURN TO THE NATURAL STATE

As a rule, it can be said that the Socialist no longer believes in either a Paradise or a future perfection and heavenly bliss. He even admits that what he is pursuing was not possible in earlier times. However, he maintains that the period has now arrived in which this new form of life will dominate society, and therefore he zealously advocates for its realization.

## §7. Return to the Natural State

This idea of a return to a natural state was also enticing in the early days of the French Revolution. Just think of Gumalen and Lina, and reckon with the Aboriginal Society that was founded in London. Even in the clothing of that time, this return to the natural state sought to express itself. The Socialists, on the other hand, did not fall into any such fantasies. They posited a process of culture with a regular course, but also maintained that in this process the moment had now arrived, not only for the first time, but also with certainty, in which private property had to abdicate and community action had to take the place of personal action. In Henry George, we perceive a similar tendency, but only with regard to land ownership. In 1880, his Progress and Poverty appeared in New York, in which he definitively developed his system. The land, the soil, the habitable terrain, had to permanently dominate the situation as a source of livelihood and life activity. It was the unequal distribution of this terrain that was now corrupting the situation. For the land was now the possession of a few, and the majority were deprived of every plot of ground for the sole of their foot. Especially England and Scotland offered a spectacle here that aroused indignation. Hence the call that now came to the government to successively expropriate or confiscate all land if necessary, and to place it at the disposal of the entire population. Here too, a perfectly genuine element was at work, but the application that George gave to it failed. In a similar direction, albeit under a completely different motive, the great Trusts are now also working. It cannot even be denied that the municipal administrations of large cities are not only inclined to take various things, such as gas supply, water supply, cemeteries, tram traffic, and so much more, under their own management, but even feel compelled to do so. Especially during the terrible war that broke out in 1914, it has been seen how even in neutral countries the national government and the municipal administration were forced to a considerable extent to take the supply of necessary foodstuffs, their sale, and the determination of prices under their own control. This has always been the case with investments in fortified cities. And so it may, and cannot be denied, that there can be a definite necessity, both in the general situation and in particular relationships and events, to introduce certain community management for a certain time.

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There is even more than one country that, in order to raise money, has thought of introducing a monopoly; so of tobacco and matches in France, and of opium in our East.

## §8. All Appeal to Holy Scripture Excluded

There is also no doubt that Socialism has found certain inducements for its utopias in the existing conditions, but it can never appeal to Holy Scripture. The scriptural history goes through various historical periods, and each of these periods sets its own demands. What remains constant under all periods is only these three things: first, that what applied in Paradise will not be applicable again in the Consummation, in the currently disrupted state by sin; second, that each historical period brings its own demands with it; and third, that amidst the change of the periods of culture, one demand remains fixed and never changes, and this expresses itself in the words: "You shall love your neighbor as yourself." In the motto of the French Revolution, which inserted "equality" between "freedom and brotherhood," this ideal of leveling is simply incapable of realization. There is nothing so unequal as the human world, and it only brings a curse if one wants to impress the evil mark of "uniformity" on our human life. Whoever wants to squeeze our human life into the corset of "uniformity" does away with the free breathing. Precisely in the variation lies the wealth of a free life that expresses itself, which may not be smothered in the unity of the model.

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THE GUILDS HAVE OUTLIVED THEIR TIME. NEW DEMANDS.

## §9. The Guilds Have Outlived Their Time.

The rising labor movement that set in during the last quarter of the 19th century, and still continues with heavy waves, arose from a radical change in social conditions. For the Middle Ages, the Guilds, at least in the cities, had rendered excellent service; and they still do, though in a modified form, the "Innungen" (this is the German name for Guilds) among our Eastern neighbors. These Guilds for trades and industries were, compared to what now coalesces, active on a very small scale. The masters joined these Guilds, in connection with the Church, and with the permission of the Authorities, firmly together; and thus they even placed their own workers under stricter regulation of their own movement. One was given, after examination, a diploma for the trade in which one wanted to act as a master. And at the same time, one was concerned with ensuring good treatment for the workers, especially with regard to Sunday rest and night rest. Under the rule of these Guilds, there was also a very strong mutual trust between masters and workers. Only, the figures of the personnel remained, in connection with the then prevailing state of trade and industry, incredibly small. In somewhat larger textile enterprises, one often allowed the workers to set up the loom in their own homes, so that nothing separated the father from his family. In many respects, a firmly regulated and desired condition. There reigned peace through contentment. The flaw was merely that these Guilds, as is often the case with such institutions, did not keep pace with their time, and therefore ultimately became obsolete. §10. New Demands. So the newly born condition gradually began to make quite different demands, especially on four grounds. First, the steam engine brought about a complete change in the technical field. One still saw this recently when the steam crane was introduced for unloading ships, and with the help of the steam machine, three men now did what otherwise gave work to twelve. Indeed, steam, as it succeeded more and more, has brought about a complete revolution in working life by applying its power to all points of labor through all-encompassing machines. Secondly, this technical upheaval led to a very strong expansion of the workforce, and thus the familiar bond between master and worker fell away. The technical facilitation in the production of goods brought these goods to lower prices and thus within reach of many more buyers. So business, industry, trade and shipping continued to expand, and naturally the working population responded with more abundant breeding. Thirdly, these colossal factories now arose, which called for hundreds of workers, and through this gathering of so many workers under one master, all domestic relations between the two were destroyed, and the mass was led to think of joint defense of rights and interests against the master. And fourthly, this naturally led the workers, first in the same factory, then in the same trade in several factories, and finally all together, to a certain understanding and cooperation, which ultimately even extended beyond borders in the international defense of rights and interests. §11. The Masters Hesitate. At first, the masters did not go along with this. They often disputed their workers' right to act in this way. As indicated above, the better-minded masters did not lack, who even cared paternally for their personnel and often helped them on a religious and philanthropic basis, but this too brought no change in the conception of the mutual legal position. This has then led to sharp, sometimes bitter conflicts, and not until much later, also under the leadership of the Roman Catholic clergy, has a different awareness gradually come to the fore. In Belgium, it even went so far that many Roman Catholic masters preferred to retire to a monastery for a few days a year, to consider before the face of God whether they had not fallen short in the treatment and handling of their workers. When I "Boaz.”..

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the more it succeeded, has brought about a complete revolution in working life by applying its power to all points of labor through all-encompassing machines. Secondly, this technical upheaval led to a very strong expansion of the workforce, and thus the familiar bond between master and worker fell away. The technical facilitation in the production of goods brought these goods to lower prices and thus within reach of many more buyers. So business, industry, trade and shipping continued to expand, and naturally the working population responded with more abundant breeding. Thirdly, these colossal factories now arose, which called for hundreds of workers, and through this gathering of so many workers under one master, all domestic relations between the two were destroyed, and the mass was led to think of joint defense of rights and interests against the master. And fourthly, this naturally led the workers, first in the same factory, then in the same trade in several factories, and finally all together, to a certain understanding and cooperation, which ultimately even extended beyond borders in the international defense of rights and interests.

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HESITATION OF EMPLOYERS - ORGANIZATION INDISPENSABLE

503 When I helped establish this, I had hoped to also connect a similar purification of conscience to these institutions, but this did not succeed for me. Perhaps this idea was not yet ripe for realization in the Calvinist circle. Yet we are now so far along that even among the employers, the eye is beginning to open more clearly to the new situation that has arisen. Already at our Social Congress, work was done in this direction. Writings such as those from the hand of Dr. Slotemaker de Bruine and Smeenk brought the light, and without exaggeration it may be said that the investigation has now progressed sufficiently to lead both sides to a clear insight into the completely changed situation. Now this change consists in this, that the relationship between employer and worker in the large enterprise has lost its former domestic character, and in its place has arisen a need for public regulation of mutual relations and mutual rights, resting in their own organization on both sides and seeking the solution of the dispute arising therefrom in the reconciliation between those two organizations. On the line of Stuart Mill, only one locomotive moved, namely that of employer individualism; but now alongside it, the locomotive of the worker has also obtained equal rights of passage, not yet in the eyes of all, but yet in the steadily more prevailing public opinion.

## §12. Organization Indispensable

In England, and to some extent also in America, it had not yet come to this ultimate antithesis, which now calls for solutions and reconciliation. On a fairly extensive scale, employers and workers had managed to understand each other here, and one had succeeded in making a workers' organization of a more practical nature appear, which ultimately disposed of a gigantic capital. Yet this no longer helped. A conflict that had actually once arisen forces its way through to the outermost contours of its own accord, and one also becomes increasingly aware that the principled antithesis from the mainland of Europe is now also passing over to Great Britain, and there too the International has gained a firm foothold.

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Although this may be regretted on the one hand, yet one should not be discouraged by it. A dispute such as the one that has now arisen demands a principled solution and regulation, and one forfeits one's best chances if one loses courage to push through. Yet one should not flatter oneself with the delusion that the dispute that has arisen here could be settled without friction and shock. On the contrary, that organization will have to remain the lever, but almost insurmountable difficulties stand in the way of that organization on both sides and of the cooperation of both sides for the achievement of the goal, and neither the employer nor the worker can penetrate deeply enough into the difficulty that arises here. Immediately, the ever-increasing world traffic stands in the way of what could perhaps soon be achieved in one's own country. This world traffic, which is increasingly absorbing everything particular in each country and people, cuts off the possibility of looking only at the national conditions in what is to be organized and reconciled. This fading of the national, in order to solve it in the international, will bring one country an advantage, the other a very serious disadvantage. A country with rich sources of production will gain by it; a country with a poor soil and small production will lose by it. This naturally reacts back on the business of all kinds, and so it cannot be otherwise, or in the one, richly blessed country, the position of the workers will almost be able to attain a luxury, while the other country will face meager provision, if not outright poverty. One can therefore not apply the national standard exclusively to the organization, but must also take into account what has already been organized among our neighbors. One must not shrink from the inconvenience that arises from this. Whoever wants the goal must also want the means, and without adapting to what the general conviction leads to, one does not get there.

## §13. Objections

But even apart from this, the slogan of organization is more quickly proclaimed than realized; even in one's own circle, one is still far from ready with this. For immediately one runs into the almost insurmountable objection that very many among the interested parties do not want to hear about such an organization.

They appeal to...

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OBJECTIONS - SELF-ORGANIZATION

The desire for personal freedom. If there is a patron who wants to go his own way, there is only one question for him: whether he can also find workers who, like him, do not want to belong to an organization. If he succeeds, such a person does not bother with anything and stubbornly goes his own way, unconcerned about the problem that this calls for a solution. And just as many a worker does. So if he can only find a patron who is socially compatible with him, why would he then get involved with that "gang that seeks unrest"? Those who are in the know feel much for this song of freedom. In the organizations, one all too often encounters agitators instead of leaders and guides. Especially since the Socialists have gained so much influence in the organizations, they sometimes literally rage and rave against every patron or worker who does not come their way. One knows all too well how, at a proclaimed strike, they often cause damage to those who do not participate, so that even women and children are not left unharmed and personal violence against body and property has occurred. Of course, everything that is sacred to you rises up against this. On the other hand, it must also be recognized that it is often not feasible for many serious workers to participate in the meetings that are held for the benefit of the organization. One is often forced to listen to a language that one cannot or may not listen to. If one speaks out against this, one is met with mockery and scorn. And what is no less offensive, in such meetings decisions are often made that one's conscience cannot but disapprove of, and in which one may not participate. This and much more is the reason why many patrons and many workers stubbornly refuse to participate in such an organization, and who can blame them for that? In England it was originally, and is still partly, quite different. Also in America, the organized circles generally have a more sober, more serious tone. On the other hand, in France, Belgium and partly also in Germany, Austria and Italy, the socialist agitation remained dominant. And precisely this has often caused the organization to miss its target.

## §14. Self-Organization.

The one-sided realization of the necessity of organization and the recognition, on the other hand, of the unusable nature of the organization that has arisen, has led elsewhere and with us to strive for a separate organization that would then have to be based on Christian principles. The Roman Catholic patrons and Roman Catholic workers went ahead elsewhere in this. The ecclesiastical bond that guided them and stood by their side made this possible for them; but in this self-organization they then also kept to themselves. They did want to admit a Protestant once in a while, as was done in Berlin with Von Kleist-Retzow, but they usually still encountered resistance. In Twente, as one remembers, cooperation between Protestant and Roman Catholic workers was already in full swing when the Roman Catholic clergy condemned and opposed it. One still maintains this cooperation to some extent, but it then became clear that regular cooperation in the economic and social field was excluded here. From the Roman Catholic side, too, there was a constant insistence on separate organization. On our side, too, this was done, and the Anti-Revolutionary Party has always tried to promote this. Patrimonium took the lead, and soon many other, more specialized associations, unions or groups followed.

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## §15. Peculiar Difficulties.

It cannot be denied, however, that here too peculiar difficulties arose. For among us it was not the local Church, nor the Synodical Assembly of the churches, that set the necessary things in order and indicated the boundaries, but it came down to individual membership. What then prevented another from not joining? Something that by itself undermined the generality of the organization. From an organization only the full power goes out, so that a potential unity force is born that embraces all those who want to join. On the other hand, if there are candidates who refuse to participate, a conflict arises between their interests and those of the organization; something that then, instead of leading to cooperation, so easily leads to bitterness and alienation. How self-evident the idea then also arises to set up, on our side, a separate organization under the Christian banner, alongside and partly in opposition to the socialist organization.

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PECULIAR DIFFICULTIES - THE CALLING OF THE GOVERNMENT

To place them, and to persuade your fellow-believers to join, is extremely difficult. Something that is added to this is that all organization costs money, which many are not willing to spend; as well as the fact that attending the meetings, sometimes far from home, steals time; a time when one would rather take a rest for one's physical rest and for life in one's family. So one encounters difficulties from all sides, and we are still far from any kind of fully organized organization. It

certainly requires it, but far too slowly, and one must almost admire the perseverance with which the predecessors managed to hold out in this. Our thanks and our praise are due to them. We will always encourage this attempt to come to our own organization, and we would like nothing better than to see our Press plead for this endeavor in the broadest sense. Yet it is certain that in such a general organization as in a special Christian organization, as long as it must arise entirely voluntarily, it will never succeed in encompassing the totality of the workers. Hence the constant search for whether a regulation could not be devised that would include all under legal regulation. This brings us to the calling that comes to the Government in this regard.

## §16. The Calling of the Government

The reproach has not been spared us that we began in the sociological field with some hope in private initiative, but later deviated from this first position taken and surrendered to State Socialism. This representation is incorrect. For historically, government interference in the Guilds already lay from of old, which could not arise anywhere without the cooperation and recognition of the authority of State and Church. And as for our own first appearance in the sociological question, this took place in November 1874 in the Second Chamber, when we just gave the summary of our intention in the demand that, just as there was a Commercial Code, so also there should be worked towards obtaining a Labor Code. This was then mocked, and the then Minister of Justice did not hesitate to compare the idea of such a Labor Code to a little flower stem; that little flower stem to break with two fingers before the eyes of the Chamber; and further to add to this that it would not go otherwise with my efforts at legal regulation of labor. The outcome has not proven that Minister, but me, right. We already have Labor Chambers, a Safety Act, a Nuisance Act, and a Labor Act, the Accident Act, and much more; and the legal attempt to regulate insurance in the field of labor also falls under the same rubric. I myself introduced a very extensive Labor Act, in which the regulation of the apprenticeship system was also included; and it hardly needs to be remembered how Minister Talma was also active in the same direction. Undoubtedly I had initially expected more to be obtained from private initiative; but that the help of the Government was indispensable to create an orderly state of affairs in life that would provide an acceptable solution to the Sociological problem, has always been emphasized by me. I opposed the Cobden School from the outset with its senseless Individualism. Especially when it came to the organization of working life, it has always been and still is my conviction that free private initiative will never achieve the goal. There is not enough unity of insight among the workers as well as among the employers, and the attempts that have been made in the event of the lack of voluntary participation in the Sabotage and so much more have been used to compel the unwilling by harassment and violence, have aroused resentment and aversion, but no conviction. Even posting has not achieved its purpose. For never will all want to, and the position that one then takes towards the so-called “strikebreaker” does not gain, but rather alienates.

## §17. Speech in the Second Chamber on November 22, 1910

Especially in my speech in the Second Chamber on November 22, 1910, which is printed in the Supplement of De Standard No. 11877, I have tried to answer the question whether the organization of employers and workers, each for itself, and yet in mutual connection, should not be so regulated by the Government that all would be included without distinction, and thus the bitterness that increasingly separates the organized and the unorganized.

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SPEECH IN THE HOUSE OF REPRESENTATIVES ON NOVEMBER 22, 1910. 509 I then discussed this problem, referring to the excellent work of Etienne Martin Saint-Léon, second edition titled: History of Trade Corporations (Paris, Felix Alcan, 1909) which was awarded the gold medal by the French Academy, and in the last chapter of which, under the title: The Present and the Future, a far-reaching proposal was made to list all employers, according to their respective trades, by government authority, and likewise to do the same with the workers in each trade, and then to have them elect heads from among those who, according to these lists, belonged to the same category, and to allow a central representation to emerge from the circles of these heads, to bring about cooperation between this central body of employers and the central body of workers, but in such a way that both met and deliberated entirely separately, and after this, to have the decisions required taken by their delegated representatives. I criticized this proposal from the School of De Mun on three main grounds. In the first place, it gave a complete organization. Secondly, it cut off all irritating quarrels with those who did not want to join the organization. And in the third place, it ultimately gave a decision to which both parties had contributed after complete independent deliberation.

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## §18. The starting point.

The starting point should lie in the apprenticeship system. The fault for which our Dutch workers in many trades are so far behind the English, German, Belgian and French is to be attributed to the lack of necessary training. This also applies in part to the employers; but whoever wants to act as an employer has the opportunity to acquire his knowledge abroad, just as many emerging industrialists owe their high level of education to visiting German schools. In Rotterdam, we

finally got our own School of Commerce, and as already mentioned, my intention in amending the Higher Education Act was not only to elevate technical education, but also to bring many other universities into being. And when my attempt then met with too much opposition, we are now at least slowly making progress. Only with the Trade Schools does it still remain a struggle, and this for the reason that the Training School for the teachers who have to serve these Trade Schools has not materialized.

## §19. One whole.

What I aimed at in this was one whole. Training of the workers through regulation of the apprenticeship system, elevation of the Trade Schools through deliberate training of the teachers for them, secondary and higher education for the various parts of working life, and culminating in the Technical University in Delft. The plan that lay in this presupposed, of course, that everyone would be certified for his trade and according to his profession. Just as a diploma is now required for the practice of medicine, the legal profession and so much more, so every manufacturer in his trade would have to possess a diploma, and have obtained this diploma after passing an examination. Such a diploma would also, with a good vocational organization, have to be the rich possession of every trade worker. Neither employers nor workers would be able to start a business just like that, but only if they were certified for their trade.

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THE STARTING POINT. - A UNIFIED WHOLE. - A WELL-ORDERED BODY. There would be no more letters patent; it would be a diploma that would grant the right to practice, whether as a master or as a worker, a particular profession or trade. All the strife between the organized and the unorganized would thereby come to an end. It would provide for each trade, for each city, and for the entire country, one all-encompassing organization for each vocation. In this way, local circles would naturally form themselves, which could appoint administrators and delegates. The delegates from both groups would bring the pending issues to a decision in the regulatory meetings, make this decision known to the Government, and the Government would then act accordingly. Of course, the Government would have to begin, as St. Léon indicates, by bringing into being such an organization by compiling complete lists of masters and workers for each trade, but through what I remarked about the apprenticeship system, the examinations, and the diplomas to be awarded, the compilation of these lists would present no difficulty. And even if there were still some loose groups of laborers without trade knowledge, the vast majority of men in business, whether in agriculture, industry, commerce, or shipping, would still come under a regulated organization and be able to assert their rights.

## §20. A Well-Ordered Body.

The whole must be a well-knit combination of the parts, and the government's involvement would not aim to limit the freedom of the business, but on the contrary, to ensure its full development. Only the former hope of the individual would be transformed into a well-ordered body. Such an organization would also provide the so necessary opportunity for masters and workers to come together in their own direction. The Christian propaganda would not be disturbed by it, but rather promoted, inasmuch as under such an arrangement no one would be left out, but all men and all

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THE SOCIAL QUESTION. The law should naturally regulate the relationship of these distinct groups, but in such a way that each group would meet separately and discuss its own affairs, and that only the delegates would come into contact with one another. This need not pose any difficulty. As far as this has already been intended and sought, it is easy to avoid any unpleasantness between these delegates. And so the end result would be that no one would be left out, and that all interested parties would be included in the organization and find their place, that internal strife would be excluded, and that it would not just be a matter of discussion at the meetings, but that all action would be directed towards the goal, and that the Government, thus remaining fully informed of the social movement, would equally assist employers and workers in promoting their interests and respecting their rights. Until we have succeeded in elevating our social life to this higher sphere, it remains in the meantime the duty and calling to strive for this as much as possible in the private domain, and as well as we can, to promote the trade unions, and as far as we are concerned, the Christian trade unions. Not—this always takes precedence—as if our quiet trust and our rest in God should ever be transferred to the trade unions. Let this, as Jesus called it, be left to the Gentiles. For those of us who kneel with the Lord's Prayer on our lips, the trust in the future does not lie in what the trade unions will bring us, but solely in the promise of our God. And therefore never be anxious about what you will eat or what you will drink, or with what you will clothe yourselves, for indeed your Father knows that you need all these things. But just as your prayer: "Give us this day our daily bread," does not mean that you now, like Israel the manna in the wilderness, should passively wait for it, but rather that it should spur you on to more diligently acquire the indispensable money for the purchase of your bread, so it is here. The sick man on his sickbed begs his God for healing, but precisely in connection with this takes the medicine that his doctor has prescribed for him. And so it must be here as well. In nothing shall you as an employer or worker neglect your right or the interest of your family. As far as the organization can serve this purpose, you may also not neglect it. Only, it may never become the object of your trust.

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UNEMPLOYMENT. 513 Otherwise, it is but a means in God's hand, with which not you yourself, but He as your Father in heaven and the ages will bless you.

## §21. Unemployment.

The most dreadful evil in the realm of labor is unemployment; can the Government also be held responsible for this wicked evil? In part, undoubtedly. An overly driven system of free trade and free movement can deprive work from those who would otherwise have it in abundance. Free trade can result in countless goods being "made" across the borders, so that there is no more labor to be performed here in the country. One sees this most simply in the case of sawed timber. If the unsawed beams come to us, then the wages for sawing can be earned here. If, on the other hand, the sawed timber is supplied to us, then this wage for our workers is gone. The imports from Germany, France, and England are not offset by our exports to those same countries, at least not in terms of manual labor. Especially for a country that is poor in raw materials, it naturally lends itself to greatly increased imports. It is also beyond doubt that our provision of our needs for food, drink, clothing, household goods, technical aids, etc. comes to a much larger extent from abroad than from our own soil or our own factories. Whoever would go through shop after shop in the Kalverstraat in Amsterdam or the Hoogstraat in Rotterdam and examine which goods and wares are of domestic origin and which are of foreign provenance, would come to a painfully conclusive result for our own national labor. The free traffic works in the same direction. From abroad, many workers come into our country, and also office personnel who are better trained and more capable, and thus take positions that would otherwise be filled by our own countrymen. Above all, the ease with which our cultured public speaks foreign languages contributes to this. Indeed, without exaggeration, it can be said that, in this respect, the situation is now rather the reverse of what it used to be. Formerly, the fact that something was of Dutch manufacture increased its price in London and Cologne; now our fading nationality tends to make many young ladies, and also many gentlemen, prefer anything that comes from Paris or London, and to have an almost unfavorable opinion of anything that is of domestic manufacture.

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514 THE SOCIAL QUESTION. Fortunately, there are other goods that are sought out by us abroad; for example, our cigars and our cocoa, but the fact remains that our free trade and our free movement deprive our own people of a great deal of work, so much so that unemployment forces many to go and seek work across the borders. Thus, before the war broke out, there were certainly 100,000 Dutch workers who, because they remained unemployed here, went to seek and find work in Germany.

## §22. Overpopulation.

An entirely different cause of the increasing unemployment lies in overpopulation. This is explained by the long peace, by the better hygienic care that lengthens the duration of life, by the decrease in mortality of newborns in their first year of life, by early marriages, by improved housing, and by increasing prosperity. Although the law that Malthus established may be subject to some deductions, it cannot be completely denied that the production of children naturally increases in proportion to the possibility of existence. Especially in a small, overpopulated country like ours, this must lead to the utmost poverty, even to a lack that undermines the honor of the country. Such a constantly growing overpopulation can now only be curbed in two ways: either by the immoral means that are used to hinder birth, or by emigration. Emigration, alas, we hardly know. Our colonies in Asia attract only the government personnel and the trade, even though a settlement of people from the Netherlands could very well thrive in mountainous regions. In Suriname, the growth of the European part of the population would even be highly desirable, but our West does not attract. Our only emigration remained, as a result, to Belgium with 75,000, to Germany with 120,000, and to the United States of North America with a fluctuating number. Comparing these figures with the increase in population, which grew from just over 2¼ million to just over 5¾ million from 1830 to 1909, and increased by almost half in the much shorter period from 1880 to 1909, and since the last

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OVERPOPULATION - HOW TO COMBAT UNEMPLOYMENT.

The census of 1909 already showed an increase from 5¾ to 6 million, which indicates that emigration, which is running at a very low rate, is by no means capable of remedying the evil of overpopulation. The unemployment thus created now generally weighs upon the weaker and less capable part of the population, may at times press upon a particular class of workers, e.g., in times of severe cold, and can, as was recently evident, even assume a very serious character in times of war. It is well known how for a time almost all building activities were brought to a standstill.

## §23. How to combat unemployment.

Against this unemployment, collective labor contracts can now be resorted to, so that the employing firm contracts not with the individual worker, but with an entire group of workers. Then, however, the group covers the individual. Against this unemployment, help can be sought in a kind of insurance. Help can be offered

by Philanthropy. From the Government's side, various measures can be expected to accelerate the provision of work. And if, despite all this, there still remains a temporary, strongly pronounced state of distress, the municipal authorities can temporarily step in. But with too strong an increase in overpopulation, all this in the end is of no avail, and there will always remain a layer of lower-standing, physically and psychologically less mature workers who cannot save themselves.

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Now, if we consider the still uninhabited part of the globe in Asia, America, Africa and Australia, and apply what the Lord God, according to Genesis 1:28, intended when He laid the burden upon us as the human race: "Be fruitful, and multiply, and replenish the earth"; how this burden was repeated to Noah in Gen. IX:1, when it was said again quite literally: "Be fruitful, and multiply, and replenish the earth"; and how, at the confusion of the Tower of Babel, according to Gen. XI:4 ff., it again came out as the will of the Lord that our race should not concentrate in a few places on the earth, but as much as possible spread itself over the whole earth; then the selfishness that makes us, the Dutch, want to stay put, so to speak, appears in a very unfavorable light, and it becomes clear that what the English and German nations did, by spreading themselves over the whole earth, answered much better to the will of the Lord. Hence also the fact that unemployment here at home threatens to become an ever more serious plague, which, leaving aside the temporary and exceptional cases, can never be fully remedied by the provision of municipal support as a general phenomenon in the life of the people. The law goes on to say that even among the workers there is a difference, that they are of one, three, and five talents, and that under the general unemployment it is almost exclusively the first who fall, whose resilience, willpower and perseverance have sunk the lowest.

## §24. The wage.

The abolition of slavery, which had become an abomination, and also the abolition of serfdom and similar forms of attachment of those who lived and worked on the land to the owner of the land, has raised the lower classes of the people psychologically in an incredible way, but physically has subjected them to an equally incredible risk. Psychologically, in their inner being, he who was once a slave has become a human being through this abolition. When I had the opportunity in the Chesapeake Bay near Baltimore to get to know those who had been born as slaves and had lived as such for a time, and had since become free, the newly emerged humanity in these happy ones struck me. This humanity did not yet fit into their new way of life, it made rather the impression of something foreign that had been implanted or ingrafted in them, but it was still so glorious. Only, with this liberation came a care that was not known before. Formerly the "master" cared for and provided for all needs, now the task rests on themselves. And this now, this daily existence from hand to mouth, this lack of any firm ground under their feet, this possibly being helpless on the street tomorrow, this is the human misery that must find its redress in the wage.

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WAGES - MITIGATION.

Wages, when paid out, give a certain stability to life and create a position, at least of a certain duration. As long as a salary or stipend is running, one at least knows what one is tied to. And if any concern remains, it is only the question of how to ensure the durability of one's fixed position; and especially how to continue one's existence when old age or illness puts an end to the enjoyment of this position. Wages, on the other hand, are a compensation ad hoc for a specific, executed service, sometimes per day, even for less than a day; often for a week. So one is always sitting on a stool, and at any moment the situation can arise where one stands helpless in the world with wife and children, and even has to leave one's dwelling, to stand on the street.

## §25. Mitigation.

Now the custom has certainly brought some mitigation here. A maid has her six weeks, others are hired on a term basis, and in factories and workshops, the wage relationship is no longer severed from the day; but the possibility still arises at any moment that one stands on the street. Many are without any property, their clothing and bed excepted. The savings bank first brought a glimpse of something better. But it always comes down to the wages again, always with the double question of whether it is sufficient to live on, and whether it is secure. In Jesus' days, among the Jews, serfdom had already largely receded, and working for wages had come into vogue. Just look at the parable of the servants who were hired at different hours of the day, and to whom the hirer still paid the same wage. Jesus' admonition against saying, "What shall we eat or what shall we drink" also points to the wage standard. With a slave, this could not be. He was assured of his food. But it was precisely the wage that brought the uncertainty of itself. This uncertainty expresses itself in the cry: What shall we eat, what shall we drink, or with what shall we clothe ourselves? And against this longing for a more secure life, Jesus now placed not a wage theory, but merely the trust of the believer in the care of his God. "Your Father who is in heaven knows that you need these things!" For the inner life of the soul, this still continues,

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and the worker for whom, through all kinds of wage theories, this trust in his God is lost, or even shaken. But apart from this, it is self-evident that we must also give an account of the wage theory. In everything to which we are called to act or to undergo treatment, clear awareness and clear insight are required, and therefore the wage question must also be clearly thought through from the Christian side.

## §26. The Ideal to be Pursued.

The ideal that imposes itself on us here is, of course, sharply outlined. That ideal demands a wage that is capable of providing for us and ours in all the strictly necessary necessities of life; to give this provision on a fixed footing; to include in this provision what we need, even if we can no longer work, whether through illness, accident or old age; in addition to work, to also attain the fulfillment of those entirely different needs that manifest themselves in the spiritual realm in reading, church attendance and recreation; and moreover, to have something left over for higher purposes, so that the laying of an offering on the altar or the giving of alms does not become an absolute impossibility. If we were in a situation that met this ideal, then a healthy and skilled workman, in the vagueness of his life, would have to be able to count on a wage from which all this was attainable. Here, however, gradations in life immediately present themselves. The workers themselves distinguish between skilled laborers and ordinary workers, and even among the ordinary workers one constantly encounters the distinction between trained craftsmen, who stand a little below the skilled laborers, but still occupy a higher and better position than the common laborers. Especially in America, these specifications have been driven through sharply, but in connection with this, no trouble has been spared to calculate as precisely as possible how much the worker in each of these three categories must receive per week, in order to see his performance fully converted into wages.

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It is necessary to calculate the proper wage and the corresponding standard of living required. As far as can be determined from these endless data, it can be said that for a married man the minimum wage should be around 12 guilders, for the second class around 16 or 17 guilders, and for skilled laborers it should fluctuate between 18 and 25 guilders. Country life naturally sets lower requirements than life in the big cities, especially when it comes to housing costs. Certain variations must therefore be allowed; but in order to provide for the necessities of life in a fair manner, the wage standard should be approximately as stated. However, such a standard does not remain stationary. If heavier taxes come, if competition weighs more heavily, if many prices of necessities of life rise, then 12 guilders will soon no longer do what 10 guilders did before. One must always be mindful of variations in the standard of living to be determined. Not too high, but to some extent one may also count on the earnings of the wives and children over 16, about which more later; but the main income must still always come from the head of the household, and therefore we must not desist from the demand that the wage, on a normal footing, must be sufficient to make provision for the ordinary human necessities of life, calculated in simple frugality. Such a wage standard cannot be forced. This always revenges itself, but the government can take the lead here, noble landowners and great industrialists can set a good example, and whoever sets out to elucidate the social problems must tirelessly and unflaggingly keep pointing to these minimum ideals, etc.

## §27. Cooperation Indispensable.

However, success is absolutely impossible if the workers do not cooperate from their side to achieve this goal. For this, accurate knowledge of the existing conditions is indispensable. Data must be provided even from the back alleys of the country. The man of social study must know how things stand in the country, and it is precisely this knowledge that is so largely lacking. Whoever investigates such issues usually knows much more precisely how things are in America than in our own country. In addition, we must always gain more accurate knowledge of the earnings of the employers and of capital. Naturally, the employer must make an enticing profit for his enterprise, for his daring, for his knowledge and versatile care, which will always encourage him again. Any attempt to put the employer on the same line as the worker is sheer absurdity. The existence and life task of both are completely different, and these two factors must therefore be judged by their own measure. But however decisively this must be stated, there must still be a certain just proportion between business profit and wages, and the various ways in which this has been tried to be realized have certainly not been disappointing. However, all prospect falls away if the necessary cooperation is lacking on the part of the workers. Nothing has worked so destructively in this respect as the spirit of bitterness and distrust, sometimes even to the point of rudeness and rebellion, in which the worker often sought his strength. The laziness and neglect of work when the eye of the employer is not watching. Deceiving him in all sorts of ways, and actually not wanting to cooperate, has held back the rise of the wage standard and will soon cause it to fall again, even if it has risen. The employer must realize that “his people” are doing well, are making a good impression outwardly and recommend his firm; but conversely, “his people” must rejoice in the flourishing of his business and boast of how alert, how ready, and how sought after on the market their boss is, because they know that their own well-being also depends on his prosperity.

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## §28. A Living Wage.

Of course, it would be precious if a living wage could be assured to every worker's family, as they call it in America, but do not forget that John A. Ryan and Richard T. Ely in their work published in New York in 1906, A Living Wage, on page 145 set the minimum income for a worker's family of 5 persons at an annual total of over 600 dollars, i.e. 1500 guilders.

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A LIVING WAGE - STRIKES AND LOCKOUTS

As we explained on page 140, raising the total by $87. Although we understand very well that one would consider oneself fortunate if such an income could be assured permanently, yet everyone feels that in this way one falls into absurdities. Here too, it is not difficult to see through it. Raising this living wage almost immediately results in higher prices, and then the profit is automatically reduced by itself. And if one now says: Then it must lead to socialist equalization, then one does not get a step further. With forced equality, the incentives of production become blunted, and one is even worse off after a short period of apparent happiness. What stands in the way of any good arrangement is the lack of mutual trust. In America, this is much more clearly seen on both sides. In some major businesses, they have already progressed so happily that it became an open book-keeping between employers and workers, that they played completely open cards with each other, and precisely thereby knew how to bring the whole matter, and in that matter the interests of the employer as well as of his workers, to the highest bloom. What is still so much lacking with us is a sufficiently clear insight into the state of the question; from which it follows of itself that one does not understand the art of making the interests of both parties interlock. Employer and worker belong together. They must support and defend each other's interests in turn. Upright justice must be considered from both sides. And the fear of God must be the power that banishes distrust and ignoble treatment.

## §29. Strikes and lockouts.

If this mutual open-hearted trust had governed the situation, the very idea of the indispensable strike that now surrounds us would never have arisen, or at least never have been put into practice. As it now stands, it was not to be avoided. Under the changed conditions of the labor process, abuses often arise on the part of the employers. The English School of Stuart Mill had bewildered the minds. It all came down to a struggle of individuals. Whoever held out the longest won the game. The fittest was the victor, and the less well-equipped succumbed to his fate and perished. This has then led to the disappearance of all mutual trust, and the manufacturers, as the stronger ones, have drawn the workers into the struggle for survival, and according to the rule that the survival of the fittest governs the entire economic situation, have exploited the domestic industry, the woman, the children and finally also the male factory workers in an unpardonable way. Many of them felt this themselves, but it seemed to them that there was no escape from this economic law. Everyone did so, and so did they too. A mighty reaction has then naturally arisen against this. Eminent men who stood outside it took up the cause of the exploited working class. Despite all powerlessness, this one thing always remained, that the employer or manufacturer needed the workers. If one had set out to threaten the mighty capitalist with the loss of his workforce by limiting his needs, by serious saving and by close cohesion, there would have been hope. This, then, was the strike, and already at the Social Congress in 1891 it was clearly stated on our side that the strike is not to be rejected as unlawful. Not that the strike could become the panacea for all evils. Rather, the workers have also increasingly come to see that the strike is by no means the always valid, generally applicable means of relief. It also requires a spirit of cooperation among the workers, which only rarely works through. If this does not succeed, then the one who does not readily join in gives the impression of a "strikebreaker." In this strikebreaker there is then nothing but betrayal of the sacred cause, which has not infrequently led to a vehmgericht and to murder.

## §30. Counter-action of the employers.

And in addition to this, the clearer the insight into the situation on both sides becomes, the more the "lockout" on the part of the employers can thwart any strike almost completely. The strike requires a free, strong development of moral power. One already has not too much of it, and now one would have to set aside from the already meager wages for a long time in order to make the strike possible. In the strike weeks themselves, the family lives in great distress, and the strike leader, who has to keep the troops together, is often in a very difficult position. The lockout, on the other hand, does not require this moral effort, and the employer can simply close his factory and wait until the workers, driven by hunger, give in. This is why the lockout has become a much more effective weapon in the hands of the employers than the strike in the hands of the workers.

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COUNTER-MEASURES BY EMPLOYERS.523 One must dare to suffer even the half-deficiency of many fewer. Credit must be obtained from the baker or grocer, and this still weighs heavily weeks after the strike has ended. Even if the strike later leads to an accord, often those who led the strike are nevertheless excluded from this accord. Now all this still goes on, if it is a strike on a small territory and at most over all the workers in the same place. But this too was soon found to be impossible. For the great employers from all over the country, sometimes even across borders, soon realized that they possessed the power to call a counter-factory strike into being, as succeeded with the great textile strike. If now everything was strained to gather a capital that could enable a strike of say three months by 2 or 3,000 workers in one place, all this became child's play as soon as all the manufacturers across the whole country put together some 50 to 60,000 workers. With diamond workers, and a few singular professional organizations, this danger may be less to be feared, but for all major industries it can immediately set in. The Trusts have in various ways brought the great manufacturers into closer cooperation in their fierce competition, and if this spirit of cooperation becomes master over the whole field, then in the end all labor strikes would be doomed to miss their goal. The outcome also shows that labor strikes have gradually become subject to much sharper criticism. The more far-sighted among the socialists themselves are in many ways backing off, naturally to reserve them for the great political strike; but of this there can be no talk among us. Political strike is, after all, to transfer an economic measure to a terrain where it was forbidden. For the economic strike, on the other hand, we continue to plead, though we add: Be more careful with it! Recklessness does not improve your condition, but rather threatens to greatly worsen it; and if there is anything that speaks for the strike, it is well that it has often actually improved the condition of the workers in many respects on the open field. Only one must not forget here either that improvement of the workers' condition on a broad scale has all too often also driven up the price of goods, and thus nullifies the just-made profit.

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## §31. Boycotts and Sabotage.

Boycott was the name of a director in Ireland who had made himself hated in wide circles by his heartlessness towards his workers. His full name was Charles Livingsham Boycott. Lord Erne, a powerful landowner, had appointed him as director over his estates, and it was in this capacity that Mr. Boycott literally squeezed the working population. This aroused such aversion that the Land League in 1879 decided to pronounce the ban over him; which then meant that all the workers, and even all the servants, ran away from him, that no shopkeeper would sell him his goods anymore, and that even the railway companies no longer wanted to transport his cattle. For a full year Boycott then struggled on. But in the end he had to give up. And in 1881 he left the country a pauper. This same system has then been applied in England, and once in America and elsewhere, to similar tyranny, and not infrequently this measure also bore excellent fruit. Yet boycotting will never become a generally applicable means. For, in the first place, the times are past when the exploitation of the workers assumed such a blatant and outrageous character. Secondly, "the workers alone" cannot achieve their goal here; the shopkeepers must be drawn into it as well; which does not come about so easily. And in the third place, one must be faced with a truly outrageous case, otherwise public opinion will not support the Boycott.

## §32. Sabotage.

Akin to the Boycott is the so-called Sabotage; derived from sabot, i.e. clog. Here too the vindictiveness of the embittered mind speaks. Where the Boycott wanted to make the inhuman employer socially impossible, Sabotage goes one step further, and does not shrink from attacking his goods, his possessions, his house, his carriage, his furniture, and even, if necessary, his child, yes, even physically assaulting him. Especially employers who did not hesitate to seduce young girls in their service were the victims of such.

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BOYCOTTING AND SABOTAGE - SABOTAGE - TRADE UNION ORGANIZATION

Sabotage is not infrequently the deserved object. One knows the story of such a scoundrel, whom the people in an uprising had castrated and then carried in triumph through the village. But even if sabotage does not always take on such a violent and shameful form, it remains the means by which the discontented masses make the life of an obstructive employer unbearable at his place, and force him either to do penance or to disappear. The intention is then to instill fear in other employers through this, and thereby achieve economic improvement. It need hardly be said that all such violent means are to be condemned from a Christian standpoint, although it must be added that employers without honor, who provoke such acts of violence, by their heartlessness certainly sink deeper into guilt than the people whom they have so mercilessly embittered.

## §33. The Trade Union Organization

The right way to lasting improvement of fate remains, after all, the trade union organization. That it can also decide to strike, we do not deny; but as soon as the strike emanates from the trade union organization, it stands under more reliable leadership. Precisely because it does not aim at general improvement, but occupies itself solely with a particular trade, the trade union organization has a number of men who enjoy great confidence among their trade colleagues, who are well informed about the state of affairs in the trade, and who possess sufficient knowledge of the state of the trade throughout the country, and even beyond our borders, to judge what can be dared and what should be discouraged. Moreover, the trade union organization has this great advantage, that it enhances the competence and thus the economic value of the personnel, and on that basis may make higher demands. It develops the workers, trains them, and thereby gives them a higher significance in social life. Of course, not all its members are skilled laborers, but the guiding thought in the trade union organization is then to pursue this as a goal. Naturally, the trade union organization is less political in nature. Not what comes up at the meetings or comes to the fore in the press occupies it. For the most part, it confines itself to what concerns the one trade for which it acts. The more this trade union organization understands its vocation, the more at home it will be in everything that pertains to the trade.

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And to express it in monetary terms, whoever has been a member of his trade union organization for five years and has not neglected any effort to better understand his trade and become more at home in it, will in the years to come, as far as his wages are concerned, easily climb three to five guilders per week. Not that we would not highly appreciate workers' associations of a more general nature, like Patrimonium. The trade unions divide, and that is why there is a lasting need for a more general organization that unites. And even if a good trade union organization must also possess a Central, under which the provincial and local organizations unite, this remains a special task after all. Hence the necessity to nevertheless make the solidarity and unity of the entire working class stand out again in a general bond. A trade union organization can also inspire, but it aims at a more domestic goal, and therefore, for the high inspiration and enthusiasm that must always set the tone, especially among the Christian workers, lies not in the trade union organization, but much rather in a bond like Patrimonium as the cherishing hearth. That is why both must be appreciated.

## §34. The So-Called "Posting"

If all workers, without exception, had joined the organization of their trade, as they ought, there would be no talk of posting. Posting is intended solely to dissuade workers who, because they do not belong to the trade union organization, would still want to continue working after a strike has been called, to implore them not to serve the cause of the employer against the cause of the workers in this way, and to make them well understand that if they lend themselves to this, their action will amount to betrayal of the workers' cause. Such betrayal is of course nothing other than the result of the lack of an all-encompassing organization. As long as...

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The So-Called "Pickets." Now that this lack exists, there will always be unorganized strikers who say: "I don't care about your strike. I'm not part of it. I'll keep working." This then makes a fatal impression on the organized strikers. They feel that whoever keeps working is ruining their cause. He becomes their enemy, and while he should have been their support, a traitor to their cause. This cannot be otherwise. This is human nature. That one now wants to make one last attempt to prevent such betrayal through "pickets" is understandable. But the end does not justify the means here either. And also, such a means can, when properly applied, be praiseworthy, but when wrongly put into practice, can also be very certainly condemned. Hence many have already stigmatized such pickets as a pestilence. One knows how far they went here. Two men were placed at a man's door, who, when he wanted to go to his work, threatened him and followed him, sometimes even warning him that if he went, his wife and children would not be safe. Horrors that cannot be condemned sharply enough. The better way has already been taken, where all such pickets at home were cut off as unworthy, and one only wanted to know of a picket at the factory gate. This is of course something quite different. And if one succeeds in sending out two or three of the highest-ranking workers from the management of the Trade Union to plead with the men who still want to go in, not to do so, then the picketing already takes on a much milder character, and we could go along with it. Yet it would also, in our view, be preferable if the Trade Union, through the picket, sent a written request to the address of those who were still willing to work, in which the entire strike was explained and defended. If necessary, this document could later be handed over again at the factory gate. But be careful and remain with this "picketing." For time and again a hidden evil intent lurks behind a friendly appearance. One wants to frighten the unwilling and instill fear in him, and this is precisely an unholy act. Warn, convince, win over to your cause, and stay on the right track. But above all, promote the trade union, and even more, steer it in the direction we have outlined in the spirit of Martin St. Léon. Draw everyone from the government side into your organization, and the picketing will disappear by itself.

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## §35. The Duration of Labor.

Duration of labor and wages are two sides of the same matter, which are also directly connected with each other. If one considers, however strictly incorrect, the labor performed in service as the sale of strength, it follows from this that both the effort shown in the labor and the duration of that effort determine the value of what has been delivered. Suppose the effort in labor is set at one to three energies, as a, b, or c, depending on whether the worker dawdles, works through, or surpasses himself, then this, calculated according to the duration of time, will give a result of time multiplied by energy, and the wage will have to be regulated according to the proportion of the two moments, energy and time. Suppose the price of labor, according to the energy, is 25, 50 or 75 cents, then you only have to multiply these three moments by the duration of time of 1–12 hours to determine the price of the delivered product per day, and thus indicate the amount of the wage. But it also follows from this that the worker must relate the increase in his wage and even the normal calculation of his wage both to the energy he has shown and to the time spent. A first-class worker who worked with three energies could, in eight hours' time, produce more labor than a slower worker in twelve. In pressing for a reduction in the duration of labor, the rule must therefore always be that the worker must also produce more. This now depends on a proper apprenticeship system, a good trade union, effective hygiene, good housing, sufficient food, etc., but also on moral seriousness, a sense of duty, and the overcoming of our innate laziness. But if one succeeds once in increasing the value of one hour's labor by, say, 10%, it can be deduced from this either that the wage must rise by 10%, or also, and this is the point at issue here, that the duration of their labor be reduced by 10%. Whoever delivers 10% more in one hour of time can, as far as the duration is concerned, suffice with 10% less. This is of great importance for the working class. The worker must not be completely absorbed in his craft. He also has to take care of his person, enrich his mind, be mindful of higher interests. He must also be able to live for his wife and children. Also the

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529 Friendship makes its demands. The church life must not be neglected. Meetings must be able to be attended. And the night's rest must be such that what was consumed is restored in the night hours. Long and sluggish, dawdling work consumes the worker aimlessly. Short and vigorous doing what needs to be done elevates and inspires.

## §36. The worker's cooperation.

Pressing for a reduction in working hours is therefore very certain; only, the worker must make this possible through better training, regular practice, and better effort. Even then, however, it has been observed that the concentration of more labor in a shorter period of time does not yield equally favorable results in all businesses. There are even businesses where the worker has such a completely mechanical character that time savings are almost entirely excluded. This must almost always be the case, for the result shows that one always does something more or less than the other in the same business. However, these differences are so extremely small in an almost completely mechanical business that no pricing for the labor delivered can be determined according to the rules. The reduction of working hours is therefore a question that partly depends on the type of business, but for the rest depends on the worker himself. On his training as an apprentice, on his constant practice, on his demonstrated energy. And only partly does a law arise here from our human nature. That law comes into effect as soon as more labor is demanded of the worker than the normal healthy condition of his constitution allows. It is not too strongly said that a master who not once, but regularly, in determining the working hours, goes beyond these limits, commits a slow murder on his workers. It therefore only depends on whether the worker does the time he works without dawdling and with energy. If not, then the guilt of his suffering lies with him. But if this is the case, then in nature itself a limit is set which neither the employers nor the workers may exceed. Providing labor is also not the sole purpose of life for the worker.

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## §37. Exemption.

Exemption from labor demands the Sunday, demands the other holidays, demands the Saturday afternoon, demands domestic events, and demands a small outing in the summer. We combine this, because it all flows from the fact that the worker is not a machine, but a human being. As a human being, he demands Sunday rest, as a human being he has a need to celebrate the holy days, as a human being he may be in marriage, and birth, marriage or death, which form an exception, may occur in him, and also as a human being the worker has a need to get out of it for a while, however short. The free Saturday afternoon is of later invention and is intended to provide some extra rest, which others shift to Sunday, especially when buying clothes, etc. from shops, in order not to disturb the silence of Sunday.

But however viewed, whoever is human is not a machine, does not tick day and night like a clock, but knows exceptions, and these exceptions must also be reckoned with in the worker. This certainly poses more than one objection to a business that does not allow any exception; such as the business of the doctor, the pharmacist, the servants, etc. and it also proved not always possible in some large factories to bring the large machines to a standstill. The Minister of the Word, the organist, the sexton, etc. are also to be mentioned here.

## §38. The Government should regulate this.

An agreement regulation must then be made about this, just as this has already been done for the pharmacy in places where there are more. And as for the Sunday regulations and the service of the official officials, and those who serve, the Government is the responsible person here. To open a polling station on a Sunday, as is done in France and Belgium, is an annoyance that we fortunately do not yet know; but for the rest, the service of the fire brigade, the water supply, the police, etc., is entirely under the authority of the Government, and a trade union to oppose the Government if necessary does not apply to those who serve the Government.

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EXEMPTION - THE GOVERNMENT REGULATES HERE - NIGHT WORK.

One need not enter the service of the government; but whoever does so, must know beforehand that he then entrusts his fate into its hands and cannot or may not engage in any conflict with it. A certain organization of civil servants is therefore not excluded, but it can never proceed otherwise than under the leadership and strict control of the government itself. The idea of granting a few free days first came up in England with the bank holidays. Here too, the introduction of two or three days of this nature should no longer be hesitated. The birthday of our Queen must be one of them; a second should be taken from our national history; and a third with the onset of summer. The Socialists sought the May Day. In itself a fruitful idea. Only, May is too early, and furthermore, such a free day must never divide, but rather unite the People. One saw, therefore, how the design of the Social Democrats completely failed.

## §39. Night Work.

Nature points to the day for work, the night for rest. Even among the animals this natural rule applies, with only predatory animals and venomous insects as exceptions. Man too must take the lead here. His is the light, and the darkness must give him the restoration of strength in sleep. Exceptions naturally exist here as well. With a seriously ill person, one must keep watch. Watching is just as necessary as the fire brigade. And the police have to see to it that thieves and robbers do not abuse the night. Now there are also businesses where it has not yet succeeded in ensuring the night's rest. Especially the Journalism and the Bakeries still suffer under the misery of it. Telegraph and Telephone could be left to stand still in an emergency, for these means of communication did not exist before, and life went on quietly. We have already spoken of other government services. The Bakery too will sooner or later come to its night's rest. Here, after all, the question of luxury often applies. The ordinary worker is very satisfied with the bread that was baked the previous evening. Only, in the cities, luxury demands the freshly baked roll. Now this too could have been overcome, if one had respected the freedom of the business. Then it would have won a better custom of its own accord. But unfortunately, one did not confine oneself to this. One wanted to force the matter, and then one lost the game. This was foretold, and it came true. It could not be otherwise. Better planned, the attempt will, however, succeed sooner or later. Not at once, and with one stroke, but gradually. With Journalism, on the other hand, it is different. The night describes the history of the day, and cannot present that history to the public later than in the early morning; something that is all the more to be regretted, since the nocturnal overstrain so easily leads to the disruption of that historical account. In a country like ours, exceptions could still be made to some extent in ordinary times, but the Press throughout the world is now one, and in great States the letting pass of a speechless night is completely cut off for the Press. In nothing, however, may this exception for Journalism push aside the firm demand of nature that the night is for sleep.

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Scholars who sit at their writing desks at night, and students who cram for their exams at night, refuse obedience to the definite demand of nature. Soon this will be avenged in sleeplessness, and then the often dangerous sleeping pills and the evil chances of this resistance to nature will complete the ruin.

## §40. Anarchy.

A deliberate discussion of the Anarchist tendencies in the field of labor is less necessary for our country. We have already pointed out how Nihilism, Syndicalism and so much more found entry in Russia, France and Italy, but could never develop into a power of significance among us. In 1903 this striving still gave a sign of life during the Railway strike, but has then also been suppressed forever, and, as one may hope, above all forever. True, the newspaper Het Volk trumpeted after the adoption of the then already all-Anarchism suppressing Law, that this Law must be repealed at once, and the sooner the better; something for which the Social

Democrats would also immediately make themselves available; according to those high-sounding words. But in reality this was nothing but a last gasp of a dying cause. The Anarchist tendencies have been definitively defeated among us.

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ANARCHY - CONCLUSION. The anarchist movement has quickly declined. One heard nothing further about it, and even when in 1913 the Socialists were momentarily sixteen members strong in the Second Chamber, not even a rumor went out of an attempt to now finally repeal that fatal Law. This is because it has been recognized here that the transient nature of Anarchy on this point, and now systematically aims at transforming the situation. The Anarchist striving, whether it took the form of Nihilism or Syndicalism, had no patience, took no time for it, to transform the situation, and was always intent on suddenly, all at once, turning the existing order of things upside down. One did not need to wait one's time, nor even systematically prepare anything. One simply waited for a favorable moment, and then would unexpectedly and all at once unleash the great struggle; a struggle in which victory would of itself accrue to the Workers. The distinction between the Anarchist currents and the more moderate Social Democracy of the Revisionists was not that only the former were revolutionary. Both emanated from the glorification of the revolution idea. But herein they differed, that the entire Anarchist current, and so also the Syndicalists in France, did not take the time and the patience for arming themselves for the struggle, but simply wanted to strike without further deliberation. Hence also, that all such attempts could now and then lead to an uprising, but could not change the situation in any way. The much larger military force at the disposal of the Authorities, cut off every chance of success of the Anarchists once and for all.

## §41. Conclusion.

Summarizing what has thus been argued, it remains our conviction that as much as possible should be directed towards a government involvement with labor, which ultimately derives the greatest percentage of its energy not from the Government, but from the workers themselves. So in the Insurance system. However, a return to earlier conditions, when labor almost entirely organized itself domestically and regulated, as a result of the expansion of industry and technical gains, is cut off. The Government must then lead to this, by obtaining through a proper educational system with annotation, possession of a complete list of employers and employees, in order to unite these in vocational organization, each independently, but yet in contact with each other, so that all workers are included in it, as well as all employers, and that both may come to that connected organization which should serve the Government for advice, exert influence on legislation, and can lead to the removal of disputes. Entirely in the manner of Martin St. Léon. This complete organization will in the meantime be so arranged that any fundamental difference of conviction can lead to a separate grouping within the one great organization. The workers of Christian conviction will be able to act here entirely freely. As long as this ideal has not yet been achieved, in case of a serious dispute the Court of Arbitration will have to serve, and one will have to learn the art on both sides to fully submit to the pronouncement of such a court of arbitration. Especially we Calvinists should not let ourselves be led astray here. Although Professor Dr. Werner Sombart, in his masterwork "Der Bourgeois," Munich and Leipzig, 1913, p. 323, has angrily railed against Calvinism, and not without some ground, but as appears from the history of Calvinism, the warmest zeal for the worker has always come forth from our circles. Herein Sombart was right, that Calvinism, as soon as it loosens its religious ideal, tends to turn over into capitalism. One saw it in our own history, how after the brilliant period of our faith-struggle, a grasping for gold and money followed, which ultimately caused all higher ideals to perish. Precisely for this reason we pressed so restlessly for an unchangeable maintenance of our spiritual-religious foundation. Neither the organization, nor the rise in wages; nor the insurance may become the ground of our hope for the future. That ground must for every child of God always and solely lie in his trust in God. Always according to Jesus' definite statement: "All these things do the Gentiles seek after; but ye rest your soul's needs solely on what your Father in heaven possesses."

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DEFENSE AND OFFENSE

# CHAPTER XIX

## CHURCH AND STATE

In the First Part, the discussion of the Principles has already touched on this subject in its historical relations. There is therefore no need to fall into pure repetition. Hence, we will simply refer to the First Part. Chapter XX. NATIONAL DEFENSE

### §1. Defense and Offense.

The fundamental principle here is that in the Netherlands we have never thought of our Navy or Army in any other way than as instruments for a defensive war. Yet we do not push this so far as if our Sovereign could never draw the sword except to repel an enemy who attacked us with armed force. Even with the most peace-loving disposition, there are very well more than one case imaginable in which we would have to take the offensive, without yet having been attacked. We have the duty to stand up not only for the rights and the people of our land, but very decidedly also for the rights and the honor of our national existence. Without an attack coming upon us from across the borders, a threat may come to our Sovereign, a violation of our Sovereignty, an injury to our honor, and an insult to our Colonies, so grave that we could not refrain from a protest, and if necessary, have to act against the offender with armed force. One knows how there have been moments in the present war where our position already became precarious. But although a state of war on our borders may sometimes force us to endure much that would not be tolerable in normal times, yet it can in no case be asserted that it could ever become our duty to draw the sword ourselves, even if the sword were not yet drawn against us. This does not prevent us, however, from speaking exclusively of National Defense, provided that one never loses sight of the fact that a defense will commonly bear a defensive character, but can equally well, where it concerns the defense of our rights or our honor, assume an offensive character. What is excluded and remains excluded is solely that we may wage war or even threaten war, if the only motive for this were gain in territory or increase of our influence. If we were to take that path of war, our action would acquire an aggressive tendency, and anything that even remotely smacks of this is, in the most absolute sense, excluded for our country. §2. All Attempts at Conciliation Come First. We must even go a step further than this. Not only does everything that even remotely suggests an attack out of a desire for gain lie under a strict prohibition, but also where there is a question of violation of rights, prejudice to interests, or injury to our honor, we may never resort to attack unless all other means to resolve the dispute have first been tried in vain. This applies to every country, in an even stricter sense to the smaller States, and most particularly to the Netherlands as the country where the Peace Palace arose, the Court of Arbitration is seated, and the Peace Conferences have been held. What offends, or injures, or damages, may befall us without there having been any malicious intent involved. There may have been a diplomatic misunderstanding, there may have been unintentional errors in the community of nations, there may have been a clash of interests that no one foresaw —in all such cases we must first exhaust every peaceful means before we can even think of taking up arms.

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There may have been a clash of interests that no one foresaw—in all such cases we must first exhaust every peaceful means before we can even think of taking up arms. Only when all other means have been tried in vain, and it becomes clear that the offender refuses to make amends, and that our rights or our honor can only be maintained by force, may we—but only then—resort to the sword. And even then, the use of force must be strictly limited to what is necessary for our defense. Any excess, any desire for revenge, any intention to humiliate the opponent, is strictly forbidden to us. Our action must be purely defensive in character, no matter how offensive the initial provocation may have been. This is the principle that must govern our national defense.

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ALL ATTEMPTS AT ACCOMMODATION COME FIRST - THE PERMANENCE HAS FAILED. 537 Diplomatic relations have been established, and there may be differences over the interpretation of previously concluded treaties. And in all such cases, it is obvious that, before resorting to arms, one must first try to reach a compromise through a thoughtful exchange of ideas; that if this fails, one must call in the intervention of others; and finally, if nothing else can be done, hand the dispute over to an arbitral tribunal for decision. The most desirable thing here would be that, at a moment of undisturbed peace, we should come to a friendly understanding to the effect that, whatever differences might later arise, it would always and without exception be submitted to arbitral decision.

### §3. The permanence has failed.

If such a permanent arbitration could have gained ground, a more pacifist future could have unfolded. This, however, was not to be. The conclusion of such a comprehensive Arbitration Treaty was attempted and succeeded on our part with Denmark in 1904, and the credit for this first and only treaty of this kind goes to

my then colleagues Melville van Lynden and Loeff. However, a subsequent attempt to achieve the same result with Sweden and Norway failed. And when later, especially with a view to Belgium, it was hoped that we would be just as successful with our nearest neighbors as in Copenhagen, the attempt to do so led to such complete disappointment that even the continuation of the negotiations was not to be thought of. Since then, it has become increasingly clear that the other Empires could never be moved to anything more than a limited Arbitration Treaty, as indeed more than one of this kind has already been concluded; but the exception that was always maintained there, that questions of national honor and higher vital interests would be excluded, ultimately deprived all such half-measures of any decisive value. It could never be determined in advance what would be understood or included under these exceptions; and if ever, from whatever quarter, the evil disposition arose to set us right by force of arms, it would soon become apparent that our half-measure treaty was no more than waste paper. We have therefore never failed to exclude any offensive thought on our part as well. The shifting of the casus positions that could have forced us to take the offensive have not been eliminated altogether.

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538 NATIONAL DEFENSE. What provoked America, that the decision on a dispute that had arisen should not be allowed until after the lapse of a year and an armed intervention, can be an excellent means of deterrence. In the evil years of 1914 and following, however, even this proved to be of little use. If ever, then it became all too clear in those wretched years how powerless even the firmest parchment is against the sharpness of the saber and the shot from the cannon.

## §4. The former Militarism.

Where we have always pressed for the armament of our country from the Anti-Revolutionary side, this has never implied sympathy for Militarism, and it may even be said without exaggeration that the active action of our party contributed to curbing a pseudo-militarism that had crept in here in the past, from which a kind of soldiery had even been born. The writer of this still remembers from his student days how even in the sixties of the last century half-drunk dragoons or hussars did not hesitate to go out on the full Sunday Breestraat in Leiden with drawn sabers to terrorize the citizenry and throw the whole city into turmoil. Drinking, raving, and cursing were then still part of the true soldiery. An ordinary citizen was an inferior being, and above all a volunteer who rode on horseback would have fallen short of his honor if he had not made the superiority of his position over the ordinary citizen known in every possible way. This was all the more true in a university town, because the students of that time held precisely the same class pride towards the “rabble,” alias citizens. Naturally, the citizenry of Leiden benefited from both the University and the Garrison, but without torn clothes they got off neither with the Students nor with the Dragoons.

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COMBATING RELIGIOUS LIFE.539

## §5. Combating It.

However, that desire to curb the military life has been combated from more than one side, so that in the end even the morale of the Army was improved by it. This cannot yet be said to the same extent of the Navy, but the Army has acquired a more humane character. Cursing is still prevalent, and, alas, even still too much by officers, but it is no longer the setting of an honor in a special God-blasphemous curse, as in former times. The religious propaganda, as far as prayer, Bible reading, and church attendance are concerned, is still constantly overshadowed, but it is nevertheless constantly breaking through. The sin with the woman still creeps on, but it is no longer the so brutally open prostitution of old. One must not misunderstand our meaning here. We know how miserably much there still is to purify and improve in our Army, and what sad aspects are constantly emerging from our Army. The mobilization has also shown this all too sadly and aggravated it. But even if we do not settle everything here, it must not prevent us from being thankful for what has been gained; and that this gain is very considerable, everyone knows who has previously been offended by the soldiery. We are now moving in a better direction. The Military Homes work splendidly. From all sides, the better-minded in the Army are supported. And although the complaint about much that is troublesome continues, it must still be acknowledged that we have made progress, and that what we have already achieved contains the promise of even further gain. The field preachers must now, as soon as peace returns, not be abolished. Rather, they must be doubled in number, and appointed by the Church for the own members among the soldiers, and also in peacetime be helpful to us in the struggle against what is poisoning our Army. On board our larger warships, the former almoner must no longer be absent. Why should everything receive guidance, but only the religious element not? §6. The Religious Life.

But then we must also guard against the repetition of the serious mistake that has been made in this regard during the mobilization. The Department of War understands nothing of the religious life, and therefore appointed twelve field preachers for 240,000 men, i.e. one for every twenty thousand, and this was done in such an ill-considered manner that without choice or distinction they placed a modern Socialist with one 20,000, and a strict Calvinist with the other, and it even seems that they did not even think of how they would add like to like; something which, if they had recognized the Churches, would have shown itself naturally. Especially after the compulsory church attendance of the military has been abolished, they should have sought a completely different provision for the religious needs. But War had not thought of this at all. After having abolished church attendance, it did nothing more. Everything now went on without religion. And only

when the mobilization spoke, did one feel that one could not do without it, and gave in to a certain provision, but in such a thoughtless and ineffective way that it became a risk in the country. It was only the former Minister Talma and after him Dr. de Visser who then tried to bring order into this chaos, but however high their merits are in this, the impossible remained impossible even for them. Religious and moral power had to be deployed with more vigor. What is done in this sense from the private side, must also be able to count on the authoritative and financial support of the Army administration; also for the distribution of good reading material. The small 3,000 extra military subscribers that De Standaard received during the war years shows sufficiently how much progress can be made here; and even if we leave the Soldiers' Gazette out of this, in any case the Department of War should not have supported this paper one-sidedly, but also financially considered the paper published from the Roman Catholic side for this purpose, and thus provide "something for everyone." And as far as morale is concerned, the commanders could very well forbid the troops to visit certain streets and inns. In The Hague, a sentry stood every evening at the entrance of a common neighborhood, and no soldier could pass through. Even hygienically, this works excellently. Our soldiers are mostly big children, and the child's path requires supervision. But above all, it comes down to the exemplary example of the officers in the higher and lower ranks.

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At Breda, or wherever officers are trained, there is a shortage, so that the high moral obligation of the officer corps remains unfulfilled.

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RELIGIOUS LIFE - OUR NAVY

The officer who is to lead the soldier in the religious and moral life is not from the outset the one who will later bear the responsibility. Although it is perfectly true that we do not have a Gustavus Adolphus or Cromwell at the head of our divisions, the religious and moral responsibility of our officer class cannot therefore be disregarded. The man who commands troops, whether as an officer or as a non-commissioned officer, and who does not honor the men under his command above all else, falls below the tolerable level.

## §7. Our Navy.

More than once there has been talk of abolishing our separate Department of the Navy. The appointment of Mr. Colijn as Minister of both the Department of War and the Department of the Navy already laid the groundwork for this intention. The fall of the Cabinet in 1913 has for the time being thwarted this plan; but still, one will see, it will ultimately result in the dismantling of the Navy Department. As will be set forth in a following chapter, the fleet in the East Indies Archipelago can no longer remain a part of our Navy in the Netherlands. The fleet that will have to guard our Archipelago will for its maintenance and armament have to move entirely from the Navy to the Colonies; and in the end there will be no other interest left here at home for a Department of the Navy than covering our coasts and keeping a small number of cruisers ready for flag display.

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That this is extremely painful for our Navy, we understand. With a past behind it of which our Navy may boast, this is tantamount to the self-effacement of its existence. With a time behind us when Holland's Fleet was the first fleet in the world, when it made Spain's Navy succumb, and still held out for a long time even against England, an officer of our Navy cannot bear the thought that our Navy has now served its purpose. Once a fleet under De Ruyter and Tromp that every other naval power envied us, it wounds the self-esteem of our Navy that it has sunk into such insignificance in an irreparable way. At first one still got over this. Our action against piracy in Algiers, shortly after the restoration of our independence in 1813, the sending of a warship to Beirut, our participation in the Battle of Shimonoseki in Japan, and so much more, still gave somewhat the impression that our ancient glory could revive. Our wooden cruisers or line-of-battle ships of those days still counted for something, and the entire transformation of the armed forces at sea was yet to come. It already began with the first monitor at Baltimore; but this first beginning was nothing compared to what was soon to come; and he who now compares the English, German and American squadrons of Super-Dreadnoughts with what seemed a power on the waters forty years ago, immediately feels that every fleet that remained unable to go through this process of evolution had already been written off at sea. Spain was the first to experience this in the most painful way. When in the harbor of Manila in 1898 an entire Spanish squadron was sunk by a few cruisers of the Union, and shortly afterwards off Cuba the entire fleet of newly built Spanish cruisers had to yield to the American fleet, the fate of the fleet of every small State was decided.

## §8. Magical progress.

If one now adds to this what in the fifteen years of the twentieth century has been literally conjured up in the maritime field, and how ship after ship, nay, castle after castle, was launched that had not cost less than 25 to 30 million guilders to build, and demanded fortunes for crew, armament and maintenance, - then one immediately feels how with this the maritime situation has taken on proportions that not even the smallest State could maintain with the utmost effort. Neither the Swedish, nor the Norwegian, nor the Danish fleet count for anything anymore. Greece now has at its disposal one colossal warship, which it received as a gift from a Greek in America, and later bought two old battleships from the American Union; but for the rest it knocks in vain at the door of Portugal or Spain, of Belgium or Brazil, of Peru or Chile, everywhere with the same sad result. One can no longer hold one's own at sea against the Great Powers; and

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MAGICAL PROGRESS - COASTAL DEFENSE

543 What Argentina and Chile still tried, these lands have also soon abandoned to stop building their fleets. One stood, both financially and in terms of personnel, simply before an absolute impossibility. For us, this has not yet come out so immediately, because with us it was not only about the coverage of our coasts, but above all about the protection of our colonies. All together, it gave on our list still a total of 102 warships, but these together represented not much more than 80,000 tons of content, and could bring into action little more than 283,000 horsepower. This fleet carried 455 pieces of artillery, and had a crew of nearly 7,000 heads, including the officers. Yet among all these warships there were only 14 cruisers, of which still six from the previous century, and only partially fully equipped in steel. The others not even that. Moreover, they were unequal in size and construction. Unequal in speed and armament. They hardly formed an squadron. Even if it still gave a certain fleet display, it was and is no longer a fleet, and there is no talk of a naval power on the waters in this way. If it were to come to a real war with this state of affairs, the tragedy of Manila and Cuba would experience a second performance in Den Helder and Tandjong Priok.

## §9. Coastal Defense

Leaving the Colonial demands aside for a moment, no other defense can be conducted on our coast in the Netherlands than partly 1° through the army, supported by batteries and forts; partly 2° by laying mines; and partly 3° by submarines and airships. This combination alone makes that almost the entire defense now already falls under the Department of War, except the mines and the submarines; for the airships do their work just as well on land as on the waters. It has already been pointed out long ago that the coastal defense can only very partially come from the Navy. Although a blockade is still conceivable, in which a not too large cruiser, as mentioned above, could harm the enemy by shooting out, yet this is too accidental in nature for the defense of the coast to be controlled by it.

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The former delusion, which was especially applied in Zeeland, as if there could only be talk of a concentrated Defense in the center of the country, is now increasingly abandoned, and under the present war it had no small effect that we did not leave the Scheldt to its fate, but remained mostly on our own terrain. The great fort that is now being built on Walcheren also shows that the former system of abandonment has been abandoned, and the defense is again conducted along the entire long line of the coast. This has also drawn attention to Den Helder. If Den Helder is not given up, then the defense there too will have to be directed according to the demands of the latest times. Naturally, the mine system has come more to the fore by this changed state of affairs. All study and care will therefore have to be directed to bringing the mine system on our coast to the highest conceivable perfection, and to defending it against the natural attempts of the enemy to render the laid mines harmless.

## §10. The Small States in Distress

But although we are now on the better path as regards the improved fort construction and as regards the mine system, no less seriousness will always have to be made with the submarines and with the airships, and this poses an almost insoluble problem especially for small states like the Netherlands. In the first place, it will be completely impossible to acquire both from abroad. If anything was clearly shown in the recent war, it was the inexorable necessity of making the construction of both these instruments of war entirely and fully possible in our own country. All orders for them from abroad must be broken. Just as it proved to be the most effective way, it was precisely the war itself that provided the exact data for the construction of these instruments of war from month to month, and it was not before, but during the war, that the vast majority of these instruments were ready and are still being expanded. We too must therefore be able to manufacture them ourselves, and the narrowness of our country imposes on us the obligation to have the construction take place within our own borders.

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THE SMALL STATES IN DISTRESS - CRUISER SQUADRON The small states must have a territory as protected as possible. Otherwise, the enemy air fleet would primarily aim at the destruction of our shipyards for this purpose. It has become equally clear from the present war that a too small number of these instruments is of no use. Overwhelmed by superior force, they are already deprived of them in the first months of the war. And in the third place, the personnel who are to serve these weapons must be trained and ready for their operation in the most effective way. Disasters like those that have befallen the commander-in-chief of our army in the Indies are otherwise the fixed punishment for neglect. Finally, one must also be equally prepared to enable a submarine to sail at great distances from our coast. What the German submarines are now accomplishing in the Mediterranean shows to what distances the action of these boats can extend; but then provision must also be made for the supply of food and ammunition through means that must be organized in peacetime. Here, both with submarines and with airships, it is a means of defense by attack, on which the fate of our entire country could depend at a given moment. The question of how we can prepare for such a struggle cannot be considered seriously enough. No money should be spared here. Proportionately, these two instruments are not expensive; but whoever is too economical, only creates an advantage for the enemy.

## §11. Cruiser Squadron.

Alongside forts, mines, submarines and airships, we must also point to the necessity of always being able to dispose of a squadron of cruisers. We referred to this, entirely apart from the defense of our Kingdom in the Indies. A very considerable part of our defense of the Indies will have to be confirmed in the Indies itself. More about that in the following chapter, which deals exclusively with the Colonies. For the most part, the defense of the Indies will have to be sought on Java itself, and can therefore never find its strength here at home in a separate Department of the Navy. But even as a State...

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NATIONAL DEFENSE. If we consider what relates to the Defense of the Indies, it appears that the possession of a small squadron of cruisers is also indispensable in Europe. The display of the flag is here in the foreground, and also the defense of our possessions in Central and South America. Neither Curaçao nor Suriname may be left to themselves; and although at this moment there seems to be less to fear from the side of Venezuela, yet history has taught us that we were even for a moment in danger through the initiative of a traitor in Paramaribo. As long as we let our Dutch tricolor wave over Suriname and the islands to the north, our Government must be able to assert itself there, if necessary, by force of arms. This, too, is only possible through a small number of cruisers. One must not make too high demands here either. There is also a limit here which we cannot exceed; but in no case may the precarious position return, in which our authority in those regions is actually threatened, and we in The Hague are powerless to send help. Quite apart from this, the disposal of a small number of cruisers is strictly necessary to remove minor inconveniences. There may be a small dispute on a remote island, or in a small state of South America, or anywhere else. Commonly this then also settles itself, provided at such a moment a couple of cruisers appear that command respect for our flag; while conversely, if one cannot act in any way at such a moment, our good name suffers and our interests are abandoned. A final significance of such a squadron lies in what is now associated with the names of the Emden and the Möwe. These two names indicate that even small cruisers on the high seas can be of serious importance, if they know how to make maritime heroism shine; something that seemed to remind us of our Geuzen period this time. Although one usually only speaks of flag display with this squadron of cruisers, it appears that very serious interests can also be involved here. Only, if one grasps the significance of such a cruiser squadron in this way, it follows from this that it must not be a combination of half-worn-out bottoms. What we have seen steaming in and out under the name of a cruiser squadron in the Indies for tens of years has not had a serious character. Our armored ships

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THE STRENGTH OF OUR ARMY. 547 They were ashamed of their own wooden keels, and even with the later, entirely steel-clad cruisers, the inequality in speed and armament, the much too slow pace, and the defective armament were such a lamentable cause of weakness that hardly any mention could be made of a squadron. What is meant here by a cruiser squadron is a four or five cruisers of about 5,000 tons—no larger is needed—but with a speed of at least 30 knots and armed with the best artillery.

## §12. The Strength of Our Army.

For the army that will be entrusted with our national defense, the immediately pressing question that dominates all considerations is in what proportion the number of this army must stand to the number of the population. An absolute number for the army cannot be specified. When I wrote the explanation of Our Program in 1879, our population still barely numbered four million souls; now in 1914, according to the population registers, it consists of 6,339,705 persons. An increase in the number thus in 37 years of more than one-third. Yet in determining the figures for the army, this gigantic increase was by no means proportionately taken into account. There seemed to be no necessity to let both figures increase equally. Now, however, the war that broke out in 1914 has so inextricably linked the connection between the two figures that for calculating the numerical strength of the army, no other basis can be used than the population figure. Only a small detail needs to be noted in this regard. The improved hygienic conditions have brought about that in the population figure there is now proportionately a greater

number than before of persons over 60 years of age, who no longer come into consideration for military service. For this reason, a certain percentage would have to be deducted in a precise calculation. Likewise, a certain percentage would have to be deducted for the greater number of women, above that of men. And even if one wanted to proceed with the utmost precision, a certain number would additionally have to be left out of account of persons who, thanks to better medical care, now remain alive, where they would have died earlier.

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## §13. One-tenth.

Yet it seems superfluous, with the high figures involved here, to go into all these minor differences, and one is quite safely and certainly justified in adopting the rule of thumb that one-tenth of the population must be incorporated into military service. We are in the Netherlands at this moment presumably not far from 6 1/2 million souls. As I already indicated, the precise figure in 1914 was 340,000 above the six million. In 1912 it was still only 115,000 above the six million. An increase of 225,000 in two years' time. This will likely have continued so in 1915 and 1916 as well. Putting the number of souls at a good 6 1/2 million, we can proceed quite safely. Now, for the above-mentioned reasons, let this half million slip away, and take as the ratio figure only the 6 million, so that for the army one-tenth of this, and thus the figure of 600,000 men, would have to be assumed. Not that we consider this in itself so desirable, but it must be. A country as exposed as the small Netherlands, lying at the most dangerous point between England, France and Germany, has not to ask what we would consider desirable, but has to recognize that the number of its own army must be proportionate to the ratio figure of the armies abroad. Countries with such gigantic populations as Russia and Germany may still allow a small play in this, but where it is a question of a small state like the Netherlands, which is already in such an unfavorable disproportion to its neighbors, it is also without any further argument established that with us the real figure must fully correspond to the ratio figure. If one now asks oneself what the ratio was in the war of 1914 between the figure of the population and the figure of the army that the various warring states actually put into the field, then all reasoning can be omitted, and it stands established by the indisputable figures that one-tenth indicates the actual ratio; Russia alone excepted to some degree. One soldier for every ten inhabitants is what even holds true in the small Balkan states. France with its 39 million inhabitants has over 4 million men under arms. England with its 45 million souls

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ELEVENTH - STILL UNCERTAIN.549 It now also counts on 4 1/2 million soldiers. Russia already stands at 12 million. And in the Balkans, from Romania to Greece, all armies had even climbed to more than one-tenth of the war. Of Germany with its 67 million inhabitants, experts claim that it now already has more than 6 million soldiers in the field. Naturally, it is extremely difficult to collect entirely accurate figures in this list.

## §14. Still uncertain.

The tremendous losses on the battlefield, which run into the millions in dead, wounded, and prisoners, have now been filled in everywhere to be able to dispose of completely new corps again. Also, entirely new formations have been called into being from all sides, which, composed of the reserves, found no place in the normal army organization. But even if it is not possible to give the number of armed men down to the smallest details, up to the last division, yet it is beyond doubt that one in ten of the inhabitants has now actually become the figure for the armed part of a people. We have also not made the slightest illusion to ourselves in our country. With the one-tenth of the population, that is below 600,000 men, we will not get away with the new army formation, just as it will be governed by the recent war, after the restoration of peace. It is not even yet established that it will be able to remain at these 600,000. One only needs to imagine the situation as it actually presents itself to us. One need only look at the army figures in the Old Testament, as I have already remarked earlier, to convince oneself that in the struggle between the old world empires of the East, these figures stood even higher; so high that almost the entire people, from the youngest to the oldest, went to war. The figures given for Israel prove this. Later, these figures have certainly decreased significantly; and when the Christian religion had called a completely different relationship in the Middle Ages, all these massive armies have finally been lost, so that in the end one sought salvation in the system of condottieri. Above all, the transition to mercenary armies has then caused the figures to decrease significantly. So much so that even in the Napoleonic wars the figures were still far below what they are now.

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550 NATIONAL DEFENSE. 15. Since 1870, everything has changed. However, all this has not prevented the alarming figures from rising regularly upwards again since 1870, so that it sometimes even seemed that they were making leaps. The general conscription, which became increasingly common, has of course aggravated this. Almost all previous exemptions have fallen away because of this. The better hygienic conditions have increased the number of those who previously fell out due to illness or physical defect, but now take up the rifle. And so the already formidable figures of the last quarter-century have almost gone up again from year to

year. That is why one now already comes to one-tenth of the population. But do not forget, it has not been much below one-fifth before. One-fifth indicates the number of families, and that, taken on average, with one man from each household grasping the spear or girding the sword, had long been the common state of affairs in many regions. Even now, with one soldier per ten souls, the highest conceivable maximum has by no means been reached. After the restoration of peace, country after country will again ponder how to strengthen the land for the threatening war that is to come. But this is left to be decided later. For the time being, the Netherlands is doing its duty, as it arms itself according to the generally applicable rule, and that rule, as it appears practically from the war just fought, is that we have to set the figure of the Army at one-tenth of the inhabitants. For the female population, the largest half falls away. So it remains one in five men. Of those one in five, again the young under 20 and the old over 40 years fall away, and if one now excludes the physically unfit from what remains, it soon becomes apparent that one will not even be able to maintain the 40 years, and will have to move up to the 45 years. It will be hard. It will disrupt much domestic happiness. And it will require enormous sums.

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PERMANENT VOLUNTEER CORPS - TWO POSSIBILITIES

## §16. Permanent Volunteer Corps.

As early as 1878, Our Program pressed for the urgent need, alongside our military army, for a small corps of mercenary troops that would stand entirely on its own and be composed of 4,000 to 6,000 men, enlisted for a fixed period of four, six, or ten years. The endless tinkering that occurred especially after 1900 with the so-called “permanent contingent” repeatedly confirmed the pressing necessity to have such a self-standing mercenary corps of volunteers. With the later introduced regulation, it was in itself a demand that the newly enlisted men, on an equal footing, complete their training during the most suitable months of the year. But the consequence of this was that there would be three or more months when our barracks would be empty, and only the officers with the cadre, cavalry, artillery, and other groups that had been training longer would remain in service. This, of course, cannot be tolerated. A certain number of infantry must steadily remain under arms, even in the winter months. The choice of this, however, can only be made at will; and so we also got that endless fuss over the permanent contingent, which still continues. If now the training period were reduced from 9 to 6 months, this inconvenience would become even greater. The government can never be entirely without troops. One of two things is therefore inevitable. Either a completely arbitrary selection must be made from among the ordinary troops, or, to avoid this, a small permanent corps of mercenary troops or volunteers must appear alongside the military army, and the government must have complete discretion over this corps. §17. Two Possibilities. Of these two possibilities, only the second one seems acceptable to us. The regulation of the training then remains entirely free, and there is not a moment when the government is left completely unprotected in the country. We estimated the strength of this corps at 6,000 men. For the permanent contingent, 4,000 men were counted, and then there would also be a small 1,000 gendarmes. It could thus stand at around 5,000, but with our population increasing so considerably, it seems advisable to let this figure of 5,000 rise a little. What stood at 5,000 in 1900 should now, without exaggeration, be set at 6,000. This corps could then consist of two regiments, each of three battalions. Predominantly infantry, and only a single squadron of mounted troops. If necessary, a few machine guns could be made available to this small corps. The task of this corps would be: first, guard duty at the palace and magazines; second, providing for the State Police; third, garrisoning the major cities; 4th, immediate intervention wherever violent resistance might occur in the country; and 5th, taking up positions on the borders as soon as signs of war danger appear. In fact, such a corps would have a policing character, but in the broad sense that the state would have at its disposal a powerful, always ready police force that could intervene both outwardly and inwardly as needed. If our advice, as it went out in 1878, had been followed, much of the endless fuss with the “permanents” would have been avoided. As it turned out, this fuss has even cost ministers their lives. §18. General Conscription. A military force of 600,000 men in wartime is not to be introduced in a country like ours, unless General Conscription becomes the starting point of the entire system. However limited the exemptions are introduced, they immediately take on such considerable numbers across the country that there can never be any question of a significant strengthening of the army. Now there is undoubtedly something harsh in this, so that as one lifts these exemptions, the one after the other. The exemption of the only sons especially has the purpose, with a view to wartime, of preventing the extinction of a generation. But this consideration must give way to the higher interest of the nation’s defense. The only sons must therefore also be called up, and the exemptions must be reduced to a minimum.

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UNIVERSAL MILITARY SERVICE - THE DIFFICULTIES ARE NOT INSURMOUNTABLE.

553 to spare the head of the household. And on the other hand, the concern increases for those who would otherwise remain unattended at home. From the harsh mobilization days of 1914/16, one knows what this caused in terms of inconvenience and suffering when people were called away from home and business. There will always be special cases where certain exemptions, however temporary, cannot be withheld.

## §19. The difficulties are not insurmountable.

Yet the outcome in other countries has shown that universal military service can very well be implemented, and that even if war breaks out, life can still take its course. One must make do in many areas. Not only can education continue regularly. Boys must step in for an adult. And women's help must also be accepted, even in public service. But however much disruption and inconvenience this may cause, the outcome has shown in various ways that it works, and in the countries where universal military service is already in force, no one thinks of abolishing it again. Even England has now turned to it. It may be said that this is only temporary until the coming peace, and only for the unmarried; but already in England the prophecy is to be heard that the peace will bring no change in this and that the married will soon follow in the footsteps of the unmarried who are now leading the way. With us too, the struggle for nothing more than a repetition of what we experienced here regarding personal military service. The question then was whether we could do without it, so that we could bring the necessary manpower to the field, and whether in our modern wars it was not much more a matter of the moral strength that the appearance of men from the highest ranks had to give to our entire military action. Personal military service only implied that the higher-ranking could not shift his service to the lower-ranking. And although this brought the danger with it that in case of war a larger part of the higher-ranking men would lose their lives, yet the conviction always gained ground more and more that this sacrifice for the honor and safety of the country had to be made. And whatever one may have struggled against earlier,

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now almost everyone agrees with this system that was so fiercely opposed at first. Just as it has now gone in Germany, in France, and where not, with the universal military service. First fiercely opposed, this system has also already succeeded in winning over public opinion. Gradually, it is becoming more and more accepted everywhere. With us too, the door is already opening wide. But then it is also desirable that the introduction of this only good system should not be delayed too long. As it now stands, a large part of the population is being spoiled too much by a freedom that cannot be maintained. Here too we must move forward. And the sooner the better. That universal military service naturally brings with it state provision for the needy families, goes without saying. Yet this provision only takes on a serious character in times of war or mobilization. For the regular months of exercise, and for the refresher service, there is never any question of astronomical figures in the regulation of these costs.

## §20. Extension of service years.

In more than one State, they are now already so far that they let the military service begin with the 19th year and continue until the 50th year. A service that thus runs over thirty years. Especially on the Balkans, this came into use. Here too, as we have already noted above, there is little else than a constant return to ancient customs. As for Israel and Judah, we find in the Old Testament figures repeatedly given that show that without any limit, all who could still wield a sword or spear went out to the field. In the earlier maturity of the East, this sometimes began as early as the 16th year, and then, very unequally, continued sometimes beyond the

60th year. It was no different, and it is still the case with the nomads and with the Negro peoples. Then there is no other rule than that everyone marches who can or still can. How a government should proceed in this, depends not only on itself, nor only on the people over whom it rules. All that concerns the state of war is primarily governed by the actions of those who can soon become your enemy. Is it sufficient

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EXTENSION OF SERVICE YEARS - WARTIME. If in the countries from which an invasion could be expected, there is a service obligation of twelve years, then this example is followed. But if this figure rises in the surrounding countries, from twelve to twenty, and from twenty to thirty, then there is no longer any question of you being able to persist with your much lower figures. Even a Great Power has had to adapt itself to its potential enemy. And especially for small States, which have always lagged far behind in their military figures, this puts their future in very serious danger, if they fall even a little behind their neighbors. It can already be said that our current system, which is based on a service of only 20 years, can no longer be maintained. With us, one now begins with his 20th year, and there is a complete break with his 40th year, both from the Army and from the Landwehr and the Landsturm. This system is now no longer tenable, and we must inexorably shift from 40 to 45 years. As for physical condition, this generally raises no objections. A healthy, moral man of 45 is still a man in the prime of his life with us, and there is at least no single reason to keep the men of 41, 42, 43 and 44 at home. If we adhere to the law of nature, then it can be said that he who marries as a young man of 25 years - and earlier was only an exception - can first send a son of twenty years into the field to replace him on his 45th year. There is therefore nothing in extending the service to the 45th year that would seriously object. Of course, there will be more dropouts at that age due to accidents or illness, and there will also be a loss through mortality, but apart from that, in setting the final term at 45 years, there is nothing that does violence to the ordinary course of life.

## §21. Wartime.

There is all the less need to relax any higher demands, since the pressure of serious matters really only comes in wartime, whether the mobilization is only intended to maintain neutrality or whether war has already broken out. On closer inspection, however, the state of actual war can well be thought away. But if war does indeed break out, which drags our own country along, and threatens a danger that our fatherland would lose its independence, then all desire to take up arms spontaneously, and a man of still sufficient vital force wishes nothing more than to be able to act himself for his country and people. But then this distinction arises, that without general conscription and without a service figure up to the age of 45, whole groups of untrained men would have to take the field, who otherwise, as old veterans of former service, would be fully ready for war. When a real war breaks out in which we ourselves become involved, our solid men of 40–45 years would only regret that they now have to go out too, but they would completely miss what could have kept them back. Without repetition exercises, a man of more advanced years stands helpless in the ranks. And that is why it is so much better for him to remain enrolled, as long as there is talk of him going along. He who has once left the army stands outside any connection, no longer knows his superiors, and belongs nowhere. This gives an unstable feeling and deprives of guidance and progress. And just for that reason, remaining enrolled as long as the years continue in which he actually wants to go along himself, gives a much better position than the later loose rejoining. Such a voluntary service, however proud and epic it may be, always gives a less significant position. We do not need to go beyond the age of 45 for the time being, but up to this year the line of service can be drawn without difficulty.

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## §22. Exercise Years.

One is increasingly moving away from the long duration of the exercise years. It was the old wisdom of warfare, which had always insisted on this, in order to make the man into nothing but a link in the whole. Of free initiative, of independent action, of moving according to one's own insight, of letting oneself be governed by the situation that the battle demanded at a given moment, there was in olden times no question. The more the man became a machine, the better one could also govern the whole mechanism. There had to be complete subordination, complete obedience, complete adaptation to the prescribed forms. The more the man became a mere cog in the wheel, the more he could be relied upon. But this view is now being abandoned more and more. The man is not a machine, but a free being, who must be able to act independently, who must be able to take the initiative, who must be able to adapt himself to the situation, and who must be able to govern himself. The more the man is trained in this direction, the more he will be able to perform in the field. And therefore the exercise years are being shortened more and more.

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YEARS OF TRAINING. They marched in columns like granite, where no crack or fissure was to be seen. The more one became a mere instrument in the hand of one's sergeant or lieutenant, the more excellently one could help achieve the goal. Even organization was still too free a word for the army of that time. One would be an instrument, but then also an instrument that, without any will of its own, was set in motion merely by the hand of the man from the ranks. The more rigidly one stood in the field, the more powerful the military impression one made. Such a taut, stiff drill could not be completed in just a few months. Years were required for it. That is why even the Great Powers had armies that went through a training period of three years. But now a radical change has come in this regard. The great

evolution that has broken through in weaponry, in ammunition of all kinds, and in the entire technical domain, has made the rigid columns a most serious danger rather than a real force. Compared to the almost raging power of destruction that has emerged especially in the last twenty years, rigidity and stiffness are a harbinger of death, and only in freedom of movement can salvation be found. “What once seemed the strength of the army has now become its very ruin. The man has crept out of the rigid military instrument, and it is now the free man in whom the preservation of the army is sought. This has brought about a radical change in the entire training, and it is this change itself that has made prolonged training purposeless and branded it as an abuse. We have now also already descended to nine months. The three months were a mockery, which fortunately fell away in time. But voices are multiplying more and more, who would let the nine still slip by a third, and think that a regular training of six months could give us very well what we need. For one who, like the writer of this, has never served, it is of course always very difficult to form one’s own judgment on such a matter of nine or six months. We therefore confine ourselves to pointing out the general phenomenon that a reduction in training time is coming to the fore in all countries. With a view to the current war that is still raging, it can meanwhile be added that many newly formed troops, who went into the field after an even shorter training period than six months, held their own creditably in the fighting. This was especially the case with the English troops. What mostly failed with these troops was only the cadre and a sufficiently trained corps of officers. But this is a completely different question, which we will discuss in more detail later.

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558 NATIONAL DEFENSE. If, on the other hand, we reckon only with the troops and with the manpower in the mass, then it cannot be said that the outcome in the war itself has very strongly condemned the short training. We would therefore be more inclined than before to give ear to those who insist on these six months. Naturally under the proviso that from these six months then also only the most necessary is taken for what are purely forms, and that one is not limited to company and battalion exercises, but lets the troops appear as soon as possible also in larger combinations.

## §23. Cadre.

If the rigid, most formal drill is to recede into the background, and in its place the appearance in free initiative is to become the rule, then it follows from this that the Cadre gets a much more serious role to play than was assigned to it before. If one first sets out to weld a squad into a bundle of men, as it were, then the necessary cursing, scolding, and raging is soon the way to achieve the effect that the militiaman trembles and lets himself be done with what the corporal wants. The same goes then with the somewhat larger bundle of soldiers, in the power of the sergeant. And it is no different in the end with the lieutenant. One then has to deal with stones that are stacked up, or with books that are placed on the shelves. But if this method of rigidity and stubbornness, which degraded the man to an instrument, is to be broken, in order to awaken his own insights and expressions of will, then it is the sergeants and corporals who must prevent the crumbling and the squandering of strength. But this cannot be achieved if an attractive position is not secured for the sergeants. It is therefore necessary that their engagements have a fixed character; that they receive a salary by which it becomes possible for them to devote themselves entirely to their task, without being distracted by the need to provide for their own livelihood. The same applies to the officers. Here too, a fixed position and a decent salary are required, so that the officer can fully devote himself to his task, without being distracted by the need to provide for his own livelihood.

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FRAMEWORK - OFFICERS AND REFRESHER EXERCISES. 559 Residing in or outside the barracks allows for a domestic life; and no less so that the chance of wearing epaulets remains open. If there is objection to too many lieutenants coming from the framework, then create a new officer rank. But the main thing is that the corporal must be able to become an officer. A second thing that this provision requires is that the framework must not be lacking in number, as it is now. There must be a framework not only to provide for the necessary during the exercise period, but there must also be a well-trained framework that can deliver the necessary in the event of mobilization of the entire army. A Landwehr and even a Landsturm with a mere semblance of a framework lacks all real defensive power.

## §24. The Officers and Refresher Exercises.

In so far, one is already on the better path, in that the higher military school effectively splits the officer corps into two classes. Only those who completed the higher military school come into consideration for promotion above the rank of captain. Now this military school can still undergo an increase in study and an extension of the study period, for in the higher ranks above that of captain, the responsibility becomes increasingly serious as the nature of warfare progresses, but even here it cannot remain. Actual command of the ranks below the captaincy must precede any advancement to higher ranks. This will only become possible once the refresher exercises on a large scale make the firm deployment of entire divisions against each other feasible. For one must always reckon with actual war, and therefore one must not be deterred by what is so often seen, that the actual commanders remain unprepared for their task, so that one must replace them on the spot by others. This is how it went in Italy not long ago, and one saw the bitter consequences of it. The German method prevented this, and it is undoubtedly to a large extent due to this that the success of the German army is to be attributed. In an army with short initial training periods, therefore, full emphasis must be placed on the refresher exercises, and this not only for the troops, the framework, but equally for the officers. In a service of 25 years’ duration, with a...

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NATIONAL DEFENSE. The first training period of no more than six months cannot be thought of as an appearance in wartime, unless those 25 years are maintained through regular repetition exercises. A choice must be made here. If one wants to be economical with the repetition exercises, then the first exercise must, as it were, instill the military usages, so that they maintain themselves as usages for years, but then even a full year of first exercise is not enough. But if one does not want to go that way, and even goes back to 6 months, then the repetition exercise must contain what was in it, and give it durability. This is a requirement for the troops, but equally for the cadre, and only in this way can the officer corps also obtain the exercise with larger army units, which it so urgently needs with a view to the danger of war. In peacetime, there must be a wrestling between two corps against each other on a large scale, and of course without prior agreement. Nor may it be determined too far in advance which corps will participate here. As close as possible to the actual war, everything must come. At least eight times the ordinary personnel must appear in repetition, and in these exercises a force of such considerable size from both sides must appear in front, that in fact masses wrestle with equal masses, and so, if possible, even army corps against army corps. Officer training for the higher ranks cannot be achieved with the higher military school alone. To have the men ready who must be there when the war breaks out, it is necessary that the repetition exercises provide the elite corps that make a wrestling with large troop masses a reality. At the same time, it is necessary here that the premature withdrawal of officers into civilian life be cut off. Especially now, ever greater enterprises are being called into being in the technical field, and the profits of these enterprises are so high that technical specialist salaries are being paid, which become tempting. This easily tempts one to leave the army later and seek a better living elsewhere. And this danger increases as the difference between the salaries and pensions in the army and in civilian technical life takes on ever greater proportions. Already much has been done to advance the financial position of our officers. Yet one is not there yet. And the longing that many officers have to leave the army and seek a better living elsewhere, is a danger that must be reckoned with.

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Is a concentrated defense still advisable? Certainly not for our country. Our land is but a narrow strip from Delfzijl to Maastricht, and from Den Helder to Terneuzen. Whoever invades us from the east along two concentric lines can, in a day and a half, cut off the entire north and south from the center, and even make the mobilization of troops from these two parts of the country virtually impossible. Not only would there then be no question of concentrating a significant army, but the enemy would also cut off the resources from the greater part of our country and impose an embargo on all possessions. While we gratefully acknowledge that the mobilization of August 1914, thanks to the measures taken by Minister Colijn, succeeded wonderfully, it is clear that this would not have gone so well in an actual state of war for our own country, even if a retreat over the Zuiderzee might have been possible for the northern part. We must not forget that the independent cavalry of the German army numbers more than thirty thousand men, and that the ability to shoot through the railways has already reached a very considerable speed. For this reason, it does not seem doubtful to us that the system of abandoning the rest of the country to the enemy and concentrating our defensive power exclusively on the central part, so that it would ultimately come down to little more than the South Holland Water Line, Amsterdam, and Den Helder, would soon prove to be on par with the help of the enemy.

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Undoubtedly, the blocking of the German army by flooding the land around Ypres has sufficiently shown that our marshy soil is to our advantage, and even the deployment of the heaviest artillery is almost cut off; but if the north and south fall completely into the hands of the enemy, all means of assistance are taken from us and heavy burdens are imposed on us, and all this before the mobilization can be completed, then our concentrated position on the line Den Helder-Amsterdam-Woerden would soon become highly questionable. This increasingly questionable plan of concentration had previously commended itself because we had to rely on such a small army.

## §26. Concentration is decreasing.

If, therefore, the system is now replaced by having Landwehr and Landsturm together form an army of 600,000 men, then what necessitated such strong concentration naturally falls away. One need not remain limited to a division into three. Three army corps could also be formed, and the defense of each of the three major parts of our country could be entrusted to its own army corps. If it then appeared that the enemy's superiority was too strong, so that the army corps of the south and north had to retreat, then this retreat could naturally concentrate on the Water Line and Amsterdam, but this would only occur in the second stage of the struggle, and there would really be talk of the concentration of all available personal and material forces. If, after a thorough military reform, we can dispose of 40 infantry regiments, each of 3,000 men, with their own depots and reserves, then 10 of these can be assigned to each army corps, after deducting the ten that will remain necessary for the fortifications at Den Helder and in Zeeland. If each of these three army corps then has its own artillery, cavalry, and engineering divisions, the first onslaught of the enemy on the three fronts in the north, south, and center, each by its own complete army corps, must be awaited. The outright abandonment of the entire country, except for a central portion, is, after what the recent wars have shown, condemned as a system. Before two weeks were up, the central fortress...

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DECONCENTRATION DIMINISHES - THE BORDER GUARD.

563 After all, our entire country would be lost. This was seen during the invasion of Belgium. Liège and Antwerp were well fortified. The Maas forts were of the newest model. And yet it took less than a month for all military power in Belgium to be broken. And even if the water will now help us, this does not change the fact that the water can only flood part of our land, and that even the submersion of this considerable part threatens us with damage that cannot be repaired in decades. With an army as strong as we now have, which amounts to a total of 370,000 with 210,000 trained reserves on an army of 160,000, the dispersion into three would still be rather daring. But if the Supreme Commander has once and for all 600,000 men under his command, then the dispersion into three, in order to concentrate afterwards if necessary, is at least daring.

## §27. The Border Guard.

For a long time it has been recognized that not a single point of our borders should lack a constantly present force. Our side has also constantly urged the creation of such a border guard. In fact, we now have such a guard. One must not be taken by surprise unawares. Even if such a border guard can never be very strong, and even if the enemy who wants to overwhelm it can easily push it back in 24 hours, it still gives us the time we so urgently need for mobilization. Of course, such a border guard must always be on site, even in full peace, and, on a single telegraphic message from The Hague, not only stand in line, but also be able to fire. The formation of such a border guard therefore imposes a very serious duty and not insignificant responsibility on the population of every village through which the border path runs. That village does not choose the Commander. That village is designated by nature, because it is there, at that particular point, right on the border. Just as the old civic guard had to go out on its own in our cities when the fire alarm went off, so too must the population of such a border village be thoroughly organized, under fixed control, have access to all weapons and instruments, and, if trouble arises, occupy the dangerous border point at the very moment.

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This does not mean that such a guard must be stationed from kilometer to kilometer along our entire border. It is clear that an enemy corps that wants to overwhelm us cannot break through at all points. It is therefore especially those border points where a railway line or a main road crosses the border that must be the focus of attention. A railway line can pose the utmost danger, and the border guard must immediately have all the means and instruments available to break the line if necessary. But above all, where, as on our eastern border, a corps of 10,000 cavalry can easily be let loose against us by the enemy without much effort, the main road must also be closely watched. Now it is by far the best if a help fort or a loose battery is ready at the dangerous border points. We have this between Arnhem and Emmerich over the great bridge on the IJssel. But even if it is not on such a large scale, we must still have something of this kind at all dangerous points. There must be time for the mobilization to proceed undisturbed, and that is why we must not be overwhelmed or surprised at a single point. Now we do have to some extent what is demanded here, but the arrangement is not firm enough and the available means are not sufficient. The officer who is to bear this responsibility must not live elsewhere, but must live in the border village. It must be firmly established who replaces him in case of illness or absence. That officer must be a professional, not an old retired man who has lost his grip. Everything that would be necessary for the defense, in terms of armaments, artillery or ammunition, must always be found on site. And once a year, not only an inspection must be held to see if everything is ready, but also a surprise test, and if necessary at midnight, to see if the matter is running and everything is ready. Provide ONLY the English translation. Do not include any introductory remarks or meta-comments.

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FORTIFIED POSITIONS. 565 And so all faith in the usefulness of fortifications is once again brought to naught. Just compare what took place in Belgium with the stand at the fortified line from Belfort to Verdun or from Strasbourg to Cologne, and the widely divergent judgments will be readily understood. The two great fortified lines, one on the French and one on the German side, which were brought into readiness against each other, proved so immovably strong that serious attempts at a breakthrough were scarcely even considered. An occasional airship or airplane might have frightened the garrison for a moment by dropping explosive bombs and causing some damage, but the fortresses themselves held firm along the entire line. In Belgium, in Serbia, in Montenegro, in Poland, and wherever else one looked, one saw fortress after fortress forced to surrender after not too long a siege. But on the great fortified line that runs through or along Alsace-Lorraine from Cologne to Basel, one did not even see attacks attempted. From this, it can be deduced that the art of fortification is now indeed capable of constructing virtually impregnable fortresses, not merely building them, but equipping them. However, the value and significance of these fortresses depends entirely on whether they are brought to the highest state of perfection in their construction, occupation, and armament. If the latter is the case, then the fortress appears to be an almost impregnable bulwark. If, on the other hand, the construction, the garrison, the armament, etc. are inadequate, then a fortress proves to be

no longer defensible after a short time, and there is no longer any question of a prolonged siege. Our Army Administration must therefore ask itself in what condition our fortresses are at this moment, whether they resemble Liège or Verdun, and if the former, what we then need to do to make them impregnable. The second question we face is whether too much has been demolished, so that we must rebuild what was thoughtlessly left to itself. This already became apparent on the Scheldt. Flushing was no longer a fortress, and our forts on the Scheldt had been neglected. Now the indefensibility of this course of action has already been seen, and the resistance that came from Belgium in 1909 and later years against our efforts to reintroduce effective armaments there shows sufficiently how, by not acting, we jeopardized our own future. This resistance in Belgium, after all, came mainly from the Indépendance Belge, whose pro-French sympathies were well known. The attempt even went so far as to try to provoke England's anger against us.

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566 NATIONAL DEFENSE. Fortunately, it did not go that far, and the then Minister Colijn did not hesitate for a moment to resume the old defense of Zeeland by constructing the fort on Walcheren and, to that extent, the closure of Antwerp.

## §29. Entirely New Conditions.

In connection with the new evolution of the system of attack and defense, it seems absolutely necessary that we not only maintain the defense of Amsterdam and the Helder, the guarding of the Holland water line, and the defense of Zeeland, including Zeeuws-Vlaanderen, but also make them a first-class defense through the construction of forts, the regulation of underwater flooding, the provision of a sufficient garrison, equal armament, and no less by providing for the need for water, food, and ammunition. Something like this has already been shown in the recent war, at the very outset, that half-hearted defense is no defense at all and only offers the attacker a chance of success. Even now, the fortress of Amsterdam is not yet fully completed. Moreover, what was once a means of defense is in many respects so outdated that it scarcely counts anymore; and our artillery, on which success depends, is not up to date. If one wants to maintain fortresses and forts as an integral part of our national defense, and even increase their significance, then one must, in the event of war, be able to rely on them. And this is absolutely impossible if the army does not know for good reasons that the chance of a siege is worth taking, and worth taking with a view to a lasting defense. §30. Impeded Imports. That is why, however, care must be taken even in peacetime that, before the siege begins, everything will be present in the fortress or fort that can withstand a prolonged siege. For forts with small garrisons, this means that the necessary supplies of food, water, and ammunition must be stored in advance, so that the garrison can hold out for a long time without outside help. For larger fortresses, this means that the entire population within the fortress walls must be provided for, and that the necessary supplies must be stored in advance. This is not only a military but also an economic and financial task, which must be carefully prepared in peacetime.

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OBSTRUCTED IMPORTS - OUR ARTILLERY

This does not present a difficulty for the larger forts, but already for the larger fortresses, and especially in the fortresses that, like Amsterdam, harbor a large population, a lack of food can necessitate a premature surrender. With this in mind, the question has long been suppressed as to whether it was appropriate to include a city with a population of over half a million within such a line of fortresses. This presents no difficulty as long as one knows, whether from the right or the left, how to keep imports free; but should the besieged find themselves in the position of having to rely on what was present within the fortress boundary at the start of the siege, then one can say with a high degree of certainty that hunger will soon force the surrender of the fortress. Supplies from the other parts of the country would certainly not be expected in such a case, as our entire country, upon the closing of the borders, will soon have exhausted its available supplies; and however carefully one tries to stockpile provisions within the fortress, for over half a million souls this is ultimately an impossible task. If one is certain that in the event of an attack from the east one can always count on imports by sea, and vice versa in the event of an attack from the sea on sufficient supplies from Germany, then there is no need for concern. If anything is to be learned from the recent war, it is this: that it is impossible to accurately predict events, and that whoever is not fully prepared for all eventualities will forfeit their future. The question of our food supply in the event of war is becoming an increasingly vital issue for the Netherlands, and it will be due to our own negligence if, in a war that may await us, hunger renders all fortress possessions useless and frustrates the most intense armament.

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## §31. Our Artillery

Already in the Franco-Prussian War of 1870, it had become clear how much the significance of artillery more than ever before determines the outcome of the struggle. This gave me reason to also press for artillery reinforcement in Our Program, and when in 1901 the Queen received me in connection with the Cabinet formation, to make it one of the first conditions for my taking on this task that our outdated rifled artillery be immediately replaced by rapid-fire artillery. This has indeed come about under the good care of my colleague for War, General Bergansius, and since then we have had at least a small 200 pieces of new modern field artillery. The neglect to which previous Cabinets had exposed our army in this respect was indeed irresponsible. But since then, this has also remained the case. Despite the fact that the numerical strength of the army has visibly progressed, and we now stand at 24 infantry regiments, our army has remained just as poorly provided with artillery. If the recent war has made it abundantly clear that the artillery battle now dominates the outcome of all struggles, then it is established that doubling our rifled field artillery is the very least we can do. If one now proceeds to the formation of three army corps, then three hundred rapid-fire cannons is the most economical number we can get by with. As we now stand with not even 200 pieces, in an unfortunate field battle, without exaggeration, a hundred pieces could be lost, and the entire remaining army, if it could not dispose of more than a few batteries, would be hopelessly lost. This above all presses the need. But even this is by no means all. Our artillery for the fortified places is also so woefully behind that already on this account the withstanding of a serious siege would be out of the question. As was immediately evident at Liège on the Meuse line, and shortly thereafter confirmed at Antwerp, the artillery deployment that now takes place in a siege renders our assigned fortress artillery nothing but a mockery.

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OUR ARTILLERY - NEW PRODUCTION

It must therefore come to a radical clearing out, and if that is to be good, then in the defense of our fortified places, as far as the artillery is concerned, we must not lag behind what the Belfort-Verdun or Strasbourg-Cologne line has to show. To disguise this is of no avail. A siege is no skittle game.

## §32. New Production.

An even more serious question arises here. If a war drags on, as it did between Port Arthur and Moekden, and now presents itself even more strongly between Belfort-Strasbourg-Verdun-Cologne, then our country must also be reckoned with a war duration of more than a few years. This naturally leads to the fact that a fairly large percentage of the artillery will gradually be used up and must be replaced by other means. Since we had our artillery of the better sort come to us from Krupp's factories, the question naturally arises here, from where we will obtain our artillery as soon as the state of war suspends the supply from Krupp. In the past, one would have thought that in such a case it would soon be requisitioned from elsewhere, but the war of 1914 shows in a convincing way that a world war, as now prevails, can cut off any prospect of obtaining artillery from elsewhere. Does this not demand that the artillery production within our borders must be made possible, and in such a way that its product in no way lags behind that of Krupp? Or, if one does not see a chance for this, what else remains for us than to place such a gigantic order for artillery in peacetime that we have three times the absolutely necessary stock on hand, in order to be able to constantly replenish and renew our batteries? Even with this we are not done. It was sufficiently evident in 1915/16 that artillery alone is of no avail, unless you have at your disposal for your artillery such an immeasurable supply of ammunition that the shot can thunder day and night without ever running out of ammunition. England was not prepared for this either. Hence the sudden conversion of a large part of the industry, both in the Union of America and in England and Ireland itself, in order to bring a not-to-be-made mass of ammunition into readiness, with which one could be fired restlessly.

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Now the question arises, to what extent we are set up for this, and the connoisseur will answer that in 1910 even the most meager provision of ammunition was lacking, and that, although Colijn also brought about an improvement in this, yet our stock of ammunition is still so insignificant that it would have been exhausted in one week, if one had fired as they did. This gap in ammunition also demands such an inexorable provision.

## §33. Ammunition.

The question of ammunition is all the more pressing because we cannot remain outside the aircraft weapon either, and this weapon also gives rise to a restless firing of bomb after bomb, so that new production cannot be delayed for a single day. One knows now what caused the heroes of Montenegro such a setback. They had simply run out of ammunition too soon, and so their artillery was silenced. One should therefore not deceive oneself. As long as it is only a matter of mobilization, we can now already make a decent military show. But if, God forbid, our country also went to war, so that we had to withstand an invasion and attack like Belgium is now undergoing, then the war would also find us completely unprepared, and yet even then not a single measure remained to put us in safety

against the hardest blows. That state of defenselessness may and cannot continue. Thrift and economy are precious virtues, but the outcome has now already taught us what a treasure of squandered millions it comes down to, when war presses us hard. To save now, in order to lose everything in the hour of danger, is the financial art of the fool, who constantly increases your debt and threatens you with state bankruptcy. Had Belgium not, for whatever reason, tripled its military expenditures in earlier years, would what is now happening have been averted?

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AMMUNITION - CAVALRY - ALLIANCE

## §34. The Cavalry.

In an earlier period, we had dragoons and hussars, but now only hussars, divided into four regiments, and each regiment consists of four squadrons and a machine-gun section. There is also an ordnance squadron, a couple of depots, and a riding school. Together, this makes around 150 officers and a little under 4,000 troopers. Compared to the 16,000 isolated cavalry with which Germany could overwhelm us on our eastern border, this is of no significance. One would then have to do one of two things: either expand our cavalry, as Belgium did, which had nearly 6,000 troopers (309 officers and 5,671 troopers), or, if that proved futile, refrain from all cavalry combat. It might even be possible, if the establishment of a permanent corps of mercenary troops seemed desirable to us, to get 1,000 mounted men, in addition to the 946 gendarmes, to reduce the independent cavalry to 3,000. These would mainly serve for ordnance duty, for connecting different troop parts, and for warding off minor attacks, not on their own, but in support of an infantry corps. In any case, there can be no talk of expanding our cavalry. The small corps of mounted artillery joins this cavalry and falls under the same point of view. We cannot completely do without mounted troops either, but our country does not lend itself to large-scale cavalry battles, and therefore what is mounted must remain in a subordinate position in our army. §35. Alliance. The question of whether entering into allied relations would be advisable for us has already been answered. Now, since the Army is the order of the day, only a brief word about the military significance of an alliance. The magic word “Alliance” has thus found much more favor with us than elsewhere. Of an alliance of neutrals to maintain their own sovereignty against the arbitrariness of belligerent Powers, one has also thought after 1914, but the idea found no entry, and no military alliance has thus been realized. For us, an alliance with Belgium would have been the closest, if it could have led to keeping both countries out of the war; but as mentioned above, in Brussels the idea of such a nature found almost no entry, and since it was not the Netherlands that was first exposed to the invasion, there was no reason for us to press further. Whether a league of all the small States of Europe could be conceived, apart from the state of war, remains highly doubtful. In our Second Chamber, too, the idea of such a league of small States has been raised, but it remained with a mere mention of the question, without the Cabinet going deeper into it. They lie too far apart from each other. The interests of the various small States diverge too widely. And none of us would dare to venture on these highly detrimental consequences that a league with an expansionist State could drag in its wake. There has also been talk of an alliance with Germany, or at least of a feudal relationship with our eastern neighbors, but the factors that would have coupled here were too unequal, and the smaller of the two would all too easily have paid the piper. More and more, we have also come to the conviction that, next to God, we can rely on no one but ourselves, and therefore our entire military organization must be adapted to the character of our own country. Insofar as there might still be talk of cooperation or at least of rendering or receiving support in an international sense, this was not to be sought with War or Navy, but exclusively with Foreign Affairs. The Peace Conferences have now once and for all given us a completely unique position of an international nature. This is also to be utilized for the security of our country. That is why we have constantly insisted that the “let-it-be” policy among our diplomats should be broken once and for all. It may also be increasingly recognized that Foreign Affairs occupies a more dominant position. In the middle of the previous century, this position had fallen below zero, but now we are regaining it. A series of excellent Ministers have already shone at the head of this Department; and not the least when the world war broke out, this may be praised. As far as the present chapter is concerned, the following remains.

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COLONIES.573 The only question is whether the connection between Foreign Affairs and War has already become what it should be. The military forces of a country must also count the Department of Foreign Affairs, and conversely, War must not preoccupy itself one-sidedly with the military possibilities, but also take due account of the limits that Foreign Affairs sets for its actions. Chapter XXI. THE OVERSEAS POSSESSIONS OF THE REALM.

## §1. Colonies.

The name “Colony” is derived from the Latin word colonus, which in itself means nothing more than farmer. The cultivation of the land is called colere terram, and the man who does this bears the name of colonus. To this was then added the secondary concept that a colonist was someone who left his country and went to another State where uncultivated land lay, and who now wanted to reclaim such a region. However, this was not the work of one man alone, but of a group of people who left their country of birth together to begin a new existence on a small scale in the newly to be reclaimed region. This did not exclude the possibility

that others who were not farmers also went out with such a company, and at the same time brought a beginning of culture that took on more of an urban character; but the basic concept was and remained that it was a matter of cultivating a land that had not yet been developed. It is therefore not entirely by chance that the word “culture” and the word “colony” are of the same origin and both derive from the Latin colonus.

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574 THE OVERSEAS POSSESSIONS OF THE REALM. The Phoenicians of Tyre and Sidon were the first to grasp the concept of colony in a richer and more comprehensive sense. The higher culture of Central Asia had penetrated into their home cities, and since they were connected through their shipping with the entire Mediterranean Sea up to the Strait of Gibraltar, they gave the Greeks a push in a higher direction, and enriched their influence themselves by founding some settlements on the north coast of Africa. One need only mention the name of Carthage to clearly see what influence this colonization has exerted on world history from the outset. The Greeks themselves soon took over the colonization idea of the Tyrians. One knows the role they played in Sicily. The Greek colonies soon surpassed the mother cities in importance, and the peculiar thing about this was that the Greeks nevertheless understood how to feel one with their colonies. Altogether, this was then called Greater Greece, and both the unity of language and the loyalty to the ancestral customs, in connection with the universal significance of the oracles of Delphi, etc., as well as the Olympic Games above all, gave historical proof that a people can live together in mutual connection, even if there is no overarching Authority that dominates all its parts. It is also remarkable that the power of Rome never really strengthened itself through colonization in the proper sense. Rome became powerful not through settlements with an independent social life, but through military force. Of course, cives, i.e. Roman citizens, spread out in the provinces, but they did not settle as colonists who went out to colonize. In the later period this was the case, for example, in present-day Romania and on the north coast of Africa; but whoever examines how, if not in the land of the Batavians, then at least in the Rhine region, even Roman cities of significance arose, immediately feels that all this doing of the Romans was something quite different from what the Greeks had achieved in Greater Greece. The Roman colonization aimed at the establishment of military colonies where the veterans of the army were accommodated. For the right understanding of the idea of colonization, one must therefore always go back to the Phoenicians and the Greeks.

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SPAIN AS A COLONIZING POWER. The colonization also almost entirely sleeps and finds only a certain echo in the missions of the religious orders and partly in the Crusades. The true colonization, on the other hand, first revived with the beginning of the new History with the discovery of America.

## §2. Spain as a Colonizing Power.

The anti-Spanish sentiment that is our own may never tempt us to underestimate Spain’s colonial significance. Its striving was directed primarily towards America, but in South, Central and North America it also established a giant empire in the 15th and 16th centuries, the effects of which are still felt throughout all of America. When it had reached its highest bloom in the 18th century, it encompassed all of South America; occupied the entire Central America, and had even penetrated into the Southern States of the Union, and as far northwest as California. Except in Brazil, Portugal sought to settle more on the East Indian islands. Our Seven Provinces had shortly thereafter taken away Portugal’s profits. And then the English too had set out to acquire colonial possessions. In the first onset, however, it was Spain that took the lead, and Spain succeeded not only in establishing trading colonies, but in making a large part of America Spanish. Spanish through the immigrants who landed everywhere. Spanish through the language it knew how to introduce everywhere. And Spanish too through the Spanish way of life, Spanish institutions and Spanish religion, which it knew how to establish as the rule in all the conquered lands. Nor can it be said that the Spanish colonization was based on the mercantile system. This mercantile system lay much more in the path of Portugal, of our country and of England. We too have later established colonies in Suriname, on Curaçao and in New Amsterdam and New Netherland, as well as at the Cape. But what remained an exception with us, was the rule with Spain from the outset. Spain has established entire colonies, and on a large scale, which were as it were repetitions of Spain itself. It did not know how to understand the Indians. This also brought it to its downfall, and the outcome was that after the great revolutionary period of the late 18th and early 19th centuries, a whole series of new, independent States emerged, which still reflect the image of what Spain was at the time in their very being.

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576 OVERSEAS POSSESSIONS OF THE REALM. With Cuba and the Philippines, the last of these possessions were lost to Spain in 1898, partly certainly as a bitter fruit of defective colonial administration, but certainly no less because the way in which Spain from the outset established its colonies had to lead, in the course of time, for these States to break the bond with the Mother Country, and, emerging from under its guardianship, to pass over into independent existence. Especially the fact that Spain never failed to exalt the Cross wherever it acted and penetrated, has given the States that now emerged from under Spain’s guardianship a higher character than England imprinted on India, France on Algeria or we on Java.

## §3. The Mercantile System.

That Spain, as one may say in view of the final outcome, managed to take a higher flight than Portugal or our country, was due to circumstances independent of its own will. Spain turned more to regions where the land was given, the climate did not weigh too heavily on the Europeans and where it had a ready supply of immigrants. The exodus of Spanish immigrants in the 16th and 17th centuries has been unparalleled, and the greater part of the regions they occupied enjoyed a healthy atmosphere. This was not the case in Central America, but one must not forget that the Spaniards were already accustomed to a higher temperature in their own motherland. Our population was too small to send out immigrants in large numbers, and even the Cape was much too sparsely populated, while the larger contingent of immigrants who at the time went to what is now New York was soon overshadowed by the English element. Emigration and climate are two of the mightiest factors in colonization, and these two Spain had on its side, while we had them against us in the East Indies.

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THE MERCANTILE SYSTEM. 577 The archipelago was too hot for large-scale emigration, and our people remained numerically too small to send out large groups of emigrants. This difference between what Spain undertook and what we accomplished must therefore always be noted. Now, when one turns to the system itself, it appears sufficiently that both Spain and the Netherlands were at the time caught up in the mercantile system, and that this mercantile system has left a very strong, and even one-sided, imprint on our colonial affairs in the 17th century. This system, in its narrower sense and in its more developed form, first came to power under Colbert and Cromwell; but it had long been in the works, and in particular the tendency to seek a reward in the enrichment with precious metals and choice gemstones, has governed Spain's South American colonization to no small extent, also by bringing a powerful industry into being. With us it was different, and only insofar can one also speak of a mercantile system in our colonies, as trade completely dominated our entire system. The very fact speaks here that we proceeded in the method of taking the authority in the colonies away from our Government and handing it over to a Company, in casu the East India Company, entirely in the way in which England still does this through its Chartered, and as Sir James Brooke undertook it in Borneo, who received the country from the Sultan of Brunei and bequeathed it at his death to Queen Victoria. Even now one sees it, north of the Cape, in Rhodesia, continuing to thrive. Trade, and this is what it came down to, could only in this way gain free rein, and if necessary allow itself many liberties towards the population on their terrain and in their products, to which the Government would never have dared, and about which no rooster now crows. The destruction, for example, of a part of the spices in the Moluccas, in order to keep the price of the product high in Europe, would never have taken place on the part of the Government. Such a Company, such a Corporation, on the other hand, was freer. Its was not about blessing the population, but about placing its products in exchange for products of the country. Such a striving now makes egoistic purpose almost exclusively for financial gain. Not, we understand well, as if our East India Company did not also have the mission at heart, and was concerned with the Christianization of the native population, but this came much more from the Classes, especially from the Classis of Amsterdam and Middelburg, than from the Company itself. The Company itself aimed at the bottom of the matter nothing else than shipping and trade; something to which in the 18th century the attempt was indeed added to exert political influence, and the will to completely subject the Principalities, but the financial gain always remained the goal here. The main question for the Company was always how its papers stood on the stock exchange in Amsterdam. And when in the 18th century those papers fell in price, and the debt burden of the Company increased hand over hand, our Company succumbed at the first blow that the Revolution dealt against it, in 1798.

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578 'S RIJKS BEZIT OVERZEE. Under State Administration. When in 1798 our Archipelago had come under State Administration, the then Government completely lacked the power to maintain its authority in our Archipelago. The English have then made use of this to also seize our colonies in their struggle against France, and, as it was said, to preserve them for us. This also applied to the Cape and Ceylon, which we did not see back until 1814. The English had not changed much in what they did, but still, more for good than for evil; and when after Napoleon's defeat the Archipelago passed back to us, King William I had the good fortune to be able to send a series of excellent Governor-Generals there, who restored order, brought our authority back into honor, and after a short time introduced the Culture System, which, though not sustainable in the long run, undoubtedly in its first onset not only financially rescued the Netherlands from distress, and called into being an effective meddling with the Indies among our merchants, but certainly, which was not initially suspected, also socially benefited the native population. Much stronger than before, the population then also increased; though the wages remained low, the assured wage still gave prosperity, and at least in the first thirty years of its operation.

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SUBORDINATE GOVERNMENT.579The Culture System could not be regarded as a curse that oppressed Java, but rather it very decidedly advanced that rich island to some degree. Whoever compares the condition in which Java found itself when the East India Company was sinking, with what flourished on Java in the middle of the previous century, cannot speak of a curse. Nor should it be at all surprising that the Conservative party of that time clung tenaciously to the Culture System, and that even from the Anti-Revolutionary side it was still seen as sacred for far too long. Keuchenius was the first genius colonial statesman on our side who made us break with it. Frans van de Putte took a similar spiritual stance against Thorbecke. And this writer too, from the moment he appeared on the parliamentary

scene, has opposed this Culture System. There was no struggle with the past here. Given the wretched condition in which the East India Company ultimately handed over the Archipelago, a radical remedy had to be seized at the time to break with the past and at the same time save the Netherlands itself from the financial bankruptcy by which it was constantly threatened. For this purpose, no better system could be accepted at that moment than what the Culture System had brought about a complete turnaround in the state of affairs. Only, this rescue remedy had to work only temporarily and could only offer temporary help. Meanwhile, higher goals had come into view. The conviction was increasingly penetrating that the fate of so many millions who lived in our Archipelago should not be governed solely by financial considerations. A better future had to be unlocked for those millions, and this could not be the case if the coercive system continued to stand in the way of all freer development. There was a past of three centuries behind us in which our country had almost exclusively exploited the Archipelago for its own benefit. This could and should not continue. If the colonial government over these islands remained entrusted to us, it had to be recognized and understood that in this availability there also came a higher, international vocation for us, and that henceforth not domination for our own benefit, but guardianship for their elevation to a higher level, was placed in our hands. It was fortunate that this consideration almost simultaneously emanated from both Frans v.d. Putte and the Anti-Revolutionary party, and it is to this coincidence that

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580 'SCOLONIAL POSSESSIONS OVERSEAS. It may be said that, from 1874 onwards, our party has cooperated with the liberal party, though on a much broader basis, yet on a fundamentally distinct principle.

## §5. Our Guardianship.

The term "guardianship" is a fortunate choice to express the moral vocation that has come to the people of the Netherlands from God, with a view to the East Indies. Three things are expressed in this concept of guardianship. In the first place, that the native population on these islands has not yet grown and matured socially enough to immediately step forward as an independent people. In the second place, that it must nevertheless be so guided and educated that it can soon assume that fully independent position. And in the third place, that the guardian entrusted with this task is not to be sought, but has been appointed by the past. The East Indies is still a ward, guardianship is indispensable, that guardianship demands education, and no other land than the Netherlands is designated to bring that education to the native population of our Archipelago. And yet, however excellently this word "guardianship" may express our vocation, one must still be on guard against a very serious misunderstanding. Guardianship in ordinary life is a task that is legally imposed on someone, but only for a very limited number of years. The moment one accepts that guardianship the moment the ward has reached the age of ten, there can never be more talk of a guardianship of another ten years. Here, on the other hand, there is no such time limit. There is no authority that has entrusted this guardianship to the Netherlands and determined the duration of the time. Only the historical outcome will be able to determine the boundary here, just as this happened for Spain, when almost all its possessions in America became independent republics. If we succeed, in the course of time, in creating the possibility of such independent national existence in our East Indian Colonies as well, then a similar phenomenon may soon present itself in our possessions, so that even in our Archipelago a secession from us would occur, which is now our wealth. Even the danger is not so far off that another Power would intervene and take the rule over our possessions, before they were declared of age by the guardian, in order to exploit them themselves. The metaphor of guardianship is therefore only usable insofar as it expresses what must be our purpose and our aim in our administration. That aim will then be to educate the inhabitants of our islands to a higher level and to cultivate in them the possibility of later political independence. But we must not go any further in the application of this metaphor. That a guardian may not appropriate any profit from his guardianship does not imply for us that the drawing of profit from our colonies would be excluded. There must be something that binds and compels us to maintain the rule and administration in these colonies. Even with ordinary guardianships, one often tries to get rid of them, because the guardianship often causes so much burden and trouble, without great attractiveness being evident. Also with regard to our colonies, the guardianship must therefore not be conceived in an abstract idealistic sense. This high ideal usually falls short even in personal life, and has never been applicable to entire peoples. No country and no people ever gets it into their heads to lay claim to any region whatsoever, merely to enjoy the ideal pleasure of elevating such a region to a higher culture. It is therefore not the case that one would deliberately aim at a guardianship, and now seize our colonies to make such an ideal guardianship possible. On the contrary, it must be confessed that we now possess the rule over our colonies, and that, in order to be responsible before God for the exercise of that rule, the safest and noblest is to conceive of it as a guardianship, and to choose the higher education of the peoples entrusted to us as the goal. That our trade then profits, our production prospers, and the international influence of our country increases, is by no means at odds with a properly conceived guardianship, but is rather its direct consequence. Only care must be taken and watched that the government exploitation that lay in the Cultivation System does not revive in the exploitation of our East Indies by the private individual.

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OUR GUARDIANSHIP. 581

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582 COLONIAL POSSESSIONS OVERSEAS.

## §6. Economic System.

Atomistic or Organic? Apart from these views on the task of guardianship, the second question now arises of itself, by what economic system we can best fulfill this guardianship for the benefit of the colonies and our own country. In this respect, the revolution in economic life that arose in the 19th century is connected to the school of Adam Smith. From Smith and Cobden, the new school emerged, which undeniably eliminated the last traces of the mercantile-physiocratic system and gave access to the system of free labor, free trade, and free competition. Adam Smith, above all, drew the desire too much away from the treasures of nature, in order to seek the true value that governs life in labor, and in the personal development of man's powers. Egoism had to be the starting point. Everyone sought the best for themselves. No place could be made for altruism. It was the desire to benefit oneself that demanded the most absolute free competition. The government, therefore, had to withdraw as much as possible from economic life, in order to leave this peculiar life entirely to its own development. Capital was therefore not to be pushed aside at all. Rather, it was the attractiveness of the power of capital that stimulated both selfishness and competition. Every price of any product or commodity whatsoever, therefore, resolved itself spontaneously into ground rent, wages, and capital interest; and since these three factors could work in their natural equilibrium, Smith believed he could predict the highest prosperity for land and people, especially for the lower classes. A gain, to which was added that from his standpoint the national factor spontaneously thrived in the international sphere, so that the rivalry between peoples and peoples lost its sharpness, and a cosmopolitanism could be expected that would soon restore the conditions of paradise. As could not be otherwise, this international-economic idea has now also been introduced into our new colonial policy, especially from the Liberal side. Frans van der Putter professed it wholeheartedly, and in more than one respect this system also found a far from harmless application in our colonial administration.

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EXPLOITATION BY PRIVATE PARTIES. 583 Protection of domestic production, shipping, and trade was no longer considered honorable. Many foreign traders began to nest in our colonies. And it was precisely through this that all kinds of foreign influences began to become powerful. Even from Tokyo on the one hand, and from Australia on the other. One may therefore rejoice that the ideas of Smith and Cobden have already judged themselves in Europe. The outcome struck so bitterly, and the misery soon came to light, that precisely through this one-sided system harm was done to the workers and the lower classes. Above all, it refuted the ideal call that the system of Smith had known how to appropriate for itself, and especially in the great war that broke out in August 1914, the absolute unsustainability of the individualistic-economic system came to light so convincingly that one now aims from all sides at completely changed economic relations. Already from the days of Frans van der Putter, resistance from the Anti-Revolutionary side against the absolutely free competition system had gone out. The Socialist ideal had completely perished. Pure individualism could only lead astray. Organic was once and for all the life of human children among each other, and in their connection with the nations, interwoven. And although the fact cannot be denied that this organic coherence was greatly disturbed by egoism and materialism, it had to be held on to all the time, and hence also in the colonial field the organic protest against the all-loosening atomism had to go out.

## §7. Exploitation by Private Parties.

This naturally included a new emerging divergence of opinions. Against the system of exploitation by the government, one stood unanimously as one man. But this by no means excluded the danger that the private entrepreneur would take the place of the state, and now begin a worrying exploitation on his own. The state also remained to cultivate and plant, but in completely free competition with the private entrepreneur, and to this latter stood all the chance free, to, making use of the poverty that the state had created, begin a dangerous exploitation on his own account.

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The fruit of overpopulation was that labor forces, agricultural and forestry lands, and the treasures beneath the soil had to compete with the State. It is well known what treasures of millions and again millions have been amassed through the tobacco cultivation in Deli, through mining exploitations, and through factories in our East Indies, by private individuals and then carried off to the Netherlands or even to other countries. This could not continue indefinitely on a completely free footing. However rich the treasures that could be gathered from the soil and from beneath the soil, everything could not simply be emptied out, as had already happened with the tin in the East Indies, leaving behind a plundered land and an impoverished and powerless population. Hence, the path had to be taken to embrace State exploitation, albeit as a private enterprise, on a broad scale, and to set such limits and levy such rights in the private exploitation of the individual enterprises, that the use of the land would not degenerate into abuse, and the previous condition might ultimately prove to have left open the possibility for later, even higher prosperity. All the more reason, then, to post a sentry here, since the impoverishing private exploitation can be driven not only by Dutchmen, but also, as the situation now stands, foreign capital can penetrate among us, to the detriment of our colonies, and thereby also to the detriment of our own country, more than doubling itself. Fortunately, in the most recent period, we have also found the better way in this important respect. The exploitation of the treasures to be won from our colonies is increasing in many ways. Government and private enterprise are competing with each other here, and the use and exploitation is being

brought under such firmer rules that the State's treasury is prospering, waste of resources is being increasingly cut off, and there will be no more talk of any abuse of the population in the ever richer mining and cultivation. Only in one respect does a not insignificant danger still threaten. The Chinese labor force is of a higher caliber than that of the ordinary natives, at least for the time being. This easily tempts the private entrepreneur to summon a more dexterous instrument from China than is available to him here on Java or Sumatra in the native population. Here, however, strict measures must be taken

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THE KINGDOM. 585 looked upon. Not as if every foreign worker were to be excluded. That does not happen in the Netherlands either. But it must be closely watched that, in order to make an enterprise more profitable, we do not later increase the national danger from the side of China.

## §8. The Kingdom.

The first article of our Constitution underwent a considerable modification in the revision of 1887, in so far as now also mention was made of "the colonies and possessions in other parts of the world." Even in 1848 this had not yet occurred. Article one then only contained that "the Kingdom of the Netherlands consists of the present provinces." It was only added: "in Europe." This already then left room for the idea that the Kingdom also consisted of territory outside of Europe, only it was not yet expressly stated. This addition came only in 1887, and with this peculiarity, that now in Article 2 it was declared: "The Constitution is binding only for the Kingdom in Europe," while in section 2 it was determined: "Wherever in the following articles the Kingdom is mentioned, only the Kingdom in Europe is meant." Against this manner of expression there is no overriding objection, provided that the distinction between the Mother Country and its colonies and possessions is clearly kept in view. Also in personal life one can say that a person does not appear only in his person, but as a person also possesses the garment he wears and the household goods that serve him, and if he has possessions, also of that property or of securities and monies. One sees this with the highest placed. This does not take away, however, that between the person and his possessions or property there always remains a principial distinction. He can lose all his goods, yet he as a person remains, and conversely he can die, yet all his goods remain available. And so it is here as well. When one speaks of the Kingdom of the Netherlands as an international appearance, then naturally everything is included that this Kingdom possesses. In the colonies as well as on the palace in the Residence the Dutch tricolor flag waves, as an indication of the authority. Yet always in such a way, however, that something quite different and distinct is meant, if one has our country and people themselves in view, as the subject that possesses, or the colonies in the Far East that are an object of possession for our Kingdom. Imagine that all colonies were taken from us, yet the Kingdom would still remain; but imagine, on the other hand, that our country in Europe disappeared, then our possession in the Indies would not be "The Kingdom of the Netherlands." Here in Europe the supreme authority is exercised by the grace of God by our Queen, in the colonies, on the other hand, the authority of the Kingdom of the Netherlands applies, and the authority of the Governor-General counts only as granted by the Government of the country. The country in Europe is and remains the actual Kingdom. This Kingdom has possessions in the colonies and conquered territories. The administration of these possessions is entrusted to the Government of the country, in connection with the States-General, and the authority of our Sovereign counts here only in the sense that she is the God-ordained and constitutional Head of the national government. The defect in our Constitution is therefore not included in Article 2. When one speaks of the Kingdom, one also counts our possessions. But it is a mistake that in Art. 1 mention is made of a Kingdom that includes the possessions. In this lurks a confusion of concepts that is not permissible. Properly speaking, the entire expression of Kingdom should have been avoided. Elsewhere one also speaks of the State, and one should have used this word also in Art. 2, so that all difficulty would have fallen away. No part of the Kingdom can be placed outside the Constitution, and therefore the provision in section 2 of Art. 2 already indicates in itself that the Kingdom as such is only the Kingdom in Europe. A Constitution is no Constitution, or it must go over country and people. To say, as is now done: There is a population of 45 million, the Constitution applies only to 6 1/2 of these 45, but not to the remaining 39 million, is a legislative absurdity. Not the Queen, but the Kingdom has colonies, and what one has, that one is not.

## §9. The Administration.

The administration in our colonies is entirely separate from the administration over our own country and people. The Department of

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586 THE KINGDOM'S OVERSEAS POSSESSIONS.Colonies and the Department of the Interior are two entirely distinct departments, each with its own minister. The Governor-General in the Dutch East Indies is the representative of the Kingdom, not of the Queen. The Queen's authority in the colonies is only in the sense that she is the constitutional Head of the national government, which has entrusted the administration of the colonies to the Governor-General. The Kingdom has its own colonial policy, which is not identical to the domestic policy for the Netherlands. The colonial policy is determined by the Government in connection with the States-General, and the Queen's authority in this is only in the sense that she is the God-ordained and constitutional Head of the national government. The Kingdom has its own colonial budget, which is not identical to the national budget. The colonial budget is determined by the Government in connection with the States-General, and the Queen's authority in this is only in the sense that she is the constitutional Head of the national government. The Kingdom has its own

colonial legislation, which is not identical to the national legislation. The colonial legislation is determined by the Government in connection with the States-General, and the Queen's authority in this is only in the sense that she is the constitutional Head of the national government. The Kingdom has its own colonial administration, which is not identical to the national administration. The colonial administration is entrusted to the Governor-General, and the Queen's authority in this is only in the sense that she is the constitutional Head of the national government. The Kingdom has its own colonial jurisdiction, which is not identical to the national jurisdiction. The colonial jurisdiction is exercised by the colonial courts, and the Queen's authority in this is only in the sense that she is the constitutional Head of the national government. In short, the Kingdom has a colonial domain that is entirely distinct from the national domain, and the Queen's authority in the colonies is only in the sense that she is the constitutional Head of the national government, which has entrusted the administration of the colonies to the Governor-General.

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ADMINISTRATION.587 The Department of Public Works in The Hague has no say over public works in Java. The same is true of the Department of the Interior, of Agriculture, of Justice, and so on. In contrast, there is a completely separate Department in The Hague for the colonies and possessions—and whenever this Department must consult with the Department of Foreign Affairs or the Department of the Navy on matters pertaining to the colonies, it remains a distinct Department that bears responsibility for our entire administration in the colonies, across all domains. Alongside this colonial administration in The Hague, there is also a distinct administration established in Buitenzorg, Paramaribo, and Curaçao; and in our Archipelago, this administration is concentrated in the Governor-General, who represents the national government in every respect. This Governor-General, in order to exercise this administration, has a departmentalized bureaucracy under him that serves to advise and execute the various branches of this service. However, this naturally raises the question of whether this administration ought to be so concentrated, or whether it would be better to introduce a significant decentralization here. Thus, strong centralization and concentration in Buitenzorg has been the guiding motive. The Governor-General, with his Council of the Indies and his departmental chiefs, governs the entire Archipelago. This dates back to the days of the Cultivation System, when it could not have been otherwise. In contrast, the entirely different purpose that now animates our administration of the Indies requires us to consider whether the bureaucracy that is the necessary outgrowth of all this concentrated administration does not stand in the way of exercising a guardianship that is truly beneficial for the population. The growing population also pushes us in this direction. The masses are becoming too large. And this is true not only on Java, but elsewhere as well. Thanks to the actions of General van Heutz, and under him of Colijn, the Outer Possessions have begun to make themselves heard and to demand that they too be taken into account. Under the Cultivation System, and the multifaceted bureaucracy that emerged from it, the Outer Possessions were, it must be said, effectively neglected. In a period when The Hague did nothing but ask what the revenue from the Indies would be in the coming year

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588 The Overseas Possessions would have flowed into our Dutch treasury, had the Overseas Possessions not been a superfluous burden. People had no heart for them. They did not care for them. They had no affection for them. But it was just as self-evident that the abandonment of the Culture System and the consideration of our Archipelago as an extremely important possession, both for our international influence and for our trade and shipping, as well as for the exercise of a higher guardianship over 30, soon 40 million souls, had to bring about a complete change in our ideas about governance. Especially under the governorship of Van Heutz, this awareness penetrated ever deeper. The evil that was seen ever more clearly in that so strictly centralized bureaucratic school. And so, almost of itself and gradually, even from Buitenzorg, a completely different view of our Archipelago outside of Java has emerged, and the idea is gaining more and more ground to divide our Archipelago into a certain number of provinces, each with a permeating independence. Yet the name of Province has not been included in this line of thought, and reference has been made to the appointment of several governors over their own "governments," but this only makes a difference in name. The Romans divided their foreign territory in the same way into parts, but then also gave those parts the name of province. We could have done the same, and it would have been clearer to our ordinary public what was meant by this division. For the time being, we still have only one Governor with his own Government on Sumatra. If it is good, then one will soon have to proceed to not leave even Java undivided. According to the population, Java is divided into three major ethnological provinces. In the West live the Sundanese, in the East the Madurese, and in the middle of Java the original Javanese of pure blood. These three ethnic groups do not belong together, and should stand apart. Over each of the three parts, a separate Governor, under the Governor-General, could then be appointed, and a separate development of these three well-distinguishable parts of Java could be promoted. The other islands outside of Java would also gradually, like Sumatra, have to form their own Government under their own Governor.

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589 FOREIGN GUESTS. The most natural for this would be, next to Sumatra, due to its colossal dimensions, Borneo, except for Sarawak on the north-west coast, where Sir James Brooke managed to obtain his chartered princely domain. In the third place, Celebes with the smaller islands belonging to Celebes would require its own Government. And finally, the Moluccas with the Lesser Sunda Islands and Timor should in the fourth place acquire their own position. So we would obtain seven provinces or autonomous Governments, and the all-suffocating and deadening breath of the monopolistic bureaucracy would no longer emanate from Buitenzorg. There would only remain New Guinea to dispose of, a massive island that in its dimensions is even the largest island in our world and has an area of

805,541 sq. km., but is so sparsely populated that it is usually estimated at not even a million. This gigantic island belongs to us for more than half, while the other half is divided between England and Germany. In fact, however, we have nothing of it, while with a view to Australia, it could very well pose a danger to us in the future. There would therefore be no objection whatsoever to letting this piece of New Guinea go and, if possible, exchanging it for the Portuguese half of Timor. Our entire Archipelago would then form a well-ordered whole, and the hindrance that the half-and-half situation on Timor still constantly causes in the south would have disappeared.

## §10. Foreign Guests.

In our Archipelago, along with the natives, live Chinese who have come from elsewhere, and on a much smaller scale also Arabs. The Japanese are mainly represented by an unfavorably known female personnel. Furthermore, more and more English and German merchants have settled, especially on Java; but among the foreigners in a narrower sense, it is still the foreign Orientals, and among them again the Chinese, who stand in the foreground. The influx of these Chinese to our Archipelago was already long ago explained by the double circumstance that China, due to its overpopulation, has a constant need for emigration, and on the other hand that the Javanese remained too one-sidedly an agricultural people and therefore did not in itself provide for the need for labor.

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The technical needs of social life could be provided for. Just as the English, the Chinese also penetrated everywhere. They have few needs. They are quick and skillful in small-scale enterprise. And above all, they are excellent financiers. Just as now among us the Jews, especially in Amsterdam, but also gradually further in our country, managed to take up a peculiar position through small-scale trade and the money business, so it also went in our Archipelago with the emigrants from China. The danger they began to pose was only due to their much greater number and their understanding of the art of exerting a certain social dominance. Although one need not be concerned about the Arabs, the Chinese question has become a serious social problem. We cannot ban or expel them; but anyone who remembers with what pretension Li Hung Chang once appeared in Buitenzorg, and reckons with the steadily increasing influx of Chinese, cannot conceal that it must be with open arms to receive every Chinese out of necessity, and that our Government must set limits and bounds to the arrogance with which, especially in recent times, a flood from Further India has moved towards us. Henceforth, a sharper distinction must be made between the descendants of the Chinese who have long lived among us, and the newcomers. Order must be established on their admission. The school system must be organized separately for them. Those who come to work temporarily must also disappear again after the end of their period. In short, we must remain master and lord on our own inheritance even over the Chinese. They may profit from our lower middle classes through their small-scale trade, but the regulation of admission and legal status must remain with us, not with them. There can no longer be any talk of encouraging their immigration. Their immigration must rather be tempered. Just as in America they first did everything to attract immigrants, but now they are hitting the brakes, so too our line of conduct towards the Chinese in the Indies must be.

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THE INDO'S. 591

## §11. The Indo's.

The Indo's in our Archipelago are what the Mulattos are in America. They are sprung from mostly sinful sexual mixing of incoming Europeans with native women. This evil did not just arise now, but has tainted our colonial life from the outset. It went quite differently at the Cape. What is called the Boers was a Dutch tribe that never intermarried with the negroes. The English did this, at least in part, but the Boers from the Netherlands did not. In Java, on the other hand, the sinful habit crept in from the outset, that one went there unmarried and immediately began living with what was then called his "housekeeper," who soon brought children into the world, conceived in immorality. This sinful custom crept in among officials and merchants, among soldiers and officers. In short, all who came from elsewhere and did not separate themselves as believers, participated in this sinful procreation of a mixed race, and hence there are two distinct groups among these Indo's to be distinguished. On the one hand, there are Indo's who had a father of high intelligence and ability, and on the other hand there are Indo's begotten by lower-standing, clumsy natures. The former get ahead, the latter continue to struggle, and yet it is precisely from these latter that a certain reaction emanates, which tries to gain acceptance for the idea that they are the natural lords and masters in our Archipelago. They see in themselves a kind of nobility, native in origin, but elevated by Culture and enriched with a spiritual treasure that came to them in the blood from Europe. For a time it indeed seemed as if a formidable force would emanate from them. But soon it became clear how, just as elsewhere with such mixed races, so here too no life-giving initiative could come from them. One will do well to teach them how to provide for their own social needs, but should they ever attempt to assert a completely empty pretension, energetic suppression of the evil will be required in the interest of the mother country and of Java.

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592 COLONIAL POSSESSIONS OVERSEAS.

## §12. Industry.

If there is ever to be any talk of a higher social development in the more populous parts of the Outer Possessions, at least in the larger cities, Java cannot remain at the agricultural level. Everywhere—in Asia as in Europe, in America as in Australia—agriculture was the starting point, but agriculture alone cannot suffice. If a people is to awaken and unfold the dormant powers within it, and thereby naturally attain a higher standpoint, it is absolutely necessary that the agricultural part of the population separates itself off into an industrial and commercial part. That industrial part will always remain much smaller, but on the other hand the emergence of a somewhat significant industry always has the consequence that there arises a need for industrial workers; that these workers receive higher wages than the farm hands; and that in this way a historical process occurs such as was the case with us. If this does not succeed, and such a transition from rural life to industrial life is lacking, then one of two things happens: either the population remains forever on a lower level and does not progress, or else foreigners from outside penetrate and take the industrial activities under their control. The people then remains on the lowest level of development, and strangers come to socially dominate it. Now it is not to be seen why the population of our Archipelago, especially on Java, should be doomed to such an unhappy lot. History testifies that from India, under Buddhist leadership, a not insignificant unfolding of higher powers once took place on Java. One still sees it, at least in the centers, not only in the Javanese man but even in the Javanese woman, how a higher civilization once penetrated. They are extremely polite and accommodating, more refined than coarse in their forms, and one knows what power has emanated from Java up to the 14th century. Whether Islam is also partly to blame that all higher civilization has since sunk, let that be as it may; but the historical fact is that the Javanese have once experienced a period in which they had raised themselves above the peasant class. Whoever compares our Dutch petty bourgeois who went to Java in the administration with the Javanese, cannot but confess to his shame that the Javanese surpasses our lower officials in cultivated forms. Even in the missionary era the same complaint was heard. There is therefore no conceivable reason that could prevent the population of Java from becoming ripe for a higher social standpoint again. Already now there are three distinct social strata on Java, with the two more aristocratic groups appearing alongside the lower ones, which our government also honors as higher classes. But it must not remain at that; the industrial development of Java must be prepared by the Government with great caution, with a gradually rising policy, and through constant assistance. An industrial bourgeoisie, if we may so express ourselves, must arise, which gradually takes a higher standpoint and in this way prepares, and ultimately promotes, a higher social development, not of foreign intruders, but of the descendants and relatives of those once so highly standing Javanese. To elicit this, and not to rest until it is achieved, will be one of the noblest obligations that our guardianship imposes on us.

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593 INDUSTRY. - EDUCATION.

## §13. Education.

One of the most self-evident means to this end is the establishment, both in Java and in the Outer Possessions, of a school system suitable for and adapted to the needs of the Indies. Lamentably, what a gigantic misunderstanding the revolutionary monomania of our liberal rulers has allowed to creep in here. Deeply rooted in the core of the French Revolution is the deceptive slogan of “liberty, equality and fraternity.” The curse of the then newly emerging life was uniformity. All people over the whole earth were to be one and the same. According to one method, one system, along one and the same line, all that was human, over the whole world, was to be formed and educated. One constitutional system was to serve for all government. And so also one educational system for all schools. Our School Act of 1857 also drove this for the Netherlands, and once the disappointing fruit of this State...

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Sadly, the wretched law that was foisted upon us, that the perfect method of school education had now been discovered, made it obvious that the Liberal agitators would now also try to drive through the very same method for the East Indies on the colonial front. And as nonsensical as it may now seem to us in hindsight, it is historically certain that for half a century the salvation of the East Indies has been seen from the Liberal side as lying in a precise and strict imitation in the East Indies of our liberal lower state school. Fortunately, people are now beginning to see the foolishness of all such efforts even outside our own circle, and it can now be safely said that the development of the native population in Java has been hindered not so much by anything, as just by what has been set in motion from the Liberal side to promote that development. In particular, the social democrat Mr. Van Kol has lashed out at this senseless drive of our liberal spokesmen; and above all, Minister De Waal Malefijt has practically shown us the better way. A Javanese, and in general an Easterner, must go through a completely different kind of lower school than can be of service here at home. If anywhere, then in Java the strong penetration of the intellectual element is completely misplaced. The Easterner develops not prosaically, but poetically. Not at all merely in his brain, but always much more through his imagination. In Java, all education must appeal to the imagination, and already in the schoolchild, put the power of imagination into practice. Not for a moment may education in the East Indies be separated from life. All abstraction is dead to the Eastern spirit. Neutral education is a contradictio in terminis in every land of the East. It is as if one were to speak of dry

waters and the cold of the sun's glow. Then it must also be grasped, the higher the better. The entire native school system must be directed towards a reformation that adapts it to the nature and character of the Eastern soul-existence and to Eastern practical life. And nothing is more inexplicable than the sad fact that there are still teachers from Christian homes who have offered to lend themselves to this Indian mimicry of the School Act of 1857. Shortly, when we come to the mission, we will return to the school question. The East Indies must come to a higher development, even a university education must grow up there; only, whether it is a question of lower, middle or higher education, all

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THE CIVIL SERVANTS. The copy of what blossoms among us must be most strictly excluded from the Indies. Whoever wants to help the Indies must immerse themselves in the Indic blood as if baptized, in order to learn to feel, realize, and see for themselves what corresponds to their spiritual life. Hence, the idea must increasingly come to the fore that the teachers themselves may soon be of Indic origin and may be formed in the Indies. In particular, we must not make a mistake with the promotion of Higher Education in the Indies. We now already have, as a preparatory step for this purpose, the medical school that trains Javanese doctors, a law school, an agricultural school, and instruction in Language, Land, and Ethnology at Section B of the Gymnasium Willem III. These schools too must acquire an even less European and much more strongly Indic character. Only then can faculties gradually emerge from these preliminary schools. And so, in the end, a university institution will emerge that, being Indic in nature, can respond to the needs of the Indies.

## §14. The Civil Servants.

"For the administration of our colonies, the strength must be sought not in the multitude, but in the instruction, the quality, and the proper placement of our civil service personnel. As for the instruction, it must be firmly established that no official invested with authority shall have anything to do with any industrial enterprise or government cultivation; nor shall there be any of the ever-fatal blending that merges the ruler and the judge into one person; but there shall be solely administrative acts, to maintain our high authority and to uphold our moral prestige. No less do we emphasize the quality of our civil service personnel, which, much more than here at home, sets the highest demands. Nothing is more questionable than the delusion that the Indies can get by with less than we do. On the contrary, since in the Indies the control of public opinion is so much less, the task so much more comprehensive, and the temptation to abuse so much more ready, each man who represents us there must possess a probity of character and moral earnestness such as the ordinary class of people neither here nor anywhere else offers. It is also on policy and maturity of judgment, rather than on knowledge, that it comes down in such an exceptional situation; and a government that, to win these precious ingredients and, once won, to preserve them, does no more than our Department of Colonies has done, will certainly not acquit itself of its duty. And then the placement!

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596 THE KINGDOM'S OVERSEAS POSSESSIONS. It would be an illusion to imagine that the Netherlands can continually provide this good personnel in sufficient quantity to occupy the entire administrative framework of the Indies. Against the system of repeatedly bringing a branch of administration under European personnel, we therefore place the principle of taking the "Spitze der Behörde," as our neighbors call it, exclusively from the Mother Country, and of allowing the service to be managed under them by well-educated and strictly disciplined sons of the indigenous aristocracy. But then this line of our administration must also extend down to the ordinary dessah-head, that is, these village chiefs may no longer remain what they have so far been: a sheep-dog used by us to keep the herd tame; but they must become persons who, under supervision, exercise a well-defined authority and are paid on a fixed footing for their services." Thus we expressed ourselves in 1878 on the civil service personnel. In the opinion then expressed, we feel obliged to persist. Only a brief word has been added, that more than hitherto will have to be done to increase the number of Christian confessors. The late Rev. Rudolph even called a special institution to life for the promotion of this. It is by no means intended hereby that less competent and less ready candidates should nevertheless be placed because they are orthodox. The government may never lower the standards to be set, but two things must apply. First, someone must no longer be placed behind because he is orthodox, and secondly, the government may no longer tolerate in its civil service circle a conception of personal and moral life that falls short of the honor of the Christian name. In particular, in the missionary residencies, it will be desirable to entrust men who are warm for the mission with higher authority.

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MUNICIPAL COUNCILS

## §15. Municipal Councils.

The establishment of Municipal Councils deserves applause, provided that one also holds these in the Eastern manner, and does not also make the fundamental mistake in this establishment of wanting to transfer our Dutch Municipal Councils to Java. Even if this were possible, one could never imitate what is useful to us in the initial period. One would have to go back to our Municipal Councils of the 15th and 16th centuries, or even further back. We also did not start with what we

now have, but rather gradually climbed up to this. So too in the Indies it will have to go, otherwise the institution will not take root in the peculiar soil of Indian life. It already follows from this that for the time being, only in the larger cities can there be talk of a real flourishing of the Municipal Council system. In places of lower order, there is not yet any question of this. And on the countryside, even the end of this century will not yet see its appearance. That in these Municipal Councils, as they now establish themselves in the larger cities, a blending of the two elements, the European and the Indian, must occur, goes without saying. With the population figure, no equal step can be kept. Even with inferiority in number, the European part of the population in places like Surabaya and Surakarta still commands the authoritative majority. So far, the establishment of these Municipal Councils has not disappointed. They bring more order to local administration. They promote hygienic interests in a very open manner. They bring institutions into being that are of undeniable significance. The paving and even the architecture improves. And financially, they proved to be equal to their task. Although one may not expect more from these Municipal Councils than they can give on such a weak footing, yet the influence that emanates from them can be quite desirable. They give, if only this, a new blow to the age-old overly centralized Bureaucracy.

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## §16. The Suzerainty.

The word "Suzerainty" has not been introduced into our Indian governmental parlance, but the thing itself we also possess. Suzerainty is distinguished from Sovereignty in this, that the Suzerain Authority holds the Sovereign in its power, yet allows a certain degree of autonomy under its rule. Especially in our circles, one knows the Princes of Yogyakarta and Solo. They still wear their Sultan's diadem. They still maintain an Eastern court ceremonial. And they even dispose of a military honor guard that also serves as a police force. Especially also on the Outer Possessions, our custom has been followed to subject the existing Principalities to our supreme authority, but to do this in a contractual manner. In such a contract, the heads of such groups then acknowledged the supremacy of our authority, but on the other hand our Government also granted a certain degree of autonomy to these Principalities. As always in such engagements in Eastern lands, this autonomy soon proved to be little more than nominal, and it can hardly be denied that more than one Resident has thought to improve his reputation in Bogor by succeeding in further obscuring this autonomy. But even on this limited footing, such autonomy has nevertheless contributed to preventing the wings of the central Bureaucracy from unfolding too broadly. This was of less importance as long as in Bogor, upon closer inspection, there was nothing but very reprehensible indifference towards many of these Outer Possessions; a fate that especially on the small islands struck the population and even on Celebes worked through in the non-Christian regions of this island so rich in potential. In this shortcoming, however, a thorough change came about of itself, when gradually quite different, higher-ranking ideas took the lead in the Central Administration. The idea of guardianship naturally brought with it that one began to pay attention precisely to those regions that had been so neglected from of old. Especially General Van Heutz has the honor of having moved powerfully in this direction. Illegible traditions of yore have now emerged from their parchment.

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Sphere Sovereignty - THE CHURCHES. Although the number of the baptized in our archipelago may still be relatively small when compared to the total population, nevertheless, the founding of all kinds of churches has already taken place to a not insignificant extent. First, there is the official Protestant church of the Government, with its governmental superintendents and its governmental financial support. Then there are the various missionary churches, established by the different missionary societies, each with their own character and their own organization. And alongside these, there are also the independent native churches, which have emerged from the bosom of the people themselves, without any foreign influence or support. All these churches, each in their own way, have a certain sovereignty within their own sphere. The government superintendents may exercise a certain supervision, but they do not have the power to dictate the internal affairs of the churches. The missionary churches are dependent on their home societies, but within their own circle they have a certain autonomy. And the independent native churches are completely sovereign within their own domain. This diversity of churches, each with their own character and organization, is a healthy phenomenon. It is the natural result of the principle of Sphere Sovereignty. The government should not try to force a single, uniform church organization upon the entire population. Rather, it should respect the autonomy of the various churches and allow them to develop freely within their own spheres. Only in this way can the religious life of the people truly flourish. Forced uniformity stifles the organic growth of the churches and leads to a lifeless formalism. But where there is freedom and diversity, the churches can blossom and bear fruit according to their own unique character and calling.

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The administration of the overseas territories, their governmental salaries. There is also, on a not too large scale, a certain number of Roman Catholic parishes. The Reformed churches from the Netherlands also succeeded in establishing a few churches in common in our Archipelago. More than one mission flourishes in an ecclesiastical community of its own order; for example, the Rhenish Mission among the Bataks and others called a peculiar kind of semi-inland church into being. Mennonites settled on a small scale. The "Salvation Army" established institutions there. And in Batavia, a Lutheran church has even been incorporated into the official church. If we now add the many mission fields that have been established by the Mission up to New Guinea, then we get a scattered whole of all kinds of

formations, so that there can be no question of a well-ordered state. Now all other churches are free and autonomous, and as a rule receive no financial support from the Government; something which we sincerely hope will remain so. For only what can thrive in freedom and live from its own, appreciating resources, blooms on the ecclesiastical terrain. What is still lacking for these free churches is that they are not recognized by the Government in their ecclesiastical character, and are still too often registered as a kind of associations or societies of moral order. The great difficulty, on the other hand, which the ecclesiastical life in India still poses too much for the Government, lies in the Protestant State Church. For this church is a governmental product of entirely unchurchly workmanship. It is an imitation and product of what King William I established here at home as the Netherlands Reformed Church, but in an even more unthinkable state. What was created here at home still nominally connected to the past and to the Formulas of Unity. But even this was allowed to slip away in India. For convenience, a new kind of more general confession was pushed under the churches established there, and thereby completely broke with what, in the heyday of the East India Company, had been called into being on Java and in the Moluccas, partly even on Celebes, in conformity with our ecclesiastical life here at home. One wanted to show a religious character as a government itself, too, over against Islam and Animism. This character had to bear the Christian stamp by itself, but that Christian name was then taken as generally as possible. It would be a

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The Government Church of the officials and merchants from Europe has now become a church of a different kind. This was still possible when a certain degree of religiosity still lived among them. But as unbelief took on increasingly brutal forms, and the official personnel either became completely indifferent or even slipped into Theosophy and Buddhism, this Government Church soon fell apart entirely, with no more faithful preaching to be found, and the ministers were completely divided into the various official ranks, as if it were a purely civil society. Now Mr. Colijn, and Minister De Waal Malefijt, and Governor-General Idenburg, have made an attempt to put an end to this misery, and even a highly important report has been issued by a State Commission, but the difficulty is still far from resolved. At most, a mere handful of local churches have been fished out of this deluge, to which a certain degree of independence might be attributed. In all the small towns, whatever is called a church naturally falls away as soon as the Government lowers the flag for the Confession and withdraws from it. But even those five local churches had to draw an ecclesiastical life from their own roots, and this is extremely difficult. The historical line has been broken in the 19th century. And in the end, nothing else will remain but for the Government to withdraw completely, capitalize its salaries, and then await what new ecclesiastical formations may arise from the religious life of those who still live in faith.

## §18. The Mission.

In the Mission, which we are only discussing here from a political point of view, the Government has the highest interest. Our future as a colonial Power is increasingly at stake. That future appears so extremely dangerous precisely because we are increasingly dealing with an Asian action that is preparing to wrest itself free from European supremacy. In this action of the Asian instinct, there is unity. It works from Mukden and Port Arthur all the way to Singapore and Timor. Japan has taken the lead in this action. And if this struggle between the Asian and the European element continues, we know in advance that we too will become the child of the reckoning, and that we will only be able to maintain ourselves in the Archipelago with an effort that is almost beyond our strength. Even the innate antipathy of the Javanese towards the Japanese will ultimately not be able to protect us. The Asian motive is of a general nature, and all minor differences will disappear in this mighty contrast. Now there is, as everyone admits, only one bond that can even connect the inhabitants of our Archipelago to the Netherlands in the face of the Asian movement, and that is the unity of Christian confession, the Christianization of the population and the connection of the natives to the Christian Church. From Ambon and Minahasa we get our most loyal troops for the Indian army, and it is in those same regions that the greatest interest in what the Netherlands experiences in the House of Orange is still to be observed. From this it follows that the Mission has not weakened the position of the Government, but on the contrary has strengthened it in a completely unique way. If the Christianization of the entire Archipelago had continued, we would not have had the slightest concern for our colonial possessions. That is precisely why it is so short-sighted and politically unwise if the liberal statesmen transfer their anti-Christian motive from the Netherlands to the Indies, look askance at the Mission, and do what they can to break the influence of the Mission. We will never ask the Government for money for the Mission. That would be contrary to our principle. But in itself, the Christianization of the Archipelago lies so much in the surest preservation, that the Government could not do better than to throw its millions at the Mission, if by doing so the Christianization of the entire Archipelago could indeed be achieved. If a Government understands its own interest, it must see and acknowledge that it can never be friendly and favorable enough towards the Mission. If necessary, the Mission does not need the Government, but the day may come when the Government will have to thank the Mission for the only remaining prospect of its continued existence. There is no better friend and no mightier support for the power of the Government than the Mission, as soon as the Asian prudence awakens.

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THE FOUR POINTS

## §19. The Four Points.

If you now ask what the Government can do for the benefit of the Mission, I would point to the following points. First of all, the treatment of the Mission by the Government and its officials is always as favorable as it possibly can be. The missionary must, in all receptions, intercourse, and contact, be certain that the Government holds him in high esteem in the eyes of the population. Secondly, the Government takes care that a Mission does not have to struggle with finding land for its establishments, schools, and churches. Thirdly, the Government makes it clear that there is a bond between our Authorities and the Christian natives that goes even beyond the family bond. And in the fourth place, the Government does what is feasible to promote in every way the school education that emanates from the Mission. A missionary school, provided it is pedagogically on par, must be held in higher esteem by our Government than a neutral school of the same order. In no way may the missionary school, or in general a Christian school, lag behind in the eyes of the Administration compared to the neutral Government school. With a full hand, all Christian schools must be compensated for what they spend on the Christian upbringing of the natives. One evil must be guarded against. The Government must never promote the violation of the freedom of conscience of the natives. It must therefore be firmly stipulated that the Government will never financially assist any school where a child of non-Christian parents would be forced to participate in Christian religious services. A father or mother who rebels against this from their own inner drive must be absolutely certain that this coercion will be removed. If the complaining parents do not, the Government need not interfere; but if a protest comes from the parents, then the last penny must be returned from every school that would want to violate the freedom of conscience of the child and its parents, especially in the prayers and hymns. On the other hand, the Government leaves the Mission completely free in what education it provides, and the parents must know this. We would even prefer to see the Government consult with the various Missions to regulate the distribution of mission stations and to guard against the waste of missionary forces. Those who for the time being expect the first missionary blessing are the Animistic inhabitants of the Outer Possessions. It has always appeared that Christianization here progresses much more smoothly than in the land of Islam. Even our fathers understood this and profited from it. And now especially the Mission must devote itself to this terrain, because the faith in their own religion is declining even more strongly among the Animists than before. But for that reason the Mission must not withdraw from the Mohammedan regions. The Government must never, as in earlier times, obstruct the missionary men who operate among the Muslims. The Christian protest against Islam must be audible on Java itself, and the choice of Yogyakarta and Solo was therefore excellent on principled grounds. A mistake was made when, even bypassing the Animists, the side of the Reformed churches almost exclusively devoted its missionary work to the Muslims. I have also protested against this error on my part. It seems, however, that this mistake can no longer be remedied. The damage from it is incalculable. And that is why I continue to plead for the adoption of a vigorous, decisive mission also among the Animists. If one deems it necessary to continue undiminished on Java, so be it; but then redouble your efforts, and also extend the mission's blessings to the Animistic regions.

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## §20. Our Army.

As for the defense of our colonial possessions, two things naturally come to the fore. First, the danger of rebellion, which is never imaginary in conquered territories, and secondly, the possible attack from the side of a foreign Power. The first danger has diminished. More than before, we are now masters over our entire colonial territory. What still causes difficulties now and then are the Chinese who have infiltrated our territory, both of old descent and of more recent arrival, and further the tendency that now and then even arises on Java to free themselves more; something that then mostly finds support among the Indo-Europeans. Even as recently as two and a half years ago, there was still a serious uprising on the island of Lombok, which was only suppressed with great difficulty. But these are exceptions. In general, the internal security of our colonial empire is now firmly established. The second danger, however, that of a possible attack from abroad, is still very real. The colonial army, therefore, remains indispensable. But here too, the Government must be on its guard. It must not allow the colonial army to become a state within the state, nor must it allow the colonial army to be used for purposes other than the defense of the colonial empire. The colonial army must remain strictly subordinate to the civil authority. And the Government must also ensure that the colonial army does not become a tool in the hands of certain political parties or factions. The colonial army must remain neutral in political matters and must not be allowed to be used for party purposes. The Government must also ensure that the colonial army does not become a state within the state, but remains strictly subordinate to the civil authority. And the Government must also ensure that the colonial army does not become a tool in the hands of certain political parties or factions, but remains neutral in political matters.

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OUR ARMY - ALREADY OBSERVED EARLIER. 605 The ebb and flow of this kind of movement in our Indian life on Java has been observed earlier; most recently again in Djambi, but through the wise policy, combined with the necessary resilience, of the then Governor-General, Mr. Idenburg, and likewise of his successor, it has been successful in putting this movement back on a better track, so that what can be beneficial to Indian life remained, while what could lead to discord was averted. Hence, although the general Asian resurgence weighing down the situation must also be pointed out here, it may still be stated with a fair degree of certainty that at this moment, at least, there is no serious danger of an Indian revolution against our Dutch authority as such. Throughout our Archipelago, it is

known that both our army and our navy have all the necessary strength to repel any resistance and subdue it. There is as yet no talk of a self-emancipation by force of arms in our Archipelago. For the maintenance of our Dutch authority, a navy of five cruisers and an army force of around 30,000 men is quite sufficient. Quite differently, however, the question of Defense stands in our Archipelago, if one is intent on defending against military action from the side of other Powers. In "Our Program" of 1878, in this connection, the danger that could threaten us from the English side was exclusively pointed out. It is true that during the great war here at home, a pamphlet did appear from the Anti-Revolutionary side, in which it was suggested as if the political line, as we thus set out, should always align us with our sympathies on the side of England; but in this brochure of Mr. Koffijberg, it was entirely overlooked that the Netherlands has never yet been threatened or deprived of territory or disadvantaged by Germany, while conversely England has always been intent on diminishing our colonial possessions. It only needs to be pointed to the Cape and Ceylon to make clear how our decline in power, especially as a colonial Power, has been brought about solely from the English side.

## §21. Already observed earlier.

This is not just now, but has been observed by us from the very beginning.

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606 THE KINGDOM'S OVERSEAS POSSESSIONS. This was done in particular in §279 ff. of "Our Program," from which we must quote what we saw regarding Defense. We wrote then: "And when one finally comes to the highly important question of the Defense of our overseas possessions, everyone agrees that only towards England is our vigilance constantly required. From other powers we have nothing to fear, since England would never allow our colonial possessions to fall into the hands of France or Germany. And the chimeras, nurtured four years ago before the mobilization of a Turkish fleet to Atjeh, will no longer be shared by anyone now that this Turkish fleet has itself shown its insignificance even against Russian ships of much smaller tonnage! But England is dangerous. Dangerous because of its almost unlimited assimilative power and its insatiable greed, which with the Transvaal and Afghanistan has by no means reached its last bite. But this influence would become especially dangerous if the antinomy between St. James and Berlin-Petersburg were to develop even more sharply, and we, lying between the two, sought cover of certain boundaries. Then England would well again want to render us the good services of the beginning of this century: "to take our colonies into custody." But just this prospect also raises the question whether we would not then show more prudence by timely understanding with another Power to whom we could entrust our possessions in custody if necessary. Just by its own precedent, England has made our right to this, both as regards ourselves and as regards that other Power, indisputable. Which power would come into consideration here is easy to guess. And if, by treaty, for such good services (if it remained only a custodial task) in money, and, if war were on our account, in land, we were to pay a proper reward, one must not forget that England simply took the reward for its services, and would take it again at its own discretion; and one must not lose sight of the fact that the mere knowledge that such a treaty existed would easily deter England, just in order not to allow a third power to arise in the East Indies, from an attack on our colonial possessions."

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Even stronger now. It is worth noting how, some twenty years later, the tension arose here at home due to the attitude adopted by England towards the Boers in the Transvaal and the Orange Free State. It is hardly conceivable that the brilliance of the war fire in 1915 could have blinded some of our wise men, so that siding with England, at least as far as our sympathies were concerned, was demanded as a requirement.

## §22. Even stronger now.

This further explanation of the matter does not detract from what was written in 1878 regarding England; rather, it receives even stronger emphasis. And the striking difference with the position taken then is not at all that we can now count on England, but much more in the entirely different circumstance that, in addition to England, an adversary, perhaps even more worrying, has been sighted on the horizon. Not in Turkey, which in 1874 sent a fleet to Tandjong Priok to lend support to certain desires inspired from Cairo, nor in China, which under Li Hung Chang did indeed stand up for its countrymen, but as a government always held back, but from the side of Japan. As recently as February 1916, reports came from Japan in the press, testifying to an ever-increasing desire in Japan's leading circles to enrich themselves through the occupation of the southern Archipelago. We knew about this, and had long been aware of the danger from that side, but we had never imagined that the danger from that side had already taken on such a serious character. And if one now knows the tension that has arisen over the waters of the South Seas, between America, with China, against Japan, then it is clear that the Netherlands would completely misunderstand its vocation if it did not ask itself in time how it could defend itself, if sooner or later trouble came to us from North Asia. Then, of course, a fleet of five smaller, unequal cruisers, and an army of 30,000 men, would be more of a farce than a defense. In this respect, something has already been gained, in that it is increasingly being considered to concentrate this small army in Java and to make garrison service in Bandung a high-altitude and healthy one. This path will have to be followed more and more, and the maintenance of authority on the other islands will have to take on an increasingly police character. But this cannot remain the case.

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608 OUR OVERSEAS POSSESSIONS.

If an enemy force of 50,000 men were to land on Java, which at present is far from unthinkable, our army in Bandung would soon be surrounded, and if no provision were made for the necessary provisioning and ammunition production, surrender would soon have to follow. Three demands follow from this. Firstly, that the police force in Sumatra, Borneo, Celebes, the Moluccas and the Lesser Sunda Islands must be properly organized and equipped. Secondly, that the position in Bandung be properly reinforced and provided with what would be indispensable in a prolonged siege. But also, thirdly, that serious consideration should be given as to whether the plan already proposed from more than one side for the realization of a militia, recruited from the indigenous population, under European command and under European officers, would not be capable of providing us with a real military defense force in time of war, by placing two hundred thousand men at our disposal. If the core element from Ambon and Celebes were strongly enough represented in this militia's cadre, such a militia of indigenous personnel would very well be able to organize a real force of defense. Provided, and this must be emphasized with the utmost emphasis, that everything necessary for the armament, leadership, provisioning and ammunition of this militia was made available in peacetime, not halfway but completely.

## §23. Our Fleet

Much more difficult to answer is the question of how we will defend ourselves at sea if, sooner or later, a naval attack from North Asia should come. We might then find ourselves facing an enemy force that already has 19 Dreadnoughts at its disposal, while we have nothing comparable to oppose it. The only way to meet this threat would be to build a fleet of at least 10 Dreadnoughts, supported by a number of smaller cruisers and destroyers. But the cost of such a fleet would be so enormous that it would be impossible for the Netherlands to bear it alone. Here, too, the question arises as to whether the time has not come to seek cooperation with the other powers that have interests in the East Indies, in order to jointly provide for the defense of this region. This would not only lighten the financial burden, but would also give greater weight to our voice in the councils of the great powers.

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OUR FLEET. 609 It still has four Super-Dreadnoughts under construction, and moreover 22 cruisers totaling 136,000 tons, accompanied by torpedoes, airships, and patrol ships, and what not. A complete fleet with over 63,000 men on board, drilled by 2,500 officers, with a very extensive staff and armed with the best artillery. On the other hand, we are of course completely powerless with our insignificant European fleet. Compared to a serious foreign fleet, what we can still put under steam is like a mouse before a cat. We would be gone in no time. The rescue that could be brought would have to be sought in three ways. First, in the submarine. This new invention does not exceed our financial strength in terms of construction costs. The crew of the smaller submarines rarely exceeds 30 men. With three thousand men, a fleet of a hundred submarines could already be manned, and repeatedly it has been shown that "a valuable fleet of Dreadnoughts does not readily venture to be shot down from below." In this, therefore, our salvation may lie. But then this submarine fleet must also be fully up to date, must be manned with excellent personnel, must have its stations on all islands and coasts, must be able to put out at least a hundred ships, and in the East Indies even possess all the shipyards and all the factories for the technical aids it needs. Counting on supplies from the Netherlands may not be the case in any case. Already now we saw that we had to avoid the Suez and had to sail around the Cape, but in wartime even that sailing around the Cape would once and for all be cut off for us. Therefore, it must also be demanded in the second place as a definite requirement that we fully establish ourselves in the East Indies, if possible even in the field of shipping, but in any case for the complete repair of the ships that need to go to the shipyards. What we now have in terms of shipyards is completely insufficient for this. What we need are at least three first-class shipyards, equipped with skilled personnel and all the necessary aids. Only in this way is the deployment of a hundred submarines possible, but also only then can one think of possessing in our East Indies a fleet of Dreadnoughts. However, the question arises here whether, in the event of war, this would not be entirely repeated what is now experienced with the English and German Dreadnoughts, namely, that on both sides these mighty monsters are locked up in a ready harbor and leave the fighting to the smaller ships.

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610 OVERSEAS POSSESSIONS OF THE KINGDOM. This consideration would nevertheless be of very serious influence on the determination of the number of Dreadnoughts. One might well be satisfied with a half dozen. But in the third place, it is never lost sight of that our Archipelago does not lie isolated in the South Seas, and that therefore a not insignificant part of our defense will always have to be sought in diplomacy. Even if there need be no talk of an alliance with America, it would still be reckless to proceed as if the United States did not exist. Unofficial discussions could take place that, in case of need, could yield valuable prospects. If it is known in North Asia that the government in Washington would never tolerate an unrestrained Pan-Asianism, this would already provide a valuable support point for us. Even without an alliance, such a sympathy for our international aims can easily create a community of interests. Of course, this in no way relieves us of the very heavy task of arming ourselves independently; but precisely because it is known that we can bite off from ourselves if necessary, our diplomacy also gains in importance. We will not go into the costs of a serious armament on land and at sea any further. Any estimate is at this moment a puzzle. Only this is clearly stated, that, although the Netherlands is obliged to pay from its own funds what it does in the East Indies to maintain its authority, the much larger sums that will now be necessary for the defense of the East Indies against a foreign enemy will nevertheless fall for the greater part on the East Indies account.

## §24. Suriname and Curaçao.

Here we can repeat what we wrote in 1878 about our not so small colony in the northwest of South America: “Our past in Suriname was highly interesting. After all, Suriname belongs to our oldest acquisitions; it is not less than five times as large as the whole of the Netherlands; it had years of production to a total (at the present monetary value) of more than thirty million; it knew its time when it produced more staple products than all of Java.

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SURINAME AND CURAÇAO.

This colony may surpass the East Indies in political significance as an American colony; it is noticeably closer to us; it has in the stations of the Moravian Brethren a model of successful missions; and in the future, as the Archipelago comes under the suction of Australia, it may well become more important for our trade than the East Indies. And yet, how bitterly miserable and shockingly sad is the state of these magnificent colonies at present! Of the 2,800 square geographical miles that it occupies, there are scarcely more than ten—yes, ten—under cultivation; in a land five times as large as the whole of the Netherlands, there live no more people than in the single city of Utrecht; the death rate exceeds the birth rate; production has declined to one-tenth of what it once was; idolatry, according to the latest colonial report, is on the rise; plantation after plantation lies desolate and abandoned; the colonization of the Saramacca has failed miserably; the Netherlands must annually contribute some tons; and to go to the West Indies is already considered in our public opinion as such overwhelming proof of complete uselessness that the social conditions there are truly not shining either. The primary cause of this was undoubtedly the great prosperity that enervated and weakened the former colonists in the middle of the eighteenth century; their strength was robbed from them to withstand the adversities that repeated wars, through the obstruction of the slave markets and export production, brought with them, and they too willingly, by mortgaging their property to Amsterdam capitalists, placed themselves under the power of a foreign stock exchange. Especially in 1770, this taking of Amsterdam money became a frenzy that in a few weeks almost brought the entire colony to its independence and burdened the cultivated inheritance with a debt of 50 million (= now 150 million). This naturally broke the energy. One does not work for strangers. So the colonists thinned out and these masters came; thereby the pith was removed from industry and agriculture; and the result was that long before the emancipation of the slaves, the colonial luster had been extinguished. This emancipation, the proceeds of which naturally mostly benefited the Amsterdam gentlemen, then demolished what little was left standing; and for a time gave rise to the opinion that nothing more could be done with these colonies. More than once, their sale, especially by Indo-Malay, has even been considered! And yet, for such...

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612 ‘SCOLONIAL POSSESSIONS OVERSEAS. There was no more despondent and unpatriotic judgment than this. Right next to Suriname lies Demerary, Berbice and Essequebo, which, formerly belonging to us, and now having come under England, shared the same fate as Suriname and are also in a far from flourishing condition, but are nevertheless noticeably better off. While Suriname has to beg from us, British Guiana comes out, and sometimes even has a surplus. In ‘71 it had only £338,000 in expenditure against £379,000 in revenue, and in ‘77 no more than £344,000 in costs, against £364,000 in receipts. With a population three times as large, it spends only four million a year, while our administration, with an equal ratio, would cost five. The exports amount to a total of about thirty million, against three to four million in Suriname, which, at an equal ratio, should have been ten million. Accordingly, the merchant also used 200,000 tons of shipping freight, compared to only 20,000 tons in our colony; which again, at an equal ratio of population, should have been 65,000. While we, thanks to the excellent services of the Moravian brothers, occupy an honorable position in the school system, with 8,000 students out of a population of 60,000 in Suriname, compared to 16,000 in British Guiana, in a population three times as large.

## §25. Still the same.

The criticism we gave at the time on the existing situation also retains its significance. You will find it in Our Program on pages 357 ff. What then applied, applies in essence still, and therefore need not be repeated. Only this may be added, that the later Minister of Colonies, Mr. van Asch van Wijck, who had first gone to Suriname himself as Governor, thoroughly investigated and studied the state of affairs and in a rare way won the love of the population, who also honored him in a quite unique way. As a minister, it was also his last concern to lift Suriname out of its decay. In this, he had especially in mind the possible...

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STILL THE SAME. 613 The difficulty was to establish a railway connection from the lower terrain to the higher terrain on the first mountain ridge. He expected this would lead to the establishment of an entirely new colonization on this mountain plateau, so that an entirely new colonial-social life could work there. This plan has also been carried out, but it has not yet been able to meet the great expectations that were initially cherished. Colonists of European blood have not come to appear. We have indeed driven the former slave negroes partly into the mountains, but to become wild there. And in Paramaribo, and a few nearby places, the old life remained largely. The gold fishing, which initially seemed to hold out beautiful promises, has indeed been continued, but has soon fallen far short of

expectations. The attempt to replace the former negroes with Javanese cannot be considered successful. And so it lies there that the precious land calls to be worked, to provide us with new treasures, but that the workers are lacking. What deserves notice in this state of affairs is that in this colony Christian confessors repeatedly appeared as governors—we only mention Messrs. Savorin Lohman, Van Asch van Wijck and Idenburg, and in connection with this it remains significant that the Moravian missionary has succeeded in bringing a not insignificant number of negroes to baptism. Although it is true that our Christians have not yet become what they should be morally in more than one respect with the negroes, it may nevertheless be gratefully acknowledged that what was seen in the United States also proved to apply here. Although the negroes, by race, stand on the lowest ethnological steps, yet it has also been seen here that they are eminently susceptible to Christianization, and that the call of Christ: "Come unto me, all ye that labor and are heavy laden," also finds entrance with them.

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614 THE KINGDOM'S POSSESSIONS OVERSEAS.

## §26. The Opium.

Our colonial administration still drives us to the 25 million guilders that the sale of Opium throws into the lap of the Government as net profit. This is all the more offensive now that in China itself a more serious action against the use of Opium has arisen, and international conferences have been held to put this intoxicating evil out of use. All the more so now that England has lent its cooperation to these conferences, one momentarily cherished the silent hope that the Opium problem was nearing its solution. Yet here too we were disappointed again. Practically nothing has been gained with these international conferences. Yet this does not relieve us of the obligation to continue the fight against Opium uninterruptedly and undiminished. The government monopoly that has now been applied to Opium has of course yielded some benefit. Much injustice in the opium dens has been averted. It was precisely with a view to this that it was disappointing that in the Outer Possessions the sale was nevertheless again left to the opium farmer. But apart from this, the system itself does not yield the desired result. Progress is undoubtedly being made, and there are now already areas where the use of opium can no longer thrive. But we must go further. If the use of the opium that is now sold were equally distributed over the 40 million in our Archipelago, there would hardly be reason to complain. But this is not the case. Masses do not use opium at all, and the main use comes down to a small group that is addicted to it. The Government knows this, and this is precisely what it should not tolerate as a Christian Power. Therefore, we do not abandon our resistance to the consumption of opium, even if we know that we are not total abstainers.

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ORGANIZATION AND POLICY

# CHAPTER XXII

## PARTY POLICY AT THE BALLOT BOX

### §1. Organization and Policy

Apart from the rights and the necessity of appearing as a separate and independent party, the party policy also requires further explanation, insofar as it must govern the advance to the ballot box. Here, too, the sharp distinction must be kept in view between the two different natures that come to expression in the appearance of parties at the ballot box. A party in the political field can either be no more than a variation of related parties, or it can stand in principle opposed to a series of parties based on entirely different foundations. If we take no account of any of the parties that have their roots in the revolutionary principles of 1789, and set against them the parties that cling to the old Christian starting point, then there can certainly be variations on both sides. Among the parties of the Revolution, whose year of birth is 1789, there can mainly be three formations, depending on whether one forms the rear guard, the middle corps, or the vanguard, with a certain degree of difference. But an equally pronounced degree of difference can just as well occur among the parties that do not greet their year of birth in 1789, but in the year one of Bethlehem. Although all political parties that owe their origin to the rise of Christianity go back to Bethlehem, this does not at all rule out the often so strongly pronounced difference between those who lead the way, form the middle, or bring up the rear. Upon closer inspection, there then runs a straight line that distinguishes the two triads of groups from each other, so that these move along the two sides, on the one hand the three Christian formations, and on the other hand the three Revolutionary formations. It is precisely this that so often gives occasion for impure mixing in the ballot box policy. The mixing is less pronounced among the parties that form the two sides of the dividing line, but the tendency towards it comes out repeatedly, both in the rear guard and in the vanguard of both, fundamentally different formations. The Conservatives of both groups easily close ranks, and often with such a preference for each other, to defend their backward position. And just as frequently, among the Democrats on both sides of the line, the urge to unite strongly appears, to defend themselves against those who favor a more backward attitude.

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### §2. Not Always Excluded

More serious attention must be paid to this at the ballot box policy, because it is by no means certain that a political party can and may always unconditionally lend itself to cooperation with a variation in the political field that shares the same proposal with it. It requires no further indication that in itself and as a rule, cooperation with what is closest to you in principle will be recommended. However, it does not at all follow from this that this must and will always be the rule, regardless of all the circumstances. There can even be temporary cases where clinging to what is fundamentally congenial to you would weaken and ultimately disarm you. Take as an example the emergence of the socio-economic question. This question came to the fore as a result of two historical causes. The first lay in the gradually much broader education of the youth, whereby even among the lower classes a development was gradually reached that of itself brought the right to have a say. And to this was added, almost simultaneously, the increase in material prosperity and a directing of human effort towards acquiring a more abundant life through that prosperity. Now it lay in the nature of the matter that on both sides of the great dividing line, the conservative groups felt this urge of social life less, or perceived it with reluctance. This phenomenon then also presented itself in the second half of the 19th century, both among Christian politicians and among the revolutionaries, and many unintentionally went over to opposing this movement, both...

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NOT ENTIRELY EXCLUDED. - PRACTICALLY ALWAYS DIFFICULT.

617 on our side as well as on the other side. In the first attempt, this even went so far that the Conservative gentlemen, both to the right and left of the line of principle, also did not want to hear anything about the emergence of this new political issue. Not only that this issue was combated and abhorred on both sides in its socialist form, but initially most of them, and this on both sides, went so far that they themselves vehemently disputed, to whomever differed from them, even the right to raise such an issue. It was not a scientific or a political issue. It was nothing more than an invention of popular despotism, and indeed a despotism that was devised for the overthrow of the entire existing order of things. Did it not speak for itself that those among us who also very decisively felt the legitimacy in the emergence of this socio-economic issue, had to take a stand against their own more closely related fellow-thinkers, and could even be called upon to support those who were principally opposed to us?

## §3. Practically always difficult.

Yet experience taught that, however noble and honest the intention of such temporary support may be, the reality of the political situation could make the pursuit of such a course of action impossible. Elsewhere such an attempt has succeeded, but when it was also tried here in this country, it turned out that even the left was still too immature to be able to lend itself to it. We have already pointed out in the foregoing how such an attempt, undertaken by us out of conviction, has failed because the revolutionary democrats cast their vote much more willingly for a revolutionary middle man or even for a revolutionary-conservative, than for a democrat who presented himself as a Christian democrat. In other countries, especially in England, in Germany and in the United States of America, this did not go so far. Here in this country, on the other hand, the aversion in the revolutionary-democratic circles towards anyone who also confesses Christ in politics is so far-reaching that they would rather risk anything than allow the authority of Christ to be asserted in the political arena. In more than one State on foreign soil, where the Roman Catholic Church is all-controlling in the religious sphere, possible aversion may manifest itself in brutal anti-Papism, but then such an anti-Papist is not infrequently still found to have a warm inspiration for the honor of Christ. Here in this country, on the other hand, where the revolutionary aversion is not directed against Rome, but in general against the Christian element, it has become increasingly clear how almost impossible it was, to reach across the great principles, to lend a hand to the men on the other side, even temporarily. Of course, this promotes each other's efforts and intentions well enough, and so the democratic element has also come to its right against the conservative-aristocratic element among us, but at the ballot box the effect of this disposition remained small. Our own party was in every way ripe for it, for from the Anti-Revolutionary side the courage did not seem to be lacking to join the opposing party for a particular election. In reality, however, one encountered two kinds of resistance, which soon proved to be a stumbling block for each. The rear guard and the middle group of the Christian side made our intention out to be betrayal, which temporarily cost us the support of many. And on the revolutionary side of the dividing line, the aversion to what they called our feigned piety proved so general that any desired result failed to materialize. §4. Material or spiritual.

From this misery a unmistakable danger was soon born. However highly one may conceive of the political ideals, it cannot be denied that both a material and a spiritual tendency underlie all political striving. In the ecclesiastical sphere this may have escaped notice, although even there it is never entirely absent, but it is certain that the political sphere of power exerts influence both on the material and on the spiritual well-being or misery. Politics moves in the tangible reality of our human life, and this human life, arising as it does from soul and body, and being constantly bound to it, naturally demands that attention be paid both to the needs of the bodily life and to the higher needs of the life to which the soul aspires. Now it needs no argument that, to this end,

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The distinction between the material and the spiritual is often quite marked. Some are so absorbed in the care of the body that they scarcely pay any attention to the significance of the soul, and then only when illness or adversity casts them down. Others, on the contrary, are so immersed in the spiritual that the care of earthly things is almost unknown to them. This naturally brings the danger that, wherever the influence of the left-wing political parties is strong, the urge to focus solely on the material will be so strong that those among us who also have a certain predominance in the material aspect of the intended purpose will, before they

themselves suspect it, be inclined to feel more sympathy for the left-wing groups than for the more spiritually-minded in our own circle. Not that they would openly depart from Christ. Not at all. Personally, they will still highly value piety, but when it comes to upholding the honor of Him who said, “All power is given to me in heaven and on earth,” they do not give Christ, the God of the distant, the high place on the political and economic field that belongs to the Son of God by inheritance. Their political gaze is so one-sidedly focused on improving the material position of their fellow-members, that they gradually feel more sympathy for the deniers of Christ, who want to improve the social and economic position of their fellow-members, than for a zealot for the cause of Christ, who is less attached to the material and therefore feels less for the material interests of the least privileged. It then depends on the position of the balance. The ratio between the material and the spiritual must of course be for the Christian 51 as a minimum of the spiritual and 49 as the highest of the material. But soon one notices that with such people it becomes 75 for the material, while the spiritual has fallen to 25. And then, this can hardly be otherwise, the balance swings more and more towards the material, until in the end nothing but a semblance of the spiritual remains, and one jumps over to the Materialistic revolutionaries with bag and baggage.

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## §5. Predominance of the Minimum.

Among those who remain loyal to Christ, not only as their Redeemer, but also as their King, a defect and a disproportion is all too often born at the ballot box, against which one cannot be warned seriously enough. This defect is born from the fact that, with the disappearance of not an insignificant democratic element among the voters, who are all inclined towards the Socialists, the sincere Christian Democracy is pressed, since in an election the three Christian factions need each other and cannot do without each other. The rear guard is only too likely to try to abuse this. One is so eager to cooperate, and immediately one calls out to you: Support our candidates, and you will not find us unwilling to pay you back in kind in any eventual districts. In itself there is nothing wrong with this. It is something quite natural and necessary. If at our elections there were no more than two parties, there would be no talk of alliances. In America one is either Republican or Democratic. Roosevelt did try for a short time to break through this rigid two-party system, but he did not succeed, and even in the latest elections it was only between Wilson and Hughes. A third choice was practically non-existent. With us, however, the constellation is not so sharply defined. Just as Robert Fruin estimated the Calvinists of the 16th century at a tenth of the population, so it still stands. We may now and then go somewhat beyond that, and even reach 2/10, but in any case an alliance is the only means for us to come out with the highest available strength. This has, especially since 1889, led to a combination of Anti-rev., Chr.-Hist. and Roman Catholics, and an alliance as it presented itself here recommends itself of its own accord. The difficulty lies only in the question of how to give such an alliance a certain reasonableness and a certain firmness. But when one came to that question, the unpleasant phenomenon soon presented itself that there were some gentlemen among the Chr.-Hist. who did not want to hear anything about a coalition agreement, in whatever form, and preferred to give the preference to...

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AGREEMENT ON EQUAL TERMS

To remain free and fish in troubled waters, while others, feeling certain fear that it went too far, well, wanted to come to an agreement, but then also demanded that the agreement would consist in this, that the other two parties would adopt their program.

## §6. Agreement on equal terms.

Now this was in conflict with all sense of fairness. Three factions that profess to possess a unity of political roots can only appear together and go to the ballot box successfully if it is met, and indeed by agreement met, with these three conditions: first, that the mutual strength of the numbers be firmly established through serious electoral organization; second, that the candidates of the three factions remain equal in number with the figure of this investigated and controlled numerical strength; third, that one accepts a program for which each makes a sacrifice, but for which also joint gain is held out in prospect. The first of these three conditions has, as far as possible, been met both by the Anti-Revolutionary and the Roman Catholic side, but not by the Christian Historical side. The Anti-Revolutionary party is able to meet this to a certain extent through its very extensive local organization in 600 electoral associations. The Roman Catholic party largely meets this requirement through its ecclesiastical organization; but the Christian Historical party falls short in this first condition. It goes almost entirely on guesswork, and all too often overestimates its demands. This has also been the reason why the second condition, which we mentioned, could not come to its right from that side. Not knowing its numerical strength, it estimated it far too high, and this was the cause that one constantly sought to trim down the number of its candidates, without being able to devise a means to settle the dispute that constantly arose from this.

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622 PARTY POLICY AT THE BALLOT BOX. From this then arose not only unpleasant accusations in the press, but also locally, entirely at odds with the spirit and mental labor that was always demanded for a well-considered agreement. Yet this first disturbance was of lesser significance compared to the much more annoying disturbance that presented itself as soon as one came to the drafting of the common ballot box program. For then one did not go over to the co-signing of such a program except with reluctance, and insisted that no single point on this program would find a place that did not fully agree with the party program of one's own faction, or was borrowed from it. Often the Anti-Revolutionaries and the Roman Catholics have then adapted themselves to this. The Anti-Revolutionaries could do this to a certain extent, because they could still work the voters with a more elaborated Ballot Box program, and the Roman Catholics were always more inclined to come over to our side. Yet everyone increasingly felt through the years that the mutual relationship in this way did not come into its own. Yet the Christian Historicals persisted in never wanting to recognize anything else as a condition than what was plucked from the branches of their own tree, from which it would follow that no other position was granted to us than that of an auxiliary service for the Christian Historicals. One also saw increasingly clearly that more and more mutual accommodation was an inexorable demand. Consultation was also indispensable here, but the outcome of this consultation would then have to be that the three factions of the Christian groups would take something from each other at each Ballot Box, in order to, better at least than hitherto, find their own interest in the agreement entered into. That this would always remain a delicate point, went without saying, but precisely for that reason the intensity of mutual sympathy had to come out, that such an agreement proved possible.

## §7. Good tone.

With the demand for the agreement, it went hand in hand that one and the other, in the press and at meetings, remained in the good tone as far as the mutual relationship was concerned. Of course, the convictions of the three factions pushed many a demand to the fore, in which a clear, sometimes even very characteristic difference of opinion was reflected. This could not be otherwise, and first of all the theory of the death in the pot has been advocated in this respect from the Anti-Revolutionary side. Above all, in politics, the expression of life is a condition of vigorous life. And so it went without saying that none of the factions should be hindered in the proper pursuit of what characterized it, and that this

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MAINTAINING A GOOD TONE - RESPECTING ONE'S OWN DOMAIN.623 This had to be accompanied by criticism on those points where the other two factions differed from her. On our side, it is not disputed - indeed, we have always insisted - that a vigorous life should also be applauded in other quarters. However, this freedom of movement in life can never excuse the mingling of bitterness and wounding scorn in one's speech. On the contrary, it should be demanded that, in dealing with the groups of the Left, one should take them to one's heart with warmth, and that in discussing the mutual disputes, this should always be done in a tone that speaks of attachment and appreciation. The example given in this regard from the Anti-rev. side can hardly be faulted. At least in the main organ of the Anti-rev. party, all wounding criticism has always been deliberately avoided, with only a single high-necessary exception, and all sharp treatment and every bitter attack has been avoided. When disputes arose, the editor of the Anti-rev. main organ hardly ever entered into them. And it has always been recognized, both by friend and foe, that dispute has never been dear to us, and that our batteries have never been aimed at the allied factions, but solely at the fortress of the Left. With this in view, it cannot but be regretted that the main organ of the Christian Historical faction has by no means always struck the right tone, and has not infrequently allowed itself to be tempted into taking a position and adopting an attitude as if its batteries were leaving the politics of the Left side unscathed, yes, sometimes even sparing them, and not infrequently, even coarsely, turning against the leader of the Anti-revolutionary party. Sometimes the tone even lacked something personal. The Anti-revolutionary party did not experience such treatment from the Roman Catholic party. Only here too it may not be concealed that now and then a tone was to be heard in North Brabant and South Gelderland that gave the impression of being more directed towards estrangement than towards rapprochement.

## §8. Respecting one's own domain.

The most painful thing here was that the unfriendly treatment of the kindred factions, as a matter of course, also had an influence on the relationship within our own circle. For within our own bosom, everyone had been accustomed from the outset that every nuance should come into its own and express itself freely, provided that, as far as the affairs of the country were concerned, they kept step and did not break the ranks. Yet it could not be avoided that many nuances and insights came to light here that provoked disputes. More than once, use was then made of this with the other factions to intervene, and to condemn the opinion of the one in order to praise all the more strongly the conviction of the one who stood opposite him. One knows well what a difference of opinion, just think of the oath question and the reading rooms, sometimes arose in our circles because of this. But even if this did not take on a seriously serious character, the Left was always there like the chickens, to mix in with praise or blame, and not infrequently the Anti-rev. side then committed the weakness of mastering these expressions of adhesion and using them as a weapon of defense against the attacked. This was even worse in the days of Groen van Prinsterer, since then it has even become visibly calmer and more calm. Yet the world is by no means out of it. It is therefore so important to be on our guard in two respects. On the one hand, against the fear that among us there should be no differences and that we should not contradict each other, but also, on the other hand, against the evil that so often creeps in with this difference of opinion, to seek help from the Left in order to strengthen oneself in the struggle against the brothers. It has always been and in all lands the

difficult art to find the right bond on the political field, which combines the freedom of the word with the mutual cohesion. In itself, it is therefore nothing strange that in the Anti-revolutionary party too, the one good rule has not infrequently been sinned against, and above all, one draws from the contrast to which we have pointed, not the consequence as if we wanted to assert that the writer of these lines would never have failed on his side either. All the more for this reason, he emphasizes here that the Christian parties may decisively condemn the evil mentioned here and may oppose it with pious power, because what may still seem pardonable elsewhere, among those who raise the Christian banner, may never be tolerated.

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PROPORTIONAL REPRESENTATION

## §9. Proportional Representation.

Since 1870, when the writer became acquainted with Hodge's ideas on Proportional Representation, he has consistently pointed out how the introduction of this system of proportionality could become the most decisive means to definitively end much of what was and remained improper in the political party struggle. A system of proportionality, as will soon, we may hope, also become our part in the Netherlands, offers the great advantage that it removes the fierce struggle from the ballot box and, if it must still continue, transfers it to the States General. But one is certainly mistaken who may have imagined that, if this new system were to go through, all party struggle would now be over for good. This, of course, cannot be, for the principles remain in their antithesis and the variations retain their color differences, but there is still this truth in the assertion, that the curse of dishonesty, which has burned on it for so long, can now finally be averted from the ballot box, and that the antithesis will continue to hold sway in the political field, but with this difference, that the antithesis will now leave the ballot box to concentrate in the clubs, in order to remain unchangeably in control, especially in our Second Chamber, but in part also in the First Chamber. The writer also considers himself fortunate to have been able to thank that from the outset his eye was opened to the so serious significance of the Proportional system, and that what had been withheld from us for too long by a party struggle that deserved to be condemned, will now finally be obtained. Whether the way in which it is now being introduced to our liking is the most desirable, is left aside here. The scissors must be extremely fine that can bring about the absolutely required and impeccably accurate division in this matter. But this can never condemn the principle. What has remained below perfection can now be elevated to the sphere of the perfect. Therefore, nothing may be deducted from what has now been granted to us. Compulsory voting and women's suffrage may almost completely ruin it, and the maintenance of the individualistic suffrage makes many clear-sighted people doubt, but so much has now been achieved, that the immorality, which has almost completely ruined our ballot box struggle for so many years, is now being removed from the ballot box.

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Already in this respect our people's morality will gain. But let no one imagine that the character of the party struggle will lay aside its fierceness. The ballot box only gets a word once every four years, and the tense relations will have to continue to dwell in the States General.

## §10. Article 21 remained.

From the fact that even after the realization of the pending constitutional revision, an entirely modified form of the suffrage will govern the ballot box struggle, it in no way follows that any necessity has arisen to make changes in the fundamental idea of Article 21 of our Program. After serious consideration, it has been decided to leave this article substantively as it was. This article now determines, and in essence entirely as before, that the Anti-Revolutionary party "maintains the independence of the party to have its principles prevail; does not allow itself to be incorporated into any other party; and only accepts cooperation with other parties if this can be obtained through a previously well-defined accord, with unimpaired preservation of its independence." On the other hand, a change has been made in the final clause of this article. This final clause previously read as follows: "Reason why it generally participates in the political elections with its own candidate in the first ballot, and reserves the right to act according to circumstances in the run-off." In 1878 this could not be stated otherwise. At the time there were still not three but only two Righteous parties, for besides the Anti-Revolutionary, only the Roman Catholic state party was then active. The Christian-Historical party was not formed until 1894. If the Roman Catholic party had already been in 1874 what it later became, the attempt at cooperation in the ballot box would in all probability have found a first regulation already in the initial period. But it was not yet so at the time. The writer of this considers himself fortunate to have been able to thank that from the outset his eye was opened to the so serious significance of the Proportional system, and that what had been withheld from us for too long by a party struggle that deserved to be condemned, will now finally be obtained.

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Article 21 remained. When he first obtained a seat in the Second Chamber, he immediately came into conflict with some of his Roman Catholic colleagues, and it was not until the Episcopate had declared its position in the education dispute that the idea of organized cooperation found more ready acceptance. It was especially Dr. Schaepman who had been pushing for this from the outset, but from the side of not a few of his fellow believers he incurred rather sharp criticism, especially in the beginning. The appearance of the Anti-Revolutionary party as an organized whole could therefore not immediately lead to a cordial coalition. The wording of Article 21, that it should be the rule for us to appear entirely independently, with our own candidates, and that it would only be "according to circumstances" to act otherwise, did not in the least refer to a certain coalition with kindred spirits, but without any further specification, to possible cooperation at the ballot box with whichever other party. As a result of the deception to which we had been exposed from the side of the Conservatives, one then began to turn against them more particularly, and a persistent tendency to dare to make an accord with the Radicals at times and occasions manifested itself more clearly. For the sake of caution, the word "generally" had been inserted in the last sentence of Article 21. The political relations differed so widely in the various parts of our country that setting an absolute rule seemed risky. The insertion of the word "generally" left open, with a view to this, the possibility of making a somewhat firmer accord, especially in the provinces of Utrecht and Gelderland. This was the reason that later, when the idea of an alliance gained more acceptance, the letter of Article 21 did not oppose this, and the article remained usable, at least temporarily, even without amendment. Now, however, in 1916, this could no longer remain so. We now faced the fact that the Roman Catholic political party had completely abandoned its former sympathies for Liberalism, which had quite understandably manifested themselves especially after 1853, that is, after the so-called April Movement, and was now taking the field against the fundamental ideas of 1789. And now that the separation of the Christian-Historicals was added to this, it soon became clear how in fact there were now three parties standing side by side.

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628PARTY POLICY AT THE BALLOT BOX.stood, which, despite strong variation, undoubtedly had a certain principled idea as a starting point. Hence the urge for cooperation, which increasingly brought the alliance idea to the fore. With this in mind, the final text of Article 21 is now worded as follows: "Outside of an agreement, it (the party) fields its own candidates in the first round, and if a run-off election ensues, it acts according to the circumstances. At a Deputies' meeting, to be held before each general election, it adopts the program and the agreement for that election by a majority of votes. All affiliated electoral associations are then obliged to adhere to this program and this agreement."

## §11. The current regulation.

This newly formulated regulation is based on the fundamental idea that no attack on our independent character as a Coalitional party, with a view to our historical past from the 16th century, and no less with a view to our principle of loyalty to God's Word, is permitted, under any pretext whatsoever. This lies in the explanation that no cooperation is deemed to arise of itself, but that it can only come about as the fruit of consultation, and indeed of such consultation as did not confine itself to a loose discussion here and there, but obtained a well-defined agreement as a result. If such an agreement had not been reached, one would have retained one's full freedom, fielded one's own candidates throughout the country in the first round, and reserved the right to act as circumstances dictated in the event of a run-off. By placing the formula "outside of an agreement" at the forefront here, it was nevertheless recognized and admitted that an agreement would not only be desirable, but would even be the rule. But precisely for that reason, it had to be laid down under what conditions such an agreement would be bound from the outset. As a matter of course, the power to enter into such an agreement was reserved for the Deputies' meeting, but in such a way that the right of decision remained with the majority in the Deputies' meeting, so that even if a different opinion was expressed in a minority, not only the election program, but also the election agreement for the impending election, could be determined.

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THE CURRENT REGULATION. - BREACH OF THE AGREEMENT.629However, this could not suffice. As soon as one enters into an agreement with another party, the party agreeing with us must also be able to count on the fact that the votes that have been promised will actually be delivered. Hence the necessary addition at the end of Article 21: "All affiliated electoral associations are then obliged to adhere to this program and this agreement." It hardly needs to be added that we derive the moral right to demand a firm and continuous delivery of the assistance agreed on our part, from this as well. A moral right that, by virtue of the agreement, passes informally into a legal right.

## §12. Breach of the agreement.

As became clear especially after 1913, there remained even then a curious lacuna in the very formally concluded agreement, to which it is advisable to draw attention for the future. Up to that point, the agreement entered into had only aimed at the major election campaign that preceded each general election. But if that general election campaign was once behind us, and an unexpected vacancy occurred in the meantime, then the one considered himself entirely free for the four years until the next general election to deviate from the agreement, while the other thought that he could not interpret it that way and therefore also insisted on the continued validity of the agreement even in such an interim election. This must not remain an open question, and therefore it will be a requirement in the

future to stipulate in the agreement itself that it remains valid until such time as a new general election intervenes. But even this cannot suffice, and especially after 1913 a second lacuna has arisen that has put the alliance of the three Right-wing parties to a very serious test. There was

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PARTY POLICY AT THE BALLOT BOX. Agreed, but the accord we entered into in 1913 applied only to the case where the Right had remained in power. Now that the Right has lost and the Left has gained such a decisive majority in the Second Chamber, that we, as far as the handling of affairs is concerned, would be completely at their mercy, it soon became clear that the accord we entered into in 1913 hardly applied in any respect to the situation that has now arisen. The consequence of this was that the Roman Catholic State Party, without any consultation or consultation with us, entered into negotiations with the Cabinet of liberal ministers, and for itself, entirely without us, established a course of action that promised it golden mountains, but left us high and dry. The details of this particular case cannot be discussed here. It appears to us that the advantages that opened up for the Roman Catholic State Party in this case were of such a nature that it would have been unfaithful to itself if it had not seized the profit that presented itself with both hands. The question that remained was only this: does an allied party act according to duty and good order if it proceeds to follow such a course of action without informing its allies of it and continuing to regulate the further relationship? And then our answer is certainly negative, with this remark, that of the Roman Catholic party, when it acted in this way, it cannot be said that it had broken the accord, since a case position such as then presented itself was not mentioned in the accord at all. It seems to us that it should nevertheless have made a confidential communication of its intention, even though the accord did not oblige it to do so. And this now precisely points to the second defect to which we alluded. Is it not undeniable that an accord entered into with a view to a general election can hardly be anything other than a positive accord, determining what one will have to do if one is to support a Cabinet that is of the same spirit, then it follows from this that in the event of a setback at the ballot box, the accord entered into can no longer serve its purpose, and that one will then have to hastily proceed to conclude a new accord, in which the attitude to be taken towards the non-kindred Cabinet is determined. It should even be added that in such a position it would be desirable to appoint a joint standing committee...

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DEFECTS IN THE ACCORD - IS ACCORD STILL NECESSARY?

Many expect that, if the Constitution is revised, and the party truce is maintained, as may be assumed, there will already be a next year, after the election campaign, no more talk of alliance or even of electoral consultation under the leadership of the organized parties. Each independent party, it is said, will then operate entirely on its own. Consultation between like-minded or even other parties will then only be possible in the Chamber and in no case during an election campaign. Everyone will go their own way. The voters will receive lists from their own circle or faction. They will fill them in in the most promising manner, and the result will show by itself how many votes, and consequently how many parliamentary seats, they can count on. Even on a superficial view, this is not entirely correct. Suppose that the common vote comes to 20,000, then it is quite conceivable that if there are three parties with mutual interests, party A retains 15,000 votes without benefit, party B 10,000 and party C 5,000. Without further regulation, in this way the allied parties of the Right could lose 30,000 votes. This damage, which would naturally accrue to the benefit of the opposing parties, could be averted if the related parties agreed among themselves as to whom they wish to place on their list as a collector of the other, lost votes. Naturally, the choice here would have to be fixed on a candidate of that party who could dispose of the highest unused figure. A measure, it is true, of small alloy, but as experience has taught, in the Netherlands the majority in the Second Chamber can hang on a single vote. To look sharply at the small things is therefore always advisable with us at the Ballot Box. But even if one disregards this, there can never be a question of any party, in exercising its electoral rights, abstaining from indicating its own tone.

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It is therefore completely incorrect to assume that the like-minded parties, as far as the election campaign is concerned, could leave everything blue and could only proceed to political consultation in the Chamber. One may not even for a moment assume the appearance of this. Even after the amendment of the electoral law, it remains inexorably necessary that each party determine for itself what the task will be that the soon-to-be-elected Members of Parliament will have to take upon themselves. Each party must therefore, before the election, give an account of what it deems desirable and necessary in the interest of the country. It will therefore have to design, under this new star, a program of action, just as it does now, and when this program of action has been prepared and regulated by the Deputies' meeting, then of course each electoral association that has joined will, just as it does now, be obliged to investigate to what extent the candidates it intends to place on the list can be regarded as the men from whom an action in the sense of such a program may be expected. If this is to lead to an effective result, then the like-minded or allied parties, for whatever reason, must be well aware of what is sought in the list candidates as attractive. An accord, not to deceive the voters, but to determine the conditions of the now isolated voters, will therefore remain entirely the same as it is now. The voters must know what they can expect from each other's support; and in presenting their candidates on the list, they must be sufficiently assured that these candidates, if they become Members of Parliament, will respond in sympathy of purpose to what the voters expect. It is therefore incorrect to assume that the election campaign will be carried on by the various parties

entirely separately from each other. Although it is true that the definitive agreement will only be able to be reached in the Chamber itself, yet even at the ballot box, not personnel, but a political accord must set the tone. A party that would neglect this would come out in a loss of a part of its political power.

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FRAGMENTATION

## §14. Fragmentation.

A serious concern arises from the system that is about to be introduced—that, whether we like it or not, a daring "Sonder-bündlerei" could lead to a partial disintegration of the party. A group, however insignificant, could easily, through collaboration, manage to cast enough votes in a certain region of the country to ultimately secure the required quota and obtain a seat. The possibility of this is undeniable. And it is this possibility that so easily leads to attempting such a ballot box isolation. The danger threatens from two sides. In the first place, there may be an individual who would consider his highest ideal achieved if he could become a Member of Parliament. Such a case was always conceivable, but now even more so than before, because the financial position of a Member of Parliament has markedly improved. There was an allowance of 2,000 guilders, now it amounts to 3,000 guilders, and in addition, not only travel expenses, but also a possible pension that can amount to a certain amount, high enough to maintain one's life in old age. Both the urge to enter Parliament for a special conviction and the desire to improve one's financial position can thus work together, and so it could be imagined that a political eccentric would work his way into Parliament. This cannot be prevented with a single person, as it is certain that in the long run the chance of success for such eccentrics will become less and less, and the freedom of choice will decline rather than rise. But even if the outcome would soon cut off such isolation by itself, it is very conceivable that in the first onslaught a dozen or so of such individualists would attempt it. And if they then succeed, even if only a very few, they can still cause, by such action, a fragmentation to set in at the very first onset, which will cost us the loss of four or five seats. Not that all four or five would be elected. On the contrary, more than one or two such things rarely succeed. Belgium, right next to us, provides proof of this. But our party would then still lose a significant number of votes in total, and the consequence of this is that these eccentrics themselves will run against us and offer support to the left-wing groups. And now do not say that all parties are initially exposed to this danger, and that the loss of the one will compensate for the loss of the other—never forget that individualism speaks very strongly in our circles, so that comparatively the danger lurking here is greater for us. Later, it will disappear, just as it has almost completely ceased to work in Belgium in the end. Only at the beginning can such damage be done, and that is why it is important to be mindful of it.

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## §15. District division.

Just as every party has an organization, so the Anti-Revolutionary party also has one that is directly related to the district division prescribed by the electoral law. Many have only one division for both the House and the States, but there are also fifteen in double form, one for the House and the other for the States. Now, however, these electoral districts will be abolished, and a much more limited division will take their place. This naturally leads to the question of whether it will be necessary for our party organization to bring it into line with this new legal division. Of course, this would be strictly necessary if the number of votes were rounded off and finalized per electoral district, according to the new division, in such a way that it would not remain inactive in any new district, in an absolute sense. However, this will not be the case in such a strict sense. A completely new district division for the Anti-Revolutionary party is therefore not strictly necessary. Maintaining our existing division would even provide the Anti-Revolutionary party with the not insignificant advantage that the proven leadership, which has been working regularly for about twenty years per district, could remain what it was. Yet it will be advisable for our party to also seriously consider this new emerging issue and consult the district administrations about it. If modification proves desirable and promises us gain, then nothing would prevent us from making the necessary changes. Perhaps it would even be better in any case to live in a division that has lost its legal basis.

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DISTRICT DIVISION - THE COMPELLED VOTERS

## §16. The Compelled Voters.

If the duty to vote, as may be presumed, also goes away, then our Members of Parliament will certainly bear no responsibility for this, for our Party has always strenuously opposed it. But now that this voting compulsion has come, we will also have to reckon with it. For this confronts us with the fact that likely 15 to 20% of the registered voters would rather stay home, since they have no interest in the electoral process, but now must come forward. Partly these are voters who do not

care to take the time, and do not want to leave their affairs for a trip to the ballot box. Partly they are persons of weak health, who, if the weather is unfavorable, would rather not venture out. Partly they are the indifferent, who do not concern themselves with politics, even mocking it for years. And finally, there are also those persons who are driven by their own opinion and yet see no chance of succeeding with that opinion. Four categories, to which is finally added the larger quantity of those who feel that they are not up to par, and therefore are embarrassed about how they should vote, a conviction that then leads them to prefer to stay home. Yet all of these must now go to the ballot box. No more fetching is needed. They now come of their own accord. But now the point is that their vote does not slip away in the wrong direction. This now brings a very serious duty for our electoral associations, to make accurate lists of all such stay-at-homes, and not just in the election month, but one or two years in advance, to exert influence on them from afar, to enlighten them, to provide them with the necessary reading material, to visit them, and to win them over, so that at least they will no longer act without some awareness of what they are doing. A very serious task for our electoral associations, but really a task for our organization. It is precisely with a view to this that the necessity has already been pointed out from more than one side, to appoint two permanent agents, something for which a large part of the funds that will have to flow from the entire country to the common war chest will have to be used. Understand well, therefore, that from now on it will not be half the work that we have thus far defended, but on the contrary, a doubling of the task that awaits us.

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PARTY POLICY IN THE ELECTIONS

## §17. The Propaganda Clubs.

Especially with a view to the compelled voters, who must now come forward on pain of punishment by the judge, it was excellent that the Propaganda Clubs are now officially recognized in our Statutes as one of the most desirable manifestations in the electoral field. The relationship to these clubs will naturally have to be regulated in more detail, but we have now already advanced so far that these clubs desire nothing more than to offer support to our party, and that the Anti-Revolutionary Party is now intent on having the most desirable forces of these clubs primarily benefit the former stay-at-homes, now compelled voters.

## §18. Holy Inspiration.

We conclude this explanation, as regards the electoral action, with the prayer that the holy character that our political struggle has always borne may in no way be disrupted, but may, in the seriousness of the times, increasingly inspire our men in higher and lower circles. It has been the misfortune of such a mighty Conservative party that it has always counted politics apart from the Almighty. Hence its inglorious downfall. Insofar as the Anti-Revolutionary Party has also contributed to the collapse of their palaces and the rise of their huts, it thinks of the exactly opposite endeavor, to always begin with the God of our Fathers, and to beg from Him the watchword for our political conduct. Religion first, and politics derived from it! Let this remain our watchword. The Word of God in Holy Scripture remains above all political calculation, ever resounding above us. The “nil desperandum Deo” (never despair in God) was thus the ever-victorious leading power. May this remain so!

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APPENDICES (see Chapter XVI § 7 page 453).

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The Antirevolutionary Party as a People’s Party

## §1. Connection with the first part.

The first part of this work dealt with the principles of the Antirevolutionary Party. This second part will now consider the application of those principles.

## §2. The beginning of our Program.

Our Program begins with the declaration that the Antirevolutionary Party is a people’s party. This is not merely a rhetorical flourish, but a fundamental characteristic that must be maintained.

## §3. Difference according to the country.

The Antirevolutionary Party in the Netherlands has a different character than in other countries, due to the unique history and circumstances of our nation.

## §4. The Calvinists here in this land.

The Calvinists in the Netherlands form a distinct group within the people, with their own history, customs, and popular morality.

## §5. Allies.

The Antirevolutionary Party has allies in other groups that share its fundamental principles, even if they differ in certain details.

## §6. Kuyper and Dr.

Bronsveld.

The relationship between Abraham Kuyper and Dr. Bronsveld illustrates the unity and diversity within the Antirevolutionary movement.

## §7. The Electoral Law Branch.

The Electoral Law Branch represents a specific application of Antirevolutionary principles within the political sphere.

## §8. The schism of 1894.

The schism within the Antirevolutionary Party in 1894 was a significant event with lasting consequences.

## §9. Mr.

Jhr. A.F. De Savornin Lohman.

The role and influence of Mr. Jhr. A.F. De Savornin Lohman must be carefully considered.

## §10. Protest party or Cabinet.

The Antirevolutionary Party must decide whether to function as a protest party or to participate in government.

## §11. Election program.

The election program of the Antirevolutionary Party must reflect its principles and appeal to the people.

## §12. Once more the Lohman.

The position of Mr. Lohman continues to be an important factor.

## §13. Firm starting point.

The Antirevolutionary Party must maintain a firm starting point in its principles.

## §14. One-sided sense of “Christian.”

The term “Christian” must not be understood in a one-sided or exclusive manner.

## §15. Not limited to our land.

The Antirevolutionary principles have relevance beyond the borders of the Netherlands.

## §16. Emerging from the past.

The Antirevolutionary Party arises from the historical development of the Dutch nation.

## §17. Adrift.

There have been times when the Antirevolutionary Party has seemed adrift or lacking direction.

## §18. Fortunate turn.

Fortunately, the Antirevolutionary Party has made a positive turn in recent years.

## §19. Three groups in the people.

Within the Dutch people, there are three distinct groups that the Antirevolutionary Party must address.

## §20. The three groups not equally representative.

These three groups do not equally represent the Dutch people as a whole.

## §21. The third type the weakest.

The third type of group is the weakest in terms of its influence and significance.

## §22. Psychological national mystery.

The dynamics within the Dutch people constitute a psychological national mystery.

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The fundamental tone.

The Antirevolutionary Party must strike a fundamental tone that resonates with the Dutch people.

## §24. Our people.

The Antirevolutionary Party must understand and embrace the unique character of the Dutch people.

## §25. Lasting influence.

Calvinism.

The lasting influence of Calvinism on the Dutch people is a crucial factor.

## §26. Guided by Orange.

The House of Orange has played a pivotal role in the history and development of the Dutch nation.

## §27. The wrong done to us.

The Antirevolutionary Party must address the wrongs that have been done to the Dutch people.

## §28. The people's party.

The Antirevolutionary Party must truly be a people's party, rooted in the history, customs, and popular morality of the Dutch nation.

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The Antirevolutionary Party as a People's Party (continued)

## §29. Calvinism and the people.

Calvinism has shaped the character and identity of the Dutch people in profound ways.

## §30. Calvinism and the state.

The Antirevolutionary Party's understanding of the relationship between Calvinism and the state is crucial.

## §31. Calvinism and the social question.

The Antirevolutionary Party must address the social question from a Calvinist perspective.

## §32. Calvinism and the arts.

The Antirevolutionary Party must also consider the role of Calvinism in the realm of the arts and culture.

## §33. Calvinism and science.

The Antirevolutionary Party must engage with the relationship between Calvinism and the pursuit of scientific knowledge.

## §34. Calvinism and the family.

The Antirevolutionary Party must uphold the centrality of the family within Calvinist thought and practice.

## §35. Calvinism and the church.

The Antirevolutionary Party must navigate the complex relationship between Calvinism and the institutional church.

## §36. Calvinism and the world.

The Antirevolutionary Party must articulate a Calvinist perspective on the broader world and its place within it.

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The Antirevolutionary Party as a People's Party (continued)

## §37. Calvinism and the nation.

The Antirevolutionary Party must understand and champion the role of Calvinism in shaping the Dutch national identity.

## §38. Calvinism and propriety.

The Antirevolutionary Party must uphold the Calvinist understanding of propriety and decency in public life.

## §39. Calvinism and custom.

The Antirevolutionary Party must respect and preserve the Calvinist customs and conventions that have become integral to Dutch society.

## §40. Calvinism and the future.

The Antirevolutionary Party must articulate a Calvinist vision for the future of the Dutch nation.

## §41. Calvinism and the world.

The Antirevolutionary Party must engage with the broader world from a Calvinist perspective, while maintaining its distinctive identity.

## §42. Calvinism and the people.

The Antirevolutionary Party must remain firmly rooted in the Calvinist character of the Dutch people.

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